

Chapter 62

ALARM SYSTEMS

§ 62-1.	Purpose.	§ 62-8.	Suspension or revocation of alarm company license.
§ 62-2.	Definitions.		
§ 62-3.	Registration required; application; fees; transferability; false statements.	§ 62-9.	Duties of Baldwin Borough.
		§ 62-10.	False alarm penalties.
		§ 62-11.	Suspension of response.
§ 62-4.	Alarm systems in apartment complexes.	§ 62-12.	Notification upon false alarm.
		§ 62-13.	Appeals; fee.
§ 62-5.	Registration duration and renewal.	§ 62-14.	Reinstatement of alarm response.
		§ 62-15.	Violations and penalties.
§ 62-6.	Duties of alarm user.	§ 62-16.	Confidentiality.
§ 62-7.	Duties of alarm company; permit required; fee.	§ 62-17.	Government immunity.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 1-15-2001 by Ord. No. 753,¹ effective 4-1-2001. Amendments noted where applicable.]

GENERAL REFERENCES

Police Department — See Ch. 41.

Fire prevention — See Ch. 89.

Buildings, numbering of — See Ch. 80.

§ 62-1. Purpose.

- A. The purpose of this chapter is to encourage alarm users and alarm companies to properly use and maintain the operational effectiveness and proper utilization of alarm systems and to reduce or eliminate false alarms which may unduly divert law enforcement from responding to criminal activity.
- B. This chapter governs systems intended to summon law enforcement and fire response, and requires registration, establishes fees, provides for penalties for violation, establishes a system of administration, and sets conditions for suspension or loss of registration.

§ 62-2. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

ADVISORY BOARD — Persons designated by a governing authority that should be representative of the community, alarm industry, and law enforcement. The Advisory Board should review and recommend

1. Editor's Note: This ordinance also repealed former Ch. 62, Alarm Systems, adopted 10-21-1991 by Ord. No. 628, as amended 12-19-1994 by Ord. No. 676.

false alarm reduction efforts and report to the governing authority (City Council, County Board, etc.).

ALARM ADMINISTRATOR — A person or persons designated by the governing authority to administer, control and review false alarm reduction efforts.

ALARM COMPANY — The business, by an individual, partnership, corporation or other entity, of selling, leasing, maintaining, servicing, repairing, altering, replacing, moving, installing or monitoring an alarm system in an alarm site.

ALARM DISPATCH REQUEST — A notification to a law enforcement agency that an alarm, either manual or automatic, has been activated at a particular alarm site.

ALARM REGISTRATION (or PERMITS) — The notification by an alarm company or an alarm user of the Alarm Administrator that an alarm system has been installed and is in use.

ALARM REVIEW BOARD — Should consist of five members as follows: The Chief of Police or designee, Borough Secretary or designee, member of Borough Council or designee, a representative of the Fire Department or designee, and an at-large appointee of the Borough Council that cannot be resolved at a first level. All appointees shall serve at the pleasure of Council.

ALARM SITE — A single fixed premises or location served by an alarm system or systems. Each tenancy, if served by a separate alarm system in a multitenant building or complex, shall be considered a separate alarm site.

ALARM SYSTEM — A device or series of devices, including, but not limited to, systems interconnected with a radio frequency method such as cellular or private radio signals, which emit or transmit a remote or local audible, visual or electronic signal indicating an alarm condition and intended to summon law enforcement services of the municipality, including local alarm system. "Alarm systems" does not include an alarm installed in a vehicle or person unless the vehicle or personal alarm is permanently located at a site.

ALARM USER — Any person, firm, partnership, corporation or other entity who (which) uses or is in control of any alarm system at its alarm site.

ALARM USER AWARENESS CLASS — A class conducted by the municipality or law enforcement agency for the purpose of educating alarm users about the problems created by false alarms and responsible use and operation of alarm systems.

AUTOMATIC VOICE DIALER — Any electrical, electronic, mechanical or other device capable of being programmed to send a prerecorded voice message, when activated, over a telephone line, radio or other communication system to a law enforcement agency.

CANCELLATION or RESPONDING AGENCY ALARM DISPATCH CANCELLATIONS — The process by which an alarm company providing monitoring verifies with the alarm user or responsible party that a false dispatch has occurred and that there is not an existing situation at the alarm site requiring law enforcement agency response.

CONVERSION — The transaction or process by which one alarm company begins monitoring of a previously unmonitored alarm system or an alarm system previously monitored by another alarm company.

DURESS ALARM — A silent alarm system signal generated by the manual activation of a device intended to signal a life-threatening situation or a crime in progress requiring law enforcement response.

FALSE ALARM — An alarm dispatch request to a law enforcement agency, when the responding officer finds no evidence of a criminal offense or attempted criminal offense after having completed a timely investigation of the alarm site.

HOLDUP ALARM — A silent alarm signal generated by the manual activation of a device intended to signal a robbery in progress.

KEYPAD — A device that allows control of an alarm system by the manual entering of a coded sequence of numbers or letters.

LAW ENFORCEMENT AUTHORITY — The Commissioner, Superintendent, Sheriff and Chief of Police, director of a law enforcement agency or an authorized representative. The term "law enforcement authority" is also to include fire chiefs, public safety officials, emergency management coordinator or authorized representatives of same. **[Amended 6-12-2018 by Ord. No. 889]**

LICENSE — A license issued to an alarm company to sell, install, monitor, repair or replace alarm systems by an authority having jurisdiction.

LOCAL ALARM SYSTEM — Any alarm system that annunciates an alarm only by an internal or external audio device.

MONITORING — The process by which an alarm company receives signals from an alarm system and relays an alarm dispatch request to the municipality for the purpose of summoning law enforcement response to the alarm site.

ONE PLUS DURESS ALARM — The manual activation of a silent alarm signal by entering at a keypad a code that adds one to the last digit of the normal arm/disarm code (normal code = 1234; one plus duress code = 1235).

PANIC — An audible alarm system signal generated by the manual activation of a device intended to signal a life-threatening or emergency situation requiring law enforcement response.

PERSON — An individual, corporation, partnership, association, organization or similar entity.

TAKEOVER — The transaction or process by which an alarm user takes over control of an existing alarm system, which was previously controlled by another alarm user.

VERIFY — An attempt, by the alarm company or its representative, to contact the alarm site by telephonic or other electronic means, whether or not actual contact with a person is made, before requesting law enforcement dispatch, in an attempt to avoid an unnecessary alarm dispatch request.

ZONES — Subdivisions into which an alarm system is divided to indicate the general location from which an alarm system signal is transmitted.

§ 62-3. Registration required; application; fees; transferability; false statements.

A. No alarm user shall operate, or cause to be operated, an alarm system at its alarm site without a valid alarm registration issued by Baldwin Borough. A separate registration is required for each alarm site.

(1) An additional alarm registration classification shall be required for alarm systems programmed with duress alarm or holdup alarm.

B. The annual fee for a registration or registration renewal for a residential alarm site shall be \$5 and for a commercial site shall be \$60, and should reflect the administration cost. No refund of a registration or registration renewal fee will be made. The initial annual registration fee must be submitted to Baldwin Borough within five days after the alarm installation or alarm takeover. A registration occurring on or before June 30 shall be charged the full annual fee. A registration occurring after June 30 shall be charged 1/2 the annual fee.

(1) An additional fee established by Baldwin Borough shall be assessed for an alarm system

programmed with duress alarm or holdup alarm.

C. Upon receipt of a completed application form and the alarm registration fee, Baldwin Borough shall register the applicant unless the applicant has:

- (1) Failed to pay a fine assessed under § 62-10; or
- (2) Had an alarm registration for the alarm site suspended or revoked, and the violation causing the suspension or revocation has not been corrected.

D. Each alarm registration application must include the following information:

- (1) The name, complete address (including apartment or suite number), and telephone numbers of the person who will be the registration holder and be responsible for the proper maintenance and operation of the alarm system and payment of fees assessed under this chapter.
- (2) The classification of an alarm site shall be either residential (including single-family dwelling, duplexes, condos, and/or mobile homes) or commercial site.
- (3) For each alarm system located at the alarm site, the classification of the alarm system, i.e., burglary, holdup, duress, or other, for each purpose, whether audible or silent.
- (4) Mailing address, if different from the alarm site.
- (5) Any dangerous or special conditions present at the alarm site.
- (6) Name and telephone numbers of at least three individuals who are able and have agreed to receive notification of an alarm activation at any time; respond to the alarm site within 30 minutes; and upon request can grant access to the alarm site and deactivate the alarm system if such becomes necessary.
- (7) Type of business conducted at the alarm site.
- (8) Signed certification from the alarm user stating:
 - (a) The date of installation, conversion or takeover of the alarm system, whichever is applicable;
 - (b) The name, address, and phone number of the alarm company performing the alarm system installation, conversion or alarm system takeover and responsible for providing repair service to the alarm system;
 - (c) The phone number of the alarm company monitoring the alarm system, if different from the installing alarm company;
 - (d) That a set of written operating instructions for the alarm system, including written guidelines on how to avoid false alarms, has been left with the applicant; and
 - (e) That the alarm company has trained the applicant in proper use of the alarm system, including instructions on how to avoid false alarms.
 - (f) The law enforcement response may be based on factors such as availability of police units, priority of calls, weather conditions, traffic conditions, emergency conditions, staffing levels, etc.

- E. Any false statement of a material fact made by an applicant for the purpose of obtaining an alarm registration shall be sufficient cause for refusal to issue a registration.
- F. An alarm registration cannot be transferred to another person or alarm site. An alarm user shall inform Baldwin Borough of any change that alters any information listed on the registration application within five business days.
- G. All fees owed by an applicant must be paid before a registration may be issued or renewed.

§ 62-4. Alarm systems in apartment complexes.

A tenant of an apartment with an alarm system shall obtain an alarm registration from Baldwin Borough before operating or causing the operation of an alarm system in the tenant's residential unit. The owner or property manager of an apartment complex shall obtain a separate alarm registration of any alarm system operated in offices or common areas of the apartment complex. The annual fee for these registrations or the renewal of these registrations shall be the same as the fee for a commercial alarm site. Each building, regardless of the number of units contained therein, shall be deemed as one commercial alarm site and shall pay the annual registration fee for a commercial alarm site.

§ 62-5. Registration duration and renewal.

A registration shall expire one year from the date of issuance and must be renewed annually by submitting an updated application and a registration renewal fee to Baldwin Borough. Baldwin Borough shall notify each alarm user of the need to renew 30 days prior to the expiration date. Failure to renew will be classified as use of a nonregistered alarm system, and citations and penalties shall be assessed without waiver. A twenty-five-dollar late fee can be assessed if the renewal is more than 30 days late.

§ 62-6. Duties of alarm user.

- A. An alarm user shall:
 - (1) Maintain the premises and the alarm system in a manner that will minimize or eliminate false alarms.
 - (2) Make every reasonable effort to respond or cause a representative to respond to the alarm system's location within 30 minutes when notified by the municipality to deactivate a malfunctioning alarm system, to provide access to the premises, or to provide alternative security for the premises; and should the alarm user either refuse to respond or not respond within 30 minutes, then he/she shall be subject to a fine not to exceed \$300.
 - (3) Not manually activate an alarm for any reason other than an occurrence of an event that the alarm system was intended to report.
- B. An alarm user shall adjust the mechanism or cause the mechanism to be adjusted so that an alarm signal audible on the exterior of an alarm site will sound for no longer than 10 minutes after being activated (or 15 minutes for systems operating under Underwriters Laboratories, Inc., Standard 365 or 609).
- C. An alarm user shall have a properly licensed alarm company inspect the alarm system after two false alarms in a one-year period from the date of registration issuance or renewal. Baldwin Borough may waive an inspection requirement if it determines that a false alarm(s) could not have been related to a defect or malfunction in the alarm system to be more false alarm resistant or provide additional user

training as appropriate. See Appendix A for Installers False Alarm Prevention Checklist.²

- D. An alarm user shall not use automatic voice dialers.
- E. An alarm user shall maintain at each alarm site, a set of written operating instructions for each alarm system.

§ 62-7. Duties of alarm company; permit required; fee.

- A. Upon enactment of this chapter, alarm companies shall obtain a permit from Baldwin Borough to sell maintenance and/or service alarm systems in the Borough prior to installation of same. The fee shall be \$50 for each permit issued.
- B. Upon enactment of this chapter, alarm companies shall not program alarm systems so that they are capable of sending one plus duress alarms. Alarm companies may continue to report one plus duress alarms received from alarm systems programmed with one plus duress prior to enactment of this chapter. However, upon enactment of this chapter, when a takeover or conversion occurs, or if an alarm user requests an alarm system inspection or modification pursuant to § 62-6C of this chapter, an alarm company must remove the one plus duress alarm capability from such alarm system.
- C. Upon enactment of this chapter, alarm companies shall not install a device activating a holdup alarm, which is a single-action nonrecessed button. An alarm company must remove all single-action nonrecessed buttons when a takeover or conversion occurs.
- D. Upon enactment of this chapter, alarm companies shall use control panels tested for conformance to the Security Industry Association (SIA) Control Panel Standard — Features for False Alarm Reduction.
- E. After completion of the installation, an alarm company employee shall review with the alarm user the Customer False Alarm Prevention Checklist (Appendix B³) or an equivalent approved by Baldwin Borough.
- F. An alarm company performing monitoring services:
 - (1) Shall offer a training period in which no request for dispatch by law enforcement will occur during the first seven days after installation of an alarm system, but rather will use that week to train the alarm user on proper use of the alarm system, unless circumstances necessitate immediate requests for response, as determined by Baldwin Borough;
 - (2) Report alarm signals by using telephone numbers designated by Baldwin Borough;
 - (3) Attempt to verify every alarm signal, except a duress and holdup alarm activation, before requesting a law enforcement response to an alarm system signal;
 - (4) Communicate alarm dispatch requests to the municipality in a manner and form determined by Baldwin Borough;
 - (5) Communicate cancellations to the municipality in a manner and form determined by Baldwin Borough;
 - (6) Ensure that all alarm users of alarm systems equipped with a duress or holdup alarm are given

2. Editor's Note: Said appendix is on file in the office of the Borough Secretary.

3. Editor's Note: Said appendix is on file in the office of the Borough Secretary.

adequate training as to the proper use of the duress or holdup alarm;

- (7) Communicate any available information (north, south, front, back, floor, etc.) about the location of the alarm;
- (8) Communicate type of alarm activation (silent or audible, interior or perimeter);
- (9) Provide alarm user registration number when requesting dispatch;
- (10) Endeavor to contact the alarm user when an alarm dispatch request is made; and
- (11) Upon enactment of this chapter, alarm companies that perform monitoring services must maintain, for a period of at least one year, records relating to alarm dispatch request. Records must include the name, address, and phone number of the alarm user, the alarm system zone(s) activated, the time of alarm dispatch request and evidence of an attempt to verify. Baldwin Borough may request copies of such records for individually named alarm users.

§ 62-8. Suspension or revocation of alarm company license.

Baldwin Borough can appeal to an appropriate governmental body regulating the alarm company to suspend or revoke the alarm company's license when the alarm company fails to comply with the duties listed in § 62-7. In the event Baldwin Borough cannot obtain required information about the alarm company from the governmental body regulating the alarm company, Baldwin Borough can require the alarm company to supply the required information in a registration with Baldwin Borough.

§ 62-9. Duties of Baldwin Borough.

A. Baldwin Borough shall:

- (1) Designate a manner, form and telephone numbers for the communication of alarm dispatch requests.
- (2) Establish a procedure to accept cancellation of alarm dispatch requests.

B. Baldwin Borough shall establish a procedure to record such information on alarm dispatch requests necessary to permit Baldwin Borough to maintain records, including, but not limited to, the following information. This information may be relayed by the responding officer at the time of clearance to law enforcement dispatchers, who will then record said information on the call record.

- (1) Identification of the registration number for the alarm site;
- (2) Identification of the alarm site;
- (3) Date and time alarm dispatch request was received;
- (4) Date and time of law enforcement officer arrival at the alarm site;
- (5) Zone, if available;
- (6) Name of alarm user's representative on premises, if any;
- (7) Identification of the responsible alarm company;
- (8) Whether unable to locate the address; and/or

- (9) Cause of alarm, if known.
- C. The Alarm Administrator shall establish a procedure for the notification to the alarm user of a false alarm. Options include, but are not limited to, the officer leaving a door hanger or notice at the alarm site. The notice shall include the following information:
- (1) The date and time of law enforcement response to the false alarm;
 - (2) The identification number of the responding law enforcement officer; and
 - (3) A statement urging the alarm user to ensure that the alarm system is properly operated, inspected, and serviced in order to avoid false alarms and resulting fines.
- D. If there is reason to believe that an alarm system is not being used or maintained in a manner that ensures proper operation and suppresses false alarms, Baldwin Borough may require a conference with an alarm user and the alarm company responsible for the repair of the alarm system to review the circumstances of each false alarm.
- E. The Alarm Administrator shall oversee the creation and implementation of an alarm user awareness class. The Alarm Administrator may request the assistance of alarm companies and a law enforcement agency in developing and implementing the class. The class shall inform alarm users of the problems created by false alarms and teach alarm users how to operate their alarm systems without generating false alarms.

§ 62-10. False alarm penalties.

- A. An alarm user shall be subject to penalties, warnings and suspension or revocation of registration depending on the number of false alarms emitted from an alarm system within a twelve-month period from the date of registration or renewal, based upon the following schedule:

Number of False Alarms	Penalties
1, 2 or 3	\$0
4	\$50
5	\$100
6 or 7	\$200
8 or more	\$300 (each)

- B. In addition, any person operating a nonregistered alarm system (whether suspended or never acquired) will be subject to a citation and assessment of a two-hundred-dollar penalty for each false alarm, in addition of any other penalties.
- C. An alarm user shall have the option of attending an alarm user awareness class in lieu of paying one prescribed penalty.
- D. If cancellation occurs prior to law enforcement arriving at the scene, this is not a false alarm for the purpose of penalties, and no penalties will be assessed.
- E. The alarm company shall be issued a civil citation if the officer responding to the false alarm determines that an on-site employee of the alarm company directly caused the false alarm. In this situation this will not be counted against the alarm user.

- F. The alarm company may be penalized for failure to verify if the Alarm Administrator determines the existence of the consistent pattern or written policy against verification.
- G. The alarm company can be penalized if the Alarm Administrator determines that an alarm company employee make a false statement concerning the inspection of an alarm site or the performance of an alarm system.

§ 62-11. Suspension of response.

- A. Alarm Administrator may suspend alarm response if it is determined that:
 - (1) The alarm user has four or more false alarms in one year;
 - (2) There is a false statement of a material fact in the application for a registration;
 - (3) The alarm user has failed to make timely payment of a fine assessed under § 62-10 or fee assessed under § 62-3; or
 - (4) The alarm user has failed to submit a written certification from an alarm company that complies with the requirement of this chapter, stating that the alarm system has been inspected and repaired (if necessary) by the alarm company.
- B. A person commits an offense if he/she operates an alarm system during the period in which his alarm registration is suspended and is subject to enforcement and penalties set in § 62-15. An alarm company commits an offense if it continues to request law enforcement dispatch to an alarm site after notification by the Alarm Administrator that the registration has been suspended or revoked and is subject to enforcement and penalties set in § 62-15.
- C. If the alarm registration is reinstated pursuant to § 62-13, the Alarm Administrator may suspend alarm response if it is determined that two false alarms have occurred within 60 days after the reinstatement date.

§ 62-12. Notification upon false alarm.

- A. The Alarm Administrator shall notify the alarm user in writing after the first, second, and third false alarms. The notification shall include the amount of the penalty for each false alarm, notice that the alarm user can attend alarm user awareness class to waive a penalty, the fact that response will be suspended after the fourth false alarm, and a description of the appeals procedure available to the alarm user.
- B. The Alarm Administrator will notify the alarm user and the alarm company in writing after the fourth false alarm that alarm response has been suspended. This notice of suspension will also include the amount of the penalty for each false alarm and a description of the appeals procedure available to the alarm user and the alarm company.

§ 62-13. Appeals; fee.

- A. An alarm user may appeal the assessment of a penalty, suspension, or request reinstatement to the Alarm Administrator. An appeal fee of \$25 will accompany the appeal by the alarm user. Appeal fees will be returned to the alarm user if the appeal is upheld. The filing of an appeal with the Alarm Administrator stays the assessment of the penalty or suspension until the Alarm Administrator makes a final decision.

- (1) The alarm user shall file a written appeal to the Alarm Administrator by setting forth the reasons for the appeal within 10 days after receipt of the penalty.
- B. If the Alarm Administrator denies the issuance or renewal of an alarm registration or suspends response, the Alarm Administrator shall send written notice of the action and a statement of the right to an appeal to either the applicant or alarm user and the alarm company.
- C. A second level of appeal is available to the Alarm Review Board in cases where the alarm user is not satisfied with the decision reached at a lower level.
 - (1) The applicant, alarm user or the alarm company on behalf of the alarm user may appeal the decision of the Alarm Administrator to the Alarm Review Board by filing a written request for a review, setting forth the reasons for the appeal within 20 days after receipt of the notice from the Alarm Administrator.
 - (2) The Alarm Review Board shall conduct a formal hearing and consider the evidence by any interested person(s). The Board shall make its decision on the basis of the preponderance of evidence presented at the hearing. The Board must render a decision within 30 days after the request for an appeal hearing is filed. The Board shall affirm or reverse the assessment of the penalty. The decision of the Board is final as to administrative remedies of the municipality.
 - (3) Filing of a request for appeal shall stay the action of the Alarm Administrator suspending a registration or requiring a payment of a penalty until the Alarm Review Board has completed the review. If a request for an appeal is not made within the twenty-day period, the action of the Alarm Administrator is final.

§ 62-14. Reinstatement of alarm response.

- A. A person whose alarm response has been suspended may have alarm response reinstated by the Alarm Administrator or the Alarm Review Board if the person has abided by one or more of the following:
 - (1) Submits an updated application and the registration fee.
 - (2) Pays or otherwise resolves all citations and penalties.
 - (3) Submits a certification from an alarm company that complies with the requirements of this chapter, stating that the alarm system has been inspected and repaired (if necessary) by the alarm company.
 - (4) Payment to the Borough of Baldwin for reinspection and reinstatement of a fee in the amount of \$50.
- B. And one or more of the following, if applicable:
 - (1) Submits proof that an employee of the alarm company caused the false alarm.
 - (2) Files with the Alarm Administrator a certificate showing that the alarm user has successfully completed the alarm user awareness class as provided under § 62-9E.
 - (3) Files with the Alarm Administrator a written statement from the municipal alarm inspector designated by the Police Department that the alarm or alarm system has been inspected and found to be in good working order or repaired so as to be in good working order.

§ 62-15. Violations and penalties.

Any person who shall violate any provision of this chapter shall, upon conviction thereof, before the District Magistrate, pursuant to citation filed, be sentenced to pay a fine of not less than \$50 nor more than \$300 and cost of prosecution or, in default of payment of such fine and costs, to undergo imprisonment for not more than 30 days.

§ 62-16. Confidentiality.

Information contained in registration application and applications for appeals shall be held in confidence by all employees or representatives of the municipality and by any third-party administrator or employees of a third-party administrator with access to such information.

§ 62-17. Government immunity.

Registration of an alarm system is not intended to, nor will it, create a contract, duty or obligation, either expressed or implied, of response. Any and all liability and consequential damage resulting from the failure to respond to a notification is hereby disclaimed and governmental immunity as provided by law is retained. By registering an alarm system, the alarm user acknowledges that police response may be based on factors such as availability of police units, priority of calls, weather conditions, traffic conditions, emergency conditions, staffing levels.

Chapter 65**AMUSEMENT DEVICES**

§ 65-1.	License required.	§ 65-10.	Duties of license holder.
§ 65-2.	Definitions.	§ 65-11.	Term of license.
§ 65-3.	Compliance required.	§ 65-11.1.	Application deadline.
§ 65-4.	Duties of license officer.	§ 65-12.	Inspections.
§ 65-5.	Qualifications of applicants.	§ 65-13.	Noncompliance.
§ 65-6.	Reasons for denial of license.	§ 65-14.	Revocation or suspension of license.
§ 65-7.	License fees; transferability of license.	§ 65-15.	Gambling devices prohibited.
§ 65-8.	Information to be stated on license.	§ 65-16.	Right of appeal.
§ 65-9.	Additional information to be supplied.	§ 65-17.	Violations and penalties.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 3-15-1982 by Ord. No. 522. Amendments noted where applicable.]

§ 65-1. License required.

No person shall set up, establish or cause to be set up or established or exhibit, display or maintain for the purpose of gaining advantage or profit within the Borough any mechanical device, machine or apparatus of any kind for the playing of games or otherwise used for the purpose of amusement or entertainment by the insertion therein of a coin or any other metal disk, slug or token without obtaining a license from the license officer.

§ 65-2. Definitions.

As used in this chapter, certain terms are defined as follows:

APPLICANT — Any individual, partnership or corporation who seeks to obtain a license for a mechanical device under this chapter. **[Added 12-21-1998 by Ord. No. 730]**

APPLICATION FOR LICENSE OF MECHANICAL DEVICE — The document filed by the applicant requesting a permit to possess in the Borough of Baldwin any mechanical device, music box and/or other electronic device, machine or apparatus whatsoever for the playing of games and amusement. **[Added 12-21-1998 by Ord. No. 730]**

BUSINESS ESTABLISHMENT — Any restaurant, bar, tavern, retail, manufacturing, wholesale, institutional, educational, religious, governmental or other nonresidential establishment, store or business, whether or not in operation. **[Added 12-21-1998 by Ord. No. 730]**

GAMBLING DEVICE — Any device, machine or apparatus used for the playing of poker, blackjack, keno, bingo or other casino games by the insertion therein of any coin, currency, metal disc, slug or token. **[Added 12-21-1998 by Ord. No. 730]**

ILLEGAL GAMBLING DEVICE — Any device, machine or apparatus used for the playing of poker,

blackjack, keno, bingo, slots or other casino gambling games by the insertion therein of any coin, currency, metal disc, slug or token which contains or has been modified to have a knockoff or knockdown switch or other capability for erasing or eliminating playing credits.[Added 12-21-1998 by Ord. No. 730]

LICENSEE — A license holder for any period of time of any special privilege granted relevant to any section of this chapter.

LICENSE OFFICER — The Borough Secretary and any person to whom the Borough Secretary shall delegate the authority given to the Borough Secretary under this chapter.

MECHANICAL DEVICE — Any device, machine or apparatus used for the purpose of playing games or otherwise used for the purpose of amusement or entertainment by the insertion therein of any currency, metal disc, slug or token.[Added 12-21-1998 by Ord. No. 730]

OWNER — Any individual, partnership or corporation who is the lawful owner of any mechanical device for which a license is sought under this chapter.[Added 12-21-1998 by Ord. No. 730]

PROPRIETOR — Any individual, partnership or corporation who owns, leases or maintains the business establishment in which any mechanical device is placed for use, patronage, recreation or amusement of the public or of persons in or about the business establishment.[Added 12-21-1998 by Ord. No. 730]

§ 65-3. Compliance required.

No person, either directly or indirectly, shall conduct any business or enterprise or use in connection herewith any mechanical device, in whole or in part, for which a license is required by this chapter, without first obtaining such license and keeping it in effect at all times as required by this chapter. No person under 18 years of age shall be entitled to a license under this chapter.

§ 65-4. Duties of license officer.

The license officer shall collect all license fees and issue all licenses in the name of the Borough to all persons qualified under the provisions of this chapter and shall do the following:

- A. Make rules. Promulgate and enforce all reasonable rules and regulations necessary to the operation and enforcement of this chapter.
- B. Adopt forms. Adopt any and all forms necessary under this chapter and prescribe the information to be given thereon.
- C. Require affidavits. Require applicants to submit all affidavits and oaths necessary to the administration of this chapter.
- D. Investigate. Investigate and determine the eligibility of any applicant for a license as prescribed by this chapter.
- E. Examine records. Examine the books and records of any applicant or licensee when reasonably necessary to the administration and enforcement of this chapter.
- F. Give notice. Notify any applicant of the acceptance or rejection of his application and deliver written reasons for denial at the applicant's request.

§ 65-5. Qualifications of applicants.

- A. General standards to be applied. The general standards herein set out relative to the qualifications of every applicant for a Borough license shall be considered and applied by the license officer.

- B. Good moral character. Each applicant shall be of good moral character. In making such determination the license officer shall consider only:
- (1) Penal history. All convictions and the reasons thereof and subsequent parole conduct, if applicable.
 - (2) License history. Whether such person, in previously operating in this or another state under a similar license, has had such a license revoked or suspended and the reasons thereof.

§ 65-6. Reasons for denial of license.

The license officer shall not issue a license if it is determined that the licensed activity at the proposed location:

- A. Will be detrimental to or endanger the public health, safety, morals, comfort or general welfare.
- B. If the proposed use will be injurious to the use and enjoyment of other property in the immediate vicinity of the proposed use.

§ 65-7. License fees; transferability of license.

- A. The annual license fee for mechanical devices including music boxes, pool tables, pinball machines and similar devices, excluding all devices defined as "gambling devices" by § 65-2, shall be \$235. **[Amended 12-29-1988 by Ord. No. 600; 12-19-1994 by Ord. No. 680⁴; 12-21-1998 by Ord. No. 730; 12-18-2000 by Ord. No. 748; 3-18-2002 by Ord. No. 768⁵; 12-15-2003 by Ord. No. 779⁶]**
- B. The annual license fee for all devices defined as "gambling devices" by § 65-2, including but not limited to video poker machines, shall be \$800 per device. **[Amended 12-29-1988 by Ord. No. 600; 12-15-2003 by Ord. No. 779]**
- C. Any device licensed under this chapter may not be moved to another location within the Borough for use thereon unless a new license is obtained, except that a device licensed under this chapter may be moved to another location if the said device is replacing another device that had been licensed at said location.
- D. A license for any device under this chapter may not be transferred to another device at the same location whether or not that device is similar to the licensed device, except that a license issued for a device which has fallen into disrepair or requires maintenance may be transferred to a substitute device or, in the event that a device in any establishment is removed, the license for that device may be transferred to the substitute or replacement device, provided that the number of devices in the establishment at which the device is located is not increased.
 - (1) Should any license be transferred to a replacement device, the owner or applicant must register the new device, type and serial number with the Borough of Baldwin. **[Added 12-18-2000 by Ord. No. 748]**
 - (2) Should any machine be confiscated for illegal use by a recognized law enforcement agency of

4. Editor's Note: This ordinance also provided that "Any revision, repeal, increase or decrease in the fees set forth in this section shall, from time to time, be amended by resolution of the Borough Council of the Borough of Baldwin."

5. Editor's Note: This ordinance provided that it would take effect 4-1-2002, would only be in effect for new licenses purchased after 4-1-2002, and licenses purchased prior to the effective date would not be eligible for any monetary refund.

6. Editor's Note: This ordinance provided for an effective date of 1-1-2004.

the Commonwealth of Pennsylvania, the license for such machine shall become null and void, and the license may not be transferred. Should any applicant or owner wish to replace the confiscated machine with another device, a new license and fee shall be obtained through the Borough of Baldwin. [Added 12-18-2000 by Ord. No. 748]

- E. No rebate or refund or any license fee or part thereof shall be made for any reason except if the fee or any part thereof was collected through an error.

§ 65-8. Information to be stated on license.

Each license issued shall state upon its face:

- A. The name of the licensee and any other name under which such business is to be conducted.
- B. The address of each business so licensed.
- C. The amount of the license fee.
- D. The dates of issuance and expiration.
- E. Such other information as the license officer determines is necessary.

§ 65-9. Additional information to be supplied.

In addition to the information required in the previous section, the following information is also required to be furnished to the license officer:

- A. The name and address of the applicant and length of residence at each address.
- B. The previous occupation of any applicant.
- C. The name of the premises owner where machines are to be used and installed and the lease term, if applicable.

§ 65-10. Duties of license holder.

- A. The licensee shall maintain at the premises where the mechanical device is located the license issued with respect to that device, together with a list of all devices licensed under the provisions of this chapter, and the licensee shall provide said list to any police officer, license officer, zoning officer or other representative of the Borough upon request. The licensee shall affix any disk, plate or insignia, if any, which may be provided by the license officer to be used in connection herewith upon the outside of any mechanical device licensed by this chapter, so that it may be easily seen at all times by interested parties.
- B. Any licensee shall not permit any license, insignia, disk or plate to remain posted, displayed or used after the period for which it was issued has expired or when it has been suspended or revoked or when it has for any reason become ineffective. The licensee shall promptly return such inoperative license, insignia, disk or plate to the license officer.
- C. The licensee shall not loan, sell, give or assign to any person to use or display or to destroy, damage or remove or to have in his possession, except as authorized by the license officer, any license, insignia, disk or plate which has been issued to such licensee.

§ 65-11. Term of license.

The term of the license under this chapter shall be from January 1 until December 31 of each fiscal year.

§ 65-11.1. Application deadline. [Added 12-18-2000 by Ord. No. 748]

The deadline to apply for mechanical device licenses shall be January 31 of each year. Applications must be submitted by this date or may be subject to penalties.

§ 65-12. Inspections.

- A. The following persons are authorized to conduct inspections necessary for the enforcement of this chapter:
 - (1) The license officer.
 - (2) Any police officer of the Borough of Baldwin in the course of his duties.
 - (3) Any official authorized by the license officer.
- B. All violations noted by the above-mentioned inspections shall be reported to the license officer in any manner or form that the license officer shall require.

§ 65-13. Noncompliance.

Any owner, occupant, lessee or permittee of land or lands who allows or permits any mechanical device that is required to be lodged in or on premises under his, her, its or their control when said mechanical device has not been licensed shall be considered to have violated the terms of this chapter and shall be liable for the prescribed penalties.

§ 65-14. Revocation or suspension of license.

- A. Any license issued pursuant to the provisions of this chapter may be revoked or suspended by the license officer for any of the following reasons:
 - (1) Fraud, misrepresentation or false statement contained in the license application.
 - (2) Fraud, misrepresentation or false statement made in the course of carrying on the business.
 - (3) Violation of any provision of this chapter or rules or regulations duly made in accordance therewith.
 - (4) Conviction of any crime or misdemeanor involving moral turpitude.
 - (5) Using any machine or other mechanical device in connection herewith in an unlawful manner or in a manner as to constitute a breach of the peace or a menace to the health, safety or general welfare of the public.
 - (6) Obstruction of or denial of entry for authorized inspections.
- B. The license officer shall revoke the license of any licensee whose license shall be suspended twice within any one year's period of time, and no new license or reinstatement or renewal shall be approved or issued for one year from the revocation date.

§ 65-15. Gambling devices prohibited. [Amended 12-21-1998 by Ord. No. 730]

Nothing in this chapter shall authorize, license or permit any gambling devices or any mechanism that has been judicially determined to be a gambling device or that is in any way contrary to present or future law. A license shall not be issued unless the applicant acknowledges:

- A. That obtaining or displaying a Borough license does not sanction, authorize or permit the use or possession of an illegal gambling device, either per se or as modified;
- B. That the Borough shall notify the appropriate law enforcement officials of the use or possession of per se, modified or other illegal gambling devices, whether or not such devices are licensed;
- C. The Borough shall immediately revoke the license of any mechanical device illegally used or possessed, either per se or as modified;
- D. That if the applicant or licensee illegally uses or possesses an unlawful gambling device, either per se or as modified, he may be prosecuted by the Borough or other law enforcement officials; and
- E. That if the Borough has reasonable grounds to believe that a particular mechanical device is illegal, either per se or as modified, the Borough shall not issue a license for said device.

§ 65-16. Right of appeal.

- A. Any person aggrieved by any action of the license officer may request a hearing before the license officer within 10 days following the effective date of any action complained hereof. The appeal shall set out a copy of the order or decision appealed from and shall include a statement of the facts forming the basis of the appeal.
- B. A copy of such appeal shall be filed by the appellant with the license officer at the time of filing. The license officer shall notify the aggrieved party of the date and place of hearing within five days of receipt of the appeal, and the hearing shall be held within 15 days from the date of appeal.

§ 65-17. Violations and penalties. [Amended 12-19-1985 by Ord. No. 566; 12-21-1998 by Ord. No. 730]

Any persons or persons, firm or corporation violating any of the provisions of this chapter shall, upon conviction thereof before the District Justice, be fined up to \$1,000 for each and every offense, or imprisoned for up to 30 days, at the discretion of the District Justice. Each and every day that any machine or device, under the terms of this chapter, shall be operated and used in violation thereof shall constitute a separate and distinct offense under this chapter and shall be subject to separate and distinct penalties thereunder.

Chapter 70**BRUSH, GRASS AND WEEDS**

§ 70-1.	Prohibited grass, weeds and other vegetation.	§ 70-3.	Notice of violation; failure to comply.
§ 70-2.	Exceptions.	§ 70-4.	Violations and penalties.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 3-18-1985 by Ord. No. 559. Amendments noted where applicable.]

GENERAL REFERENCES

Trees, shrubs and bushes — See Ch. 150.

§ 70-1. Prohibited grass, weeds and other vegetation.

No person, firm or corporation owning or occupying any property within the Borough of Baldwin shall permit any poison ivy, poison oak, poison sumac or any other similar noxious and harmful weed to remain growing, nor shall he or it permit any grass or other weeds or other vegetation whatsoever not edible or planted for some useful or ornamental purpose to grow or remain upon such premises so as to exceed a height of six inches or to throw off any unpleasant or noxious odor or to conceal any filthy deposit or to create or produce pollen. Any grass, weeds or other vegetation growing upon any premises in the Borough in violation of any of the provisions of this section and which affect the public or residents of the Borough and which is detrimental to the safety, cleanliness and comfort of the inhabitants of the Borough is hereby declared to be a nuisance.

§ 70-2. Exceptions.

Nothing herein contained, however, shall require the cutting of grass, weeds or other vegetation growing in areas which customarily and historically have contained brush and dense foliage or which remain undeveloped and are not proximate or contiguous to developed areas; nor shall any such grass, weeds or other vegetation be required to be cut or maintained where such cutting or maintaining would impose a hardship on the property owner because of the presence of extreme slope grades, crevasses or the existence of areas which are unable to be reasonably cleared.

§ 70-3. Notice of violation; failure to comply.

The Zoning Officer of the Borough of Baldwin is hereby authorized to give notice, as permitted by law and rules of civil and criminal procedure, to the owner or occupant, as the case may be, of any premises whereon any poison ivy, poison oak, poison sumac or any other similar noxious and harmful weed or whereon grass, other weeds or other vegetation is growing or remaining in violation of the provisions of the first section of this chapter, directing and requiring such occupant to remove, trim or cut such vegetation so as to conform to the requirements of this chapter within five days after issuance of such notice. In case any person, firm or corporation shall neglect, fail or refuse to comply with such notice within the period of time stated therein, the Borough authorities may remove, trim or cut such grass, weeds or vegetation, and the cost thereof, together with any additional penalty authorized by law, may be collected by the Borough

§ 70-3

BRUSH, GRASS AND WEEDS

from such person, firm or corporation in the manner provided by law.

§ 70-4. Violations and penalties. [Amended 12-19-1985 by Ord. No. 566]

Any person, firm or corporation who or which shall violate or fail, neglect or refuse to comply with any of the provisions of this chapter shall, upon conviction thereof, be sentenced to pay a fine of not more than \$300 plus costs of prosecution or imprisoned for up to 30 days, provided that each day's violation shall constitute a separate offense.

BALDWIN CODE

Chapter 74

BUILDING CONSTRUCTION AND HOUSING STANDARDS

**ARTICLE I
Building Construction**

- § 74-1. Purpose; adoption of standards.
§ 74-2. Interpretation of provisions; enforcement authority.
§ 74-3. Plan approval required.
§ 74-4. Definitions.
§ 74-5. Modifications to standards.

**ARTICLE II
Housing Standards**

- § 74-6. Purpose; adoption of standards; modification.

**ARTICLE III
General Provisions**

- § 74-7. Construal of provisions.
§ 74-8. Administration and enforcement.
§ 74-9. Certificate of occupancy.
§ 74-10. Violations and penalties.
§ 74-11. Repealer; exception.
§ 74-12. Effect on violations of prior regulations.

**ARTICLE IV
Minimum Construction Standards**

- § 74-13. Adoption of standards.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 9-16-1996 by Ord. No. 701.⁷ Amendments noted where applicable.]

GENERAL REFERENCES

Dangerous buildings and structures — See Ch. 77.

Numbering of buildings — See Ch. 80.

Uniform construction code — See Ch. 83.

Fire prevention — See Ch. 89.

Flood damage prevention — See Ch. 92.

Grading, excavations and fill — See Ch. 99.

Property maintenance — See Ch. 131.

Sewers — See Ch. 134.

Subdivision and land development — See Ch. 142.

Zoning — See Ch. 168.

7. Editor's Note: This ordinance superseded former Ch. 74, Building Construction and Housing Standards, adopted 9-19-1994 by Ord. No. 672.

ARTICLE I
Building Construction

§ 74-1. Purpose; adoption of standards.⁸

To promote and protect public health, safety and welfare of the residents of the Borough of Baldwin and for the purpose of codifying and regulating the design, construction, alteration, demolition, extension, repair and removal of all buildings, homes, structures and/or edifices in the Borough of Baldwin, and to prescribe reasonable standards for the use of materials, roofing and construction components in such structures in the Borough, the Borough Council of the Borough of Baldwin hereby adopts that certain building code known as the "Boca National Building Code (1996 Edition) of the Building Officials and Code Administration International, Inc.," hereinafter referred to as the "code," as hereinafter modified. Copies of the code have been and are now on file in the office of the Borough Secretary of the Borough of Baldwin. The provisions, standards, specifications and interpretations of the aforesaid code are hereby adopted by reference to the same, and they are incorporated herein as fully as if they had been set out at length herein.

§ 74-2. Interpretation of provisions; enforcement authority.

Any references in the aforesaid code to terms such as "municipality," "city" or any other reference to a governmental authority shall be held to mean the Borough of Baldwin; any terms used in the code referring to building inspector, inspector, code officer or other person authorized to enforce the code shall be held to mean the Code Enforcement Officer, the Zoning Officer of the Borough of Baldwin or any inspectors hired by the Borough to accomplish the purposes set out in this chapter. The Borough Council of the Borough of Baldwin is hereby authorized to appoint and hire inspectors to carry out the provisions of this chapter, but the Code Enforcement Officer and/or the Zoning Officer of the Borough of Baldwin shall be the primary official responsible for the administration and enforcement of this chapter.

§ 74-3. Plan approval required.

Before any work of construction, alteration, extension, repair, demolition or removal of any building, house, edifice or structure is begun, approval of the plans and specifications pertaining to such building, house, edifice or structure shall be required to be obtained from the Zoning Officer of the Borough; the plans and specifications sought to be approved shall be submitted by the owner, or the agent or employee of such owner, and shall be in such form and manner as is more specifically required in the code. The submission of such plans and specifications shall be accompanied by a check or money order in an amount as required under the resolutions of the Borough of Baldwin adopted from time to time and shall include, if required, engineering and architectural certification.

§ 74-4. Definitions.

All terms used in this chapter shall be defined as the same are more fully defined in the code, except that in the event that there is a conflict between the definitions contained in the code and terms that are defined in the Zoning Ordinance of the Borough of Baldwin, as amended,⁹ then the definition as set forth in the Zoning Ordinance of the Borough of Baldwin shall prevail. For these purposes, the definitions section of the Zoning Ordinance of the Borough of Baldwin is incorporated herein by reference thereto, the same as though it had been fully set forth herein at length.¹⁰

8. Editor's Note: See also uniform construction codes adoption in Ch. 83, Construction Codes, Uniform, and adoption of building and other international codes in § 131-2, Adoption of standards, in Ch. 131, Property Maintenance.

9. Editor's Note: See Ch. 168, Zoning.

10. Editor's Note: See § 168-12, Definitions, of the Zoning Ordinance.

§ 74-5. Modifications to standards.

The code adopted herein is hereby modified in the following respects:

- A. The provisions of Chapter 29 relating to plumbing systems shall, where applicable, be subordinated in favor of the ordinances of the County of Allegheny relating to plumbing systems; where a conflict appears in the ordinances of the County of Allegheny and Chapter 29 of the code, the County provisions shall prevail.
- B. Any reference to signs, their size, height, etc., where stated in the code shall be subordinated to the provisions of the Zoning Ordinance of the Borough of Baldwin insofar as relates to signs.¹¹
- C. Chapter 13 of the code relating to energy conservation shall be subordinated in favor of the ordinances of the County of Allegheny relating to energy and energy conservation, and where a conflict appears in the ordinances of the County of Allegheny and Chapter 13 of the code, the County provisions shall prevail.
- D. Section 104.1 is hereby amended by deleting the same in its entirety and substituting therefor the following: "The Code Enforcement Officer of the Borough of Baldwin is hereby designated and appointed as the Code Official."
- E. Section 112.0 relating to fees is deleted in its entirety and substituted therefor is the following: "The Borough shall from time to time by resolution designate fees for new construction, alteration, removal, demolition or other building operations, and no permits shall be issued until the fees prescribed by such resolutions shall have been paid to the Borough. The Borough Council shall, from time to time, designate the amount of the fees; the current resolution in effect in the Borough of Baldwin relating to fees shall continue in full force and effect until amended, modified or changed by the Borough Council."
- F. Section 116.4 is deleted and § 74-10 hereafter substituted in lieu thereof.
- G. Section 121.0 et seq. of the code is deleted in its entirety and substituted therefor shall be the following: "Any person shall have the right to appeal by requesting the Code Enforcement Officer and/or the Zoning Officer to seek an interpretation of the ordinance from the Building Officials and Code Administrators International, Inc.; in the event that such a decision is adverse to the applicant, or not forthcoming, the applicant may then request that an arbitrator be appointed to determine the issue and to render a decision. The arbitrator shall be an architect selected by the Borough and the applicant. All costs of the arbitrator shall be paid for by the applicant."
- H. Chapter 4, Section 421.0 et seq., relating to swimming pools, shall be construed in conjunction with the provisions set out in the code and in relation to other ordinances of the Borough of Baldwin relating to swimming pools, and the most stringent of the codes shall apply; provided, however, that in the event that any question arises as to which code is the more stringent, then the provisions of the Borough of Baldwin ordinances relating to swimming pools shall prevail.
- I. Section 1810.3.1 of the code is deleted in its entirety and substituted therefor is the following: "Plain concrete as it relates to concrete footings shall be followed except that the following minimums shall be observed: a) Footer sizes are to be a minimum of eight inches in depth and a minimum of 20 inches in width; b) Footers must be as the same are referred to in Section 1806.1 hereof and shall have the further limitation that the footers must be below frost line, which is a minimum of 36 inches; c)

11. Editor's Note: See Ch. 168, Zoning, and specifically § 168-29, Signs.

Further, Section 1806.1 shall be limited to the extent that concrete shall not be poured under 20° F."

- J. Section 1904.3.1 and Section 1810.3.1 are hereby amended by adding the additional requirement that footers must be inspected before any concrete shall be poured.
- K. Section 1816.1 shall be amended by adding to the six requirements set out therein the following:
 - "7. When pilings must be used, the pilings must have a minimum sixteen-inch diameter.
 - 8. Pilings must have a minimum of four one-half-inch rods protruding into the footer at least three feet.
 - 9. Pilings must be set on solid ground.
 - 10. Pilings must not be more than 10 feet apart.
 - 11. Grade beams must be a minimum of 18 inches deep and 20 inches wide and must have eight-and-one-half-inch rods, four of them three inches from the top, and four of them three inches from the bottom of the footer."
- L. Chapter 19, Section 1905, shall be amended by adding thereto: "Four inches or greater of concrete floor shall be used in garage areas."
- M. Chapter 18, Section 1809, shall be amended by adding to the same the following: "Beams and girders must be laid on solid masonry or tempered brick or filled cores if hollow unit masonry is used."
- N. Chapter 18, Section 1813.0, shall be amended by adding thereto the following: "French drains containing four-inch perforated pipe and gravel around the perimeter (outside house) of the building where required shall be used in addition to crushed stone."
- O. Chapter 23, Section 2305, shall be amended by adding the following: "Bridging will be used in all construction, two inch by eight inch or greater." Chapter 15, Section 1502.1, shall be amended by adding to the definition of roof structure the following: "and shall contain not less than one-half-inch-by-four-feet-by-eight-feet plywood or greater with clips."
- P. Chapter 23, Section 2305.1, shall be amended by adding thereto the following: "All framing shall be two inches by four inches by 16 inches on center. The first floor in two-story dwellings shall have a double top plate, inside corners solid, and shall contain no drywall clips."
- Q. Chapter 23, Section 2305.1, shall be amended by adding thereto the following: "Such design and construction shall require double two-inch-by-four-inch studs in bearing wall, if plates are cut both sides for heat duct chase, or return-air bay."
- R. Chapter 12, Section 1210.1, shall be amended by adding to the same the following: "Notwithstanding the foregoing, 50% of the required ventilating area must be through ridge vents or gable venting; 25% of the required ventilating area must be through eave or cornice vents on front, and 25% must be on the rear of the building."
- S. Chapter 1, Section 113, is hereby amended by adding to Section 113.5 the following: "All requests for inspection shall require at least a forty-eight-hour notice."

ARTICLE II
Housing Standards

§ 74-6. Purpose; adoption of standards; modification.

Further, in the interest of promoting and protecting the public health, safety and welfare of the residents of the Borough of Baldwin, and for the purpose of regulating the fabrication, erection, construction, enlargement, alteration and repair of detached one- and two-family dwellings situate within the Borough, the Borough of Baldwin does by this chapter ordain and adopt the One- and Two-Family Dwelling Code of the Building Officials and Code Administrators International, Inc., known and designated as "CABO (1995 Edition)," modifying the same, however, and amending it in the following respects:

- A. All sections of said code which relate to the code official or other officer shall be construed so as to mean the Code Enforcement Officer of the Borough of Baldwin; all provisions of the same relating to appeals and all other administrative sections of the CABO shall be construed in keeping with the provisions of §§ 74-2, 74-3 and 74-4 of this chapter, and all succeeding sections shall be applicable thereto likewise.
- B. The table set out in Section R-301.2a, which appears as a part of Section R-301.2a, Design Criteria, is hereby amended to reflect the following:
 - (1) Roof snow load: 20 pounds per square foot.
 - (2) Wind velocity: 70 miles per hour.
 - (3) Seismic condition: Zone O.
 - (4) Weathering: severe.
 - (5) Frost line depth: 36 inches.
 - (6) Subject to damages from termites: moderate to heavy.
 - (7) Subject to damage from decay: slight to moderate.

ARTICLE III General Provisions

§ 74-7. Construal of provisions.

Whenever a conflict shall occur between the provisions of this chapter and the codes adopted hereunder and the provisions of any other ordinance of the Borough of Baldwin, particularly the Zoning Ordinance and the Subdivision Ordinance of the Borough of Baldwin,¹² then such conflict shall be resolved by interpreting the ordinances so that the strictest interpretation of the conflicting ordinance shall be the one that prevails, and the administration or enforcement of the matter shall proceed under the provisions of the ordinance containing the strictest standard or interpretation.

§ 74-8. Administration and enforcement.

The Code Enforcement Officer and Zoning Officer of the Borough of Baldwin appointed under the provisions of the Zoning Ordinance¹³ of the Borough of Baldwin or any inspector appointed by the Borough Council of the Borough of Baldwin under the provisions of this chapter shall be authorized to and is hereby directed to be the official responsible for the administration and enforcement of this chapter; he shall be charged with the responsibility of reviewing applications, plans, specifications and all other data submitted pursuant to the provisions of this chapter, and he shall inspect the construction, alteration, demolition or removal of all structures to ascertain that the same is conducted pursuant to the provisions of this chapter. He shall issue permits as the same are required, after first having obtained all necessary approvals, and he shall condemn all unsafe structures and shall order the same to be razed or repaired and made safe and secure as the interest of the public safety may require; provided further, however, that in the event that a property owner or other person having substantial property interest in the premises may feel aggrieved by such order, such property owner or aggrieved person may request a hearing before the Borough Council by requesting, in writing, addressed to the Borough Secretary, that a hearing be held to determine the propriety of the order issued by the Zoning Officer or inspector appointed for these purposes. Such request for a hearing shall be submitted and filed with the Borough Secretary within 30 days of the date of the order from which the property owner or aggrieved person seeks redress. A hearing shall then be held by the Borough Council to determine the propriety of the order, and following the hearing, the Council shall, within 45 days of such date, render a decision in the matter. A signed copy of the written decision shall be forwarded to the property owner or aggrieved person within five days of the date of such decision. The Code Enforcement Officer shall have authority after exhibiting proper identification and in the discharge of his official duties to enter any building, structure or premises at any reasonable hour to enforce all laws relating to matters covered under the provisions of this chapter, and he shall be authorized to issue such citations or file such complaints before a District Magistrate as may be required for the enforcement of this chapter.

§ 74-9. Certificate of occupancy.

No occupancy, use or change of use shall take place in a building, home or structure situate within the Borough of Baldwin until a certificate of occupancy for the same shall have been issued by the Zoning Officer of the Borough of Baldwin pursuant to the provisions of this chapter and of the Zoning Ordinance of the Borough of Baldwin.¹⁴

12. Editor's Note: See Ch. 168, Zoning, and Ch. 142, Subdivision and Land Development, respectively.

13. Editor's Note: See Ch. 168, Zoning.

14. Editor's Note: See Ch. 168, Zoning.

§ 74-10. Violations and penalties.

Any person who shall violate any of the provisions of the codes or of any ordinance incorporated herein and adopted hereby, or any person who shall erect, construct, alter, repair, demolish or remove any building, structure or edifice covered hereunder, or permit, suffer or cause the erection, alteration, repair, demolition or removal of any building or structure or portion thereof covered hereunder, in violation of this chapter or of any ordinance incorporated herein, shall be guilty of a violation of this chapter and shall, upon conviction thereof by a District Magistrate, be punishable by a fine of not less than \$300 nor more than \$500 together with costs of prosecution and, in default of payment of such fine or costs, shall be imprisoned for not more than 10 days. The owner of any building, structure, home or edifice or portion of the same or of the premises wherein a violation of the codes shall exist or shall cause a violation of the same, or any owner, tenant, contractor, agent or employee who may commit a violation of this chapter or assist in the commission of such a violation shall each be guilty of a separate offense and, upon conviction thereof, shall be punishable by a fine not less than \$300 nor more than \$500 and costs of prosecution or, in default of payment of such fine and costs, shall be imprisoned for not more than 10 days; and provided, further, that each day that a violation of any of the provisions of this chapter continues shall be considered a separate offense. The term "person" as used herein shall mean any individual, member of a partnership or the officer of any corporation, which officer authorizes or participates in any action or omission to act which constitutes a violation of this chapter.

§ 74-11. Repealer; exception.

All prior ordinances of the Borough of Baldwin regulating or related to matters addressed in the code adopted hereby or of any provisions of any ordinance which conflict with the code or this chapter are hereby repealed; provided, however, that those provisions contained in prior amendments to Ordinance No. 422¹⁵ (adopted the 25th day of September, 1990) and in particular to Section 5 of said ordinance, which relate to compliance with the Pennsylvania Workers' Compensation Act, Act of June 2, 1915, P.L. 736, as amended,¹⁶ such Act having since been amended and codified at the Act of June 24, 1996, P.L. 57, and which are set out in Ordinance No. 663 of 1993,¹⁷ adopted the 20th day of September, 1993, shall continue in full force and effect, and are incorporated herein by reference thereto the same as fully set forth herein.

§ 74-12. Effect on violations of prior regulations.

Nothing in this chapter or in the codes hereby adopted shall be construed to affect any suit or proceeding now pending in any court, or any rights acquired or liability incurred hereunder, nor any cause or causes of action accrued or existing under any act or ordinance repealed herein.

15. Editor's Note: See Ch. 89, Fire Prevention.

16. Editor's Note: See 77 P.S. § 1 et seq.

17. Editor's Note: Said ordinance was superseded by Ord. No. 672, which was in turn superseded by this chapter.

ARTICLE IV
Minimum Construction Standards
[Added 5-21-2001 by Ord. No. 755]

§ 74-13. Adoption of standards.

From and after the effective date hereof, the minimum construction standards, Appendix A,¹⁸ shall be the standards utilized for future development and construction.

18. Editor's Note: Appendix A is on file in the Borough offices.

Chapter 77**BUILDINGS AND STRUCTURES, DANGEROUS**

§ 77-1.	Examination and report by Building Inspector.	§ 77-3.	Violations and penalties.
§ 77-2.	Notice to owner.	§ 77-4.	Repair or removal by Borough.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 3-16-1959 by Ord. No. 175. Amendments noted where applicable.]

GENERAL REFERENCES

Building construction — See Ch. 74.

§ 77-1. Examination and report by Building Inspector.

Whenever it shall be reported to the Building Inspector that any structure completed or in the process of construction or any portion thereof is in a dangerous condition, the Building Inspector shall immediately cause an investigation and examination to be made of such structure. If such investigation or examination indicates that such structure is dangerous in any respect, the Building Inspector shall report in writing to the Mayor and to the Council, specifying the exact condition of such structure, setting forth in such report whether and in what respect he considers such structure to be dangerous and, if so, whether such structure is, in his opinion, capable of being properly repaired or whether it should be removed as a dangerous structure.

§ 77-2. Notice to owner.

- A. If any structure is reported by the Building Inspector, as provided in the first section of this chapter, to be in a dangerous condition, the Mayor shall forthwith cause written notice to be served upon the owner of the structure. Such notice shall require the owner of such structure to commence the repair and removal of such building within 10 days of such notice and to complete such repair or removal within 30 days thereof; provided, however, that in any case where the notice prescribed the repair of any structure, the owner thereof shall have the option to remove such structure instead of making the repairs thereto within the said time limit.
- B. The notice required by the second section of this chapter shall be served personally upon the owner of a structure, if such owner resides in the Borough, or upon the agent of such owner, if such agent has a residence or place of business within the Borough. If neither the owner nor the agent thereof can be served within the Borough as hereby provided, such notice shall be sent to the owner of such structure by registered mail, at the last known address thereof, and a copy of said notice shall be posted on a prominent part of the structure.

§ 77-3. Violations and penalties. [Amended 3-19-1984 by Ord. No. 543; 12-19-1985 by Ord. No. 566]

Any owner of any dangerous structure to whom a notice to repair or to remove such structure shall be sent under the provisions of this chapter and who fails to complete such repair or removal within the time limit

prescribed by such notice shall be guilty of a violation of this chapter and, upon conviction thereof, be sentenced to pay a fine of not more than \$300 and costs of prosecution or to imprisonment for up to 30 days. Each day that such violation continues shall constitute a separate offense of this chapter.

§ 77-4. Repair or removal by Borough.

If the owner of any dangerous structure to whom a notice to repair or to remove such structure shall be sent under the provisions of this chapter fails to commence or to complete such repair or removal within the time limit prescribed by such notice, the Mayor shall be empowered to cause such work of repair or removal to be commenced and/or completed by the Borough, and the cost and expense thereof, with a penalty of 10%, shall be collected from the owner of such structure in the manner provided by law, provided that the recovery of such cost and expense, together with the penalty, may be in addition to the penalty imposed as provided in § 77-3 of this chapter.

BUILDINGS, NUMBERING OF

Chapter 80

BUILDINGS, NUMBERING OF

§ 80-1.	Conspicuous and prominent display of numbers required.	§ 80-2.	Violations and penalties.
		§ 80-3.	Enforcement.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 2-17-1986 by Ord. No. 569. Amendments noted where applicable.]

GENERAL REFERENCES

Building construction — See Ch. 74.

Zoning — See Ch. 168.

Property maintenance — See Ch. 131.

§ 80-1. Conspicuous and prominent display of numbers required.

From and after the effective date of this chapter, all property owners, tenants or occupiers of residential, commercial or industrial properties in the Borough of Baldwin, including apartment complexes, shall display the street number or address of such residential, commercial or industrial property in a conspicuous and prominent place which shall be visible from the street directly in front of said property and which numbers shall be easily readable by passersby on said street.

§ 80-2. Violations and penalties.

Any property owner, tenant or occupier of any residential, commercial or industrial property or building within the Borough of Baldwin or any person, firm or corporation who is owner of said property and who shall violate any of the provisions of this chapter shall, upon conviction thereof, be sentenced to pay a fine of not more than \$100 and the cost of prosecution or, upon failure to pay such fine, to imprisonment for up to five days for each offense. Each day that such offense shall continue shall constitute a separate violation of this chapter.

§ 80-3. Enforcement.

The Zoning Officer of the Borough of Baldwin and the Department of Police shall have concurrent jurisdiction in enforcing the provisions of this chapter, and the Zoning Officer of the Borough of Baldwin or any police officer of the Borough of Baldwin shall have sufficient authority to prosecute such offenses in the name of the Borough and to file complaints for violations of the same before the District Magistrate of the Borough of Baldwin.

Chapter 80A**BULK STORAGE CONTAINERS**

§ 80A-1.	Definitions.	§ 80A-3.	Registration and permit required.
§ 80A-2.	Use and location of bulk containers.	§ 80A-4.	Condition of bulk containers.
		§ 80A-5.	Violations and penalties.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 10-21-2014 by Ord. No. 857. Amendments noted where applicable.]

§ 80A-1. Definitions.

As used in this chapter the following words and terms shall have the meaning indicated:

BOROUGH — The Borough of Baldwin.

BULK CONTAINERS — A portable container designed to assist with moving and/or storage of household or commercial goods and materials, including, but not limited to, portable on-demand storage devices ("PODS") and similar containers, designed for the collection of large amounts of garbage and/or refuse, including, but not limited to, dumpsters and bagsters, or designed for the collection of yard waste and debris. Containers, including dumpsters, used by commercial and multi-family properties for regular storage of refuse and garbage in connection with normal business activities shall not be considered bulk containers under this article.

PERSON — Any individual, partnership, cooperative association, private corporation, personal representative, receiver, trustee, assignor, or any other legal entity.

§ 80A-2. Use and location of bulk containers.

- A. Bulk containers shall be used only in connection with maintenance, construction and/or moving/relocation activities taking place on the property upon which the bulk container is placed. It shall be unlawful and a violation of this chapter for any person.
- (1) To cause or permit a bulk container to be placed on public property, including, but not limited to, roads or streets within the Borough;
 - (2) To cause or permit a bulk container to be placed in the Borough right-of-way;
 - (3) To cause or permit a bulk container to be placed in such a location as to block visibility or access to a public street;
 - (4) To cause or permit a bulk container to be placed in such a location as to block access to a public sidewalk; or
 - (5) To cause or permit a bulk container to be placed less than six feet from a curb of a street.
- B. The Zoning Officer may grant exceptions to the above for properties that are physically unable to comply with the regulations.

§ 80A-2

BULK STORAGE CONTAINERS

- C. Bulk containers shall not have any electrical wiring, lighting or heating elements.
- D. No advertising shall be permitted on a bulk container except for the identity of the manufacturer of the bulk container.

§ 80A-3. Registration and permit required.

- A. No bulk container shall be used within the Borough without a permit. Any person seeking to use a bulk container shall apply for a permit from the Borough using a form to be hereafter prescribed, identifying the purpose, placement and proposed location of the bulk container. The permit shall be valid for 45 days. There shall be no application fee to obtain a bulk container permit. Upon written request to the Zoning Officer, the permit may be extended for an additional 30 days. No bulk container shall be permitted on a property in excess of 150 days within any twelve-month period. However, upon written request, and with approval of Borough Council, the 150 days may be exceeded in the event of an emergency and/or necessary situation.
- B. An application for use of a bulk container within the Borough shall be reviewed by the Zoning Officer or his designee for approval. The Zoning Officer shall have the right to deny an application if it is deemed that the placement of the bulk container is contrary to the health, safety and public welfare of the Borough. A denial of the application by the Zoning Officer may be appealed by the applicant to the Borough Manager.
- C. The continued validity of any bulk container permit issued under this chapter shall be contingent upon full compliance with the regulations and requirements set forth in this chapter and any other applicable rules adopted by the Borough.

§ 80A-4. Condition of bulk containers.

- A. Any person utilizing a bulk container shall be responsible to insure that the area in and around the bulk container remains free of all litter and debris.
- B. Any person utilizing a bulk container shall insure that the bulk container remains in a neat and clean condition and is secure and safe at all times.
- C. The location and utilization of the bulk container shall be in compliance with all federal, state and local laws, rules and regulations applicable thereto.

§ 80A-5. Violations and penalties.

Any Person who violates this chapter shall be subject to a fine not to exceed \$600 per occurrence. Each day that a violation of this chapter continues shall constitute a separate offense.

Chapter 81**BURNING, OPEN**

§ 81-1.	Applicability.	§ 81-4.	Authority of the Fire Marshal
§ 81-2.	Restrictions on permitted open		and/or Code Enforcement
	burning.		Officer.
§ 81-3.	Burning of refuse prohibited.	§ 81-5.	Violations and penalties.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 2-16-2010 by Ord. No. 826. Amendments noted where applicable.]

GENERAL REFERENCES

Brush, grass and weeds — See Ch. 70.

Fire prevention — See Ch. 89.

Uniform construction codes — See Ch. 83.

Solid waste — See Ch. 136.

§ 81-1. Applicability.

This chapter applies to all outdoor burning and open burning within the Borough of Baldwin except for the following:

- A. It shall not apply to grilling or cooking food using charcoal, wood, propane or natural gas in cooking or grilling appliances in an appropriate container or fireplace.
- B. It shall not apply to burning for the purpose of generating heat in a stove, furnace, fireplace or other heating device within a building used for human or animal habitation.
- C. It shall not apply to the use of propane, acetylene, natural gas, gasoline or kerosene in a device intended for heating, construction or maintenance activities.

§ 81-2. Restrictions on permitted open burning.

Open burning of wood, trees, logs, brush and/or stumps shall only be permitted in compliance with the following:

- A. Only clean, dry wood products may be burned.
- B. Burning shall only be permitted in an approved outdoor rated fireplace, fire pit, chimney or fifty-five-gallon drum.
- C. No wood, treated wood or wood product that produces any noxious or unpleasant odor when it is burned.
- D. All burning and fires must be no less than 15 feet distant from the nearest property line.
- E. All outdoor burning shall be attended at all times by an individual not younger than 18 years of age and shall be extinguished in the absence of a qualified individual attending the fire.

§ 81-2

BURNING, OPEN

- F. Adequate means of fire extinguishment must be immediately available at all times when outdoor burning is taking place.
- G. Burning at construction sites having a valid building permit for the purpose of providing warmth shall only be permitted if the weather is at or below 32° F., and said burning shall only take place in a fifty-five-gallon drum suitable for containing such fire.
- H. Persons utilizing or maintaining an outdoor fire shall be responsible for all fire-suppression costs and any other liability resulting from damage caused by the fire.
- I. All allowed open burning shall be conducted in a safe, nuisance-free manner, when wind and weather conditions minimize adverse effects and do not create a health hazard or a visibility hazard for persons at home, on roadways, railroads or airfields. The person engaging in open burning shall take all reasonable precaution to stop any smoke and/or fumes from encroaching in or upon the inhabited structure of another. Open burning shall be conducted in conformance with all local and state fire protection regulations and the 2006 International Fire Code.
- J. No materials may be burned upon any street, curb, gutter, sidewalk or on the ice of a lake, pond, stream, body of water or on any public property.
- K. No person shall be permitted to create or permit an open fire on property unless he/she has the legal right to possession of that property.
- L. The Fire Marshal or other authorized officer, agent, employee or representative of the Borough of Baldwin who presents credentials may inspect any property for the purpose of ascertaining compliance with the provisions of this chapter.

§ 81-3. Burning of refuse prohibited.

The open burning of refuse is prohibited. Refuse shall include any waste material, including building supplies, garbage, grass and leaves. It shall not include dead trees, logs, brush, stumps, and other vegetative matter.

§ 81-4. Authority of the Fire Marshal and/or Code Enforcement Officer.

The Fire Marshal and/or Code Enforcement Officer shall have the power to prohibit open burning if such burning is contrary to the provisions of this chapter or the 2006 International Fire Code.

§ 81-5. Violations and penalties.

Any person or entity found to be in violation of this chapter shall be subject to a civil fine in the amount of \$600 for each violation, after issuance of a citation and conviction before the Magisterial District Judge.

Chapter 82**CATS**

§ 82-1.	Purpose; intent.	§ 82-7.	Prohibited acts.
§ 82-2.	Restricted acts.	§ 82-8.	Violations and penalties.
§ 82-3.	Limit on number of cats.	§ 82-9.	Interference prohibited.
§ 82-4.	Definitions.	§ 82-10.	Repealer; severability.
§ 82-5.	Licensing and vaccination requirements; exemptions.	§ 82-11.	Safety clause.
§ 82-6.	Issuance of license; fees; registration tag.	§ 82-12.	Effective date.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 2-20-1995 by Ord. No. 687. Amendments noted where applicable.]

GENERAL REFERENCES

Dogs — See Ch. 85.

§ 82-1. Purpose; intent.

- A. The Council of the Borough of Baldwin is desirous of protecting the health, safety, welfare and property of others from annoyance and damage caused by cats and to establish the responsibility and liability of cat owners arising out of the conduct of their pets.
- B. The Council of the Borough of Baldwin is desirous of providing reasonable regulations for the control, care and maintenance of cats in the Borough of Baldwin. It is recognized by the Mayor and Council that cats are generally excellent pets, but they can become a nuisance if not properly controlled.
- C. This legislation is not intended to impair, restrict or otherwise interfere with the relationship that exists between owners and their pets; however, it is necessary that these owners exercise responsibility in the care and control of their animals so that other residents in the Borough of Baldwin are not offended or unreasonably inconvenienced.

§ 82-2. Restricted acts.

It shall be unlawful for any owner of or any person having custody of any cat(s) to have any cat that becomes a nuisance. Acts of nuisance shall include, but are not limited to, the following:

- A. Noise disturbance.
- B. Viciousness.
- C. Digging into flower beds, lawns, sandboxes or gardens or the damaging of shrubbery, trees, lawns or personal property not belonging to the owner or the depositing of feces.

- D. Entering and running at large in public parks or playgrounds.
- E. Not having current rabies vaccinations and a current Borough license.

§ 82-3. Limit on number of cats.

No more than four cats shall be kept or maintained or be in custody for more than 90 days in any residential housing unit or its grounds. Nothing contained herein, however, shall be applicable to those persons who have kept or maintained in custody in any residential housing unit or its grounds more than four cats prior to the adoption of this chapter.

§ 82-4. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

ABANDONED CAT — A cat of any age which shall be left unattended, unclaimed, unlicensed or at large for a period of 72 hours or more.

CAT — Any animal of a feline species.

CONTROL OFFICER — The person authorized by the Borough of Baldwin from time to time, by resolution, to enforce the provisions of this chapter. The Control Officer shall have all the powers of a Constable or other peace officer in the execution of the provisions of this chapter, including the service of a summons, the service and execution of any other order of process, notwithstanding any provision of the Uniform Justice Court Act.

OWNER — Every person having a property right in a cat and every person keeping, having custody or feeding a cat for more than 48 hours, or who allows a cat to reside or remain about his premises, shall be considered a "cat owner." This provision shall not include a person who keeps or feeds a cat on behalf of an owner at the owner's request to accommodate the owner's temporary needs.

PERSON — An individual, firm, partnership, corporation or association of persons.

PUBLIC NUISANCE — A cat that causes damage to public or private property or causes harm to any person.

STRAY CAT — A cat having no known owner or custodian.

§ 82-5. Licensing and vaccination requirements; exemptions.

- A. License requirements. No person shall own, keep, harbor or maintain any cat over seven months of age within the Borough of Baldwin unless such cat is licensed. The provisions of this section do not apply to cats held by any government facility, a veterinary establishment or a licensed animal shelter, pound, kennel or pet shop. No cat may be licensed without proof of vaccination as detailed below.
- B. Vaccination. All cats shall be vaccinated against rabies by a licensed veterinarian in accordance with the recommendations for immunization published by the National Association of State Public Health Veterinarians, except as provided in Subsection C.
- C. Exemptions. Any cat may be exempted from vaccination requirements for a specified period by the Control Officer upon presentation of a veterinarian's certificate stating that because of an infirmity or other physical condition, the inoculation of such cat is not medically appropriate.

§ 82-6. Issuance of license; fees; registration tag. [Amended 2-28-2006 by Ord. No. 802]

All cat licenses shall be issued by the office of the Borough Secretary or such other person as may be designated by the Mayor and Council of the Borough of Baldwin. All licenses shall be issued with a registration number, and a record of such issuance shall be maintained. A license may only be issued after a completed application is received along with all required fees. The license fee shall be \$5. The registration tag shall be attached to a collar to be worn and maintained by the individual cat for whom the license was issued whenever such cat shall be outdoors. License fees required by this section shall be due on or before the last day of January in each year. No license shall be granted for a period exceeding one year, and no license shall be transferable. Persons applying for a license or renewal after February 1 in each year shall pay the full license fee.

§ 82-7. Prohibited acts.

- A. No cat shall be sheltered, maintained or harbored that is not domesticated. The area where cats are kept shall be clean and sanitary and shall not create a disturbance by reason of noise, odor or other causes. No person shall abandon any cat or permit a cat in his custody to become a stray.
- B. No cat shall cause damage to any person or property. Any person who owns, maintains or harbors any cat that causes such damage shall be strictly liable for the damage and may be prosecuted for a violation of this chapter.
- C. No person shall harbor, maintain or feed any unlicensed or stray cat. Any person who shall do so following receipt of a notice from the Control Officer advising said person that a violation of this chapter is occurring may be prosecuted if he continues such activity.

§ 82-8. Violations and penalties.

Any person who violates a provision of this chapter shall be liable to a penalty of not more than \$500 for each offense and up to 90 days in jail, or both.

§ 82-9. Interference prohibited.

No person shall interfere with, hinder or molest any agent of the Control Officer or any police officer of the Borough of Baldwin in the performance of any duty as herein provided.

§ 82-10. Repealer; severability.

- A. All other ordinances of the Borough of Baldwin which are in conflict with this chapter are hereby repealed to the extent of such conflict.
- B. If any part of this chapter shall be held invalid, such part shall be deemed severable, and the invalidity thereof shall not affect the remaining parts of this chapter.

§ 82-11. Safety clause.

The Borough of Baldwin hereby finds, determines and declares that this chapter is necessary for the immediate preservation of the public health, safety and welfare of the Borough of Baldwin and the inhabitants thereof.

§ 82-12. Effective date.

This chapter shall be effective on the first day of March 1995 and shall continue in full force and effect until amended or repealed by the Council of the Borough of Baldwin. For the remaining portion of year 1995 only, the license fee shall be \$1, and in subsequent years, § 82-6 shall apply.

Chapter 82A**CHICKENS**

§ 82A-1.	Purpose.	§ 82A-5.	Violations and penalties.
§ 82A-2.	Definitions.	§ 82A-6.	Severability.
§ 82A-3.	Use regulations.	§ 82A-7.	Effective date.
§ 82A-4.	Running at large prohibited; sanitary requirements; slaughtering; feed and water.		

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 9-17-2019 by Ord. No. 897.¹⁹ Amendments noted where applicable.]

§ 82A-1. Purpose.

The purpose of this chapter is to provide of the keeping of chickens in residential areas by Baldwin Borough residents while ensuring that said practice does not result in a proliferation of nuisances to surrounding properties.

§ 82A-2. Definitions.

As used in this chapter, the following words and terms shall have the meaning indicated:

BOROUGH — The Borough of Baldwin.

CHICKEN — A member of the subspecies *Gallus gallus domesticus*, a domesticated fowl.

CHICKEN RUN — An enclosed area where chickens are allowed to walk and run about.

COOP — A small building for housing poultry.

HEN — A female chicken.

ROOSTER — A male domestic chicken.

§ 82A-3. Use regulations.

The keeping of chicken hens shall be allowed by right in residentially zoned areas of the Borough (R-1, R-2), provided that the following conditions are met:

- A. The building lot has been developed as a single-family residence.
- B. No more than four chicken hens shall be kept per one-family dwelling.
- C. A minimum lot size either owned, leased or rented of 1/2 acre shall be required.
- D. No person shall keep a rooster.
- E. All chicken hens shall be housed in a roofed coop that is stationary, secure, and enclosed in a way

19. Editor's Note: This ordinance was adopted as Ch. 86, but was renumbered to maintain the organization of the Code.

that contains the chickens.

- F. The coop shall not be within 30 feet of any main building on an adjacent lot.
- G. The minimum coop size shall be three square feet per chicken. The maximum overall coop size shall not exceed 30 square feet.
- H. A chicken run is permitted when attached to the coop.
- I. If a chicken run is provided, it shall be no bigger than 10 square feet per chicken and shall be enclosed in a way that contains the chickens.
- J. The chicken run shall not be within 30 feet of any main building on an adjacent lot.
- K. All coops and runs are subject to setbacks for accessory structures.
- L. All coops and runs shall be screened from the view at ground level from adjacent lots by using fencing, landscaping, or a combination thereof.
- M. A zoning permit shall be required for keeping chicken hens, coops, and chicken runs.

§ 82A-4. Running at large prohibited; sanitary requirements; slaughtering; feed and water.

The following shall apply to all residentially zoned properties that are keeping chickens as set forth in § 82A-3:

- A. It shall be unlawful for the owner or owners of any chickens to allow the same to run at large upon any of the common thoroughfares, sidewalks, passageways, play areas, parks, streets, alleys, or public highways, or any place where people congregate or walk, or upon any public or private property, without an approved coop and run in Baldwin Borough. Any chicken not contained within an approved coop or run shall be deemed at large.
- B. Any owner or owners of chickens shall be required to house the same at all times under sanitary conditions so that the keeping of chickens shall not become either a public or private nuisance. The following provisions apply:
 - (1) Chicken feces on private property shall not be allowed to accumulate to the degree that it becomes a public health nuisance or hazard. All chicken feces shall be properly stored and disposed of, so as not to be objectionable due to odor, pests or otherwise, at the site's property line. The owner or owners of chickens shall show that adequate provisions are being implemented to collect, store and dispose of the feces and other litter associated with the keeping of chickens. The containers used in the process shall be kept covered and shall be cleaned on a regular basis to avoid the potential for detectable odors. In cases where chicken feces does accumulate on private property, the code enforcement officer may conduct an investigation, after which the accumulation may be declared a public health hazard or nuisance and the owner shall be ordered to remove and dispose of the accumulated feces in an approved manner. The order to remove such accumulated feces shall be given personally to the owner or shall be sent by registered mail, and the owner shall be given a period of 48 hours from the date and time of receipt of the order to clean the property and remove the accumulated feces.
 - (2) Coops and runs shall be kept in good repair and must be capable of being maintained in a clean and sanitary condition, free of vermin and obnoxious odors.
- C. It shall be prohibited to slaughter and/or purposefully kill any chicken, for any purpose. Excluded

from this prohibition is the killing of a chicken for medical reasons by a licensed veterinarian and/or the off-site slaughtering by a professional.

- D. All feed, water, and other items associated with the keeping of chickens shall be protected in a way that prevents infestation by rats, mice, or other rodents or vectors. Failure to keep all feed, water and other items associated with the keeping of chickens in a clean and sanitary condition constitutes a violation of this chapter.

§ 82A-5. Violations and penalties.

Any person who violates this chapter shall be subject to a fine not to exceed \$500 per occurrence, and in default of payment thereof, to undergo imprisonment not exceeding 30 days. Each day that a violation of this chapter continues shall constitute a separate offense.

§ 82A-6. Severability.

If a section, provision or part of this chapter shall be judged to be invalid or unconstitutional, such adjudication shall not affect the validity of the chapter as a whole or any sections, provisions or parts thereof not adjudged invalid or unconstitutional.

§ 82A-7. Effective date.

This chapter shall be in full force and effect from the date of its adoption by the Baldwin Borough Council and upon publication provided by law.

Chapter 83**CONSTRUCTION CODES, UNIFORM**

§ 83-1.	Election to administer and enforce.	§ 83-4.	Board of Appeals.
§ 83-2.	Adoption of Code.	§ 83-5.	Effect on existing ordinances.
§ 83-3.	Means of administration and enforcement.	§ 83-6.	Fees.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 5-17-2004 by Ord. No. 784. Amendments noted where applicable.]

GENERAL REFERENCES

Building construction and housing standards — See Ch. 74.

Subdivision and land development — See Ch. 142.

Fire prevention — See Ch. 89.

Zoning — See Ch. 168.

Property maintenance — See Ch. 131.

§ 83-1. Election to administer and enforce.

The Borough of Baldwin hereby elects to administer and enforce the provisions of the Pennsylvania Construction Code Act, Act 45 of 1999, as amended, from time to time, and its regulations.²⁰

§ 83-2. Adoption of Code.

The Uniform Construction Code contained in 34 Pa. Code, Chapters 401-405, as amended from time to time, is hereby adopted and incorporated herein by reference as the municipal building code of the Borough of Baldwin.

§ 83-3. Means of administration and enforcement.

Administration and enforcement of the Code within the Borough of Baldwin shall be undertaken in any of the following ways, as determined by Council of the Borough of Baldwin from time to time by resolution:

- A. By the designation of an employee of the Borough of Baldwin to serve as the Borough Code Official to act on behalf of the Borough of Baldwin.
- B. By the retention of one or more construction code officials or third-party agencies to act on behalf of the Borough of Baldwin.
- C. By agreement with one or more other municipalities for the joint administration and enforcement of this Act through an intermunicipal agreement.
- D. By entering into a contract with another municipality for the administration and enforcement of this

20. Editor's Note: See 35 P.S. §§ 7210.101 to 7210.1103.

Act on behalf of the Borough of Baldwin.

- E. By entering into an agreement with the Pennsylvania Department of Labor and Industry for plan review, inspections and enforcement of structures other than one-family or two-family dwelling units and utility and miscellaneous use structures.

§ 83-4. Board of Appeals.

A Board of Appeals shall be established by resolution of the governing body of the Borough of Baldwin in conformity with the requirements of the relevant provisions of the code, as amended from time to time, and for the purposes set forth therein. If at any time enforcement and administration is undertaken jointly with one or more other municipalities, the Board of Appeals shall be established by joint action of the participating municipalities.

§ 83-5. Effect on existing ordinances.

- A. All building code ordinances or portions of ordinances which were adopted by the Borough of Baldwin on or before July 1, 1999, and which equal or exceed the requirements of the code shall continue in full force and effect until such time as such provisions fail to equal or exceed the minimum requirements of the code, as amended from time to time.
- B. All building code ordinances or portions of ordinances which are in effect as of the effective date of this chapter and whose requirements are less than the minimum requirements of the code are hereby amended to conform with the comparable provisions of the code.
- C. All relevant ordinances, regulations and policies of the Borough of Baldwin not governed by the code shall remain in full force and effect.

§ 83-6. Fees.

Fees assessable by the Borough of Baldwin for the administration and enforcement undertaken pursuant to this chapter and the code shall be established by Council by resolution from time to time.

Chapter 84**DISORDERLY HOUSES**

§ 84-1.	Definitions.	§ 84-3.	Declaration of public nuisance.
§ 84-2.	Prohibition against maintenance of disorderly house.	§ 84-4.	Notification.
		§ 84-5.	Violations and penalties.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 3-20-2000 by Ord. No. 740. Amendments noted where applicable.]

GENERAL REFERENCES

Massage parlors — See Ch. 116.

Property maintenance — See Ch. 131.

§ 84-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

DISORDERLY HOUSE — Any house, room or premises where frequent requests for police/ambulance service for noise, assaults, batteries, drinking of intoxicating beverages, illegal drug usage and/or sale, loitering, gaming, fornication or other misbehavior can be documented.

FREQUENT REQUESTS FOR POLICE/AMBULANCE SERVICE — More than three responses to the same address in the preceding sixty-day period.

§ 84-2. Prohibition against maintenance of disorderly house.

It shall be unlawful for any property owner, lessee or tenant to maintain, keep, lease or allow a disorderly house, room or other premises in the Borough of Baldwin.

§ 84-3. Declaration of public nuisance.

Any such disorderly house, room or other premises that shall be disruptive to the peace and well-being of the surrounding and greater community is declared to be a public nuisance.

§ 84-4. Notification.

After the third incident as defined above, the Chief of Police shall, within five days, notify the property resident or owner, in writing, by either certified mail, posting or personal service, of the Borough's intent to initiate charges with the District Justice; and further, to allow said property resident and/or owner an additional five-day period, commencing on the date of service, to notify the Police Chief, in writing, of said property resident/owner's desire to meet with the Police Chief in an attempt to rectify the conditions to be cited. Upon timely receipt of such notification, the Police Chief shall meet with the property resident/owner within five days thereafter and attempt to reach an accommodation. Should the parties not be able to reach an accommodation, the Police Chief will proceed forthwith to initiate charges before the District Justice.

§ 84-5. Violations and penalties.

- A. Any person and/or legal entity, including, but not limited to, the keeper, all parties connected with the maintenance of the disorderly house, and all parties patronizing or frequenting same, found guilty under the provisions of this chapter shall be fined not more than \$300 for each offense and be imprisoned for not more than 30 days.
- B. Upon a conviction under the terms of this chapter, the Borough may revoke the occupancy permit of any house or premises found to be a disorderly house.

Chapter 85**DOGS**

§ 85-1.	Prohibited acts; number of pets limited; disposal of litter.	§ 85-6.	Impounding and disposition of dogs at large.
§ 85-2.	Application for license; fee.	§ 85-7.	Dog kennels.
§ 85-3.	Veterinarian's certificate required.	§ 85-8.	Replacement of lost or stolen tags.
§ 85-4.	Issuance of license and tag.	§ 85-9.	Violations and penalties.
§ 85-5.	Enforcement officer.	§ 85-10.	Definitions.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 10-21-1968 by Ord. No. 369. Amendments noted where applicable.]

GENERAL REFERENCES

Cats — See Ch. 82.

§ 85-1. Prohibited acts; number of pets limited; disposal of litter.

- A. It shall be unlawful for the owner, custodian or keeper of any dog to permit such dog to run at large at any time on any property, either public or private, within the Borough of Baldwin, excluding, however, the private property of the owner, custodian or keeper of such dog.
- B. It shall be unlawful for the owner, custodian or keeper of any pet or other domestic animal to allow said animal to run at large at any time in any public park located within the Borough of Baldwin, or for such owner, custodian or keeper of any pet or domestic animal to enter any public park located within the Borough of Baldwin with a pet or other domestic animal. The use of a leash or other form of restraint shall not excuse any owner from the prohibition contained herein. **[Added 5-21-1979 by Ord. No. 498]**
- C. Any household pet which scratches, digs or defecates upon any lawn, tree shrub, plant, building or any other public or private property, other than the property of the owner or person in charge or control of such animal, is hereby declared to be a nuisance. **[Added 11-17-1997 by Ord. No. 716.]**
- D. Any household pet which, by frequent and habitual barking, howling, screeching, yelping or baying or in any way or manner injures or disturbs the quiet of any person or the community or which disturbs or endangers the comfort, repose or health of persons, is hereby declared to be committing a nuisance. It shall be unlawful to harbor or permit it to commit such a nuisance. **[Added 11-17-1997 by Ord. No. 716.]**
- E. No person being the owner or in charge or control of any household pet shall allow or permit such animal to commit a nuisance on any school grounds or other public property or upon any private property other than that of the owner or person in charge or control of such household pet without the permission of the owner of said property. Where the owner or person in charge or control of such animal immediately removes all feces deposited by such animal and disposes of same in a sanitary

manner, such nuisance shall be considered abated. **[Added 11-17-1997 by Ord. No. 716.]**

- F. No more than four household pets over the age of six months may be kept on any premises in the Borough. **[Added 11-17-1997 by Ord. No. 716.]**
- G. The keeper of every such household pet shall cause the litter and droppings therefrom to be collected daily in a container or receptacle of such type that, when closed, it shall be ratproof and fly-tight, and after every such collection shall cause such container or receptacle to be kept closed. At least twice a week, every such keeper shall cause all litter and droppings so collected to be disposed of in such a manner as not to permit the presence of fly larvae. **[Added 11-17-1997 by Ord. No. 716.]**

§ 85-2. Application for license; fee. [Amended 2-28-2006 by Ord. No. 801]

Between the first day of January 1969 and the 28th day of February 1969 and between January 1 and February 28 of each and every year thereafter, the owner, custodian or keeper of any dog more than six months old shall make application to the Borough of Baldwin for a license for such dog. The application shall state the breed, sex, age and general colors and markings of the dog for which a license is desired and the name and address of the owner thereof. Each application shall be accompanied by a fee of \$5.

§ 85-3. Veterinarian's certificate required.

An application for a dog license shall be accompanied by a certificate of a duly authorized veterinarian indicating that the particular dog was inoculated against rabies within the three years next preceding the date of application.

§ 85-4. Issuance of license and tag.

Upon receipt of a duly completed application and a veterinarian's certificate, the Borough of Baldwin shall issue such applicant a dog license and an official tag. It shall thereafter be the duty of the applicant to affix the tag upon a collar or harness attached to the dog, and no dog at any time shall be permitted within the limits of the Borough of Baldwin unless it shall wear the tag attached to its collar or harness.

§ 85-5. Enforcement officer.

The Borough Council of the Borough of Baldwin may appoint a person, firm or corporation who shall be designated as the enforcement officer for the terms and provisions of this chapter. The Borough Council shall, by motion, provide for the compensation of such enforcement officer. Such enforcement officer shall establish rules and regulations, subject to prior approval by the Borough Council, for the care, supervision and disposition of any dogs which may come within the jurisdiction and control of such enforcement officer. Each and every police officer of the Borough of Baldwin shall have the power and the duty to enforce the provisions of this chapter.

§ 85-6. Impounding and disposition of dogs at large.

Any dog, either licensed or unlicensed, which may be found running at large upon any public or private property in the Borough of Baldwin (except the property of the owner, custodian or keeper of such dog), shall be taken into custody by any police officer of the Borough of Baldwin or by the enforcement officer. The rules and regulations promulgated by the enforcement officer and approved by the Borough Council of the Borough of Baldwin shall be applicable to the disposition of any such dog taken into custody.

§ 85-7. Dog kennels. [Amended 3-19-1973 by Ord. No. 435]

Any person, firm or corporation which may operate a dog kennel within the limits of the Borough of Baldwin, as permitted under the zoning ordinances of the Borough of Baldwin, shall secure a kennel license. The enforcement officer provided for in this chapter shall periodically inspect such kennels to determine the safety, sanitary and health conditions of such kennel. No dog shall be permitted to remain at any kennel unless a certificate of a duly authorized veterinarian is produced indicating that such dog has been inoculated against rabies within the past three years. The enforcement officer may, upon approval of the Borough Council of the Borough of Baldwin, establish rules and regulations for the operation of a kennel within the Borough of Baldwin in such places as are permitted by the Zoning Ordinance of the Borough of Baldwin. The fee for the issuance of a kennel license shall be \$10.

§ 85-8. Replacement of lost or stolen tags.

The Borough of Baldwin shall provide for the issuance of duplicate dog license tags in the event that the original tag has been lost or stolen. Prior to the issuance of such duplicate license, the owner of the dog shall file with the Borough an affidavit indicating the reason for the reissuance of a duplicate tag.

§ 85-9. Violations and penalties. [Amended 5-21-1979 by Ord. No. 498; 12-19-1985 by Ord. No. 566; 11-17-1997 by Ord. No. 716]

Any person, firm or corporation who or which shall violate any provisions of this chapter, upon conviction thereof before the District Magistrate, shall be sentenced to pay a fine not to exceed the sum of \$1,000 plus costs of prosecution and, for the failure to pay the same, be imprisoned for a term not to exceed 30 days, or both.

§ 85-10. Definitions. [Added 11-17-1997 by Ord. No. 716]

- A. As used in this chapter, the following words and terms shall have the meanings hereby respectively ascribed thereto, except where the context clearly indicates a different meaning:

DOMESTIC ANIMAL — Any animal as hereinafter defined as a household pet, a large animal or a small animal.

HOUSEHOLD PET — Any dog, cat or other domestic animal normally and ordinarily kept in or permitted to be at large in the dwelling of its owner.

LARGE ANIMAL — Any domestic animal of the bovine, equine, sheep or hog family.

PERSON — Any person, firm, partnership, association or corporation.

SMALL ANIMAL — Any domestic animal such as a rabbit, hare, guinea pig, rat, mouse or chinchilla and any domestic fowl such as a chick, turkey, goose, duck or pigeon.

WILD ANIMAL — Any animal, bird, fowl or reptile not normally or ordinarily domesticated, not normally or ordinarily raised in this area and climate as livestock or for work or breeding purposes, or not normally or ordinarily kept as a household pet.

- B. In this chapter, the singular shall include the plural, the plural shall include the singular, and the masculine shall include the feminine.

BALDWIN CODE

Chapter 87

EROSION AND SEDIMENT CONTROL

**ARTICLE I
General Provisions**

- | | |
|---------|--------------------------------------|
| § 87-1. | Purpose. |
| § 87-2. | Title. |
| § 87-3. | Applicability. |
| § 87-4. | Authority. |
| § 87-5. | Scope; control plan required. |
| § 87-6. | Definitions. |

**ARTICLE II
Plan Regulations**

- | | |
|---------|-----------------------|
| § 87-7. | Plan contents. |
|---------|-----------------------|

**ARTICLE III
Administrative Procedures**

- | | |
|----------|---|
| § 87-8. | Specific intent. |
| § 87-9. | Administration. |
| § 87-10. | Fees. |
| § 87-11. | Enforcement. |
| § 87-12. | Violations. |
| § 87-13. | Complaints regarding violations. |
| § 87-14. | Enforcement notice. |
| § 87-15. | Violations and penalties. |
| § 87-16. | Enforcement remedies. |

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 7-19-1993 by Ord. No. 661. Amendments noted where applicable.]

GENERAL REFERENCES

Flood damage prevention — See Ch. 92.

Mining — See Ch. 119.

Grading, excavations and fill — See Ch. 99.

Subdivision and land development — See Ch. 142.

ARTICLE I
General Provisions

§ 87-1. Purpose.

- A. The purpose of this chapter is to control accelerated erosion and the resulting sediment pollution to waters of this commonwealth that occur on earthmoving sites within the Borough of Baldwin.
- B. These regulations are adopted and implemented to achieve the following general objectives:
 - (1) To specify the type and size of an earthmoving activity which is or has been inadequately regulated in the past.
 - (2) To present and/or control earthmoving activities within environmentally sensitive areas including wetlands and waterways of the commonwealth.
 - (3) To restrict and/or control earthmoving activities in areas with naturally occurring steep slopes and/or highly erodible soils.
 - (4) To regulate the earthmoving activities resulting from land development.

§ 87-2. Title.

This chapter shall be known and may be cited as the "Erosion and Sediment Pollution Control Ordinance."

§ 87-3. Applicability.

The provisions of this chapter shall apply to all subdivision and land developments and proposed grading within the Borough of Baldwin unless otherwise modified herein.

§ 87-4. Authority.

This chapter is adopted in accordance with the authority granted to municipalities to regulate the earthmoving activities which accompany land development by the Pennsylvania Municipalities Planning Code, Act 247 of 1968, as amended (53 P.S. § 10101 et seq.).

§ 87-5. Scope; control plan required.

- A. It shall be unlawful for any person, landowner, business or corporation to undertake any earthmoving activities in excess of 1,000 square feet without developing, implementing and maintaining erosion and sediment pollution control measures and facilities that effectively minimize accelerated erosion and prevent sediment pollution to waters of this commonwealth. These controls shall be contained in an erosion and sedimentation control plan that meets the requirements of the Department of Environmental Resources²¹ Chapter 102 Erosion Control regulations. A copy of the erosion and sedimentation control plan must be available at the earthmoving site at all times.
- B. Prior to the approval of any grading plan permit by the Borough of Baldwin, an erosion and sedimentation control plan must be submitted to and approved by the Allegheny County Conservation District. This requirement will be waived upon receipt of a copy of a Department of Environmental Resources earth disturbance permit for sites involving more than 25 acres of earthmoving.

21. Editor's Note: Now the state Department of Environmental Protection.

§ 87-6. Definitions.

The following terms and words are used in the Rules and Regulations of the Commonwealth of Pennsylvania, Title 25, Chapter 102, and shall have the following meanings for the purpose of the administering and enforcing of this chapter:

ACT — The Pennsylvania Municipalities Planning Code (Act of July 31, 1968, Act No. 247, as amended).²²

APPLICANT — A landowner or developer, as defined by this chapter, who has filed an application for development, including his/her heirs, successors and assigns.

CHANNEL — A natural stream that conveys water; ditch or open channel excavated for the flow of water.

CONSERVATION DISTRICT (ACCD) — The Allegheny County Conservation District.

DESIGN STORM — The magnitude of precipitation from a storm event measured in probability of occurrence (e.g., twenty-five-year storm) and duration (e.g., 24 hours) and used in computing stormwater management control systems and erosion and sedimentation control facilities.

DEVELOPMENT — Any activity, construction, alteration, change in land use or similar action that affects stormwater runoff characteristics.

DISCHARGE — Rate of flow, specifically fluid flow; a volume of fluid flowing from a conduit or channel or being released from detention storage, per unit of time; commonly expressed as cubic feet per second (cfs), million gallons per day (mgd), gallons per minute (gpm); see also "rate of runoff."

DRAINAGE — Interception and removal of excess surface water or groundwater from land by artificial or natural means.

DRAINAGE AREA — The contributing land area to a single drainage basin, expressed in acres, square miles or other units of area; also called a "catchment area," "watershed" or "river basin;" the land area served by a drainage system or by a watercourse receiving stormwater and surface water, also called "subarea."

DRAINAGE BASIN — The land area from which water is carried off by a drainage system, also called a "watershed" or "catchment."

DRAINAGE EASEMENT — A right granted by a landowner to a grantee allowing the use of private land for stormwater management purposes.

EROSION — The natural process by which the surface of the land is worn away by the action of water, wind or chemical action.

FLOODPLAIN — A normally dry land area adjacent to stream channels that is susceptible to being inundated by overbank stream flows. For regulatory purposes, the Pennsylvania Floodplain Management Act (Act of October 4, 1978, P.L. 851, No. 166)²³ and regulations pursuant to the Act define the "floodplain" as the area inundated by a one-hundred-year flood and delineated on a map by FEMA (Federal Emergency Management Agency) or by the applicant in accordance with Borough ordinance requirements.

HYDRAULICS — The branch of science concerned with the mechanics of fluids, especially liquids; as applied in erosion and sedimentation control, the study of the characteristics of water flow in and conveyance capacity of a watercourse, considering such factors as depth, velocity and turbulence.

HYDROLOGY — The science dealing with the waters of the earth and their distribution and circulation

22. Editor's Note: See 53 P.S. § 10101 et seq.

23. Editor's Note: See 32 P.S. § 679.101 et seq.

through the atmosphere. "Engineering hydrology" deals with the application of hydrologic concepts to the design of projects for use and control of water.

INSPECTOR — The Borough Engineer or a representative of the Borough as appointed by the Borough or the Borough Engineer.

INTERMITTENT FLOW — Flow that starts and stops again at different intervals.

LAND DEVELOPMENT SITE — A lot, parcel or tract of land on which development is taking place or is proposed.

LAND DISTURBANCE — Any activity involving grading, tilling, digging or filling or stripping of vegetation or another activity which causes land to be exposed to the danger of erosion or changed water flow characteristics.

OUTFALL — Points or areas at which stormwater runoff leaves streams, storm sewers, swales or other well-defined natural or artificial drainage features, as well as areas of dispersed overland flows within the site and/or leaving the site.

PA DER — Pennsylvania Department of Environmental Resources.²⁴

PEAK RATE OF RUNOFF OR DISCHARGE — The maximum rate of flow of water at a given point and time resulting from a predetermined storm.

PERFORMANCE STANDARD — A standard which establishes an end result or outcome which is to be achieved but does not prescribe specific means for achieving it. A specification standard, in contrast, is one which prescribes the exact characteristic to be used, leaving little choice to the applicant,

POINT OF INTEREST — A point of hydraulic concern such as a bridge, culvert or channel section, for which the rate of runoff is computed or measured.

PREAPPLICANT CONFERENCE — A meeting with the Borough prior to a formal application submittal.

RATE OF RUNOFF — Instantaneous measurement of water flow expressed in a unit of volume per unit of time, also referred to as "discharge;" usually stated in cubic feet per second (cfs) or gallons per minute (gpm).

RUNOFF CHARACTERISTICS — The surface components of any watershed which affect the rate, amount and direction of stormwater runoff. These may include, but are not being limited to, vegetation, soils, slopes and man-made landscape alterations.

SCS — Soil Conservation Service, United States Department of Agriculture.²⁵

SEDIMENT — Solid material, both mineral and organic, that is in suspension, is being transported or has been removed from its site of origin by air, water, gravity or ice and has come to rest on the earth's surface.

SEDIMENTATION — The process by which sediment is deposited on stream bottoms.

STORM SEWER — A pipe, culvert or underground open channel that carries intercepted surface runoff, street water and other wash waters or drainage, but excludes domestic sewage and industrial wastes.

STORMWATER COLLECTION/CONVEYANCE SYSTEM — Natural or engineered structures which collect and transport stormwater through or from a drainage area to the point of final outlet, including but not limited to any of the following: conduits and appurtenant features, canals, channels, ditches, streams,

24. Editor's Note: The PA DER was split into two and reorganized by Act 1995-18. Now the Department of Environmental Protection, 71 P.S. § 510-1 or Department of Conservation and Natural Resources, 71 P.S. § 1340.301 et seq. For purposes of erosion and sediment control, the PA DEP.

25. Editor's Note: Now the Natural Resources Conservation Service.

culverts, streets and pumping stations.

STORMWATER MANAGEMENT PLAN — The plan for managing stormwater runoff from a specific development site.

STORMWATER RUNOFF — Waters resulting from snowmelt or precipitation within a drainage basin, flowing over the surface of the ground, collected in channels and conduits and carried by receiving streams.

STREAM — A watercourse.

SUBAREA — A portion of the watershed that has similar hydrological characteristics and drains to a common point; also called a "drainage area."

SWALE — A low-lying stretch of land which gathers or carries surface water runoff.

WATERCOURSE or WATERWAY — Any channel of conveyance of surface water having a defined bed and banks, whether natural or artificial, with perennial or intermittent flow.

WATERSHED — The entire region or area drained by a river or other body of water, whether natural or artificial.

WATERS OF THIS COMMONWEALTH — Rivers, streams, creeks, rivulets, impoundments, ditches, watercourses, storm sewers, lakes, dammed water, wetlands, ponds, springs and other bodies or channels of conveyance of surface water, or parts thereof, whether natural or artificial, within or on the boundaries of this commonwealth. (Source: The Clean Streams Law.²⁶)

26. Editor's Note: See 35 P.S. § 691.1 et seq.

ARTICLE II
Plan Regulations

§ 87-7. Plan contents.

- A. Erosion and sedimentation control plans shall be developed in accordance with the Department of Environmental Resources Chapter 102 regulations. A complete explanation of the regulations and recommendations for preparing plans is available in DER's publication, Erosion and Sediment Pollution Control Program Manual. This manual is available through the offices of the Allegheny County Conservation District.
- B. The erosion and sedimentation plan details shall be in conformance with the standards set forth in DER's publication, Erosion and Sediment Pollution Control Program Manual. In addition, if required, a national pollutant discharge elimination system (NPDES) permit must be obtained prior to construction.

ARTICLE III
Administrative Procedures

§ 87-8. Specific intent.

It is the purpose of these regulations to prescribe the procedures by which the administration of this chapter shall take place. Nothing contained within this article shall be interpreted as limiting the adoption of administrative regulations which do not supersede required stated procedures.

§ 87-9. Administration.

- A. Applications for approval of an erosion and sedimentation control plan under the requirements of this chapter shall be made by completing all required spaces on the standard application and tracking form (Attachment A²⁷) and forwarding the form to the Allegheny County Conservation District at the address shown. No grading permits will be issued by the Borough of Baldwin unless and until an approved erosion and sedimentation control plan is received.
- B. The Borough Building Inspector shall serve as Zoning Officer and shall have the duty of administering the provisions of this chapter. The Zoning Officer shall have all the powers and duties conferred on him/her by this chapter and the Pennsylvania Municipalities Planning Code.²⁸

§ 87-10. Fees.

Fees for the review of the erosion and sedimentation control plan that will be charged by the Allegheny County Conservation District will be set by the Allegheny County Conservation District and set by resolution for the Borough of Baldwin. The applicant will be responsible for all fees associated with the approval of the plan, such fees to include but not limited to inspection, engineering, legal and administrative. Said fees are posted with the municipality. The application and tracking form found in Attachment A must be filled out and a copy must be submitted to both the Allegheny County Conservation District and the Borough. The applicant must determine the amount of the fee that will apply to his/her application. Anyone requiring an explanation of district charges for plan reviews should contact the district for such information.

§ 87-11. Enforcement.

- A. The Borough and the Allegheny County Conservation District are hereby authorized and directed to conduct both routine and emergency site inspections of ongoing earthmoving operations within the municipal boundaries of the Borough of Baldwin to establish compliance with the approved erosion and sedimentation control plan.
- B. The Borough and/or the Allegheny County Conservation District are hereby authorized to enforce a cease-of-work directive if the contractor and/or owner has failed to adhere with the approved erosion and sedimentation control plan. The Borough shall notify the Allegheny County Conservation District of a cease-of-work directive within 48 hours.

§ 87-12. Violations.

- A. All violations of the approved erosion and sedimentation control plan determined during a site

27. Editor's Note: Attachment A appears at the end of this chapter.

28. Editor's Note: See 53 P.S. § 10101 et seq.

inspection shall be listed on an inspection report which itemizes the following items for each violation:

- (1) Specific type of violation, including location and scope.
 - (2) Provides a period of time during which the person(s) responsible for the earthmoving activity may correct the violations without the assessment of any penalties.
- B. The completed inspection report shall be signed by the inspector and person responsible for the earthmoving activity (or a designated representative) and a copy provided to the latter party and the Allegheny County Conservation District.

§ 87-13. Complaints regarding violations.

Whenever a violation of this chapter occurs or is alleged to have occurred, any person must file a written complaint stating fully the causes and basis of the complaint with the Zoning Officer. The Zoning Officer shall record the complaint immediately and investigate it promptly and take any necessary action as provided by this chapter. The Zoning Officer shall notify the complainant of the results of his/her investigation and any action taken.

§ 87-14. Enforcement notice.

The enforcement notice shall contain the following information:

- A. The name of the owner of record and any other person against whom the Borough intends to take action.
- B. The location of the property in violation.
- C. The specific violation with a description of the requirements which have not been met, citing in each instance the applicable provisions of this chapter.
- D. The date before which the steps for compliance must be commenced and the date before which the steps must be completed.
- E. That the recipient of the notice has the right to appeal to the Borough of Baldwin.

§ 87-15. Violations and penalties.

- A. Should the person(s) responsible for undertaking the earthmoving operations fail to meet the deadline for correcting violations of this chapter as specified in the official inspection report, the Borough of Baldwin will issue a formal notice of violation to said person(s). The notice will list, for each violation that has occurred, a penalty of not less than \$500 and not more than \$1,000 for each day of each violation. Such fines, penalties and associated costs as are listed in the notice will be collected as like fines or penalties are now by law collected and, in default thereof, the violator shall be imprisoned in the county jail for not more than 60 days.
- B. The contractor shall be responsible for any or all penalties and associated costs incurred by the Department of Environmental Resources, the Allegheny County Conservation District and the Borough.

§ 87-16. Enforcement remedies.

In case any building, structure or land is or is proposed to be erected, constructed, reconstructed, altered, converted, maintained or used in violation of this chapter, the governing body or, with the approval of the governing body, an officer of the Borough and the Allegheny County Conservation District's representative, in addition to other remedies, may institute in the name of the Borough any appropriate action or proceeding to prevent, restrain, correct or abate such building, structure or land or to prevent, in or about such premises, any act, conduct, business or use constituting a violation.

BALDWIN CODE

Chapter 88

FEEs

	ARTICLE I	§ 88-3.	Attorneys fees approved.
	Delinquent Claims	§ 88-4.	Procedure.
§ 88-1.	Title.	§ 88-5.	Servicing Charges, Expenses and Fees Approved.
§ 88-2.	Expenses approved.	§ 88-6.	Effective date and retroactivity.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin as indicated in article histories. Amendments noted where applicable.]

GENERAL REFERENCES

Taxation — See Ch. 146.

ARTICLE I
Delinquent Claims
[HISTORY: Adopted 12-18-2012 by Ord. No. 848]

§ 88-1. Title.

This article shall be known as the "Tax, Tax Claim, Tax Lien, Municipal Claim and Municipal Lien Attorney Fees and Servicing Charges, Expenses and Fees Ordinance."

§ 88-2. Expenses approved.

- A. Title search.
- B. In any enforcement proceeding, the actual cost of a title search in an amount not to exceed \$250 shall constitute a reasonable expense for each title search necessary for the initiation of each proceeding and compliance with Pa.R.C.P. 3129. The sum not to exceed \$50 shall constitute a reasonable expense for each bringdown or update of the title search in connection with entry of judgment, issuance of execution, listing for sale, or other action.
- C. Actual out-of-pocket expenses in connection with any enforcement action, such as for postage, non-sheriff's service of process, investigation of the whereabouts of interested parties and other necessary expenses shall constitute reimbursable expenses as part of each delinquent claim recovered.

§ 88-3. Attorneys fees approved.

- A. Flat fee matters. The following schedule of attorneys fees is hereby adopted and approved as reasonable attorneys fees pursuant to Act 1 and Act 20 for all matters described, which fees shall be awarded to the municipality, its agents, counsel or assigns in each action initiated pursuant to the Act for the collection of unpaid delinquent claims. The property owner's obligation to pay the full amount of the flat fee for each phase of each action shall accrue upon the initiation of any aspect of each phase. The full amount of each flat fee for each prior phase of the proceeding shall carry over and be due on a cumulative basis together with the flat fee for each subsequent phase.
 - (1) Filing of municipal claim. The sum of \$150 shall constitute reasonable Attorney fees for the preparation and filing of a municipal claim as defined under the Act.
 - (2) Preparation and service of writ of scire facias or complaint in assumpsit as provided in the Act. The sum of \$450 shall constitute reasonable Attorney fees for the initiation of each proceeding and shall include preparation and filing of the praecipe for writ of scire facias or complaint in civil action, sheriff's direction for service, notice pursuant to Pa.R.C.P. 237.1 and the preparation and filing of the praecipe to settle and discontinue the proceeding. The above does not include:
 - (a) Federal tax liens, judgments and mortgages. Where there are federal tax liens, federal judgments, federal mortgages or other record federal interests, the sum of \$200 shall constitute reasonable Attorney fees for all matters necessary to properly notify and serve the United States with all required additional notice and the presentation of related motions to the court.
 - (b) Alternative service of legal pleadings. In the event that a special order of court is necessary to serve original process or any other pleading, notice, court order or other document, the following amounts shall constitute reasonable attorney fees as follows:

- [1] Investigation of defendant(s) whereabouts and preparation of affidavit of diligent search - \$100.
- [2] Preparation and presentation of motion for alternative service, and delivery of the order of the Court, along with appropriate directions to the Sheriff for service - \$200.
- (3) Amicable scire facias or consent judgment. The sum of \$400 shall constitute reasonable attorney fees for the preparation, filing, monitoring and conclusion of an amicable scire facias or consent judgment, including negotiation, preparation and filing of the pleading, acceptance of service, installment payment and/or forbearance agreement and satisfaction. See 53 P.S. § 7185. Municipality may, in its sole and absolute discretion, hold the amicable scire facias or consent judgment and file only in the event of a default in the terms and conditions of the amicable scire facias or consent judgment or any related installment or forbearance agreement. If a consent judgment is entered following the filing of writ of scire facias or complaint in assumpsit, then the flat fee for entry of the consent judgment shall be the same as that amount provided for in Subsection D, Entry of judgment, below.
- (4) Entry of Judgment. The sum of \$225 shall constitute reasonable attorneys fees in connection with entry of judgment which shall include preparation and filing of the praecipe to enter judgment notices of judgment, affidavit of non-military status, and the praecipe to satisfy judgment.
- (5) Writ of execution - sheriff's sale of property or execution upon assumpsit judgment. The sum of \$700 shall constitute reasonable attorneys fees for preparation of all documents necessary for each execution upon any judgment pursuant to the Act. This sum shall include the preparation and filing of the praecipe for writ of execution, all sheriff's documents, preparation and service of notices of sheriff's sale, staying the writ of execution, and attendance at one sheriff's sale.
 - (a) Postponements. The sum of \$100 shall constitute reasonable attorney fees for each continuance of sheriff's sale at the request of the defendant.
- (6) Sale pursuant to § 31 of the Act, 53 P.S. § 7281. The sum of \$700 shall constitute reasonable Attorneys fees for the sale of property pursuant to § 31 of the Act, 53 P.S. § 7281, including preparation and service of necessary documents, court appearances, attendance at sale and preparation of proposed schedule of distribution of the proceeds realized from such sale.
- (7) Sale pursuant to § 31.1 of the Act, 53 P.S. § 7282. The sum of \$500 shall constitute reasonable Attorney fees for a sale of property pursuant to § 31.1 of the Act, 53 P.S. § 7282, including the preparation of necessary documents, service, court appearances, and the preparation of proposed sheriff's schedule of distribution.
- (8) Installment payment agreement. The sum of \$150 shall constitute reasonable attorneys fees for the preparation of each written installment payment agreement.
- (9) Motions. The sum of \$200 shall constitute reasonable attorneys fees for the preparation, filing, and presentation of motions, other than for alternative service, which shall include, but are not limited to, motions to reassess damages, motions to amend caption, motions to continue the sheriff's sale.

B. Hourly rate matters.

- (1) The following schedule of attorneys fees is hereby adopted and approved as reasonable attorneys fees pursuant to Act 1 and Act 20, which fees shall be awarded to the municipality, its

agents, counsel or assigns as compensation in all contested matters, and in all other matters not specifically referenced in § 88-3A above, undertaken in connection with the collection of delinquent claims:

- (a) Senior Attorneys (practicing law for 10 years or more): \$185 per hour.
 - (b) Junior Attorneys (practicing law for less than 10 years): \$160 per hour.
 - (c) Paralegals: \$100 per hour.
 - (d) Law Clerks: \$65 per hour.
- (2) Each as recorded and charged in units of 1/10 of an hour for all time devoted to enforcement and collection of the municipality's delinquent claims. Counsel, whether duly employed or duly appointed by the municipality, its agents or assigns, shall not deviate from this fee schedule absent a subsequent ordinance amending the same. Hourly rate matters include, but are not limited to, any matters where any defense, objection, motion, petition or appearance is entered in any phase of any proceeding by or on behalf of any defendant or other interested party.

§ 88-4. Procedure.

- A. Required notice. The notice required by the Act, as amended, 53 P.S. § 7106, shall be provided in accordance therewith and shall be incorporated into an appropriate delinquency notice or notices sent by the municipality, its agent, counsel or assigns.
- B. Fees to be accrued and delinquent claims to be filed. Fees shall accrue for all efforts in collection after the 30th day after the notice, or after the 10th day of any required second notice under the Act, as amended, 53 P.S. § 7106, on all accounts referred to counsel for enforcement. Fees accumulated as a result of enforced collection shall be certified by duly appointed counsel for the municipality authorized to pursue collection of delinquent claims pursuant to the Act, or by counsel for the municipality's agents or assigns and, if not collected in due course with the debt as by voluntary payment, shall be included in any delinquent claims filed on behalf of the municipality or by its agents or assigns in the course of enforcement including any delinquent claims originally filed with the Department of Court Records, any delinquent claims filed with the sheriff or in any other delinquent claims filed or statements provided where attorney fees are due.
- C. The amount of fees determined as set forth above shall be added to and become part of the delinquent claim or delinquent claims in each proceeding as provided by the Act and as provided herein.

§ 88-5. Servicing Charges, Expenses and Fees Approved.

- A. Pursuant to § 1, § 2 and § 3 of the Act of May 16, 1923, as amended, 53 P.S. § 7101, § 7103 and § 7106, and specifically in the schedule found in accordance with Act 83 of 2004, the municipality does hereby authorize the recovery of charges, expenses and fees set forth in Subsection D, below, that are incurred by the municipality or charged to the municipality by collectors retained by the municipality in connection with efforts to collect delinquent claims as a result of any persons' failure to promptly pay delinquent claims.
- B. The following schedule of charges, expenses and fees (hereinafter referred to as "servicing expenses," "out-of-pocket expenses," and "postage expenses") is hereby approved and adopted by the municipality pursuant to Act 83 of 2004 which amends § 1, § 2, and § 3 of the Act of May 16, 1923, as amended, 53 P.S. §§ 7101, 7103 and 7106, which amounts are the direct result of each person's or

property's failure to pay delinquent claims promptly. The servicing expenses, out-of-pocket expenses and postage expenses established, assessed, and collected hereunder shall be in addition to the record costs, § 88-2, Expenses approved, and § 88-3, Attorneys fees, associated with legal proceedings initiated by or on behalf of the municipality to collect its delinquent claims.

- C. Servicing of a delinquent claim or delinquent claims may result in voluntary payment without the initiation of enforcement proceedings. It is the intent of this section to pass the cost of servicing on to the delinquent person or property as part of each delinquent claim. The recovery of servicing expenses, out-of-pocket expenses and postage expenses established herein shall not be contingent upon the initiation of enforcement proceedings. However, such servicing expenses out-of-pocket expenses and postage expenses are due even where enforcement proceedings are initiated. The purpose of this section is to pass the entire cost and expense associated with delinquent collection on to the delinquent person or property and to make the municipality whole on all delinquent claims collected.
- D. Schedule. The following schedule of servicing expenses, out-of-pocket expenses and postage expenses shall constitute reasonable and appropriate charges, expenses and fees for each indicated category. The servicing expenses, out-of-pocket expenses and postage expenses shall be added to and become part of the municipality's delinquent claims, together with the face, penalties, interest and costs, if any, and title search expense, attorney fees and out-of-pocket expenses in connection with enforcement proceedings, if any, and shall be payable in full before the discharge or satisfaction of any delinquent claim. The below schedule of servicing expenses, out-of-pocket expenses and postage expenses is separate and distinct from any amounts imposed by the Sheriff, Department of Court Records, court or any other public office in connection with the collection of the municipality's delinquent claims.
- (1) Out-of-pocket expenses. The expenses of postage, title searches, investigators, process servers and other necessary expenses incurred in servicing shall constitute reasonable out-of-pocket expenses as part of each delinquent claim recovered.
 - (2) Municipal no-lien letter and tax certification. The sum of \$25 shall constitute a reasonable Servicing Expense for the preparation and issuance of each municipal no-lien letter relating to the municipality's delinquent municipal claims. The sum of \$10 per year certified shall constitute a reasonable servicing expense for the preparation and issuance of each delinquent tax claim certification.
 - (3) Postage expense: out-of-pocket expenses shall include the actual cost of postage related to the collection of the municipality's delinquent claims.
 - (4) Servicing expense:
 - (a) A servicing expense of 10% of gross collections shall constitute a reasonable servicing expense for all servicing related to the collection of the municipality's delinquent claims. Servicing expenses shall accrue on the first of the month for the entire month, or part thereof. There is no per diem servicing expense. Gross collections for the purpose, of calculating servicing expenses shall include the face together with penalty, interest and lien costs, if any, for each delinquent claim collected. Lien costs shall mean charges imposed by the Department of Court Records and/or by the municipality's collector for the filing, satisfaction, revival, amendment and transfer of delinquent claims. Gross collections shall not include any record costs, attorney fees, or out-of-pocket expenses related to the collection of the municipality's delinquent claims.

- (b) In addition, the following schedule of fees shall constitute a reasonable and appropriate fee for each indicated service:
- [1] Assignments: \$5 per delinquent claim;
 - [2] Preparing/filing tax liens: \$5.50 per item;
 - [3] Satisfactions: \$10 per delinquent claim; (for no consideration passing receipts);
 - [4] Tax claim revivals (i.e., S and A): \$20 per delinquent claim;
 - [5] Act 1/Act 20 compliance: \$35 per Case;
 - [6] Preparing/filing municipal claims and claim revivals (S and A): \$25 per delinquent claim;
 - [7] S and As (tax or municipal) prepared but not filed: \$10 per S and A;
 - [8] Municipal claim/short title examination: \$40 per delinquent claim; and
 - [9] Sheriff sale claim certificates: \$60 per case.
- (c) Liability for payment of charges, expenses and fees, including servicing expenses, out-of-pocket expenses and postage expenses, shall be for those delinquent claims identified in § 88-6 below, regardless of whether the delinquent claims are filed as claims in the Allegheny County Department of Court Records Office.

§ 88-6. Effective date and retroactivity.

- A. This article shall take effect on the date of enactment set forth below ("Effective Date") and with respect to attorneys fees pursuant to §§ 88-3 and 88-4 shall apply to all taxes, tax claims, tax liens, municipal claims, municipal liens, writs of scire facias, judgments, or executions filed on or after December 19, 1990, or as otherwise provided by law.
- B. Liability for payment of servicing expenses, out-of-pocket expenses and postage expenses authorized in §§ 88-2 and 88-5, above, shall accrue as follows:
- (1) Immediately upon the effective date for all of the municipality's unpaid delinquent tax claims for calendar years 2011 and prior.
 - (2) January 15 of each year beginning January 15, 2013, for all of the municipality's delinquent tax claims for calendar years 2012 and thereafter if not paid-in-full on or before January 14 of the year after which the taxes first became payable.
 - (3) Immediately upon the effective date for all of the municipality's delinquent municipal claims due in 2012 and prior years originally billed more than 30 days from the effective date.
 - (4) On the 31st day from the initial billing date for all of the municipality's unpaid delinquent claims for calendar years 2012 and thereafter not paid-in-full within 30 days after the date of the initial billing for the delinquent claims.
 - (5) For Delinquent Tax Claims following tax bills resulting from additional assessments:
 - (a) By December 31st of the current year or on the 121st day from the initial billing date, whichever is later, for a current year's additional assessment, billed in the current year;

- (b) On the 121st day from the initial billing date for a prior year's additional assessment, billed in a later year.
- C. In no event shall the municipality's right to charge and collect reasonable Attorney fees pursuant to § 88-3 of this chapter be impaired by the fact that any delinquent claim may also include an attorney commission of 5% for delinquent claims filed prior to December 19, 1990. Any attorney fees assessed and collected under this or any prior ordinances pursuant to Act 1 shall be in addition to any 5% commission previously included in any delinquent claim or judgment thereon.
- D. Attorney fees, servicing expenses and out-of-pocket expenses incurred in pending enforcement proceedings prior to the effective date of this article, pursuant to a prior ordinance adopted under Act 1 or Act 20, but not collected, shall remain due and owing in accordance therewith, and shall be incorporated in any future statement, delinquent claim, pleading, judgment, or execution. Attorneys fees, servicing expenses and out-of-pocket expenses in any pending or new action incurred after the effective date of this article shall be incurred, charged, and collected in accordance with the schedules and procedures set forth in this article.
- E. The charges, expenses and fees set forth in § 88-3 of this chapter to all unpaid delinquent claims in favor of the municipality, its agents and assigns, and shall be retroactive to the date of each delinquent claim.

Chapter 89**FIRE PREVENTION**

§ 89-1.	Bureau of Fire Prevention established.	§ 89-7.	Inspections; removal or remedy of dangerous conditions.
§ 89-2.	Compliance with regulations required; jurisdiction and duties of Bureau.	§ 89-8.	Fire drills.
		§ 89-9.	Keeping of records.
§ 89-3.	Adoption of rules and regulations by Bureau.	§ 89-10.	Annual report.
		§ 89-11.	Fire lanes.
§ 89-4.	Preparation of instructions and forms.	§ 89-12.	Violations and penalties; correction or removal by Borough.
§ 89-5.	Investigation of fires.		
§ 89-6.	Keeping of hazardous substances.		

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 7-17-1972 by Ord. No. 422. Amendments noted where applicable.]

GENERAL REFERENCES

Collection of costs for services — See Ch. 11, Art. I.

Open burning — See Ch. 81.

Alarm systems — See Ch. 62.

Hazardous materials — See Ch. 100.

Building construction — See Ch. 74.

Fire insurance claims — See Ch. 103, Art. I.

Uniform construction code — See Ch. 83.

Property maintenance — See Ch. 131.

§ 89-1. Bureau of Fire Prevention established.

A Bureau of Fire Prevention of the Borough of Baldwin is hereby established, which shall be operated under the supervision of the Mayor of the Borough of Baldwin and of a committee of four, which committee shall be composed of the chiefs of each individual fire company presently existing in the Borough of Baldwin: Beck's Run Independent Fire Company, Baldwin No. 1 Independent Fire Company, Option Independent Fire Company and South Baldwin Independent Fire Company. The members of the committee shall serve without compensation, and no additional compensation shall be payable to the Mayor by reason of his participation in the Bureau.

§ 89-2. Compliance with regulations required; jurisdiction and duties of Bureau.

It shall be unlawful for any person, firm or corporation to violate any of the laws and ordinances of the Borough of Baldwin as set forth herein and hereafter, and it shall be the duty of the Bureau of Fire Prevention to enforce all laws and ordinances of the Borough of Baldwin pertaining to the following:

A. The prevention of fires.

- B. The storage and use of explosives and flammables, and issuance of permits therefor. No commercial building or structure within the Borough of Baldwin may be maintained in such a manner as to permit the accumulation of wastepaper, boxes, shavings, straw, excelsior, packing materials or other easily ignitable, combustible materials which may cause or contribute to fires resulting in smoke and fumes; nor shall any commercial building or structure be maintained so as to permit the obstruction of passageways, halls, stairs, doors, windows, fire escapes or exits from the premises. It shall be unlawful, except as hereinafter provided, to store or keep any fuels, chemicals, explosives and other dangerous liquids or gases which may explode, causing combustion, or liquids or gases which may explode, causing combustion or suffocation of human beings or animals, without obtaining a permit from the Borough of Baldwin as provided in § 89-6 hereinafter.
- C. The installation and maintenance of automatic and other fire alarm systems and fire-extinguishing equipment. Where a building or structure is used commercially or industrially or where such building or structure shall be used as a place of assembly, the same shall be so protected as to provide fire extinguishers, sprinkling systems, fire alarms and fire-detection systems conforming to rules and regulations which shall be adopted by the Bureau of Fire Prevention or the Borough of Baldwin.
- D. Maintenance and regulation of fire escapes. The Bureau of Fire Prevention or the Borough Council shall from time to time hereafter adopt regulations regarding the means and adequacy of exit in case of fire from factories, schools, hotels, lodging houses, asylums, hospitals, nursing homes, churches, halls, theaters, amphitheaters and all other places in which numbers of persons work, live or congregate from time to time for any purpose. It shall be unlawful to build, construct, alter or set up any building or structures in such a manner as to be in violation of the regulations so adopted.
- E. The investigation of the cause, origin and circumstances of fires. The Bureau of Fire Prevention shall have such powers and perform such duties as are set forth in this chapter and as may be conferred and imposed upon it from time to time. The Bureau of Fire Prevention shall investigate or cause to be investigated the cause, origin and circumstances of all fires that occur within the Borough of Baldwin in such a manner as is provided hereinafter.
- F. The adoption of regulations relative to the cause and management of fires and the prevention thereof.

§ 89-3. Adoption of rules and regulations by Bureau.

The Bureau of Fire Prevention shall adopt regulations implementing the enforcement of this chapter and establishing standards regarding fire prevention, storage and use of explosives and flammables and any and all matters falling under the provisions of this chapter. Such regulations shall be submitted to the Borough Council from time to time for adoption by the said Borough Council either by reference to the same or by specific enactment by the Borough Council. Any such regulations so adopted shall not be in conflict with the provisions of this chapter or of any other ordinance of the Borough of Baldwin, and any such regulations so adopted may be expressly repealed by resolution by the Borough Council of the Borough of Baldwin. This chapter and any regulations adopted hereunder shall be filed in the office of the Mayor of the Borough of Baldwin, Beck's Run Independent Fire Company, Baldwin No. 1 Independent Fire Company, Option Independent Fire Company and South Baldwin Independent Fire Company, and copies of the same shall be made available to any interested party at the cost thereof.

§ 89-4. Preparation of instructions and forms.

The Mayor and the Committee of the Bureau of Fire Prevention shall prepare instructions and forms for use in reports required under provisions of this chapter.

§ 89-5. Investigation of fires.

The Bureau of Fire Prevention shall investigate the cause, origin and circumstances of every fire occurring in the Borough of Baldwin by which property has been destroyed or damaged and, so far as possible, shall determine whether the fire is the result of carelessness or design. Such investigations shall begin immediately upon the occurrence of such a fire, and if it appears to be of suspicious origin, the Bureau of Fire Prevention shall notify the proper authorities designated by law to pursue the investigation of such matters and shall further cooperate with the authorities in the collection of evidence and in the prosecution of the case. Every fire shall be reported in writing within two days after the occurrence of the same in the individual fire company records. Such report shall contain a statement of all facts relating to the cause, origin and circumstances of such fire and the extent of the damage thereof. The Chief of each individual fire company shall submit an annual report of all fires that have been attended by such company during the calendar year.

§ 89-6. Keeping of hazardous substances.

A permit for the storing or keeping of any fuels, chemicals, explosives and other dangerous liquids or gases which may explode, causing combustion or suffocation of human beings or animals, as provided in § 89-2B hereof, shall be obtained by applying for the same with the Secretary of the Borough of Baldwin on application forms to be furnished for such purpose. The applications will then be referred to the Bureau of Fire Prevention, and in the event that the application is in order and complies with the requirements of this chapter and the regulations hereunder, such permit shall be granted within 10 days following the submission of the application.

§ 89-7. Inspections; removal or remedy of dangerous conditions.

- A. The Bureau of Fire Prevention shall inspect, as often as may be necessary, all specially hazardous manufacturing processes, storage or installation of acetylene or other gases, chemicals, oils, explosives and flammable materials, all interior fire alarms and automatic sprinkler systems and such other hazards as the Bureau of Fire Prevention shall designate, and shall initiate such action as may be necessary for the enforcement of the laws and ordinances governing the same and for safeguarding of life and property from fire.
- B. It shall be the duty of the Bureau of Fire Prevention to inspect, as often as may be necessary, all buildings, premises and public thoroughfares, except the interiors of private dwellings, for the purpose of ascertaining and causing to be corrected any conditions liable to cause fire or any violations of the provisions or intent of any ordinance of the Borough of Baldwin affecting fire hazards. Whenever it shall find in any building or upon any premises or other place combustible or explosive matter or dangerous accumulations of rubbish or unnecessary accumulation of wastepaper, boxes, shavings or any highly flammable materials especially liable to fire and which is so situated as to endanger property, or shall find obstructions to or on fire escapes, stairs, passageways, doors or windows liable to interfere with the operations of the fire companies or egress of occupants in case of fire, it shall order the same to be removed or remedied, and such order shall forthwith be complied with by the owner or occupant of such premises or buildings; any owner or occupant failing to comply with such order within a reasonable period after the service of the said order shall be liable to a penalty as hereinafter provided in § 89-12. The service of any such order may be made upon the occupant of the premises to whom it is directed, either by delivering a copy of same to such occupant personally or by delivering the same to and leaving it with any adult person in charge of the premises or, in case no such person is found upon the premises, by affixing a copy thereof in a conspicuous place on the door to the entrance of said premises. Whenever it may be necessary to serve such an

order upon the owner of premises, such order may be served whether by delivering to and leaving with the said person a copy of the said order or, if such owner is absent from the jurisdiction, by mailing such copy to the owner's last known post office address.

- C. The Bureau of Fire Prevention, upon the complaint of any person or whenever it shall deem it necessary, shall inspect all buildings and premises within its jurisdiction. Whenever it shall find any building or other structure which for want of repairs, lack of or insufficient fire escapes, automatic or other fire alarm apparatus or fire-extinguishing equipment or by reason of age or dilapidated condition or from any other cause is especially liable to fire and which is so situated as to endanger other property of the occupants thereof, and whenever it shall find in any building combustible or explosive matter or flammable conditions dangerous to the safety of such building or the occupants thereof, it shall order such dangerous conditions or materials to be removed or remedied, and such order shall forthwith be complied with by the owner or occupant of such premises or buildings. Such owner or occupant may, within five days of the date of such order or within such lesser time as may be prescribed in such order by reason of the existence of some immediate danger or hazard, request the Mayor and/or a majority of the Committee of the Bureau of Fire Prevention to review such decision. Such requests shall be reviewed by the Mayor and/or a majority of the members of the Committee of the Bureau of Fire Prevention within not less than one nor more than 10 days thereafter, and a decision shall be filed thereon and, unless the order is revoked or modified, it shall remain in full force and be complied with within the time fixed in said order.
- D. The Bureau of Fire Prevention, its agents, servants or employees may, at all reasonable hours, enter any commercial building or premises within its jurisdiction for the purpose of making any inspection or investigation which, under the provisions of this chapter, the Bureau of Fire Prevention may deem necessary to be made.

§ 89-8. Fire drills.

It shall be the duty of the Bureau of Fire Prevention to require teachers and administrators of public, private and parochial schools and educational institutions to have fire drills as required by the Pennsylvania School Law and to keep all doors and exits unlocked during school hours or other hours of assembly.

§ 89-9. Keeping of records.

The Bureau of Fire Prevention shall keep a record of all fires and of all the facts concerning the same, including statistics as to the extent of such fires and the damage caused thereby.

§ 89-10. Annual report.

An annual report shall be submitted by the Chief of each individual fire company to the Baldwin Borough Council. It shall contain all proceedings under this chapter, with such statistics as the Chief may wish to include therein. The Chief shall also recommend any amendments to this chapter which, in his judgment, shall be desirable.

§ 89-11. Fire lanes.

When a building or structure is used commercially or industrially, or where such building or structure is used as an apartment house, or any combination of buildings or structures comprising four or more units for family or individual residences, or where such building or structure shall be used as a place of assembly, the owners and/or developers and/or their rental agents, officers and employees or any other persons connected with such buildings in some managerial capacity shall provide, mark off and restrict certain parking area

or areas used by vehicles so as to provide the highest possible public safety regarding the passage of fire vehicles, police cars and other vehicles used in fighting or preventing fires or other disaster, and the said owner and/or developers, rental agents, officers and employees or any other persons connected with such buildings in some managerial capacity shall restrict parking in those areas so designated and shall maintain such areas so designated so as to be clear of obstruction to the passage by any fire vehicles or police vehicles or other emergency vehicles.

§ 89-12. Violations and penalties; correction or removal by Borough.

- A. Any person or persons, firm or corporation violating any of the provisions of this chapter or neglecting to comply with any order issued pursuant to any section thereof shall be guilty of a summary offense and, upon conviction before a District Justice of the district in which the offense or offenses occurred, shall pay a fine of not more than \$300 plus costs of prosecution or be imprisoned for not more than 30 days for each offense. **[Amended 12-19-1985 by Ord. No. 566]**
- B. Where any person shall refuse, after an order, to make such correction or removal, the Borough Council shall authorize the Bureau of Fire Prevention or any other person to remove same and charge the costs thereof to the owner or occupant, or both, and such costs may be lienied where allowed by law and shall be collected as are other debts by the Borough Solicitor. The term "any person or persons, firm or corporation," as used herein, shall mean any individual person, responsible partner or partners of a partnership or responsible officers of any corporation.

FLOOD DAMAGE PREVENTION

Chapter 92

FLOOD DAMAGE PREVENTION

ARTICLE I Statutory Authorization		§ 92-20.	Changes in identification of area.
§ 92-1.	Legislative authority.	§ 92-21.	Boundary disputes.
		§ 92-22.	Jurisdictional boundary changes.
ARTICLE II General Provisions		ARTICLE V Technical Provisions	
§ 92-2.	Intent.		
§ 92-3.	Applicability.	§ 92-23.	General.
§ 92-4.	Abrogation and greater restrictions.	§ 92-24.	Elevation and floodproofing requirements.
§ 92-5.	Severability.	§ 92-25.	Design and construction standards.
§ 92-6.	Warning and disclaimer of liability.	§ 92-26.	Development which may endanger human life.
ARTICLE III Administration		§ 92-27.	Special requirements for subdivisions and development.
§ 92-7.	Designation of the Floodplain Administrator.	§ 92-28.	Special requirements for manufactured homes.
§ 92-8.	Permits required.	§ 92-29.	Special requirements for recreational vehicles.
§ 92-9.	Duties and responsibilities of the Floodplain Administrator.		
§ 92-10.	Application procedures and requirements.	ARTICLE VI Prohibited Activities	
§ 92-11.	Review by County Conservation District.	§ 92-30.	General.
§ 92-12.	Review of application by others.	ARTICLE VII Existing Structures in Identified Floodplain Areas	
§ 92-13.	Changes.		
§ 92-14.	Placards.		
§ 92-15.	Start of construction.	§ 92-31.	Existing structures.
§ 92-16.	Enforcement.	§ 92-32.	Improvements.
§ 92-17.	Appeals.		
ARTICLE IV Identification of Floodplain Areas		ARTICLE VIII Variances	
§ 92-18.	Identification.	§ 92-33.	General.
§ 92-19.	Description and special requirements of identified floodplain areas.	§ 92-34.	Variance procedures and conditions.

BALDWIN CODE

ARTICLE IX
Definitions

- § 92-35. General.
§ 92-36. Specific definitions.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 7-15-2014 by Ord. No. 855.²⁹ Amendments noted where applicable.]

GENERAL REFERENCES

- | | |
|---|---|
| Planning Commissions — See Ch. 38. | Erosion and sediment control — See Ch. 87. |
| Building construction and housing standards — See Ch. 74. | Subdivision and land development — See Ch. 142. |
| Uniform construction code — See Ch. 83. | Zoning — See Ch. 168. |

29. Editor's Note: This ordinance superseded former Ch. 92, Flood Damage Prevention, adopted 10-16-1995 by Ord. No. 690.

ARTICLE I
Statutory Authorization

§ 92-1. Legislative authority.

The Legislature of the Commonwealth of Pennsylvania has, by the passage of the Pennsylvania Flood Plain Management Act of 1978, delegated the responsibility to local governmental units to adopt floodplain management regulations to promote public health, safety, and the general welfare of its citizenry. Therefore, the Council of the Borough of Baldwin does hereby order as follows.

ARTICLE II
General Provisions

§ 92-2. Intent.

The intent of this chapter is to:

- A. Promote the general health, welfare, and safety of the community.
- B. Encourage the utilization of appropriate construction practices in order to prevent or minimize flood damage in the future.
- C. Minimize danger to public health by protecting water supply and natural drainage.
- D. Reduce financial burdens imposed on the community, its governmental units, and its residents, by preventing excessive development in areas subject to flooding.
- E. Comply with federal and state floodplain management requirements.

§ 92-3. Applicability.

- A. It shall be unlawful for any person, partnership, business or corporation to undertake, or cause to be undertaken, any construction or development anywhere within the Borough of Baldwin unless a permit has been obtained from the Floodplain Administrator.
- B. A permit shall not be required for minor repairs to existing buildings or structures.

§ 92-4. Abrogation and greater restrictions.

This chapter supersedes any other conflicting provisions which may be in effect in identified floodplain areas. However, any other ordinance provisions shall remain in full force and effect to the extent that those provisions are more restrictive. If there is any conflict between any of the provisions of this chapter, the more restrictive shall apply.

§ 92-5. Severability.

If any section, subsection, paragraph, sentence, clause, or phrase of this chapter shall be declared in valid for any reason whatsoever, such a decision shall not affect the remaining portions of the chapter which shall remain in full force and effect, and for this purpose the provisions of this chapter are hereby declared to be severable.

§ 92-6. Warning and disclaimer of liability.

- A. The degree of flood protection sought by the provisions of this chapter is considered reasonable for regulatory purposes and is based on accepted engineering methods of study. Larger floods may occur or flood heights may be increased by man-made or natural causes, such as ice jams and bridge openings restricted by debris. This chapter does not imply that areas outside any identified floodplain areas, or that land uses permitted within such areas will be free from flooding or flood damages.
- B. This chapter shall not create liability on the part of the Borough of Baldwin or any officer or employee thereof for any flood damages that result from reliance on this chapter or any administrative decision lawfully made thereunder.

ARTICLE III
Administration

§ 92-7. Designation of the Floodplain Administrator.

- A. The Borough Manager is hereby appointed to administer and enforce this chapter and is referred to herein as the Floodplain Administrator. The Floodplain Administrator may: fulfill the duties and responsibilities set forth in these regulations; delegate duties and responsibilities set forth in these regulations to qualified technical personnel, plan examiners, inspectors, and other employees; or enter into a written agreement or written contract with another agency or private sector entity to administer specific provisions of these regulations. Administration of any part of these regulations by another entity shall not relieve the community of its responsibilities pursuant to the participation requirements of the National Flood Insurance Program as set forth in the Code of Federal Regulations at 44 CFR 59.22.
- B. In the absence of a designated Floodplain Administrator, the Floodplain Administrator duties are to be fulfilled by the Mayor.

§ 92-8. Permits required.

A Permit shall be required before any construction or development is undertaken within any area of the Borough of Baldwin.

§ 92-9. Duties and responsibilities of the Floodplain Administrator.

- A. The Floodplain Administrator shall issue a permit only after it has been determined that the proposed work to be undertaken will be in conformance with the requirements of this and all other applicable codes and ordinances.
- B. Prior to the issuance of any permit, the Floodplain Administrator shall review the application for the permit to determine if all other necessary government permits required by state and federal laws have been obtained, such as those required by the Pennsylvania Sewage Facilities Act (Act 1966-537, as amended); the Pennsylvania Dam Safety and Encroachments Act (Act 1978-325, as amended); the Pennsylvania Clean Streams Act (Act 1937-394, as amended); and the U.S. Clean Water Act, Section 404, 33 U.S.C. § 1344. No permit shall be issued until this determination has been made.
- C. In the case of existing structures, prior to the issuance of any development/permit, the Floodplain Administrator shall review the history of repairs to the subject building, so that any repetitive loss concerns can be addressed before the permit is issued.
- D. During the construction period, the Floodplain Administrator or other authorized official shall inspect the premises to determine that the work is progressing in compliance with the information provided on the permit application and with all applicable municipal laws and ordinances. He/she shall make as many inspections during and upon completion of the work as are necessary.
- E. In the discharge of his/her duties, the Floodplain Administrator shall have the authority to enter any building, structure, premises or development in the identified floodplain area, upon presentation of proper credentials, at any reasonable hour to enforce the provisions of this chapter.
- F. In the event the Floodplain Administrator discovers that the work does not comply with the permit application or any applicable laws and ordinances, or that there has been a false statement or misrepresentation by any applicant, the Floodplain Administrator shall revoke the permit and report

such fact to the Council for whatever action it considers necessary.

- G. The Floodplain Administrator shall maintain in perpetuity all records associated with the requirements of this chapter including, but not limited to, finished construction elevation data, permitting, inspection and enforcement.
- H. The Floodplain Administrator is the official responsible for submitting a biennial report to FEMA and the annual report to DCED concerning community participation in the National Flood Insurance Program.
- I. The responsibility, authority and means to implement the commitments of the Floodplain Administrator can be delegated from the person identified. However, the ultimate responsibility lies with the person identified in the floodplain ordinance as the floodplain administrator/manager.
- J. The Floodplain Administrator shall consider the requirements of the 34 Pa. Code and the 2009 IBC and the 2009 IRC or latest revisions thereof.

§ 92-10. Application procedures and requirements.

- A. Application for such a permit shall be made, in writing, to the Floodplain Administrator on forms supplied by the Borough of Baldwin. Such application shall contain the following:
 - (1) Name and address of applicant.
 - (2) Name and address of owner of land on which proposed construction is to occur.
 - (3) Name and address of contractor.
 - (4) Site location including address.
 - (5) Listing of other permits required.
 - (6) Brief description of proposed work and estimated cost, including a breakout of flood-related cost and the market value of the building before the flood damage occurred where appropriate.
 - (7) A plan of the site showing the exact size and location of the proposed construction as well as any existing buildings or structures.
- B. If any proposed construction or development is located entirely or partially within any identified floodplain area, applicants for permits shall provide all the necessary information in sufficient detail and clarity to enable the Floodplain Administrator to determine that:
 - (1) All such proposals are consistent with the need to minimize flood damage and conform with the requirements of this and all other applicable codes and ordinances;
 - (2) All utilities and facilities, such as sewer, gas, electrical and water systems are located and constructed to minimize or eliminate flood damage;
 - (3) Adequate drainage is provided so as to reduce exposure to flood hazards;
 - (4) Structures will be anchored to prevent floatation, collapse, or lateral movement;
 - (5) Building materials are flood-resistant;
 - (6) Appropriate practices that minimize flood damage have been used; and

- (7) Electrical, heating, ventilation, plumbing, air conditioning equipment, and other service facilities have been designed and located to prevent water entry or accumulation.
- C. Applicants shall file the following minimum information plus any other pertinent information as may be required by the Floodplain Administrator to make the above determination:
- (1) A completed permit application form.
 - (2) A plan of the entire site, clearly and legibly drawn at a scale of one inch being equal to 100 feet or less, showing the following:
 - (a) North arrow, scale, and date;
 - (b) Topographic contour lines, if available;
 - (c) The location of all existing and proposed buildings, structures, and other improvements, including the location of any existing or proposed subdivision and development;
 - (d) The location of all existing streets, drives, and other access ways; and
 - (e) The location of any existing bodies of water or watercourses, identified floodplain areas, and, if available, information pertaining to the floodway, and the flow of water including direction and velocities.
 - (3) Plans of all proposed buildings, structures and other improvements, drawn at suitable scale showing the following:
 - (a) The proposed lowest floor elevation of any proposed building based upon North American Vertical Datum of 1988;
 - (b) The elevation of the base flood; and
 - (c) Supplemental information as may be necessary under 34 Pa. Code, the 2009 IBC or the 2009 IRC.
 - (4) The following data and documentation:
 - (a) Detailed information concerning any proposed floodproofing measures and corresponding elevations.
 - (b) If available, information concerning flood depths, pressures, velocities, impact and uplift forces and other factors associated with a base flood; and floodway area § 92-19A when combined with all other existing and anticipated development, will not increase the base flood elevation at any point.
 - (c) Documentation, certified by a registered professional engineer or architect, to show that the cumulative effect of any proposed development within an AE Area/District without floodway (See § 92-19B) when combined with all other existing and anticipated development, will not increase the base flood elevation more than one foot at any point within the community.
 - (d) A document, certified by a registered professional engineer or architect, which states that the proposed construction or development has been adequately designed to withstand the pressures, velocities, impact and uplift forces associated with the base flood. Such statement shall include a description of the type and extent of flood proofing measures

which have been incorporated into the design of the structure and/or the development.

- (e) Detailed information needed to determine compliance with § 92-25, Storage, and § 92-26, Development which may endanger human life, including:
 - [1] The amount, location and purpose of any materials or substances referred to in §§ 92-25F and 92-26, which are intended to be used, produced, stored or otherwise maintained on site.
 - [2] A description of the safeguards incorporated into the design of the proposed structure to prevent leaks or spills of the dangerous materials or substances listed in § 92-26 during a base flood.
- (f) The appropriate component of the Department of Environmental Protection's "Planning Module for Land Development."
- (g) Where any excavation or grading is proposed, a plan meeting the requirements of the Department of Environmental Protection to implement and maintain erosion and sedimentation control.

D. Applications for permits shall be accompanied by a fee, payable to the municipality based upon the estimated cost of the proposed construction as determined by the Floodplain Administrator.

§ 92-11. Review by County Conservation District.

A copy of all applications and plans for any proposed construction or development in any identified floodplain area to be considered for approval shall be submitted by the Floodplain Administrator to the County Conservation District for review and comment prior to the issuance of a Permit. The recommendations of the conservation district shall be considered by the Floodplain Administrator for possible incorporation into the proposed plan.

§ 92-12. Review of application by others.

A copy of all plans and applications for any proposed construction or development in any identified floodplain area to be considered for approval may be submitted by the Floodplain Administrator to any other appropriate agencies and/or individuals (e.g., Planning Commission, Municipal Engineer, etc.) for review and comment.

§ 92-13. Changes.

After the issuance of a permit by the Floodplain Administrator, no changes of any kind shall be made to the application, permit or any of the plans, specifications or other documents submitted with the application without the written consent or approval of the Floodplain Administrator. Requests for any such change shall be in writing, and shall be submitted by the applicant to the Floodplain Administrator for consideration.

§ 92-14. Placards.

In addition to the permit, the Floodplain Administrator shall issue a placard which shall be displayed on the premises during the time construction is in progress. This placard shall show the number of the permit, the date of its issuance, and be signed by the Floodplain Administrator.

§ 92-15. Start of construction.

- A. Work on the proposed construction or development shall begin within 180 days after the date of issuance of the development permit. Work shall also be completed within 12 months after the date of issuance of the permit or the permit shall expire unless a time extension is granted, in writing, by the Floodplain Administrator. The issuance of development permit does not refer to the zoning approval.
- B. The actual start of construction means either the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation; or the placement of a manufacture home on a foundation. Permanent construction does not include land preparation, such as clearing, grading, and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for a basement, footings, piers, or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.
- C. Time extensions shall be granted only if a written request is submitted by the applicant, who sets forth sufficient and reasonable cause for the Floodplain Administrator to approve such a request and the original permit is compliant with the chapter and FIRM/FIS in effect at the time the extension is granted.

§ 92-16. Enforcement.

- A. Notices. Whenever the Floodplain Administrator or other authorized municipal representative determines that there are reasonable grounds to believe that there has been a violation of any provisions of this chapter, or of any regulations adopted pursuant thereto, the Floodplain Administrator shall give notice of such alleged violation as hereinafter provided. Such notice shall:
 - (1) Be in writing;
 - (2) Include a statement of the reasons for its issuance;
 - (3) Allow a reasonable time not to exceed a period of 30 days for the performance of any act it requires;
 - (4) Be served upon the property owner or his agent as the case may require; provided, however, that such notice or order shall be deemed to have been properly served upon such owner or agent when a copy thereof has been served with such notice by any other method authorized or required by the laws of this state;
 - (5) Contain an outline of remedial actions which, if taken, will effect compliance with the provisions of this chapter.
- B. Penalties. Any person who fails to comply with any or all of the requirements or provisions of this chapter or who fails or refuses to comply with any notice, order of direction of the Floodplain Administrator or any other authorized employee of the municipality shall be guilty of an offense and upon conviction shall pay a fine to Borough of Baldwin of not less than \$25 nor more than \$600 plus costs of prosecution. In addition to the above penalties all other actions are hereby reserved including an action in equity for the proper enforcement of this chapter. The imposition of a fine or penalty for any violation of, or noncompliance with this chapter shall not excuse the violation or noncompliance

or permit it to continue. All such persons shall be required to correct or remedy such violations and noncompliance within a reasonable time. Any development initiated or any structure or building constructed, reconstructed, enlarged, altered, or relocated, in noncompliance with this chapter may be declared by the Council to be a public nuisance and abatable as such.

§ 92-17. Appeals.

- A. Any person aggrieved by any action or decision of the Floodplain Administrator concerning the administration of the provisions of this chapter may appeal to the Zoning Hearing Board. Such appeal must be filed, in writing, within 30 days after the decision, determination or action of the Floodplain Administrator.
- B. Upon receipt of such appeal the Zoning Hearing Board shall consider the appeal in accordance with the Municipal Planning Code and any other local ordinance.
- C. Any person aggrieved by any decision of the Zoning Hearing Board may seek relief therefrom by appeal to court, as provided by the laws of this state, including the Pennsylvania Flood Plain Management Act.

ARTICLE IV
Identification of Floodplain Areas

§ 92-18. Identification.

A. The identified floodplain area shall be:

- (1) Any areas of Borough of Baldwin, classified as special flood hazard areas (SFHAs) in the Flood Insurance Study (FIS) and the accompanying Flood Insurance Rate Maps (FIRMs) dated September 26, 2014 and issued by the Federal Emergency Management Agency (FEMA) or the most recent revision thereof, including all digital data developed as part of the Flood Insurance Study; and
- (2) Any community identified flood hazard areas.

B. The above referenced FIS and FIRMs, and any subsequent revisions and amendments are hereby adopted by Borough of Baldwin and declared to be a part of this chapter.

§ 92-19. Description and special requirements of identified floodplain areas.

The identified floodplain area shall consist of the following specific areas:

A. The floodway area shall be those areas identified in the FIS and the FIRM as floodway and which represent the channel of a watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without increasing the water surface elevation by more than one foot at any point. This term shall also include floodway areas which have been identified in other available studies or sources of information for those special flood hazard areas where no floodway has been identified in the FIS and FIRM.

- (1) Within any floodway area, no encroachments, including fill, new construction, substantial improvements, or other development shall be permitted unless it has been demonstrated through hydrologic and hydraulic analysis performed in accordance with standard engineering practice that the proposed encroachment would not result in any increase in flood levels within the community during the occurrence of the base flood discharge.
- (2) Within any floodway area, no new construction or development shall be allowed, unless the appropriate permit is obtained from the Department of Environmental Protection Regional Office.

B. The AE Area/District shall be those areas identified as an AE Zone on the FIRM included in the FIS prepared by FEMA for which base flood elevations have been provided.

- (1) The AE Area adjacent to the floodway shall be those areas identified as an AE Zone on the FIRM included in the FIS prepared by FEMA for which base flood elevations have been provided and a floodway has been delineated.
- (2) AE Area without floodway shall be those areas identified as an AE zone on the FIRM included in the FIS prepared by FEMA for which base flood elevations have been provided but no floodway has been determined.
 - (a) No permit shall be granted for any construction, development, use, or activity within any AE Area/District without floodway unless it is demonstrated that the cumulative effect of the proposed development would not, together with all other existing and anticipated

development, increase the BFE more than one foot at any point.

- (b) No new construction or development shall be located within the area measured 50 feet landward from the top-of-bank of any watercourse, unless the appropriate permit is obtained from the Department of Environmental Protection Regional Office.
- C. The A Area/District shall be those areas identified as an A Zone on the FIRM included in the FIS prepared by FEMA and for which no base flood elevations have been provided. For these areas, elevation and floodway information from other federal, state, or other acceptable sources shall be used when available. Where other acceptable information is not available, the base flood elevation shall be determined by using the elevation of a point on the boundary of the identified floodplain area which is nearest the construction site.
- D. In lieu of the above, the municipality may require the applicant to determine the elevation with hydrologic and hydraulic engineering techniques. Hydrologic and hydraulic analyses shall be undertaken only by professional engineers or others of demonstrated qualifications, who shall certify that the technical methods used correctly reflect currently accepted technical concepts. Studies, analyses, computations, etc., shall be submitted in sufficient detail to allow a thorough technical review by the municipality.
- E. Community identified flood hazard areas shall be those areas where Borough of Baldwin has identified local flood hazard or ponding areas, as delineated and adopted on a Local Flood Hazard Map using best available topographic data and locally derived information such as flood of record, historic high water marks, soils or approximate study methodologies.

§ 92-20. Changes in identification of area.

The identified floodplain area may be revised or modified by the Council where studies or information provided by a qualified agency or person documents the need for such revision. However, prior to any such change to the special flood hazard area, approval must be obtained from FEMA. Additionally, as soon as practicable, but not later than six months after the date such information becomes available, a community shall notify FEMA of the changes to the Special Flood Hazard Area by submitting technical or scientific data § 92-23B for situations where FEMA notification is required.

§ 92-21. Boundary disputes.

Should a dispute concerning any identified floodplain boundary arise, an initial determination shall be made by the Borough of Baldwin and any party aggrieved by this decision or determination may appeal to the Council. The burden of proof shall be on the appellant.

§ 92-22. Jurisdictional boundary changes.

Prior to development occurring in areas where annexation or other corporate boundary changes are proposed or have occurred, the community shall review flood hazard data affecting the lands subject to boundary changes. The community shall adopt and enforce floodplain regulations in areas subject to annexation or corporate boundary changes which meet or exceed those in 44 CFR 60.3.

ARTICLE V
Technical Provisions

§ 92-23. General.

A. Alteration or relocation of watercourse.

- (1) No encroachment, alteration, or improvement of any kind shall be made to any watercourse until all adjacent municipalities which may be affected by such action have been notified by the municipality, and until all required permits or approvals have first been obtained from the Department of Environmental Protection Regional Office.
- (2) No encroachment, alteration, or improvement of any kind shall be made to any watercourse unless it can be shown that the activity will not reduce or impede the flood carrying capacity of the watercourse in any way.
- (3) In addition, FEMA and the Pennsylvania Department of Community and Economic Development, shall be notified prior to any alteration or relocation of any watercourse.

B. When a community proposes to permit the following encroachments, including: any development that causes a rise in the base flood elevations within the floodway; or any development occurring in Zones A1-30 and Zone AE without a designated floodway, which will cause a rise of more than one foot in the base flood elevation; or alteration or relocation of a stream (including but not limited to installing culverts and bridges); the applicant shall (as per 44 CFR 65.12):

- (1) Apply to FEMA for conditional approval of such action prior to permitting the encroachments to occur.
- (2) Upon receipt of the Administrator's conditional approval of map change and prior to approving the proposed encroachments, a community shall provide evidence to FEMA of the adoption of floodplain management ordinances incorporating the increased base flood elevations and/or revised floodway reflecting the post-project condition.
- (3) Upon completion of the proposed encroachments, a community shall provide as-built certifications. FEMA will initiate a final map revision upon receipt of such certifications in accordance with 44 CFR 67.

C. Any new construction, development, uses or activities allowed within any identified floodplain area shall be undertaken in strict compliance with the provisions contained in this chapter and any other applicable codes, ordinances and regulations.

§ 92-24. Elevation and floodproofing requirements.

A. Residential structures.

- (1) In AE, A1-30, and AH Zones, any new construction or substantial improvement shall have the lowest floor (including basement) elevated up to, or above, the regulatory flood elevation.
- (2) In A Zones, where there are no base flood elevations specified on the FIRM, any new construction or substantial improvement shall have the lowest floor (including basement) elevated up to, or above, the regulatory flood elevation determined in accordance with § 92-19C of this chapter.

- (3) The design and construction standards and specifications contained in the 2009 International Building Code (IBC) and in the 2009 International Residential Code (IRC) or the most recent revisions thereof and ASCE24 and 34 Pa. Code (Chapters 401 through 405 as amended) shall be utilized, where they are more restrictive.

B. Nonresidential structures.

- (1) In AE, A1-30 and AH Zones, any new construction or substantial improvement of a nonresidential structure shall have the lowest floor (including basement) elevated up to, or above, the regulatory flood elevation, or be designed and constructed so that the space enclosed below the regulatory flood elevation:
 - (a) Is floodproofed so that the structure is watertight with walls substantially impermeable to the passage of water; and
 - (b) Has structural components with the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy.
- (2) In A Zones, where no base flood elevations are specified on the FIRM, any new construction or substantial improvement shall have the lowest floor (including basement) elevated or completely floodproofed up to, or above the regulatory flood elevation determined in accordance with § 92-19C of this chapter.
- (3) Any nonresidential structure, or part thereof, made watertight below the regulatory flood elevation shall be floodproofed in accordance with the W1 or W2 space classification standards contained in the publication entitled "Flood-Proofing Regulations" published by the U.S. Army Corps of Engineers (June 1972, as amended March 1992) or with some other equivalent standard. All plans and specifications for such floodproofing shall be accompanied by a statement certified by a registered professional engineer or architect which states that the proposed design and methods of construction are in conformance with the above referenced standards.
- (4) The design and construction standards and specifications contained in the 2009 International Building Code (IBC) and in the 2009 International Residential Code (IRC) or the most recent revisions thereof and ASCE24 and 34 Pa. Code (Chapters 401 through 405 as amended) shall be utilized, where they are more restrictive.

C. Space below the lowest floor.

- (1) Fully enclosed space below the lowest floor (excluding basements) which will be used solely for the parking of a vehicle, building access, or incidental storage in an area other than a basement, shall be designed and constructed to allow for the automatic entry and exit of flood waters for the purpose of equalizing hydrostatic forces on exterior walls. The term "fully enclosed space" also includes crawl spaces.
- (2) Designs for meeting this requirement must either be certified by a registered professional engineer or architect, or meet or exceed the following minimum criteria:
 - (a) A minimum of two openings having a net total area of not less than one square inch for every square foot of enclosed space.
 - (b) The bottom of all openings shall be no higher than one foot above grade.

- (c) Openings may be equipped with screens, louvers, or other coverings or devices provided that they permit the automatic entry and exit of floodwaters.
- D. Historic structures. Historic structures undergoing repair or rehabilitation that would constitute a substantial improvement as defined in this chapter, must comply with all ordinance requirements that do not preclude the structure's continued designation as an historic structure. Documentation that a specific ordinance requirement will cause removal of the structure from the National Register of Historic Places or the State Inventory of Historic places must be obtained from the Secretary of the Interior or the State Historic Preservation Officer. Any exemption from ordinance requirements will be the minimum necessary to preserve the historic character and design of the structure.
- E. Accessory structures. Structures accessory to a principal building need not be elevated or floodproofed to remain dry, but shall comply, at a minimum, with the following requirements:
 - (1) The structure shall not be designed or used for human habitation, but shall be limited to the parking of vehicles, or to the storage of tools, material, and equipment related to the principal use or activity.
 - (2) Floor area shall not exceed 200 square feet.
 - (3) The structure will have a low damage potential.
 - (4) The structure will be located on the site so as to cause the least obstruction to the flow of flood waters.
 - (5) Power lines, wiring, and outlets will be elevated to the regulatory flood elevation.
 - (6) Permanently affixed utility equipment and appliances such as furnaces, heaters, washers, dryers, etc. are prohibited.
 - (7) Sanitary facilities are prohibited.
 - (8) The structure shall be adequately anchored to prevent flotation, collapse, and lateral movement and shall be designed to automatically provide for the entry and exit of floodwater for the purpose of equalizing hydrostatic forces on the walls. Designs for meeting this requirement must either be certified by a registered professional engineer or architect, or meet or exceed the following minimum criteria:
 - (a) A minimum of two openings having a net total area of not less than one square inch for every square foot of enclosed space.
 - (b) The bottom of all openings shall be no higher than one foot above grade.
 - (c) Openings may be equipped with screens, louvers, etc., or other coverings or devices provided that they permit the automatic entry and exit of flood waters.

§ 92-25. Design and construction standards.

The following minimum standards shall apply for all construction and development proposed within any identified floodplain area:

- A. Fill. Within any Identified Floodplain Area the use of fill shall be prohibited. No variance shall be granted.

- B. Drainage facilities. Storm drainage facilities shall be designed to convey the flow of storm water runoff in a safe and efficient manner. The system shall ensure proper drainage along streets, and provide positive drainage away from buildings. The system shall also be designed to prevent the discharge of excess runoff onto adjacent properties.
- C. Water and sanitary sewer facilities and systems.
- (1) All new or replacement water supply and sanitary sewer facilities and systems shall be located, designed and constructed to minimize or eliminate flood damages and the infiltration of flood waters.
 - (2) Sanitary sewer facilities and systems shall be designed to prevent the discharge of untreated sewage into flood waters.
 - (3) No part of any on-site waste disposal system shall be located within any identified floodplain area except in strict compliance with all state and local regulations for such systems. If any such system is permitted, it shall be located so as to avoid impairment to it, or contamination from it, during a flood.
 - (4) The design and construction provisions of the UCC and FEMA #348, "Protecting Building Utilities From Flood Damages" and "The International Private Sewage Disposal Code" shall be utilized.
- D. Other utilities. All other utilities such as gas lines, electrical and telephone systems shall be located, elevated (where possible) and constructed to minimize the chance of impairment during a flood.
- E. Streets. The finished elevation of all new streets shall be no more than one foot below the regulatory flood elevation.
- F. Storage. All materials that are buoyant, flammable, explosive, or in times of flooding, could be injurious to human, animal, or plant life, and not listed in § 92-26, Development which may endanger human life, shall be stored at or above the Regulatory Flood Elevation or floodproofed to the maximum extent possible.
- G. Placement of buildings and structures. All buildings and structures shall be designed, located, and constructed so as to offer the minimum obstruction to the flow of water and shall be designed to have a minimum effect upon the flow and height of flood water.
- H. Anchoring.
- (1) All buildings and structures shall be firmly anchored in accordance with accepted engineering practices to prevent flotation, collapse, or lateral movement.
 - (2) All air ducts, large pipes, storage tanks, and other similar objects or components located below the regulatory flood elevation shall be securely anchored or affixed to prevent flotation.
- I. Floors, walls and ceilings.
- (1) Wood flooring used at or below the regulatory flood elevation shall be installed to accommodate a lateral expansion of the flooring, perpendicular to the flooring grain without causing structural damage to the building.
 - (2) Plywood used at or below the regulatory flood elevation shall be of a marine or water-resistant variety.

- (3) Walls and ceilings at or below the regulatory flood elevation shall be designed and constructed of materials that are water-resistant and will withstand inundation.
- (4) Windows, doors, and other components at or below the regulatory flood elevation shall be made of metal or other water-resistant material.

J. Paints and adhesives.

- (1) Paints and other finishes used at or below the regulatory flood elevation shall be of marine or water-resistant quality.
- (2) Adhesives used at or below the regulatory flood elevation shall be of a marine or water-resistant variety.
- (3) All wooden components (doors, trim, cabinets, etc.) used at or below the regulatory flood elevation shall be finished with a marine or water-resistant paint or other finishing material.

K. Electrical components.

- (1) Electrical distribution panels shall be at least three feet above the base flood elevation.
- (2) Separate electrical circuits shall serve lower levels and shall be dropped from above.

L. Equipment. Water heaters, furnaces, air conditioning and ventilating units, and other electrical, mechanical or utility equipment or apparatus shall not be located below the regulatory flood elevation.

M. Fuel supply systems. All gas and oil supply systems shall be designed to prevent the infiltration of flood waters into the system and discharges from the system into flood waters. Additional provisions shall be made for the drainage of these systems in the event that flood water infiltration occurs.

N. Uniform Construction Code coordination. The Standards and Specifications contained 34 Pa. Code (Chapters 401 through 405), as amended and not limited to the following provisions shall apply to the above and other sections and subsections of this chapter, to the extent that they are more restrictive and supplement the requirements of this chapter.

International Building Code (IBC) 2009 or the latest edition thereof:
Secs. 801, 1202, 1403, 1603, 1605, 1612, 3402, and Appendix G.

International Residential Building Code (IRC) 2009 or the latest edition thereof:
Secs. R104, R105, R109, R322, Appendix E, and Appendix J.

§ 92-26. Development which may endanger human life.

Within any identified floodplain area, any structure of the kind described this subsection shall be prohibited. No variance shall be granted. In accordance with the Pennsylvania Flood Plain Management Act, and the regulations adopted by the Department of Community and Economic Development as required by the Act, any new or substantially improved structure which will be used for the production or storage of any of the following dangerous materials or substances; or will be used for any activity requiring the maintenance of a supply of more than 550 gallons, or other comparable volume, of any of the following dangerous materials or substances on the premises; or will involve the production, storage, or use of any amount of radioactive substances shall be subject to the provisions of this section, in addition to all other applicable provisions. The following list of materials and substances are considered dangerous to human

life:

- A. Acetone.
- B. Ammonia.
- C. Benzene.
- D. Calcium carbide.
- E. Carbon disulfide.
- F. Celluloid.
- G. Chlorine.
- H. Hydrochloric acid.
- I. Hydrocyanic acid.
- J. Magnesium.
- K. Nitric acid and oxides of nitrogen.
- L. Petroleum products (gasoline, fuel oil, etc.).
- M. Phosphorus.
- N. Potassium.
- O. Sodium.
- P. Sulfur and sulfur products.
- Q. Pesticides (including insecticides, fungicides, and rodenticides).
- R. Radioactive substances, insofar as such substances are not otherwise regulated.

§ 92-27. Special requirements for subdivisions and development.

All subdivision proposals and development proposals containing at least 50 lots or at least five acres, whichever is the lesser, in identified floodplain areas where base flood elevation data are not available, shall be supported by hydrologic and hydraulic engineering analyses that determine base flood elevations and floodway information. The analyses shall be prepared by a licensed professional engineer in a format required by FEMA for a conditional letter of map revision and letter of map revision. Submittal requirements and processing fees shall be the responsibility of the applicant.

§ 92-28. Special requirements for manufactured homes.

Within any identified floodplain area manufactured homes shall be prohibited. No variance shall be granted.

§ 92-29. Special requirements for recreational vehicles.

Within any identified floodplain area recreational vehicles shall be prohibited. If a variance is obtained in accordance with the criteria in Article VIII then the following provisions apply:

- A. Recreational vehicles in Zones A, A1-30, AH and AE must: be on the site for fewer than 180 consecutive days, and be fully licensed and ready for highway use.

ARTICLE VI
Prohibited Activities

§ 92-30. General.

In accordance with the administrative regulations promulgated by the Department of Community and Economic Development to implement the Pennsylvania Flood Plain Management Act, the following activities shall be prohibited within any identified, floodplain area:

- A. The commencement of any of the following activities; or the construction, enlargement, or expansion of any structure used, or intended to be used, for any of the following activities:
 - (1) Hospitals.
 - (2) Nursing homes.
 - (3) Jails or prisons.
- B. The commencement of, or any construction of, a new manufactured home park or manufactured home subdivision, or substantial improvement to an existing manufactured home park or manufactured home subdivision.

ARTICLE VII
Existing Structures in Identified Floodplain Areas

§ 92-31. Existing structures.

The provisions of this chapter do not require any changes or improvements to be made to lawfully existing structures. However, when an improvement is made to any existing structure, the provisions of § 92-32 shall apply.

§ 92-32. Improvements.

The following provisions shall apply whenever any improvement is made to an existing structure located within any identified floodplain area:

- A. No expansion or enlargement of an existing structure shall be allowed within any floodway area/district that would cause any increase in BFE.
- B. No expansion or enlargement of an existing structure shall be allowed within an AE Area/District without floodway that would, together with all other existing and anticipated development, increase the BFE more than one foot at any point.
- C. Any modification, alteration, reconstruction, or improvement of any kind to an existing structure to an extent or amount of 50% or more of its market value, shall constitute a substantial improvement and shall be undertaken only in full compliance with the provisions of this chapter.
- D. The above activity shall also address the requirements of the 34 Pa. Code, as amended, and the 2009 IBC and the 2009 IRC.
- E. Any modification, alteration, reconstruction, or improvement of any kind to an existing structure, to an extent or amount of less than 50% of its market value, shall be elevated and/or floodproofed to the greatest extent possible.
- F. Any modification, alteration, reconstruction, or improvement of any kind that meets the definition of "repetitive loss" shall be undertaken only in full compliance with the provisions of this chapter.

ARTICLE VIII

Variances**§ 92-33. General.**

If compliance with any of the requirements of this chapter would result in an exceptional hardship to a prospective builder, developer or landowner, the Borough of Baldwin may, upon request, grant relief from the strict application of the requirements.

§ 92-34. Variance procedures and conditions.

Requests for variances shall be considered by the Borough of Baldwin in accordance with the procedures contained in § 92-17 and the following:

- A. No variance shall be granted for any construction, development, use, or activity within any Floodway Area/District that would cause any increase in the BFE.
- B. No variance shall be granted for any construction, development, use, or activity within any AE Area/District without floodway that would, together with all other existing and anticipated development, increase the BFE more than one foot at any point.
- C. No variance shall be granted for any development regulated by prohibited activities § 92-28 and Article VI, or to § 92-26, Development which may endanger human life.
- D. If granted, a variance shall involve only the least modification necessary to provide relief.
- E. In granting any variance, the Borough of Baldwin shall attach whatever reasonable conditions and safeguards it considers necessary in order to protect the public health, safety, and welfare, and to achieve the objectives of this chapter.
- F. Whenever a variance is granted, the Borough of Baldwin shall notify the applicant in writing that:
 - (1) The granting of the variance may result in increased premium rates for flood insurance.
 - (2) Such varices may increase the risks to life and property.
- G. In reviewing any request for a variance, the Borough of Baldwin shall consider, at a minimum, the following:
 - (1) That there is good and sufficient cause.
 - (2) That failure to grant the variance would result in exceptional hardship to the applicant.
 - (3) That the granting of the variance will neither:
 - (a) Result in an unacceptable or prohibited increase in flood heights, additional threats to public safety, or extraordinary public expense; nor
 - (b) Create nuisances, cause fraud on, or victimize the public, or conflict with any other applicable state or local ordinances and regulations.
- H. A complete record of all variance requests and related actions shall be maintained by the Borough of Baldwin. In addition, a report of all variances granted during the year shall be included in the annual report to the FEMA.

- I. Notwithstanding any of the above, however, all structures shall be designed and constructed so as to have the capability of resisting the one-percent annual chance flood.

ARTICLE IX

Definitions**§ 92-35. General.**

Unless specifically defined below, words and phrases used in this chapter shall be interpreted so as to give this chapter its most reasonable application.

§ 92-36. Specific definitions.

ACCESSORY USE or STRUCTURE — A use or structure on the same lot with, and of a nature customarily incidental and subordinate to, the principal use or structure.

BASE FLOOD — A flood which has a one-percent chance of being equaled or exceeded in any given year (also called the "one-hundred-year flood" or one-percent annual chance flood).

BASE FLOOD DISCHARGE — The volume of water resulting from a base flood as it passes a given location within a given time, usually expressed in cubic feet per second (cfs).

BASE FLOOD ELEVATION (BFE) — The elevation shown on the Flood Insurance Rate Map (FIRM) for Zones AE, AH, A1-30 that indicates the water surface elevation resulting from a flood that has a one-percent or greater chance of being equaled or exceeded in any given year.

BASEMENT — Any area of the building having its floor below ground level on all sides.

BUILDING — A combination of materials to form a permanent structure having walls and a roof. Included shall be all manufactured homes and trailers to be used for human habitation.

DEVELOPMENT — Any man-made change to improved or unimproved real estate, including, but not limited to, the construction, reconstruction, renovation, repair, expansion, or alteration of buildings or other structures; the placement of manufactured homes; streets, and other paving; utilities; filling, grading and excavation; mining; dredging; drilling operations; storage of equipment or materials; and the subdivision of land.

EXISTING MANUFACTURED HOME PARK or SUBDIVISION — A manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed before the effective date of the floodplain management regulations adopted by a community.

EXPANSION TO AN EXISTING MANUFACTURED HOME PARK OR SUBDIVISION — The preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

FLOOD — A temporary inundation of normally dry land areas.

FLOOD INSURANCE RATE MAP (FIRM) — The official map on which the Federal Emergency Management Agency has delineated both the areas of special flood hazards and the risk premium zones applicable to the community.

FLOOD INSURANCE STUDY (FIS) — The official report provided by the Federal Emergency Management Agency that includes flood profiles, the Flood Insurance Rate Map, the Flood Boundary and Floodway Map, and the water surface elevation of the base flood.

FLOODPLAIN AREA — A relatively flat or lowland area which is subject to partial or complete inundation from an adjoining or nearby stream, river or watercourse; and/or any area subject to the unusual

and rapid accumulation of surface waters from any source.

FLOODPROOFING — Any combination of structural and nonstructural additions, changes, or adjustments to structures which reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures and their contents.

FLOODWAY — The channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than one foot.

HISTORIC STRUCTURES — Any structure that is:

- A. Listed individually in the National Register of Historic Places (a listing maintained by the Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;
- B. Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;
- C. Individually listed on a state inventory of historic places in states which have been approved by the Secretary of the Interior; or
- D. Individually listed on a local inventory of historic places in communities with historic preservation that have been certified either:
 - (1) By an approved state program as determined by the Secretary of the Interior; or
 - (2) Directly by the Secretary of the Interior in states without approved programs.

IDENTIFIED FLOODPLAIN AREA — An umbrella term that includes all of the areas within which the community has selected to enforce floodplain regulations. It will always include the area identified as the special flood hazard area on the Flood Insurance Rate Maps and Flood Insurance Study, but may include additional areas identified by the community. See §§ 92-18 and 92-19 for the specifics on what areas the community has included in the identified floodplain area.

LOWEST FLOOR — The lowest floor of the lowest fully enclosed area (including basement). An unfinished, flood resistant partially enclosed area, used solely for parking of vehicles, building access, and incidental storage, in an area other than a basement area is not considered the lowest floor of a building, provided that such space is not designed and built so that the structure is in violation of the applicable nonelevation design requirements of this chapter.

MANUFACTURED HOME — A structure, transportable in one or more sections, which is built on a permanent chassis, and is designed for use with or without a permanent foundation when attached to the required utilities. The term includes park trailers, travel trailers, recreational and other similar vehicles which are placed on a site for more than 180 consecutive days.

MANUFACTURED HOME PARK OR SUBDIVISION — A parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale.

MINOR REPAIR — The replacement of existing work with equivalent materials for the purpose of its routine maintenance and upkeep, but not including the cutting away of any wall, partition or portion thereof, the removal or cutting of any structural beam or bearing support, or the removal or change of any required means of egress, or rearrangement of parts of a structure affecting the exitway requirements; nor shall minor repairs include addition to, alteration of, replacement or relocation of any standpipe, water supply, sewer, drainage, drain leader, gas, oil, waste, vent, or similar piping, electric wiring, mechanical or

other work affecting public health or general safety.

NEW CONSTRUCTION — Structures for which the start of construction commenced on or after September 26, 2014 and includes any subsequent improvements to such structures. Any construction started after August 15, 1978 and before September 26, 2014 is subject to the ordinance in effect at the time the permit was issued, provided the start of construction was within 180 days of permit issuance.

NEW MANUFACTURED HOME PARK or SUBDIVISION — A manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after the effective date of floodplain management regulations adopted by a community.

PERSON — An individual, partnership, public or private association or corporation, firm, trust, estate, municipality, governmental unit, public utility or any other legal entity whatsoever, which is recognized by law as the subject of rights and duties.

POST-FIRM STRUCTURE — A structure for which construction or substantial improvement occurred after December 31, 1974 or on or after the community's initial Flood Insurance Rate Map (FIRM) dated August 15, 1978, whichever is later, and, as such, would be required to be compliant with the regulations of the National Flood Insurance Program.

PRE-FIRM STRUCTURE — A structure for which construction or substantial improvement occurred on or before December 31, 1974 or before the community's initial Flood Insurance Rate Map (FIRM) dated August 15, 1978, whichever is later, and, as such, would not be required to be compliant with the regulations of the National Flood Insurance Program.

RECREATIONAL VEHICLE — A vehicle which is:

- A. Built on a single chassis;
- B. Not more than 400 square feet, measured at the largest horizontal projections;
- C. Designed to be self-propelled or permanently towable by a light-duty truck;
- D. Not designed for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

REGULATORY FLOOD ELEVATION — The base flood elevation (BFE) or estimated flood height as determined using simplified methods plus a freeboard safety factor of 1 1/2 feet.

REPETITIVE LOSS — Flood-related damages sustained by a structure on two separate occasions during a ten-year period for which the cost of repairs at the time of each such flood event, on average, equals or exceeds 25% of the market value of the structure before the damages occurred.

SPECIAL FLOOD HAZARD AREA (SFHA) — An area in the floodplain subject to a 1% or greater chance of flooding in any given year. It is shown on the FIRM as Zone A, AO, A1-A30, AE, A99, or, AH.

START OF CONSTRUCTION — Includes substantial improvement and other proposed new development and means the date the permit was issued, provided the actual start of construction, repair, reconstruction, rehabilitation, addition, placement, or other improvement was within 180 days after the date of the permit and shall be completed within 12 months after the date of issuance of the permit unless a time extension is granted, in writing, by the Floodplain Administrator. The actual start means either the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation; or the placement of a manufacture home on a foundation. Permanent construction does not include land preparation, such

as clearing, grading, and filling; nor does it include the installation of streets and walkways; nor does it include excavation for a basement, footings, piers, or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

STRUCTURE — A walled and roofed building, including a gas or liquid storage tank that is principally above ground, as well as a manufactured home.

SUBDIVISION — The division or redivision of a lot, tract, or parcel of land by any means into two or more lots, tracts, parcels or other divisions of land including changes in existing lot lines for the purpose, whether immediate or future, of lease, partition by the court for distribution to heirs, or devisees, transfer of ownership or building or lot development; provided, however, that the subdivision by lease of land for agricultural purposes into parcels of more than 10 acres, not involving any new street or easement of access or any residential dwelling, shall be exempted.

SUBSTANTIAL DAMAGE — Damage from any cause sustained by a structure whereby the cost of restoring the structure to its before-damaged condition would equal or exceed 50% or more of the market value of the structure before the damage occurred.

SUBSTANTIAL IMPROVEMENT — Any reconstruction, rehabilitation, addition, or other improvement of a structure, of which the cost equals or exceeds 50% of the market value of the structure before the start of construction of the improvement. This term includes structures which have incurred substantial damage or repetitive loss regardless of the actual repair work performed. The term does not, however, include any project for improvement of a structure to correct existing violations of state or local health, sanitary, or safety code specifications which have been identified by the local code enforcement official and which are the minimum necessary to assure safe living conditions.

UNIFORM CONSTRUCTION CODE (UCC) — The statewide building code adopted by The Pennsylvania General Assembly in 1999 applicable to new construction in all municipalities whether administered by the municipality, a third party or the Department of Labor and Industry. Applicable to residential and commercial buildings, The Code adopted the International Residential Code (IRC) and the International Building Code (IBC), by reference, as the construction standard applicable with the state floodplain construction. For coordination purposes, references to the above are made specifically to various sections of the IRC and the IBC.

VARIANCE — A grant of relief by a community from the terms of a floodplain management regulation.

VIOLATION — The failure of a structure or other development to be fully compliant with the community's floodplain management regulations. A structure or other development without the elevation certificate, other certifications, or other evidence of compliance required in 44 CFR 60.3(b)(5), (c)(4), (c)(10), (d)(3), (e)(2), (e)(4), or (e)(5) is presumed to be in violation until such time as that documentation is provided.

(RESERVED)

Chapter 96

(RESERVED)

[Former Ch. 96, Garbage, Rubbish and Refuse, adopted 12-16-1954 by Ord. No. 65, as amended, was repealed 9-17-1990 by Ord. No. 618. See now Ch. 136, Solid Waste.]

Chapter 99**GRADING, EXCAVATIONS AND FILL**

§ 99-1.	Title; purpose.	§ 99-9.	Inspections; plans to be maintained at site.
§ 99-2.	Definitions.	§ 99-10.	Excavation standards.
§ 99-3.	Conformance required; exceptions.	§ 99-11.	Fill standards.
§ 99-4.	Grading permit required; exceptions.	§ 99-12.	Compaction of fill.
§ 99-5.	Application for permit; special conditions.	§ 99-13.	Drainage.
§ 99-6.	Approval or disapproval of application; bond; fees; escrow.	§ 99-14.	Maintenance and repair.
§ 99-7.	Expiration of permit; extension of time limit.	§ 99-15.	Distance from adjacent properties; fences; cleanup; landscaping.
§ 99-8.	Denial of permit; appeals.	§ 99-16.	Violations and penalties.
		§ 99-17.	Other remedies.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 3-21-1966 by Ord. No. 318; amended in its entirety 9-17-2001 by Ord. No. 758. Subsequent amendments noted where applicable.]

GENERAL REFERENCES

Building construction and housing standards — See Ch. 74.

Mining — See Ch. 119.

Uniform construction codes — See Ch. 83.

Subdivision and land development — See Ch. 142.

Erosion and sediment control — See Ch. 87.

Trees, shrubs and bushes — See Ch. 142.

Flood damage prevention — See Ch. 92.

§ 99-1. Title; purpose.

- A. Title. This chapter shall be known and may be cited as the "Baldwin Borough Grading Ordinance."
- B. Purpose. The purpose of this chapter is to provide minimum standards to safeguard persons and to protect and to promote the public welfare by regulating and controlling the design, construction, quality of materials, use, location and maintenance of grading, excavation and fill.

§ 99-2. Definitions.

Wherever used in this chapter, the following words shall have the meanings indicated:

BOROUGH — The Borough of Baldwin.

BUILDING PERMIT — A permit issued by the Building Inspector pursuant to the provisions of the Baldwin Building Code³⁰ for the construction, erection or alteration of a structure or building.

ENGINEER — The appointed Engineer of the Borough of Baldwin.

EXCAVATION — Any act by which earth, sand, gravel, rock or any other similar material is cut into, dug, quarried, uncovered, removed, displaced, relocated or bulldozed and shall include the conditions resulting therefrom.

FILL — Any act by which earth, sand, gravel, rock or any other material is deposited, placed, pushed, dumped, pulled, transported or moved to a new location and shall include the conditions resulting therefrom.

GRADE — The elevation of the existing ground surface at the location of any proposed excavation or fill.

GRADING — Excavation or fill or any combination thereof and shall include the conditions resulting from any excavation or fill.

GRADING PERMIT — Any permit required under § 99-4 hereof.

PERSON — A natural person but shall also include a partnership or corporation.

SITE — A lot, tract or parcel of land or a series of lots, tracts or parcels of land which are adjoining where grading work is continuous and performed at the same time.

§ 99-3. Conformance required; exceptions.

New grading, excavations and fills or changes, additions, repairs or alterations made to existing excavations and fills shall conform to the provisions of this chapter, except that this chapter shall not apply to:

- A. Work in a public street or alley or in a Borough park, playground or recreation area or on other public property.
- B. The mining, quarrying, excavation, processing or stockpiling of rock, sand, aggregate or clay unless such work affects the support or safety of adjacent or contiguous property or structures.

§ 99-4. Grading permit required; exceptions.

No person shall commence or perform any grading, excavation or fill without first having obtained a grading permit from the Building Inspector on approval of the Engineer. A separate grading permit shall be required for each site. One permit may cover the grading, excavation and any fill made on the same site. A grading permit will not be required, however, in any one of the following situations, but in all other respects the provisions of this chapter shall apply:

- A. No grading permit will be required for any excavation which does not exceed four feet in vertical depth at its deepest point measured from the natural ground surface; provided also, however, that such excavation does not exceed 1,000 square feet in area.
- B. No grading permit will be required when a fill is to be made which does not exceed 10 cubic yards in amount on any one site.
- C. No grading permit will be required when a fill is to be made which is less than four feet in vertical depth at its deepest point as measured from the top of such fill to the natural ground surface; provided also, however, that such fill does not exceed 1,000 square feet in area and that the slope of such fill does not exceed a maximum at any point of three horizontal to one vertical.

30. Editor's Note: See Ch. 74, Building Construction, and Ch. 83, Construction Codes, Uniform.

- D. No grading permit will be required for any excavations and backfill made below finished grade for basements or footers, swimming pools or underground structures for new construction authorized by a building permit properly issued by the Borough of Baldwin, and no grading permit shall be required for the temporary stockpiling of the material from such excavation on the same site; provided, however, that if the material from such excavation is thereafter to be used for fill purposes for which a grading permit is required, such permit must be obtained prior to such use in accordance with the requirements of this chapter. In addition, if excavated material is stockpiled on a site for a period longer than 120 days, then a permit shall be necessary when disposing of the fill material.
- E. Where residential construction for single-family houses does not fall within the limits of the table below, then a grading permit shall be required in addition to the building permit:

Site Size (square feet)	Gradient	Amount of Excavation or Fill (cubic yards)
Less than 6,000	12 in 100 feet	75
6,000 to 10,000	15 in 100 feet	100
10,000 to 18,000	17 in 100 feet	200
18,000 to 30,000	20 in 100 feet	300
Over 30,000	22 in 100 feet	400

§ 99-5. Application for permit; special conditions.

- A. Every applicant for a grading permit shall file a written application therefor with the Building Inspector. Such application shall:
- (1) Describe the land on which the proposed work is to be done by lot, block, tract or street address or similar description which will readily identify and definitely locate the proposed work.
 - (2) Be accompanied by plans and specifications prepared by a registered engineer, including a contour map showing the present contours of the land and the proposed contours of the land after completion of the proposed grading and a plan showing cross sections of the proposed cut of fill at fifty-foot intervals which show the method of benching both cut and/or fill. However, under no circumstances shall there be less than three cross sections for each site involved under said permit. In addition, a plot plan showing the location of the grading, boundaries, lot lines, neighboring streets or ways, buildings, trees over eight inches in diameter which are two feet above the ground and sufficient dimensions and other data to show the location of all work; a description of the type and classification of the soil; details and locations of any proposed drainage structures and pipes, walls and cribbing; the nature of fill material and such other information as the Engineer may require to carry out the purposes of this chapter. All plans shall be dated and bear the name and seal of the registered professional engineer who prepared the same; the name of the applicant; and the name of the owner of the land. Plans shall be submitted in triplicate, one set of which shall be of a reproducible nature.
 - (3) State the estimated dates for the starting and completion of the grading work.
 - (4) State the purpose for which the grading application is filed.
- B. Where, owing to special circumstances and conditions, compliance with the provisions of this chapter would result in unnecessary hardship, Council may make special reasonable exceptions thereto as

will not be contrary to the public interest and may impose such conditions as it deems necessary to adequately protect the public interest.

§ 99-6. Approval or disapproval of application; bond; fees; escrow.

- A. The Building Inspector shall receive all applications and shall collect all fees. The Building Inspector shall transmit all applications to the Borough Engineer who shall indicate his approval thereon. The Borough Engineer shall provide findings and determinations in writing to the Building Inspector within 10 working days of receipt.
- B. Before issuance of a grading permit, all applicants who have applied for a permit for excavation, grading or fill the sum of which equals or exceeds 300 cubic yards shall post a bond, with corporate surety, or other approved security in the amount of 100% of the estimated cost of the grading work to guarantee the completion of said work, including slope treatment and drainage contemplated under the permit. Such bond shall be executed by a corporate surety, as well as by the principal, and shall be subject to the approval of the Borough Solicitor as to form. The bond shall inure to the benefit of the Borough and be conditioned upon the faithful performance of the work required under the terms and conditions of the grading permit to the satisfaction of the Borough Engineer. In lieu of such bond, a cash deposit or a certified check in the same amount may be made with the Borough Treasurer. The estimated cost of the grading work to be done on which the bond shall be calculated must be prepared by a professional engineer registered in the Commonwealth of Pennsylvania and should be attached to the application.
- C. Before issuance of a grading permit, all applicants who have applied for a permit for excavation, grading or fill the sum of which is less than 300 cubic yards shall post a bond, with corporate surety, or other approved security in the amount of 25% of the estimated cost of the grading work to guarantee the completion of said work, including slope treatment and drainage contemplated under the permit. Such bond shall be executed by a corporate surety, as well as by the principal, and shall be subject to the approval of the Borough Solicitor as to form. The bond shall inure to the benefit of the Borough and be conditioned upon the faithful performance of the work required under the terms and conditions of the grading permit to the satisfaction of the Borough Engineer. In lieu of such bond, a cash deposit or a certified check in the same amount may be made with the Borough Treasurer. The estimated cost of the grading work to be done on which the bond shall be calculated must be prepared by a professional engineer registered in the Commonwealth of Pennsylvania and should be attached to the application.
- D. Before issuing a grading permit, the Building Inspector shall collect a permit fee based upon the volume of material to be graded, as follows:

Volume of Material (cubic yards)	Fee
Not more than 100	\$25
More than 100, but not more than 300	\$30
More than 300, but not more than 500	\$35
More than 500, but not more than 1,000	\$40
More than 1,000, but not more than 10,000	\$40, plus \$3 for each additional 1,000 cubic yards or portion thereof above 1,000 cubic yards

**Volume of Material
(cubic yards)****Fee**

More than 10,000, but not more than 100,000

\$70, plus \$1 for each additional 1,000 cubic yards or portion thereof above 10,000 cubic yards

More than 100,000

\$160, plus \$0.50 for each additional 1,000 cubic yards or portion thereof above 100,000 cubic yards, except that no fee shall be more than \$600

- E. In addition, before issuing a grading permit, the Building Inspector shall require an escrow account to be established by the person proposing to perform the grading in an amount established by the Borough Engineer. Said amount shall not be less than \$50 nor more than 2 1/2% of the estimated grading and improvement cost.
- F. When calculating the volume of material for purposes of this chapter, the volume of material shall be considered cumulatively with regard to prior applications relative to the property. Thus, if grading, excavation or fill work has been performed on a property, the volume of material shall be the sum of all grading excavation or fill work previously performed as well as the sum of the grading, excavation and fill work which is currently under consideration.

§ 99-7. Expiration of permit; extension of time limit.

Every grading permit shall expire by limitation and become null and void if the work authorized by such permit has not been commenced within three months or is not completed within one year from the date of issue, provided that the Borough Council, acting upon the recommendation of the Borough Engineer, may, if the permit holder presents satisfactory evidence that unusual difficulties have prevented work being started or completed within the specified time limits, grant a reasonable extension of time, and provided further that the application for the extension of time is made before the date of expiration of the permit.

§ 99-8. Denial of permit; appeals.

- A. Where, in the opinion of the Borough Engineer, the work as proposed by the applicant is likely to endanger any property or person or any street or alley or create hazardous conditions, he shall deny the grading permit. In determining whether the proposed work is likely to endanger property or streets or alleys or create hazardous conditions, the Borough Engineer shall give due consideration to possible saturation by rains, earth movements, runoff surface waters and subsurface conditions such as the stratification and faulting of rock, aquifers, springs and the nature and type of the soil or rock.
- B. The Council of the Borough shall consider promptly appeals from the provisions of this chapter or from the determinations of the Borough Engineer, and the Council shall make determinations of alternate methods, standards or materials when, in its opinion, strict compliance with the provisions of this chapter is unnecessary. Any applicant or permit holder shall have the right to appeal to any court of competent jurisdiction from any decision or determination of the Council of the Borough.

§ 99-9. Inspections; plans to be maintained at site.

- A. The Borough Engineer shall, when contacted by the permit holder as required in this chapter, make the inspections hereinafter required and shall either approve that portion of the work which has been completed or notify the permit holder wherein the same fails to comply with the provisions of this

chapter. Where it is found by inspection that the soil or other conditions are not as stated or shown in the application, the Borough Engineer may refuse to approve further work until approval is obtained for a revised grading plan conforming to existing conditions.

- B. Plans for grading work bearing the stamp of approval of the Borough Engineer shall be maintained at the site during the progress of the grading work and until the work has been approved.
- C. The permit holder shall notify the Borough Engineer in order to obtain inspections in accordance with the following schedule and at least 24 hours before the inspection is to be made. The permit holder shall notify the Borough Engineer at least five working days before the final inspection is to be made.
 - (1) Initial inspection. When work on the excavation or fill is about to be commenced.
 - (2) Rough grading. When all rough grading has been completed.
 - (3) Drainage facilities. When drainage facilities are to be installed and before such facilities are backfilled.
 - (4) Special structures. When excavations are complete for retaining and crib walls and when reinforcing steel is in place and before concrete is poured.
 - (5) Final inspection. When all work, including the installation of all drainage and other structures, has been completed.
- D. If at any state of the work the Borough Engineer shall determine by inspection that the nature of the formation is such that further work as authorized by an existing permit is likely to endanger property or streets or alleys or create hazardous conditions, the Borough may require as a condition to allowing the work to be done that such reasonable safety precautions are taken as the Borough Engineer considers advisable to avoid such likelihood of danger. Safety precautions may include, but shall not be limited to, specifying a flatter exposed slope, construction of additional drainage facilities, berms, terracing, compaction or cribbing.
- E. Upon conclusion of the work but prior to final inspection by the Borough Engineer, the professional engineer who designed the grading plan shall sign and stamp the work guaranteeing that the work has been performed in accordance with the submitted and approved plans. Further, the professional engineer who signed and stamped the work referred to above must show any changes on the drawings that differed from the approved plans.
- F. Upon conclusion of the work but prior to final inspection by the Borough Engineer, all applicants who have applied for a permit for excavation, grading or fill the sum of which equals or exceeds 300 cubic yards shall have a professional engineer validate, through submission of a signed and stamped document to the Borough Engineer that any fill material used for a validly permitted project has been compacted within the ranges established through moisture density testing (using either standard or modified proctor). All tests must be performed by an accredited laboratory that possesses the necessary state or federal certifications.
- G. The Borough Engineer shall not proceed with the final inspection and shall not grant authority to release any performance bond until the items required under this chapter prior to final inspection are provided to him.
- H. Following final inspection, all applicants who have applied for a permit for excavation, grading or fill the sum of which equals or exceeds 300 cubic yards shall be required to post a two-year maintenance bond with corporate surety, or other approved security in the amount of 100% of the estimated cost

of maintaining said work, including slope treatment and drainage contemplated under the permit. Such bond shall be executed by a corporate surety, as well as by the principal, and shall be subject to the approval of the Borough Solicitor as to form. The bond shall inure to the benefit of the Borough and be conditioned on the maintenance of the work performed under the terms and conditions of the grading permit to the satisfaction of the Borough Engineer. In lieu of such bond, a cash deposit or a certified check in the same amount may be made with the Borough Treasurer. The estimated cost of the maintenance work on which the bond shall be calculated must be prepared by a professional engineer registered in the Commonwealth of Pennsylvania and should be reviewed by the Borough Engineer.

§ 99-10. Excavation standards.

- A. No excavation shall be made with a cut face steeper in slope than one vertical to 1 1/2 horizontal, except under one or more of the following conditions:
- (1) The excavation is located so that a line having a slope of one vertical to 1 1/2 horizontal and passing in any portion of the plane of the cut face will be entirely inside a line three feet inside the property lines of the property on which the excavation is made.
 - (2) The material in which the excavation is made is sufficiently stable to sustain a slope of steeper than one vertical to 1 1/2 horizontal, and a written statement of a civil engineer, licensed by the Commonwealth of Pennsylvania and experienced in erosion control, to that effect is submitted to the Borough Engineer and approved by him. The statement shall state that the site has been inspected and that the deviation from the slope specified above will not result in injury to persons or damage to property.
 - (3) A retaining wall or other approved support design by a registered engineer and approved by the Borough Engineer is provided to support the face of the excavation and prevent injury to persons or damage to property.
- B. The Engineer may require an excavation to be made with a cut face flatter in slope than one vertical to 1 1/2 horizontal if he finds the material in which the excavation is to be made unusually subject to erosion, or if other conditions exist which make such flatter-cut slope necessary for stability and safety.
- C. Excavations shall not extend below the angle of repose or natural slope of the soil under the nearest point of any footing or foundation of any building or structure unless such footing or foundation is first properly underpinned or protected against settlement.
- D. Before commencing any excavation which will in any way affect an adjoining property or structures thereon, the person making or causing the excavation to be made shall notify in writing the owners of the adjacent property or buildings not less than 30 days before such excavation is to be made that the proposed excavation is to be started. Adjoining properties and structures shall be protected as provided in the Borough Building Code³¹ as is then on file in the office of the Building Inspector and/or as required by the Engineer.

§ 99-11. Fill standards.

- A. No fill shall be made in a residentially zoned area of the Borough or with an exposed face adjacent to such a district which creates a slope steeper than one vertical to two horizontal. Fill slopes in lower

31. Editor's Note: See Ch. 74, Building Construction, and Ch. 83, Construction Codes, Uniform.

zoned districts shall not be steeper than one vertical to 1 1/2 horizontal, except under one or more of the following conditions:

- (1) The fill, in the opinion of the Borough Engineer, is located so that settlement, sliding or erosion of the fill material will not result in property damage or be a hazard to adjoining property, streets, ways or buildings.
 - (2) A written statement from a civil engineer, licensed by the Commonwealth of Pennsylvania and experienced in soil engineering, certifying that he has inspected the site and that the proposed deviation from the standard specified slopes will not endanger any property or result in personal hazard or property damage is submitted to and approved by the Engineer.
- B. In issuing permits, the Borough, on the advice and recommendation of the Borough Engineer, may impose conditions requiring that a fill be constructed with an exposed surface flatter than 1 1/2 horizontal to one vertical if the Borough Engineer advises that under the particular circumstances involved, such flatter surface is necessary for stability and for the safety of persons and property.
- C. Whenever a fill is to be made of materials other than clean soil or earth, the grading permit shall be subject to the following additional limitations and requirements:
- (1) The fill shall be completed within a reasonable length of time as determined by the Engineer and so specified on the grading permit.
 - (2) Clean soil or earth shall be placed over the top and exposed surfaces of the fill to a depth sufficient to effectively conceal all materials used in the fill other than clean soil or earth. If the filling operation is intermittent, the Engineer may require that the top and exposed surfaces of the fill are so covered at the completion of each lift.
 - (3) No fill of any kind shall be placed over trees, stumps or other material which could create a nuisance or be susceptible to attracting rodents, termites or other pests.
 - (4) No grading permit shall be issued for the filling of materials other than clean soil or earth until the performance bond referenced in § 99-6B above is posted. Such bond shall be executed by a corporate surety, as well as by the principal, and shall be subject to the approval of the Borough Solicitor as to form. The bond shall insure to the benefit of the Borough and be conditioned upon the faithful performance of the work required under the terms and conditions of the grading permit to the satisfaction of the Borough Engineer. In lieu of such bond, a cash deposit or a certified check in the same amount may be made with the Borough Treasurer.

§ 99-12. Compaction of fill.

- A. All fills shall be compacted to provide stability of fill material and to prevent undesirable settlement or slippage.
- B. The fill shall be installed in a series of layers each not exceeding 12 inches in thickness, and each layer shall be compacted by passing a sheep's-foot roller or other approved equipment across the layer in a minimum of four passes as the layer is spread.
- C. Pieces of rock or boulders having a thickness of more than six inches or a cross-sectional area in any plane of more than 1 1/2 square feet shall not be permitted in fills.
- D. No fill material that will support combustion shall be permitted.

- E. Where fills are placed on any existing slope greater than 5%, the toe of the fill shall be prepared by cutting a bench 10 feet wide on a reverse slope of one vertical to 10 horizontal.
- F. For fills higher than 10 feet above the toe of the proposed slope there shall be constructed benches at eight-foot intervals measured vertically from the base of the fill. Said benches shall be six feet in width and shall have a floor cut to a reverse slope of one vertical to six horizontal.
- G. The Borough Engineer, with the approval of the Borough Council, may require tests or other information if, in his opinion, the conditions or materials of fill are such that the additional information is necessary.

§ 99-13. Drainage.

- A. Adequate provisions shall be made to prevent any surface waters from damaging:
 - (1) The cut face of an excavation.
 - (2) The sloping surface of a fill.
 - (3) Adjacent property affected by the change in the existing natural runoff.
- B. Excavations cut at the normal one vertical to 1 1/2 horizontal and deeper than 10 feet from the top of the cut shall have six-foot-wide benches installed at ten-foot intervals measured from the top. Said benches shall have reverse floor slopes of one vertical to six horizontal.
- C. Excavations cut at slopes in excess of the normal set forth in Subsection B above, and deeper than 10 feet from the top of the cut, shall have similar benches installed at eight-foot intervals measured from the top.
- D. All drainage provisions shall be of such a design as to carry surface waters to the nearest practical street storm drain, storm sewer or natural watercourse, as approved by the Engineer as a safe place to deposit and receive such waters.
- E. The Borough Engineer shall require such drainage structures or pipes to be constructed or installed as may be necessary to prevent erosion damage and to satisfactorily carry off accumulated surface waters.
- F. Constructed benches in fills or cuts or at the top of slopes shall have horizontal gradients of at least 2% for the purpose of carrying off surface waters.
- G. The planting of sod, shrubs or other vegetation on slopes to prevent erosion may be required where the condition of the grading is such that planting is necessary to protect against erosion, in the opinion of the Borough Engineer.

§ 99-14. Maintenance and repair.

- A. The owner of any property on which an excavation or fill has been made shall maintain in good condition and repair the excavation or fill permitted, and also all retaining walls, cribbing, drainage structures, fences, ground cover and any other protective devices as may be a part of the permit requirements.
- B. If, at any time subsequent to the completion of the grading work, the cut face or fill slope shall evidence signs of deterioration, erosion or other evidence which might be detrimental to the properties above or below the grading site, the Borough of Baldwin Council, upon the

§ 99-14

GRADING, EXCAVATIONS AND FILL

recommendation of its Engineer, may direct the property owner to take whatever necessary remedial steps are deemed necessary to restore the grading area to a safe condition and to do so in a reasonable period of time.

- C. If, after such notification, the property owner has not made the necessary repairs within the allotted time, then the Borough Council may direct Borough employees to make the required repairs and the cost thereof shall be borne by the property owner by a lien filed as provided by law.

§ 99-15. Distance from adjacent properties; fences; cleanup; landscaping.

- A. The top or bottom edge of slopes shall be at least three feet from adjacent property lines or street right-of-way lines in order to permit the normal rounding of the edge without encroaching on the abutting property or street.
- B. At the top of all cut or fill slopes which are in excess of 1 1/2 horizontal to one vertical, and six or more feet in total height, a fence not less than four feet in height, and of a design meeting the Borough standards, shall be erected.
- C. The owner of the property being graded shall be responsible to protect and clean up lower properties of silt and debris which have washed down onto the lower properties as a result of the grading work on the high property.
- D. In order to prevent the denuding of the landscape, wherever practicable, large trees and other natural features constituting important physical, aesthetic and economic assets to existing or impending development work shall be preserved.

§ 99-16. Violations and penalties.

- A. No person shall construct, enlarge, alter, repair or maintain any grading, excavation or fill or cause the same to be done contrary to or in violation of any provision of this chapter.
- B. When written notice of a violation of any of the provisions of this chapter has been served by the Building Inspector on any person, such violation shall be discontinued immediately.
- C. Any person violating any of the provisions of this chapter shall be liable, on conviction thereof, to a penalty not exceeding \$300, plus costs of prosecution, or to imprisonment for up to 30 days for each and every offense. Whenever such person shall have been notified by the Borough Engineer by service of summons in a prosecution or in any other way that he is committing such violation after such notification shall constitute a separate offense punishable by a like fine or penalty. Such fines or penalties shall be collected as like fines or penalties are now by law collected.

§ 99-17. Other remedies.

In case any work is performed by any person in violation of any of the provisions of this chapter, the proper officer of the Borough, in addition to other remedies, may institute in the name of the Borough any appropriate action or proceeding, whether by legal process or otherwise, to prevent such unlawful work and to restrain or abate such violation.

Chapter 100**HAZARDOUS MATERIALS**

§ 100-1.	Dumping prohibited.	§ 100-3.	Duties of Borough employees; liability.
§ 100-2.	Definitions.	§ 100-4.	Costs incurred by Borough.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 4-20-1987 by Ord. No. 584. Amendments noted where applicable.]

GENERAL REFERENCES

Fire prevention — See Ch. 89.

Garbage, rubbish and refuse — See Ch. 96.

§ 100-1. Dumping prohibited.

The Borough of Baldwin does hereby prohibit the dumping of any hazardous materials or substances upon or into properties or facilities, streets, roads and alleys and other properties within the municipal boundaries of the Borough of Baldwin.

§ 100-2. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

HAZARDOUS MATERIALS OR SUBSTANCES — Any material or substance which may have a direct or identifiable effect on persons or property within the municipal boundaries of the Borough of Baldwin or any such substances or materials in a quantity or form which, in the determination of the Borough Secretary or her authorized representative, poses an unreasonable or imminent risk to the life, health or safety of persons or property or to the ecological balance of the environment, and shall include but not be limited to such substances as explosives, radioactive materials, petroleum products or gases, poisons, etiologic (biologic) agents, flammables, corrosives or materials listed in the Hazardous Substance List of the Pennsylvania Department of Labor and Industry.

§ 100-3. Duties of Borough employees; liability.

- A. The Borough of Baldwin hereby authorizes and directs its various emergency services, Borough employees or any other persons employed by the Borough for such purposes to clean up or abate or cause to be cleaned up or abated the effects of any hazardous materials or substances deposited upon or into properties or facilities within the municipal boundaries of the Borough of Baldwin, including such properties and activities as but not limited to traffic control, evacuation, relocation, substance monitoring and establishment of medical care facilities, and to recover from such persons responsible for the same all other costs incurred in the mitigation of the situation. Any person or persons who intentionally or accidentally or negligently caused such deposit shall be liable for all costs incurred by the Borough of Baldwin or incurred by the Borough in the cleanup or abatement activities.
- B. The remedy provided by this chapter shall be in addition to all other remedies provided by other laws or ordinances of the Commonwealth of Pennsylvania and the Borough of Baldwin.

§ 100-4. Costs incurred by Borough.

For purposes of this chapter, costs incurred by the Borough of Baldwin shall include, but are not limited to, actual labor cost of Borough personnel, including workers' compensation benefits, fringe benefits, administrative overhead, cost of equipment operation, cost of special fire-extinguishing agents used and cost of any contracted labor and materials and, further, any costs incurred by volunteer fire companies, emergency medical companies, the Department of Police of the Borough of Baldwin and any other agency or contractor engaged in the abating or cleaning up of the effects of any such hazardous materials or substances deposited upon or into properties, facilities, roads or streets of the Borough of Baldwin.

Chapter 102**HUNTING AND SHOOTING**

§ 102-1.	Definitions.	§ 102-3.	Exemptions.
§ 102-2.	Prohibited activities.	§ 102-4.	Violations and penalties.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 12-3-1956 by Ord. No. 116.; amended in its entirety 12-17-2019 by Ord. No. 905. Amendments noted where applicable.]

§ 102-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

BOW AND ARROW — All bows and arrows capable of causing personal injury or property damage.

FIREARM — An instrument used in the propulsion of shot, shell, bullet or any other object by the action of gun powder exploded, explosive powder or the expansion of gas therein.

§ 102-2. Prohibited activities.

- A. The use or discharge of any bow and arrow or firearm within the Borough is prohibited.
- B. It shall be unlawful at any time for any person to hunt for wild birds or wild animals of any kind or to shoot or discharge any firearm, bow and arrow, or other deadly weapon within the area of the Borough of Baldwin while engaged in the hunting of wild birds or wild animals, except for lawful hunting referred to below in § 102-3E.

§ 102-3. Exemptions.

The provisions of this chapter shall not apply to the following uses or activities involving firearms and/or bows and arrows where otherwise legal:

- A. Authorized law enforcement officers acting in their line of duty or in training.
- B. Discharging of firearms in the defense of persons or property.
- C. Discharging of firearms or bow and arrow by members of a duly organized gun, rifle or archery club, or their bona fide guests, or of military organizations, upon the ranges of such clubs or organizations under the control and supervision of the duly constituted officers of such clubs or organizations, or by the patrons of commercial ranges.
- D. Firearm or archery instruction operated by a civic or school program, or an organization incorporated under the laws of the commonwealth, upon the grounds or property belonging to or under the control of such organization.
- E. Any person licensed to hunt in this commonwealth and lawfully engaged in hunting and regulated by the Pennsylvania Game and Wildlife Code, 34 Pa.C.S.A. § 101 et seq.

§ 102-4. Violations and penalties.

Any person, firm or corporation who shall violate any provision of this chapter shall be subject to prosecution before a Magisterial District Judge and, upon conviction, shall be fined not more than \$500 plus costs, and in default of payment of said fine and costs, to a term of imprisonment not to exceed 30 days. Each day that a violation occurs or is committed shall constitute a separate offense.

BALDWIN CODE

Chapter 103

INSURANCE

ARTICLE I
Fire Insurance Claims

- § 103-1. **Designated officer.**
§ 103-2. **Municipal certificate required.**

- § 103-3.
§ 103-4.

- § 103-5.

- Claims payment procedure.**
Establishment of procedures
and fees.
Violations and penalties;
jurisdiction.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin as indicated in article histories. Amendments noted where applicable.]

ARTICLE I

Fire Insurance Claims**[Adopted 9-22-2009 by Ord. No. 821³²]****§ 103-1. Designated officer.**

The Borough Manager of Baldwin Borough or such official's designee is hereby appointed as the designated officer who is authorized to carry out all responsibilities and duties stated herein.

§ 103-2. Municipal certificate required.

No insurance company, association or exchange (hereinafter the "insuring agent") doing business in the Commonwealth of Pennsylvania shall pay a claim of a named insured for fire damage to a structure located within the Borough of Baldwin (hereinafter the "municipality") where the amount recoverable for the fire loss to the structure under all policies exceeds \$5,000, unless the insurance agent is furnished by the Municipal Treasurer, Tax Collector, or Borough Manager with a municipal certificate pursuant to Section 508(b) of Act 98 of 1992³³ and unless there is compliance with Section 508(c) and (d) of Act 98 of 1992³⁴ and the provisions of this article.

§ 103-3. Claims payment procedure.

Where pursuant to Section 508(b)(1)(i) of Act 98 of 1992,³⁵ the Municipal Treasurer, Tax Collector or Borough Manager issues a certificate indicating that there are not delinquent taxes, assessments, penalties or user charges against real property, the insuring agent shall pay the claim of the named insured; provided, however, that if the loss agreed upon by the named insured and the insuring agent equals or exceeds 60% of the aggregate limits of liability on all fire policies covering the building restructure, the following procedure must be followed:

- A. The insuring agent shall transfer from the insurance proceeds to the designated officer of the municipality in the aggregate of \$1,000 for each \$20,000 of a claim and for each fraction of that amount of a claim, this section to be applied such that if the claim is \$20,000 or less, the amount transferred to the municipality shall be \$1,000; or
- B. If, at the time of a proof of loss agreed to between the named insured and the insuring agent, the named insured has submitted a contractor's signed estimate of the costs of removing, repairing or securing the building or other structure, the insuring agent shall transfer to the municipality from the insurance proceeds the amount specified in the estimate.
- C. The transfer or proceeds shall be on a pro rata basis by all companies, associations or exchanges insuring the building or other structure.
- D. After the transfer, the named insured may submit a contractor's signed estimate of the costs of removing, repairing or securing the building or other structure, and the designated officer shall return the amount of the funds transferred to the municipality in excess of the estimate to the named insured, if the municipality has not commenced to remove, repair or secure the building or other structure.

32. Editor's Note: This ordinance superseded former Art. I, Fire Insurance Claims, adopted 1-18-1993 by Ord. No. 654, as amended.

33. Editor's Note: See 40 P.S. § 638(b).

34. Editor's Note: See 40 P.S. § 638(c) and (d).

35. Editor's Note: See 40 P.S. § 638(b)(1)(i).

E. Upon receipt of proceeds under this section, the municipality shall do the following:

- (1) The designated officer shall place the proceeds in a separate fund to be used solely as security against the total costs of removing, repairing, or securing the building or structure which are incurred by the municipality. Such costs shall include, without limitation, any engineering, legal or administrative cost incurred by the municipality in connection with such removal, repair or security of the building or any proceedings related thereto; and
- (2) It is the obligation of the insuring agent when transferring the proceeds to provide the municipality with the name and address of the named insured. Upon receipt of the transferred funds and the name and address of the named insured, the designated officer shall contact the named insured, certify that the proceeds have been received by the municipality and notify the named insured that the procedures under the subsection shall be followed; and
- (3) When repairs, removal or securing of the building or other structure has been completed in accordance with all applicable regulations and orders of the municipality and the required proof of such completion received by the designated officer, and if the municipality has not incurred any costs for repairs, removal or securing, the fund shall be returned to the named insured. If the municipality has incurred costs for repairs, removal or securing of the building or other structure, the costs shall be paid from the fund, and if excess funds remain, the municipality shall transfer the remaining funds to the named insured; and
- (4) To the extent that interest is earned on proceeds held by the municipality pursuant to this section, and not returned to the named insured, such interest shall belong to the municipality. To the extent that proceeds are returned to the named insured, interest earned on such proceeds shall be distributed to the named insured at the time that proceeds are returned.
- (5) Nothing in this section shall be construed to limit the liability of the municipality to recover any deficiency. Furthermore, nothing in the subsection shall be construed to prohibit the municipality and the named insured from entering into an agreement that permits the transfer of funds to the named insured if some other reasonable disposition of the damaged property has been negotiated.

§ 103-4. Establishment of procedures and fees.

The Borough Council of Baldwin may, by resolution, adopt procedures and regulations to implement Act 98 of 1992³⁶ and this article and may by resolution fix reasonable fees to be charges for municipal activities or services provided pursuant to Act 98 of 1992 and this article, including but not limited to issuance of certificates and bills, performance of inspections and operating separate fund accounts.

§ 103-5. Violations and penalties; jurisdiction.

Any owner of property, any named insured or any insuring agent who violates this article shall be subject to a penalty of up to \$1,000 per violation. Original jurisdiction regarding any violations of this article shall be with the District Magistrate.

36. Editor's Note: See 40 P.S. § 636 et seq.

Chapter 105**JUNKYARDS AND JUNK DEALERS**

§ 105-1.	Definitions; word usage.	§ 105-7.	Property to be retained for minimum period.
§ 105-2.	License required; fee.	§ 105-8.	Maintenance of premises; hours of operation.
§ 105-3.	Issuance and display of license.	§ 105-9.	Violations and penalties.
§ 105-4.	Restrictions on business.		
§ 105-5.	Transfer of license.		
§ 105-6.	Keeping of records.		

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 12-18-1961 by Ord. No. 230. Amendments noted where applicable.]

GENERAL REFERENCES

Garbage, rubbish and refuse — See Ch. 96.

§ 105-1. Definitions; word usage.

- A. As used in this chapter, the following terms shall have the meanings indicated:

JUNK — Any discarded material or article such as is not ordinarily disposed of as rubbish or refuse and shall include, but is not limited to, scrap metal and scrapped motor vehicles and shall not include any garbage or other organic waste or any papers, rubbish, rags or other flammable article or material or new motor vehicle parts or used serviceable motor vehicle parts which have been removed from a motor vehicle or motor vehicles and placed in a stack of merchandise for sale.**[Amended 4-22-1963 by Ord. No. 248]**

JUNK DEALER — Any person, as hereinafter defined, who shall engage in the business of selling, buying and dealing in junk.

PERSON — Any natural person, partnership, firm or corporation.

- B. In this chapter, the singular shall include the plural and the masculine shall include the feminine and the neuter.

§ 105-2. License required; fee.

No person shall engage in business as a junk dealer in the Borough of Baldwin without first having obtained a license from the Borough Secretary, for which license the fee shall be \$120 for each and every calendar year, such fee to be for the use of the Borough. Such license shall be renewed annually on or before the first day of January of each year, provided that in any case where a junk dealer's business shall be established in the Borough on or after the first day of July in any year, the license fee payable by such junk dealer for the remainder of such year shall be at 1/2 the yearly rate.

§ 105-3. Issuance and display of license.

The license provided for in § 105-2 of this chapter shall be issued by the Borough Secretary after application shall have been made therefor by the person desiring to be licensed. Such license shall state the name of the person to whom such license is issued and the premises from which such business is to be conducted. Such license shall be posted conspicuously upon the premises licensed thereunder. The name of the licensed junk dealer and the number of the license under which he operates shall be placed in a conspicuous place on the outside of every vehicle used for business purposes by such dealer.

§ 105-4. Restrictions on business.

No person licensed under this chapter shall, by virtue of one license, keep more than one place of business within the Borough of Baldwin for the purpose of buying, selling and dealing in junk nor shall any such person engage in business as a junk dealer in any place other than the place designated upon his license nor shall any such person or any other person operate upon any of the streets of the Borough, whether from a vehicle or upon foot, as a scavenger or an itinerant buyer or seller of junk.

§ 105-5. Transfer of license.

No license issued under this chapter shall be transferable from one person to another person, except when the ownership of a licensed premises shall change. In any such case, the new owner shall apply for a transfer of such license to him and shall pay a transfer fee of \$10.

§ 105-6. Keeping of records.

Every junk dealer shall constantly keep a permanent written record which shall contain the time of the purchase of any junk, a description of every article or material purchased or received by him, the date and hour of such purchase or receipt, and the person from whom such article or material was purchased or received. Such book and all junk purchased, received or handled by any junk dealer shall at all times be subject to the inspection of the Chief of Police and any other official of the Borough of Baldwin.

§ 105-7. Property to be retained for minimum period.

Every junk dealer licensed under this chapter shall keep and retain upon the licensed premises, for a period of 48 hours after the purchase or receipt thereof, all junk received or purchased by him, and he shall not disturb or reduce the same or alter the original shape, form or condition until such period of 48 hours shall have elapsed.

§ 105-8. Maintenance of premises; hours of operation.

Every junk dealer licensed under this chapter shall constantly maintain the licensed premises in the manner prescribed by this section as follows:

- A. Such premises shall at all times be maintained so as not to constitute a nuisance or a menace to the health of the community or of residents nearby or a place for the breeding of rodents and vermin.
- B. No garbage or other organic waste, and no paper, rubbish, rags or other flammable articles or materials shall be stored in such premises.
- C. Whenever any motor vehicle shall be received in such premises as junk, all gasoline and oil shall be drained and removed therefrom, and none shall be permitted to remain upon the premises.

§ 105-8

BALDWIN CODE

- D. The manner of storage and arrangement of junk and the drainage facilities of the premises shall be such as to prevent the accumulation of stagnant water upon the premises and to facilitate access for fire-fighting purposes.
- E. No work shall be done on such premises in connection with the storage, dismantling, processing, transporting or removal of junk, nor shall such premises be open for business for the purchase or sale of junk at any time on the first day of the week, commonly called Sunday, or on any other day of the week before 7:00 a.m. or after 6:00 p.m. **[Amended 4-22-1963 by Ord. No. 248]**
- F. The junkyard, salvage yard or other places used and maintained for the collection, storage and disposal of used and secondhand goods and materials shall be confined to an area enclosed by a tightly built solid fence or wall constructed of wood, brick, stone, concrete, cement block or other similar matter or materials which shall be of a minimum height of eight feet.
- G. No advertising of any nature shall be displayed on the enclosure, fence or wall.

§ 105-9. Violations and penalties. [Amended 12-19-1985 by Ord. No. 566]

Any person who shall violate any of the provisions of this chapter shall, upon conviction thereof, be sentenced to pay a fine of not more than \$300 and costs of prosecution or imprisoned for up to 30 days. Each day's violation of any of the provisions of this chapter shall constitute a separate offense.

Chapter 109**LEASING OF PROPERTY**

§ 109-1.	Furnishing of names and addresses required; certification fee.	§ 109-2.	Violations and penalties.
		§ 109-3.	Posting and notice of provisions.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 5-21-1973 by Ord. No. 437. Amendments noted where applicable.]

GENERAL REFERENCES

Rental property registration — See Ch. 133, Art. I.

§ 109-1. Furnishing of names and addresses required; certification fee. [Amended 7-15-2002 by Ord. No. 770]

- A. Every person, firm or corporation owning or managing any residential property within the Borough of Baldwin which is rented, in whole or in part, to one or more persons shall certify to the Borough, for each rental property address, the name, mailing address and telephone number of the owner and all of the tenants occupying the rental property.
- B. Certifications shall be made on or before January 31, annually, on rental property information forms that may be obtained, upon request, at the Borough Municipal Building.
- C. The annual certification shall be accompanied by a filing fee, which shall be initially established at a fee of \$10 to cover the administrative costs of the Borough relating to the identification of renters for public safety, emergency, garbage, sewer and tax purposes. If a change in tenant's occupancy occurs midyear, the owner shall provide to the Borough the new tenant information within 15 days of the change occurring but shall not be subject to a new filing fee except at the annual certification.
- D. Borough Council may amend the amount of the fee in a fee resolution from time to time.
- E. Any person, firm or corporation owning any residential rental property within the Borough of Baldwin who fails to certify the names and mailing addresses of the tenants to the Borough of Baldwin, or fails to cause their agent or management corporation to file such a certification, shall also be liable for all unpaid, nonlienable Borough services provided to the property until the person owning the property complies with the requirements of Subsections A through C of this section hereinabove listed.

§ 109-2. Violations and penalties. [Amended 3-19-1984 by Ord. No. 541; 12-19-1985 by Ord. No. 566; 7-15-2002 by Ord. No. 770]

Any person, partners or principal officers of any firm or such officer responsible for the performance of the duties required in this chapter or the chief executive officer of such corporation violating any of the provisions of this chapter shall, upon conviction thereof before any District Magistrate, be fined not less than \$50 not more than \$600 for each offense together with any costs of the proceedings against the person.

§ 109-3. Posting and notice of provisions.

In addition to the normal advertising requirements of law, a copy of this chapter will be posted in the lobby of the Borough Building for a period of 30 days, and the Secretary of the Borough shall give written notice of the contents of this chapter to all rental agencies and real estate agencies in the Borough of Baldwin, South Hills Multi-List, Inc., and to any and all other real estate agencies situate outside the Borough of Baldwin but known to be leasing or renting properties on behalf of owners, which property is located in the Borough of Baldwin.

MANHOLES

Chapter 112

MANHOLES

ARTICLE I
Work Affecting Manholes

§ 112-6. Violations and penalties.

ARTICLE II
Opening or Entering Manholes

- | | | | |
|----------|-------------------------------------|----------|---------------------------|
| § 112-1. | Permit required. | | |
| § 112-2. | Permit fee; issuance of permit. | | |
| § 112-3. | Conduct of work; restoration. | § 112-7. | Definitions. |
| § 112-4. | Bond or cash deposit required. | § 112-8. | Required precautions. |
| § 112-5. | Failure to comply; work by Borough. | § 112-9. | Violations and penalties. |

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin as indicated in article histories. Amendments noted where applicable.]

GENERAL REFERENCES

Sewers — See Ch. 134.	Street openings and excavations — See Ch. 139, Art. I.
-----------------------	--

ARTICLE I

Work Affecting Manholes
[Adopted 9-19-1957 by Ord. No. 136]**§ 112-1. Permit required.**

Any person, firm or corporation desiring to alter and grade any property in such a way as to affect the elevation of any manhole located in a publicly dedicated easement in the Borough of Baldwin or affect any such manhole in any respect shall, prior to such action, make application to the Borough Council in writing for a permit to perform the work which may affect the elevation of any such manhole or affect any such manhole in any other manner. The said written application shall indicate thereon the name of the street, highway or road and the place at which the digging or opening will take place or the location and type of work about to be performed which may so affect any such manhole.

§ 112-2. Permit fee; issuance of permit.

Upon payment of a fee of \$5 by the applicant for the said permit, the Borough Council, if it shall find that the terms of this article have been complied with, may issue said permit to the applicant, which permit shall indicate thereon the name of the street, highway or road and the place at which the digging or opening will take place or the location and type of work about to be performed which may so affect any such manhole.

§ 112-3. Conduct of work; restoration.

Any person, firm or corporation receiving a permit for the altering of any grade of any property which may affect the elevation of any manhole located in a publicly dedicated easement in the Borough of Baldwin or affect any such manhole in any other way shall take proper precautions for the proper elevation and construction of any such manhole so that the manhole is raised or lowered to accord with the altered grade, all at the expense of the person, firm or corporation doing the work. Such person, firm or corporation shall restore the surface of any publicly dedicated easement to a condition substantially the same as it was before the surface was disturbed in order to change the elevation of or otherwise alter any manhole located therein.

§ 112-4. Bond or cash deposit required.

Any person, firm or corporation, prior to the issuance of any permit provided for in this article, shall deposit with the Borough Secretary a bond in proper form approved by the Borough Solicitor in a sum of not less than \$1,000 conditioned for the faithful compliance with the terms of this article. In lieu of the said bond, said person, firm or corporation may, on approval of the Borough Secretary, deposit cash in the amount of \$100 as security for the compliance with the terms of this article.

§ 112-5. Failure to comply; work by Borough.

Should any person, firm or corporation, after having altered the surface of any property so as to interfere with the elevation or otherwise affect any manhole located in a publicly dedicated easement of said Borough, fail, neglect or refuse to comply with the terms of this article or the instructions or directions of the Borough Council or Building Inspector pertaining to the said work, the proper Borough officials shall proceed to have the street, road or easement placed in proper condition at the cost of the person, firm or corporation to whom the permit was issued, said cost to be deducted from the cash deposited aforesaid or, in the event of a bond, the cost is to be billed to the person, firm or corporation. Under failure to pay, the Solicitor shall be authorized and directed to proceed on the bond for the collection of any amount due.

§ 112-6. Violations and penalties. [Amended 12-19-1985 by Ord. No. 566]

Any person, firm or corporation who shall violate any of the provisions of this article shall, upon conviction thereof, be sentenced to pay a fine of not less than \$300 and the costs of prosecution or be imprisoned for up to 30 days.

ARTICLE II
Opening or Entering Manholes
[Adopted 4-17-1961 by Ord. No. 220]

§ 112-7. Definitions.

When the following words or phrases are used in this article, the following definitions shall apply:

ENTERING MANHOLE — The act of removal of a manhole cover and entrance into the manhole for any reason.

MANHOLE — An underground cavity containing public utility facilities with access to same accomplished by the removal of a manhole cover at the street, sidewalk or street level.

§ 112-8. Required precautions.

No person, firm or corporation, nor any employee thereof, shall remove or cause to be removed or ordered to be removed a manhole cover and enter or cause to be entered or order another person to enter such manhole within the Borough of Baldwin for any purpose without requiring another person to stand guard in the immediate vicinity of said manhole.

§ 112-9. Violations and penalties. [Amended 12-19-1985 by Ord. No. 566]

Any person, firm or corporation, or any employee thereof, who violates the provisions of this article shall be liable, upon conviction thereof, to a fine or penalty not exceeding \$300 plus costs of prosecution or to imprisonment for up to 30 days for each offense.

Chapter 116**MASSAGE PARLORS**

§ 116-1.	Definitions.	§ 116-3.	Exceptions.
§ 116-2.	Prohibited acts.	§ 116-4.	Violations and penalties.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 10-16-1978 by Ord. No. 490. Amendments noted where applicable.]

GENERAL REFERENCES

Pornography — See Ch. 130.

§ 116-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

LEWDNESS — Tending to excite lust; lewd; indecent; obscene; or sexual impurity.

NUDITY — The showing of the human male or female genitals, pubic area or buttocks with less than a fully opaque covering or the showing of the female breasts with less than a fully opaque covering or the showing of covered genitals in a discernibly turgid state.

PERSON — Includes the singular and the plural and shall mean any person, individual, firm, partnership, association, corporation, company or organization of any kind.

SEXUAL CONDUCT — Acts of masturbation, homosexuality, sexual intercourse or physical contact with a person's clothed or unclothed genitals, pubic area, buttocks or breasts.

SEXUAL EXCITEMENT — The condition of human male or female genitals when in a state of sexual stimulation or arousal.

§ 116-2. Prohibited acts.

No person shall own, operate or maintain any massage parlor or model studio open to the public which as a regular course of business is used for the purposes of lewdness, assignation or prostitution or which shall engage in providing massages, body rubs or other bodily stimulations by any means if such massages, body rubs or other bodily stimulations, whether by direct contact or by the performance of any act, includes nudity, sexual conduct or sexual excitement by any party.

§ 116-3. Exceptions.

The provisions of this chapter shall not apply to massage treatments given:

- A. In the office of a licensed physician, osteopath or chiropractor.
- B. In a regularly established medical center, hospital or sanitarium.
- C. In a residence of a person under a doctor's care, by the direction of the doctor.

§ 116-3

MASSAGE PARLORS

D. Upon the written order of a licensed physician, osteopath or chiropractor.

§ 116-4. Violations and penalties. [Amended 12-19-1985 by Ord. No. 566]

Any person who shall violate any provision of this chapter shall be fined a sum not exceeding \$300 plus costs of prosecution or imprisoned for up to 30 days. Each day that such violation is committed or permitted to continue shall constitute a separate offense and shall be punishable as such hereunder.

BALDWIN CODE

Chapter 119

MINING

§ 119-1. Prohibited acts.

§ 119-2. Violations and penalties.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 1-20-1955 by Ord. No. 67. Amendments noted where applicable.]

GENERAL REFERENCES

Grading, excavations and fill — See Ch. 99.

Natural gas extraction — See Ch. 121.

§ 119-1. Prohibited acts.

All mining or recovery of coal or other minerals of all types, except for water, by strip mining or otherwise that disturbs the surface of land upon which any mining may be conducted is hereby prohibited within the Borough of Baldwin.

§ 119-2. Violations and penalties. [Amended 12-19-1985 by Ord. No. 566]

Any person, firm, corporation or partnership who violates any provision of this chapter shall, upon conviction thereof, be subject to a fine not to exceed \$300 plus costs of prosecution or imprisonment for up to 30 days. Each day that a violation is permitted to exist shall constitute a separate offense.

Chapter 121**NATURAL GAS EXTRACTION**

§ 121-1.	Findings and intent.	§ 121-6.	Effective date and existing DEP permit holders.
§ 121-2.	Definitions.		
§ 121-3.	Statements of law.	§ 121-7.	People's right to self-government.
§ 121-4.	Statements of law.		
§ 121-5.	Enforcement.		

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 6-21-2011 by Ord. No. 838. Amendments noted where applicable.]

§ 121-1. Findings and intent.

- A. The Borough Council of Baldwin finds that the commercial extraction of natural gas in Baldwin Borough violates the rights of residents and neighborhoods and poses a significant threat to their health, safety and welfare. Moreover, widespread environmental and human health impacts have resulted from commercial gas extraction in other areas. Regulating the activity of commercial gas extraction automatically means allowing commercial gas extraction to occur within the Borough, thus violating the rights of residents and neighborhoods and endangering their health, safety and welfare by allowing the deposit of toxins into the air, soil, water, environment and the bodies of residents within our Borough.
- B. Meaningful regulatory limitations and prohibitions concerning Marcellus Shale natural gas extraction, along with zoning and land use provisions, are barred because they conflict with certain legal powers claimed by resource extraction corporations. The Borough Council recognizes that environmental and economic sustainability cannot be achieved if the rights of municipal majorities are routinely overridden by corporate minorities claiming certain legal powers. The Borough Council also recognizes that sustainability cannot be achieved within a system of preemption which enables those corporations to use state governments to override local self-government and which restricts municipalities to only that lawmaking specifically authorized by state government.
- C. The Borough Council believes that the protection of residents, neighborhoods and the natural environment constitutes the highest and best use of the police powers that this municipality possesses. The Borough Council also believes that local legislation that embodies the interests of the community is mandated by the doctrine of the consent of the governed and the right to local, community self-government. Thus, the Borough Council hereby adopts this chapter, which establishes a bill of rights for the residents and communities of the Borough; bans commercial extraction of Marcellus Shale natural gas within Baldwin Borough because that extraction cannot be achieved without violating the rights of residents and communities or endangering their health, safety and welfare; removes certain legal powers from gas extraction corporations operating within Baldwin Borough; and nullifies state laws, permits and other authorizations which interfere with the rights secured by this chapter.

§ 121-2. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

CORPORATIONS — For purposes of this chapter, shall include any corporation, limited partnership, limited-liability partnership, business trust, or limited-liability company organized under the laws of any state of the United States or under the laws of any country, and any other business entity that possesses state-conferred limited liability attributes for its owners, directors, officers and/or managers.

EXTRACTION — The digging or drilling of a well for the purposes of exploring for, developing or producing natural gas or other hydrocarbons, whether either the well site, or any part of the piping or well or removal process is located on or under the geographic boundaries of the Borough of Baldwin on either the surface or underground.

NATURAL GAS — Any gaseous substance, either combustible or noncombustible, which is produced in a natural state from the earth and which maintains a gaseous or rarified state at standard temperature or pressure conditions, and/or gaseous components or vapors occurring in or derived from petroleum or natural gas.

§ 121-3. Statements of law.

Rights of Baldwin residents and the natural environment:

- A. Right to water. All residents, natural communities and ecosystems in Baldwin Borough possess a fundamental and inalienable right to sustainably access, use, consume and preserve water drawn from natural water cycles that provide water necessary to sustain life within the Borough.
- B. Rights of natural communities. Natural communities and ecosystems, including, but not limited to, wetlands, streams, rivers, aquifers and other water systems, possess inalienable and fundamental rights to exist and flourish within Baldwin Borough. Residents of the Borough, along with the municipality, shall possess legal standing to enforce those rights on behalf of those natural communities and ecosystems.
- C. Right to a sustainable energy future. All residents, natural communities, and ecosystems in Baldwin Borough possess a right to a sustainable energy future which includes, but is not limited to, the development, production and use of energy from renewable fuel sources.
- D. Right to self-government. All residents of Baldwin Borough possess the fundamental and inalienable right to a form of governance where they live which recognizes that all power is inherent in the people, that all free governments are founded on the people's authority and consent, and that corporate entities and their directors and managers shall not enjoy special privileges or powers under the law which make community majorities subordinate to them.
- E. People as sovereign. Baldwin Borough shall be the governing authority responsible to, and governed by, the residents of the Borough. Use of the "Baldwin Borough" municipal corporation by the sovereign people of the Borough to make law shall not be construed to limit or surrender the sovereign authority or immunities of the people to a municipal corporation that is subordinate to them in all respects at all times. The people at all times enjoy and retain an inalienable and inalienable right to self-governance in the community where they reside.
- F. Rights as self-executing. All rights delineated and secured by this chapter shall be self-executing, and these rights shall be enforceable against corporations and governmental entities.

§ 121-4. Statements of law.

Prohibitions necessary to secure bill of rights' protection:

- A. It shall be unlawful for any corporation to engage in the extraction of natural gas within Baldwin Borough, with the exception of gas wells installed and operating at the time of enactment of this chapter, provided that the extraction of gas from those existing wells does not involve any practice or process not previously used for the extraction of gas from those wells.
- B. Corporations in violation of the prohibition against natural gas extraction or seeking to engage in natural gas extraction shall not have the rights of "persons" afforded by the United States and Pennsylvania Constitutions, nor shall those corporations be afforded rights under the First or Fifth Amendments to the United States Constitution or corresponding sections of the Pennsylvania Constitution, nor shall those corporations be afforded the protections of the commerce or contracts clauses within the United States Constitution or corresponding sections of the Pennsylvania Constitution. "Corporations," for purposes of this chapter, shall include any corporation, limited partnership, limited-liability partnership, business trust, or limited-liability company organized under the laws of any state of the United States or under the laws of any country, and any other business entity that possesses state-conferred limited liability attributes for its owners, directors, officers and/or managers.
- C. Corporations engaged in the extraction of natural gas shall not possess the authority or power to enforce state or federal preemptive law against the people of Baldwin Borough, or to challenge or overturn municipal ordinances adopted by the Borough Council of Baldwin, when that enforcement or challenge interferes with the rights asserted by this chapter or interferes with the authority of the municipality to protect the health, safety and welfare of its residents.
- D. No permit, license, privilege or charter issued by any state or federal agency, commission or board of supervisors to any person or any corporation operating under a state charter, or any director, officer, owner or manager of a corporation operating under a state charter, which would violate the prohibitions of this chapter or deprive any Borough resident(s), natural community, or ecosystem of any rights, privileges or immunities secured by this chapter, the Pennsylvania Constitution, the United States Constitution, or other laws, shall be deemed valid within Baldwin Borough.

§ 121-5. Enforcement.

- A. Any person, corporation or other entity that violates any prohibition of this chapter shall be guilty of a summary offense and, upon conviction thereof by a Magisterial District Judge, shall be sentenced to pay the maximum fine allowable under state law for a summary offense and shall be imprisoned to the extent allowed by law for a summary offense. A separate offense shall arise for each day or portion thereof in which a violation occurs and for each section of this chapter found to be violated.
- B. Baldwin Borough may also enforce this chapter through an action in equity brought in the Court of Common Pleas of Allegheny County. In such an action, Baldwin Borough shall be entitled to recover all costs of litigation, including, without limitation, expert and attorney's fees.
- C. Any Borough resident shall have the authority to enforce this chapter through an action in equity brought in the Court of Common Pleas of Allegheny County. In such an action, the resident shall be entitled to recover all costs of litigation, including, without limitation, expert and attorney's fees.

§ 121-6. Effective date and existing DEP permit holders.

This chapter shall be effective five days after the date of its enactment, at which point the chapter shall apply to any and all extractions of natural gas in Baldwin regardless of the date of any applicable DEP permits.

§ 121-7. People's right to self-government.

The foundation for the making and adoption of this chapter is the people's fundamental and inalienable right to govern themselves and thereby secure their rights to life, liberty and the pursuit of happiness. Any attempts to use other units and levels of government to preempt, amend, alter or overturn this chapter, or parts of this chapter, shall require the Borough Council to hold public meetings that explore the adoption of other measures that expand local control and the ability of residents to protect their fundamental and inalienable right to self-government. Such consideration may include actions to separate the municipality from the other levels of government used to preempt, amend, alter or overturn the provisions of this chapter or other levels of government used to intimidate the people of Baldwin Borough or their elected officials.

PARKS AND RECREATION

Chapter 123

PARKS AND RECREATION

ARTICLE I
Operation of Vehicles in Parks

- § 123-1. Prohibited acts.
- § 123-2. Posting of signs.
- § 123-3. Violations and penalties.

ARTICLE II
Elm Leaf Park Regulations

- § 123-4. Use of swimming pool.
- § 123-5. Admission fees.
- § 123-6. Application for season pass.
- § 123-7. Use of pool by Borough employees.
- § 123-8. Use of pool by nonresidents.
- § 123-9. Regulations for use of pool.
- § 123-10. Passes nontransferable.
- § 123-11. Use of tennis courts.
- § 123-12. Violations and penalties.

ARTICLE III
Alcoholic Beverages

- § 123-13. Use and possession prohibited.
- § 123-14. Permits.
- § 123-15. Violations and penalties.

ARTICLE IV
Administrative Rules and Regulations

- § 123-16. Council to establish rules and regulations.
- § 123-17. Violations and penalties.

ARTICLE V
Smoking and/or Tobacco Use

- § 123-18. Use prohibited.
- § 123-19. Violations and penalties.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin as indicated in article histories. Amendments noted where applicable.]

GENERAL REFERENCES

Vehicles and traffic — See Ch. 154.

ARTICLE I

Operation of Vehicles in Parks
[Adopted 9-21-1959 by Ord. No. 186]**§ 123-1. Prohibited acts.**

From and after the effective date of this article, it shall be unlawful to operate within the confines of public parks, which are now or which may hereafter be owned, maintained and/or operated by the Borough of Baldwin, any commercial motor vehicle, motor bus, motor omnibus, truck, tractor, trailer, truck tractor or similar motor vehicle.

§ 123-2. Posting of signs.

The proper Borough officials are hereby authorized and directed to immediately purchase, install and maintain official signs, in accordance with the Vehicle Code of the Commonwealth of Pennsylvania,³⁷ giving notice of the prohibition set forth in § 123-1 hereof.

§ 123-3. Violations and penalties. [Amended 12-19-1985 by Ord. No. 566]

Any person who shall violate the provisions of this article shall, upon conviction thereof, be subject to a fine of not more than \$300 plus costs of prosecution or to imprisonment for up to 30 days.

37. Editor's Note: See 75 Pa.C.S.A. § 101 et seq.

ARTICLE II
Elm Leaf Park Regulations
[Adopted 4-16-1973 by Ord. No. 436]

§ 123-4. Use of swimming pool.

The use of the Elm Leaf Park Swimming Pool be and hereby is restricted to residents of the Borough of Baldwin, full-time employees of the Borough of Baldwin and guests of residents of the Borough who are season pass holders as hereinafter set forth.

§ 123-5. Admission fees.

Prior to each swimming season, the Council will establish admission fees to be paid by those persons using the swimming pool. The admission fees may be altered by the Council during the swimming season to meet changed conditions. The admission fees established by the Council will be posted in a conspicuous place and will be enforced by the Swimming Pool Manager.

§ 123-6. Application for season pass.

Any resident of the Borough of Baldwin desiring a season pass for use of the Elm Leaf Park Swimming Pool shall make application therefor to the Borough on forms provided by the Borough Secretary and shall pay the appropriate fees as established by the Council.

§ 123-7. Use of pool by Borough employees.

Nonresidents who are full-time employees of the Borough shall have the same swimming pool privileges as residents of the Borough and may obtain season passes for themselves and their immediate families upon application therefor and payment of the appropriate fees.

§ 123-8. Use of pool by nonresidents.

Nonresidents of the Borough may use the pool upon payment of the appropriate admission fee when they are guests of and accompanied by a resident season pass holder, subject to regulations established by the Council. It is understood that the Council may from time to time suspend all nonresident guest privileges because of crowded conditions at the pool.

§ 123-9. Regulations for use of pool.

The Borough Council shall, from time to time, adopt regulations for the use of the Elm Leaf Park Swimming Pool, which regulations shall be posted in a conspicuous place and enforced by the Swimming Pool Manager. All admissions shall be subject to the aforesaid regulations.

§ 123-10. Passes nontransferable.

No season pass issued pursuant to this article will be transferable.

§ 123-11. Use of tennis courts. [Added 4-15-1974 by Ord. No. 447]

The use of the Elm Leaf Park tennis courts shall be under the same rules and regulations as shall be established from time to time by the Borough Council of the Borough of Baldwin. Admission fees shall be established by the Council by resolution from time to time and will be posted in a conspicuous place.

Failure to pay the admission charges shall subject such person to the penalties provided in § 123-12.

§ 123-12. Violations and penalties. [Amended 12-19-1985 by Ord. No. 566]

Any person violating the provisions of this article or any person who knowingly supplies false information in an application for a season pass under § 123-6 hereof shall be subject to a fine not exceeding \$300 plus costs of prosecution or to imprisonment for up to 30 days.

ARTICLE III
Alcoholic Beverages
[Adopted 8-15-1988 by Ord. No. 598]

§ 123-13. Use and possession prohibited.

From and after the effective date hereof, the use and/or possession of alcoholic beverages of any kind, including liquors, wines, beers, coolers and any other alcoholic beverages intended for consumption and commonly known as "alcoholic beverages," is prohibited in any public park or recreational area of the Borough at all times.

§ 123-14. Permits.

Excluded from the provisions of this article shall be all park areas or recreational areas or buildings of the Borough leased or used by persons having permits for the same, which permits shall have been approved by the Council of the Borough and issued by the Borough officers; and provided further, however, that any persons seeking permits for the use of such park areas or recreational areas or buildings wherein alcoholic beverages may be served shall make known the same to the Borough Council in their application for use of the areas or buildings, and provided further that such alcoholic beverages shall be served in a lawful manner and only during the hours for which the permit is issued.

§ 123-15. Violations and penalties.

Any person, firm or corporation who or which shall violate or fail, neglect or refuse to comply with any of the provisions of this article shall, upon conviction thereof, be sentenced to pay a fine of not more than \$500 and the costs of prosecution or, upon failure to pay such fine, to imprisonment for a period not exceeding five days.

ARTICLE IV
Administrative Rules and Regulations
[Adopted 5-20-1991 by Ord. No. 626]

§ 123-16. Council to establish rules and regulations.

From and after the effective date hereof, the Borough Council of the Borough of Baldwin shall be authorized to adopt rules and regulations governing the administration of the parks and recreation areas of the Borough and regulating and restricting the activities of persons using the same parks and recreation areas. Such rules and regulations shall be adopted in the form of a resolution.

§ 123-17. Violations and penalties.

Any person, firm or corporation who or which shall violate or fail, neglect or refuse to comply with any of the provisions of this article or of any regulation or rule adopted by the Borough Council of the Borough of Baldwin adopted under the provisions of § 123-16 hereof shall, upon conviction thereof, be sentenced to pay a fine of not more than \$500 and the cost of prosecution or, upon failure to pay such fine, to imprisonment for a period not exceeding five days.

ARTICLE V

Smoking and/or Tobacco Use
[Adopted 9-20-2011 by Ord. No. 839]

§ 123-18. Use prohibited.

The smoking or use of any tobacco-based products is prohibited within the confines of any outdoor recreational space in the Borough of Baldwin, including, but not limited to, Revo Field, Romanus Field, Municipal Field, Elmleaf Park, McGowan Field, Colewood Park, Overland Trail, Leland Field and the Baldwin Borough Municipal Complex (tennis, basketball and swimming).

§ 123-19. Violations and penalties.

Any person who shall violate this article shall, after issuance of a summary offense citation and conviction of same before the District Judge, be fined not less than \$50 nor more than \$300 plus costs of court.

Chapter 127**PEDDLING AND SOLICITING**

§ 127-1.	Permit or registration required; application; issuance.	§ 127-9.	License required for business premises.
§ 127-2.	Exceptions.	§ 127-10.	Definitions.
§ 127-3.	Conduct of Solicitations.	§ 127-11.	Refuse and waste; stopping longer than necessary.
§ 127-4.	Revocation of permit.	§ 127-12.	Violations and penalties.
§ 127-5.	Appeals.	§ 127-13.	List of homes not wishing to be solicited.
§ 127-6.	Fees.		
§ 127-7.	Noise restrictions.		
§ 127-8.	Location of business.		

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 1-21-1985 by Ord. No. 553; amended in its entirety 9-17-2019 by Ord. No. 898. Subsequent amendments noted where applicable.]

§ 127-1. Permit or registration required; application; issuance.

- A. It shall be unlawful for any person, firm or corporation to sell or offer to sell, by personal solicitation or by printed or written cards, circulars or any other artifices whatsoever, any goods, wares, merchandise, literary products, magazines, periodicals, fruit, fish, vegetables, produce, oysters, milk or any other article of trade whatsoever from house to house or in the public streets or alleys within the limits of the Borough of Baldwin, or to circulate, distribute, and/or indiscriminately deliver from house to house advertising flyers or pamphlets (except in the ordinary course of mail) without first having procured a permit or license from the Department of Police of the Borough of Baldwin for such privileges. Nothing in this section shall preclude the distribution of political or religious flyers, pamphlets or tracts at no cost, or require that individuals merely engaging in religious or political speech be required to register under this act. In addition, the solicitation of funds on residential property from Borough residents for any religious, charitable, or nonprofit cause is not precluded by this section, nor is there a requirement for these individuals to register under this act.
- B. For the protection of the public against fraud and imposition, all persons making sales or soliciting orders of goods, wares or merchandise as set forth heretofore shall first provide to the Department of Police with the following information in order to obtain an identification card for these purposes.
- (1) Full identification, including proof thereof by a voter's registration card, vehicle operator's license or some other accepted method of identification, with residence and an office address.
 - (2) The name of the organization for which the applicant is soliciting, together with the address of that organization.
 - (3) The purpose of the solicitation in the Borough.
 - (4) The periods and times during which the solicitation is to be conducted.
 - (5) A certified Pennsylvania police criminal records check and a certified police criminal records

check from the state the applicant currently resides. Both criminal records checks shall be current, that is they shall have been obtained within 30 days of the date of the solicitation application.

- C. The application shall be accompanied by two photographs of the applicant not larger than two inches by two inches, one of which shall be attached to the written request or application and the other to be attached to the certificate given by the Department.
- D. (Reserved)
- E. After examination of the applicant and his application and, where deemed necessary, after verification of the references or other means, the Department of Police may issue to the applicant the required certification.
- F. The application for a permit shall be kept on file by the police and shall be available for public inspection. Permits issued pursuant to this chapter shall be valid for no more than three months from the date of issuance.
- G. The Chief of Police may deny the application for a Borough Permit if the application is incomplete, is not accompanied by a fee, or if applicant or applicant's organization has been convicted of or has plead guilty or nolo contendere to i) violating the provisions of this Chapter 127 within a period of one year prior to the date of the application, or ii) any burglary, violent crime, or any felony or misdemeanor involving fraud or misrepresentation.
- H. An application for a Borough permit shall be approved or rejected within a period of five days from the date it is submitted. If an application for a Borough permit is rejected, the Chief of Police shall set forth the reasons therefore in writing.
- I. The police department shall keep a permanent record of all permits issued and all applications rejected under this chapter.

§ 127-2. Exceptions.

- A. There shall be exempt from the provisions of § 127-1 hereof persons selling personal property at wholesale to dealers in such articles, and the provisions of this chapter shall not apply to newsboys nor to the acts of merchants or their employees in delivering goods in the regular course of business, nor shall the terms of this chapter be held to include or apply to any farmer or truck gardener who shall vend, sell or dispose of or offer to sell, vend or dispose of the products of the farm or garden occupied and cultivated by him; nor shall it apply to any manufacturer or producer in the sale of bread and bakery products, meat and meat products or milk or milk products. Nothing contained in this chapter shall be held to prohibit any sale required by statute or by order of any court or to prevent any person conducting a bona fide auction sale pursuant to law.
- B. In addition, this chapter shall not apply to boys or girls under the age of 18 years who take orders for and deliver newspapers, greeting cards, candy and the like, or who represent the Boy Scouts and Girl Scouts or similar organizations and take orders for and deliver cookies and the like.
- C. Individuals who are seeking or the taking of orders by insurance agents or brokers licensed under the insurance laws of the Commonwealth of Pennsylvania are expressly exempt from registration under § 127-1 hereof.
- D. Any person soliciting funds for any religious, charitable, or nonprofit cause is not required to register under this act.

§ 127-3. Conduct of Solicitations.

In the course of a solicitation, each solicitor shall comply with the following:

- A. No solicitor shall solicit at any residence which has a "No Solicitation" sign posted on the residence.
- B. If no signs pursuant to § 127-3A are posted at a residence, no solicitor shall solicit before 9:00 a.m. or after 8:00 p.m.
- C. The solicitor shall:
 - (1) If requested by a resident of the Borough, provide to the resident the name and address or telephone number of a representative of the soliciting organization to who inquiries can be addressed; and
 - (2) Provide to each resident a full and fair description of the purpose for which the solicitation is being made.
- D. The solicitor shall comply with all applicable laws, statutes, regulations, rules or ordinances of the United States of America, the Commonwealth of Pennsylvania, Allegheny County, and the Borough of Baldwin.
- E. No solicitor shall make any untrue statement or misrepresentation in the course of soliciting, or omit to state any material fact necessary to prevent any statement made from being misleading. No solicitor shall utilize any unfair or deceptive acts or practices in the course of soliciting. In determining whether or not a practice is unfair or deceptive under this subsection, definitions, standards or interpretations relating thereto under the Pennsylvania Unfair Trade Practices and Consumer Protection Law, as amended from time to time, shall apply.
- F. Persons regulated by this chapter shall carry their identification cards, which shall be issued by the Chief of Police, at all times while soliciting within the Borough and shall show their identification cards to residents or police when requested in order to identify themselves prior to any actual solicitation of funds. Any loss of such identification card shall be immediately reported to the Department of Police by the person to whom such card was issued.

§ 127-4. Revocation of permit.

- A. Borough permits issued under this chapter may be revoked by the Chief of Police, after notice and hearing, for any of the following causes:
 - (1) Fraud misrepresentation, or false statement contained in, or material fact omitted from, the application for a Borough permit;
 - (2) Fraud, misrepresentation, false statement, or material omission made in the course of soliciting;
 - (3) Failure to observe a "No Solicitation" notice posted by a resident or "No Solicitation" list provided by the Borough;
 - (4) Any other violation of this Chapter 127;
 - (5) Conviction, whether before issuance of the Borough permit or during the term of the Borough permit, of any burglary, violent crime or any felony or misdemeanor involving fraud or misrepresentation.

- B. Notice of the hearing for revocation of a Borough permit shall be given in writing, setting forth specifically the grounds of complaint and the time and place of hearing. Such notice shall be transmitted by certified mail, postage prepaid, to the permittee at his last known address at least seven days prior to the date set for hearing.

§ 127-5. Appeals.

Any person aggrieved by the action of the Chief of Police in the denial of a Borough permit as provided in § 127-1 shall have the right of appeal to the Borough Council of Baldwin. Such appeal shall be taken by filing with the Borough Manager, within 14 days after notice of denial has been mailed to such person's last known address, a written statement setting forth fully the grounds for the appeal. The Borough Council shall set a time and place for a hearing on such appeal and notice of such hearing shall be given to appellant in the same manner as provided in § 127-4 for notice of hearing on revocation.

§ 127-6. Fees.

Concurrently with the submission of the solicitation application, the applicant shall pay a fee in an amount as established from time to time by resolution of the Borough Council.

§ 127-7. Noise restrictions.

No licensee or any person in his or her behalf shall shout, cry out, blow a horn, ring a bell or use any sound or amplifying device upon any of the streets, alleys, parks or other public places in the Borough of Baldwin or upon private premises where sound of sufficient volume is emitted or produced therefrom to be capable of being plainly heard upon the streets, avenues, alleys, parks or other public places for the purpose of attracting attention to any goods, wares or merchandise which such licensee proposes to sell.

§ 127-8. Location of business.

No licensee shall have any exclusive right to any location in the public streets nor shall any be permitted a stationary location thereon nor shall any be permitted to operate in a congested area where such operation might impede or inconvenience the public use of such streets or sidewalks.

§ 127-9. License required for business premises.

Every person, whether principal or agent, entering into or desiring to conduct a transient retail business in the Borough for the sale of the goods, wares or merchandise and who hires, leases or occupies a room, apartment, store, shop, building or other place or structure for the exhibition and sale of such goods, wares or merchandise shall, before commencing such business, take out a license to do so from the Chief of Police. The fee for such license shall be \$25 per month or fractional part thereof, and shall be paid monthly in advance to the Department of Police.

§ 127-10. Definitions.

For the purpose of interpreting this chapter, words used herein shall have the following definitions:

PERSON — Any individual, association, partnership, firm, or corporation, however styled.

SOLICIT — To go from door to door in the Borough i) soliciting contributions or pledges for contributions, or ii) selling or attempting to sell subscriptions, products or services, or taking orders or attempting to take orders for subscriptions, products or services from or to an occupant of a residence.

§ 127-10

PEDDLING AND SOLICITING

SOLICITATION — Acts of individual solicitors on behalf of a particular person.

SOLICITOR — A person who solicits.

TRANSIENT VENDOR — Includes any person, corporation, partnership, association or any agent thereof who conducts a business in the Borough, either from door to door or in any other manner where the vendor does not have either a residence or a business office within the geographic limits of the Borough.

§ 127-11. Refuse and waste; stopping longer than necessary.

No transient vendor shall deposit any refuse or waste on the streets or alleys or any private or public property in the Borough, nor may he or she be parked or stopped for a longer time than is necessary for the reasonable conduct of his or her business.

§ 127-12. Violations and penalties.

Any person, firm or corporation violating any provision of this chapter shall be subject to prosecution before a Magisterial District Judge and, upon conviction, shall be fined not more than \$300 plus costs of prosecution. Each day that a violation occurs or is committed shall constitute a separate offense. Violations may also result in the revocation of the violator's permit, as specified in § 127-4.

§ 127-13. List of homes not wishing to be solicited.

Any resident of the Borough of Baldwin may register with the Borough of Baldwin Police Department by signing a registration list or application indicating that such owner or resident of such home does not wish to be solicited. The Borough of Baldwin shall place the name of such individual upon a registration list for the same and provide that individual with a "NO SOLICITATION" sticker, which that party may display on the upper left-hand side of his or her front door. Any person seeking a licensing permit under the provisions of this chapter shall, in signing the application to obtain the same, agree that he or she will not solicit homes whose owners or residents have signed a registration list which indicates that such owner or resident of such home does not wish to be solicited. Such a list shall be made available to the residents of the Borough and shall be held by the Department of Police, and a copy thereof shall be given to each person obtaining a license and identification card under the provisions of this chapter. In the event that such person soliciting within the boundaries of the Borough shall fail to recognize the wishes of the homeowner or the resident of such home as expressed in the notice, then any such attempt to solicit such home shall result in a revocation of the solicitor's license and identification card after a hearing held before the Borough Council of the Borough of Baldwin.

Chapter 130**PORNOGRAPHY**

§ 130-1.	Definitions.	§ 130-7.	Investigation and recommendation by Board.
§ 130-2.	Lewd motion-picture films or live theater productions.	§ 130-8.	Actions by Council.
§ 130-3.	Lewd publications.	§ 130-9.	Forfeiture of moneys; costs of abatement.
§ 130-4.	Model studios.	§ 130-10.	Action by Borough Solicitor.
§ 130-5.	Notice of nuisance; abatement.	§ 130-11.	Severability.
§ 130-6.	Appointment of Community Standards Board.		

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 1-21-1980 by Ord. No. 505. Amendments noted where applicable.]

GENERAL REFERENCES

Massage parlors — See Ch. 116.

§ 130-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

KNOWLEDGE or KNOWLEDGE OF SUCH NUISANCE — Having knowledge of the contents and character of the patently offensive sexual conduct or other content which appears in the motion-picture film, publication or live theater production, or knowledge of the acts of lewdness, assignation or prostitution which occur in any place.

LEWD MATTER — Any matter which the average person, applying contemporary community standards, would find, when considered as a whole, appeals to the prurient interest and which depicts or describes patently offensive representations or descriptions of ultimate sexual acts, normal or perverted, actual or simulated, or masturbation, excretory functions or exhibition of the genitals or genital area. Nothing herein contained is intended to include or proscribe any matter which, when considered as a whole and in the context in which it is used, possesses serious literary, artistic, political or scientific value.

LIVE THEATER PRODUCTION — Any dramatic, musical or comedic production performed in the presence of a live audience.

MATTER — A motion-picture film, live theater production, publication, or all three.

MODEL STUDIO —

- A. Any place where there is conducted the business of furnishing figure models who pose in the nude for the purpose of being observed or viewed by any person or of being sketched, painted, drawn, sculptured, photographed or otherwise similarly depicted for persons who pay a fee or other consideration or compensation or a gratuity for the right or opportunity so to depict the figure model or for admission to or for permission to remain upon or as a condition for remaining upon the place.

- B. Any place where there is conducted the business of furnishing or providing or procuring for a fee or other consideration or compensation or gratuity figure models who pose in the nude to be observed or viewed by any person or to be sketched, painted, drawn, sculptured, photographed or otherwise similarly depicted.
- C. Exception. The words "model studio" do not include:
 - (1) Any studio which is operated by any state college or junior college, public or private school or any governmental agency wherein the person, firm, association, partnership or corporation or operation has met the requirements established by the Commonwealth of Pennsylvania for the issuance or conferring of, and is in fact authorized thereunder to issue and confer, a diploma or honorary diploma.
 - (2) Any place where there is conducted the business of furnishing, providing or procuring figure models solely for any studio described in Subsection C(1) of this definition.

MOTION-PICTURE FILM — Includes any film or plate negative, film or plate positive, film designed to be projected on a screen for exhibition, films, glass slides or transparencies, either in negative or positive form, designed for exhibition by projection on a screen or videotape or any other medium used to electronically reproduce images on a screen.

NUDE — Completely without clothing or with the human male or female genitals, pubic area or buttocks with less than a fully opaque covering or the showing of the female breast with less than a fully opaque covering of any portion thereof below the top of the nipple or the covered male genitals in a discernibly turgid state.

PERSON — Any individual, partnership, firm, association, corporation or other legal entity.

PLACE — Includes, but is not limited to, any building, structure or space or any separate part or portion thereof, whether permanent or not, or the ground itself.

PUBLICATION — Includes any book, magazine article, pamphlet, writing, printing, illustration, picture, sound recording or a motion-picture film which is displayed in an area open to the public, offered for sale or exhibited in a coin-operated machine.

SALE — A passing of title or right of possession from a seller to a buyer for valuable consideration and shall include, but is not limited to, any lease or rental arrangement or other transaction wherein or whereby any valuable consideration is received for the use of or transfer of possession of lewd matter.

§ 130-2. Lewd motion-picture films or live theater productions.

- A. Any and every place in the Borough where lewd motion-picture films or live theater productions are publicly exhibited or possessed for the purpose of such exhibition and any and every place in the Borough where a lewd motion-picture film or live theater production is publicly or repeatedly exhibited or possessed for the purpose of such exhibitions is a public nuisance.
- B. Any and every lewd motion-picture film which is publicly exhibited or possessed for such purpose at a place which is a public nuisance under Subsection A above is a public nuisance per se.
- C. From and after service on the place or its manager or acting manager or person then in charge of such place of a true and correct copy of this chapter and a true and correct copy of the resolution and order of summary abatement provided for in § 130-8 hereof, all moneys paid thereafter as admission price to such exhibitions or productions are also declared to be a public nuisance as personal property used in conducting and maintaining a declared public nuisance.

§ 130-3. Lewd publications.

- A. Any and every place in the Borough where lewd publications constitute a part of the stock-in-trade is a public nuisance.
- B. Any and every lewd publication possessed at a place which is a public nuisance under Subsection A above is a public nuisance per se.
- C. From and after service on the place or its manager or acting manager or person then in charge of such place of a true and correct copy of this chapter and a true and correct copy of the resolution and order of summary abatement provided for in § 130-8 hereof, all valuable consideration received for the sale of such lewd publications is also declared to be a public nuisance as personal property used in conducting and maintaining a declared public nuisance.

§ 130-4. Model studios.

- A. Every model studio which, as a regular course of business, is used for the purposes of lewdness, assignation or prostitution and every such model studio in or upon which acts of lewdness, assignations or prostitution are held or occur is a public nuisance which shall be enjoined, abated and prevented.
- B. From and after service on the place or its manager or acting manager or person then in charge of such place of a true and correct copy of this chapter and a true and correct copy of the resolution and order of summary abatement provided for in § 130-8 hereof, all moneys or other valuable consideration paid for services rendered to customers are also declared to be a public nuisance as personal property used in conducting and maintaining a declared public nuisance.

§ 130-5. Notice of nuisance; abatement.

- A. Upon and after receiving notice through service of a true and correct copy of this chapter and a true and correct copy of the resolution and order of summary abatement provided for in § 130-8 hereof, any and every person who shall own, legally or equitably, lease, maintain, manage, conduct or operate a place in the Borough which is declared to be a public nuisance as set forth and stated in § 130-2, 130-3 or 130-4 of this chapter is deemed to be a person who has knowledge of such nuisance for the purpose of this chapter and is, thereafter, responsible for its maintenance and shall be liable therefor.
- B. The places and matters declared to be public nuisances under § 130-2, 130-3 or 130-4 shall be abated as provided for herein.

§ 130-6. Appointment of Community Standards Board.

- A. The Council shall appoint a Community Standards Board consisting of up to seven adult residents at large of the Borough of Baldwin. Members of said Board shall be laypersons. Members of Council or other elected or appointed Borough officials serving their current terms of office shall not be eligible to serve on the Community Standards Board. **[Amended 3-17-2003 by Ord. No. 777]**
- B. Two of the initially appointed Board members shall serve for a term of three years, and two of the initially appointed members shall serve for a period of four years. All other appointees and all subsequent appointees shall serve for a term of five years.
- C. The duties of the Community Standards Board will be to administer and carry out the provisions of §§ 130-7 and 130-8 of this chapter.

§ 130-7. Investigation and recommendation by Board.

The Baldwin Borough Community Standards Board shall investigate all complaints that activity constituting a public nuisance, as defined in §§ 130-2, 130-3 and 130-4 of this chapter, exists in the municipality and make recommendations to the Council as to the application of this chapter to such activity.

§ 130-8. Actions by Council.

Upon the recommendation of the Community Standards Board and upon the Council's specific finding that a public nuisance exists in the municipality, the Council in applying the provisions of this chapter to such nuisance shall provide for the following by resolution:

- A. Declare the fact that such nuisance exists.
- B. Set forth the description or legal description and street address of the place which constitutes the nuisance.
- C. Set forth the evidentiary facts considered by the Council in arriving at its factual determination.
 - (1) In the case of a motion-picture film or live theater production, such shall include a recitation of the particular sexual conduct and acts which the Council finds are patently offensive, and the basis for the finding by the Council that such motion-picture film or live theater production is publicly exhibited or produced in the course of business or that such motion-picture film or live theater production is publicly or repeatedly exhibited or produced or held for such exhibition or production at the place declared to be a nuisance.
 - (2) In the case of a publication, such shall include a recitation of the particular publications or types of publications considered by the Council and those which the Council finds to be patently offensive, and the basis for the finding by the Council that such publications are displayed, sold or held for sale at any place found by the Council to be a public nuisance, and the basis of the finding by the Council that such publications constitute a part of the stock-in-trade of such place of business or other place.
 - (3) In the case of a model studio, such shall include a recitation of the particular acts of lewdness, assignation or prostitution which have occurred, and the basis for the finding by the Council that such acts occur in the course of business.
- D. Order all persons described in § 130-5A hereof to summarily abate such public nuisance within 24 hours of service of such order on any such persons by terminating the exhibition, sale or possession for sale of such lewd matter or by ceasing to use the place where the nuisance is declared to exist or by terminating the use of said place for the purposes of lewdness, assignation or prostitution or causing the same to be terminated, and notifying the Council of compliance therewith by sworn affidavit as ordered by the action of the Council in such resolution.
- E. Order the Borough Solicitor to proceed to do all of the things necessary to abate such public nuisance through judicial proceedings and to conclude such proceedings as expeditiously as is permissible under the law, including requesting the court to advance such proceedings on the calendar of the court.
- F. Inform and give notice to persons designated in § 130-5A:
 - (1) That the Council has determined that a public nuisance presently exists at such place and address

and that, under § 130-5A of this chapter, they are deemed to have knowledge thereof and are responsible therefor.

- (2) That in the event that the order of the municipality is not complied with within 24 hours the Council has ordered the Borough Solicitor, as provided for under § 130-10 hereof, to commence necessary legal proceedings naming such persons as defendants in a civil action to abate the public nuisance judicially under § 130-8 of this chapter and that, under § 130-9 of this chapter, the costs of abatement of such civil abatement action filed, including investigative costs, court costs, attorneys' fees and other expenses, are made a special assessment against the parcel of land upon which such nuisance is being maintained and, upon their determination in such court action, will be separate legal procedure and will be made a lien against such property and a personal obligation against any person deemed to be in violation of this chapter.
 - (3) All lewd motion-picture films or lewd publications being used in conducting and maintaining such public nuisance are contraband and the subject of forfeiture.
 - (4) From and after service on the place or its manager or acting manager or person then in charge of such a place of a true and correct copy of this chapter and a true and correct copy of such resolution, any and all moneys paid as admission price to or for the exhibition or exhibitions of such lewd motion-picture films of production of such lewd live theater productions and valuable consideration received for services rendered in such model studios are a public nuisance as personal property used in conducting and maintaining such nuisance and, as such, are the subject of forfeiture.
- G. Order that a true and correct copy of said resolution and a true and correct copy of this chapter be delivered forthwith in any manner normally used to effectuate personal service of process to all persons of record having any legal or equitable interest in the real property and to the regular or acting manager or persons in charge of the place therein declared a public nuisance.

§ 130-9. Forfeiture of moneys; costs of abatement.

- A. Upon judgment for the Borough in legal proceedings brought pursuant to this chapter, an accounting shall be made by such defendant or defendants of all moneys or valuable consideration received by them which have been declared to be a public nuisance under § 130-2C, 130-3C or 130-4B of this chapter. Such moneys or their equivalent and any valuable consideration received shall be forfeited to the general fund of the Borough or to the Borough as property of the Borough if any valuable consideration received is not money.
- B. The cost of abatement shall include the following:
 - (1) Investigative costs.
 - (2) Court costs.
 - (3) Reasonable attorneys' fees arising out of the preparation for and trial of the cause and appeals therefrom, and other costs allowed on appeal.
 - (4) Printing costs of trial and appellate briefs and all other papers filed in such proceeding.
- C. Such cost of abatement is hereby made a special assessment against the parcel of land upon which such nuisance is maintained. Upon its determination in a civil action, it shall, by separate legal proceeding, be made a lien against such property and a personal obligation against any person and shall be collected at the time and in the same manner as ordinary municipal taxes are collected and

shall be subject to the same penalties and the same procedure and sale in the case of delinquency as provided for ordinary municipal taxes. All laws applicable to the levy, collection and enforcement of municipal taxes shall be applicable to such special assessment.

§ 130-10. Action by Borough Solicitor.

Upon a specific finding by resolution of the Council that a public nuisance exists at a particular location, the Borough Solicitor, with the approval of the Council, is authorized to take whatever action is appropriate to carry out this chapter.

§ 130-11. Severability.

If any court shall determine that any word, clause, phrase, sentence, paragraph or subsection of this chapter is unconstitutional, the court shall first attempt to construe or interpret such unconstitutional provision so as to enable the same to be constitutional as so narrowed or construed. If the court cannot so limit or construe such word or provision narrowly so as to render the same constitutional, it shall strike or modify only the minimum number of words, phrases, clauses, sentences or paragraphs as will be absolutely necessary to render the remainder constitutional. In no case shall a clause or phrase or word or other portion hereof render any other word, clause, phrase, sentence, paragraph or section unconstitutional, but instead shall be severed therefrom entirely, with the balance of this chapter in its entirety remaining in full force and effect.

Chapter 131**PROPERTY MAINTENANCE**

§ 131-1.	Title.	§ 131-6.	Conflicts with other provisions.
§ 131-2.	Adoption of standards.	§ 131-7.	Enforcing official.
§ 131-3.	Construal of references.	§ 131-8.	Violations and penalties.
§ 131-4.	Definitions.	§ 131-9.	Effect on pending proceedings.
§ 131-5.	Amendments and revisions.		

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 5-18-1992 by Ord. No. 641. Amendments noted where applicable.]

GENERAL REFERENCES

Alarm systems — See Ch. 62.

Uniform construction codes — see Ch. 83.

Brush, grass and weeds — See Ch. 70.

Fire prevention — See Ch. 89.

Building construction and housing standards — See Ch. 74.

Solid waste — See Ch. 136.

Dangerous buildings — See Ch. 77.

Trees, shrubs and bushes — See Ch. 150.

Numbering of buildings — See Ch. 80.

Zoning — See Ch. 168.

Open burning — See Ch. 81.

§ 131-1. Title.

This chapter shall be known as the "Property Maintenance Code of the Borough of Baldwin."

§ 131-2. Adoption of standards. [Amended 9-19-1994 by Ord. No. 673; 9-19-1996 by Ord. No. 702; 10-16-2000 by Ord. No. 742; 4-21-2015 by Ord. No. 863; 8-20-2024 by Ord. No. 932]

To promote and protect the public health, safety and welfare of the residents of the Borough of Baldwin and for the purpose of codifying and regulating the design, construction, alteration, demolition, execution, repair, maintenance, mechanicals, energy use and fuel gas usage, fire safety and removal of all buildings, homes, structures and/or edifices in the Borough of Baldwin and to prescribe reasonable standards for the use of materials, roofing and construction components in such structures in the Borough, the Borough Council of the Borough of Baldwin hereby adopts those certain codes known as the International Building Code 2018; the International Fire Code 2018; the International Fuel Gas Code 2018; the International Energy Conservation Code 2018; the International Mechanical Code 2018; the International Residential Code 2018, the International Property Maintenance Code 2018, the American National Standards Institute 117 - Accessibility Code 2009, the National Electrical Code 2017, the International Existing Building Code 2018, and the International Building Code 2018 herein referred to as the 'codes,' as hereinafter modified. Copies of the code have been and are now on file in the office of the Borough Manager of the Borough of Baldwin. The provisions, standards, specifications and interpretations of the aforesaid codes are hereby adopted by reference to the same and they are incorporated herein as fully as if they had been set out at length herein.

§ 131-3. Construal of references.

Any references in the aforesaid codes to terms such as "municipality," "city" or any other reference to a governmental authority shall be held to mean the Borough of Baldwin; any terms used in the codes referring to building inspection, inspector, code officer or other person authorized to enforce the codes shall be held to mean the Zoning Officer of the Borough of Baldwin or any inspectors hired by the Borough to accomplish the purposes set out in this chapter. The Borough Council of the Borough of Baldwin is hereby authorized to appoint and hire inspectors to carry out the provisions of this chapter, but the Zoning Officer of the Borough of Baldwin shall be the primary official responsible for the administration and enforcement of this chapter.

§ 131-4. Definitions.

All terms used in this chapter shall be defined as the same are more fully defined in the codes, except that in the event there is a conflict between the definition contained in the codes and the terms that are defined in the Zoning Ordinance of the Borough of Baldwin, Ordinance No. 440, adopted the 29th day of September 1972, as amended, then the definition as set forth in the Zoning Ordinance of the Borough of Baldwin shall prevail.³⁸ For these purposes, the definitions section of the Zoning Ordinance of the Borough of Baldwin is incorporated herein by reference thereto, the same as though it had been fully set forth herein at length.

§ 131-5. Amendments and revisions. [Amended 8-20-2024 by Ord. No. 932]

A. The following Sections of the Property Maintenance Code are hereby revised:

- (1) Section 101.1: Insert: "Borough of Baldwin."
- (2) Section 103.5: Insert: "See Borough of Baldwin Fee Schedule."
- (3) Section 112.4: Insert: "\$600.00" and "\$1,000" respectively.
- (4) Section 302.4: Insert: "six (6) inches."
- (5) Section 304.14: Insert: "May 1 to October 15."
- (6) Section 602.3: Insert: "October 1 to May 1."
- (7) Section 602.4: Insert: "October 1 to May 1."

B. The following sections of the Fire Code are hereby revised:

- (1) Section 101.1: Insert: "Borough of Baldwin."
- (2) Section 110.4: Insert: "One Thousand Dollars (\$1,000.00)" and "thirty (30) days," respectively.
- (3) Section 112.4: Insert: "Three Hundred Dollars (\$300.00)" and "One Thousand Dollars (\$1,000.00)," respectively.
- (4) Section 1103.5.3: Replace with "An automatic sprinkler system installed in accordance with Section 903.3 shall be provided throughout all buildings with a Group R fire area, except for single-family and two-family dwellings."
- (5) Section 5704.2.9.6.1: Replace with "Storage of Class I and II liquids in aboveground tanks"

38. Editor's Note: See Ch. 168, Zoning, § 168-12, Definitions.

outside of building is prohibited."

- (6) Section 5706.2.4.4: Replace with "The storage of Class I and II liquids in aboveground tanks is prohibited."
 - (7) Section 5806.2: Replace with "Storage of flammable cryogenic fluids in stationary containers outside of buildings is prohibited."
 - (8) Section 6104.2: Replace with "No storage of liquidized petroleum gas in excess of 2,000 gallons shall be permitted."
- C. The following section of the Residential Code is hereby revised:
- (1) Section R101.1: Insert: "Borough of Baldwin."
- D. The following sections of the International Building Code are hereby revised:
- (1) Section 101.1: Insert: "Borough of Baldwin."
 - (2) Section 1612.3: Insert: "Borough of Baldwin."
- E. The following sections of the International Existing Building Code are hereby revised:
- (1) Section 101.1: Insert: "Borough of Baldwin."
- F. The following sections of the International Energy Code are hereby revised:
- (1) Section C101.1: Insert: "Borough of Baldwin."
 - (2) Section R101.1: Insert: "Borough of Baldwin."
- G. The following sections of the International Fuel and Gas Code are hereby revised:
- (1) Section 101.1: Insert: "Borough of Baldwin."
- H. The following sections of the International Mechanical Code:
- (1) Section 101.1: Insert: "Borough of Baldwin."

§ 131-6. Conflicts with other provisions.

Whenever a conflict shall occur between the provisions of this chapter and the code adopted hereunder and the provisions of any other ordinance of the Borough of Baldwin, particularly the Zoning Ordinance and the Subdivision Ordinance of the Borough of Baldwin,³⁹ then such conflict shall be resolved by interpreting the ordinances so that the strictest interpretation of the conflicting ordinance shall be the one that prevails, and the administration or enforcement of the matter shall proceed under the provisions of the ordinance containing the strictest standard or interpretation.

§ 131-7. Enforcing official.

The Zoning Officer of the Borough of Baldwin appointed under the provisions of the Zoning Ordinance of the Borough of Baldwin or any inspector appointed by the Borough Council of the Borough of Baldwin under the provisions of this chapter shall be authorized to and is hereby directed to be the official

39. Editor's Note: See Ch. 168, Zoning, and Ch. 142, Subdivision and Land Development, respectively.

responsible for the administration and enforcement of this chapter; he shall be responsible to inspect the construction, alteration, demolition or removal of all structures to ascertain that the same is conducted pursuant to the provisions of this chapter. He shall issue permits as the same are required, after first having obtained all necessary approvals, and he shall condemn all unsafe structures and shall order the same to be razed or repaired and made safe and secure as the interest of the public safety may require. He shall have authority after exhibiting proper identification and in the discharge of his official duties to enter any building, structure or premises at any reasonable hours to enforce all laws relating to matters covered under the provisions of this chapter, and he shall be authorized to issue such citations or to file such complaints before a District Magistrate as may be required for the enforcement of this chapter.

§ 131-8. Violations and penalties.

In addition to the penalties set forth in the code adopted hereunder, any person who shall violate any of the provisions of the code or of any ordinance incorporated herein and adopted hereby or any person who shall erect, construct, alter, repair, demolish or remove any building, structure or edifice covered hereunder or permit, suffer or cause the erection, alteration, repair, demolition or removal of any building or structure or portion thereof covered hereunder in violation of this chapter or of any ordinance incorporated herein shall be guilty of a violation of this chapter and shall, upon conviction thereof by a District Magistrate, be punishable by a fine of not less than \$100 nor more than \$300 together with costs of prosecution and, in default of payment of such fine or costs, shall be imprisoned for not more than 10 days. The owner of any building, structure, home or edifice or portion of the same or of the premises wherein a violation of the code shall exist, or who shall cause a violation of the same, or any owner, tenant, contractor, agent or employee who may commit a violation of this chapter or assist in the commission of such a violation shall each be guilty of a separate offense and, upon conviction thereof, shall be punishable by a fine not less than \$100 nor more than \$300 and costs of prosecution or, in default of payment of such fine and costs, shall be imprisoned for not more than 10 days; and provided, further, that each day that a violation of any of the provisions of this chapter continues shall be considered a separate offense. The term "person," as used herein, shall mean any individual, a member of a partnership or the officer of any corporation, which officer authorizes or participates in any action or omission to act which constitutes a violation of this chapter.

§ 131-9. Effect on pending proceedings.

Nothing in this chapter or in the code hereby adopted shall be construed to affect any suit or proceeding now pending in any court or any rights acquired or liability incurred hereunder nor any cause or cause of action accrued or existing under any act or ordinance repealed herein.

Chapter 131A**PROPERTY, VACANT AND ABANDONED**

§ 131A-1.	Title, purpose and intent.	§ 131A-10.	Additional authority.
§ 131A-2.	Definitions.	§ 131A-11.	Opposing or obstructing enforcement officer; penalty.
§ 131A-3.	Applicability.	§ 131A-12.	Immunity of enforcement officer.
§ 131A-4.	Establishment of registry.	§ 131A-13.	Fees; violations and penalties.
§ 131A-5.	Registration of abandoned and/or vacant real property.	§ 131A-14.	Amendments.
§ 131A-6.	Maintenance requirements.	§ 131A-15.	Severability.
§ 131A-7.	Security requirements.	§ 131A-16.	Repealer.
§ 131A-8.	Public nuisance.	§ 131A-17.	When effective.
§ 131A-9.	Inspections for violations.		

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 8-1-2017 by Ord. No. 881;⁴⁰ amended in its entirety 10-20-2020 by Ord. No. 911. Subsequent amendments noted where applicable.]

§ 131A-1. Title, purpose and intent.

The title of this chapter is the "Borough of Baldwin Vacant and Abandoned Property Ordinance." It is the purpose and intent of the Borough of Baldwin to amend the process to more effectively address the deterioration and blight of our neighborhoods caused by abandoned, foreclosed or distressed properties located within the Borough and to identify, regulate, limit and reduce the number of abandoned properties located within the Borough. It is the Borough's further intent to adjust the registration program to protect neighborhoods from becoming blighted due to the lack of adequate maintenance and security of abandoned and foreclosed properties.

§ 131A-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

ABANDONED PROPERTY — Any real property located in the Borough, whether vacant or occupied, that has had a lis pendens filed against it by the lender holding a mortgage on the property, is subject to an ongoing foreclosure action by the lender, or has been transferred to the lender under a deed in lieu of foreclosure. The designation of a property as "abandoned" shall remain in place until such time as the property is sold or transferred to a new owner in a non-arm's-length transaction or the foreclosure action has been dismissed.

ACCESSIBLE PROPERTY/STRUCTURE — A property that is accessible through a compromised/breached gate, fence, wall, etc., or a structure that is unsecured and/or breached in such a way as to allow access to the interior space by unauthorized persons.

40. Editor's Note: This ordinance was originally adopted as Ch. 169 but was renumbered in order to maintain the alphabetical organization of the Code.

APPLICABLE CODES — Includes, but is not limited to, the Borough's Property Maintenance Code, the Zoning Ordinance, Building Code and Fire Code, the Pennsylvania Building and Fire Codes, the UCC, and the Borough's Codified Ordinances.

BLIGHTED PROPERTY —

- A. Properties that have broken or severely damaged windows, doors, walls, or roofs which create hazardous conditions and encourage trespassing; or
- B. Properties whose maintenance is not in conformance with the maintenance of other neighboring properties causing a decrease in value of the neighborhood properties; or
- C. Properties cited for a public nuisance pursuant to the applicable codes; or
- D. Properties that endanger the public's health, safety, or welfare because the properties are vacant and abandoned or improvements thereon are dilapidated, deteriorated, or violate minimum health and safety standards or lack maintenance as required by the applicable codes.

ENFORCEMENT OFFICER — Any law enforcement officer, Building Official, Zoning Inspector, Code Enforcement Officer, Fire Marshal, Building Inspector, planner, or other person authorized by the Borough to enforce the applicable code(s).

MORTGAGEE — The creditor, including, but not limited to, trustees; mortgage servicing companies; lenders in a mortgage agreement; any agent, servant, or employee of the creditor; any successor in interest; or any assignee of the creditor's rights, interests or obligations under the mortgage agreement; or any other person or entity with the legal right to foreclose on the real property, excluding governmental entities as the assignee or owner.

OWNER — Any person, legal entity or other party having any ownership interest, whether legal or equitable, in real property. This term shall also apply to any person, legal entity, or agent responsible for the construction, maintenance or operation of the property involved.

PROPERTY MANAGEMENT COMPANY — A local property manager, property maintenance company or similar entity responsible for the maintenance of abandoned real property.

VACANT —

- A. Any building or structure that is not legally occupied and is not currently being offered for sale, rent or lease evidenced by a sign posted on the subject property advertising the property for sale, rent or lease with contact information, ownership information, and current phone number and/or an active listing on an electronic database accessible to Borough staff. If there is no posted sign and the listing is not accessible to Borough staff, a realtor may submit a written confirmation of listing to avoid the requirement of registration. This shall also include those properties subject to the provisions of § 131A-5 of this chapter, which also shall be defined as vacant and abandoned and subject to the requirements of registration and other provisions of this chapter.
- B. Exception: This definition shall not apply to properties where owners have, for reasons such as extended vacations, nursing home care, or temporary employment, not occupied their homes for over 90 days but intend to return and have notified the Baldwin Borough Police Department of their intentions.

§ 131A-3. Applicability.

These sections shall be considered cumulative and not superseding or subject to any other law or provision for same, but rather be an additional remedy available to the Borough above and beyond any state, county

or local provisions for same.

§ 131A-4. Establishment of registry.

Pursuant to the provisions of § 131A-5, the Borough of Baldwin or designee shall establish a registry cataloging each abandoned property and vacant property within the Borough, containing the information required by this chapter.

§ 131A-5. Registration of abandoned and/or vacant real property.

- A. Upon default by the mortgagor of the mortgage, any mortgagee (lender) who holds a mortgage on real property located within the Borough of Baldwin shall perform an inspection of the property to determine vacancy or occupancy, upon default by the mortgagor as evidenced by a foreclosure filing. The mortgagee (lender) shall, within 10 days of the inspection, register all vacant and abandoned property with the Department of Code Enforcement, or designee, on forms or website access provided by the Borough and pay the fee required for registration. A separate registration is required for each property.
- B. If the property is occupied but remains in default, it shall be inspected by the mortgagee (lender) or his designee monthly until:
 - (1) The mortgagor or other party remedies the default; or
 - (2) It is found to be vacant or shows evidence of vacancy at which time it is deemed abandoned, and the mortgagee shall, within 10 days of that inspection, update the property registration to a vacancy status on forms provided by the Borough.
- C. Registration pursuant to this section shall contain the name of the mortgagee and the servicer, the direct mailing address of the mortgagee and the servicer, a direct contact name and telephone number for both parties, facsimile number and email address for both parties, the PIN or tax number, and the name and twenty-four-hour contact phone number of the property management company responsible for the security and maintenance of the property.
- D. All registration fees must be paid directly from the mortgagee (lender), servicer, trustee, or owner. Third-party registration fees are not allowed without the consent of the Borough and/or its authorized designee.
- E. This section shall also apply to properties that have been the subject of a foreclosure sale where the title was transferred to the beneficiary of a mortgage involved in the foreclosure and any properties transferred under a deed in lieu of foreclosure/sale.
- F. Properties subject to this section shall remain under the semiannual registration requirement, and the inspection, security and maintenance standards of this section as long as they remain vacant or in default.
- G. Each individual property on the registry that has been registered for 12 months or more prior to the effective date shall have 30 days to renew the registration and pay the nonrefundable semiannual registration fee. Properties registered less than 12 months prior to the effective date shall renew the registration every six months from the expiration of the original registration renewal date and shall pay the nonrefundable semiannual registration fee.
- H. Any person or legal entity that has registered a property under this section must report any change of information contained in the registration within 10 days of the change.

- I. Failure of the mortgagee (lender) and/or owner to properly register or to modify the registration form from time to time to reflect a change of circumstances as required by this chapter is a violation of the chapter and shall be subject to enforcement.
- J. If the mortgage and/or servicing on a registrable property is sold or transferred, the new mortgagee is subject to all the terms of this chapter. Within 10 days of the transfer, the new mortgagee shall register the property or update the existing registration. The previous mortgagee(s) will not be released from the responsibility of paying all previous unpaid fees, fines, and penalties accrued during that mortgagee's involvement with the registrable property.
- K. If the mortgagee sells or transfers the registrable property in a non-arm's-length transaction to a related entity or person, the transferee is subject to all the terms of this chapter. Within 10 days of the transfer, the transferee shall register the property or update the existing registration. Any and all previous unpaid fees, fines, and penalties, regardless of who the mortgagee was at the time registration was required, including, but not limited to, unregistered periods during the foreclosure process, are the responsibility of the transferee and are due and payable with the updated registration. The previous mortgagee will not be released from the responsibility of paying all previous unpaid fees, fines, and penalties accrued during that mortgagee's involvement with the foreclosed property.
- L. The provisions of this section shall also apply to owners, servicers, trustees, property managers, and agents of all vacant and/or abandoned property not the subject of a mortgage in foreclosure. All property must be registered immediately upon vacancy.
- M. If the property not subject to a foreclosure is sold or transferred, the new owner is subject to all the terms of this chapter. Within 10 days of the transfer, the new owner shall register the vacant property. The previous owner(s) will not be released from the responsibility of paying all previous unpaid fees, fines, and penalties accrued during that owner's involvement with the vacant property.
- N. Pursuant to any administrative or judicial finding and determination that any property is in violation of this chapter, the Borough may take the necessary action to ensure compliance with and place a lien on the property for the cost of the work performed to benefit the property and bring it into compliance.

§ 131A-6. Maintenance requirements.

- A. Properties subject to this chapter shall be kept free of weeds, overgrown brush, dead vegetation, trash, junk, debris, building materials, any accumulation of newspaper circulars, flyers, notices, except those required by federal, state or local law, discarded personal items including, but not limited to, furniture, clothing, large and small appliances, printed material or any other items that give the appearance that the property is abandoned.
- B. The property shall be maintained free of graffiti or similar markings by removal or painting over with an exterior-grade paint that matches the color of the exterior structure.
- C. Front, side, and rear yards, including landscaping, shall be maintained in accordance with the applicable code(s) at the time registration was required.
- D. Yard maintenance shall include, but not be limited to, grass, ground covers, bushes, shrubs, hedges or similar plantings, decorative rock or bark or artificial turf/sod designed specifically for residential installation. Acceptable maintenance of yards and/or landscape shall not include weeds, gravel, broken concrete, asphalt or similar material.
- E. Maintenance shall include, but not be limited to, watering, irrigation, cutting and mowing of required

ground cover or landscape and removal of all trimmings.

- F. Pools and spas shall be maintained so the water remains free and clear of pollutants and debris and shall comply with the regulations set forth in the applicable code(s).
- G. Failure of the mortgagee (lender) and/or owner to properly maintain the property may result in a violation of the applicable code(s) and issuance of a citation or notice of violation in accordance with the applicable code of the Borough. Pursuant to a finding and determination by either the Borough's Code Enforcement Officer, Magisterial District Judge, or a court of competent jurisdiction, the Borough may take the necessary action to ensure compliance with this section.
- H. In addition to the above, the property is required to be maintained in accordance with the Borough's Property Maintenance Code, Building Code, Fire Code, and other applicable code(s) of the Borough.

§ 131A-7. Security requirements.

- A. Properties subject to these sections shall be maintained in a secure manner so as not to be accessible to unauthorized persons.
- B. A "secure manner" shall include, but not be limited to, the closure and locking of windows, doors, gates and other openings of such size that may allow a child to access the interior of the property or structure. Broken windows, doors, gates and other openings of such size that may allow a child to access the interior of the property or structure must be repaired. Broken windows shall be secured by reglazing of the window.
- C. If a mortgage on a property is in default, and the property has become vacant or abandoned, a property manager shall be designated by the mortgagee, owner, trustee, or legal entity to perform the work necessary to bring the property into compliance with the applicable code(s), and the property manager must perform regular inspections to verify compliance with the requirements of this chapter and any other applicable laws.

§ 131A-8. Public nuisance.

All abandoned real property is hereby declared to be a public nuisance, the abatement of which pursuant to the police power is hereby declared to be necessary for the health, welfare and safety of the residents of the Borough.

§ 131A-9. Inspections for violations.

Adherence to this chapter does not relieve any person, legal entity or agent from any other obligations set forth in any applicable code(s), which may apply to the property. Upon offer for sale or transfer of title to the property, the owner shall be responsible to apply to the Borough's Department of Code Enforcement for an occupancy permit.

§ 131A-10. Additional authority.

- A. If the Enforcement Officer has reason to believe that a property subject to the provisions of this chapter is posing a serious threat to the public health, safety and welfare, the Code Enforcement Officer may temporarily secure the property at the expense of the mortgagee and/or owner, and may bring the violations before the Magisterial District Judge as soon as possible to address the conditions of the property.

- B. The Code Enforcement Officer or Magisterial District Judge shall have the authority to require the mortgagee and/or owner of record of any property affected by this section to implement additional maintenance and/or security measures, including, but not limited to, securing any and all doors, windows or other openings, employment of an on-site security guard or other measures as may be reasonably required to help prevent further decline of the property.
- C. If there is a finding that the condition of the property is posing a serious threat to the public health, safety and welfare, then the Borough may abate the violations and charge the mortgagee with the cost of the abatement.
- D. If the mortgagee, owner, trustee or legal entity does not reimburse the Borough for the cost of temporarily securing the property, or of any abatement directed by the Code Enforcement Officer or Magisterial District Judge, within 30 days of the Borough sending the mortgagee the invoice, then the Borough may lien the property with such cost, along with an administrative fee as determined in the Borough's fee ordinance to recover the administrative personnel services.

§ 131A-11. Opposing or obstructing enforcement officer; penalty.

Whoever opposes, obstructs or resists any enforcement officer, or any person authorized by the enforcement office in the discharge of duties as provided in this chapter, shall be punishable as provided in the applicable code(s) or a court of competent jurisdiction.

§ 131A-12. Immunity of enforcement officer.

Any enforcement officer or any person authorized by the Borough to enforce the sections here within shall be immune from prosecution, civil or criminal, for reasonable, good faith entry upon real property while in the discharge of duties imposed by this chapter.

§ 131A-13. Fees; violations and penalties.

- A. A nonrefundable registration fee in the amount of \$300 per property shall accompany the registration.
- B. If a property is not registered, or the registration fee is not paid within 30 days of when the registration or renewal is required pursuant to this section, a late fee equivalent to 10% of the semiannual registration fee shall be charged for every thirty-day period, or portion thereof, the property is not registered and shall be due and payable with the registration.
- C. Any person who shall violate the provisions of this chapter may be cited and fined. Failure to register abandoned or vacant real property on an annual basis and/or any violation of the sections stated within this chapter shall result in a fine of \$500. A separate offense shall be deemed committed each day during or on which such noncompliance or violation shall continue.

§ 131A-14. Amendments.

Registration, late fees and penalty fees outlined in this chapter may be modified by resolution, passed and adopted by the Council of the Borough of Baldwin.

§ 131A-15. Severability.

It is hereby declared to be the intention of the Council of the Borough of Baldwin that several provisions of this chapter are separable. If any court of competent jurisdiction shall declare any words, sentences, sections or provisions of this chapter to be invalid, such a ruling shall not affect any other words, sentences,

sections or provisions of this chapter not specifically included in said ruling.

§ 131A-16. Repealer.

All ordinances, or parts of ordinances, in conflict with the provisions of this chapter are hereby repealed.

§ 131A-17. When effective.

This chapter shall be in full force and effect from the date of its adoption by the Baldwin Borough Council and upon publication provided by law.

Chapter 132**RECYCLING**

§ 132-1.	Title.	§ 132-8.	Existing recycling operations.
§ 132-2.	Definitions.	§ 132-9.	Disposal of recyclables.
§ 132-3.	Program established; grant of power.	§ 132-10.	Administration and enforcement.
§ 132-4.	Disposal of lead-acid batteries.	§ 132-11.	Collection agreements authorized.
§ 132-5.	Separation and collection.	§ 132-12.	Modifications.
§ 132-6.	Ownership of recyclables.		
§ 132-7.	Collection by unauthorized persons.		

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 9-17-1990 by Ord. No. 619. Amendments noted where applicable.]

GENERAL REFERENCES

Solid waste — See Ch. 136.

§ 132-1. Title.

The short title of this chapter shall be the "Borough of Baldwin Recycling Ordinance," and the same may be cited in that manner.

§ 132-2. Definitions.

The following words and phrases, as used throughout this chapter, shall have the following meanings:

ACT 101 — The Municipal Waste Planning, Recycling and Waste Reduction Act of 1988.⁴¹

ALUMINUM — All empty aluminum beverage or food cans.

BIMETAL CONTAINERS — Empty food or beverage containers consisting of steel and aluminum.

BOROUGH — The Borough of Baldwin.

COLLECTOR — The entity or entities authorized by the Borough to collect recyclable materials from residences or authorized by commercial, municipal and institutional establishments that do not receive collection services from the Borough to collect recyclable materials from those properties.

COMMERCIAL ESTABLISHMENTS — Those properties used primarily for commercial or industrial purposes, and those multiple-dwelling residential buildings containing more than two dwelling units.

COMMUNITY ACTIVITIES — Events that are sponsored by public or private agencies or individuals that include but are not limited to fairs, bazaars, socials, picnics and organized sporting events attended by

41. Editor's Note: See 53 P.S. § 4000.101 et seq.

200 or more individuals per day.

CORRUGATED PAPER — Structural paper material with an inner core shaped in rigid parallel furrows and ridges.

FERROUS CONTAINERS — Empty steel or tin-coated food or beverage containers.

GLASS CONTAINERS — Bottles and jars made of either clear, green or brown glass. Expressly excluded are noncontainer glass, plate glass, automotive glass, light bulbs, blue glass and porcelain and ceramic products.

HIGH-GRADE OFFICE PAPER — All white paper, bond paper and computer paper used in commercial, institutional and municipal establishments and in residences.

INSTITUTIONAL ESTABLISHMENT — Those facilities that house or serve groups of people, including but not limited to hospitals, nursing homes, orphanages, day-care centers, schools and universities.

LEAD-ACID BATTERIES — Includes but shall not be limited to automotive, truck and industrial batteries that contain lead.

LEAF WASTE — Leaves from trees, bushes and other plants, garden residues, chipped shrubbery and tree trimmings, but not including grass clippings.

MAGAZINES and PERIODICALS — Printed matter containing miscellaneous written pieces published at fixed or varying intervals. Expressly excluded are all other paper products of any nature whatsoever.

MULTIFAMILY HOUSING PROPERTIES — Any properties having three or more dwelling units per structure and shall include apartments, hotels, inns and other like facilities.

MUNICIPAL ESTABLISHMENT — Public facilities operated by the Borough and other governmental and quasi-governmental authorities.

MUNICIPALITY — The Borough of Baldwin.

MUNICIPAL WASTE — Any garbage, refuse, industrial lunchroom or other material, including solid, liquid, semisolid or contained gaseous material, resulting from operation of residential, municipal, commercial or institutional establishments and from community activities and any sludge not meeting the definition of residual or hazardous waste in the Solid Waste Management Act⁴² from a municipal, commercial or institutional water supply treatment plant or air pollution control facility. The term does not include source-separated recyclable materials.

NEWSPAPERS — Paper of the type commonly referred to as "newsprint" and distributed at fixed intervals, having printed thereon news and opinions, containing advertisements and other matters of public interest. Expressly excluded are newspapers which have been soiled, color comics, glossy advertising inserts and advertising inserts printed in color other than black and white, often included with newspapers.

PERSON(S) — Owners, lessees and occupants of residences and commercial, municipal and institutional establishments.

PLASTIC CONTAINERS — Empty plastic food and beverage containers. Due to the wide variety of types of plastics, the Borough may stipulate specific types of plastic which may be recycled.

RECYCLABLE MATERIALS — Materials generated by residences and commercial, municipal and institutional establishments which are specified by the Borough and can be separated from municipal waste and returned to commerce to be reused as a resource in the development of useful products. "Recyclable materials" may include but are not necessarily limited to clear glass, colored glass, aluminum, steel and

42. Editor's Note: See 35 P.S. § 6018.101 et seq.

bimetallic cans, high-grade office paper, newsprint, corrugated paper, leaf waste, plastics and any other items selected by the Borough or specified in future revisions to Act 101. The recyclable materials selected by the Borough may be revised from time to time as deemed necessary by the Borough.

RECYCLING — The collection, separation, recovery and sale or reuse of metals, glass, paper, leaf waste, plastics and other materials which would otherwise be disposed or processed as municipal waste or the mechanized separation and treatment of municipal waste, other than through combustion, and the creation and recovery of reusable materials.

RESIDENCES — Any occupied single-family or multifamily dwellings having up to two dwelling units per structure for which the Borough provides municipal waste collection service.

SOURCE-SEPARATED RECYCLABLE MATERIALS — Those materials separated at the point of origin for the purpose of being recycled.

WASTE — A material whose original purpose has been completed and which is directed to a disposal or processing facility or is otherwise disposed. The term does not include source-separated recyclable materials or material approved by the Pennsylvania Department of Environmental Resources for beneficial use.

§ 132-3. Program established; grant of power.

- A. The Borough hereby establishes a recycling program for the mandatory separation of recyclable materials and the separation, collection and composting of leaf waste from all residences and all commercial, municipal and institutional establishments located in the Borough for which waste collection is provided by the Borough or any other collector. Collection of the recyclable materials shall be made at least once per month by the Borough, its designated agent or any other solid waste collectors operating in the Borough and authorized to collect recyclable materials from residences or from commercial, municipal and institutional establishments. The recycling program shall also contain a sustained public information and education program.
- B. Specific program regulations are provided in the form of a resolution as an attachment to this chapter.⁴³ The Borough Council is empowered to make changes to program regulations as necessary, as described in § 132-10. Subsequent changes in the program regulations may be made through approval of the Borough Council and public notice and notification of all affected parties.

§ 132-4. Disposal of lead-acid batteries.

Disposal by persons of lead-acid batteries with other municipal wastes is prohibited and shall be a violation of this chapter.

§ 132-5. Separation and collection.

- A. All persons who are residents of the Borough shall separate all of those recyclable materials designated by the Borough from all other municipal waste produced at their homes, apartments and other residential establishments, shall store such materials for collection, and shall place the same for collection in accordance with the guidelines established hereunder.
 - (1) Persons in residences must separate recyclable materials from other refuse. For those residences utilizing the Borough's authorized agent, recyclable materials shall be placed at the curbside in containers provided by the Borough for collection. Any containers provided to residences for

43. Editor's Note: Said resolution is on file in the Borough Secretary's office.

collection of recyclable materials shall be the property of the Borough and shall be used only for the collection of recyclable materials. Any resident who moves within or from the Borough shall be responsible for leaving the allocated container within the residence or shall pay the replacement cost of said container(s). Use of recycling containers for any purpose other than the designated recycling program or use of the recycling containers by any person other than the person allocated such container(s) shall be a violation of this chapter.

- (a) Residents may, if necessary, purchase additional containers of their choosing for recyclable materials. However, any such container must bear the self-adhesive recycling logo label. The labels are available at the Borough office free of charge.
 - (b) If recyclable materials are collected by a collector other than the Borough or its authorized agent (owners, landlords and agents of owners or landlords, but excluding individual residents), such collector shall submit an annual report to the Borough reporting the tonnage of materials recycled during the previous year.
- (2) An owner, landlord or agent of an owner or landlord of a multifamily rental housing property with three units or more must comply with his recycling responsibilities by establishing a collection system at each property. The collection system must include suitable containers for collecting and sorting the recyclable materials, easily accessible locations for the containers and written instructions to the occupants concerning the use and availability of the collections system.
 - (a) If recyclable materials are collected by a collector other than the Borough or its authorized agent (owners, landlords and agents of owners or landlords, such collector shall submit an annual report to the Borough reporting the tonnage of materials recycled during the previous year.
- B. All persons must separate leaf waste from other municipal waste generated at their houses, apartments and other residential establishments for collection unless those persons have otherwise provided for composting of leaf waste.
- C. Persons must separate high-grade office paper, aluminum, corrugated paper, leaf waste and such other materials as may be designated by the Borough and is generated at commercial, municipal and institutional establishments and from community activities and store the recyclable materials until collection. A person may be exempted from this subsection if that person submits documentation to the Borough annually indicating that the designated recyclable materials are collected by a collector other than the Borough or its authorized agent. Occupants of said establishments shall submit an annual report to the Borough reporting the tonnage of materials recycled during the previous year, provided that such person shall submit, at a minimum, an annual recycling report to the Borough Secretary.
 - (1) The report shall document the amount of municipal waste generated per year as well as the type and weight of materials that were recycled in the previous calendar year.
 - (2) Valid documentation shall include information from an end-user, recycler or waste hauler which describes the type and weight of each recyclable material that was collected and marketed.
 - (3) Documentation may be in the form of one of the following:
 - (a) Copies of weight receipts or statements which consolidate such information;
 - (b) A report from the provider of recycling collection services which identifies the amount of

each material collected and marketed (the type and weight of recyclables generated by an individual establishment may be approximated based on a representative sample of its source-separated materials); or

- (c) A report from the provider of waste collection services that identifies the type and weight of each recyclable material collected and marketed in cases where recyclables are commingled with the establishment's waste. The type and weight of recyclables generated by an individual establishment may be approximated based on a representative sample of its waste.
 - (4) For Subsection C(3)(b) and (c), where recyclables from several establishments are collected in the same vehicle, an individual establishment's contribution to the load may be apportioned.
 - (5) Only the weight of materials marketed for recycling purposes can be credited to an establishment.
- D. All employees, users (patrons) and residents of commercial, municipal and institutional establishments shall be informed by their employers of the recycling program. The education program shall describe the program's features and requirements and should include, at a minimum, an annual program meeting and an orientation to the program upon the arrival of a new employee or resident. Receptacles should be clearly marked with the recycling symbol and the type of recyclable material that is to be placed in the receptacle, and signs should be prominently displayed stating the requirements of the program.
- E. Waste minimization.
- (1) Commercial, municipal and institutional establishments which generate more than 2,200 pounds of municipal waste per month should also implement a waste minimization opportunity assessment which includes:
 - (a) Waste characterization, including source, generation rate, management techniques and management costs. The assessment should expressly consider high-grade office paper, aluminum, corrugated paper, leaf waste, clear, green and brown glass and any other materials generated in significant quantities.
 - (b) A description of all possible waste minimization options, including use and waste reclamation.
 - (c) An evaluation of the economic and technical feasibility of each option and a ranking of each option.
 - (d) An estimate of the payback period for each feasible option.
 - (e) A statement of which options will be implemented, including an explanation and a timetable.
 - (f) Identification of the individual(s) who will be responsible for implementing the plan.
 - (2) The waste minimization plan should be periodically updated.
 - (a) Implementation of the plan should include:
 - [1] Recycling or composting of materials, to the greatest extent feasible, either privately or through a municipal recycling program.

- [2] Use, to the greatest extent feasible, of products and materials which are recyclable or made of post-consumer materials.
 - [3] Substitution, to the greatest extent feasible, of durable and reusable products and materials for products that are not durable or reusable.
- (b) Appropriate education materials and signs should be made available to employees or the public to encourage participation in recycling and waste reduction.
- F. All recycling collection activity shall be conducted from Monday through Friday between the hours of 6:00 a.m. and 5:00 p.m. or on Saturdays between the hours of 6:00 a.m. and 5:00 p.m., unless prior approval or any exception has been granted by the Borough. No collection, hauling or transporting of recyclables shall be permitted on Sunday.

§ 132-6. Ownership of recyclables.

All recyclable materials placed by persons for collection by the Borough or authorized collector pursuant to this chapter shall, from time of placement at the curb, become the property of the Borough or the authorized collector, except as otherwise provided by § 132-8 of this chapter. Nothing in this chapter shall be deemed to impair the ownership of separated recyclable materials by the generator unless and until such materials are placed at the curbside for collection. Nothing contained herein, however, shall be construed so as to create liability on the part of the Borough because of the placement of such recyclable materials at curbside.

§ 132-7. Collection by unauthorized persons.

It shall be a violation of this chapter for any person, firm or corporation, other than the Borough or one authorized by the Borough Council, or other entity responsible for providing for collection of recyclable materials, to collect recyclable materials placed by residences or commercial, municipal and institutional establishments for collection by the Borough or an authorized collector unless such person, firm or corporation has prior written permission from the generator to make such collection. In violation hereof, unauthorized collection from one or more residences or commercial, municipal and institutional establishments on one calendar day shall constitute a separate and distinct offense punishable as hereinafter provided.

§ 132-8. Existing recycling operations.

Any residence or commercial, municipal or institutional establishment may donate or sell recyclable materials to any person, firm or corporation, whether operating for profit or not, provided that the receiving person, firm or corporation shall not collect such donated recyclable materials from the collection point of a residence or commercial, municipal or institutional establishment without prior written permission from the Borough or other entity responsible for authorizing collection of recyclable materials to make such a collection.

§ 132-9. Disposal of recyclables.

Disposal by persons of recyclable materials with wastes is prohibited and shall be a violation of this chapter. The collected recyclable materials shall be taken to a recycling facility. Disposal by collectors or operators of recycling facilities of source-separated recyclable materials in landfills or to be burned in incinerators is prohibited unless markets do not exist and the collectors or operators have notified the Borough Secretary, or her designee, in writing.

§ 132-10. Administration and enforcement.

- A. The Borough Council shall make reasonable rules and regulations for the operation and enforcement of this chapter as deemed necessary, including but not limited to:
- (1) Establishing recyclable materials to be separated for collection and recycling by residences and additional recyclable materials to be separated by commercial, municipal and institutional establishments.
 - (2) Establishing collection procedures for recyclable materials.
 - (3) Establishing reporting procedures for amounts of materials recycled.
 - (4) Establishing procedures for the distribution, monitoring and collection of recyclable containers.
 - (5) Establishing procedures and rules for the collection of leaf waste.
- B. Any person, firm or corporation who shall violate the provisions of this chapter shall receive an official written warning of noncompliance for the first and second offense. Thereafter, all such violations shall be subject to the penalties hereinafter provided.
- C. Except as hereinafter provided, any person, firm or corporation who shall violate any of the provisions of this chapter shall, upon conviction, be sentenced as follows:
- (1) Summary offense. Any person, other than a municipal official exercising his official duties, who violates any provision of this chapter, any regulation promulgated hereunder, any order issued hereunder or the terms or conditions of any approved municipal waste management plan shall, upon conviction thereof in a summary proceeding, be sentenced to pay a fine of not less than \$100 and not more than \$1,000.
 - (2) Misdemeanor offense. Any person, other than a municipal official exercising his official duties, who violates any provision of this chapter, any regulation promulgated hereunder, any order issued hereunder or the terms or conditions of any approved municipal waste management plan commits a misdemeanor of the third degree and shall, upon conviction, be sentenced to pay a fine of not less than \$1,000 but not more than \$10,000 per day for each violation.
 - (3) Second or subsequent offense. Any person, other than a municipal official exercising his official duties, who, within two years after a misdemeanor for any violation of this chapter, violates any provision of this chapter, any regulation promulgated hereunder, any order issued hereunder or the terms or conditions of any approved municipal waste management plan commits a misdemeanor of the second degree and shall, upon conviction, be sentenced to pay a fine of not less than \$2,500 nor more than \$25,000 for each violation.
- D. Violations to be separate offense. Each violation for each separate day and each violation of any provision of this chapter, any regulation promulgated hereunder, any order issued hereunder or the terms or conditions of any approved municipal waste management plan shall constitute a separate offense under Subsection C(1), (2) and (3).
- E. The Borough reserves the right not to collect municipal waste containing recyclable materials in combination with nonrecyclable materials or not to collect municipal waste from any residence not being registered as having obtained a Borough recycling container.

§ 132-11. Collection agreements authorized.

The Borough may enter into an agreement(s) with public or private agencies or firms to authorize them to collect all or part of the recyclable materials from curbside.

§ 132-12. Modifications.

The Borough may, from time to time, modify, add to or remove from the standards and regulations herein and as authorized in § 132-10.

RENTAL PROPERTY

Chapter 133

RENTAL PROPERTY

ARTICLE I			
Residential Rental Property Registration, Occupancy Permits and Transfer Inspections			
§ 133-1.	Title.	§ 133-6.	Occupant duties.
§ 133-2.	Purpose and policy.	§ 133-7.	Occupant permit and inspection.
§ 133-3.	Definitions.	§ 133-8.	Delivery of notification.
§ 133-4.	Owner's duties.	§ 133-9.	Notices; change in ownership; multiple owners; confidentiality.
§ 133-5.	Noncompliance.	§ 133-10.	Enforcement; violations and penalties; severability.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin as indicated in article histories. Amendments noted where applicable.]

GENERAL REFERENCES

Numbering of buildings — See Ch. 80.

Leasing of property — See Ch. 109.

Uniform construction codes — See Ch. 83.

Property maintenance — See Ch. 131.

Disorderly houses — See Ch. 84.

Solid waste — See Ch. 136.

ARTICLE I

Residential Rental Property Registration, Occupancy Permits and Transfer Inspections
[Adopted 7-28-2009 by Ord. No. 820]**§ 133-1. Title.**

This article shall be known as the Borough of Baldwin "Rental and Real Estate Transfer Inspection Ordinance."

§ 133-2. Purpose and policy.

It is the purpose of this article and the policy of the Council of the Borough of Baldwin, in order to protect and promote the public health, safety and welfare of its citizens, to establish rights and obligations of owners and occupancy relating to the rental and sale of residential units in the Borough of Baldwin and to encourage owners and occupants to maintain and improve the quality of housing within the community. It is also the policy of the Borough that owners, managers and occupants share responsibilities to obey the various codes adopted to protect and promote public health, safety and welfare. As a means to those ends, this article provides for a system of inspections, issuance and renewal of occupancy permits and sets penalties for violations. In addition, there is a greater incidence of violations of various codes of the Borough of Baldwin in residential rental properties where owners rent properties to tenants. This article shall be liberally construed and applied to promote its purposes and policies. In considering the adoption of this article, the Borough of Baldwin makes the following findings.

§ 133-3. Definitions.

As used in this article, the following terms shall have the meanings indicated:

BOROUGH OF BALDWIN — The Borough of Baldwin, Allegheny County, Pennsylvania.

CODE — Any code or ordinance adopted, enacted and/or in effect in and for the Borough of Baldwin concerning fitness for habitation or the construction, maintenance, operation, occupancy, use or appearance for any premises or residential unit. Included within, but not limited by, this definition are the following which are in effect as of the date of the enactment of this article: the Uniform Construction Code (hereafter "UCC"), International Property Maintenance Code, International Plumbing Code, International Fire Prevention Code, International Electrical Code, Floodplain Management Ordinance, International Building Code and any duly enacted amendment or supplement to any of the above and any new enactment falling within this definition.

CODE ENFORCEMENT OFFICER — The duly appointed Code Enforcement Officer(s) having charge of the Office of Code Enforcement of the Borough of Baldwin and any assistants or agents.

COMMON AREA — Any open area within a structure by occupants or that the occupants have the right to share, including, but not limited to, kitchens, bathrooms, living rooms, dining rooms, attics, basements and any room used for parties, social events or the congregation of people, excepting bedrooms.

DISRUPTIVE CONDUCT — Any form of conduct, action, incident or behavior perpetrated, caused or permitted by any occupant or visitor of a residential unit that is so loud, untimely (as to the hour of the day), offensive, riotous or that otherwise disturbs other persons of reasonable sensibility in their peaceful enjoyment of their premises such that a report is made to police and/or to the Code Enforcement Officer complaining of such conduct, action, incident or behavior. It is not necessary that such conduct, action, incident or behavior constitute a criminal offense, nor that criminal charges be filed against any person, in order for a person to have perpetrated, caused or permitted the commission of disruptive conduct, as

defined herein; provided, however, that no disruptive conduct shall be deemed to have occurred unless the Code Enforcement Officer or police shall investigate and make a determination that such did occur, and keep written records, including a disruptive conduct report, of such occurrence.

LANDLORD — One or more persons, jointly or severally, in whom is vested all or part of the legal title to the premises or all or part of the beneficial ownership and a right to the present use and enjoyment of the premises, including a mortgage holder in possession of a residential rental unit (same as "owner").

LANDLORD-TENANT ACT — The Landlord and Tenant Act of 1951, 68 P.S. § 250.101 et seq.

MANAGER — An adult individual designated by the owner of a residential rental unit.

OCCUPANCY PERMIT — The permit issued to the owner of residential rental units under this article, which is required for the lawful occupancy of residential units.

OCCUPANT — An individual who resides in a residential rental unit, whether or not he or she is the owner thereof, with whom a legal relationship with the owner/landlord is established by a lease or by the laws of the Commonwealth of Pennsylvania.

OWNER — One or more persons, jointly or severally, in whom is vested all or part of the legal title to the premises or all or part of the beneficial ownership and a right to the present use and enjoyment of the premises, including a mortgage holder in possession of a residential rental unit.

OWNER-OCCUPIED RENTAL UNIT — A rental unit in which the owner resides on a regular, permanent basis.

PERSON — A natural person, partnership, corporation, unincorporated association, limited partnership, trust or any other entity.

POLICE — The Police Department of the Borough of Baldwin or any properly authorized member or officer thereof or any other law enforcement agency having jurisdiction within the Borough of Baldwin.

PREMISES — Any parcel of real property in the Borough, including the land and all buildings and appurtenant structures or appurtenant elements, on which one or more rental units are located.

REAL ESTATE RESIDENTIAL PROPERTY — Property consisting of a single-family detached home and land.

RENTAL AGREEMENT — A written agreement between owner/landlord and occupant/tenant embodying the terms and conditions concerning the use and occupancy of a specified residential rental unit or premises.

RESIDENTIAL RENTAL UNIT — Any structure within the Borough of Baldwin which is occupied by someone other than the owner of the real estate as determined by the most current deed and for which the owner of the said parcel of real estate received any value, including but not limited to money, or the exchange of services. Each apartment within a building is a separate structure requiring inspection and a license.

STRUCTURE — Any human-made object, the use of which requires an ascertainable stationary location on land, whether or not it is affixed to the land. Each apartment within a building is a separate structure.

TENANT — An individual who resides in a rental unit, whether or not he or she is the owner thereof, with whom a legal relationship with the owner/landlord is established by a lease or by the laws of the Commonwealth of Pennsylvania (same as "occupant").

§ 133-4. Owner's duties.

A. It shall be the responsibility of every owner to register with the Borough of Baldwin a contact name

and twenty-four-hour telephone number for emergency purposes.

B. Disclosure.

- (1) The owner or manager shall disclose to the occupant in writing on or before the commencement of the tenancy:
 - (a) The name, address and telephone number of the manager, if applicable.
 - (b) The name, address and telephone number of the owner of the premises.
- (2) Before an occupant initially enters into or renews a rental agreement for a rental unit, the owner or manager shall furnish the occupant with the most recent inspection report relating to the property.

C. Maintenance of premises.

- (1) The owner shall maintain the premises in compliance with the applicable codes of the Borough of Baldwin and shall regularly perform all routine maintenance, including lawn mowing and ice and snow removal and shall promptly make any and all repairs necessary to fulfill this obligation.
- (2) The owner and occupant may agree that the occupant is to perform specified repairs, maintenance tasks, alterations or remodeling. In such case, however, such agreement between the owner and occupant must be in writing. Such an agreement may be entered into between the owner and occupant only if:
 - (a) The agreement of the parties is entered into in good faith and not for the purpose of evading the obligations of the owner or occupant.
 - (b) The agreement does not diminish or affect the obligation of the owner to other occupants in the premises.
- (3) In no case shall the existence of any agreement between owner and occupant relieve an owner of any responsibility under this article or other ordinances or codes for maintenance of the premises.

D. Registration. Every owner of a residential rental unit must register the unit with the Code Enforcement Officer in accordance with the following schedule:

- (1) All owners of residential units must register the units with the Code Enforcement Officer within 30 days after the effective date of this article.
- (2) Any individual, entity or firm which converts any structure to a residential rental unit or units shall register the residential rental unit or units with the Code Enforcement Officer of the Borough of Baldwin within 30 days of the completion of the conversion of the unit or units; within 30 days of the time when any rent, including the exchange of other services for the unit or units, is obtained; or within 30 days of the date within which a tenant or tenants occupy the unit or units, whichever time period is sooner.
- (3) It shall be the responsibility of the grantee and the grantee's agent in the purchase of the said real estate, including the grantee's attorney or title company, to notify Baldwin Borough within 72 hours of any purchase or transfer of a rental unit building or real estate residential property.

- (4) The owner of a residential rental unit must update the registration information on record with the Code Enforcement Officer within 10 days of any changes of the information set forth below.
 - (5) Registration information shall be provided by all owners and shall include the following:
 - (a) Owner name, address, telephone number.
 - (b) Name, address, telephone number of an emergency contact person.
 - (c) Property address and number of units.
 - (d) Maximum occupancy per unit.
 - (e) Emergency telephone number.
 - (f) Actual number of occupants.
 - (g) Names and addresses of current tenants.
 - (6) Any owner of a residential rental unit shall notify the Borough of Baldwin within 10 days of a new tenant occupying, renting or residing in the landlord's or owner's residential rental unit.
 - (7) Notwithstanding any other provisions of this article, the names and addresses of a tenant shall not be disclosed by any Borough personnel in the event that the tenant is the subject of a court order requiring that this information be kept confidential.
- E. Complaints. The owner shall reply promptly to reasonable complaints and inquiries from occupants.
- F. Landlord-Tenant Act. The owner shall comply with all provisions of the Landlord-Tenant Act.
- G. Enforcement.
- (1) Within 10 days after receipt of written notice from the Code Enforcement Office that an occupant of a residential rental unit has violated a provision of this article, the owner shall take immediate steps to remedy the violation and take steps to assure that there is not a reoccurrence of the violation.
- H. Code violations. Upon receiving notice of any code violations from the Code Enforcement Officer, the owner shall promptly take action, or cause the necessary action to be taken, to abate the offending condition and eliminate the violation.
- I. Borough can make repairs. In case the owner of premises shall neglect, fail or refuse to comply with any notice from the Borough or its Code Enforcement Officer to correct a violation relating to maintenance and repair of the premises under any code in effect in the Borough of Baldwin within the period of time stated in such notice, the Borough may cause the violation to be corrected. There shall be imposed upon the owner a charge of the actual costs involved, plus 10% of said costs for each time the Borough shall cause a violation to be corrected, and the owner of the premises shall be billed after same has been completed. Any such bill which remains unpaid and outstanding after the time specified therein for payment shall be grounds for the imposition of a municipal lien upon the premises as provided by law. Such a lien may be reduced to judgment and enforced and collected as provided by law, together with interest at the legal rate and court costs. The remedies provided by this subsection are not exclusive, and the Borough and its Code Enforcement Officer may invoke such other remedies available under this article or the applicable codes, ordinances or statutes, including, where appropriate, condemnation proceedings or declaration of premises as unfit for habitation, or

suspension, revocation or nonrenewal of the license issued hereunder.

- J. Inspections. The inspection provisions of this section shall also pertain to any real estate residential property in which ownership is being transferred, provided that it has been at least one year since the previous inspection. The owner shall permit inspections of any premises by the Code Enforcement Officer at reasonable times upon reasonable notice. The inspections shall be completed as follows:
- (1) The Code Enforcement Officer of the Borough of Baldwin shall inspect at the time of transfer of occupant, provided that it has been at least one year since the previous inspection.
 - (2) A list of the items for the Code Enforcement Office to inspect for the transfer of rental or real estate residential property shall be on display in the Code Enforcement Office. This list of items may be modified from time to time commensurate with residential UCC codes. The noncompliance provisions of this section shall also pertain to any real estate residential property in which ownership is being transferred.

§ 133-5. Noncompliance.

- A. Any parcel of real estate containing a residential rental unit which has been found to be in noncompliance with this article shall be subject to reinspection by the Code Enforcement Officer as follows:
- (1) Each residential rental unit referred to above shall be inspected at the time of transfer, provided it has been at least one year since the previous inspection.
 - (2) In addition, each residential rental unit shall be inspected each time one of the residential rental units is vacant.
- B. In the event of a violation, a residential rental unit cannot be occupied unless and until the unit is approved as meeting the criteria of this article and any other applicable codes of the Borough of Baldwin as determined by the Code Enforcement Officer.
- C. Notice of violation.
- (1) If, after inspection of one or more of the residential rental units as set forth above, the Code Enforcement Officer determines that there are violations of any code of the Borough of Baldwin, the Code Enforcement Officer shall provide a notice of violation, which shall at a minimum set forth the following:
 - (a) Street address of the property.
 - (b) Date of the inspection.
 - (c) Name of the inspector.
 - (d) List of violations.
 - (2) Within 10 days after receipt of a written notice from the Borough of Baldwin Code Enforcement Officer that there has been a violation of this section or any other applicable ordinances of the Borough of Baldwin, the owner shall take immediate steps to remedy the violation and take steps to assure that there will not be a reoccurrence of the violation.
 - (3) Within 20 days after receipt of a notice of violation the owner of a residential rental unit shall file with the Code Enforcement Officer a report on a form provided by the Borough of Baldwin

setting forth what action the owner has taken to remedy the violation and what steps he or she has taken to prevent a reoccurrence of the violation. The report shall also set forth a plan as to steps the owner will take in the future if the violation reoccurs.

- D. All owners of any real estate containing or upon which are erected any residential rental unit which are in noncompliance with this article and who desire to sell the parcel of real estate shall notify the purchasers, in writing, prior to the sale of the parcel of real estate, that the parcel of real estate is in noncompliance with the terms and conditions of this article. Further, any property owner selling a parcel of real estate upon which is erected a residential rental unit or units which are found to be in noncompliance under the terms and conditions of this article shall notify the Code Enforcement Officer, in writing, within 30 days prior to closing on the sale of said parcel of real estate.
- E. All owners of any parcels of real estate containing residential rental units shall permit access to the property so that the Code Enforcement Officer of the Borough of Baldwin shall be able to complete all inspections necessary to determine compliance with this article and any other applicable ordinances of the Borough of Baldwin. Refusal to allow entry of the residential rental unit by the Code Enforcement Officer of the Borough of Baldwin to inspect the said unit shall be a violation of this article.
- F. The owner of any property containing or upon which is erected a residential rental unit shall pay a fee of \$60 for each and every reinspection to cover the cost of a reinspection each time a reinspection is required under the terms of this article or each time a reinspection is requested by the Code Enforcement Officer to determine compliance with this article or any other applicable ordinances of the Borough of Baldwin. The fee set forth herein may be increased or decreased by a resolution of Baldwin Borough Council.

§ 133-6. Occupant duties.

- A. Inspection of premises. The occupant shall permit inspections by the Code Enforcement Officer of the premises at reasonable times, upon reasonable notice.

§ 133-7. Occupant permit and inspection.

- A. Occupancy permit requirement. The occupancy permit provisions of this section shall pertain to any real estate residential property in which ownership is being transferred.
 - (1) As a prerequisite to entering into a rental agreement or permitting the occupancy of any rental unit, the owner of every such rental unit shall be required to apply for and obtain an occupancy permit for each rental unit.
 - (2) An occupancy permit shall be required for all residential rental units.
 - (3) The application for the occupancy permit shall be in a form as determined by the Borough.
 - (4) The owner shall maintain a current and accurate list of the occupants in each rental unit which shall include their name and current telephone number, which shall be available to the Borough for inspection upon reasonable notice. The owner shall notify the Borough of changes in the occupancy or of contact information within 10 days of the change and shall provide the name of the person who is no longer residing in the premises in the event a person departs and the name, current address and current telephone number of new occupants in the event a new person is added.

- (5) No occupancy permit shall be issued if the owner has not paid any fines and costs arising from enforcement of this article or any of the ordinances of the Borough of Baldwin relating to land use and/or code enforcement or if any permit fees under this article are due and owing the Borough.

§ 133-8. Delivery of notification.

- A. All notices shall be sent to the owner and manager, if applicable, by certified mail. In the event that the notice is returned by the postal authorities marked "unclaimed" or "refused," then the Code Enforcement Officer shall attempt delivery by personal service on the owner or manager, if applicable. The Code Enforcement Officer shall also post the notice at a conspicuous place on the premises.
- B. If personal service cannot be accomplished after a reasonable attempt to do so, then the notice may be sent to the owner or manager at the addresses stated on the most current occupancy permit application for the premises in question, by regular first-class mail, postage prepaid. If such notice is not returned by the postal authorities within five days of its deposit in the U.S. Mail, then it shall be deemed to have been delivered to and received by the addressee on the fifth day following its deposit in the U.S. Mail, and all time periods set forth above shall thereupon be calculated from said fifth day.

§ 133-9. Notices; change in ownership; multiple owners; confidentiality.

- A. Notices. For purposes of this article, any notice required hereunder to be given to a manager shall be deemed as notice given to the owner.
- (1) There shall be a rebuttable presumption that any notice required to be given to the owner under this article shall have been received by such owner if the notice was given to the owner in the manner provided by this article.
- (2) A claimed lack of knowledge by the owner of any violation hereunder cited shall be no defense to occupancy permit nonrenewal, suspension or revocation proceedings as long as all notices prerequisite to institution of such proceedings have been given and deemed received in accordance with the applicable provisions of this article.
- B. Changes in ownership occupancy. It shall be the duty of each owner of a residential rental unit to notify the Code Enforcement Officer, in writing, of any change in ownership of the premises or of the number of residential rental units on the premises. It shall also be the duty of the owner to notify the Code Enforcement Officer in writing of any increase in number of occupants in any rental unit or of the changing of a rental unit from owner-occupied to non-owner-occupied, which thereby transforms the dwelling into a residential rental unit for purposes of this article.
- C. Owners severally responsible. If any rental unit is owned by more than one person, in any form of joint tenancy, as a partnership or otherwise, each person shall be jointly and severally responsible for the duties imposed under the terms of this article and shall be severally subject to prosecution for the violation of this article.
- D. Confidentiality. All registration and contact information shall be maintained in a confidential manner by the Code Enforcement Officer and shall be utilized for the purpose of enforcement of this article by the Code Enforcement Officer and the Borough Manager.

§ 133-10. Enforcement; violations and penalties; severability.

- A. This article shall be enforced by the Code Enforcement Officer of the Borough of Baldwin.
- B. Basis for violation. It shall be unlawful for any person, as either owner or manager of a residential rental unit for which an occupancy permit is required, to operate without a valid, current occupancy permit issued by the Borough of Baldwin authorizing such operation. It shall be unlawful for any person, either owner or manager, to allow the number of occupants of a residential rental unit to exceed the maximum limit set forth on the occupancy permit or to violate any other provision of this section.
- C. Penalties. Any landlord or owner of a residential unit which violates any of the provisions (coordinate with our code), together with all of the subsections thereunder, shall, upon conviction thereof, be sentenced to pay a fine of \$500 for each and every offense. Each day of the said violation shall be a separate offense.
- D. Fines as imposed through this article shall be collected as allowable by law.
- E. Each day during which any owner of a residential rental unit violates any provisions of this article shall constitute a separate offense.
- F. This article and the foregoing penalties shall not be construed to limit or deny the right of the Borough of Baldwin or its agents or representatives to such equitable or other remedies as may otherwise be available with or without process of law.
- G. In addition to the fines set forth herein, the Borough of Baldwin shall be entitled to reasonable attorney's fees incurred in enforcing this article. The said fees shall be added to any penalties set forth above.
- H. The owners of all residential rental units in the Borough of Baldwin shall have the responsibility of making sure that all occupants within their rental units comply with and abide by this article of the Borough of Baldwin.
- I. If any section or provision of this article is adjudged by a court of competent jurisdiction to be unlawful, void or unenforceable, all the remaining sections and provisions of this article shall remain in full force and effect.

SEWERS

Chapter 134

SEWERS

ARTICLE I		§ 134-15.	Use of private systems by
Rents and Charges			abutting properties prohibited.
§ 134-1.	Adoption of schedule of	§ 134-16.	Notice to connect.
	charges.	§ 134-17.	Failure to comply; work by
§ 134-2.	Rentals and penalties to be a	§ 134-18.	Borough.
	lien.	§ 134-19.	Tapping permit required.
§ 134-3.	Schedule of charges.	§ 134-20.	Connection of private systems
ARTICLE II			prohibited.
Sewer Revenue Account		§ 134-21.	Abandonment of private
		§ 134-22.	systems.
§ 134-4.	Depository designated;	§ 134-23.	Other prohibited connections.
	authorized signatures.		Plans and specifications.
§ 134-5.	Word usage.		Violations and penalties.
ARTICLE III		ARTICLE VI	
Nonpayment of Charges		Connection Permits and Fees	
		§ 134-24.	Permit required.
§ 134-6.	Notice of nonpayment; shutoff	§ 134-25.	Conditions for issuance of
	authorized.		permit; fees.
§ 134-7.	Costs of shutoff; restoration of	§ 134-26.	Exceptions and/or adjustments
	service.		to fees.
§ 134-8.	List of delinquent accounts;	ARTICLE VII	
	hardship cases.	Disturbance or Interference with System	
ARTICLE IV		§ 134-27.	Prohibited acts.
Discharges Into Sewer System		§ 134-28.	Permission required to disturb
§ 134-9.	Definitions.	§ 134-29.	vicinity of system.
§ 134-10.	General discharge prohibition.	§ 134-30.	Restoration.
§ 134-11.	Specific discharge prohibition.		Violations and penalties.
§ 134-12.	Violation of standards, rules	ARTICLE VIII	
	and regulations prohibited.	Inspection and Certification of Sanitary and	
§ 134-13.	Violations and penalties.	Storm Sewers	
ARTICLE V		§ 134-31.	Definitions.
Sewer Connections; Private Systems		§ 134-32.	Sanitary sewer certification.
§ 134-14.	Connection required of	§ 134-33.	Application; dye test; fee.
	abutting properties.	§ 134-34.	Temporary certificate.

BALDWIN CODE

§ 134-35.	Municipal lien and tax verification letter.	§ 134-52.	Remission to Authority.
§ 134-35.1.	Video camera inspection.	ARTICLE XII MS4 Prohibited Discharges	
§ 134-36.	Adoption of rules and regulations by Borough Council.		
§ 134-37.	Exception.	§ 134-53.	Short title.
§ 134-38.	Effect on other laws.	§ 134-54.	Statement of findings.
§ 134-39.	Violations and penalties.	§ 134-55.	Purpose.
ARTICLE IX Holding Tanks		§ 134-56.	Statutory authority.
		§ 134-57.	Applicability.
§ 134-40.	Purpose.	§ 134-58.	Repealer.
§ 134-41.	Definitions.	§ 134-59.	Severability.
§ 134-42.	Rights and privileges granted.	§ 134-60.	Compatibility with other requirements.
§ 134-43.	Adoption of rules and regulations.	§ 134-61.	Definitions.
§ 134-44.	Rules and regulations to be in conformity with applicable law.	§ 134-62.	Stormwater management requirements.
§ 134-45.	Rates and charges.	§ 134-63.	Responsibilities of developers and landowners.
§ 134-46.	Exclusiveness of rights and privileges; reports; inspections.	§ 134-64.	Operation and maintenance agreements.
§ 134-47.	Duties of improved property owner.	§ 134-65.	Prohibited discharges and connections.
§ 134-48.	Violations and penalties.	§ 134-66.	Roof drains and sump pumps.
§ 134-49.	Abatement of nuisances.	§ 134-67.	Right-of-Entry.
ARTICLE X Pleasant Hills Authority Pretreatment Standards		§ 134-68.	Inspection.
		§ 134-69.	Enforcement.
§ 134-50.	Industrial users standards.	§ 134-70.	Suspension and revocation.
ARTICLE XI Collection of Sewer Tap-In Fees		§ 134-71.	Penalties.
		§ 134-72.	Appeals.
		§ 134-73.	References.
		ARTICLE XIII Fees for Delinquent Accounts and Delinquent Claims	
§ 134-51.	Collection by Borough.	§ 134-74.	Fees established.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin as indicated in article histories. Amendments noted where applicable.]

SEWERS

GENERAL REFERENCES

Municipal Authority — See Ch. 24.

Subdivision and land development — See Ch. 142.

Manholes — See Ch. 112.

Tree, shrub root interference with public sewers — See Ch. 150.

ARTICLE I

Rents and Charges

[Adopted 3-16-1959 by Ord. No. 170; amended in its entirety 1-21-1963 by Ord. No. 240]

§ 134-1. Adoption of schedule of charges.

The schedule of charges for sewer service set forth in § 134-3 is adopted as the basic rate schedule of charges to be imposed, billed and collected from the owner of or user of water in each property served by the sewer system leased by the Borough from the Municipal Authority of the Borough of Baldwin, Allegheny County, Pennsylvania.

§ 134-2. Rentals and penalties to be a lien.

The sewer rentals and penalties hereby imposed shall be a lien on the property served, and all delinquent bills therefor shall be entered as a lien against such property, and such lien shall be filed in the office of the Prothonotary of Allegheny County, Pennsylvania, and collected in the manner provided by law for the filing and collection of municipal liens.

§ 134-3. Schedule of charges. [Amended 1-18-1971 by Ord. No. 401; 12-16-1991 by Ord. No. 630; 2-28-2006 by Ord. No. 803; 12-22-2009 by Ord. No. 825; 12-29-2010 by Ord. No. 832; 12-20-2011 by Ord. No. 843; 12-15-2015 by Ord. No. 866; 4-19-2016 by Ord. No. 868; 5-17-2016 by Ord. No. 871; 12-20-2016 by Ord. No. 876; 12-19-2017 by Ord. No. 887; 12-18-2018 by Ord. No. 894; 12-17-2019 by Ord. No. 907; 12-15-2020 by Ord. No. 916; 12-21-2021 by Ord. No. 919; 10-20-2022 by Ord. No. 926; 12-19-2023 by Ord. No. 931; 12-17-2024 by Ord. No. 935; 10-21-2025 by Ord. No. 938; 12-16-2025 by Ord. No. 940]

A. The Borough of Baldwin does hereby impose upon users of the sewer system of the Borough of Baldwin the following basic rates and charges:

- (1) Basic rate per unit per month: \$3 per unit.
- (2) Per 500 gallons, or fraction thereof, of water used per month: \$3.22.
- (3) Per 1,000 gallons: \$16.02.
- (4) Monthly surcharge: \$21.75.

B. The charges in Subsection A are subject to the following terms and conditions:

- (1) For the purpose of determining charges to be imposed, billed and collected pursuant to the above rate schedule, the term "unit" as employed in this article is defined to mean a single-family dwelling or each separate apartment or dwelling unit in a multiple-family or apartment or double house or each store, restaurant, office, shop or similar commercial establishment, irrespective of whether the same is individually located or constitutes a part of a larger shopping center building or kindred structure.
- (2) (Reserved)
- (3) Consumers with private springs, private wells or other unmetered water sources will pay a flat rate annual charge of \$50 or install a meter at their own expense.
- (4) Any charges imposed by the Pleasant Hills Authority or the Allegheny County Sanitary Authority for the nature or characteristic of the sewage, for example, the BOD demand, the

suspended solids or similar commercial or industrial wastes, etc., will be assessed, at a rate in conformity with said charge, to the Baldwin consumers contributing such sewage.

- (5) Metered water which is not discharged to the sanitary sewerage system may be distinguished from metered water that is discharged to the sanitary sewerage system by the installation of an additional meter or meters at the consumer's expense. Such nonsanitary wastewater will not be subject to the above rate schedule when so metered. No meter shall be installed or used for such purpose without the prior approval of the Municipal Authority of the Borough of Baldwin.
- (6) That sewage bills shall be issued each month. All sewer usage charges billed shall be payable on or before the due date as stated on the bill. After such due date, the bill shall be deemed delinquent and a penalty of 10% shall be added to the sewer usage charges for that given monthly usage period. Interest, at the rate of 10% per annum, shall accrue on the day after the due date and shall be computed on both the amount of the sewer usage charges bill added to the amount of the penalty. All unpaid sewer fees, charges and/or assessments, together with penalty, interest, costs, fines, expenses and fees, including reasonable attorney fees, shall become a lien on the realty charged with the payment thereof and shall remain a lien until fully paid and satisfied.

ARTICLE II
Sewer Revenue Account
[Adopted 3-16-1959 by Ord. No. 171]

§ 134-4. Depositary designated; authorized signatures.

Western Pennsylvania National Bank be and it hereby is designated as depositary of the funds to be derived by the Borough from the operation of the sewer system which is to be leased by the Borough from the Municipal Authority of the Borough of Baldwin, Allegheny County, Pennsylvania, and is authorized to accept for deposit in an account to be known as the "Sewer Revenue Account Fund" in the name of the Borough, subject to clearance or collection, moneys, checks, drafts, notes, bills of exchange, acceptances or other orders for the payment of moneys which may at any time come into its possession with or without endorsement thereof by the Borough, payment thereof to the depositary being hereby guaranteed, and said depositary is authorized and directed to honor and pay and to charge to the accounts of this Borough all checks, drafts, bills of exchange, acceptances, notes or orders for the payment of money withdrawn on or addressed to said depositary and signed on behalf of this Borough by the following officers: President or Vice President and Secretary and Treasurer, whether the same is payable to the order of or in favor of the officer or person signing them or to any of said officers in his individual capacity or otherwise.

§ 134-5. Word usage.

The words used herein which are defined in the agreement of lease, dated as of April 1, 1959, between the Municipal Authority of the Borough of Baldwin, Allegheny County, Pennsylvania, and the Borough of Baldwin are used meanings as so defined.

ARTICLE III
Nonpayment of Charges
[Adopted 2-19-1973 by Ord. No. 431]

§ 134-6. Notice of nonpayment; shutoff authorized.

The Secretary of the Borough of Baldwin is by these presents authorized and directed to forward to any water utility situate within or without the Borough of Baldwin notice of nonpayment of any rental, rate or charge for sewer, sewerage or treatment service by the owner or occupant of premises by such utility wherein payment of said rental, rate or charge for sewer, sewerage or sewage treatment service shall be delinquent for a period of 180 days or more. In addition thereto, said Secretary of the Borough shall cause to be forwarded to the owner or occupant of said premises notice of the nonpayment of said rental, rate or charge for sewer, sewerage or sewage treatment service and that, unless the same shall be paid, the water utility serving said owner or occupant of said premises shall be directed to shut off the supply of water to such premises. In the event that the delinquent rental, rate or charge for sewer, sewerage or sewage treatment service shall not be paid within 10 days of the date of notice, then the said Secretary shall notify the water utility serving the said owner or occupant of the premises to shut off the supply of water to such premises. In addition to the written notice by mail required hereinbefore, the Secretary of the Borough shall cause to be posted at the main entrance to the premises of such owner or occupant written notice of the intention of the Borough that the water supply shall be shut off by the water utility serving the said premises.

§ 134-7. Costs of shutoff; restoration of service.

The Secretary of the Borough is hereby authorized and directed to pay to the water utility serving said premises the costs of such shutoff service and the estimated loss of water revenues resulting from said shutoff; provided, however, that if a dispute shall arise between the said water utility regarding the costs of such service or the amount of such revenues lost or regarding the provisions of any agreements with the said water utility, then the Secretary shall not execute any such agreement but shall refer the matter to Council for its determination. In determining the reasonable costs of such shutoff service and estimated loss of revenues, the Secretary shall review the use of water revenues and billing of the same for a period of one year prior to such request for shutoff. The owner or occupant of the premises thus affected may obtain the restoration of water service by paying to the Secretary of the Borough all delinquent rentals, rates or charges for sewer, sewerage or sewage treatment service owing by the owner or occupant of said premises and, in addition, shall pay all costs incurred by the Borough for such shutoff service and estimated loss of water revenues paid to the water utility involved.

§ 134-8. List of delinquent accounts; hardship cases.

Prior to the Secretary of the Borough taking the actions referred to in §§ 134-6 and 134-7 hereof, the said Secretary shall first submit to the Council of the Borough of Baldwin at its regular monthly meeting a list of those accounts which are delinquent for a period of 180 days or more and which would be subject to action under the provisions of this article. In cases where a known hardship exists, the Council may excuse the Secretary from enforcing the provisions of this article as against the owner or occupant of the premises.

ARTICLE IV

Discharges Into Sewer System**[Adopted 10-15-1984 by Ord. No. 551; amended in its entirety 2-20-1995 by Ord. No. 685]****§ 134-9. Definitions.**

For the purposes of this article, the following terms shall have the meaning hereafter designated:

ALCOSAN — The Allegheny County Sanitary Authority, including its treatment facility and any devices and systems used in the storage, treatment, recycling and reclamation of municipal sewage or industrial wastes of a liquid nature.

CORROSIVE WASTE — A waste or substance which has any of the following properties:

- A. It is aqueous and has a pH of less than or equal to five or greater than or equal to 10, as determined by pH meter.
- B. It is a liquid and corrodes steel (SAE1020) at a rate greater than 6.35 millimeters 0.250 inch per year at a test temperature of 55° C. (130° F.).

HAZARDOUS WASTE — All wastes that are defined as hazardous under the regulations enacted pursuant to the Resource Conservation and Recovery Act (RCRA) as specified in 40 CFR 261 or under the regulations promulgated pursuant to the Pennsylvania Solid Waste Management Act as specified in 25 Pa. Code Chapter 261.⁴⁴

IGNITABLE WASTE — A waste or substance which can create a fire hazard in the sewage collection system or the ALCOSAN treatment facility which has any of, but is not limited to, the following properties:

- A. It is liquid with a flash point less than 60° C. (140° F.) using the test methods specified in 40 CFR 261.21.
- B. It is an oxidizer as defined in 49 CFR 173.151.

INTERFERENCE — A discharge originating in the Borough which, alone or in conjunction with a discharge or discharges from other sources, both:

- A. Inhibits or disrupts the ALCOSAN facilities, its treatment processes or operations or its sludge processes, use or disposal; and
- B. Therefore, is a cause of a violation of any requirement of ALCOSAN'S National Pollutant Discharge Elimination System (hereinafter referred to as "NPDES") permit (including an increase in the magnitude or duration of a violation) or of the prevention of sewage sludge use or disposal by ALCOSAN in compliance with the following statutory provisions and regulations or permits issued thereunder (or more stringent state or local regulation): Section 405 of the Clean Water Act, the Solid Waste Disposal Act (including Title 2 or more commonly referred to as the "Resource Conservation and Recovery Act" and including state regulations contained in and the State Sludge Management Plan prepared pursuant to Subtitle D of the Solid Waste Disposal Act), the Clean Air Act, and the Toxic Substances Control Act.

PASS-THROUGH — The term "pass-through" shall mean any discharge of a pollutant through ALCOSAN into the waters of the Commonwealth of Pennsylvania in quantities or concentrations which, alone or in conjunction with other discharges from other sources, is a cause of a violation of any

44. Editor's Note: The provisions of 25 Pa. Code Ch. 261 reserved April 30, 1999, effective May 1, 1999, 29 Pa.B. 2367. See now 25 Pa. Code Ch. 261a. Identification and Listing of Hazardous Waste.

requirement of ALCOSAN's NPDES permit (including an increase in the magnitude or duration of a violation).

PERSON — Any individual, partnership, copartnership, firm, company, corporation, association, joint-stock company, trust, estate, governmental entity or any other legal entity, or its legal representatives, agents or assigns.

pH — The logarithm (base 10) of the reciprocal of the concentration of hydrogen ions expressed in grams per liter of solution.

POLLUTANT — Any dredged spoil, solid waste, incinerator residue, sewage, garbage, sewage sludge, emissions, chemical wastes, biological materials, radioactive materials, heat, wrecked or discharged equipment, rock, sand, cellar dirt or other industrial, municipal or agricultural waste discharged into water.

POLLUTION — The man-made or man-induced alteration of the chemical, physical, biological and/or radiological integrity of water.

REACTIVE/EXPLOSIVE WASTE — A waste or substance which can create an explosion hazard in the sewage collection system or the ALCOSAN treatment facility, which has any of but is not limited to the following properties:

- A. It is normally unstable and readily undergoes violent change without detonating.
- B. It reacts violently with water.
- C. It forms potentially explosive mixtures with water.
- D. When mixed with water, it generates toxic gases, vapors or fumes in a quantity sufficient to present a danger to human health or the environment.
- E. It is a cyanide- or sulfide-bearing waste which can generate toxic gases, vapors or fumes in a quantity sufficient to present a danger to human health or the environment.
- F. It is capable of detonation or explosive reaction if it is subjected to a strong initiating source or if heated under confinement.
- G. It is readily capable of detonation, explosive decomposition or reaction at standard temperature and pressure.
- H. It is a forbidden explosive as defined in 40 CFR 173.51, or a Class A explosive as defined in 49 CFR 173.53, or a Class B explosive as defined in 49 CFR 173.88.

THE ACT — The Federal Water Pollution Control Act, also known as the "Clean Water Act," as amended, 33 U.S.C. § 1251 et seq.

TOXIC POLLUTANT — Any pollutant or combination of pollutants listed as toxic in regulations promulgated by EPA, pursuant to Section 307(A) of the Act.

WASTEWATER — The liquid and water-carried industrial or domestic wastes from dwellings, commercial buildings, industrial facilities and institutions, together with any groundwater, surface water and stormwater that may be present, whether treated or untreated, which is contributed directly or indirectly into the facilities of ALCOSAN.

WATERS OF THE COMMONWEALTH — All streams, lakes, ponds, marshes, watercourses, waterways, wells, springs, reservoirs, aquifers, irrigation systems, drainage systems and other bodies or accumulations of water, surface or underground, natural or artificial, public or private, which are contained within, flow through or border upon the Commonwealth of Pennsylvania or any portion thereof.

§ 134-10. General discharge prohibition.

No person shall introduce or cause to be introduced directly or indirectly into the facilities of ALCOSAN or into any sewer, pipe or other conveyance located in the Borough and transmitting substances into the facilities of ALCOSAN, any toxic pollutant or other wastewater which will:

- A. Cause interference with the operation or performance of ALCOSAN's treatment plant or other facilities; or
- B. Pass through ALCOSAN's treatment plant or other facilities.

§ 134-11. Specific discharge prohibition.

No person shall introduce, permit or cause to be introduced, directly or indirectly, into the facilities of ALCOSAN or into any piped sewer, pipe or other conveyance located in the Borough and transmitting substances into the facilities of ALCOSAN any of the following:

- A. Any substance which will endanger the life, health or safety of the treatment plant sewer maintenance and plant operations personnel or which would preclude safe entry into the sewer system or any portion of the treatment plant.
- B. Any ignitable, reactive, explosive, corrosive or hazardous waste, except as provided for by ALCOSAN's Rules and Regulations.
- C. Any wastewater with a temperature greater than 140° F. (60° C.).
- D. Any waste which exceeds the naturally occurring background levels for either Alpha, Beta or Gamma radiation and/or any wastewater containing any radioactive wastes or isotopes of such half-life or concentration not in compliance with applicable state or federal regulations.
- E. Any solids or viscous substance capable of causing obstruction to the flow in sewers or other interference with the proper operations of ALCOSAN's facility or facilities discharging into the ALCOSAN system.
- F. Any noxious or malodorous liquids, gases or solids which, either singly or by interaction with other wastes, may create a public nuisance or adversely affect public health or safety.
- G. Pathological wastes from a hospital or other medical establishment.
- H. Garbage, whether ground or not, except properly shredded food waste garbage resulting from the proper use of a garbage grinder or disposer type approved by ALCOSAN and maintained in good operating condition.
- I. Sludges or other materials from septic tanks or similar facilities or from sewage or industrial waste treatment plants or from water treatment plants, unless the discharge of such sludges and other materials is specifically approved by ALCOSAN.
- J. Any pollutant including oxygen demanding pollutants released in a discharge at a flow rate and/or pollutant concentration which will cause interference with the ALCOSAN facilities.
- K. Any substance which will cause ALCOSAN's effluent or any other product of the ALCOSAN facilities, such as residues, sludges or scums, to be unsuitable for reclamation processes, including any substance which will cause the ALCOSAN facility to be in noncompliance with sludge use or disposable criteria, guidelines or regulations developed under Section 405 of the Act, any criteria,

guidelines or regulations promulgated pursuant to the Solid Waste Disposal Act, the Clean Air Act, the Toxic Substances Control Act or state laws or regulations applicable to the treatment or disposal of such effluent or such product.

§ 134-12. Violation of standards, rules and regulations prohibited.

- A. No person shall take any action or do or cause to be done anything in violation of any rule or regulation of ALCOSAN.
- B. The Pretreatment Regulations of the Allegheny County Sanitary Authority are incorporated into this article by reference as though fully set forth herein.

§ 134-13. Violations and penalties.

Any person violating any provision of this article shall, upon conviction, be punished by a fine not to exceed the sum of \$1,000 for each offense, recoverable with costs, and in default of payment of the fine and costs shall be subject to imprisonment in the Allegheny County Jail for a period not exceeding 30 days. Each day a violation is continued shall constitute a separate offense. In addition, any person violating any provision of the ALCOSAN pretreatment regulations may be subject to administrative and civil penalties as provided for by the Pretreatment Regulations and administered by ALCOSAN. Such penalties may include, but are not limited to, injunctive relief and penalties of up to \$25,000 per day, per violation as provided for by the Publicly Owned Treatment Works Penalty Law, 35 P.S. § 752.1 et seq. Authority to so enforce the pretreatment regulations is granted to ALCOSAN and is in addition to but not in place of any other remedy available to the Borough.

ARTICLE V

**Sewer Connections; Private Systems
[Adopted 3-16-1959 by Ord. No. 172]****§ 134-14. Connection required of abutting properties.**

Every owner of property in the Borough of Baldwin whose property abuts upon any line of the sanitary sewers of the Municipal Authority of the Borough of Baldwin, Allegheny County, Pennsylvania, shall connect, at his own cost, the building, buildings or other structures located on said property with the sanitary sewers of the Authority for the purpose of disposing of all drainage as is customarily disposed of in a system of sanitary sewers.

§ 134-15. Use of private systems by abutting properties prohibited.

It shall be unlawful for any owner, lessee or occupier of any property abutting on any line of the sanitary sewer system of said Authority to employ any means, either by septic tank, mine hole or otherwise, for the disposal of sanitary sewage other than into and through the sanitary sewers of said Authority.

§ 134-16. Notice to connect.

Where any structure is now or hereafter may be connected to any septic tank or using any method by which sanitary sewage is disposed of or eliminated other than through the sanitary sewer system of said Authority, it shall be the duty of the Borough Secretary or the Secretary of the Authority or other person authorized by the Borough Council to notify the owner, lessee or occupier of such structure in writing, either by personal service, certified mail or registered mail, to disconnect the same and make proper connections for the discharge and disposal of sewage through the sanitary sewer system of the Authority as hereinafter provided, within 90 days after receipt of such notice.

§ 134-17. Failure to comply; work by Borough.

In case any owner of property adjoining or adjacent to such sewer shall neglect or refuse to connect with and use said sewers for such period of 90 days after notice to do so has been served upon him, either by personal service, certified mail or by registered mail as aforesaid, the Borough or its agents or the Authority or its agents may enter upon such property and construct such connection. In such case, the Borough Secretary or the Authority Secretary or other authorized person shall forthwith upon completion of the work send an itemized bill of the cost of construction of such connection to the owner of the property to which connection has been so made, which bill shall be payable forthwith. In case of neglect or refusal by the owner of such property to pay said bill, a municipal lien for said construction shall be filed within six months of the date of completion of the construction of said connection, the same to be subject in all respects to the general law providing for the filing and recovery of municipal liens.

§ 134-18. Tapping permit required.

Any person required to connect with the sewer system of the Authority shall make application for a tapping permit on forms furnished by the Borough or the Authority and shall set forth in said application the character of structure and use, the lot number and location and the name of the person who is to make the connection.

§ 134-19. Connection of private systems prohibited.

No privy vault, cesspool, septic tank, mine hole or similar receptacle for human excrement shall at any

time, now or hereafter, be connected with the sanitary sewers of the Authority.

§ 134-20. Abandonment of private systems.

No privy vault, cesspool, septic tank, mine hole or similar receptacle for human excrement shall hereafter be maintained upon any premises from which connection with any of the Authority sewers shall have been made. The Borough may, at its discretion, require every such privy vault, cesspool, septic tank, mine hole or other receptacle within 30 days after final enactment of this article, in the case of premises now connected with a sewer, and within 30 days after connection with a sewer, in the case of premises hereafter so connected, to be abandoned, cleansed and filled under the direction and supervision of the Borough or the Authority. Any such privy vault, cesspool, septic tank, mine hole or other receptacle not abandoned, cleansed and filled as required by this section shall constitute a nuisance and such nuisance may be abated on order of the Borough or the Authority as provided by law, at the expense of the owner of such property.

§ 134-21. Other prohibited connections.

It shall be unlawful for any person, firm or corporation connected to the Authority sewer system to connect any roof drain thereto or to permit, allow or cause to enter into said sewer system any stormwater or surface water or any sewage from any property other than that for which the permit was issued, or any other substance, liquid, gas or solid, which is prohibited by the terms of any other rule, regulation or ordinance adopted by the Borough or the Authority for the operation of the sewer system.

§ 134-22. Plans and specifications.

The construction of all private sewers or laterals and their connections with any lines of the sewer system shall be done in accordance with the plans and specifications established by the Borough and the Authority, as the same may be from time to time amended, copies of which are on file at the Borough of Baldwin Municipal Building, and shall be inspected by the Authority engineers before being covered.

§ 134-23. Violations and penalties. [Amended 12-19-1985 by Ord. No. 566]

Any person, persons, partnership or any agents or executive officers of any corporation violating the provisions of this article shall, upon conviction, for each and every violation, be subject to a fine of not more than \$300 and costs of prosecution or imprisonment for up to 30 days.

ARTICLE VI

Connection Permits and Fees**[Adopted 4-1-1958 by Ord. No. 151; amended in its entirety 12-16-2002 by Ord. No. 771]****§ 134-24. Permit required.**

No connection or reconnection shall be made by property owners with the sanitary or trunk line sewers of the Borough of Baldwin until a written initial permit for connection, or permit for reconnection, as applicable, has been obtained from the Building Code Inspector of the Borough of Baldwin.

§ 134-25. Conditions for issuance of permit; fees.**A. Conditions for issuance of initial permit for connection; fees.**

- (1) An initial permit for connection. An initial permit for connection shall be secured for the connection of sanitary facilities to said sanitary or trunk line sewers in all cases where the sewer abutting said property has been constructed by the Borough of Baldwin and where the property abutting the said sewer has not been heretofore assessed for the costs of the installation of said sewers, or where the property owner or owners refuse to pay such assessment or where a court of competent jurisdiction has declared that the assessment of benefits against said property is of no legal effect, provided that the owner of the property desiring to make said connection shall pay into the treasury of the Borough of Baldwin the sum of \$2,000 per EDU.

B. Conditions for issuance of permit for reconnection; fees.

- (1) Permit for reconnection. A permit for reconnection shall be secured for the connection of sanitary facilities to said sanitary or trunk line sewers, including but not limited to lateral lines intersecting therewith, in all cases where the sewer abutting said property has been constructed by the Borough of Baldwin and where the owner of the property abutting said sewer, or any person acting on said owner's direction, has or will cause any disturbance to be made at or about said connection, or where any replacement is made of, work is conducted upon, or repair is performed at or about said sanitary facilities, which will result in the disconnection and reconnection of any sanitary or trunk line sewers, including but not limited to lateral lines intersecting therewith.
- (2) No person shall cause any work to be performed at or about any connection to the sanitary facilities of the Borough of Baldwin, including but not limited to its sanitary sewer lines, trunk line sewers, or any lateral lines intersecting therewith or joined thereto, except after making application to the Building Code Inspector of the Borough of Baldwin and upon issuance by said Inspector of a permit therefor, and no such connection or excavation, once commenced following issuance of a permit as provided in this subsection, shall be made or covered over until final inspection and certification thereof has been made and approved by the Inspector.
- (3) A fee of \$10 for tapping charges and permit and inspection fees shall be due and payable to the Borough of Baldwin at the time written application is made for a permit for reconnection.
- (4) All applications for a permit for reconnection, and all requests to the Building Code Inspector of the Borough of Baldwin to make any inspection as required hereunder, shall be made at least three days prior to the date on which construction is scheduled to commence or certification is required.

§ 134-26. Exceptions and/or adjustments to fees.

The Council of the Borough of Baldwin reserves the right to make exceptions to and/or adjustments of the sums of money provided to be paid to the treasury of the Borough of Baldwin in § 134-25A above.

ARTICLE VII

**Disturbance or Interference with System
[Adopted 8-17-1959 by Ord. No. 182]****§ 134-27. Prohibited acts.**

- A. No person, partnership, corporation or other legal entity or owner of lands within the Borough of Baldwin shall in any manner whatsoever disturb, interfere with or otherwise hamper the location, position, stability and/or operation of any storm or sanitary sewer installation owned and/or maintained by the Borough of Baldwin or any authority created by said Borough.
- B. No person, partnership, corporation or other legal entity or any owner of lands within said Borough shall in any manner whatsoever disturb the contour of land over, above or in the immediate vicinity of any storm or sanitary sewer installation owned and/or maintained by said Borough or any authority created by said Borough, either by adding earth or other fill or by removing earth or other fill in the vicinity of such installations, without having preliminarily obtained written authorization in the manner hereinafter provided for.

§ 134-28. Permission required to disturb vicinity of system.

Any person, partnership, corporation or other legal entity or owner of lands within said Borough desiring to change the contour of land over, above or in the immediate vicinity of any storm or sanitary sewer installation shall make written application to the Borough Secretary for permission so to do and shall submit a plan of the proposed changes. Permission shall not be granted unless and until the Borough Engineer shall have examined the application and plan and made written certification to the Borough that the proposed change will not be detrimental to the sewer installation or the maintenance thereof.

§ 134-29. Restoration.

Any person, partnership, corporation or other legal entity or any owner of lands within said Borough who or which shall violate or fail to observe the provisions of this article, insofar as it relates to the placement and/or removal of earth and/or other fill over and in the immediate vicinity of sanitary and storm sewer installations, shall forthwith restore the land to its original condition at his or their own cost and expense, and if said condition is not corrected within 10 days after written notification so to do by the Borough Secretary or the secretary of any authority created by said Borough, the Borough of Baldwin or any authority created by said Borough may enter upon and restore said land to its original condition, and the cost and expense thereof, together with a penalty of 10%, shall be collected from the owner or owners of such land and/or those violating this article in the manner provided by law; provided, however, that the recovery of such costs and expenses may be in addition to the penalties otherwise provided by this article.

§ 134-30. Violations and penalties. [Amended 12-19-1985 by Ord. No. 566]

Any person, partnership, corporation or other legal entity or any owner of lands who or which shall violate any of the provisions of this article shall, upon conviction thereof, be subject to a fine of not more than \$300 and costs of prosecution or to imprisonment for not more than 30 days; provided, however, that each day's continuance of a violation after notice has been given by the individuals above authorized shall constitute a separate offense.

ARTICLE VIII
Inspection and Certification of Sanitary and Storm Sewers
[Adopted 5-1-1989 by Ord. No. 606]

§ 134-31. Definitions.

As used in this article, the following terms shall have the meanings indicated:

DYE TEST — A test conducted on real property by the use of colored innocuous substances that will reveal the direction and flow of stormwater or surface water.

ILLEGAL STORMWATER OR SURFACE WATER CONNECTIONS — The discharge of basement seepage or groundwater of the connection of downspouts, roof drainage, driveway drainage or surface or areaway drainage into the sanitary sewer system.

MORTGAGE — The transfer, assignment, pledge or hypothecation of any interest in real property to a lender for value, which transfer, assignment, pledge or hypothecation is evidenced by a mortgage, deed of trust or other security instrument.

MUNICIPAL LIEN AND PROPERTY TAX VERIFICATION LETTER — A written letter from the Borough concerning municipal liens and real property taxes.

PERSON — Any person, syndicate, association, partnership, firm, corporation or the chief executive officer of any corporation, institution, agency, authority, partnership or member of such partnership or other lawful entity.

SALE — The transfer or assignment, with or without consideration, of any interest in real property situate within the Borough, whether or not the same is to a person or persons related by blood to the transferor.

SANITARY SEWER CERTIFICATION — An official statement from the Borough stating that there are no illegal storm sewer or surface water connections to the sanitary sewer lines on the real property to be sold, transferred, assigned or mortgaged.

TEMPORARY SANITARY SEWER CERTIFICATION — A temporary statement of certification from the Borough issued pursuant to the provisions of § 134-34 of this article.

VIDEO CAMERA INSPECTION — Any commonly accepted method of testing whereby a video camera is inserted into and travels throughout the private lateral sewer line of real property to determine if any illegal stormwater, groundwater, or surface wetter is entering the sanitary sewer system. **[Added 3-20-2012 by Ord. No. 844]**

§ 134-32. Sanitary sewer certification.

After the effective date of this article, any person or persons selling or mortgaging any interest in real property situate within the Borough of Baldwin, as those terms are defined herein, shall be required to provide to the purchaser and to the appropriate Borough officials, designated hereafter a sanitary sewer certification, which certification shall be provided to the purchaser or designated Borough officials on the time or times designated in § 134-33 of this article.

§ 134-33. Application; dye test; fee.

Any person selling or mortgaging real property (hereinafter "applicant") located within the Borough shall make application on a form furnished by the Borough at least 21 days before the date of sale or mortgage. The applicant shall then have a plumber who is registered and licensed by the Allegheny County Health Department perform a dye test on the property to be sold, transferred, assigned, mortgaged or refinanced.

Such plumber shall complete the appropriate portions on the form and certify that the property has been dye tested and certify the results of such test. In the event that there are no illegal stormwater or surface water connections or discharges, the Borough Secretary, or his or her designate, shall issue a sanitary sewer certification upon payment of a fee of \$25. When an illegal stormwater or surface water connection or discharge is discovered by means of the above-mentioned dye testing, no sanitary sewer certification will be issued until the illegal connections or discharges are removed and certification of such removal by a registered licensed plumber is received.

§ 134-34. Temporary certificate.

A. A temporary sanitary sewer certification may be issued at the Borough's sole discretion when either:

- (1) The applicant proves that dye testing cannot be performed because of weather conditions. When such is the case, the applicant shall provide the Borough with security in the amount of \$200 to guarantee that the dye test will be performed. The applicant will cause to have performed the dye test within 14 days of written notification from the Borough which will be given at such time as weather conditions make the dye test possible. In addition, the applicant shall provide a signed, written acknowledgment from the purchaser agreeing to correct, at the purchaser's sole expense, any violations that may be discovered as a result of such subsequent dye tests. Nothing in this subsection shall prohibit any purchaser from requiring the applicant to reimburse the purchaser for any costs incurred; provided, however, that the primary responsibility shall run with the land and no such agreement shall affect the Borough enforcement powers or excuse the seller, mortgagor or purchaser from performance hereunder.
- (2) Illegal stormwater or surface water connection or discharge.
 - (a) When an illegal stormwater or surface water connection or discharge is discovered and the necessary remedial activities to correct such connection or discharge would require a length of time such as would create a practical hardship for the applicant, the applicant may apply to the Borough Secretary for a temporary sanitary sewer certificate which may only be issued when the applicant provides the Borough with all of the following:
 - [1] A bona fide, executed contract between the applicant and a registered licensed plumber to complete the necessary remedial work with the Borough listed therein as a third party beneficiary.
 - [2] Cash security in the amount of said contract posted with the Borough.
 - [3] An agreement by the purchaser to be responsible for all cost overruns related to the remedial work, together with a license to enter upon the property to complete work in case of default of the contractor.

B. The temporary sanitary sewer certification shall expire within 30 days after its issuance, and at the expiration of the same the security thus posted shall be applied by the Borough to have the necessary remedial work completed. Any excess of funds remaining as security shall be refunded to the applicant, but in the event that, the security posted is insufficient to complete the remedial work, the purchaser, or, in the case of a refinance, the property owner, shall be charged for the same and shall be responsible for payment thereof.

§ 134-35. Municipal lien and tax verification letter.

A. A request for a municipal lien or tax verification letter must be accompanied by a valid sanitary sewer

certification and the following fees, which shall be delivered at least seven days before such letters are to be provided:

- (1) Municipal lien letter: \$10.
 - (2) Tax verification letter: \$10.
- B. The Borough shall, from time to time, have the authority to change the fees required for the issuance of such letters by resolution which shall be adopted from time to time by the Borough Council of the Borough.
- C. Where requested by a property owner or his agent and subject to time availability as determined solely by the Borough Secretary, the Borough may issue municipal lien and tax verification letters on two days' notice upon the payment of a priority service fee of \$10 in addition to the fees set forth above.

§ 134-35.1. Video camera inspection. [Added 3-20-2012 by Ord. No. 844]

- A. As part of the document of certification application process, outlined in §§ 134-32, 134-33, 134-34 and 134-35 of this article, in addition to the dye test performed by a plumber registered and licensed by the Allegheny County Health Department, the Borough of Baldwin does hereby require a video camera inspection of the private sewer lateral performed by a plumber registered and licensed by the ACHD.
- B. When, as a result of a video camera inspection, it is determined that there is a defect in the private lateral whereby stormwater, surface water, or groundwater is being allowed to flow into the private lateral, no document of certification will be executed until the private lateral line is repaired and certification of such repair is certified by a plumber registered and licensed by the ACHD.
- C. The Borough is hereby empowered to make reasonable rules and regulations for the operation and enforcement of the video camera inspection requirement. All rules and regulations issued pursuant to this section shall be in writing.
- D. This section shall not preclude the Borough from requiring video camera inspections or other inspections of the private systems for the purpose of locating defective piping which would allow surface water or groundwater to enter the system.

§ 134-36. Adoption of rules and regulations by Borough Council.

- A. The Borough Council may from time to time adopt reasonable rules and regulations for the operation and enforcement of this article as the same may become necessary, which shall include, but not be limited to:
- (1) Establishing acceptable forms of security or guaranties.
 - (2) Establishing the form of applications, purchaser acknowledgments and plumber certifications.
 - (3) Limiting the times of year in which a temporary sanitary sewer certificate is available for reasons of weather.
- B. Such rules and regulations shall be adopted at a regular meeting of the Borough Council and shall be posted in the offices of the Zoning Officer and the Borough Secretary.

§ 134-37. Exception.

Property which has been constructed in accordance with a valid building permit and has been inspected by the Borough Building Inspector and the Plumbing Division of the Allegheny County Health Department may be sold or conveyed without evidence of compliance as required by the article; provided, however, that if such property is sold after five years from the date of its original occupancy, compliance is mandatory. A sanitary sewer certificate granted under this article shall be valid for a period of five years, and any sale taking place after said five-year period shall be subject to the provisions of this article, and a new sanitary sewer certificate shall be required.

§ 134-38. Effect on other laws.

Nothing in this article shall limit in any manner whatsoever the Borough's right to enforce its ordinances or the laws of the Commonwealth of Pennsylvania. Nothing contained in this article shall be construed as or offered as a defense to any citation issued by any municipal corporation or the Commonwealth of Pennsylvania pursuant to any other law or ordinance.

§ 134-39. Violations and penalties.

Any person who shall fail, neglect or refuse to comply with any of the terms or provisions of this article and, in particular, the provisions of §§ 134-32, 134-33 and 134-34 hereof, or of any regulation or requirement pursuant hereto and authorized hereby shall, upon conviction before any District Magistrate, be sentenced to pay a fine of \$1,000 and, in default of payment thereof, to imprisonment for a term not to exceed 90 days.

ARTICLE IX
Holding Tanks
[Adopted 4-19-1999 by Ord. No. 733]

§ 134-40. Purpose.

The purpose of this article is to establish procedures for the use and maintenance of existing and new holding tanks designed to receive and retain sewage whether from residential or commercial uses, and it is hereby declared that the enactment of this article is necessary for the protection, benefit and preservation of the health, safety and welfare of the inhabitants of this municipality.

§ 134-41. Definitions.

Unless the context specifically and clearly indicates otherwise, the meaning of the terms used in this article shall be as follows:

AUTHORITY — The Council of the Borough of Baldwin, Allegheny County, Pennsylvania.

HOLDING TANK — A watertight receptacle, whether permanent or temporary, which receives and retains sewage conveyed by a water-carrying system and is designed and constructed to facilitate the ultimate disposal of the sewage at another site.

IMPROVED PROPERTY — Any property within the Borough of Baldwin upon which there is erected a structure intended for continuous or periodic habitation, occupancy or use by human beings or animals and from which structure sewage shall or may be discharged.

MUNICIPALITY — The Borough of Baldwin, Allegheny County, Pennsylvania.

OWNER — Any person vested with ownership, legal or equitable, sole or partial, of any property located in the Borough of Baldwin.

PERSON — Any individual, partnership, company, association, corporation or other group or entity.

SEWAGE — Any substance that contains any of the waste products or excrement or other discharge from the bodies of human beings or animals and any noxious or deleterious substance being harmful or inimical to the public health or to animal or aquatic life or to the use of water for domestic water supply for recreation.

§ 134-42. Rights and privileges granted.

The Authority is hereby authorized and empowered to undertake within the Borough the control and methods of holding tank use, sewage disposal and sewage collection and transportation thereof.

§ 134-43. Adoption of rules and regulations.

The Authority is hereby authorized and empowered to adopt such rules and regulations concerning sewage which it may deem necessary from time to time to effect the purposes herein.

§ 134-44. Rules and regulations to be in conformity with applicable law.

All such rules and regulations adopted by the Authority shall be in conformity with the provisions herein, all other ordinances of the Borough and all applicable laws and applicable rules and regulations of administrative agencies of the Commonwealth of Pennsylvania.

§ 134-45. Rates and charges.

The Borough shall have the right and power to fix, alter, charge and collect rules, assessments and other charges in the area served by its facilities at reasonable and uniform rules as authorized by applicable law.

§ 134-46. Exclusiveness of rights and privileges; reports; inspections.

- A. The collection and transportation of all sewage from any improved property utilizing a holding tank shall be done solely by or under the direction and control of the Authority, and the disposal thereof shall be made only at such site or sites as may be approved by the Department of Environmental Resources of the Commonwealth of Pennsylvania.
- B. The Authority will receive, review and retain pumping receipts from permitted holding tanks.
- C. The Authority will receive a copy of all reports forwarded to the Department of Environmental Resources.
- D. The Authority will complete an annual inspection of each permitted holding tank at a cost of no more than \$150 to be charged to the owner. The Authority will retain a copy of all annual inspection reports.

§ 134-47. Duties of improved property owner.

The owner of all improved property that utilizes a holding tank shall:

- A. Maintain the holding tank in conformance with this article or any ordinance of the Borough of Baldwin, the provisions of any applicable law and the rules and regulations of the Authority and any administrative agency of the Commonwealth of Pennsylvania.
- B. Permit only the Authority or its agent to inspect holding tanks on an annual basis.
- C. Permit only the Authority or its agent to collect, transport and dispose of the contents therein.

§ 134-48. Violations and penalties.

Any person who violates any provisions of § 134-47 shall, upon conviction thereof by summary proceedings, be sentenced to pay a fine of not less than \$100 and not more than \$300 and, in default of payment of said fine and costs, to undergo imprisonment in the county prison for a period not in excess of 30 days.

§ 134-49. Abatement of nuisances.

In addition to any other remedies provided in this article, any violation of § 134-47 above shall constitute a nuisance and shall be abated by the Borough or Authority by either seeking mitigation of the nuisance or appropriate equitable or legal relief from a court of competent jurisdiction.

ARTICLE X

Pleasant Hills Authority Pretreatment Standards**[Adopted 7-19-2004 by Ord. No. 787; amended in its entirety 1-22-2008 by Ord. No. 811]**

§ 134-50. Industrial users standards. [Amended 3-15-2011 by Ord. No. 834; 2-16-2016 by Ord. No. 867; 2-18-2020 by Ord. No. 908]

Pollutant	Local Limit (mg/l)
Mercury	0.0062
Free Cyanide	6.4
Copper	0.32
Cadmium	0.54

ARTICLE XI

Collection of Sewer Tap-In Fees
[Adopted 8-16-2004 by Ord. No. 788]

§ 134-51. Collection by Borough.

The Borough of Baldwin is authorized and requested to collect tapping fees on behalf of the Pleasant Hills Authority at the same time that it issues a building permit on the subject property or at such time it collects its own tapping fee, whichever is first.

§ 134-52. Remission to Authority.

The Borough of Baldwin is authorized to remit the tapping fees collected on behalf of the Pleasant Hills Authority to the Pleasant Hills Authority, retaining 5% of the total, not to exceed \$1,000.

ARTICLE XII
MS4 Prohibited Discharges
[Adopted 12-16-2014 by Ord. No. 858]

§ 134-53. Short title.

This article shall be known and may be cited as the "Borough of Baldwin MS4 Prohibited Discharge Ordinance."

§ 134-54. Statement of findings.

The governing body of the municipality finds that:

- A. Inadequate maintenance of stormwater facilities contributes to erosion and sedimentation, overtaxes the carrying capacity of streams and storm sewers, increases the cost of public facilities to carry and control stormwater, undermines flood plain management and flood control efforts in downstream communities, reduces groundwater recharge, threatens public health and safety, and increases pollution of water resources.
- B. Reasonable regulation of connections and discharges to municipal separate stormsewer systems is fundamental to the public health, safety, and welfare and the protection of people of the commonwealth, their resources, and the environment.
- C. Stormwater is an important water resource, which provides groundwater recharge for water supplies and base flow of streams, which also protects and maintains surface water quality.
- D. Federal and state regulations require certain municipalities to obtain a permit for stormwater discharges from their separate storm sewer systems under the National Pollutant Discharge Elimination System (NPDES). Permittees are required to enact, implement, and enforce a prohibition of nonstormwater discharges to the permittee's regulated small municipal separate stormsewer systems (MS4s).

§ 134-55. Purpose.

The purpose of this article is to promote health, safety, and welfare within the municipality and its watershed by minimizing the harms and maximizing the benefits described in § 134-54 of this article, through provisions designed to:

- A. Provide standards to meet NPDES permit requirements.
- B. Meet legal water quality requirements under state law, including regulations at 25 Pa. Code 93 to protect, maintain, reclaim, and restore the existing and designated uses of the waters of this commonwealth.
- C. Preserve the natural drainage systems as much as possible.
- D. Maintain groundwater recharge to prevent degradation of surface and groundwater quality and to otherwise protect water resources.
- E. Prevent scour and erosion of stream banks and streambeds.
- F. Provide proper operation and maintenance of all facilities and all SWM BMPs that are implemented within the municipality.

§ 134-56. Statutory authority.

The municipality also is empowered to regulate land use activities that affect runoff by the authority of the Act of July 31, 1968, P.L. 805, No. 247, The Pennsylvania Municipalities Planning Code, as amended.

§ 134-57. Applicability.

All activities related to proper operation and maintenance of approved stormwater management BMPs and all activities that may contribute nonstormwater discharges to a regulated small MS4 are subject to regulation by this article.

§ 134-58. Repealer.

Any other ordinance provision(s) or regulation of the municipality inconsistent with any of the provisions of this article is hereby repealed to the extent of the inconsistency only.

§ 134-59. Severability.

In the event that a court of competent jurisdiction declares any section or provision of this article invalid, such decision shall not affect the validity of any of the remaining provisions of this article.

§ 134-60. Compatibility with other requirements.

Actions taken under this article do not affect any responsibility, permit or approval for any activity regulated by any other code, law, regulation, or ordinance.

§ 134-61. Definitions.

For the purposes of this article, certain terms and words used herein shall be interpreted as follows:

- A. Words used in the present tense include the future tense; the singular number includes the plural, and the plural number includes the singular; words of masculine gender include feminine gender; and words of feminine gender include masculine gender.
- B. The word "includes" or "including" shall not limit the term to the specific example but is intended to extend its meaning to all other instances of like kind and character.
- C. The words "shall" and "must" are mandatory; the words "may" and "should" are permissive.

BEST MANAGEMENT PRACTICE (BMP) — Activities, facilities, designs, measures, or procedures used to manage stormwater impacts from regulated activities, to meet state water quality requirements, to promote groundwater recharge, and to otherwise meet the purposes of this article. Stormwater BMPs are commonly grouped into one of two broad categories or measures: structural or nonstructural. In this article, nonstructural BMPs or measures refer to operational and/or behavior-related practices that attempt to minimize the contact of pollutants with stormwater runoff whereas structural BMPs or measures are those that consist of a physical device or practice that is installed to capture and treat stormwater runoff. Structural BMPs include, but are not limited to, a wide variety of practices and devices, from large-scale retention ponds and constructed wetlands, to small-scale underground treatment systems, infiltration facilities, filter strips, low impact design, bioretention, wet ponds, permeable paving, grassed swales, riparian or forested buffers, sand filters, detention basins, and manufactured devices. Structural stormwater BMPs are permanent appurtenances to the project site.

CONSERVATION DISTRICT — A conservation district, as defined in Section 3(c) of the Conservation District Law (3 P.S. § 851(c)) that has the authority under a delegation agreement executed with DEP to administer and enforce all or a portion of the regulations promulgated under 25 Pa. Code 102.

DEP — The Pennsylvania Department of Environmental Protection.

EARTH DISTURBANCE ACTIVITY — A construction or other human activity which disturbs the surface of the land, including, but not limited to: clearing and grubbing; grading; excavations; embankments; road maintenance; building construction; and the moving, depositing, stockpiling, or storing of soil, rock, or earth materials. Earth disturbance activity is subject to regulation under 25 Pa. Code 92, 25 Pa. Code 102, or the Clean Streams Law.

MUNICIPALITY — Borough of Baldwin, Allegheny County, Pennsylvania.

NRCS — USDA Natural Resources Conservation Service (previously SCS).

REGULATED ACTIVITIES — Any activities that may affect stormwater runoff and any activities that may contribute nonstormwater discharges to a regulated small MS4.

STATE WATER QUALITY REQUIREMENTS — The regulatory requirements to protect, maintain, reclaim, and restore water quality under Title 25 of the Pennsylvania Code and the Clean Streams Law.

STORMWATER — Drainage runoff from the surface of the land resulting from precipitation or snow or ice melt.

USDA — United States Department of Agriculture.

WATERS OF THIS COMMONWEALTH — Any and all rivers, streams, creeks, rivulets, impoundments, ditches, watercourses, storm sewers, lakes, dammed water, wetlands, ponds, springs, and all other bodies or channels of conveyance of surface and underground water, or parts thereof, whether natural or artificial, within or on the boundaries of this commonwealth.

§ 134-62. Stormwater management requirements.

- A. For all regulated earth disturbance activities, erosion and sediment control BMPs shall be designed, implemented, operated, and maintained during the regulated earth disturbance activities (e.g., during construction) to meet the purposes and requirements of this article and to meet all requirements under Title 25 of the Pennsylvania Code and the Clean Streams Law. Various BMPs and their design standards are listed in the Erosion and Sediment Pollution Control Program Manual (E&S Manual),⁴⁵ No. 363-2134-008 (April 15, 2000), as amended and updated.
- B. Stormwater flows onto adjacent property shall not be created, increased, decreased, relocated, or otherwise altered without written notification of the adjacent property owner(s) by the developer. Such stormwater flows shall be subject to the requirements of this article.
- C. For all regulated activities, SWM BMPs shall be implemented, operated, and maintained to meet the purposes and requirements of this article and to meet all requirements under Title 25 of the Pennsylvania Code, the Clean Streams Law, and the Storm Water Management Act.
- D. Various BMPs and their design standards are listed in the BMP Manual.⁴⁶

⁴⁵. Editor's Note: See § 134-73B.

⁴⁶. Editor's Note: See § 134-73A.

§ 134-63. Responsibilities of developers and landowners.

- A. Facilities, areas, or structures used as Stormwater Management BMPs shall be enumerated as permanent real estate appurtenances and recorded as deed restrictions or conservation easements that run with the land.
- B. O and M plans for stormwater management approved pursuant to 25 Pa. Code § 102 after the date of this article shall be recorded as a restrictive deed covenant that runs with the land.
- C. The municipality may take enforcement actions against an owner for any failure to satisfy the provisions of this article.

§ 134-64. Operation and maintenance agreements.

- A. Prior to completing construction of a SWM site plan, the property owner shall sign and record an operation and maintenance (O and M) agreement (see Appendix A) covering all stormwater control facilities which are to be privately owned.
 - (1) The owner, successor and assigns shall operate and maintain all facilities in accordance with the approved schedule(s) in the O and M plan.
 - (2) The owner shall convey to the municipality conservation easements to assure access for periodic inspections by the municipality and maintenance, as necessary.
 - (3) The owner shall keep on file with the Municipality the name, address, and telephone number of the person or company responsible for operation and maintenance activities. In the event of a change, new information shall be submitted by the owner to the Municipality within 10 working days of the change.
- B. The owner is responsible for operation and maintenance (O and M) of the SWM BMPs. If the owner fails to adhere to the O and M agreement, the municipality may perform the services required and charge the owner appropriate fees. Nonpayment of fees may result in a lien against the property.

§ 134-65. Prohibited discharges and connections.

- A. Any drain or conveyance, whether on the surface or subsurface, that allows any nonstormwater discharge including sewage, process wastewater, and wash water to enter a regulated small MS4 or to enter the waters of this commonwealth is prohibited.
- B. No person shall allow, or cause to allow, discharges into a regulated small MS4, or discharges into waters of this commonwealth, which are not composed entirely of stormwater, except as provided in Subsection C below and discharges allowed under a state or federal permit.
- C. The following discharges are authorized unless they are determined to be significant contributors to pollution a regulated small MS4 or to the waters of this commonwealth:
 - (1) Discharges from firefighting activities.
 - (2) Potable water sources including water line flushing.
 - (3) Irrigation drainage.
 - (4) Air-conditioning condensate.

- (5) Springs.
 - (6) Water from crawl space pumps.
 - (7) Pavement wash waters where spills or leaks of toxic or hazardous materials have not occurred (unless all spill material has been removed) and where detergents are not used.
 - (8) Diverted stream flows.
 - (9) Flows from riparian habitats and wetlands.
 - (10) Uncontaminated water from foundations or from footing drains.
 - (11) Lawn watering.
 - (12) Dechlorinated swimming pool discharges.
 - (13) Uncontaminated groundwater.
 - (14) Water from individual residential car washing.
 - (15) Routine external building wash down (which does not use detergents or other compounds).
 - (16) Rising groundwaters.
- D. In the event that the municipality or DEP determines that any of the discharges identified in Subsection C significantly contribute pollutants to a regulated small MS4 or to the waters of this commonwealth, the municipality or DEP will notify the responsible person(s) to cease the discharge.

§ 134-66. Roof drains and sump pumps.

Roof drains and sump pumps shall discharge to infiltration or vegetative BMPs.

§ 134-67. Right-of-Entry.

Upon presentation of proper credentials, the municipality may enter at reasonable times upon any property within the municipality to inspect the condition of the stormwater structures and facilities in regard to any aspect regulated by this article.

§ 134-68. Inspection.

SWM BMPs should be inspected by the landowner, or the owner's designee (including the municipality for dedicated and owned facilities), according to the following list of minimum frequencies:

- A. Annually for the first five years following construction.
- B. Once every three years thereafter.
- C. During or immediately after the cessation of a ten-year or greater storm.

§ 134-69. Enforcement.

It is unlawful for any person to modify, remove, fill, landscape, or alter any approved SWM BMPs, facilities, areas, or structures without the written approval of DEP or a delegated County Conservation District, and the municipality.

§ 134-70. Suspension and revocation.

- A. Any approval or permit issued by the municipality may be suspended or revoked for:
- (1) Noncompliance with or failure to implement any provision of an approved SWM site plan or O and M agreement.
 - (2) A violation of any provision of this article or any other applicable law, ordinance, rule, or regulation relating to a regulated activity.
 - (3) The creation of any condition or the commission of any act which constitutes or creates a hazard, nuisance, pollution, or endangers the life or property of others.
- B. A suspended approval may be reinstated by the municipality when:
- (1) The municipality has inspected and approved the corrections to the violations that caused the suspension.
 - (2) The municipality is satisfied that the violation has been corrected.
- C. An approval that has been revoked by the municipality cannot be reinstated. The applicant may apply for a new approval under the provisions of this article.
- D. If a violation causes no immediate danger to life, public health, or property, at its sole discretion, the municipality may provide a limited time period for the owner to correct the violation. In these cases, the municipality will provide the owner, or the owner's designee, with a written notice of the violation and the time period allowed for the owner to correct the violation. If the owner does not correct the violation within the allowed time period, the municipality may revoke or suspend any, or all, applicable approvals and permits pertaining to any provision of this article.

§ 134-71. Penalties.

- A. Anyone violating the provisions of this article shall be guilty of a summary offense, and upon conviction, shall be subject to a fine of not more than \$1,000 for each violation, recoverable with costs. Each day that the violation continues shall be a separate offense and penalties shall be cumulative.
- B. In addition, the municipality may institute injunctive, mandamus, or any other appropriate action or proceeding at law or in equity for the enforcement of this article. Any court of competent jurisdiction shall have the right to issue restraining orders, temporary or permanent injunctions, mandamus, or other appropriate forms of remedy or relief.

§ 134-72. Appeals.

- A. Any person aggrieved by any action of the municipality or its designee, relevant to the provisions of this article, may appeal to the municipality within 30 days of that action.
- B. Any person aggrieved by any decision of the municipality, relevant to the provisions of this article, may appeal to the County Court of Common Pleas in the county where the activity has taken place within 30 days of the municipality's decision.

§ 134-73. References.

- A. Pennsylvania Department of Environmental Protection. No. 363-0300-002 (December 2006), as amended and updated. Pennsylvania Stormwater Best Management Practices Manual. Harrisburg, PA.
- B. Pennsylvania Department of Environmental Protection. No. 363-2134-008 (April 15, 2000), as amended and updated. Erosion and Sediment Pollution Control Program Manual. Harrisburg, PA.

ARTICLE XIII

Fees for Delinquent Accounts and Delinquent Claims**[Adopted 4-19-2016 by Ord. No. 869]****§ 134-74. Fees established.**

It is hereby enacted and ordained the authority of the same that in addition to the principal sewage rental charge, penalty and interest due on any sewage claim or sewage account as set forth in ordinances and any amendments thereto, the Borough of Baldwin hereby establishes the following additional fee schedules and additional charges as authorized by law to be imposed on delinquent accounts and delinquent claims of the Borough of Baldwin which charges are in addition to any other ordinance and/or resolution enacted or adopted by the Borough assessing cost, penalties, interest and fees, attorneys' fees for the collection of delinquent accounts:

- A. An additional collection and accounting fee of \$6 shall be added each month to each delinquent account of the Baldwin Borough that remains delinquent for 60 days from the date first billed. The additional delinquent fee of \$6 will be added for each additional month that the delinquent account remains delinquent until the entire account becomes current. Each account that becomes delinquent in payment for any portion of the bill or for any amount due for a period of 60 days or longer will be assessed the delinquent accounting and collection fee until the entire account balance is made current.
- B. Each delinquent account of the Borough of Baldwin that is scheduled for shut off of services due to a delinquency in the account shall be assessed and charged a property posting fee of \$15 for the posting of the notice of termination of services. Each individual posting of the realty of a notice to terminate services will result in a charge of \$15 being assessed and charged to the said posted delinquent account for each posting.
- C. Each property to which water service has been terminated due to delinquency in the sewage user's fee account owes to the Borough of Baldwin shall be assessed \$35 for the termination of water services plus an additional accounting and management fee of \$10; provided, however, if the water company increases or decreases its current fee to terminate the water services from \$35 than the amount charged to the Borough by the water company for said termination shall be the amount assessed and charged to the service account, plus an additional accounting and management fee of \$10.
- D. Each property that has had its water service terminated due to the aforesaid delinquency will be assessed and charged a service charge of \$35 to reinstate water services plus an additional accounting and management fee of \$10; provided, however, if the Water Company increases or decreases its current fee to reinstate water service from \$35; than the amount charged to the Borough by the Water Company shall be the amount assessed and charged to the reinstated service account plus an additional accounting and management fee of \$10.
- E. If payment is made by any negotiable instrument that is dishonored for any reason (i.e., NSF, closed account stop payments, etc.), then the rate payer or user of the sewerage collection and treatment system of the Borough of Baldwin shall be assessed and charged \$38 for each dishonored negotiable instrument. In the event that the Bank's fee charged for dishonored Checks increase, then the aforesaid amount of \$38 will be increased an equal amount and shall be charged to the drawer of the check, to the maker of the negotiable instrument delinquent account, or to the account.
- F. Cost of postage and/or certified mail shall be assessed and charged at the actual postage cost to the delinquent account.

- G. Notary public fees shall be assessed and charged at the actual cost incurred to the delinquent account.
- H. Fees for online payments shall be charged and assessed to the rate payer. The current fee is \$1.50 for each ACH transaction and \$1.50 for each online credit card or debit card charge; provided, however, if the online clearing company fees increase, then the fee charged by said clearing company shall be the fee imposed.
- I. Fees for title certifications shall be \$30 per certification and paid by the title company or the buyer of the real estate.
- J. This section relates to costs and legal fees incurred in collection of delinquent sewage accounts of the Borough of Baldwin. Any sewage account that is not fully paid on or before the due date of the first delinquency notice, (i.e., 60 days from the initial bill), is hereby declared to be a delinquent account subject to these charges set forth in this section; provided however, dishonored negotiable instruments are assessed and charged the aforesaid fee of \$38 with the returned of any check unpaid for any reason even if the account is not delinquent. The costs and fees that are to be assessed to the delinquent accounts are to be paid directly to the designated Borough's collector of sewage user's fees, and shall be kept by the aforesaid collector and/or the collector's attorneys who prosecute the claims as payment for the collection, managing, and accounting fees. Any cost prepaid by the Borough to the Borough's collector for the collection of said delinquent accounts that is recovered from the delinquent accounts shall be reimbursed to the Borough to the extent of the moneys that were recovered from and were paid by the delinquent property owner or delinquent account holder. The Borough shall advance posting payments of \$15 per posting to the designated Borough's collector prior to the postings, or such cost shall be offset in the monthly amounts due the Borough. The Borough shall pay the shutoff cost either directly to the water company or to the Borough's collector to pay to the water company upon billing by the water company. In the event that any of the delinquent accounts are rental property, then the owner of the realty is responsible for these additional costs and fees in addition to any unpaid usage charges, penalties and interest. Landlords are required to register all rental realty and properties with the designated collector of the sewage accounts, and landlords who have registered with the designated collector that the realty is a rental property with a tenant(s) shall receive a notice of a delinquency in the tenant's account within 30 days after the account becomes delinquent. Landlords who fail to register with the designated collector that the realty is rental realty or if the account is in the landlord's name, then there is a nonrebuttable presumption that the landlord is responsible for the payment of the sewage account, even if the landlord did not receive the thirty-day notice of the tenant's delinquency.
- K. That in addition to all costs incurred, the schedule of legal and administrative fees that the designated collector of sewage usage fees or his designated attorney or agent are authorized to charge in the collection of delinquent sewerage accounts are as follows:

Schedule of Legal Fees

Legal Services	Fee for Services
Preparing and sending demand letter regarding payment of delinquency	\$75 assessed to the delinquent account
Filing of lien	\$150 assessed to the delinquent account
Title search	\$250 assessed to the delinquent account
Preparation and service of writ of scire facias	\$600 assessed to the delinquent account

Schedule of Legal Fees

Legal Services	Fee for Services
Required additional notice and presentation of related motions regarding federal tax liens, judgments and mortgages	\$150 assessed to the delinquent account
Alternative service of legal pleadings	\$250 assessed to the delinquent account
Entry of judgment	\$150 assessed to the delinquent account
Preparation of writ of execution and attend initial sheriff sale	\$750 assessed to the delinquent account
Preparation of documents and attendance at second sheriff sale	\$600 assessed to the delinquent account
Review schedule of distribution and resolve distribution issues	\$250 assessed to the delinquent account
Installment payment agreement at taxpayer's request	\$100 assessed to the delinquent account
Services not covered above	\$150 per hour — attorney \$75 per hour — paralegals \$50 per hour — law clerks

Chapter 136**SOLID WASTE**

§ 136-1.	Title.	§ 136-5.	Collection.
§ 136-2.	Definitions and word usage.	§ 136-6.	Charges.
§ 136-3.	Prohibitions.	§ 136-7.	Enforcement.
§ 136-4.	Storage.	§ 136-8.	Violations and penalties.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 9-17-1990 by Ord. No. 618. Amendments noted where applicable.]

GENERAL REFERENCES

Open burning — See Ch. 81.

Junkyards and junk dealers — See Ch. 105.

Hazardous materials — See Ch. 100.

Recycling — See Ch. 132.

§ 136-1. Title.

This chapter shall be known and referred to as the "Solid Waste Ordinance."

§ 136-2. Definitions and word usage.

- A. The following words and phrases as used in this chapter shall have the meanings ascribed herein, unless the context clearly indicates a different meaning:

ACT or ACT 97 — The Pennsylvania Solid Waste Management Act of 1980 (P.L. 380, No. 97, July 7, 1980).⁴⁷

AGRICULTURAL WASTE — Poultry and livestock manure or residual materials in liquid or solid form generated in the production and marketing of poultry, livestock, fur-bearing animals and their products, provided that such waste is not a hazardous waste. The term includes the residual materials generated in producing, harvesting and marketing of all agronomic, horticultural, silvicultural and agricultural crops or commodities grown on what are usually recognized and accepted as farms, forest or other agricultural lands.

BOROUGH — The Borough of Baldwin.

BULKY WASTE — Large items of solid waste, including but not limited to appliances, furniture, trees, branches or stumps which may require special handling due to their size, shape or weight.

COMMERCIAL ESTABLISHMENT — Any establishment engaged in nonmanufacturing or nonprocessing business, including but not limited to stores, markets, office buildings, restaurants, shopping centers and theaters.

CONSTRUCTION DEMOLITION WASTE — All municipal and residual waste building materials, grubbing waste and rubble resulting from construction, remodeling, repair and demolition operations

47. Editor's Note: See 35 P.S. § 6018.101 et seq.

on houses, commercial buildings and other structures and pavements.

COUNCIL — The Borough Council of the Borough of Baldwin.

DEPARTMENT — The Pennsylvania Department of Environmental Resources.⁴⁸

DISPOSAL — The incineration, deposition, injection, dumping, spilling, leaking or placing of solid waste into or on the land or water in a manner such that the solid waste or a constituent of the solid waste enters the environment, is emitted into the air or is discharged to the waters of the Commonwealth of Pennsylvania.

DOMESTIC WASTE or HOUSEHOLD WASTE — Solid waste, comprised of garbage and rubbish, which normally originates in the residential private household or apartment house.

GARBAGE — Any solid waste derived from animal, grain, fruit or vegetable matter that is capable of being decomposed by microorganisms with sufficient rapidity to cause such nuisances as odors, gases or vectors.

HAULER or PRIVATE COLLECTOR — Any person, firm, copartnership, association or corporation which has been licensed by the Borough or its designated representative to collect, transport and dispose of refuse for a fee as herein prescribed.

HAZARDOUS WASTE — Any solid waste or combination of solid wastes, as defined in the Act, which because of its quantity, concentration or physical, chemical or infectious characteristics may:

- (1) Cause or significantly contribute to an increase in mortality or an increase in morbidity in either an individual or the total population; or
- (2) Pose a substantial present or potential hazard to human health or the environment when improperly treated, stored, transported, disposed of or otherwise managed.

INDUSTRIAL ESTABLISHMENT — Any establishment engaged in manufacturing or processing, including but not limited to factories, foundries, mills, processing plants, refineries, mines and slaughterhouses.

INSTITUTIONAL ESTABLISHMENT — Any establishment engaged in service, including but not limited to hospitals, nursing homes, orphanages, schools and universities.

MUNICIPAL WASTE — Garbage, refuse, industrial lunchroom or office waste and other material, including solid, liquid, semisolid or contained gaseous material resulting from operation of residential, municipal, commercial or institutional establishments and from community activities; and any sludge not meeting the definition of residual or hazardous waste under Act 97 from a municipal, commercial or institutional water supply treatment plant, wastewater treatment plant or air pollution control facility. The term does not include source-separated recyclable materials.

PERSON — Any individual, partnership, corporation, association, institution, cooperative enterprise, state institution and agency or any other legal entity which is recognized by law as the subject of rights and duties. In any provisions of this chapter prescribing a fine, imprisonment or penalty or any combination of the foregoing, the term "person" shall include the officers and directors of any corporation or other legal entity having officers and directors.

PROCESSING — Any technology used for the purpose of reducing the volume or bulk of municipal or residual waste or any technology used to convert part or all of such waste materials for off-site

48. Editor's Note: This department was split into two and reorganized by Act 1995-18. Now the Department of Environmental Protection, 71 P.S. § 510-1, or Department of Conservation and Natural Resources, 71 P.S. § 1340.301 et seq. For purposes of this chapter, reference is to the DEP.

reuse. "Processing" facilities include, but are not limited to, transfer facilities, composting facilities and resource-recovery facilities.

REFUSE — All solid waste materials which are discarded as useless.

RESIDUAL WASTE — Any garbage, refuse, other discarded material or other waste, including solid, liquid, semisolid or contained gaseous materials resulting from industrial, mining and agricultural operations; and any sludge from an industrial, mining or agricultural water supply treatment facility, wastewater treatment facility or air pollution control facility, provided that it is not hazardous. The term "residual waste" shall not include coal refuse as defined in the Coal Refuse Disposal Control Act.⁴⁹ "Residual waste" shall not include treatment sludges from coal mine drainage treatment plants, disposal of which is being carried on pursuant to and in compliance with a valid permit issued pursuant to the Clean Streams Law.⁵⁰

RUBBISH — All nonputrescible municipal waste except garbage and other decomposable matter. This category includes but is not limited to ashes, bedding, cardboard, cans, crockery, glass, paper, wood and yard cleanings.

SCAVENGING — The unauthorized and uncontrolled removal of materials placed for collection or from solid waste processing or disposal facility.

SECRETARY — The Secretary of the Borough of Baldwin.

SEWAGE TREATMENT RESIDUES — Any coarse screenings, grit and dewatered or air-dried sludges from sewage treatment plants and pumpings from septic tanks or septage which are a municipal solid waste and require proper disposal under Act 97.

SOLID WASTE — Any waste, including but not limited to municipal, residual or hazardous wastes, including solid, liquid, semisolid or contained gaseous material.

SOURCE-SEPARATED RECYCLABLE MATERIALS — Those materials separated at the point of origin for the purpose of being recycled.

STORAGE — The containment of any waste on a temporary basis in such a manner as not to constitute disposal of such waste. It shall be presumed that the containment of any waste in excess of one year constitutes disposal. This presumption can be overcome by clear and convincing evidence to the contrary.

TRANSPORTATION — The off-site removal of any solid waste at any time after generation.

TRANSFER STATION — Any supplemental transportation facility used as an adjunct to solid waste route collection vehicles.

- B. In this chapter, the singular shall include the plural, and the masculine shall include the feminine and the neuter.

§ 136-3. Prohibitions.

- A. It shall be unlawful for any person to accumulate or permit to accumulate upon any public or private property within the Borough any garbage, rubbish, bulky waste or any other municipal or residual solid waste, including agricultural waste, domestic waste and hazardous waste, except in accordance with the provisions of this chapter, any Department rules and regulations adopted pursuant to Act 97 and rules and regulations of the Department of Health of the State of Pennsylvania and the County of

49. Editor's Note: See 52 P.S. § 30.51 et seq.

50. Editor's Note: See 35 P.S. § 691.1 et seq.

Allegheny.

- B. It shall be unlawful for any person to burn any solid waste or other wastes enumerated in § 136-3A hereof within the Borough except in accordance with the provisions of this chapter, any department rules and regulations adopted pursuant to Act 97 and rules and regulations of the Department of Health of the State of Pennsylvania and the County of Allegheny.
- C. It shall be unlawful for any person to dispose of any solid waste or other wastes enumerated in § 136-3A hereof in the Borough except in accordance with the provisions of this chapter, any Department rules and regulations adopted pursuant to Act 97 and the rules and regulations of the Department of Health of the State of Pennsylvania and the County of Allegheny.
- D. It shall be unlawful for any person to haul, transport, collect or remove any solid waste or other wastes enumerated in § 136-3A hereof from public or private property within the Borough without first securing a license to do so in accordance with the provisions of this chapter.
- E. It shall be unlawful for any person to scavenge any materials from any solid waste or other wastes enumerated in § 136-3A hereof that are stored or deposited for collection within the Borough.
- F. It shall be unlawful for any person to salvage or reclaim any solid wastes or other wastes enumerated in § 136-3A hereof within the Borough except at an approved and permitted resource-recovery facility under Act 97.
- G. It shall be unlawful for any person to throw, place or deposit or cause or permit to be thrown, placed or deposited any solid waste or other wastes enumerated in § 136-3A hereof in or upon any street, alley, sidewalk, body of water, public or private property within the Borough except as provided in this chapter.

§ 136-4. Storage.

- A. The storage of all solid waste shall be practiced so as to prevent the attraction, harborage or breeding of insects or rodents and to eliminate conditions harmful to public health or which create safety hazards, odors, unsightliness or public nuisances.
- B. Any person producing municipal waste shall provide a sufficient number of approved containers to store all waste materials generated during periods between regulatory scheduled collections and shall place and store all waste materials therein.
- C. Any person storing municipal waste for collection shall comply with the following preparations standards:
 - (1) All municipal waste shall be drained free of liquids before being placed in storage containers.
 - (2) All garbage or other putrescible waste shall be securely wrapped in paper, plastic or similar material or placed in properly tied plastic bags.
 - (3) All cans, bottles or other food containers should be rinsed free of food particles and drained before being placed in storage containers in accordance with Ordinance No. 619, adopted contemporaneously herewith.⁵¹
 - (4) Subject to Ordinance No. 619, garden clippings and tree trimmings shall be placed in approved

51. Editor's Note: See Ch. 132, Recycling.

containers or shall be cut and tied securely into bundles. Bundles shall be not more than three feet in length, not more than two feet in diameter and not more than 40 pounds in weight. No single piece shall be more than three inches in diameter.

- (5) Subject to Ordinance No. 619, newspapers and magazines shall be placed in approved containers or shall be tied securely into bundles of not more than 40 pounds in weight.
- (6) When specified by the Borough or its designated representative, special preparation and storage procedures may be required to facilitate the collection and resource recovery of certain waste materials.
- (7) Carpet and/or carpet padding shall be placed in an approved closed container or must be cut in lengths not exceeding eight feet and securely tied. No single piece shall be more than 40 pounds in weight.

D. All municipal waste shall be stored in containers approved by the Borough or its designated representative. Individual containers and bulk containers utilized for storage of municipal waste shall comply with the following standards:

- (1) Reusable containers shall be constructed of durable, watertight, rust- and corrosion-resistant material, such as plastic metal or fiberglass, in such a manner as to be leakproof, weatherproof, insectproof and rodentproof.
- (2) Reusable containers for individual residences shall have a tight-fitting cover and suitable lifting handles to facilitate collection.
- (3) Reusable containers for individual residences shall have a capacity of not less than 10 gallons nor more than 30 gallons and a loaded weight of not more than 40 pounds and shall be limited to three such containers per residence.
- (4) Disposable plastic bags or sacks are acceptable containers, provided that the bags are designated for waste disposal. Plastic bags shall have sufficient wall strength to maintain physical integrity when lifted by the top, shall be securely tied at the top for collection and shall have a capacity of not more than 30 gallons and a loaded weight of not more than 35 pounds.
- (5) All containers, either reusable or disposable, shall also comply with the minimum standards established by the National Sanitation Foundation.

E. Any person storing municipal waste for collection shall comply with the following storage standards:

- (1) Containers shall be kept tightly sealed or covered at all times. Solid waste shall not protrude or extend above the top of the container.
- (2) Reusable containers shall be kept in a sanitary condition at all times. The interior of the containers shall be thoroughly cleaned, rinsed, drained and disinfected, as often as necessary, to prevent the accumulation of liquid residues or solids on the bottom or sides of the containers.
- (3) Containers shall be used and maintained so as to prevent public nuisances.
- (4) Containers that do not conform to the standard of this chapter or which have sharp edges, ragged edges or any other defect that may hamper or injure collection personnel shall be promptly replaced by the owner upon notice from the Borough or its designated representative.
- (5) Containers shall be placed by the owner or customer at a collection point specified by the

Borough or its designated representative.

- (6) With the exception of pickup days when the containers are placed for collection, the containers shall be properly stored on the owner's or customer's premises at all times.
 - (7) Bulk waste items such as furniture, appliances and tires shall be stored in a manner that will prevent the accumulation or collection of water, the harborage of rodents, safety hazards and fire hazards. Doors must be removed from appliances.
- F. The storage of all municipal waste from multifamily residential units, commercial establishments, institutions and industrial lunchroom or office waste sources is subject to the regulations and standards set forth in this chapter. The type, size and placement requirements for bulk containers shall be determined by the waste generator and the waste hauler and are subject to approval by the Borough.

§ 136-5. Collection.

- A. The Borough shall provide for the collection of all garbage, rubbish and bulky wastes from individual residences. Multifamily residential owners shall contract with a private collector or collectors to provide this essential residential collection service.
- B. All single-family residences shall utilize the residential collection service provided by the Borough.
- C. All commercial, institutional and industrial establishments shall negotiate and individually contract collection service with the Borough's collector or any other properly licensed waste hauler of their choice.
- D. All residential garbage and rubbish shall be collected at least once a week.
- E. All commercial, institutional, public and industrial lunchroom and office waste containing garbage shall be collected at least once a week. Rubbish collection from these sources shall be made as often as necessary to control health hazards, odors, flies and unsightly conditions. The Borough reserves the right to require more frequent collection when deemed necessary.
- F. Residential collection schedules shall be published, as deemed necessary, by the Borough or its contracted hauler.
- G. Placement of container(s) at curbside may be no earlier than 5:00 p.m. on the day prior to the designated collection day and must be removed from curbside to the storage place no later than 6:00 p.m. on the day of collection.
- H. All waste collection activity shall be conducted from Monday through Friday between the hours of 6:00 a.m. and 5:00 p.m. or on Saturdays between the hours of 6:00 a.m. and 5:00 p.m., unless prior approval or any exception has been granted by the Borough. No collection, hauling or transporting of solid waste shall be permitted on Sunday.
- I. All licensed haulers and haulers under contract with the Borough shall comply with the following standards and regulations:
 - (1) All municipal waste collected within the Borough shall ultimately be disposed only at a landfill cited in the Allegheny County Solid Waste Plan 1990, or in subsequent revisions thereto.
 - (2) Any trucks or other vehicles used for the collection and transportation of municipal waste must comply with the requirements of Act 97 and any Department regulations adopted pursuant to

Act 97 and must be licensed by the Allegheny County Health Department.

- (3) All collection vehicles conveying domestic waste and garbage shall be watertight and suitably enclosed to prevent leakage, roadside littering, the attraction of vectors, the creation of odors and other nuisances.
- (4) All solid waste shall be collected and transported so as to prevent public health hazards, safety hazards and nuisances.
- (5) All solid waste collection vehicles shall be operated and maintained in a clean and sanitary condition.

§ 136-6. Charges.

- A. The Council of the Borough shall be authorized to make funds available, in accordance with the laws and procedures of the Borough, for the establishment, maintenance and operation of a municipal solid waste collection and disposal system or for the contracting of such service to a private collector.
- B. Annual costs shall be made available by the Borough on any competitively bid residential collection service contract that may be awarded by the Borough.
- C. The Borough shall be responsible for the payment of any fees for solid waste collection and disposal for residential customers receiving standard contracted service.
- D. The Borough's contracted hauler and other licensed haulers shall be responsible for the collection of any fees for private arrangement or private contract solid waste collection and disposal services provided to any individual, residential, commercial, institutional or industrial source within the Borough.

§ 136-7. Enforcement.

The Borough may petition the appropriate court for an injunction, either mandatory or prohibitive, to enforce any of the provisions of this chapter.

§ 136-8. Violations and penalties. [Amended 5-17-1993 by Ord. No. 657]

- A. Any person who violates any provision of this chapter shall, upon conviction, be guilty of a misdemeanor which is punishable by a fine of not less than \$300 nor more than \$1,000 or, in default of payment of such fine, then by imprisonment for a period of not more than 30 days, or both. Each day of violation shall be considered a separate and distinct offense.
- B. In the alternative, any person who violates any provision of this chapter shall be cited before the District Magistrate for a summary offense and, upon conviction thereof, shall be fined for a sum of not less than \$100 nor more than \$500 and, in default of the payment of such fine, shall be imprisoned for a period of not more than 30 days. Each day of violation shall be considered a separate and distinct offense.

STORMWATER MANAGEMENT

Chapter 138

STORMWATER MANAGEMENT

ARTICLE I General Provisions		§ 138-23.	Resubmission of disapproved SWM site plans.
§ 138-1.	Short title.	§ 138-24.	Authorization to construct and term of validity.
§ 138-2.	Statement of findings.	§ 138-25.	Record drawings, completion certificate, and final inspection.
§ 138-3.	Purpose.		
§ 138-4.	Statutory authority.		
§ 138-5.	Applicability.		ARTICLE V Design Criteria
§ 138-6.	Repealer.		
§ 138-7.	Severability.	§ 138-26.	Calculation methodology.
§ 138-8.	Compatibility with other requirements.	§ 138-27.	Standards for collection and conveyance facilities.
§ 138-9.	Erroneous permit.	§ 138-28.	Standards for stormwater detention facilities.
§ 138-10.	Waivers.		
§ 138-11.	Version of regulations and standards.		ARTICLE VI Operation and Maintenance
§ 138-12.	Disclaimer of liability.		
ARTICLE II Definitions		§ 138-29.	Responsibilities of developers and landowners.
§ 138-13.	Definitions.	§ 138-30.	Operation and maintenance agreements.
ARTICLE III Stormwater Management Standards		§ 138-31.	Performance guarantee.
		§ 138-32.	Special Stormwater Facility Maintenance Fund.
§ 138-14.	General requirements.		ARTICLE VII Fees and Expenses
§ 138-15.	Exemptions.		
§ 138-16.	Volume controls.		
§ 138-17.	Rate controls.	§ 138-33.	General.
§ 138-18.	Riparian buffers.		
ARTICLE IV Stormwater Management (SWM) Site Plan Requirements			ARTICLE VIII Prohibitions
		§ 138-34.	Prohibited discharges and connections.
§ 138-19.	Plan requirements.	§ 138-35.	Roof drains and sump pumps.
§ 138-20.	Plan submission.	§ 138-36.	Alteration of SWM BMP.
§ 138-21.	Plan review.		
§ 138-22.	Modification of plans.		

BALDWIN CODE

ARTICLE IX		§ 138-41.	Penalties.
Enforcement and Penalties		§ 138-42.	Appeals.
§ 138-37.	Right of entry.		ARTICLE X
§ 138-38.	Inspection.		References
§ 138-39.	Enforcement.		
§ 138-40.	Suspension and revocation.	§ 138-43.	References.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 11-20-2018 by Ord. No. 891. Amendments noted where applicable.]

ARTICLE I
General Provisions

§ 138-1. Short title.

This chapter shall be known and may be cited as the "Borough of Baldwin Stormwater Management Ordinance."

§ 138-2. Statement of findings.

The governing body of the Municipality finds that:

- A. Inadequate management of accelerated runoff of stormwater resulting from development throughout a watershed increases runoff volumes, flows and velocities, contributes to erosion and sedimentation, overtaxes the carrying capacity of streams and storm sewers, greatly increases the cost of public facilities to carry and control stormwater, undermines floodplain management and flood control efforts in downstream communities, reduces groundwater recharge, threatens public health and safety, and increases nonpoint source pollution of water resources.
- B. A comprehensive program of stormwater management (SWM), including regulation of development and activities causing accelerated runoff, is fundamental to the public health, safety, and welfare and the protection of people of the commonwealth, their resources, and the environment.
- C. Stormwater is an important water resource that provides groundwater recharge for water supplies and supports the base flow of streams.
- D. The use of green infrastructure (GI) and low-impact development (LID) are intended to address the root cause of water quality impairment by using systems and practices which use or mimic natural processes to: 1) infiltrate and recharge, 2) evapotranspire, and/or 3) harvest and use precipitation near where it falls to earth. Green infrastructure practices and LID contribute to the restoration or maintenance of predevelopment hydrology.
- E. Federal and state regulations require certain municipalities to implement a program of stormwater controls. These municipalities are required to obtain a permit for stormwater discharges from their separate storm sewer systems under the National Pollutant Discharge Elimination System (NPDES) program.

§ 138-3. Purpose.

The purpose of this chapter is to promote health, safety, and welfare within the Municipality and its watershed by minimizing the harms and maximizing the benefits described in § 138-2 of this chapter through provisions designed to:

- A. Meet legal water quality requirements under state law including regulations at 25 Pa. Code 93 to protect, maintain, reclaim, and restore the existing and designated uses of the waters of this commonwealth.
- B. Preserve natural drainage systems.
- C. Manage stormwater runoff close to the source, reduce runoff volumes and mimic predevelopment hydrology.
- D. Provide procedures and performance standards for stormwater planning and management.

- E. Maintain groundwater recharge to prevent degradation of surface and groundwater quality and to otherwise protect water resources.
- F. Prevent scour and erosion of stream banks and streambeds.
- G. Provide proper operation and maintenance of all stormwater best management practices (BMPs) that are implemented within the Municipality.
- H. Provide standards to meet NPDES permit requirements.

§ 138-4. Statutory authority.

The Municipality is empowered to regulate land use activities that affect runoff by the authority of the Act of July 31, 1968, P.L. 805, No. 247, The Pennsylvania Municipalities Planning Code, as amended, and/or the Act of October 4, 1978, P.L. 864 (Act 167), 32 P.S. Section 680.1, et seq., as amended, The Stormwater Management Act.

§ 138-5. Applicability.

All regulated activities and all activities that may affect stormwater runoff, including land development and earth disturbance activity, are subject to regulation by this chapter.

§ 138-6. Repealer.

Any other ordinance provision(s) or regulation of the Municipality inconsistent with any of the provisions of this chapter is hereby repealed to the extent of the inconsistency only.

§ 138-7. Severability.

In the event that a court of competent jurisdiction declares any section or provision of this chapter invalid, such decision shall not affect the validity of any of the remaining provisions of this chapter.

§ 138-8. Compatibility with other requirements.

Approvals issued and actions taken under this chapter do not relieve the applicant of the responsibility to secure required permits or approvals for activities regulated by any other code, law, regulation or ordinance.

§ 138-9. Erroneous permit.

Any permit or authorization issued or approved based on false, misleading or erroneous information provided by an applicant is void without the necessity of any proceedings for revocation. Any work undertaken or use established pursuant to such permit or other authorization is unlawful. No action may be taken by a board, agency or employee of the Municipality purporting to validate such a violation.

§ 138-10. Waivers.

- A. If the Municipality determines that any requirement under this chapter cannot be achieved for a particular regulated activity, the Municipality may, after an evaluation of alternatives, approve measures other than those in this chapter, subject to § 138-10B. The proposed area of disturbance shall be less than one acre. The request for a modification or waiver shall originate with the landowner, shall be in writing, and shall accompany the stormwater management site plan submitted

to the Municipality. The request shall provide the facts on which the request is based, the provisions of the chapter involved, and the proposed modification. The designated plan reviewer shall review the request to determine if it meets the requirements of this chapter, including Subsection B below. If acceptable to the Municipality, the Municipality may grant the waiver or modification.

- B. Waivers or modifications of the requirements of this chapter may be approved by the Municipality if enforcement will exact undue hardship because of unique physical circumstances or conditions peculiar to the land in question, provided that the modifications will not be contrary or detrimental to the public interest and will achieve the intended outcome, and that the purpose of the chapter is preserved. Hardship must be due to such unique physical circumstances or conditions and not to circumstances or conditions generally created by the provisions of the Stormwater Management Ordinance. Cost or financial burden shall not be considered a hardship. Modifications shall not substantially or permanently impair the appropriate use or development of adjacent property. A request for modifications shall be in writing and accompany the stormwater management site plan submission, as directed in § 138-10A above.
- C. No waiver or modification of any regulated stormwater activity involving earth disturbance greater than or equal to one acre may be granted by the Municipality.
- D. This section shall not apply to requests for waiver or modification to the provisions of Article V, Design Criteria. All requests for waivers or modifications from Article V shall be reviewed by the Municipality for applications of any size earth disturbance.

§ 138-11. Version of regulations and standards.

Any reference to a statute, regulation or standard shall be interpreted to refer to the latest or most current version of that document.

§ 138-12. Disclaimer of liability.

- A. For regulatory purposes, the degree of stormwater management sought by the provisions of this chapter is considered reasonable. This chapter shall not impose upon the Municipality any legal duty in addition to those duties otherwise imposed under the Stormwater Management Act upon the Municipality, any appointed or elected official, employee or representative of the Municipality. It is not the intention of the Municipality to guarantee the elimination of harm resulting from stream flow, floods, rain, snow, or stormwater runoff; or erosion resulting therefrom. It is the intention of the Municipality to create reasonable stormwater management regulations which balance several competing interests in an appropriate fashion with the emphasis on public safety.
- B. This chapter does not imply that areas within or outside any identified flood-prone area will be free from flooding or flood damages.
- C. Neither the granting of any approval under this chapter, nor the compliance with the provisions of this chapter, or with any condition imposed by the Municipality or a Municipality official hereunder, shall relieve any person from any responsibility for damage to persons or property resulting therefrom, or as otherwise imposed by law, nor impose any liability upon the Municipality for damages to person or property.
- D. The granting of a permit which includes any stormwater management facilities shall not constitute a representation, guarantee, or warranty of any kind by the Municipality, or by an official, employee, or consultant thereof, of the practicability or safety of any structure, use, or other plan proposed, and shall create no liability upon or cause of action against the Municipality, or an official, employee, or

consultant thereof, for any damage that may result pursuant thereto.

ARTICLE II

Definitions**§ 138-13. Definitions.**

A. For the purposes of this chapter, certain terms and words used herein shall be interpreted as follows:

- (1) Words used in the present tense include the future tense; the singular number includes the plural, and the plural number includes the singular; words of masculine gender include feminine gender; and words of feminine gender include masculine gender.
- (2) The word "includes" or "including" shall not limit the term to the specific example but is intended to extend its meaning to all other instances of like kind and character.
- (3) The words "shall" and "must" are mandatory; the words "may" and "should" are permissive.

B. These definitions do not necessarily reflect the definitions contained in pertinent regulations or statutes and are intended for this chapter only.

ACT 167 — The Municipality is empowered to regulate land use activities that affect runoff and surface and groundwater quality and quantity by the authority of the Act of October 4, 1978, P.L. 864 (Act 167), 32 P.S. Section 680.1, et seq., as amended, the "Storm Water Management Act."

AGRICULTURAL ACTIVITY — Activities associated with agriculture such as agricultural cultivation, agricultural operation, and animal heavy use areas. This includes the work of producing crops including tillage, land clearing, plowing, disking, harrowing, planting, harvesting crops or pasturing and raising of livestock and installation of conservation measures. Construction of new buildings or impervious area is not considered an agricultural activity.

APPLICANT — A landowner, developer, or other person who has filed an application to the Municipality for approval to engage in any regulated activity at a project site in the Municipality.

BEST MANAGEMENT PRACTICE (BMP) — Activities, facilities, designs, measures, or procedures used to manage stormwater impacts from regulated activities, to meet state water quality requirements, to promote groundwater recharge, and to otherwise meet the purposes of this chapter. Stormwater BMPs are commonly grouped into one of two broad categories or measures: structural or nonstructural. In this chapter, nonstructural BMPs or measures refer to operational and/or behavior-related practices that attempt to minimize the contact of pollutants with stormwater runoff, whereas structural BMPs or measures are those that consist of a physical device or practice that is installed to capture and treat stormwater runoff. Structural BMPs include, but are not limited to, a wide variety of practices and devices, from large-scale retention ponds and constructed wetlands, to small-scale underground treatment systems, infiltration facilities, filter strips, low-impact design, bioretention, wet ponds, permeable paving, grassed swales, riparian or forested buffers, sand filters, detention basins, and manufactured devices. Structural stormwater BMPs are permanent appurtenances to the project site.

CONSERVATION DISTRICT — A conservation district, as defined in Section 3(c) of the Conservation District Law (3 P. S. § 851(c)) that has the authority under a delegation agreement executed with DEP to administer and enforce all or a portion of the regulations promulgated under 25 Pa. Code 102.

DEP — The Pennsylvania Department of Environmental Protection.

DESIGN STORM — The magnitude and temporal distribution of precipitation from a storm event measured in probability of occurrence (e.g., five-year storm) and duration (e.g., 24 hours) used in the

design and evaluation of stormwater management systems. Also see return period.

DESIGNATED PLAN REVIEWER — A qualified professional as defined herein, or organization such as the Allegheny County Conservation District, that has been designated by the Municipality to be the reviewer of SWM site plans for the Municipality, and shall be understood to be the reviewer where indicated as the Municipality within this chapter.

DETENTION BASIN — An impoundment designed to collect and retard stormwater runoff by temporarily storing the runoff and releasing it at a predetermined rate. Detention basins are designed to drain completely in a designed period after a rainfall event, and to become dry until the next rainfall event.

DETENTION VOLUME — The volume of runoff that is captured and released into the waters of the commonwealth at a controlled rate.

DEVELOPMENT SITE (SITE) — See project site.

DISTURBED AREA — An unstabilized land area where an earth disturbance activity is occurring or has occurred.

EARTH DISTURBANCE ACTIVITY — A construction or other human activity which disturbs the surface of the land, including, but not limited to: clearing and grubbing; grading; excavations; embankments; road maintenance; building construction; and the moving, depositing, stockpiling, or storing of soil, rock, or earth materials.

EROSION — The natural process by which the surface of the land is worn away by water, wind, or chemical action.

EXISTING CONDITION — The dominant land cover during the five-year period immediately preceding a proposed regulated activity.

FEMA — Federal Emergency Management Agency.

FLOODPLAIN — Any land area susceptible to inundation by water from any natural source or delineated by applicable FEMA maps and studies as being a special flood hazard area. Also includes areas that comprise Group 13 soils, as listed in Appendix A of the Pennsylvania DEP Technical Manual for Sewage Enforcement Officers (as amended or replaced from time to time by DEP).

FLOODWAY — The channel of the watercourse and those portions of the adjoining floodplains that are reasonably required to carry and discharge the 100-year flood. Unless otherwise specified, the boundary of the floodway is as indicated on maps and flood insurance studies provided by FEMA. In an area where no FEMA maps or studies have defined the boundary of the 100-year floodway, it is assumed, absent evidence to the contrary, that the floodway extends from the stream to 50 feet from the top of the bank of the stream.

FOREST MANAGEMENT/TIMBER OPERATIONS — Planning and activities necessary for the management of forestland. These include conducting a timber inventory, preparation of forest management plans, silvicultural treatment, cutting budgets, logging road design and construction, timber harvesting, site preparation, and reforestation.

GREEN INFRASTRUCTURE — Systems and practices that use or mimic natural processes to infiltrate, evapotranspire, or reuse stormwater on the site where it is generated.

GROUNDWATER — Water beneath the earth's surface that supplies wells and springs and is within the saturated zone of soil and rock.

GROUNDWATER RECHARGE — The replenishment of existing natural underground water

supplies from precipitation or overland flow.

HYDROLOGIC SOIL GROUP (HSG) — Infiltration rates of soils vary widely and are affected by subsurface permeability as well as surface intake rates. Soils are classified into four HSGs (A, B, C, and D) according to their minimum infiltration rate, which is obtained for bare soil after prolonged wetting. The NRCS defines the four groups and provides a list of most of the soils in the United States and their group classification. The soils in the area of the development site may be identified from a soil survey report that can be obtained from local NRCS offices or conservation district offices. Soils become less pervious as the HSG varies from A to D (NRCS⁵²).

IMPERVIOUS SURFACE (IMPERVIOUS AREA) — A surface that prevents the infiltration of water into the ground. Impervious surfaces (or areas) shall include, but not be limited to: roofs; additional indoor living spaces, patios, garages, storage sheds and similar structures; and any new streets or sidewalks. Decks, parking areas, and driveway areas are counted as impervious areas if they directly prevent infiltration. Any surface areas designed to initially be gravel or crushed stone shall be assumed to be impervious surfaces. In addition, any surface designed to be constructed of permeable, pervious or porous concrete, asphalt, or pavers shall be considered an impervious surface.

INFILTRATION — Movement of surface water into the soil, where it is absorbed by plant roots, evaporated into the atmosphere, or percolated downward to recharge groundwater.

INVASIVE SPECIES — DCNR defines invasive plants as those species that are not native to the state, grow aggressively, and spread and displace native vegetation. (see http://www.dcnr.state.pa.us/cs/groups/public/documents/document/dcnr_010314.pdf for a list of invasive species.)

LAND DEVELOPMENT (DEVELOPMENT) — Inclusive of any or all of the following meanings: the improvement of one lot or two or more contiguous lots, tracts, or parcels of land for any purpose involving a) a group of two or more buildings or b) the division or allocation of land or space between or among two or more existing or prospective occupants by means of, or for the purpose of streets, common areas, leaseholds, condominiums, building groups, or other features; any subdivision of land; development in accordance with Section 503(1.1) of the PA Municipalities Planning Code.⁵³

LOW-IMPACT DEVELOPMENT (LID) — Site design approaches and small-scale stormwater management practices that promote the use of natural systems for infiltration, evapotranspiration, and reuse of rainwater. LID can be applied to new development, urban retrofits, and revitalization projects. LID utilizes design techniques that infiltrate, filter, evaporate, and store runoff close to its source. Rather than rely on costly large-scale conveyance and treatment systems, LID addresses stormwater through a variety of small, cost-effective landscape features located on-site.

MUNICIPALITY — Borough of Baldwin, Allegheny County, Pennsylvania.

NATIVE VEGETATION — Plant species that have historically grown in Pennsylvania and are not invasive species as defined herein.

NRCS — USDA Natural Resources Conservation Service (previously SCS).

PEAK DISCHARGE — The maximum rate of stormwater runoff from a specific storm event.

PERVIOUS AREA — Any area not defined as impervious.

PROJECT SITE — The specific area of land where any regulated activities in the Municipality are planned, conducted, or maintained.

52. Editor's Note: See § 138-43A and B.

53. Editor's Note: See 53 P.S. § 10101 et seq.

QUALIFIED PROFESSIONAL — Any person licensed by the Pennsylvania Department of State or otherwise qualified under Pennsylvania law to perform the work required by this chapter.

REGULATED ACTIVITIES — Any earth disturbance activities or any activities that involve the alteration or development of land in a manner that may affect stormwater runoff.

REGULATED EARTH DISTURBANCE ACTIVITY — Activity involving earth disturbance subject to regulation under 25 Pa. Code 92, 25 Pa. Code 102, or the Clean Streams Law.⁵⁴

RELEASE RATE — The percentage of existing conditions peak rate of runoff from a site or subarea to which the proposed conditions peak rate of runoff must be reduced to protect downstream areas.

RELEASE RATE DISTRICT — A watershed or portion of a watershed for which a release rate has been established by an adopted Act 167 Stormwater Management Plan.⁵⁵

RETENTION VOLUME/REMOVED RUNOFF — The volume of runoff that is captured and not released directly into the surface waters of this commonwealth during or after a storm event.

RETURN PERIOD — The average interval, in years, within which a storm event of a given magnitude can be expected to occur one time. For example, the twenty-five-year return period rainfall would be expected to occur on average once every 25 years; or stated in another way, the probability of a twenty-five-year storm occurring in any one year is 0.04 (i.e., a 4% chance).

RIPARIAN BUFFER — A permanent vegetated area of trees and shrubs located adjacent to streams, lakes, ponds and wetlands.

RUNOFF — Any part of precipitation that flows over the land.

SEDIMENT — Soils or other materials transported by surface water as a product of erosion.

STATE WATER QUALITY REQUIREMENTS — The regulatory requirements to protect, maintain, reclaim, and restore water quality under Title 25 of the Pennsylvania Code and the Clean Streams Law.⁵⁶

STORMWATER — Drainage runoff from the surface of the land resulting from precipitation or snow or ice melt.

STORMWATER MANAGEMENT FACILITY — Any structure, natural or man-made, that, due to its condition, design, or construction, conveys, stores, or otherwise affects stormwater runoff. Typical stormwater management facilities include, but are not limited to: detention and retention basins; open channels; storm sewers; pipes; and infiltration facilities.

STORMWATER MANAGEMENT SITE PLAN — The plan prepared by the developer or the developer's representative indicating how stormwater runoff will be managed at the development site in accordance with this chapter. "Stormwater management site plan" will be designated as "SWM site plan" throughout this chapter.

STREAM — A channel or conveyance of surface water having a defined bed and banks, whether natural or artificial, with perennial or intermittent flow.

SUBDIVISION — As defined in The Pennsylvania Municipalities Planning Code,⁵⁷ Act of July 31, 1968, P.L. 805, No. 247.

54. Editor's Note: See 35 P.S. § 691.1 et seq.

55. Editor's Note: See 32 P.S. § 680.1 et seq.

56. Editor's Note: See 35 P.S. § 691.1 et seq.

57. Editor's Note: See 53 P.S. § 10101 et seq.

USDA — United States Department of Agriculture.

WATERCOURSE — See stream.

WATERS OF THIS COMMONWEALTH — Any and all rivers, streams, creeks, rivulets, impoundments, ditches, watercourses, storm sewers, lakes, dammed water, wetlands, ponds, springs, and all other bodies or channels of conveyance of surface and underground water, or parts thereof, whether natural or artificial, within or on the boundaries of this commonwealth.

WATERSHED — Region or land area drained by a river, watercourse, or other surface water of this commonwealth to a downstream point.

WETLAND — Areas that are inundated or saturated by surface or groundwater at a frequency and duration sufficient to support, and that under normal circumstances do support, a prevalence of vegetation typically adapted for life in saturated soil conditions, including swamps, marshes, bogs, and similar areas.

ARTICLE III
Stormwater Management Standards

§ 138-14. General requirements.

- A. For all regulated activities, unless preparation of an SWM site plan is specifically exempted in § 138-15:
- (1) Preparation and implementation of an approved SWM site plan is required.
 - (2) No regulated activities shall commence until the Municipality issues written approval of an SWM site plan, which demonstrates compliance with the requirements of this chapter.
- B. SWM site plans approved by the Municipality, in accordance with § 138-24, shall be on site throughout the duration of the regulated activity.
- C. These standards apply to the landowner and any person engaged in regulated activities.
- D. For all regulated earth disturbance activities, erosion and sediment control BMPs shall be designed, implemented, operated, and maintained during the regulated earth disturbance activities (e.g., during construction) to meet the purposes and requirements of this chapter and to meet all requirements under Title 25 of the Pennsylvania Code and the Clean Streams Law.⁵⁸ Various BMPs and their design standards are listed in the Erosion and Sediment Pollution Control Program Manual (E&S Manual⁵⁹), No. 363-2134-008, as amended and updated. Comment on the adequacy of the Erosion and Sedimentation Controls may be provided by the Municipality per the requirements of Allegheny County Conservation District. The provisions of the Borough Erosion and Sedimentation Control Ordinance (Chapter 87) are incorporated herein by reference.
- E. Impervious areas:
- (1) The measurement of impervious areas shall include all of the impervious areas in the total proposed development even if development is to take place in stages.
 - (2) For development taking place in stages, the entire development plan must be used in determining conformance with this chapter.
 - (3) For projects that add impervious area to a parcel, the total impervious area on the parcel is subject to the requirements of this chapter; except that the volume controls in § 138-16 and the peak rate controls of § 138-17 do not need to be retrofitted to existing impervious areas that are not being altered by the proposed regulated activity.
- F. Stormwater flows onto adjacent or downstream property shall not be created, increased, decreased, relocated, impeded, or otherwise altered without written notification of the affected property owner(s). Notification shall include a description of the proposed development and the stormwater flows that are being created, increased, decreased, relocated, impeded, or otherwise altered. Adjacent property shall at a minimum include any property having a shared boundary with the subject property of the SWM site plan, however, if in the judgement of the designated plan reviewer additional properties are being affected, additional notifications may be required. Proof of notification (signed postal receipt for example) shall be included as part of the SWM plan submission to the Municipality. Such stormwater flows shall be subject to the requirements of this chapter.

58. Editor's Note: See 35 P.S. § 691.1 et seq.

59. Editor's Note: See § 138-43D.

- G. All regulated activities shall include such measures as necessary to:
- (1) Protect health, safety, and property.
 - (2) Meet the water quality goals of this chapter by implementing measures to:
 - (a) Minimize disturbance to floodplains, wetlands, and wooded areas.
 - (b) Maintain or extend riparian buffers.
 - (c) Avoid erosive flow conditions in natural flow pathways.
 - (d) Minimize thermal impacts to waters of this commonwealth.
 - (e) Disconnect impervious surfaces by directing runoff to pervious areas, wherever possible.
 - (3) Incorporate methods described in the Pennsylvania Stormwater Best Management Practices Manual (BMP Manual⁶⁰). If methods other than green infrastructure and LID methods are proposed to achieve the volume and rate controls required under this chapter, the SWM site plan must include a detailed justification, acceptable to the designated plan reviewer, demonstrating that the use of LID and green infrastructure is not practicable.
- H. Infiltration BMPs should be dispersed throughout the project site at strategic locations, made as shallow as practicable, and located to maximize use of natural on-site infiltration features while still meeting the other requirements of this chapter.
- I. Normally dry, open-top storage facilities should completely drain both the volume control and rate control capacities over a period of time not less than 24 and not more than 72 hours from the end of the design storm. Infiltration tests performed at the facility locations and proposed basin bottom depths, in accordance with the BMP Manual, must support time-to-empty calculations if infiltration is a factor.
- J. The design storm precipitation depths to be used in the analysis of peak rates of discharge shall be as obtained in PennDOT's Drainage Manual, Publication 584, Appendix 7A; or obtained from the latest version of the Precipitation-Frequency Atlas of the United States, National Oceanic and Atmospheric Administration (NOAA), National Weather Service, Hydrometeorological Design Studies Center, Silver Spring, Maryland. NOAA's Atlas 14⁶¹ can be accessed at: <http://hdsc.nws.noaa.gov/hdsc/pfds/>.
- K. For all regulated activities, SWM BMPs shall be designed, implemented, operated, and maintained to meet the purposes and requirements of this chapter and to meet all requirements under Title 25 of the Pennsylvania Code, the Clean Streams Law,⁶² and the Storm Water Management Act.⁶³
- L. Various BMPs and their design standards are listed in the BMP Manual.⁶⁴
- M. The municipality may, after consultation with DEP, approve measures for meeting the state water quality requirements other than those in this chapter, provided that they meet the minimum requirements of, and do not conflict with, state law including, but not limited to, the Clean Streams Law.⁶⁵

60. Editor's Note: See § 138-43C.

61. Editor's Note: See § 138-43E.

62. Editor's Note: See 35 P.S. § 691.1 et seq.

63. Editor's Note: See 32 P.S. § 680.1 et seq.

64. Editor's Note: See § 138-43C.

§ 138-15. Exemptions.

- A. Regulated activities that result in cumulative earth disturbances less than 0.25 acre and propose an increase in impervious area of less than 5,000 square feet are exempt from the requirements in § 138-19 of this chapter except as provided in Subsection B below.
- B. Earth disturbances between 0.05 acre (2,178 square feet) and 0.25 acre (10,890 square feet) of earth disturbance must submit a SWM site plan to the Municipality which shall consist of the following items and related supportive material needed to determine compliance with §§ 138-16 through 138-18. The applicant can use the protocols in the Small Project Stormwater Management Site Plan (Appendix C).
 - (1) General description of proposed stormwater management techniques, including construction specifications of the materials to be used for stormwater management facilities.
 - (2) An erosion and sediment control plan, including all reviews and letters of adequacy from the Conservation District where appropriate.
 - (3) Limits of earth disturbance, including the type and amount of impervious area that is proposed; proposed structures, roads, paved areas, and buildings; and a statement, signed by the applicant, acknowledging that any revision to the approved drainage plan must be approved by the Municipality, and that a revised erosion and sediment control plan must be submitted to the Municipality or Conservation District for approval.
 - (4) All stormwater management facilities must be located on a plan and described in detail; and all calculations, assumptions, and criteria used in the design of the stormwater management facilities must be shown.
- C. Agricultural activity is exempt from the SWM site plan preparation requirements of this chapter provided the activities are performed according to the requirements of 25 Pa. Code Chapter 102.
- D. Forest management and timber operations are exempt from the SWM site plan preparation requirements of this chapter provided the activities are performed according to the requirements of 25 Pa. Code Chapter 102.
- E. Roadway resurfacing and maintenance projects, which do not increase impervious area, and underground infrastructure projects are exempt from the provisions of this chapter, provided the activities meet the requirements of all other Municipal, state and federal requirements. Exemptions from any provisions of this chapter shall not relieve the applicant from the requirements in § 138-14D through J.
- F. The Municipality may deny or revoke any exemption pursuant to this section at any time for any project that the Municipality believes may pose a threat to public health and safety or the environment.
- G. Voluntary green stormwater infrastructure (GSI) retrofit projects that are solely intended to better manage runoff from existing development and are not part of new development or redevelopment are exempt from the stormwater management provisions of this chapter. This does not exempt such projects from any other municipal, state, or federal regulation.

§ 138-16. Volume controls.

The green infrastructure and low-impact development practices provided in the BMP Manual⁶⁶ shall be utilized for all regulated activities wherever possible. Water volume controls shall be implemented using the design storm method in Subsection A or the simplified method in Subsection B below. Water volume controls shall be implemented using the design storm method in Subsection A or the simplified method in Subsection B below, or alternative design criteria as allowed by PA Code Title 25, Chapter 102.

A. The design storm method (CG-1 in the BMP Manual⁶⁷) is applicable as a method to any size of regulated activity. This method requires detailed modeling based on site conditions. The following shall be incorporated into the CG-1 method:

- (1) Do not increase the post-development total runoff volume for all storms equal to or less than the two-year twenty-four-hour duration precipitation.
- (2) At least the first one inch of runoff from the net increase in impervious surfaces shall be permanently removed from the runoff flow, i.e., it shall not be released into the surface waters of this commonwealth. Removal options include reuse, evaporation, transpiration, and infiltration. If the developer provides justification that the listed removal options are not feasible, and the designated plan reviewer agrees, runoff shall be detained in a facility designed for a forty-eight- to seventy-two-hour dewatering time in an area with a dedicated stormwater system (not contributory to a combined sewer system) and shall be detained in a facility designed for a seventy-two-hour dewatering time in an area contributory to a combined sewer system before discharge to local stormwater systems or the environment. Justification, as prepared and sealed by a qualified professional, for assertion that permanent removal is not feasible must be provided, at a minimum, in the form of field-measured infiltration rate testing and geotechnical evaluation of the existing site soils with regard to the impact of proposed infiltration. Applications omitting this justification, including infiltration rate testing will be considered incomplete. BMPs proposing use of extended detention in lieu of permanent reduction through the listed methods shall include a valve to adjust or regulate dewatering time to achieve the performance standards noted herein. The valve system shall include an inspection/monitoring port for review of dewatering.
- (3) For modeling purposes:
 - (a) Existing (predevelopment) nonforested pervious areas must be considered meadow in good condition.
 - (b) Twenty percent of existing impervious area, when present, shall be considered meadow in good condition in the model for existing conditions.

B. The simplified method (CG-2 in the BMP Manual⁶⁸) provided below is independent of site conditions and should be used if the design storm method is not followed. This method is not applicable to regulated activities greater than one acre or for projects that require design of stormwater storage facilities. For new impervious surfaces:

- (1) Stormwater facilities shall capture at least the first two inches of runoff from the net increase in impervious surfaces.

66. Editor's Note: See § 138-43C.

67. Editor's Note: See § 138-43C.

68. Editor's Note: See § 138-43C.

- (2) At least the first one inch of runoff from the net increase in impervious surfaces shall be permanently removed from the runoff flow, i.e., it shall not be released into the surface waters of this commonwealth. Removal options include reuse, evaporation, transpiration, and infiltration. If the developer provides justification that the listed removal options are not feasible, and the designated plan reviewer agrees, runoff shall be detained in a facility designed for a twenty-four-hour dewatering time in an area with a dedicated stormwater system (not contributory to a combined sewer system) and shall be detained in a facility designed for a seventy-two-hour dewatering time in an area contributory to a combined sewer system before discharge to local stormwater systems or the environment.
- (3) Wherever possible, infiltration facilities should be designed to accommodate infiltration of the entire permanently removed runoff; however, in all cases at least the first 0.5 inch of the permanently removed runoff should be infiltrated.
- (4) This method is exempt from the requirements of § 138-17, Rate Controls, if the project qualifies for exemption by the provisions of § 138-15A.

§ 138-17. Rate controls.

- A. For areas not covered by a release rate map from an approved Act 167 Stormwater Management Plan: Post-development discharge rates shall not exceed the pre-development discharge rates for the one-, two-, five-, twenty-five-, fifty-, and 100-year twenty-four-hour storm events. This is the equivalent to a 100% release rate area when compared to those rates shown in the maps contained in Appendix A (Release Rate Management Districts). This predevelopment to post-development control is not to be misconstrued as the same as the conditional direct discharge areas on the release rate maps. For comparison of peak flow rates, flows shall be rounded to a tenth of a cubic foot per second (cfs). If it is shown that the peak rates of discharge indicated by the post-development analysis are less than or equal to the peak rates of discharge indicated by the predevelopment analysis for one-, two-, five-, twenty-five-, fifty-, and 100-year twenty-four-hour storms, then the requirements of this section have been met. Otherwise, the applicant shall provide additional controls as necessary to satisfy the peak rate of discharge requirement. Peak flows should be computed using the methods included in the chapter titled "Stormwater Calculations and Methodology" of the PADEP Stormwater Management BMP Manual. Except, however, where documented downstream flooding problems exist, the Municipality may impose a 50% reduced release rate criteria.
- B. For areas covered by a release rate map from an approved Act 167 Stormwater Management Plan: For the one-, two-, five-, twenty-five-, fifty-, and 100-year twenty-four-hour storm events, the post-development peak discharge rates will follow the applicable approved release rate maps. These maps are contained in Appendix A (Release Rate Management Districts) of this chapter. For comparison of peak flow rates, flows shall be rounded to a tenth of a cubic foot per second (cfs). For any areas not shown on the release rate maps, the post-development discharge rates shall not exceed the predevelopment discharge rates for the specified design events. Peak flows should be computed using the methods included in Chapter 8 of the PADEP Stormwater Management BMP Manual.

§ 138-18. Riparian buffers.

- A. In order to protect and improve water quality, a riparian buffer easement shall be created and recorded as part of any subdivision or land development that encompasses a riparian buffer. The intent of this chapter in establishing a riparian buffer is to protect and improve stream water quality. The riparian buffer is intended to slow overland flow to the stream through the presence of native grasses, trees and shrubs, allowing infiltration/groundwater recharge; causing deposition of sediment, nutrients,

pesticides, and other pollutants in the buffer rather than in the stream; and reducing erosion by providing stream bank stabilization. The trees provide shade for streams, keeping waters cooler and reducing evaporation.

- B. Except as required by PA Code Title 25 Chapter 102, the riparian buffer easement shall be required for all, streams (as defined in Article II) with a contributing watershed area of greater than 10 acres. The riparian buffer easement shall be measured to be a minimum of 35 feet from the top of the streambank (on each side).
- C. Minimum management requirements for riparian buffers.
 - (1) No use or construction within the riparian buffer shall be permitted that is inconsistent with the intent of the riparian buffer as described in § 138-18A.
 - (2) Existing native vegetation shall be protected and maintained within the riparian buffer easement.
 - (3) Whenever practicable, invasive vegetation shall be actively removed and the riparian buffer easement shall be planted with native trees, shrubs and other vegetation to create a diverse native plant community appropriate to the intended ecological context of the site.
- D. The riparian buffer easement shall be enforceable by the Municipality and shall be recorded in the appropriate County Recorder of Deeds Office, so that it shall run with the land and shall limit the use of the property located therein. The easement shall allow for the continued private ownership and shall count toward the minimum lot area required by zoning, unless otherwise specified in the municipal Zoning Ordinance.⁶⁹
- E. Any permitted use within the riparian buffer easement shall be conducted in a manner that will maintain the extent of the existing 100-year floodplain, improve or maintain the stream stability, and preserve and protect the ecological function of the floodplain.
- F. Stormwater drainage pipes shall be permitted within the riparian buffer easement, but they shall cross the easement in the shortest practical distance. Other structural stormwater management facilities are not permitted within the riparian buffer easement.
- G. The following conditions shall apply when public and/or private recreation trails are permitted by the Municipality within riparian buffers:
 - (1) It is preferred that trails be designed to be permeable and for nonmotorized use only; however, impermeable trails are permitted provided they have adequate drainage.
 - (2) Trails shall be designed to have the least impact on native plant species and other sensitive environmental features.
- H. Septic drainfields and sewage disposal systems shall not be permitted within the riparian buffer easement and shall comply with setback requirements established under 25 Pa. Code Chapter 73.
- I. Underground utilities shall be permitted within the riparian buffer easement; however, work shall be performed to minimize disturbance area and removal of trees. Restoration within the riparian buffer easement shall be with native species of trees, grasses, and other plantings. One tree shall be planted for each tree removed and the restoration shall be designed by a registered professional with the requisite experience. Aboveground utilities shall only be permitted to cross the easement

69. Editor's Note: See Ch. 168, Zoning.

perpendicular to the easement or in the shortest practical distance. Existing utilities may remain and be maintained as required.

ARTICLE IV

Stormwater Management (SWM) Site Plan Requirements**§ 138-19. Plan requirements.**

- A. Appropriate sections from the Municipality's Subdivision and Land Development Ordinance,⁷⁰ and other applicable local ordinances, shall be followed in preparing the SWM site plans.
- B. The Municipality shall not approve any SWM site plan that is deficient in meeting the requirements of this chapter. At its sole discretion and in accordance with this article, when a SWM site plan is found to be deficient, the Municipality may either disapprove the submission and require a resubmission, or in the case of minor deficiencies, the Municipality may accept submission of modifications.
- C. The following items shall be included in the SWM site plan:
 - (1) Provisions for permanent access or maintenance easements for all physical SWM BMPs, such as ponds and infiltration structures, as necessary to implement the operation and maintenance (O&M) plan discussed in Subsection C(3)(k) below.
 - (2) The following signature block for the Municipality:

(Municipal official or Designated Plan Reviewer (§ 138-21A)), on this date (Signature date), has reviewed and hereby certifies that the SWM Site Plan meets all design standards and criteria of the Municipal Ordinance No. _____, except where waivers have been granted as noted on the Plan. The review is based on a survey and plan prepared by others and assumes that all information is correct and valid as submitted.)
 - (3) The SWM site plan shall provide the following information:
 - (a) The overall stormwater management concept for the project.
 - (b) A determination of site conditions in accordance with the BMP Manual.⁷¹ A detailed site evaluation shall be completed for projects proposed in environmentally sensitive areas, such as brownfields.
 - (c) A key map showing the development site's location within the Municipality's stormwater management districts, watersheds and subareas. On all site drawings, show the boundaries of the district(s), watershed(s) and subarea(s) as they are located on the development site and identify their district and watershed names and applicable subarea numbers.
 - (d) Location of the 100-year floodplain on the development site based on the current municipal flood insurance rate maps.
 - (e) Stormwater runoff design computations and documentation as specified in this chapter, or as otherwise necessary to demonstrate that the maximum practicable measures have been taken to meet the requirements of this chapter, including the recommendations and general requirements in § 138-14.
 - (f) Expected project time schedule.

70. Editor's Note: See Ch. 142, Subdivision and Land Development.

71. Editor's Note: See § 138-43C.

- (g) A soil erosion and sediment control plan, where applicable, as prepared for and submitted to the approval authority.
- (h) The effect of the project (in terms of runoff volumes, water quality, and peak flows) on surrounding properties and aquatic features and on any existing stormwater conveyance system that may be affected by the project.
- (i) Plan and profile drawings and details of all SWM BMPs, including drainage structures, pipes, open channels, and swales.
- (j) SWM site plan shall show the property lines, dimensions of the site and the locations of existing and proposed on-lot wastewater facilities and water supply wells, property boundaries, existing and proposed topography, point(s) of interest, utilities, and potential utility conflicts.
- (k) The SWM site plan shall include an O&M plan for all existing and proposed physical stormwater management facilities. This plan shall address long-term ownership and responsibilities for O&M including type and schedule/frequency of maintenance activities, personnel and equipment requirements, estimated annual maintenance costs, and method of financing continuing O&M.
- (l) A justification, acceptable to the designated plan reviewer, must be included in the SWM site plan if BMPs other than green infrastructure methods and LID practices are proposed to achieve the volume, rate and water quality controls under this chapter.
- (m) Certification and seal of the qualified professional responsible for the preparation of the plans and report.
- (n) Watershed maps delineating predevelopment and post-development watershed boundaries and land cover conditions, as well as the flow path and segments used to determine time of concentrations for each watershed.
- (o) Storm sewer calculations and watershed maps delineating all sub-areas used to size and compute flow for storm sewer system.
- (p) Existing contours at intervals of two feet except in areas with slopes greater than 15%, in which case five-foot contour intervals may be used.
- (q) Contours of the finished project site at intervals of two feet, except in areas with slopes greater than 15%, in which case, five-foot contour intervals may be used.

§ 138-20. Plan submission.

Up to five copies of the SWM site plan shall be submitted as follows:

- A. Two copies to the Municipality.
- B. One copy to the municipal engineer (when applicable).
- C. One copy to the Allegheny County Conservation District (when requested by the District).
- D. One copy to the Allegheny County Sanitary Authority (in areas with combined sewer systems).

§ 138-21. Plan review.

- A. The Municipality has designated the Municipal Engineer as the designated plan reviewer of SWM site plans for the Municipality, and shall be understood to be the reviewer where indicated as the Municipality within this chapter.
- B. SWM site plans shall be reviewed by the Municipality for consistency with the provisions of this chapter.
- C. The Municipality shall notify the applicant in writing within 45 days whether the SWM site plan is approved or disapproved or requires additional documentation. If the SWM site plan involves a subdivision and land development plan, the notification shall occur within the time period allowed by the Municipalities Planning Code (90 days). If a longer notification period is provided by other statute, regulation, or ordinance, the applicant will be so notified by the Municipality.
- D. For any SWM site plan that proposes to use any BMPs other than green infrastructure and LID practices to achieve the volume and rate controls required under this chapter, the Municipality will not approve the SWM site plan unless it determines that green infrastructure and LID practices are not practicable.
- E. If the Municipality disapproves the SWM site plan, the Municipality will state the reasons for the disapproval in writing. The Municipality also may approve the SWM site plan with conditions and, if so, shall provide the acceptable conditions for approval in writing.
- F. The applicable review fee, in accord with Article VII, must accompany a resubmission of a disapproved SWM site plan.

§ 138-22. Modification of plans.

A modification to a submitted SWM site plan that involves a change in SWM BMPs or techniques, or that involves the relocation or redesign of SWM BMPs, or that is necessary because soil or other conditions are not as stated on the SWM site plan, as determined by the designated plan reviewer, shall require a resubmission of the modified SWM site plan in accordance with this article.

§ 138-23. Resubmission of disapproved SWM site plans.

A disapproved SWM site plan may be resubmitted, with the revisions addressing the Municipality's concerns, to the Municipality in accordance with this article. The applicable review fee, in accord with Article VI, must accompany a resubmission of a disapproved SWM site plan.

§ 138-24. Authorization to construct and term of validity.

The Municipality's approval of an SWM site plan authorizes the regulated activities contained in the SWM site plan for a maximum term of validity of five years following the date of approval. The Municipality may specify a term of validity shorter than five years in the approval for any specific SWM site plan. Terms of validity shall commence on the date the Municipality signs the approval for an SWM site plan. If an approved SWM site plan is not completed according to § 138-25 within the term of validity, then the Municipality may consider the SWM site plan disapproved and may revoke any and all permits. SWM site plans that are considered disapproved by the Municipality shall be resubmitted in accordance with § 138-23 of this chapter.

§ 138-25. Record drawings, completion certificate, and final inspection.

- A. The developer shall be responsible for providing record drawings of all SWM BMPs included in the

approved SWM site plan, including, but not limited to, BMP grading, outlet structure configuration and emergency spillway configuration. The record drawings and an explanation of any discrepancies with the construction plans shall be submitted to the Municipality.

- B. The record drawing submission shall include a certification of completion signed by a qualified professional verifying that all permanent SWM BMPs have been constructed according to the approved plans and specifications. The latitude and longitude coordinates for all permanent SWM BMPs must also be submitted, at the central location of the BMPs. If any licensed qualified professionals contributed to the construction plans, then a licensed qualified professional must sign the completion certificate. The certification shall include documentation confirming field reviewed dewatering times for rate and volume control BMPs. Record drawings shall be provided in both hard copy and electronic (AutoCAD, latest edition) format.
- C. The Municipality may conduct inspections during construction as it deems appropriate. If inspections performed by the Municipality reveal deficiencies from the submitted and approved SWM site plan, the Municipality may request corrective actions. Any corrective action shall be at the cost of the stormwater facility owner.
- D. After receipt of the completion certification by the Municipality, the Municipality may conduct a final inspection.

ARTICLE V
Design Criteria

§ 138-26. Calculation methodology.

- A. All computations used in conjunction with the analysis and design of stormwater management facilities shall be based on one or more of the following methods, or as otherwise approved in advance by the Municipality:
- (1) TR-55-Soil Conservation Service (SCS) Technical Release No. 55.
 - (2) TR-20-Soil Conservation Service (SCS) Technical Release No. 20.
 - (3) Modified rational method.
 - (4) Penn State Runoff Model.
 - (5) Virginia Tech/Penn State Runoff Model.
- B. These methods for determining peak discharge shall be used to:
- (1) Determine predevelopment runoff conditions;
 - (2) Analyze the impact of development; and
 - (3) Perform calculations in the design of any detention/retention facilities used in controlling runoff.
- C. The SCS, Type II Rainfall Distribution shall be used for all analyses. The design storm frequencies for the watershed are:

Design storm	24-hour rainfall depth
1-Year	1.97
2-Year	2.35
5-Year	2.88
10-Year	3.61
25-Year	4.31
50-Year	4.40
100-Year	5.71

- D. Predevelopment conditions: The cover type for all sites will be considered to be the dominant land cover during the five year period immediately preceding a proposed regulated activity:
- (1) For the purposes of predevelopment peak flow rate and volume determination, existing nonforested pervious areas conditions shall be considered as meadow (good condition). Forested land areas shall be considered in good condition.
 - (2) For the purposes of predevelopment peak flow rate and volume determination, 20% of existing disturbed impervious area, when present, shall be considered meadow (good condition).

- E. Post-development conditions: The hydrologic parameters used to develop peak flow rates shall be reflective of anticipated soil runoff characteristics following grading and development of the site.
- F. Time of concentration: The minimum time of concentration for any watershed shall be six minutes. A minimum six-minute time of concentration may be assumed for any post-development watershed. Calculations must be provided for all predevelopment times of concentrations. A minimum time of concentration cannot be assumed for predevelopment conditions.
- G. The use of the basic rational method in estimating runoff may be employed in the design of the storm sewer conveyance system within the development. The storm sewer system shall be interpreted as the conduits, culverts, inlets and appurtenant features for the conveying of stormwater to, through or from a development site to the point of final discharge or control facility. The rational method shall not be used in the analysis of stormwater runoff from the development in its entirety or in conjunction with the design of any retention/detention facilities or other runoff control measures.
- H. Points of interest for analysis of pre- and post-development runoff must be selected to demonstrate compliance with the requirements of §§ 138-16 and 138-17 is achieved at all points where runoff exits the perimeter of the property.
- I. Stormwater runoff shall not be transferred from one watershed to another unless the watersheds are subareas of a larger watershed that are tributary to a common point of interest within or near the perimeter of the property. Transfer of runoff from one watershed to another under any other circumstances shall only be approved at the discretion of the Municipality. Documentation shall be provided that peak flow rates are not increased following development and there will be no detrimental impact in downstream areas.
- J. The stormwater management plan shall consider all of the stormwater runoff flowing over the project site. Runoff calculations shall be made to ensure that runoff from the upstream watershed area can be accommodated by the pipes, drainage easements and watercourses, etc., on the site.

§ 138-27. Standards for collection and conveyance facilities.

- A. All stormwater collection and conveyance facilities (pipes, swales, and structures) shall be designed for a 100-year design storm event, unless the runoff would naturally drain overland to a stormwater detention facility, in which case a twenty-five-year design storm event may be used. The hydraulic gradeline must be a minimum of two feet below the surface elevation within the pipe. Swales and channels shall provide at least one foot of freeboard above the energy gradeline. Backwater effects of pipes discharging under surcharge conditions shall be included.
- B. Runoff calculations shall include complete hydrology and hydraulic analysis of all downstream swales and pipe facilities to permanent stream discharge point, to the municipal boundary or connection to a state- or county-owned conveyance system.
- C. Manholes shall not be spaced more than 300 feet apart for pipe sizes up to 24 inches in diameter and not more than 450 feet apart for larger pipe sizes.
- D. No public stormwater pipe shall be less than 15 inches in diameter that conveys surface runoff. The minimum pipe slope shall be 1.0% grade or maintain velocity of two ft./s. For public storm sewer systems, only pipes related to construction of stormwater BMPs may be less than 15 inches in diameter. Pipe under the cartway of a municipal roadway shall be reinforced concrete pipe.
- E. All workmanship and materials shall conform to the Municipality's construction standards. In

addition, all workmanship and materials shall conform to the latest edition of PennDOT Form 408 and be supplied by manufacturers or suppliers listed in PennDOT's Bulletin 15.

- F. Manhole and inlet castings shall conform to the Pennsylvania Department of Transportation Form 408 and PennDOT Standards for Roadway Construction. Inlet grates shall be bicycle safe. Frames and grates shall be cast iron or structural steel. Concrete frames shall not be permitted.
- G. All connections to existing storm sewer pipes shall be made by construction of a suitable junction box (inlet or manhole) to provide access for cleanout. No blind connections shall be permitted.
- H. The discharge of stormwater runoff shall be to a well-defined drainage course, which has a defined bed and bank. If stormwater runoff cannot be discharged to a defined drainage course, documentation of written permission from each downstream property owner shall be provided for all properties between the source of discharge and the defined drainage course. The use of level spreaders or similar BMPs that promote sheet flow may be permitted if the applicant provides documentation that the peak post-development 100-year discharge is no greater than predevelopment two-year discharge and a letter from the geotechnical engineer of record regarding slope stability of the downstream area is provided. Use of a level spreader requires a waiver to be granted by the Municipality.

§ 138-28. Standards for stormwater detention facilities.

- A. All retention/detention facilities shall be equipped with multistage outlet structures to provide discharge control for each designated storm frequency. Provisions shall also be made to safely pass the post-development 100-year storm runoff in the event of an outlet structure failure without damaging or impairing the continued function of the facilities (i.e., impairing the continued function of) the facilities. The facility(ies) must have an emergency outlet which is able to discharge the post-development 100-year peak flow. Should any stormwater management facilities qualify as a dam under PaDEP Chapter 105 criteria, the facility shall be designed in accordance with those regulations and meet the regulations concerning dam safety.
- B. Any stormwater management facility designed to store runoff shall provide an emergency spillway designed to convey the unattenuated 100-year post-development peak rate flow with a blocked primary outlet structure and an inundation stormwater to the invert elevation of the spillway, with a minimum one-foot freeboard to the crest of the embankment.
- C. Woody vegetation shall not be permitted on the embankments or within 25 feet of the emergency spillway.
- D. The water depth of a storage facility which is not fenced shall be limited to two feet unless approved by the Municipality. Otherwise, appropriate fencing at least four feet in height shall be required.
- E. Side slopes of storage facilities shall not exceed a ratio of 3:1 horizontal to vertical dimension. The crest of the embankment shall have a minimum width of not less than 10 feet.
- F. The facility shall be equipped with an access road at least 10 feet wide and with a maximum grade of 15%. Access roads greater than 12% grade must be paved. Access roads 12% or less shall have a minimum six-inch depth noneroding aggregate surface. A gate with a minimum opening of 10 feet shall be provided for maintenance access. An access easement with a minimum width of 20 feet to all stormwater detention facilities shall be provided. The access easement shall include a statement on the recorded plan from the owner/operator of the facility granting access to the Municipality.
- G. All stormwater facility outlet structures shall have suitable gaskets to prevent leakage and piping of

water through the facility embankment. All storm pipe installed through the facility embankment must be constructed of reinforced concrete pipe. Use of high-performance polypropylene pipe may be permitted with documentation of pipe manufacturer's backfill requirements.

- H. A geotechnical investigation report for the construction of the stormwater detention/retention and infiltration facilities must be provided including design recommendation for embankment construction, interior and exterior slopes, drainage swales and infiltration areas.
- I. Basin outlet structures shall have nonclogging trash racks over all design openings. Periodic cleaning of debris from trash racks shall be included in the operation and maintenance plan.
- J. Inlet structures and outlet structures shall be separated to the greatest extent possible in order to maximize the flow path through the basin.
- K. BMPs must be designed to protect and maintain existing uses (e.g., drinking water use; cold water fishery use) and maintain the level of water quality necessary to protect those uses in all streams, and to protect and maintain water quality in special protection) streams, as required by statewide regulations at 25 Pa.Code, Chapter 93 (collectively referred to herein as "State Water Quality Requirements").

ARTICLE VI
Operation and Maintenance

§ 138-29. Responsibilities of developers and landowners.

- A. The Municipality shall make the final determination on the continuing maintenance responsibilities prior to final approval of the SWM site plan. The Municipality may require a dedication of such facilities as part of the requirements for approval of the SWM site plan. Such a requirement is not an indication that the Municipality will accept the facilities. The Municipality reserves the right to reject or accept the ownership and operating responsibility for any portion of the stormwater management controls.
- B. Facilities, areas, or structures used as SWM BMPs shall be enumerated as permanent real estate appurtenances and recorded as deed restrictions or conservation easements that run with the land.
- C. The O&M plan shall be recorded as a restrictive deed covenant that runs with the land.
- D. The Municipality may take enforcement actions against an owner for any failure to satisfy the provisions of this article.

§ 138-30. Operation and maintenance agreements.

- A. Prior to final approval of the SWM site plan, the property owner shall sign and record an operation and maintenance (O&M) agreement (see Appendix B) covering all stormwater control facilities which are to be privately owned.
 - (1) The owner, successor and assigns shall maintain all facilities in accordance with the approved maintenance schedule in the O&M agreement.
 - (2) The owner shall convey to the Municipality conservation easements to assure access for periodic inspections by the Municipality and maintenance, as necessary.
 - (3) The owner shall keep on file with the Municipality the name, address, and telephone number of the person or company responsible for maintenance activities; in the event of a change, new information shall be submitted by the owner to the Municipality within 10 working days of the change.
- B. The owner is responsible for operation and maintenance (O&M) of the SWM BMPs. If the owner fails to adhere to the O&M agreement, the Municipality may perform the services required and charge the owner appropriate fees. Nonpayment of fees may result in a lien against the property.

§ 138-31. Performance guarantee.

For SWM site plans that involve subdivision and land development, the applicant shall provide a financial guarantee to the Municipality for the timely installation and proper construction of all stormwater management controls as required by the approved SWM site plan and this chapter in accordance with the provisions of Sections 509, 510, and 511 of the Pennsylvania Municipalities Planning Code.⁷²

§ 138-32. Special Stormwater Facility Maintenance Fund.

- A. Persons installing post-construction stormwater management BMP facilities will be required to pay a

72. Editor's Note: See 53 P.S. § 10101 et seq.

specified amount to the Municipal Stormwater Facility Maintenance Fund to help defray the costs of periodic inspections and annual maintenance expenses. The amount of the deposit shall be determined as follows:

- (1) If the storage facility is to be privately owned and maintained, the deposit shall cover the cost of periodic inspections performed by the Municipality for a period of 10 years, as estimated by the Municipality. After that period of time, inspections will be performed by the Municipality and billed directly to the owner.
 - (2) If the storage facility is to be owned and maintained by the Municipality, the deposit shall cover the estimated annual costs for maintenance and inspections for 10 years, as estimated by the Municipality.
 - (3) The amount of the deposit to the maintenance fund covering annual inspection and maintenance costs shall be converted to present worth of the annual series values. The Municipality Manager shall determine the present-worth equivalents, which shall be subject to the final approval of the Council.
- B. If the storage facility is proposed, which also serves as a recreation facility, such as a lake or ballfield, the Municipality may reduce or waive the amount of the maintenance fund based on the value of the land for public recreation purposes.
- C. If at some future time any storage facility (whether publicly or privately owned) is eliminated due to the installation of storm sewers or another storage facility (i.e, a distributed storage facility), the unused portion of the maintenance fund will be applied to the cost of abandoning the facility and connecting to the storm sewer system or other facility. Any amount of the deposit remaining after the costs of abandonment are paid will be returned to the depositor.

ARTICLE VII
Fees and Expenses

§ 138-33. General.

The Municipality may include all costs incurred into the review fee charged to an applicant. The review fee may include, but not be limited to, costs for the following:

- A. Administrative/clerical processing.
- B. Review of the SWM site plan.
- C. Review of a SWM site plan resubmission.
- D. Attendance at meetings.
- E. Inspections.

ARTICLE VIII

Prohibitions**§ 138-34. Prohibited discharges and connections.**

- A. Any drain or conveyance, whether on the surface or subsurface, that allows any non-stormwater discharge including sewage, process wastewater, and wash water to enter a regulated small MS4 or to enter the surface waters of this commonwealth is prohibited.
- B. No person shall allow, or cause to allow, discharges into a regulated small MS4, or discharges into waters of this commonwealth, which are not composed entirely of stormwater, except as provided in Subsection C below and discharges authorized under a state or federal permit.
- C. The following discharges are authorized unless they are determined to be significant contributors to pollution of a regulated small MS4 or to the waters of this commonwealth:
 - (1) Discharges or flows from firefighting activities.
 - (2) Discharges from potable water sources including water line flushing and fire hydrant flushing, if such discharges do not contain detectable concentrations of total residual chlorine (TRC).
 - (3) Noncontaminated irrigation water, water from lawn maintenance, landscape drainage and flows from riparian habitats and wetlands.
 - (4) Diverted stream flows and springs.
 - (5) Noncontaminated pumped ground water and water from foundation and footing drains and crawl space pumps.
 - (6) Noncontaminated HVAC condensation and water from geothermal systems.
 - (7) Residential (i.e., not commercial) vehicle wash water where cleaning agents are not utilized.
 - (8) Noncontaminated hydrostatic test water discharges, if such discharges do not contain detectable concentrations of TRC.
 - (9) Dechlorinated swimming pool and hot tub discharges, as long as the PADEP guidelines for swimming pool water discharge are followed.
- D. In the event that the Municipality or DEP determines that any of the discharges identified in Subsection C significantly contribute pollutants to a regulated small MS4 or to the waters of this commonwealth, the Municipality or DEP will notify the responsible person(s) to cease the discharge.

§ 138-35. Roof drains and sump pumps.

- A. Roof drains and sump pumps shall discharge to infiltration or vegetative BMPs wherever feasible.
- B. Unless otherwise approved by the Municipality, no stormwater from roofs or driveway drains shall be discharged to the street surface or curb.

§ 138-36. Alteration of SWM BMP.

No person shall modify, remove, fill, landscape, or alter any SWM BMPs, facilities, areas, drainage easements, or structures that were installed as a requirement of this chapter without the written approval of

the Municipality.

ARTICLE IX
Enforcement and Penalties

§ 138-37. Right of entry.

Upon presentation of proper credentials, the Municipality or its designated agent may enter at reasonable times upon any property within the Municipality to inspect the condition of the stormwater structures and facilities in regard to any aspect regulated by this chapter.

§ 138-38. Inspection.

- A. The landowner or the owner's designee (including the Municipality for dedicated and owned facilities) shall inspect SWM BMPs, facilities and/or structures installed under this chapter according to the following frequencies, at a minimum, to ensure the BMPs, facilities and/or structures continue to function as intended:
- (1) Annually for the first five years.
 - (2) Once every three years thereafter.
 - (3) During or immediately after the cessation of a ten-year or greater storm.
- B. Inspections should be conducted during or immediately following precipitation events. A written inspection report shall be created to document each inspection. The inspection report shall contain the date and time of the inspection, the individual(s) who completed the inspection, the location of the BMP, facility or structure inspected, observations on performance, and recommendations for improving performance, if applicable. Inspection reports shall be submitted to the Municipality within 30 days following completion of the inspection.

§ 138-39. Enforcement.

- A. It shall be unlawful for a person to undertake any regulated activity except as provided in an approved SWM site plan, unless specifically exempted in § 138-15.
- B. It shall be unlawful to violate § 138-36 of this chapter.
- C. Inspections regarding compliance with the SWM site plan are a responsibility of the Municipality.

§ 138-40. Suspension and revocation.

- A. Any approval or permit issued by the Municipality pursuant to this chapter may be suspended or revoked for:
- (1) Noncompliance with or failure to implement any provision of the approved SWM site plan or O&M agreement.
 - (2) A violation of any provision of this chapter or any other applicable law, ordinance, rule, or regulation relating to the regulated activity.
 - (3) The creation of any condition or the commission of any act during the regulated activity which constitutes or creates a hazard, nuisance, pollution, or endangers the life or property of others.
- B. A suspended approval may be reinstated by the Municipality when:

- (1) The Municipality has inspected and approved the corrections to the violations that caused the suspension.
 - (2) The Municipality is satisfied that the violation has been corrected.
- C. An approval that has been revoked by the Municipality cannot be reinstated. The applicant may apply for a new approval under the provisions of this chapter.
- D. If a violation causes no immediate danger to life, public health, or property, at its sole discretion, the Municipality may provide a limited time period for the owner to correct the violation. In these cases, the Municipality will provide the owner, or the owner's designee, with a written notice of the violation and the time period allowed for the owner to correct the violation. If the owner does not correct the violation within the allowed time period, the Municipality may revoke or suspend any, or all, applicable approvals and permits pertaining to any provision of this chapter.

§ 138-41. Penalties.

- A. Anyone violating the provisions of this chapter shall be guilty of a summary offense, and upon conviction, shall be subject to a fine of not less than \$50 and not more than \$1,000 for each violation, recoverable with costs. Each day that the violation continues shall be a separate offense and penalties shall be cumulative.
- B. In addition, the Municipality may institute injunctive, mandamus, or any other appropriate action or proceeding at law or in equity for the enforcement of this chapter. Any court of competent jurisdiction shall have the right to issue restraining orders, temporary or permanent injunctions, mandamus, or other appropriate forms of remedy or relief.

§ 138-42. Appeals.

- A. Any person aggrieved by any action of the Municipality or its designee, relevant to the provisions of this chapter, may appeal to the Municipality within 30 days of that action.
- B. Any person aggrieved by any decision of the Municipality, relevant to the provisions of this chapter, may appeal to the County Court of Common Pleas in the county where the activity has taken place within 30 days of the Municipality's decision.

ARTICLE X

References**§ 138-43. References.**

- A. U.S. Department of Agriculture, National Resources Conservation Service (NRCS). National Engineering Handbook. Part 630: Hydrology, 1969-2001. Originally published as the National Engineering Handbook, Section 4: Hydrology. Available from the NRCS online at: <http://www.nrcs.usda.gov/>.
- B. U.S. Department of Agriculture, Natural Resources Conservation Service. 1986. Technical Release 55: Urban Hydrology for Small Watersheds, 2nd Edition. Washington, D.C.
- C. Pennsylvania Department of Environmental Protection. No. 363-0300-002 (December 2006), as amended and updated. Pennsylvania Stormwater Best Management Practices Manual. Harrisburg, PA.
- D. Pennsylvania Department of Environmental Protection. No. 363-2134-008 (March 31, 2012), as amended and updated. Erosion and Sediment Pollution Control Program Manual. Harrisburg, PA.
- E. U.S. Department of Commerce, National Oceanic and Atmospheric Administration, National Weather Service, Hydrometeorological Design Studies Center. 2004-2006. Precipitation-Frequency Atlas of the United States, Atlas 14, Volume 2, Version 3.0, Silver Spring, Maryland. Internet address: <http://hdsc.nws.noaa.gov/hdsc/pfds/>.

BALDWIN CODE

Chapter 139

STREETS AND SIDEWALKS

ARTICLE I		§ 139-11.	Return or forfeit of deposit or bond.
Street Openings and Excavations		§ 139-12.	Effect on other provisions.
§ 139-1.	Compliance with regulations required.	§ 139-13.	Violations and penalties.
§ 139-2.	Permit required.		
§ 139-3.	Application for permit.		ARTICLE II
§ 139-4.	Fees; deposits; bonds.		Curb Cuts
§ 139-5.	Restoration.	§ 139-14.	Permit required; application.
§ 139-6.	Other work.	§ 139-15.	Permit fee; issuance of permit.
§ 139-7.	Exhibition of permit.	§ 139-16.	Specifications; restoration.
§ 139-8.	Barricades.	§ 139-17.	Deposit or bond required.
§ 139-9.	Traffic control.	§ 139-18.	Failure to comply; work by Borough.
§ 139-10.	Erosion and sedimentation control.	§ 139-19.	Violations and penalties.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 6-20-2017 by Ord. No. 880;⁷³ amended in its entirety 11-20-2018 by Ord. No. 892. Subsequent amendments noted where applicable.]

GENERAL REFERENCES

Building construction and housing standards — See Ch. 74.

Sewers and connections — See Ch. 134.

Grading, excavations and fill — See Ch. 99.

Subdivision and land development — See Ch. 142.

Manholes — See Ch. 112.

Vehicles with studded tires — See Ch. 160.

Property maintenance — See Ch. 131.

Zoning — See Ch. 168.

73. Editor's Note: This local law also superseded former Art. I, Street Openings and Excavations, adopted 6-23-1958 by Ord. No. 156; and former Art II, Curb Cuts, adopted 8-5-1958 by Ord. No. 157.

ARTICLE I
Street Openings and Excavations

§ 139-1. Compliance with regulations required.

From and after the adoption of this article, it shall be unlawful for any person, persons, corporation or association of persons to open or excavate in any street, alley, road or highway of said Borough or cause the same to be done for the purpose of laying, relaying or repairing any gas, water or sewer line or conduit or for any other purpose whatsoever, including the making of house or service connections therewith, except in pursuance of the regulations in the following section prescribed.

§ 139-2. Permit required.

It shall be unlawful for any person to open or to make any excavation of any kind in any of the streets in the Borough of Baldwin without first securing a permit therefor, as hereinafter provided.

§ 139-3. Application for permit.

Any person who shall desire to make any opening or excavation in any of the streets in the Borough of Baldwin shall make application to the Borough Secretary, in writing, for the purpose. Such application shall be made upon application forms to be furnished by the Borough and shall set forth the name of the applicant, the exact location of the proposed opening or excavation and the approximate size or depth thereof and shall contain an agreement on the part of the applicant that the work shall be done in full compliance with the ordinances of the Borough of Baldwin and the laws of the Commonwealth of Pennsylvania in relation thereto and that the applicant shall well and truly save, defend and keep harmless the Borough of Baldwin from and indemnify it against any and all actions, suits, demands, payments, costs and charges for or by reason of the proposed opening or excavation and all damages to persons or property resulting in any manner therefrom or occurring in the prosecution of the work connected therewith or from any other matter, cause or thing relating thereto.

§ 139-4. Fees; deposits; bonds.

Before any permit shall be issued to open or excavate any street in the Borough of Baldwin, the applicant shall pay to the Borough a permit fee in the minimum amount of \$50 to cover the cost of inspection and other incidental services in connection therewith. When application shall be made to open or excavate any longitudinal opening or excavation in excess of 10 feet, before any permit shall be issued so to open or excavate, the applicant shall pay, in addition to the minimum permit fee, an additional fee at the rate of \$50 for every 100 feet or any fraction thereof to be opened; any footage in excess of 100 feet shall be charged an additional \$20. In addition to the permit fee herein charged, the applicant for the permit shall deposit with the Borough Secretary the additional sum of \$100 for each 25 linear feet of opening or fraction thereof in any street, alley, road or highway in the Borough, but in no event shall such deposit be less than \$400; provided, however, that when such opening or excavation shall exceed 100 linear feet in length, the applicant shall submit to the Borough Secretary a bond with approved surety and double the amount of the total deposit required, which bond, if approved by the Council of the Borough of Baldwin, shall be conditioned on the faithful observance for all of the terms and conditions of this article. When any person or persons, corporations or associations of persons shall have occasion to make frequent openings or excavations in the streets, alleys, roads or highways of the Borough of Baldwin, in lieu of the deposit required herein, such persons shall file a bond with the Borough Secretary on or before the 15th day of January of each and every year, which bond shall be in the amount of \$5,000 or such other amount as the Borough Council, by resolution, may from time to time designate, which bond, if approved by the

Council of the Borough of Baldwin, shall likewise be conditioned on the faithful observance of all the terms and conditions of this article. The deposit required hereto shall be retained by the Borough to ensure the completion of the refilling and resurfacing of any excavation or opening of any Borough street, and upon said completion, the sum shall be returned to the depositor.

§ 139-5. Restoration.

- A. All driveways, walkways, sidewalks, steps or other surfaces which utility companies require opening for the installation or repair of utility lines or any other persons requiring the opening of a public street in the Borough of Baldwin shall be replaced in kind with the following minimums:
- (1) Bituminous driveways: Six inches of compacted stone or gravel subbase, four inches of bituminous concrete base course with 1 1/2 inches of HMA fine-graded wearing course.
 - (2) Concrete driveways: Six inches of compacted AASHTO No. 57 gravel subbase, six inches of PennDOT Class 'AA' concrete reinforced with WWF 6 x 6, W2.9 x W2.9 with stiff broom finish or to match existing if approved by Borough. Also to include trowel edges and PennDOT 408 approved section.
 - (3) Sidewalks: Five inches of compacted AASHTO No. 57 gravel subbase and five inches of PennDOT Class 'AA' concrete reinforced with WWF 6 x 6, W2.9 x W2.9 with stiff broom finish, troweled edges and to have a PennDOT approved sealer.
 - (4) Berm areas disturbed shall be replaced with compacted stone or gravel backfill, minimum three-foot width and 6% maximum cross slope from the road edge (wider if directed by the Borough or to match existing). Areas beyond the berm are to be backfilled with compacted soil and top with four inches of topsoil and seeded and mulched per PennDOT Form 408. The top six inches of material shall be replaced in kind.
 - (5) All joints on bituminous driveways shall be sealed with PG 64-22.
 - (6) Public street restoration shall comply with the requirements of § 139-16 herein.
- B. All other materials used shall conform to Pennsylvania Department of transportation Publication 408 specifications, and the replacement of all streets shall be in accordance with the Borough Standard Detail B-101-B. All subbase material noted above shall be natural stone or gravel. No slag shall be used.

§ 139-6. Other work.

All other work in connection with openings in any street, including excavation, protection, refilling and temporary paving, shall be done by the applicant at his expense, and all such work shall be subject to the provisions of this article and to the review and approval of the Borough.

§ 139-7. Exhibition of permit.

The contractor or person doing the work of opening or excavating as aforesaid shall at all times maintain in possession and shall exhibit to any official of said Borough upon demand the permit to do said work, which permit only shall be evidence of authority for the doing of said work.

§ 139-8. Barricades.

Each and every opening or excavation made in pursuance of the permit herein provided, so long as the same

shall remain open, shall be protected by a suitable barricade during daytime and by a barricade and flashing yellow lights at night, and the same shall be allowed to remain open only so long as shall be reasonably necessary, not exceeding five days, to complete in each 25 linear feet thereof the work and purpose for which the opening or excavation shall have been made.

§ 139-9. Traffic control.

Provide traffic control in accordance with PennDOT Publication 213 and the Manual for Uniform Traffic Control Devices (MUTCD). All proposed detour routes are subject to review and approval by the Baldwin Chief of Police.

§ 139-10. Erosion and sedimentation control.

Provide erosion and sedimentation control in accordance with Department of Environmental Protection Chapter 102 requirements.

§ 139-11. Return or forfeit of deposit or bond.

At the expiration of six months from the excavation of any street, alley, road or highway in the Borough, should said street, alley, road or highway be found in proper condition, the sum or sums deposited at the time of the taking out of the permit shall be refunded upon return of the permit and upon a review of the Borough, but should the street, alley, road or highway at any time within the six months be found in bad condition by reason of the opening or excavation, it shall be repaired by the Borough of Baldwin and the deposit made or bond given shall be liable for the cost and expense thereof, provided that if the opening or excavation, in the case only of openings or excavations for house or service connections, is, in the opinion of the Borough, in proper condition sooner than the expiration of said six months, the sum or sums so deposited may be refunded.

§ 139-12. Effect on other provisions.

This article shall not be deemed to repeal the provisions of Ordinance No. 124, adopted the 21st day of March, 1957, by the Borough of Baldwin, relating to excavations by the Bell Telephone Company of Pennsylvania or the successor or assigns.

§ 139-13. Violations and penalties.⁷⁴

Any person, whether as principal, agent or employee, violating or assisting in the violation of any of the provisions of this article shall, upon conviction thereof before the District Judge, pay a fine of not more than \$300, plus costs of prosecution, or be imprisoned for up to 30 days.

74. Editor's Note: See Ch. A175, Telephone Franchise.

ARTICLE II

Curb Cuts**§ 139-14. Permit required; application.**

Any person, firm or corporation desiring to cut or otherwise alter any existing curb owned or maintained by the Borough of Baldwin shall, prior to such action, if the property concerned is a property used for residential purposes, make application to the Building Inspector of the Borough or, if the property concerned is a property used for commercial purposes, to the Borough Council for a permit to perform the work which may affect the curb in any manner whatsoever. Said written application shall indicate thereon the name of the street, highway or road and the place at which the cutting or other alteration will take place and the type of work to be performed which will affect said curb and shall also contain a statement to the following effect. It is agreed by the applicant that the within request is for a license only, revocable by the Borough of Baldwin at any time upon a decision by the Council of the Borough of Baldwin, and that the applicant will, at the sole expense of said applicant, replace or restore any Borough installation to its prior condition before cutting or other alteration.

§ 139-15. Permit fee; issuance of permit.

Upon payment of the fee of \$2 by the applicant for said permit, the Borough Building Inspector or the Borough Council, as the case may be, may issue said permit to the applicant, which permit shall indicate thereon the name of the street, highway or road and the place at which the cutting or other alteration will take place.

§ 139-16. Specifications; restoration.

- A. Any person, firm or corporation requesting a permit for the cutting or other alteration of a curb in the Borough shall perform such work in accordance with the Borough of Baldwin's standard details. Such person, firm or corporation shall restore the surface of any publicly dedicated easement to a condition substantially the same as it was before with the exception of the cutting or alteration approved by the Borough.
- B. This section is hereby amended by adding thereto the bituminous street opening repair public improvement requirements as shown on the attached drawing designated as "B-101-B," which is attached hereto and made a part hereof.⁷⁵ All of the drawings and specifications set out therein shall hereby be designated as the required public improvement requirements of the Borough of Baldwin. The specifications attached hereto for repairing street openings apply to all streets.

§ 139-17. Deposit or bond required.

Any person, firm or corporation, prior to the issuance of any permit provided for in this article, shall deposit with the Borough Secretary a sum of money equal to \$5 per foot of each linear foot of curb cut or altered. In lieu of said deposit, a bond in an equivalent amount may be deposited with said Borough Secretary, conditioned for the faithful compliance with the terms of this article, which bond shall be returned to the applicant by the Borough Secretary upon review of the Borough that the work has been accomplished in accordance with the terms of this chapter.

75. Editor's Note: The drawing appears at the end of this chapter.

§ 139-18. Failure to comply; work by Borough.

Should any person, firm or corporation, after having cut or altered any curb in the Borough, fail, neglect or refuse to comply with the terms of this article or the instructions or directions of the Building Inspector or the Council of the Borough of Baldwin pertaining to said work, the proper Borough officials shall proceed to have the street, road or easement placed in proper condition at the cost of the person, firm or corporation to whom the permit was issued, said cost to be deducted from the cash deposited aforesaid or, in the event that a bond is deposited, the solicitor shall be authorized or directed to proceed on the bond for the collection of any amount due. If the cost of repairs exceeds the amount deposited or bond deposited the Borough may proceed with collection in Civil Court.

§ 139-19. Violations and penalties.

Any person, firm or corporation who or which shall violate any of the provisions of this article shall, upon conviction thereof before the District Judge, be sentenced to pay a fine of not more than \$300 plus costs of prosecution, or to imprisonment for up to 30 days.

SUBDIVISION AND LAND DEVELOPMENT

Chapter 142

SUBDIVISION AND LAND DEVELOPMENT

Part 1
Borough of Baldwin Subdivision and Land
Development Ordinance

§ 142-19.

Utilities.

§ 142-20.

Monuments.

§ 142-21.

Street name signs.

ARTICLE I

Title; Purpose; Applicability; Exceptions

§ 142-1.

Title.

§ 142-2.

Purpose.

§ 142-3.

Applicability.

ARTICLE II

Word Usage; Definitions

§ 142-4.

Word usage.

§ 142-5.

Definitions.

ARTICLE III
 Submission of Plats

§ 142-6.

Responsibilities of subdivider
and Planning Commission.

§ 142-7.

Preapplication procedure.

§ 142-8.

Procedure for approval of
preliminary plat.

§ 142-9.

Procedure for approval of final
plat.

§ 142-10.

Fees.

§ 142-11.

Issuance of permits.

§ 142-12.

Release from improvement
bonds.

ARTICLE IV
 Design Standards

§ 142-13.

General standards.

§ 142-14.

Street layout.

§ 142-15.

Street design.

§ 142-16.

Storm drainage.

§ 142-17.

Suitability of land; lots and
blocks.

§ 142-18.

Community facilities.

ARTICLE V
 Required Improvements

§ 142-22.

Required improvements;
compliance required.

§ 142-23.

Construction permits.

§ 142-24.

Inspections.

§ 142-25.

Completion of improvements;
approval or rejection.

§ 142-26.

Default of completion guaranty.

§ 142-27.

Maintenance bond.

ARTICLE VI
 Specifications for Plats and Data

§ 142-28.

Sketch plan.

§ 142-29.

Application for approval of
preliminary plat.

§ 142-30.

Application for final approval.

ARTICLE VII
 Dedication of Public Improvements

§ 142-31.

Acceptance.

§ 142-32.

Submission of as-built plans.

ARTICLE VIII
 Violations and Penalties; Amendments

§ 142-33.

Violations and penalties.

§ 142-34.

Amendments.

ARTICLE IX
 Interpretation; When Effective

§ 142-35.

Interpretation.

§ 142-36.

When effective.

BALDWIN CODE

Part 2		ARTICLE XIV	
Stormwater Management		Stormwater Plan Review Procedures	
ARTICLE X		§ 142-57.	Preapplication phase.
General Provisions		§ 142-58.	Preliminary and final stormwater plan reviews.
§ 142-37.	Title.	§ 142-59.	Status of stormwater plan after final approval.
§ 142-38.	Grant of power; prior ordinances superseded.	§ 142-60.	Stormwater plan modifications.
§ 142-39.	Purpose.	ARTICLE XV	
§ 142-40.	Applicability.	Stormwater Management Performance Standards	
§ 142-41.	Fees.	§ 142-61.	Stormwater zones: Monongahela River Watershed.
§ 142-42.	Definitions and word usage.	§ 142-62.	General performance standards.
ARTICLE XI		§ 142-63.	Technical performance standards.
Stormwater Plan Requirements		§ 142-64.	Storm frequencies.
§ 142-43.	General requirements.	§ 142-65.	Calculation methods.
§ 142-44.	Criteria for small developments.	§ 142-66.	Release rate percentage.
§ 142-45.	Municipal Separate Storm Sewer System Ordinance.	§ 142-67.	No-harm evaluation.
ARTICLE XII		§ 142-68.	Design criteria for stormwater management controls.
Stormwater Plan Contents: Preliminary Plan		§ 142-69.	Erosion and sedimentation controls.
§ 142-46.	General format.	§ 142-70.	As-built drawings.
§ 142-47.	Construction criteria for stormwater control facilities.	ARTICLE XVI	
§ 142-48.	Professional certification.	Completion of Facilities and Maintenance	
§ 142-49.	Runoff calculations.	§ 142-71.	Maintenance responsibilities.
§ 142-50.	Detention facility routings.	§ 142-72.	Maintenance agreement for privately owned stormwater facilities.
§ 142-51.	Stormwater controls.	§ 142-73.	Municipal Stormwater Maintenance Fund.
§ 142-52.	Easements, rights-of-way, deed restrictions.	§ 142-74.	Financial guaranties and dedication of public improvements.
§ 142-53.	Other permits and approvals.		
§ 142-54.	Maintenance program.		
§ 142-55.	Financial guaranties.		
ARTICLE XIII			
Stormwater Plan Contents: Final Plan			
§ 142-56.	Required documentation.		

SUBDIVISION AND LAND DEVELOPMENT

ARTICLE XVII

Inspection of Stormwater Management Controls

§ 142-75. **Inspection procedures.**

ARTICLE XVIII

Disclaimer of Liability

§ 142-76. **General disclaimer.**

ARTICLE XIX

Enforcement and Administration

§ 142-77. **Enforcement.**

§ 142-78. **Violations and penalties.**

§ 142-79. **Review of stop-work order.**

§ 142-80. **Revocation of permit.**

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin as indicated in part histories. Amendments noted where applicable.]

GENERAL REFERENCES

Municipal Authority — See Ch. 24.

Planning Commissions — See Ch. 38.

Building construction — See Ch. 74.

Uniform construction codes — See Ch. 83.

Erosion and sediment control — See Ch. 87.

Flood damage prevention — See Ch. 92.

Grading, excavations and fill — See Ch. 99.

Property maintenance — See Ch. 131.

Sewers — See Ch. 134.

Streets and sidewalks — See Ch. 139.

Zoning — See Ch. 168.

Part 1
Borough Of Baldwin Subdivision And Land Development Ordinance
[Adopted 10-16-1967 By Ord. No. 355]

ARTICLE I
Title; Purpose; Applicability; Exceptions

§ 142-1. Title. [Amended 3-17-1975 by Ord. No. 454]

This Part 1 shall be known and may be cited as the "Borough of Baldwin Subdivision and Land Development Ordinance."

§ 142-2. Purpose.

This Part 1 is adopted for the following purposes:

- A. To assure harmonious and orderly development and thereby promote the health, safety, morals and general welfare of the Borough of Baldwin.
- B. To ensure integration of subdivision plans with the various elements of the Baldwin Master Plan.
- C. To secure equitable treatment of all subdivision plans by providing for uniform procedures and standards for the observance of all subdividers, the Planning Commission and the Borough.

§ 142-3. Applicability.

It shall be unlawful for the owner of any land in the Borough to make a subdivision thereof or to lay out, construct, open or dedicate for public use or travel or for the common use of the occupants or buildings thereon any street, sanitary sewer, storm sewers, water main or other facilities in connection therewith unless and until a plan thereof shall have been prepared by a registered professional engineer or surveyor and submitted to and approved by the proper Borough official or body, as hereinafter provided.⁷⁶

76. Editor's Note: Original Section 4 of Article I of Ord. No. 355, Exceptions, which immediately followed this section, was repealed 3-17-1975 by Ord. No. 454.

ARTICLE II
Word Usage; Definitions

§ 142-4. Word usage.

- A. The present tense includes the future tense.
- B. The word "person" includes a firm, association, organization, partnership, company or corporation as well as an individual.
- C. The word "shall" is mandatory; the word "may" is permissive.
- D. The word "lot" includes the words "plot," "piece" and "parcel."
- E. The word "building" includes all structures, or part thereof, affixed to the land.

§ 142-5. Definitions.

As used in this Part 1, the following terms shall have the meanings indicated:

ALLEY — A minor public way, having a right-of-way width between property lines of less than 30 feet for vehicular service access to the back or side of properties otherwise abutting on a street.

BLOCK — An area bounded by existing or proposed streets.

BOROUGH ENGINEER — The registered professional engineer appointed by the Borough Council to perform those duties set forth in this Part 1.

BOROUGH MANAGER — The person so appointed by Council to act as Borough Manager. The Borough Secretary or Assistant Secretary is authorized to perform the duties of the Borough Manager as prescribed for in this Part 1 when a Borough Manager has not been so appointed or in his absence.

BUILDING — Any structure intended for the shelter, housing or enclosure of persons, animals or any other property.

BUILDING LINE or SETBACK LINE — A line of that face of the building which is nearest the front line of the lot. This face includes sun parlors, covers and porches, whether enclosed or unenclosed, but does not include walks, steps or terraces. **[Amended 3-17-1975 by Ord. No. 454]**

CARTWAY — The portion of a street or alley intended for vehicular use.

CLEAR SIGHT TRIANGLE — An area of unobstructed vision at street intersections defined by lines of sight between points at a given distance from the intersection of street center lines.

COLLECTOR STREET — See "street, collector."

COMPLETION GUARANTY — A deposit of cash, bond or certified check and an agreement to the effect that the subdivider will install required improvements. **[Amended 3-17-1975 by Ord. No. 454]**

CUL-DE-SAC — A dead-end street designed to be so permanently, with a suitable vehicular turnaround at the closed end.

DEVELOPMENT — The act, process or state of erecting all structures except farm dwellings and subsidiary structures.

DRAINAGE RIGHT-OF-WAY — The lands required for the installation of storm sewers or drainage ditches or required along a natural stream or watercourse for preserving the channel and providing for the flow of water therein to safeguard the public against flood damage.

DWELLING — A building designed or used exclusively as the living quarters for one or more families.[Amended 3-17-1975 by Ord. No. 454]

DWELLING, GROUP — A group of two or more one-family or multiple-family dwellings occupying a lot in one ownership and having a yard in common.[Added 3-17-1975 by Ord. No. 454]

DWELLING, MULTIPLE-FAMILY — A building or portion thereof containing two or more dwelling units.

EASEMENT — A grant by the owner of land for the use by others, including the public.

FILING, PLAT — A plat shall be deemed to be filed with the Planning Commission or the Borough Council, as the case may be, when it has been received and properly receipted by the Manager. The Manager may refuse to receive a plat if the procedures under Article III have not been fully observed. The Manager shall transmit plats to the official bodies concerned.

IMPROVEMENTS, PUBLIC — Any or all of the following: grading, paving, curbs, gutters, sidewalks, waterlines, sanitary and storm sewer lines and structures, drainage channels and structures, curb returns, sidewalk and driveway entrances within rights-of-way, guardrails, traffic signals and devices, streetlights, retaining walls, sodding and planting.

LOCAL STREET — A street which is used primarily for access to the abutting properties.

LOT — A portion of a subdivision or other parcel of land intended as a unit for transfer of ownership or for development or both. In determining the area of a lot, no part of the right-of-way of a street, alley or crosswalk may be included.

LOT WIDTH — The distance between straight lines connecting front and rear lot lines at each side of the lot measured across the rear of the required front yard; provided, however, that the width between side lot lines at their foremost points (where they intersect with street lines) shall not be less than 80% of the required lot width except in the case of lots on the turning circle of culs-de-sac or curved streets, where the eighty-percent requirement shall not apply.

MAJOR STREET — A street which is used primarily for fast or heavy traffic of an intercommunity nature and including state highways and turnpikes.

MANAGER — See "Borough Manager."

MARGINAL ACCESS STREET — A local street which is adjacent to a major street and which provides access to abutting properties and protection from through traffic.

MASTER PLAN — A plan which may consist of several maps, data and other descriptive matter as may be adopted, altered or revised from time to time by the Planning Commission for guiding the orderly physical development of the Borough or any portion thereof, including the general locations for streets, parks or other public open spaces, public utilities, schools and other facilities.

OWNER — Any person or legal entity having a proprietary interest in the land to be subdivided but not including a mortgagee, lien or lessee or contract purchaser.

PLAT — A plan or map which shows the proposed layout of the subdivision.

PLAT FILING — See "filing, plat."

PLAT, PRELIMINARY — A preliminary map indicating the proposed subdivision, which is submitted to the Borough Planning Commission for advice and direction.

PUBLIC IMPROVEMENTS — See "improvements, public."

RIGHT-OF-WAY — Land reserved for use as a street, alley, crosswalk or for other public purpose.

SIGHT DISTANCE — The maximum distance of unobstructed vision, in a horizontal or vertical plane, along a street from a vehicle located at any given point on the street, which shall take into account the visibility over a crest vertical curve and the extent of headlight illumination across a sag vertical curve.

STREET — A public way, having a right-of-way of no less than 50 feet between property lines, for vehicular and pedestrian traffic, whether designated as a street, highway, thoroughfare, parkway, throughway, turnpike, road, avenue, boulevard, lane, place, way or however otherwise designated.

STREET, COLLECTOR — A street which carries traffic from local streets to the major streets, including the principal entrance streets of a residential development and streets for circulation within such a development.

STREET, LOCAL — See "local street."

STREET, MAJOR — See "major street."

STREET, MARGINAL ACCESS — See "marginal access street."

STREET, PARTIAL OR HALF — A street, generally parallel and adjacent to a property line, having a lesser right-of-way than normally required for satisfactory improvement and use of the street.

STREET, PUBLIC — A street accepted for public improvement and maintenance, whether by Borough, county or state governments.

SUBDIVIDER — Any person who undertakes the subdivision of land as defined herein. A "subdivider" shall be an owner or authorized agent of the owner of the land to be subdivided.

SUBDIVISION — The division of a single lot, tract or parcel of land into two or more lots, including all changes in street or lot lines, for the purpose, whether immediate or future, of transfer of ownership or for building development or, if a new street is involved, any division of a parcel of land, but shall not include division of land for agricultural purposes in parcels exceeding 10 acres and not involving any new street or easement of access. "Subdivision" also includes resubdivision and, where appropriate to the context, relates to the process of subdividing or to the land or property so divided. "Subdivision" also includes the process of creating units in a single-family cluster lot development. **[Amended 3-18-1985 by Ord. No. 558]**

WALKWAY — A public right-of-way having a width of 10 feet or more within a block, intended for pedestrian use, and from which motor vehicles are excluded.

WATERCOURSE — A channel, creek, ditch, drain, dry run, spring or stream.

ARTICLE III
Submission of Plats

§ 142-6. Responsibilities of subdivider and Planning Commission.

- A. It shall be the responsibility of the subdivider to become familiar with the subdivision regulations contained herein; to consult with the Planning Commission, other Borough officials and public utility people on the availability of services and facilities in the area to be subdivided; and to discuss the subdivision proposals with potentially interested parties, such as lending and mortgage insurance institutions, in order to determine what part of the market demand should be served and the subdivision plan which would be the most advantageous to the development of the Borough as well as to the subdivider.
- B. It shall be the responsibility of the Planning Commission to discourage premature development in unsuitable areas that are inaccessible or hazardous or lack services. The Planning Commission shall also encourage replatting of dead subdivisions and coordinating the platting of small adjacent land.

§ 142-7. Preapplication procedure.

- A. Previous to filing of an application for approval of the preliminary plat, the subdivider may submit to the Planning Commission sketch plans and data as specified in § 142-28.
- B. The Planning Commission shall review the sketch plans and data at its next regular meeting, provided that the above information is submitted to the Planning Commission at least 10 days before the meeting date.
- C. Within 14 days after the above-mentioned meeting, the Planning Commission shall inform the subdivider whether or not the sketch plans and data as submitted meet the objectives of these regulations. The Planning Commission shall make suitable recommendations for modification and improvements of such plans and data and shall return such plans and data to the subdivider.

§ 142-8. Procedure for approval of preliminary plat.

- A. The subdivider shall have a preliminary plat prepared, together with improvement plans and other supplementary material, as specified in § 142-29.
- B. Five copies of the preliminary plat and supplementary material specified herein shall be submitted to the Planning Commission, together with a written application for approval, at least 10 days prior to the meeting at which it is to be considered.
- C. Following review of the preliminary plat and other material submitted for conformity to the regulations contained herein and negotiations with the subdivider on changes deemed advisable and the land and extent of improvements to be made by him, the Planning Commission shall, within 30 days, act thereon as submitted or modified, and if approved, the Planning Commission shall express its approval as approval and state the conditions of such approval, if any, or if disapproved, shall express its disapproval and its reasons therefor.
- D. The action of the Planning Commission shall be noted on four copies of the preliminary plat, referenced and attached to any conditions determined. One copy shall be returned to the subdivider, one copy shall be retained by the Planning Commission, the third copy shall be submitted to the Borough Engineer, and the fourth copy submitted to the office of the Manager.

- E. Approval of a preliminary plat shall not constitute approval of the final plat. Rather, it shall be deemed an expression of approval of the proposed layout submitted on the preliminary plat as a guide to the preparation of the final plat, which shall be submitted for approval of the Planning Commission.
- F. The approval of a preliminary plat shall be deemed to have lapsed unless an application for final approval of at least part of the preliminary plat is made within six months of the date of tentative approval. **[Amended 3-17-1975 by Ord. No. 454]**

§ 142-9. Procedure for approval of final plat.

- A. The subdivider shall have prepared a final plat which shall conform substantially to the preliminary plat as approved, together with improvement plans and other material as specified in Article VI, § 142-30. The final plat may constitute only that portion of the approved preliminary plat which the subdivider proposed to record and develop at this time; provided, however, that such portion conforms to all the requirements contained herein.
- B. The final plat and other material required for approval, together with a written application for approval, shall be submitted to the Planning Commission at least 10 days prior to the meeting at which it is to be considered. The application for approval shall be an application separate and apart from the application for approval of a preliminary plat and shall be in form prepared by the Borough of Baldwin. No application may be submitted to the Borough Secretary during the 10 days immediately prior to the next meeting of the Planning Commission. **[Amended 3-17-1975 by Ord. No. 454]**
- C. If the final plat is disapproved by the Planning Commission, the reasons therefor shall be stated in writing to the subdivider. The decision of the Planning Commission shall be made within 10 days subsequent to the meeting at which the final plat is considered. Notice of the disapproval shall be sent by the Planning Commission to the subdivider or the applicant within five days after the decision is rendered. Whether or not the Planning Commission approves or disapproves the final plat, such plat shall, immediately following the approval or disapproval of the same, be sent to the Borough Council for its consideration. **[Amended 3-17-1975 by Ord. No. 454]**
- D. The subdivider shall file a completion guaranty before recording of the final plat, the filing of which shall be a condition of the approval of every application. The guaranty shall consist of: **[Amended 3-17-1975 by Ord. No. 454]**
 - (1) A cash deposit in escrow with the Borough or an accredited lending institution, such as a savings and loan or a national bank.
 - (2) A performance bond in the amount of 100% of the cost of the improvements.
- E. The Borough Council shall approve with or without modifications or disapprove the final plat within 90 days from the date of the submission of the application for approval of the final plat to the Borough Secretary. If the final plat is disapproved by the Borough Council, the reasons therefor shall be stated in writing to the subdivider. Notice of the decision of the Borough Council shall be given within five days of the decision to the subdivider or the applicant. **[Amended 3-17-1975 by Ord. No. 454]**
- F. The final plat, after the approval of the Planning Commission and the Borough Council, shall be submitted to the Allegheny County Planning Commission for its approval and in accordance with its regulations.
- G. The final plat, in the form approved by the Borough Council, shall be recorded by the subdivider in

the office of the County Recorder of Deeds within 60 days of the date of approval by the County Planning Commission; such approval shall be null and void if the plat is not recorded within said time limit.

- H. Upon recording of the final plat, a reproducible copy of the recorded plat shall be filed in the office of the Borough Manager. Failure to comply with this requirement shall result in the suspension of all development activities within such plan of subdivision.

§ 142-10. Fees.

- A. Application fee. To cover the costs of reviewing plats, processing applications and other expenses incidental to the approval of a subdivision, the subdivider shall pay a fee of \$50 at the time of application for approval of a preliminary plat, said \$50 to be payable to the Borough of Baldwin. When the application for approval of a preliminary plat is forwarded to the Planning Commission, it shall be accompanied by a memorandum that this fee has been paid.
- B. Subdivision fee. **[Amended 3-17-1975 by Ord. No. 454]**
- (1) To cover the costs of holding any required public hearings and the checking of maps, plans, specifications and any other engineering data incidental to the final approval of the final plat, a fee established by the Borough Engineer in accordance with the following table shall be paid to the Borough of Baldwin:

Fee Schedule A	
Number of Lots in Plan	Fee
2 to 10	\$100 (minimum)
11 to 25	\$10 per lot
26 to 40	\$250 plus \$8 per lot for each lot over 25
41 to 75	\$375 plus \$6 per lot for each lot over 40
76 or more	\$610 plus \$5 per lot for each lot over 75

- (2) If the subdivider fails to apply for final approval of the subdivision within 12 months, the fee for any portion thereof shall not be refunded.
- C. Escrow account fees. To cover the costs to the Borough for the engineering and inspection supervision of construction and other miscellaneous expenses incidental to the construction and final approval of a subdivision or other construction project, the subdivider or developer shall deposit to an escrow fund established for this purpose a sum of money in the amount of 2% of the estimated or contract cost of those portions of the project included under site development and improvement, except that the minimum payment permissible for this purpose shall be \$500. Should expenses incurred by the Borough exceed the amount of the escrow deposit at any time during construction, a further deposit shall be required before final approval and acceptance of the project. Any funds left in the deposit upon final approval and acceptance shall be returned to the developer.

§ 142-11. Issuance of permits. [Amended 3-17-1975 by Ord. No. 454]

- A. No permit to erect, alter or repair any building upon land in a subdivision may be issued unless and until a plan of such subdivision shall have been approved and properly recorded.

- B. No occupancy permit shall be issued for any structure until such time as the condition of those public improvements located on the property in question shall have been determined to be in a condition acceptable to the Borough by the Borough Engineer.

§ 142-12. Release from improvement bonds. [Added 3-17-1975 by Ord. No. 454]

The procedure for obtaining releases from improvement bonds shall be the same hereunder as is set forth in § 142-25 of this Part 1.

ARTICLE IV
Design Standards

§ 142-13. General standards.

- A. The layout of any subdivision in the Borough of Baldwin shall be in accordance with the Borough Master Plan and the Zoning Ordinance. The type of development shall be appropriate for the location, and the street pattern shall tie in with the overall street and highway plan of the Borough.
- B. Where a proposed park, playground or other public use shown on the Master Plan is located in whole or in part in a subdivision, the Planning Commission may require the dedication or reservation of such area within the subdivision in those cases in which the Planning Commission deems such requirements to be reasonable.
- C. Land which the Planning Commission has found to be unsuitable for subdivision due to flooding, bad drainage and other features likely to be harmful to the safety, welfare and general health of the future residents, and which the Planning Commission considers inappropriate for subdivision, shall not be subdivided unless adequate methods to eliminate these hazards are formulated by the developer and approved by the Borough Engineer and the Planning Commission.

§ 142-14. Street layout.

- A. Street layouts shall conform to the following:
 - (1) The arrangement, character, extent, width, grade and location of all streets shall conform to the Borough Master Plan and shall be considered in their relation to existing and planned streets, to topographical conditions, to public convenience and safety and in their appropriate relation to the proposed uses of the land to be served by such streets. Where not shown on the Master Plan or on the Official Map of the Borough, the arrangement and other design standards of streets shall conform to the provisions found herein.
 - (2) In general, all streets shall be continuous and in alignment with existing streets and shall compose a convenient system to ensure circulation of vehicular and pedestrian traffic, with the exception that local streets may be so laid out, including the use of loop streets and culs-de-sac, where made necessary by topographic conditions, that their use by through traffic will be discouraged.
 - (3) Where a subdivision abuts or contains an existing or proposed major street, the Planning Commission may require marginal access streets in order to protect residential areas from heavy traffic and also to provide separation between local and through traffic.
 - (4) New half or partial streets will not be permitted; wherever a tract to be subdivided borders an existing half or partial street, the other part of the street shall be platted within such tract.
 - (5) Whenever possible, culs-de-sac shall not exceed 600 feet in length as measured from the center line of the intersecting street to the center of its circular turnaround. **[Amended 3-17-1975 by Ord. No. 454]**
 - (6) The terminus of a cul-de-sac shall be a circular turnaround having a right-of-way minimum radius of 50 feet. The outside radius of the curbing shall be 40 feet. **[Amended 3-17-1975 by Ord. No. 454]**
 - (7) Every subdivision shall have access to a paved public street.

- (8) Where a railroad abuts or extends through any portion of a subdivision, provision shall be made for overpasses or underpasses acceptable to the Pennsylvania Public Utilities Commission; streets paralleling any railroad shall be separated therefrom by a buffer strip of at least 50 feet in depth, and if such buffer strip is composed of residential lots, such lots shall be at least 150 feet in depth.
- (9) Local streets are intended to serve primarily the abutting properties and shall be so designed as to discourage through traffic, for which purpose loop streets and culs-de-sac may be used if deemed necessary.
- (10) Collector streets are intended to carry traffic from residential areas to major streets, county, state and federal highways.
- (11) Major streets are intended for use by heavy through traffic and as connections to and between county, state and federal highways and major urbanized areas.
- (12) Marginal access streets are intended to provide access by local traffic to properties adjoining major streets without interfering with through traffic.
- (13) Alleys are intended to provide secondary access to business and industrial properties for deliveries. Alleys are not normally permitted in residential areas, and in no case shall an alley provide the only means of access to a lot.
- (14) Walkways are intended to provide pedestrian circulation through large blocks or in developments where it is desired to separate pedestrian from vehicular traffic.
- (15) Streets shall be laid out to intersect as nearly as possible at right angles; no street shall intersect another at less than 60°.
- (16) Intersections of more than two streets shall be avoided. Where this proves impossible, such intersections shall be designed with care for safety. Suitable curbs, dividers, signs and other devices may be required.
- (17) Clear sight triangles whose adjacent and opposite sides shall each be measured 100 feet along the street center line from their point of junction at all intersections; no buildings or obstructions to vision shall be permitted within such sight triangles.
- (18) Streets shall have a grade not to exceed 4% for a distance within 25 feet of the street right-of-way line at any intersection transverse.
- (19) Streets entering opposite sides of another street shall be laid out either directly opposite one another or else shall have a minimum offset of 150 feet between their center lines.
- (20) Street intersections with major streets shall be located not less than 800 feet apart between their center lines.
- (21) Whenever street lines are deflected in excess of 5°, connection shall be by horizontal curves.
- (22) Alleys shall not be constructed in any new subdivision but may only be constructed when they are a natural continuation of an alley already partially open and in use, in which case they shall be ended within a continuing distance of 300 feet.
- (23) The proposed name of the subdivision and proposed street names shall not duplicate or too closely approximate phonetically the names of any other subdivision or street in the Borough of

Baldwin. Street names shall be subject to the approval of the Planning Commission.

§ 142-15. Street design.

A. Street design specifications are as follows:

- (1) Width, grade alignment, construction and improvement for each street in a proposed subdivision shall conform to the standards established in the following table.⁷⁷ **[Amended 3-17-1975 by Ord. No. 454]**
- (2) The entire right-of-way of each street in a proposed subdivision shall be graded, and there shall be installed paving, drainage structures, curbs and gutters and sidewalks in accordance with the appropriate standards for the class of street, with the exception that the standards of the high-density residential area may be used in a low-density residential area.
- (3) Minimum curb or pavement-edge radii at street intersections shall be 25 feet for intersections of a local street with another local street or a local street with a collector street or a local street with an alley, 30 feet for other intersections, or such greater radius as is suitable to the specific intersection.
- (4) Where the grade of the street is above or below the grade of the adjacent land, walls or slopes shall be constructed in a manner satisfactory to the Borough Engineer and shall be sufficient to support the street or the adjacent land, as the case may be.
- (5) Where the grade of the street is three feet or more above the grade of the adjacent land, guardrails shall be built which shall be satisfactory to the Borough Engineer.
- (6) Street shoulders shall be constructed with suitable materials from roadway or structure excavation supplemented by additional suitable material, if directed, from borrow excavation; the entire shoulder area shall be uniformly and thoroughly compacted by rolling, as directed by the Borough Engineer.
- (7) The outside edge of sidewalks shall be placed one foot from the street right-of-way lines, except for business streets where the sidewalk shall occupy the full width between the curb and the street right-of-way lines.
- (8) Embankments at the sides of streets and cross sections of drainage ditches shall not exceed a maximum slope of one foot horizontally to one foot vertically in a cut section and 1 1/2 feet horizontally to one foot vertically in a fill section; in special cases the Borough Engineer may require more rigid standards.
- (9) Means of ingress and egress for vehicle driveways to and from each lot or parcel shall be shown on the plans for installation in accordance with existing Borough regulations for depressed curbs and driveways across sidewalks.
- (10) Bituminous or macadam streets shall crown at the center line to a slope of 1/4 inch to one foot; concrete streets shall crown at the center line to a slope of 1/8 inch per foot; alleys shall be dishd to the center line at a slope of 1/4 inch per foot for bituminous or macadam paving and 1/8 inch per foot for concrete paving.
- (11) All streets shall be constructed on a prepared subgrade conforming to Section 3.7 of the

77. Editor's Note: The Table of Minimum Improvement Standards for Public Ways is included at the end of this chapter.

publication of the Commonwealth of Pennsylvania, Department of Highways, Form 408 Specifications (1960).

§ 142-16. Storm drainage.

- A. Suitable drainage structures, culverts, storm sewers, ditches and related installations shall be provided to ensure adequate drainage of all low points along the line of streets and to intervals reasonably related to the extent and grade of the area drained.
- B. In the design of storm sewerage installations, special consideration shall be given to the avoidance of problems which may arise from the concentration of stormwater over adjacent properties.
- C. Where a natural watercourse is retained as a drainage channel, an appropriate right-of-way not less than 20 feet shall be provided.
- D. Provision for storm drainage and the design and installation of drainage structures shall be acceptable to the Borough Engineer.
- E. Drainage ditches or channels shall have a minimum gradient of 1%.

§ 142-17. Suitability of land; lots and blocks.

- A. Land shall be suited to the purpose for which it is to be subdivided, whether for residential, business or industrial use.
- B. Land unsuited for development which would entail hazards to life, health or property or would be uneconomic to provide with public services shall not be subdivided; steep areas having slopes of 25% or more and land subject to flooding shall not be considered suitable for subdivision unless such deficiencies can be eliminated.
- C. Residential blocks shall have a maximum length of 1,600 feet and a minimum length of 500 feet; where a block exceeds 800 feet, a walkway shall be provided.
- D. Business or industrial blocks shall be of such size and shape as may be suitable for their prospective use and shall provide sufficient space for off-street parking and loading.
- E. The width of any block shall be sufficient to permit at least two tiers of lots of appropriate depth, except where reverse frontage lots bordering a major street are used.
- F. Lots shall be laid out and graded to provide positive drainage away from buildings.
- G. Every lot shall abut on a proposed public street, with the possible exception of suitably designed residential courts having acceptable means of access.
- H. Side lot lines shall be substantially at right angles or radial to street right-of-way lines.
- I. If remnants of land exist after subdividing, they shall be suitably incorporated into existing or proposed lots or dedicated to public use if acceptable for such public use. All parcels of subdivisions shall comply in all respects with the Zoning Ordinance regarding setbacks, area, height, etc.⁷⁸
[Amended 3-17-1975 by Ord. No. 454]
- J. Double frontage lots are prohibited except where employed to prevent vehicular access to a major

78. Editor's Note: See Ch. 168, Zoning.

street.

- K. Easements for public utilities having a minimum width of 15 feet shall be provided and shall be satisfactory to the agency providing such utility service. Whenever possible, utility easements shall extend along rear property lines.
- L. Every lot shall have a grade not to exceed 20% within an area 60 feet wide and 60 feet deep measured from the street right-of-way line.
- M. The building setback line in all districts shall be in accordance with the yard requirements as stated in the Zoning Ordinance.⁷⁹ The setback shall be measured from the required right-of-way line of any existing or proposed street to the front line of the permitted buildable area.

§ 142-18. Community facilities.

- A. In reviewing subdivision plats, the Planning Commission shall consider the adequacy of existing or proposed community facilities to serve the additional dwellings proposed by the subdivision.
- B. Subdividers shall give earnest consideration to the providing of areas for community facilities normally considered desirable for serving residential areas, such as parks, playgrounds, athletic fields, schools, churches, libraries, shopping centers and local business centers.
- C. Areas provided or reserved for such community facilities should be adequate to provide for building sites, play areas, landscaping and off-street parking as may be necessary for the use proposed.
- D. Subdividers shall confer with the Planning Commission prior to the preparation of final plats in order to develop suitable plans for providing community facilities.
- E. Areas for community facilities may be provided through dedication or sale to a public agency or gift or sale to a private agency, including a property owners' association. In all cases, suitable arrangements shall be made fixing responsibility for sponsorship and continued maintenance of community facilities.
- F. Subdivisions shall conform to the Borough's plan of parks, recreation areas and other community facilities.

§ 142-19. Utilities. [Amended 3-17-1975 by Ord. No. 454]

- A. Where connection with the sanitary sewer system of the Borough is practicable, the owner, by special arrangement with the Council, shall install sanitary sewers and sewer laterals in conformity with Borough specifications for sanitary sewer construction before streets and roads shown on the plans are constructed. All gas, water, electric and other mains, pipes and conduits, together with all service connections or laterals, shall be laid, when the need for the same can be reasonably anticipated, before the streets and roads shown on the plans are constructed.
- B. Where connection to public sanitary sewers is not possible, the subdivider may install a sewage disposal plant and sanitary sewers connecting thereto in a manner satisfactory to the State Health Department; such facilities shall be dedicated to the Borough or shall be operated in conformance with the regulations of the Pennsylvania Public Utilities Commission and the State Health Department.

79. Editor's Note: See Ch. 168, Zoning.

- C. Every lot in a subdivision shall be capable of being served by electric, gas, water, telephone and other utilities as deemed necessary. The linen plats shall provide easements where required for the installation of said underground improvements.
- D. Where bridges, dams and/or other structures are placed on streams with a drainage area of 1/2 square mile or larger or where a permit is required by the Pennsylvania Department of Environmental Regulations, application should be made to the Department of Environmental Resources, Harrisburg, Pennsylvania, by the person in interest, and a copy of such permit shall be filed with the Borough Engineer.

§ 142-20. Monuments.

- A. Concrete monuments of a type and construction approved by the Borough Engineer and with a minimum size of four inches by four inches by 30 inches shall be installed in subdivisions in street rights-of-way, five feet from street lines, and at intersections of subdivision boundary lines with street lines as may be required by the Borough Engineer. **[Amended 3-17-1975 by Ord. No. 454]**
- B. Monuments consisting of a concrete monument at least 30 inches in length and approved by the Borough Engineer shall be installed in the plan in the positions as indicated on the linen plat. An escrow for the installation of the monuments shall be provided to the Borough in an amount to be determined by the Borough Council. **[Amended 3-17-1975 by Ord. No. 454]**
- C. Monuments shall be scored on the top to coincide exactly with the intersection of the lines to be marked and shall be set so that the top of the monument is level with the surface of the surrounding ground as finally graded.

§ 142-21. Street name signs. [Amended 3-17-1975 by Ord. No. 454]

A street name sign for each intersection shall be installed. The subdivider shall provide a cash escrow with the Borough of Baldwin to guarantee the placement of these signs. The amount of the escrow shall be determined by the Borough Council by resolutions adopted from time to time.

ARTICLE V

Required Improvements**§ 142-22. Required improvements; compliance required. [Amended 3-17-1975 by Ord. No. 454]**

Before final acceptance of any subdivision, the Borough Council shall require that the necessary grading, paving and other street improvements, including, where specified by the Borough, curbs, gutters, sidewalks, streetlights, fire hydrants, water mains, sanitary sewers and storm sewers, shall have been installed in strict conformity with the standards and specifications of the Borough. In certain cases the Borough may require that escrow amounts be placed for the future installation of said items.

§ 142-23. Construction permits.

- A. Before construction shall be begun on any required improvements in a subdivision, applications for construction permits shall be filed with the Borough Engineer on the form supplied by the Borough and shall be accompanied by four sets of plans prepared by a registered professional engineer setting forth the location and nature of work, together with all engineering data necessary for completion of work, and shall be verified by an affidavit made by or on behalf of the owners or owner.
- B. Upon the approval of the construction application, plans and specifications, the Borough shall issue a construction permit to the owner of the property. The said owner shall pay the cost of any material tests made and shall reimburse the Borough for the necessary inspection at the rate of \$50 for each day that a Borough inspector is on the work.

§ 142-24. Inspections.

- A. The Borough Engineer shall be notified by the owner or contractor at least 24 hours in advance of the commencement of any construction operation, such as grading, sewer installation or paving, in order that provision may be made for the proper inspection of such construction operation. Samples of materials and every reasonable facility for ascertaining whether the work is in conformity with the provisions of this Part 1 shall be furnished to the proper officials and employees of the Borough in the same manner as is required of contractors under the terms of the construction specifications of the Borough.
- B. Inspection fees are included in the provisions of § 142-10C.

§ 142-25. Completion of improvements; approval or rejection. [Amended 3-17-1975 by Ord. No. 454]

- A. When the developer has completed all of the necessary and appropriate improvements, the developer shall notify the Borough Council, in writing, by certified or registered mail, of the completion of the aforesaid improvements and shall send a copy thereof to the Borough Engineer. The Borough Council shall, within 10 days after receipt of such notice, direct and authorize the Borough Engineer to inspect all of the aforesaid improvements. The Borough Engineer shall, thereupon, file a report in writing with the Borough Council and shall promptly mail a copy of the same to the developer by certified or registered mail. The report shall be made and mailed within 30 days after receipt by the Borough Engineer of the aforesaid authorization from the Borough Council; said report shall be detailed and shall indicate approval or rejection of said improvements, either in whole or in part, and if said improvements or any portion thereof shall not be approved or shall be rejected by the Borough Engineer, said report shall contain a statement of reasons for such nonapproval or rejection.

- B. The Borough Council shall notify the developer, in writing, by certified or registered mail, of the action of said Borough Council with relation thereto.
- C. If the Borough Council or the Borough Engineer fails to comply with the time limitation provisions contained herein, all improvements will be deemed to have been approved and the developer shall be released from all liability, pursuant to its performance guaranty bond or other security agreement.
- D. If any portion of said improvements shall not be approved or shall be rejected by the Borough Council, the developer shall proceed to complete the same and, upon completion, the same procedure of notification as outlined herein shall be followed.

§ 142-26. Default of completion guaranty.

If improvements and facilities are not installed and completed within two years of the date of recording of the plat or do not comply with the standards and specifications of this Part 1 or if the inspection fee has not been paid, the Borough may proceed to complete the improvements and facilities and may use whatever proceeds from bonds, cash deposits, checks or securities as are required to meet the expense of completing improvements and facilities or to pay the inspection fee.

§ 142-27. Maintenance bond. [Amended 3-17-1975 by Ord. No. 454; 6-21-1993 by Ord. No. 660]

- A. Prior to acceptance of the required improvements and facilities, the subdivider shall provide to the Borough for a period of two years from the date of acceptance of said improvements and facilities a maintenance bond in the form of a bond, cash or certified check in an amount equal to 50% of the total cost of said improvements and facilities to guarantee the maintenance and repair of such improvements and facilities as may be defective in material or installation. In the event of default, the Borough shall make necessary maintenance and repairs from the proceeds of the bond or other surety.
- B. Following the expiration of the maintenance bond required hereunder, the obligation for the maintenance, repair, construction and/or replacement of any sanitary or storm sewer lateral or line extending to the main line to which such property owner's storm or sanitary sewer lateral or line is connected shall remain the obligation of the property owner, and any repairs, maintenance, construction or replacement cost shall be the obligation of the property owner; provided, however, that in the event a sanitary or storm sewer lateral or line shall extend beneath the public street or public way (the paved or traveled portion of the same) and the property owner notifies the Borough that the portion of the lateral or line extending beneath the public street or way is defective, clogged or in some other manner impaired and the owner certifies the same in writing, then the Borough shall investigate and determine the cause of the blockage or obstruction or the cause of such disrepair of the line, and if the cause is determined to be in that portion of the line under the public street or way (the paved or traveled portion), then the Borough shall assume the obligation and cost of repairing, maintaining or replacing such sewer line. In the event that it is determined that the cause of the obstruction or other disrepair to the sanitary or storm sewer lateral or line is not under the public street or public way, then the property owner shall be responsible for the repair, maintenance or replacement of the lateral or line and shall likewise be responsible for all costs incurred by the Borough in the investigation conducted by it following the property owner's certification. All costs, together with attorney's commission of 10% of the cost, shall be lienable and shall be filed as a municipal claim pursuant to the procedure provided by the acts and statutes of the Commonwealth of Pennsylvania.

ARTICLE VI
Specifications for Plats and Data

§ 142-28. Sketch plan.

- A. The sketch plan, inasmuch as it is not a formal requirement of this Part 1, need not conform to any rigid standards; nevertheless, sufficient data should be included so as to enable the Planning Commission to interpret and give advice concerning the sketch plan.
- B. It is recommended that the sketch plan be a simple pencil sketch on a topographic or other suitable base map or print thereof, showing the proposed layout of streets, lots and other features in relation to conditions in and around the subdivision.
- C. It is further recommended that the following data also be submitted with the sketch plan: a location map showing the relationship of the proposed subdivision to traffic arteries, public transportation, shopping centers, schools and churches; existing and proposed covenants; utilities available; number and size of residential lots; building types, size and price range; proposed park, playground and school areas; proposed commercial facilities, if any; and a time schedule if only part of the subdivision is to be developed at one time.

§ 142-29. Application for approval of preliminary plat.

An application for approval of a preliminary plat shall be accompanied by the following documents:

- A. A preliminary plat on five clear black-line prints on white paper at a scale of 100 feet to one inch, or larger, which shall include all contiguous land owned by the subdivider and any other contiguous land which the subdivider proposes to acquire and develop in the foreseeable future. The plat shall show all existing conditions and proposals, including the following:
 - (1) Streets: names; right-of-way, roadway and paving widths; approximate grades and gradients; and similar data for alleys, if any.
 - (2) Other rights-of-way or easements: location, width and purpose.
 - (3) The location of utilities and drainage facilities.
 - (4) Lot lines, lot numbers and block numbers.
 - (5) Sites, if any, to be reserved or dedicated for parks, playgrounds or other public uses.
 - (6) Sites, if any, for multifamily dwellings, shopping centers, churches, industry or other nonpublic uses exclusive of single-family dwellings.
 - (7) Minimum building setback lines.
 - (8) Site data, including number of residential lots, typical lot size and acres in parks and other community facilities.
 - (9) The title, scale, North arrow and date.
 - (10) Existing topography based on the latest data available from the United States Geologic Survey having a contour interval of not less than five feet.
 - (11) Proposed topography.

- (12) Names of abutting subdivisions and owners of contiguous property.
- B. Profiles, at a horizontal scale of 50 feet to one inch or larger and a vertical scale not more than five times the horizontal scale, showing existing and proposed center-line grades of existing and proposed streets.
- C. Typical cross sections and construction details of proposed street, drainage structures and other proposed improvements.
- D. A draft of proposed protective covenants whereby the subdivider proposes to regulate land use in the subdivision and otherwise protect the proposed development.
- E. All documents required in the stormwater management sections of this chapter, as more specifically provided in Part 2 hereof. **[Added 4-17-1989 by Ord. No. 605]**

§ 142-30. Application for final approval.

An application for final approval need include only that portion of a property proposed for immediate subdivision.

- A. The following copies of the final plat and other maps shall be submitted:
- (1) One original drawing in black waterproof ink on new linen tracing cloth, which will be returned to the subdivider after being properly signed and executed upon final approval and which shall be used for recording purposes.
 - (2) One reproduced black-line tracing on cloth or approved transparency, which will be signed and executed upon final approval and shall be returned to the Borough after recording in the County Recorder's Office.
 - (3) Eight clear and legible black-line prints on white paper which may be distributed by the Borough as follows: one signed and executed copy to the Planning Commission; one copy each to the School Board and Borough Road Superintendent; and six copies to the Manager for distribution.
- B. The final plat and any other maps shall conform to one of the following sheet sizes: 18 inches by 24 inches; 24 inches by 36 inches; or 36 inches by 48 inches. Where necessary to avoid sheets larger than the maximum, the final plat shall be shown on two or more sheets of uniform size and shall include a key diagram showing the relative location of the sections.
- C. The final plat shall be at a scale of 50 feet to one inch, or larger, and shall contain the following data:
- (1) The subdivision name or identifying title.
 - (2) North point, scale and date.
 - (3) Tract boundary lines, rights-of-way lines of streets, easements and other rights-of-way lines, property and lot lines with accurate dimensions, bearings, deflection angles and radii, lengths or arcs and central angles of all curves satisfactory to the Borough Engineer and sufficient to reproduce such lines upon the ground.
 - (4) Primary control points, approved by the Borough Engineer, or descriptions and ties to such points, to which all dimensions, angles, bearings and similar data on the plat shall be referred, and the location of all existing and proposed monuments.

- (5) The boundary lines of a subdivision shall be determined by actual ground survey only, said survey to be traversed, balanced and closed; the total error of closure shall not exceed the linear ratio of one to 5,000, and the allowable angular error of closure shall not exceed 30 seconds times the square root of the number of angles.
 - (6) Names of record owners of adjoining unplatted land and record name, date, index number, street and lot lines of adjacent subdivisions to a minimum distance of 100 feet beyond the proposed subdivision boundary.
 - (7) The proposed building setback line for each street or the proposed placement of each building and sight triangle lines.
 - (8) Names of streets within and adjacent to the subdivision and numbers of all lots.
 - (9) An affidavit and certification inscribed on the plat in black waterproof ink in the form approved by the Planning Commission.
- D. The final plat shall be accompanied by a topographic map at a scale of 50 feet to one inch, or larger, which shall contain the following data:
- (1) Boundary lines: bearings and distances.
 - (2) Easements: location, width and purpose.
 - (3) Streets on and adjacent to the tract: name and right-of-way width and location; type, width and elevation of surfacing; and legally established center-line elevations, walks, curbs, gutters, culverts, etc.
 - (4) Utilities on and adjacent to the tract: location, size and invert elevation of sanitary and storm sewers; location and size of water mains; location of gas lines, fire hydrants; if water mains and sewers are not in or adjacent to the tract, indicate the direction and distance to and size of nearest ones, showing invert elevation of sewers.
 - (5) Ground elevations on the tract, based on Sandy Hook data; for land that slopes less than approximately 2%, show spot elevations at all breaks in grade, along all drainage channels or swales and at selected points not more than 100 feet apart in all directions; for land that slopes more than approximately 2%, either show contours with an interval of not more than five feet if ground slope is regular, and such information as sufficient for planning purposes, or show contours with an interval of not more than two feet if necessary because of irregular land or the need for more detailed data for preparing plans and construction drawings.
 - (6) Subsurface conditions on the tract, if required by the Planning Commission: location and results of tests made to ascertain subsurface soil, rock and groundwater conditions; depth to groundwater unless test pits are dry at a depth of five feet.
 - (7) Other conditions on the tract: watercourses, marshes, rock outcrop, wooded areas, isolated preservable trees one foot or more in diameter, houses, barns, shacks and other significant features.
 - (8) Other conditions on adjacent land extending 100 feet beyond tract boundaries: approximate direction and gradient of ground slope, including any embankments or retaining walls, character and location of buildings, railroads, power lines, towers and other nearby nonresidential land uses or adverse influences; owners of adjacent unplatted land; for adjacent platted land, refer to

subdivision plat by name, recording date and number, and show the approximate percentage of build-up, typical lot size and dwelling type.

- (9) Zoning on and adjacent to the tract.
- (10) Proposed public improvements: highways or other major improvements planned by public authorities for future construction on or near the tract.
- (11) Key plan showing the location of the tract at some legible scale.
- (12) Title and certificates: present tract designation according to official records in the office of the appropriate recorder; title under which proposed subdivision is to be recorded, with names and addresses of owners, a notation stating acreage, scale, North arrow, datum, bench marks, certification of a registered civil engineer or surveyor, date of survey and the address of the engineer or surveyor.

E. The final plat shall include thereon or be accompanied by the following:

- (1) A grading plan, which may be shown on the topographic map, existing and proposed elevations and contours in accordance with the standards for the topographic map; existing contours shall be shown as dotted lines and proposed contours shall be shown as solid lines, and the grading plans shall be in accordance with the Borough of Baldwin Grading Ordinance No. 318.⁸⁰ **[Amended 3-17-1975 by Ord. No. 454]**
- (2) Location, size and invert elevation of all sewers and drainage structures, which may be shown on the grading plan.
- (3) Profiles and typical cross sections for all streets, profiles shall show the existing and proposed grades along the center line and ditch inverts or tops of curbs of proposed streets; sewer lines and drainage structures.
- (4) A copy of all restrictions and covenants, if any, the subdivider intends to place in the deeds to the lots in the subdivision.
- (5) Written application for final approval on an approved form.
- (6) Although not required at the time of application for final approval, the subdivider shall file a completion guaranty before the plat will be approved by the Borough Council.

80. Editor's Note: See Ch. 99, Grading, Excavations and Fill.

ARTICLE VII

Dedication of Public Improvements**§ 142-31. Acceptance.**

When any street, park or other public improvements outlined in the construction permit shall have been completed in accordance with the terms of this Part 1 and in strict accordance with the Borough specifications now in effect or hereafter adopted, as the case may be, said street, park or improvement shall be deemed private until such time as the same shall have been offered for dedication to the Borough of Baldwin and accepted, by separate ordinance or resolution, or until it shall have been condemned for use as a public street, park or other improvement.

§ 142-32. Submission of as-built plans.

Upon completion of construction and installation of all improvements in the plan and prior to acceptance by the Borough, the developer shall have prepared an as-built plan showing all improvements as installed. This drawing shall be reproducible and shall be submitted to the Borough Engineering and Inspection Department at least seven days prior to the proposed date of acceptance of the plan.

ARTICLE VIII

Violations and Penalties; Amendments⁸¹**§ 142-33. Violations and penalties. [Amended 4-17-1989 by Ord. No. 605]**

Any person, copartnership or corporation who or which shall subdivide any lot, tract or parcel of land, lay out, construct, open or dedicate any street, sanitary sewer, stormwater or water main for public use or travel or for the common use of occupants of buildings abutting thereon, sell any lot or erect any building in a subdivision without first having complied with all the provisions herein, including the provisions of Article X hereof, shall be guilty of a misdemeanor and, upon conviction thereof, such person or the members of such copartnership or the officers of such corporation responsible for such violation shall be sentenced to suffer imprisonment not exceeding two years or to pay a fine not exceeding \$1,000, or both, in the discretion of the court.

§ 142-34. Amendments. [Amended 4-17-1989 by Ord. No. 605]

- A. The Borough Council may, from time to time on its own motion or on petition or on recommendation of the Planning Commission, amend, supplement or repeal the regulations and provisions of this Part 1. Every such proposed amendment or change, whether initiated by the Borough Council or by petition, shall be referred to the Planning Commission for review and a report thereon before the Borough Council votes on the proposed amendment.
- B. No amendment to the subdivision regulations in this Part 1 shall apply to or offset any application for approval of the preliminary plat or final approval or a construction permit for any preliminary or final subdivision plat which has been previously approved by the Borough Council, provided that said subdivision complies with the provisions of this Part 1 at the time of said approval.

81. Editor's Note: Original Arts. VIII and IX of Ord. No. 355, pertaining to variances and appeals, were repealed 3-17-1975 by Ord. No. 454.

ARTICLE IX

Interpretation; When Effective**§ 142-35. Interpretation.**

In its interpretation and application, the provisions of this Part 1 shall be held to be minimum requirements adopted for the promotion of health, safety, morals and general welfare. Wherever the requirements of this Part 1 are at variance with the requirements, deed restrictions, covenants or ordinances, the most restrictive or that imposing the higher standards shall govern.

§ 142-36. When effective.

This Part 1 shall become effective on the date of its approval by the Borough Council; provided, however, that all subdivisions which have been recorded prior to this date may be completed in accordance with the recorded plat, and provided further that all subdivisions recorded within 60 days prior to the approval of this Part 1 are hereby declared void if, at the time of the adoption of this Part 1, no substantial construction of improvements or buildings shall have been made or no contracts have been let.

Part 2
Stormwater Management
[Adopted 4-17-1989 By Ord. No. 605; Amended In Its Entirety 12-16-2014 By Ord. No. 859]

ARTICLE X
General Provisions

§ 142-37. Title.

This Part 2 shall be known and may be cited as the "Borough of Baldwin Stormwater Management Ordinance" or just the "stormwater regulations."

§ 142-38. Grant of power; prior ordinances superseded.

This Part 2 is adopted in accordance with the authority granted to municipalities to regulate subdivision and land development by the Stormwater Management Act of October 9, 1978 (P.L. 864, No. 167, 32 P.S. §§ 680.1 through 680.17), as amended, and the Stormwater Management Guidelines adopted by the General Assembly. This Part 2 shall supersede all previous ordinances.

§ 142-39. Purpose.

These regulations are adopted and implemented to achieve the following general purposes and objectives:

- A. To manage stormwater runoff resulting from land alterations and disturbance activities in accordance with watershed stormwater management plans adopted pursuant to the Pennsylvania Storm Water Management Act (Act 167 of 1978, as amended).⁸²
- B. To utilize and protect the desirable existing natural drainage systems and to preserve the flood protection capacity of streams.
- C. To encourage natural infiltration of rainfall to preserve groundwater supplies and stream flows.
- D. To provide for adequate maintenance of all permanent stormwater management facilities in the Borough.
- E. To update and revise the existing Ordinance No. 605 (Note: Said ordinance comprised the former stormwater regulations, amended in their entirety by Ord. No. 691.) due to changes in the engineering concepts concerning stormwater management.
- F. To update and revise the existing Ordinance No. 605 (as amended by Ord. No. 659) due to changes in the engineering and legal concepts concerning stormwater management.
- G. Inadequate maintenance of stormwater facilities contributes to erosion and sedimentation, overtaxes the carrying capacity of streams and storm sewers, increases the cost of public facilities to carry and control stormwater, undermines flood plain management and flood control efforts in downstream communities, reduces groundwater recharge, threatens public health and safety, and increases pollution of water resources.
- H. Stormwater is an important water resource, which provides groundwater recharge for water supplies and base flow of streams, which also protects and maintains surface water quality.

82. Editor's Note: See 32 P.S. § 680.1 et seq.

- I. Federal and state regulations require certain municipalities to obtain a permit for stormwater discharges from their separate storm sewer systems under the National Pollutant Discharge Elimination System (NPDES). Permittees are required to enact, implement, and enforce a prohibition of nonstormwater discharges to the permittee's regulated small municipal separate stormsewer systems (MS4s).
- J. Manage stormwater runoff impacts at their source by regulating activities that cause the problems.
- K. Provide review procedures and performance standards for stormwater planning and management.
- L. Manage stormwater impacts close to the runoff source, which requires a minimum of structures and relies on natural processes.
- M. Maintain existing flows and quality of streams and watercourses.
- N. Implement an illegal discharge detection and elimination program to address nonstormwater discharges into the Municipality's separate storm sewer system.

§ 142-40. Applicability.

The provisions of this Part 2 shall apply to all subdivision and land developments unless specifically exempted or otherwise modified herein. All activities related to proper operation and maintenance of approved stormwater management BMPs and all activities that may contribute nonstormwater discharges to a regulated small MS4 are subject to regulation by this Part.

- A. Repealer. Any other ordinance provision(s) or regulation of the Municipality inconsistent with any of the provisions of this Part 2 is hereby repealed to the extent of the inconsistency only.
- B. Severability. In the event that any section or provision of this Part 2 is declared invalid by a court of competent jurisdiction, such decision shall not affect the validity of any of the remaining provisions of this Part 2.
- C. Compatibility with other requirements. Actions taken under this part do not affect any responsibility, permit or approval for any activity regulated by any other code, law, regulation, or ordinance.

§ 142-41. Fees.

- A. The applicant will be responsible for all fees associated with the approval and installation of the stormwater management plan; such fees include, but will not be limited to, inspection, engineering, legal and administrative. Said fees are posted with the municipality. Such fees will be established from time to time by the Borough by resolution; engineer costs and expenses shall be billed to the Borough that shall be payable by the applicant.
- B. Administrative/clerical costs. The review of the BMP operations and maintenance plan by the Municipal Engineer. The site inspections including, but not limited to preconstruction meetings, inspections during construction of stormwater BMPs, and final inspection upon completion of the stormwater BMPs.

§ 142-42. Definitions and word usage.

- A. Interpretation. The word "person" includes a corporation, association, partnership or individual. The words "shall" and "will" are mandatory; the word "may" is permissive. The word "building" includes structure or any part thereof. Words used in the present tense include the future tense. Words in the

masculine gender shall include the feminine gender.

B. Definitions. As used in this Part 2, the following terms shall have the meanings indicated:

ACT — The Stormwater Management Act (Act of October 4, 1978, P.L. 864 No. 167; 32 P.S. §§ 680.1 through 680.17, as amended by Act of May 24, 1984, No. 63).

AGRICULTURAL ACTIVITY — Activities associated with agriculture such as agricultural cultivation, agricultural operation, and animal heavy use areas. This includes the work of producing crops including tillage, land clearing, plowing, disking, harrowing, planting, harvesting crops or pasturing and raising of livestock and installation of conservation measures. Construction of new buildings or impervious area is not considered an agricultural activity.

APPLICANT — A landowner or developer (including his/her heirs, successors and assigns), as defined by the Pennsylvania Municipalities Planning Code, Act 247 of 1968, as amended by Act 170 of 1988, as further amended by Act 209 of 1990 and Act 131 of 1992, who has filed an application for development within the Borough of Baldwin.

BOROUGH ENGINEER — A professional engineer registered in the Commonwealth of Pennsylvania specializing in civil engineering and appointed by the Borough of Baldwin.

CHANNEL — A natural or artificial waterway which periodically or continuously contains moving water or which forms a connecting link between two bodies of water. It has a definite bed and banks which confine the water.

CONSERVATION DISTRICT (ACCD) — The Allegheny county conservation district.

COUNTY — Allegheny County, Pennsylvania.

CULVERT — A closed conduit for the free passage of surface drainage under a highway, railroad, canal or other embankment.

DEPARTMENT — The Allegheny County Planning Department.

DESIGN CRITERIA —

- (1) Engineering guidelines specifying construction details and materials.
- (2) Objectives results or limits which must be met by a facility, structure, or process in performance of its intended functions.

DESIGN STORM — The magnitude of precipitation from a storm event measured in probability of recurrence (e.g., twenty-five-year storm) and duration (e.g., 24 hours), and used in computing stormwater management control systems.

DETENTION — The slowing, dampening, or attenuating of runoff entering the natural drainage pattern or storm drainage system by temporarily holding water on a surface area such as detention basins, reservoirs, on roof tops, in streets, parking lots, or within the drainage system itself, and releasing the water at a desired rate of discharge.

DETENTION BASIN — A basin designed to retard stormwater runoff by temporarily storing the runoff and releasing it at a predetermined rate. A "detention basin" can be designed to drain completely after a storm event, or it can be designed to contain a permanent pool of water, in which case it is called a "retention basin."

DEVELOPMENT — Any activity, construction, alteration, change in land use or similar action that affects stormwater runoff characteristics.

DEVELOPMENT SITE — A lot, parcel or tract of land on which development is taking place or is proposed.

DISCHARGE — Rate of flow, specifically fluid flow; a volume of fluid flowing from a conduit or channel, or being released from detention storage, per unit of time; commonly expressed as cubic feet per second (cfs), million gallons per day (mgd), gallons per minute (gpm). See also "rate of runoff".

DRAINAGE — Interception and removal of excess surface water or groundwater from land by artificial or natural means.

DRAINAGE AREA — The contributing land area to a single drainage basin, expressed in acres, square miles, or other units of area; also called a "catchment area", "watershed", or "river basin"; the land area served by a drainage system or by a watercourse receiving storm and surface water, also called "subarea".

DRAINAGE BASIN — The land area from which water is carried off by a natural drainage system; also called a "watershed" or "catchment area".

DRAINAGE EASEMENT — A right granted by a landowner to a grantee allowing the use of private land for stormwater management purposes.

ENCROACHMENT — Any structure or activity which in any manner changes, expands or diminishes, the course, current or cross section of any watercourse, floodway or body of water.

EROSION — Wearing away of the lands by running, water, glaciers, winds and waves.

EROSION CONTROL — The application of measures to reduce erosion of land surfaces.

FLOODPLAIN — A normally dry land area adjacent to stream channels that is susceptible to inundation by overbank stream flows. For regulatory purposes, the Pennsylvania Flood Plain Management Act (Act of October 4, 1978, P.L. 851, No. 166)⁸³ and regulations pursuant to the Act define the floodplain as the area inundated by a one-hundred-year flood and delineated on a map by FEMA (Federal Emergency Management Agency) or by the applicant in accordance with Borough ordinance requirements.

FOREST MANAGEMENT or TIMBER OPERATIONS — Planning and activities necessary for the management of forestland. These include conducting a timber inventory, preparation of forest management plans, silvicultural treatment, cutting budgets, logging road design and construction, timber harvesting, site preparation, and reforestation.

GROUND COVER — Materials covering the ground surface.

GROUND WATER — Subsurface water occupying the saturation zone, from which wells and springs are fed.

GROUND WATER RECHARGE — Replenishment of ground water naturally by precipitation or runoff or artificially by spreading or injection.

HYDRAULICS — The branch of science concerned with the mechanics of fluids, especially liquids. As applied in stormwater management, the study of the characteristics of water flow in, and conveyance capacity of, a watercourse, considering such factors as depth, velocity and turbulence.

HYDROGRAPH — A graph showing the quantity of runoff at a specific point in time during a rainfall event.

HYDROLOGIC SOIL GROUP — Infiltration rates of soils vary widely and are affected by

83. Editor's Note: See 32 P.S. 3679-101 et seq.

subsurface permeability as well as surface intake rates. Soils are classified into four HSGs (A, B, C, and D) according to their minimum infiltration rate, which is obtained for bare soil after prolonged wetting. The NRCS defines the four groups and provides a list of most of the soils in the United States and their group classification. The soils in the area of the development site may be identified from a soil survey report that can be obtained from local NRCS offices or conservation district offices. Soils become less pervious as the HSG varies from A to D (NRCS).

HYDROLOGY — The science dealing with the waters of the earth and their distribution and circulation through the hydrosphere (above, on or within the earth). Engineering hydrology deals with the application of hydrologic concepts to the design of projects for use and control of water, as well as the calculation of the rates of stormwater runoff.

IMPERVIOUS MATERIAL or SURFACE — Material which resists the entrance or passing through of water or other liquids. Some examples: pavement or roofs.

INFILTRATION —

- (1) The flow or movement of water through the interstices or pores of a soil or other porous medium.
- (2) The absorption of liquid by the soil.

INTERMITTENT FLOW — Flow that starts and stops again at different intervals.

LAND DEVELOPMENT — Any of the following activities:

- (1) The improvement of one lot or two or more contiguous lots, tracts or parcels or land for any purpose involving:
 - (a) A group of two or more residential or nonresidential buildings, whether proposed initially or cumulatively, or a single nonresidential building on a lot or lots regardless of the number of occupants, or tenure; or
 - (b) The division or allocation of land or space, whether initially or cumulatively, between or among two or more existing or prospective occupants by means or, for the purpose of streets, common areas, leaseholds, condominiums, building groups or other features.
- (2) A subdivision of land.

LAND DISTURBANCE — Any activity involving grading, tilling, digging or filling or stripping of vegetation; or any other activity which causes land to be exposed to the danger of erosion or changed water flow characteristics.

MAINTENANCE — The upkeep necessary for efficient operation of stormwater structures and facilities.

MUNICIPALITY — The Borough of Baldwin, Allegheny County, Pennsylvania.

NATURAL STORM WATER RUNOFF REGIME — A watershed where natural surface configurations, runoff characteristics and defined drainage conveyances have attained the conditions of equilibrium.

OUTFALL — The points at which stormwater runoff leaves streams, storm sewers, swales, or other well defined natural or artificial drainage features, as well as areas of dispersed overland flows within the site and/or leaving the site.

OUTLET STRUCTURE — A structure designed to control the volume of stormwater runoff from a

detention or retention facility during a specific length of time.

OWNER — The person or association which is responsible for the care of the structure(s) described.

PADEP — Pennsylvania Department of Environmental Protection.

PEAK RATE OF RUNOFF (or DISCHARGE) — The maximum rate of flow of water at a given point and time resulting from a predetermined storm.

PERFORMANCE STANDARD — A standard which establishes an end result or outcome which is to be achieved but does not prescribe specific means for achieving it. A specification standard, in contrast, is one which prescribes the exact characteristics to be used, leaving little choice to the applicant. The allowable release rate is an example of a performance standard; the design standards for storm sewers are specifications standards.

PERSON — An individual, partnership, public or private association or corporation, firm, trust, estate, municipality, government unit, public utility or any legal entity whatsoever which is recognized by law as the subject of rights and duties.

PERVIOUS MATERIAL — Material which permits the passage or entrance of water or other liquid. (i.e., grass, earth, stone, and trees).

POINT OF INTEREST — A point of hydrologic and/or hydraulic concern such as a bridge, culvert, or channel section, for which the rate of runoff is computed or measured.

PREAPPLICATION CONFERENCE — A meeting with the Borough prior to a formal application submittal.

PROJECT SITE — The specific area of land where any regulated earth disturbance activities in the municipality are planned, conducted or maintained.

QUALIFIED PERSON or QUALIFIED PROFESSIONAL — Any person licensed by the Pennsylvania Department of State or otherwise qualified by law to perform the work required by this Part 2.

RATE OF RUNOFF — Instantaneous measurement of water flow expressed as a unit of volume per unit of time, also referred to as discharge. Usually stated in cubic feet per second (cfs) or gallons per minute (gpm).

REGULATED EARTH DISTURBANCE ACTIVITY — Earth disturbance activity one acre or more with a point source discharge to surface waters or the municipality's storm sewer system, or five acres or more regardless of the planned runoff. This includes earth disturbance on any portion of, part, or during any stage of, a larger common plan of development. This only includes road maintenance activities involving 25 acres or more or earth disturbance.

RELEASE RATE PERCENTAGE — The watershed factor determined by comparing the maximum rate of runoff from a subbasin to the contributing rate of runoff to the watershed peak rate at specific points of interest.

RETENTION BASIN — A type of detention basin designed to contain a permanent pool of water.

RETURN PERIOD — The average interval in years over which an event of a given magnitude can be expected to recur.

ROUTING — Using an inflow hydrograph to simulate the water flow through a storage facility creating storage data and an outflow hydrograph.

RUNOFF — That part of precipitation which flows over the land.

RUNOFF CHARACTERISTICS — The surface components of any watershed which affect the rate, amount, and direction of stormwater runoff. These may include, but are not limited to, vegetation, soils, slopes, and manmade landscape alterations.

SCS — Soil Conservation Service, United States Department of Agriculture.⁸⁴

SEDIMENT — Solid material, both mineral and organic, that is in suspension, is being transported, or has been removed from its site or origin by air, water, gravity, or ice and has come to rest on the earth's surface.

SEDIMENTATION — The process by which mineral or organic matter is accumulated or deposited by moving water, wind or gravity.

SOIL-COVER COMPLEX METHOD — A method of runoff computation developed by the United States Soil Conservation Service and specifically found in its publication, Urban Hydrology for Small Watersheds, Technical Release No. 55, SCS (or most current edition). There are several runoff models which implement this methodology and it is not limited to the TR-55.

STORAGE FACILITY — See "detention basin."

STORM FREQUENCY — See "design storm."

STORM SEWER — A pipe, culvert or underground open channel that carries intercepted surface runoff, street water, and other wash waters, or drainage, but excludes domestic sewage and industrial wastes.

STORMWATER COLLECTION/CONVEYANCE SYSTEM — Natural or engineered structures which collect and transport stormwater through or from a drainage area to the point of final outlet, including but not limited to, any of the following: conduits and appurtenance features, canals, channels, ditches, streams, culverts, streets and pumping stations.

STORMWATER MANAGEMENT PLAN — The plan for managing stormwater runoff from a specific development site.

STORMWATER MANAGEMENT SITE PLAN — The plan prepared by the developer or his representative indicating how stormwater runoff will be managed at the development site in accordance with this Part 2. Stormwater management site plan will be designated as SWM site plan throughout this Part.

STORMWATER RUNOFF — Waters resulting from snow melt or precipitation within a drainage basin, flowing over the surface of the ground, collected in channels and conduits, and carried by receiving streams.

STREAM — A watercourse.

SUBAREA — A portion of the watershed that has similar hydrological characteristics and drains to a common point. Also called a drainage area.

SUBDIVISION — The division or redivision of a lot, tract or parcel of land by any means into two or more lots, tracts, parcels or other divisions of land including changes in existing lot lines for the purpose, whether immediate or future, of lease, partition by the court for distribution to heirs or devisees, transfer of subdivision by lease of land for agricultural purposes into parcels of more than 10 acres, not involving any new street or easement of access or any residential dwelling shall be exempted.

84. Editor's Note: Now the Natural Resources Conservation Service (NRCS) of the USDA.

SWALE — A low-lying stretch of land which gathers or carries surface water runoff.

UPLAND — The higher parts of a region or tract of land.

VOLUME OF STORMWATER RUNOFF — Quantity of water normally measured cubic feet or acre-feet, measured or determined analytically from runoff coefficients; rainfall/runoff ratios; and areas underneath hydrographs.

WATERCOURSE (WATERWAY) — Any channel of conveyance of surface water having a defined bed and banks, whether natural or artificial, with perennial or intermittent flow.

WATERS OF THIS COMMONWEALTH — Rivers, streams, creeks, rivulets, impoundments, ditches, watercourses, storm sewers, lakes, dammed water, wetlands, ponds, springs and other bodies or channels of conveyance of surface water, or parts thereof, whether natural or artificial, within or on the boundaries of this Commonwealth. (Source: The Clean Streams Law⁸⁵).

WATERSHED — The entire region or area drained by a river or other body of water whether natural or artificial. A "designated watershed" is an area delineated by PaDEP and approved by the Environmental Quality Board as one for which the county is required to prepare a watershed stormwater management plan in accordance with the Pennsylvania Stormwater Management Act.⁸⁶ Also called a drainage basin.

WETLANDS — Those areas that are inundated or saturated by surface or groundwater at a frequency and duration sufficient to support, and that under normal circumstances do support, a prevalence of vegetation typically adopted for life in saturated soil conditions, including swamps, marshes, bogs and similar areas. The term includes, but is not limited to, wetland area listed in the State Water Plan, the United States Fish and Wildlife Service Wetlands Inventory Maps, and the Pennsylvania Coastal Zone Management Plan and any wetland area designated by a river basin commission.

85. Editor's Note: See 35 P.S. § 691.1 et seq.

86. Editor's Note: See 32 P.S. § 680.101 et seq.

ARTICLE XI
Stormwater Plan Requirements

§ 142-43. General requirements.

The following general requirements shall be followed for all plan submissions:

- A. No final subdivision or land development plan shall be approved, no permit authorizing construction issued, or any earthmoving or land disturbance activity initiated until the final stormwater management plan for the development site is approved in accordance with the provisions of this Part 2.
- B. A development of a single lot for a single family home or estate must submit a simplified stormwater management plan. This plan must include a site location map, a soils map, the runoff calculations and the routing computations through the stormwater detention system. A site plan must be submitted with contours at two foot intervals and all natural features including any natural watercourse.
- C. The Borough Engineer shall review the proposed provisions for stormwater management for a single lot for a single family home or estate. Where the applicant is proposing to connect to an existing storm sewer, the applicant shall demonstrate that sufficient capacity exists in the storm sewer from the point of connection to the point of outlet in the natural drainage system. The Borough Engineer shall determine if the proposed development site is part of a larger parcel or tract for which a stormwater management plan was approved previously and, therefore, subject to any specific stormwater management control contained in the prior plan.
- D. At the time of the submission of an application by a developer for stormwater management review, the developer shall also submit a fee, which will be established from time to time by resolution of the Borough Council of the Borough of Baldwin. Such fees shall be in payment of the costs incurred by the Borough for the review by the Borough Engineer of the development plan, for any legal fees incurred in preparation of development plan agreements, and other services, which shall be established by resolution of the Borough Council from time to time, and the cost of issuing permits related to the plan.
- E. Techniques described in Appendix E (Low Impact Development) of this chapter are encouraged, because they reduce the costs of complying with the requirements of this Part 2 and the state water quality requirements.
- F. In conjunction with meeting the requirements of this Part 2, the applicant shall refer to and meet all conditions and requirements set forth in the Borough of Baldwin Municipal Separate Storm Sewer System (MS4) Prohibited Discharge Ordinance.
- G. In conjunction with meeting the requirements of this Part 2, the Applicant shall refer to and meet all conditions and requirements set forth in the Borough of Baldwin Total Maximum Daily Load (TMDL) Plan as adopted and revised.

§ 142-44. Criteria for small developments.

- A. At the time of application, the Borough Engineer shall determine if the subdivision of land development qualifies as a "small development" and therefore is eligible for a simplified stormwater management plan submission. For the purposes of this article, a small development is as follows: any subdivision or land development which results (or will result when fully constructed) in the creation of 5,000 or less square feet of impervious surface area shall be classified as a small development and

is exempt from a stormwater management plan submission. Small developments must provide safe management of stormwater runoff in accordance with the performance standard of this article and as approved by the Borough. Any stormwater management facilities constructed as part of the development shall be designed to control the peak pre-development stormwater runoff for the one-, two-, ten-, twenty-five-, and one-hundred-year storm. The detention facility must be able to safely pass the post development one-hundred-year storm peak discharge. The facility must provide an emergency outlet which can discharge the peak runoff for the undetained post development one-hundred-year storm.

- B. Applications for small developments shall include a plan which describes, narratively and graphically, the type and location of proposed on site stormwater management techniques or the proposed connection to an existing storm sewer system. The plan should show accurately site boundaries, contours at five-foot intervals for areas of greater than fifteen-percent slope gradient and at two-foot intervals for areas with less than fifteen-percent slope, location of watershed and/or subarea boundaries on the site (if applicable); and any watercourses, flood plains or exiting drainage facilities or structures located on the site.
- C. The predevelopment and post-development calculations which show the amount of increase impervious area for the land development must be submitted prior to receiving an exception from submission of a stormwater management plan.
- D. If applicable, a copy of the PaDEP stream encroachment permit and all supporting calculations must be submitted prior to an exemption.
- E. If the land development discharges its runoff into a floodway or a natural or manmade swale or ditch, and is located upstream of a known area of continuous flooding, the calculations showing no increase in the peak water surface elevation at the point of flooding shall be submitted for review.
- F. The Borough Engineer shall review and approve the proposed provisions for stormwater management for a small development. Where the applicant is proposing to connect to an existing storm sewer, the applicant shall demonstrate that sufficient capacity exists in the storm sewer from the point of connection to the point of outlet in the natural drainage system. The Borough Engineer shall determine if the proposed development site is part of a larger parcel or tract for which a stormwater management plan was approved previously, and therefore subject to any specific stormwater management control contained in the prior plan.
- G. For a parcel or tract of land held under single ownership, only one application for a small development, as defined above, shall be permitted before requiring a stormwater management plan for the entire parcel. A project cannot be phased to circumvent the stormwater requirements by using the exemption for small developments. Stormwater for phased projects will be looked at as a whole.

§ 142-45. Municipal Separate Storm Sewer System Ordinance.

In conjunction with meeting the requirements of this Part 2, the applicant shall refer to and meet all conditions and requirements set forth in the Borough of Baldwin's Municipal Separate Storm Sewer System (MS4) Prohibited Discharge Ordinance.

ARTICLE XII

Stormwater Plan Contents: Preliminary Plan**§ 142-46. General format.**

The stormwater management plan shall be prepared using the general performance and technical standards requirements for plan format contained in Part 1, the Subdivision and Land Development Ordinance, and in this article with the following additions:

- A. Watershed location map: Provide a key map showing the location of the development site within the watershed(s) and watershed(s) subareas(s). On all site drawings, show the boundaries of the watershed(s) and subarea(s) as they are located on the development site and identify watershed name(s) and subarea number(s). Example: Use a USGS map with the watershed, watershed subareas, and the subject property all outlined and designated.
- B. Subwatershed map: A plan must be submitted showing all the drainage areas and subwatersheds for the pre- and post-development peak runoff calculations. Example: Use the site plan and draw the watersheds and subwatersheds on the plan.
- C. Floodplain boundaries: Identify one-hundred-year floodplain on the development site as shown on the FEMA mapping where applicable. In the case where no FEMA mapping exists for a watercourse that borders the proposed development site, the applicant's determination of the one-hundred-year floodplain for any watercourse or water body on the development site shall be used.
- D. Natural features: Show all bodies of water (natural and artificial), watercourses (permanent and intermittent), swales, wetlands and other natural drainage courses on the development site, or which will be affected by runoff from the development.
- E. Soils: Provide a map showing soil types and boundaries within the development site (consult county, SCS, U.S. Geologic Survey for information). The soils must be defined on the plan.
- F. Contours: Show existing and final contours at intervals of two feet; in areas with slopes greater than 15%, five-foot contour intervals may be used.
- G. Stormwater management controls: Show any existing stormwater management and/or drainage structures, such as storm sewers, swales, culverts, etc., which are located on the development site, or which are located off site but will be affected by runoff from the development.
- H. Wetlands: Show any areas on the plan which have soils with hydric inclusions, are shown on the National Wetlands Inventory Map and/or support common wetland plants. These areas must be delineated by a registered professional engineer who specializes in this field.
- I. Appendix A.⁸⁷ The preliminary stormwater management plan checklist must be completed and submitted.
- J. A Soil Erosion and Sedimentation Pollution Control Plan or NPDES Plan in accordance with Chapter 102 of PaDEP Administrative Code Title 25 as authorized by the Clean Streams Law, Act 222,⁸⁸ amended, and current Borough Erosion and Sedimentation Control Ordinance⁸⁹ must be submitted.

87. Editor's Note: Appendix A is included at the end of this chapter.

88. Editor's Note: See 35 P.S. § 69.11 et seq.

89. Editor's Note: See Ch. 87, Erosion and Sediment Control.

- K. Land cover: Show existing and final land cover classifications as necessary to support and illustrate the runoff calculations performed.
- L. Drainage area delineations: Show the boundaries of the drainage areas employed in the runoff calculations performed.
- M. Stormwater management controls: Show any existing stormwater management or drainage controls and/or structures, such as sanitary and storm sewers, swales, culverts, etc., which are located on the development site, or which are located off site but will be affected by runoff from the development.
- N. DEP has regulations that require municipalities to ensure design, implementation and maintenance of best management practices (BMPs) that control runoff from new development and redevelopment after regulated earth disturbance activities are complete. These requirements include the need to implement post-construction with assurance of long-term operations and maintenance of those BMPs.

§ 142-47. Construction criteria for stormwater control facilities.

Stormwater management facilities shall be constructed in accordance with the following minimum specifications:

- A. All workmanship and materials shall conform to the borough construction standards. In addition, all workmanship and materials shall conform to the latest edition of PennDOT Form 408 and be supplied by manufacturers or suppliers listed in PennDOT's Bulletin 15.
- B. All connections to existing storm sewer pipes shall be made by construction of a suitable junction box (inlet or manhole) to provide access for clean-out. No blind connections shall be permitted.
- C. All pipe outlets shall discharge onto a stone riprap blanket to prevent erosion of soil. Riprap shall be sized considering pipe exit velocities plus a factor of safety of 1.5.
- D. The discharge of stormwater runoff shall be to a well-defined drainage course which has a defined bed and bank. If stormwater runoff cannot be discharged to a defined drainage course, documentation of written recorded drainage easement permission from each downstream property owner shall be provided for all properties between the source of discharge and the defined drainage course.

§ 142-48. Professional certification.

The stormwater management plan (including all calculations) must be prepared, signed and sealed by a registered professional engineer, or land surveyor with training and expertise in hydrology and hydraulics, or such other professional persons as are qualified to make certification under the laws of Pennsylvania. The preparer of the stormwater management plan must fill out and submit Appendix C⁹⁰ with said plan.

§ 142-49. Runoff calculations.

- A. Runoff calculations are the acceptable methods of calculation for use in determining the stormwater runoff correspondence with recommendations of the Monongahela River Watershed Plan, prepared by the county, in order to maintain a uniform, watershed wide approach. The following methods for calculating pre- and post-development runoff rates have been stipulated in the standards and criteria of the watershed plan:

- (1) Methods of runoff calculations, such as:

90. Editor's Note: Appendix C is included at the end of of this chapter.

- (a) The Modified Rational Method may be used for drainage areas less than or equal to three acres.
 - (b) The SCS TR-55, TR-20, HEC-1 Virginia Tech/Penn State Runoff Model or the Penn State Runoff Model must be used for all drainage areas greater than three acres.
- B. All pertinent information used to generate the pre- and post-developed discharge rates must be included with the stormwater management plan. Also, the calculations for the sizing of the stormwater control facilities must be submitted with the stormwater management plan.

§ 142-50. Detention facility routings.

- A. All inflow hydrographs to detention facilities must be routed using methodology that analyzes detention storage and outflow simultaneously with respect to time. The modified-puls method or approved equal, as found in Haested Method's Pond 2 or the Army Corps of Engineers HEC-1, is recommended.
- B. The following provisions shall be considered the overriding performance standards against which all proposed stormwater control measures shall be evaluated, and they shall apply to all areas of the borough.
- C. Stormwater shall not be permitted, as a result of development undertaken after adoption of this Part 2 to collect upon any property, or to pass from one property to another in a concentrated flow without benefit of a legal easement, or to cross a public street on the surface.
- D. Any landowner and any person engaged in the alteration or development of land which may affect stormwater runoff characteristics shall implement such measures as are reasonably necessary to prevent injury to health, safety or other property. Such measures shall include such actions as are required:
 - (1) To assure that the maximum rate of stormwater runoff is no greater after development than prior to development activities; and
 - (2) To manage the quality, velocity and direction of resulting stormwater runoff in a manner which will not adversely impact the health on, or value of, any affected properties.
- E. In the case of a development in which the total of the building and paved surfaces on the site exceed 10,000 square feet, the developer shall provide as part of the design a stormwater management narrative signed and sealed by an engineer licensed in the Commonwealth of Pennsylvania. The stormwater management narrative shall include an analysis of both pre- and post-developed runoff conditions.
 - (1) For the analysis of redevelopment projects 20% of the existing impervious surface shall be considered meadow in good condition.
 - (2) Post-development runoff rates after development shall not exceed the pre-developed runoff rates including the reduction in impervious surface required for redevelopment projects.

§ 142-51. Stormwater controls.

All proposed stormwater runoff control measures must be shown on the plan, including methods for collecting, conveying and storing stormwater runoff on site which are to be used both during and after construction. Erosion and sedimentation controls must be shown on a separate plan. The preliminary plan

should provide information on the general type, location, sizing, etc., of all proposed facilities and their relationship to the existing watershed drainage system.

- A. If the development is to be constructed in stages, the applicant must demonstrate that stormwater facilities will be installed to manage stormwater runoff safely during each stage of development.
- B. A schedule for the installation of all temporary and permanent stormwater control measures and devices shall be submitted.
- C. If appropriate, a justification should be submitted as to why any preferred stormwater management techniques, as listed in § 142-66, are not proposed for use.

§ 142-52. Easements, rights-of-way, deed restrictions.

All existing and proposed easements and rights-of-way for drainage and/or access to stormwater control facilities shall be shown and the proposed owner identified. Show any areas subject to special deed restrictions relative to or affecting stormwater management on the development site.

- A. Stormwater management easements are required for all areas used for off site stormwater control, unless a waiver is granted by the municipality.
- B. Stormwater management easements shall be provided by the property owner if necessary for access for inspections and maintenance, or preservation of stormwater runoff conveyance, infiltration, and detention areas and other BMPs, by persons other than the property owner. The purpose of the easement shall be specified in any agreement under Section 405.
- C. If a conservation easement is provided, the long-term ownership, access, maintenance, and use restrictions must be identified on the recording plan.

§ 142-53. Other permits and approvals.

- A. A list of any approvals/permits relative to stormwater management that will be required from other governmental agencies (e.g., a water obstruction permit from PaDEP or approval from Allegheny County Planning), and anticipated dates of submission/receipt should be included with the preliminary plan submission. Copies of applications must be submitted to the borough.
- B. A list of any permits relative to wetlands along with a wetlands study must be submitted to the borough if wetlands are found on the development site. The wetlands study must be prepared, signed and sealed by a person certified to do such work.

§ 142-54. Maintenance program.

The preliminary application shall contain a proposed maintenance plan for all stormwater control facilities, in accordance with the following:

- A. Identify the proposed ownership entity (e.g., municipality, property owner, a homeowners, association, other management entity).
- B. If ownership is to be an entity other than the borough, include a maintenance program for all facilities, outlining the type of maintenance activities, probable frequencies, personnel and equipment requirements, and estimated annual maintenance costs.
- C. Identify method of financing continuing operation and maintenance if facility is to be owned by other

than the borough or other governmental agency.

- D. Include copies of any legal agreements required to implement the maintenance program and, if applicable, copies of the maintenance agreement as required by Article XVI of this Part 2 for all facilities.

§ 142-55. Financial guaranties.

Submit financial guaranties in accordance with the provisions of Article XVI of this Part 2.

ARTICLE XIII
Stormwater Plan Contents: Final Plan

§ 142-56. Required documentation.

- A. General requirements. The final stormwater management plan shall be prepared using the general performance and technical standards and requirements for plan format contained in Part 1, the Subdivision and Land Development Ordinance, and in this article with the following additions:
- (1) All information pertaining to stormwater management from the preliminary plan along with any changes.
 - (2) Final maps showing the exact nature and location of all temporary and permanent stormwater management controls along with design and construction specifications. Details for the construction of all facilities shall be included as part of the construction drawings.
 - (3) A schedule for the installation of all temporary and permanent stormwater control measures and devices.
 - (4) An accurate survey showing all current and proposed easements and rights-of-way and copies of all proposed deed restrictions.
 - (5) A maintenance program establishing ownership and maintenance responsibilities for all stormwater control facilities (identify specific person or entity) and detailing financial requirements and sources of funding. Submit any legal agreements required to implement the maintenance program and copies of the maintenance agreement as specified by this article.
 - (6) Financial guaranties, to ensure that all stormwater controls are installed properly and functioning satisfactorily.
 - (7) Anything else within reason that might be required by the Borough Engineer and/or Borough of Baldwin to effectuate the purposes of this Part 2.
 - (8) Appendix B. The final stormwater management plan checklist must be completed and submitted.⁹¹
 - (9) Notification of adjacent property owners.
- B. Additional information. The information requested in Appendixes A, B and C must be submitted.⁹²

91. Editor's Note: Appendix B is included at the end of this chapter.

92. Editor's Note: Said Appendixes are included at the end of this chapter.

ARTICLE XIV
Stormwater Plan Review Procedures

§ 142-57. Preapplication phase.

- A. During the preapplication conference, applicants are encouraged to consult with the Borough Engineer, the Allegheny County Planning Department, and the county conservation district on the applicable regulations and techniques for safely managing stormwater runoff from the development site in a manner consistent with the Borough ordinances. These agencies may be helpful in providing the data that is necessary for preparing the stormwater management plan or the development site.
- B. Applicants are encouraged to submit a sketch plan with a narrative description of the proposed stormwater management controls for general guidance and discussion with the Borough and other agencies.
- C. The preapplication phase is not mandatory, and any review comments provided by Borough or other agencies are advisory only and do not constitute any binding action on the part of the Borough or any other agency.

§ 142-58. Preliminary and final stormwater plan reviews.

- A. Preliminary and final plans required. Stormwater management plans, in accordance with the requirements of this Part 2, will be submitted with the preliminary and final subdivision or land development plan application to the Borough Secretary, together with the appropriate fees.
- B. Review by Borough Engineer and Conservation District. Preliminary and final stormwater management plans will be reviewed by the Borough Engineer.
- C. Notification of affected municipalities. If, during the review of the proposed stormwater management plan, the Borough determines that properties in adjacent municipalities may be affected by the stormwater runoff and proposed management system for the site, the applicant will notify the affected municipality(ies) and provide an opportunity to submit comments as part of the preliminary or final plan reviews. Copies of the plans will be made available to the municipalities upon request. Comments received will be submitted to the Planning Commission and Borough Council.
- D. Borough Engineer's review. The Borough Engineer shall provide a recommendation to approve or disapprove the preliminary and final stormwater management plan based on the requirements of the Borough's ordinances, the standards and criteria of the watershed plan and good engineering practice. The Engineer shall submit a written report, along with supporting documentation, to the Borough Planning Commission for its consideration as part of the overall subdivision or land development plan review. In the cases where the Borough will be responsible for the maintenance of the stormwater management facility, the Borough Engineer shall also prepare a recommended maintenance program for review and approval by Council.
- E. Approval of stormwater plan required for subdivision and land development approval. No preliminary or final approval shall be granted for the overall subdivision or land development application until a stormwater management plan for the site has been approved.
- F. Permits required from other governmental agencies. Where the subdivision or land development application requires a water obstruction or erosion/sedimentation permit, then final subdivision or land development plan approval shall be conditional upon receipt of such permits. However, no building permit shall be issued, or construction started, until the permits are received and copies filed

with the Borough. Approval from Allegheny county conservation district or the Pennsylvania Department of Environmental Protection for Soil and Erosion is required prior to construction.

G. County planning review.

- (1) The Borough shall forward a copy of the stormwater plan, along with all runoff calculations, shall be forwarded to the Allegheny County Planning Department. A report of the findings will be returned to the Borough within 30 days.
- (2) If the Allegheny County Planning Department determines that the plan fails to comply with the watershed standards and criteria or that a possibility exists for harmful downstream impacts from the development site, the applicant will be advised so that proposed stormwater management controls can be modified. The Borough Engineer shall not recommend approval of the development site's stormwater management plan until it receives a positive review from the County Planning Department.

H. Status of the Engineer's determination. The recommendation of approval/disapproval of the site's stormwater management plan by the Borough Engineer shall be considered final. The governing body shall not reverse the engineer's determination by approval or disapproving the site's stormwater management plan or any specific control measure in contradiction to the engineer's action. The governing body may request modifications or alternative approaches to the stormwater management controls, provided that these are agreed to by the Borough Engineer and the applicant's engineer.

§ 142-59. Status of stormwater plan after final approval.

Upon recording of the final plat, the applicant may start to install or implement the approved stormwater management controls, subject to the provisions of the above. If site development or building construction does not begin within two years of the date of final approval of the subdivision or land development plan, then before doing so, the applicant shall resubmit the stormwater management plans to verify that no condition has changed within the watershed that would affect the feasibility or effectiveness of the previously approved stormwater management controls. Further, if for any reason development activities are suspended for two years or more, then the same requirement for resubmission of the stormwater management plan shall apply. The terms of these subsequent reviews shall be subject to the provisions of this Part 2 and any amended additional ordinances subsequently passed.

§ 142-60. Stormwater plan modifications.

Procedures for approving plan modifications. Requests for modifications in the final approved stormwater management controls shall be submitted to the Borough Engineer as follows:

- A. If the request is initiated before construction begins, the stormwater plan must be resubmitted and reviewed according to the original procedures.
- B. If the request is initiated after construction is underway, the Borough Engineer shall have the authority to approve or disapprove the modification, based on field inspection, provided that the request changes in stormwater controls do not result in any modifications to other approved borough land use/development requirements. The Borough Engineer shall maintain a record of all changes approved for the stormwater management controls and shall submit these to Borough Council with the final as-built plans for the development, prior to the acceptance of any improvements by the Borough and/or the release of any bond money for improvements being constructed. If no bond money was required, this information must be submitted prior to the Borough's final inspection of the plan is completed and approval is granted.

ARTICLE XV

Stormwater Management Performance Standards**§ 142-61. Stormwater zones: Monongahela River Watershed.**

- A. For purposes of stormwater management, the municipality of Baldwin Borough is divided into stormwater management release rate zones. These zones are designated in the Monongahela River Watershed Plan, and a map of these zones may be found in Appendix D⁹³ of this chapter.

- (1) The following release rate zones are located within Baldwin Borough:

Zone 2	Zone 21
Zone 4	Zone 22
Zone 6	Zone 24
Zone 9	Zone 32
Zone 12	Zone 34
Zone 15	Zone 35
	Zone 43

- (2) One or more of these districts may be further subdivided into subareas which have similar hydrological characteristics and drain to a common point.

- B. The location and boundaries of the watershed(s) and subareas are shown on the Municipal Stormwater Management District Zone Map which is hereby adopted as part of this section. A copy of this District Map is available through the Borough Office.

§ 142-62. General performance standards.

The following provisions shall be considered the overriding performance standards against which all proposed stormwater control measures shall be evaluated:

- A. Any landowner and any person engaged in the alteration or development of land which may affect stormwater runoff characteristics shall implement such measures as are reasonably necessary to prevent injury to health, safety or other property. Such measures shall include actions as required and shall be evaluated according to the following standards:
- (1) To assure that the maximum rate of stormwater runoff is no greater after development than prior to development activities; or
 - (2) To manage the quantity, velocity and direction of resulting stormwater runoff in a manner which otherwise adequately protects health and property from possible injury.
- B. The stormwater management plan for the development site must consider all the stormwater runoff flowing over the site.
- C. No discharge of toxic materials into any stormwater management system shall be permitted. Where required by federal and state regulation, the landowner or developer shall be responsible for obtaining a NPDES permit for stormwater discharges.

93. Editor's Note: Appendix D is included at the end of this chapter.

- D. For any development that is to be constructed in stages, the applicant must demonstrate that stormwater facilities shall be installed to manage stormwater runoff safely during each stage of development.
- E. For the analysis of redevelopment projects 20% of the existing impervious surface shall be considered meadow in good condition.
- F. Where existing storm sewers are reasonably accessible, proposed developments shall be required to connect with the storm sewer system unless insufficient capacity or other reasons can be demonstrated to prevent the connection. The Borough Engineer shall determine what is reasonably accessible.

§ 142-63. Technical performance standards.

The stormwater performance standards contained in this article are intended to implement the standards and criteria contained in the Monongahela River Stormwater Management plan, adopted and approved in accordance with the Pennsylvania Storm Water Management Act.⁹⁴ If there is any discrepancy between the provisions of this section and the standards and criteria of the plan, or if the watershed plan is subsequently amended, then the standards/criteria of the current watershed plan shall govern.

§ 142-64. Storm frequencies.

- A. Stormwater management facilities on all development sites shall control the peak stormwater discharge for the one-, two-, ten-, twenty-five-, fifty-, and one-hundred-year storm frequencies. The SCS twenty-four-hour Type II Rainfall Distribution shall be used for analyzing stormwater runoff for both pre- and post-development conditions. The twenty-four-hour total rainfall for these storm frequencies in the watershed are:

Design Storm Return Period	24-Hour Rainfall Depth in Inches
1-year	1.97
2-year	2.50
10-year	3.61
25-year	4.31
50-year	4.40
100-year	5.71

- B. The Modified Rational Method shall be used for analyzing the stormwater runoff for small watersheds as specified in this article. The rainfall intensities for the design storms are as specified. (For additional information or data on other return periods, consult the Rainfall Duration Frequency Tables for Pennsylvania, produced by PaDEP, Office of Resource Management, Division of Stormwater Management, Harrisburg, February 1983, or in its most recent update.)

§ 142-65. Calculation methods.

- A. Development sites. For the purposes of computing peak discharges and runoff hydrographs from development sites and drainage areas larger than three acres, calculations shall be performed using

94. Editor's Note: See 32 P.S. § 680.1 et seq.

the methodologies presented in SCS Publication, Technical Release 55 (TR 55) or TR 20, HEC 1, Penn State Runoff Method (PSRM), Modified Rational Method, or an approved method for analyzing these types of watersheds. For development sites less than three acres, the Rational Method may be utilized using the design storm criteria shown in § 142-63 or an approved method for analyzing these types of watersheds. The Borough may approve the use of simulation computer programs for the stormwater analysis and design. The appropriate calculations and worksheets or acceptable computer printouts as approved by the Borough must be submitted regardless of the methodology used for these calculations. An approved simulation of the modified puls (Haested Method Pond 2, HEC 1) routing methodology shall be used in analysis for routing the design storm hydrographs through the detention/retention facility. The proper stage/storage and stage/discharge and routed outflow hydrographs must be submitted for approval.

- B. Stormwater collection/conveyance facilities. For the purpose of designing storm sewers, open swales and other stormwater runoff collection and conveyance facilities, the Rational Method shall be applied. Rainfall intensities for a twenty-five-year design storm with a minimum five-minute duration must be used and should be obtained from the Pennsylvania Department of Transportation's Part II Manual, Chapter 10, Rainfall Intensity Charts. However, if the existing T_c is larger than five minutes, it should be used as the rainfall duration.
- C. Detention/retention basin. The inflow hydrograph shall be routed through the detention/retention facility by using the Modified Puls method or other recognized routing method subject to the approval of the Borough and the County. The routing and outflow hydrographs for each design storm must be submitted.
- D. Pre-development conditions. Pre-development conditions shall be assumed to be those which exist on any site at the time of adoption of the Monongahela River Stormwater Management Plan. Hydrologic conditions for all areas with pervious cover (i.e., fields, woods, lawn areas, pastures, cropland, etc.) shall be assumed to be in good condition, and the lowest recommended SCS runoff curve number (CN) shall be applied for all pervious land uses within the respective range for each land use and hydrologic soil group.

§ 142-66. Release rate percentage.

- A. Definition. The release rate percentage defines the percentage of the pre-development peak rate of runoff that can be discharged from an outfall on the site after development. It applies uniformly to all land development or alterations within a subarea.
- B. Procedure for use:
 - (1) Identify the specific subarea in which the development site is located from the watershed map located in Appendix D of this Part 2⁹⁵ and obtain the subarea release rate percentage from the following corresponding zone release rate percentages:

Assigned Release Rate Area	Release Rate Percentage
Zone 2	100
Zone 4	60
Zone 6	60

95. Editor's Note: Appendix D is included at the end of this chapter.

Assigned Release Rate Area	Release Rate Percentage
Zone 9	90
Zone 12	50
Zone 15	70
Zone 21	50
Zone 22	60
Zone 24	70
Zone 32	70
Zone 34	50
Zone 35	70
Zone 43	100

All other areas not located within an assigned zone by the Monongahela River Watershed Plan are assigned the release rate of 100%.

- (2) Compute the pre- and post-development runoff hydrographs for each stormwater outfall on the development site using an acceptable calculation method for the one-, two-, ten-, twenty-five-, fifty- and one-hundred-year storms. If the post-development peak runoff rate and the runoff volume is less than or equal to the pre-development peak runoff rate and volume, then additional stormwater control shall not be required at the outfall. If the post-development peak runoff rate and volume are greater than the pre-development peak runoff rate and volume, then stormwater detention shall be required. The maximum allowable release rate from the detention facility shall be calculated by multiplying the subarea release rate percentage by the pre-development rate of runoff from the development site for each of the four design storms.

§ 142-67. No-harm evaluation.

- A. An applicant may seek to exceed the otherwise applicable subarea release rate percentage by performing the "no-harm evaluation." This evaluation requires an independent engineering analysis to demonstrate that other reasonable options exist to prevent the occurrence of increased stormwater runoff discharge rates and/or velocities, or that measures can be provided to prevent increased stormwater discharge rates and/or velocities from increasing flood elevations and accelerating erosion at all downstream points in the watershed.
- B. A no-harm evaluation will be considered only in the following instances:
 - (1) In the Monongahela River Watershed: only in instances where the discharge to a stream channel from the development site occurs directly to the Monongahela River, to an adequately sized storm or combined sewer which discharges directly into the Monongahela River, or through a properly sized and designed regional stormwater detention facility.
- C. The analysis for the no-harm evaluation shall be submitted to the Municipal Engineer and the Allegheny County Planning Department for review and approval.
- D. The no-harm evaluation shall be prepared by a registered engineer who is experienced in hydrology and hydraulics. The no-harm evaluation analysis shall be completed using the following procedure.

E. The analysis shall be completed using an approved calculation methodology in the following manner:

- (1) Develop the runoff hydrograph(s) for the design storms of the site and areas tributary to it using the approved methodology for pre-development conditions using the land use characterizations contained in the Monongahela River Watershed Stormwater Management Plan.
- (2) Develop the post-development discharge hydrograph from the proposed site using the approved methodology.
- (3) Subtract the runoff hydrograph ordinates under pre-development conditions (Step 1) from the discharge hydrograph ordinates (Step 2), maintaining the time scales of both hydrographs for one-to-one correspondence.
- (4) Obtain the hydraulic model for the existing conditions for the Monongahela River Watershed from the county.
- (5) Locate the subbasin(s) in which the proposed development is located and into which the discharge hydrograph enters. If more than one subbasin receives this incremental flow, divide the flow accordingly.
- (6) Add the incremental increase computed in Step 3 to the runoff hydrograph of the subbasin(s) identified in Step 5.
- (7) Route the adjusted runoff hydrograph through the Monongahela River Watershed Model and note any increase in peak flows which would occur in downstream subbasins. If no increase is noted, then the no-harm has been demonstrated. If no increase is observed in peak flows, the increased potential for erosion and/or sedimentation in downstream channels resulting from any change in the flood hydrograph predicted by the model shall be evaluated. If no increased potential can be demonstrated by appropriated technical means, then the "No-Harm" exemption may be requested.
- (8) If an increase in peak flow is observed in any of the downstream subbasins or increased potential for erosion and/or sedimentation is indicated, the no-harm exemption shall not be granted.

§ 142-68. Design criteria for stormwater management controls.

A. General design guidelines.

- (1) Applicants may select runoff control techniques, or combinations of techniques, as provided in this Part 2, Stormwater Management Ordinance, which are most suitable to the level of stormwater runoff control required, the type of development, and the natural features of the site. Cost of maintenance shall be one of the considerations in the designs selected. All controls are subject to the approval of the Borough Engineer. The Engineer may request specific information on design and/or operating features of the proposed stormwater controls in order to determine their suitability and adequacy in terms of the standards of this Part 2.
- (2) In selecting and designing stormwater management systems and controls, applicants may be guided by the following references:
 - (a) Urban Hydrology for Small Watersheds, Technical Release No. 55, USDA, Soil Conservation Service, June 1986 (or most recent edition).
 - (b) Part II Design Manual, The Pennsylvania Department of Transportation, 1990 Edition (or

most recent update).

- (c) HEC 1 and HEC 2, U. S. Army Corps of Engineers, most recent edition.
 - (d) Soil Erosion and Sedimentation Control Manual, Pennsylvania Department of Environmental Resources, March 1982.
 - (e) Standards and Specifications for Soil Erosion and Sediment Control, Maryland Water Resources Administration, 1983.
 - (f) Urban Stormwater Management, Special Report No. 49, American Public Works Administration, 1981.
 - (g) Water Resources Protection Measures in Land Development - A Handbook, University of Delaware Water Resources Center, April 1974.
 - (h) Design and Construction of Sanitary and Storm Sewers, WPCF Manual of Practice No. 9, Water Pollution Control Federation, 1970.
- (3) The applicant should consider the effect on the proposed stormwater management techniques of any special soil conditions or geological hazards which may exist on the development site. In the event such conditions are identified on the development site, the Borough may require in-depth studies by a competent geotechnical engineer.
- (4) In developing a stormwater management plan for a particular site, stormwater controls shall be selected according to the following preference:
- (a) Infiltration of runoff on site.
 - (b) Stormwater detention/retention facilities.
- (5) Infiltration practices shall be used to the extent practicable to reduce peak runoff and promote groundwater recharge. A combination of successive practices may be used to achieve the applicable minimum control requirements. Justification shall be provided by the applicant for rejecting each of the preferred practices based on actual site conditions.

B. Criteria for stormwater detention facilities.

- (1) If detention facility(ies) are utilized for the development site, the facility(ies) shall be designed such that post-development peak runoff rates from the developed site are controlled to those rates defined by the subarea release rate percentage for the one-, two-, ten-, twenty-five-, fifty-, and one-hundred-year storm frequencies.
- (2) All detention facilities shall be equipped with outlet structures to provide discharge control for the four designated storm frequencies. Provisions shall also be made to safely pass the post-development one-hundred-year storm runoff in the event of an outlet structure failure without damaging or impairing the continued function of the facilities (i.e., impairing the continued function of the facilities). The facility(ies) must have an emergency outlet which is able to discharge the post-development one-hundred-year peak flow. Should any stormwater management facilities qualify as a dam under PaDEP Chapter 105 criteria, the facility shall be designed in accordance with those regulations and meet the regulations concerning dam safety.
- (3) Shared-storage facilities which provide detention of runoff for more than one development site may be considered within a single subarea. Such facilities shall meet the design criteria

contained in this section. In addition, runoff from the development sites involved shall be conveyed to the facility in a manner so as to avoid adverse impacts, such as flooding or erosion, to channels and properties located between the development site and the shared-storage facilities.

- (4) Where detention facilities will be utilized, multiple-use facilities such as lakes, ballfields or similar recreational uses, shall be considered first as storage facilities wherever feasible, subject to the approval of the Borough and Pennsylvania Department of Environmental Protection Chapter 105 Regulations.
- (5) Other considerations which should be incorporated into the design of the detention facilities include the following:
 - (a) Inflow and outflow structures should be designed and installed to prevent erosion, and bottoms of impoundment-type structures must be protected from soil erosion. All outlet velocities must be calculated and submitted. If riprap is used, the sizing calculations must be submitted.
 - (b) Control and removal of debris both in the storage structure and in all inlet or outlet devices must be a design consideration. Trash racks on the outlet structures are required to minimize debris that enters the structure.
 - (c) Inflow and outflow structures, pumping stations and other structures should be protected and designed to minimize safety hazards.
 - (d) The interior slope of a detention/retention basin shall be 3:1 (horizontal to vertical). The water depth at the perimeter of a storage pond should be limited to that which is safe for children. This is especially necessary if bank slopes are steep or if ponds are full and recirculating in dry periods. Restriction of access (fences, walls, etc.) may be necessary depending on the location of the facility.
 - (e) Detention/retention basins shall require a supporting report from a geotechnical engineer including design recommendations for embankment construction, interior and exterior slopes, drainage swales and infiltration areas, and shall be constructed under the supervision of the geotechnical engineer.
 - (f) Landscaping must be provided for the facility which harmonizes with the surrounding area. Landscaping of the pond embankment shall not be permitted.
 - (g) Facility must be accessible for maintenance purposes, considering the frequency and type of equipment that will be required. A maintenance schedule must be submitted and approved by the Borough.
 - (h) Details of the facility must be shown on the plan.
 - (i) A riprap channel with underdrain for low flows must be sized properly and provided within the pond.
 - (j) If an underground facility (i.e., tank, sump) is proposed, a cleanout manhole with steps must be provided.
 - (k) An emergency spillway must be provided for all detention/retention facilities. For aboveground basins, the spills must be sized to pass the entire one-hundred-year post-

development storm with one foot of freeboard.

- (l) Outlet control structures shall be constructed of reinforced concrete (cast-in-place, precast or block) and provided with trash racks approved by the Borough.
 - (m) All impoundment areas shall be adequately underdrained to prevent long-term ponding of water.
 - (n) All detention facilities shall be provided with an access road (with a legal easement) for maintenance purposes. Such roads shall be minimum of 10 feet wide, have a maximum grade of 15% and be of a stone or impervious surface.
 - (o) All pond outlet structures shall have suitable gaskets to prevent leakage and piping of water through the pond embankment. All storm pipe installed through the pond embankment must be constructed of reinforced concrete pipe.
 - (p) An as-built drawing shall be required for each stormwater detention facility constructed. (The drawing shall represent the volume of the facility and the stage-storage relationship.) The drawing shall be stamped by a registered professional engineer and submitted to the Borough within 60 days of the completion of the facility. No facility will be accepted until this requirement has been fulfilled.
 - (q) The exterior slope of a detention/retention pond shall not exceed three horizontal to one vertical.
 - (r) Normally dry, open-top, storage BMPs should drain in 24 hours to 72 hours.
 - (s) Infiltration BMPs should be spread out and shallow as much as practicable.
- C. Criteria for collection/conveyance facilities. All stormwater runoff collection or conveyance facilities, whether storm sewers or other open or closed channels, shall be designed in accordance with the following basic standards:
- (1) All sites shall be graded to provide drainage away from and around the structure in order to prevent any potential flooding damage.
 - (2) Lots located on the high side of streets shall extend roof and french drains to the storm sewer in the street or to the gutter line of the street if no sewer exists. Low side lots shall extend roof and french drains to a stormwater collection/conveyance system or natural watercourse in accordance with the approved stormwater management plan for the development site.
 - (3) Collection/conveyance facilities should not be installed parallel and close to the top or bottom of a major embankment to avoid the possibility of causing the embankment to fail.
 - (4) All collection/conveyance facilities shall be designed to convey the twenty-five-year storm peak flow rate from the contributing drainage area and to carry it to the nearest suitable outlet or natural watercourse. Off site conveyance shall be provided with easements to an existing storm sewer system or natural watercourse.
 - (5) Where drainage swales or open channels are used, they shall be suitably lined to prevent erosion and designed to avoid excessive velocities. Calculations must be presented for the velocities and it must be shown that the proposed surface for the swale is adequate.
 - (6) Wherever storm sewers are proposed to be utilized, they must comply with the following

criteria:

- (a) Designed to traverse under seeded and planted areas. If constructed within 10 feet of the road paving, walks or other surfaced areas, the drains shall have a narrow trench, and maximum compaction of backfill to prevent settlement of the superimposed surface or development.
- (b) Installed after excavating and filling in the area to be traversed is completed, unless the drain is installed in the original ground with a minimum of three feet cover and/or adequate protection during the fill construction.
- (c) Designed with cradle when traversing fill areas of indeterminate stability; designed with anchors when gradient exceeds 20%, and designed with encasement or special backfill requirements when traversing under a paved area.
- (d) Designed to adequately handle the anticipated stormwater flow and to be constructed and maintained economically. The minimum pipe size shall be 15 inches in diameter.
- (e) Drain pipe, trenching, bedding and backfilling requirements shall conform to the requirements of the Borough and/or applicable requirements of the Borough and/or applicable requirements of the Pennsylvania Department of Transportation Specifications, Publication 408, latest edition.
- (f) All pipe shall be made of either PVC, corrugated plastic pipe, corrugated plastic pipe with smooth interior walls, corrugated metal/steel or reinforced concrete. All corrugated metal pipe shall be polymer coated, with bonding and paved inverts where prone to erode. Pipe under a borough cartway shall be reinforced concrete pipe with a minimum diameter of 15 inches.
- (g) Storm inlets and structures shall be designed to be adequate, safe, self-cleaning and unobtrusive and shall be consistent with the standards of the Borough.
- (h) Appropriate grates shall be designed for all catch basins, stormwater inlets and other entrance appurtenances in accordance with borough specifications.
- (i) Manholes shall be designed so that the top shall be at finished grade and sloped to conform to slope of finished grade. Top castings of structures located in roads or parking areas shall be machined or installed to preclude rattling.
- (j) Where a proposed storm sewer connects with an existing storm sewer system, the applicant shall demonstrate that sufficient capacity exists in the downstream system to handle the additional stormwater flow.
- (k) Storm sewer outfalls shall be equipped with energy dissipation to prevent erosion and conform with applicable requirements of the PaDEP for stream encroachments (Chapter 105 of the Department's Rules and Regulations).

§ 142-69. Erosion and sedimentation controls.

Proposed erosion and sedimentation pollution control measures should be submitted with the stormwater management plan. These plans shall follow the guidelines set forth in the Borough's current Erosion and Sediment Pollution Control Ordinance under a separate cover. In addition, the plan shall be prepared in accordance with the Pennsylvania Erosion/Sedimentation Regulations (25 Pa. Code, Chapter 102) and the

standards and guidelines of the county conservation district.

- A. No regulated earth disturbance activities within the municipality shall commence until approval by the municipality of an erosion and sediment control plan for construction activities.
- B. DEP has regulations that require an erosion and sediment control plan for any earth disturbance activity of 5,000 square feet or more under 25 Pa. Code § 102.4(b).
- C. In addition, under 25 Pa. Code Chapter 92,⁹⁶ a DEP "NPDES Construction Activities" permit is required for Regulated Earth Disturbance activities.
- D. Evidence of any necessary permit(s) for regulated earth disturbance activities from the appropriate DEP regional office or county conservation district must be provided to the municipality. The issuance of an NPDES construction permit (or permit coverage under the statewide General Permit (PAG-2) satisfies the requirements Subsection C.
- E. A copy of the erosion and sediment control plan and any required, permit, as required by DEP regulations, shall be available at the project site at all times.

§ 142-70. As-built drawings.

Prior to releasing the final bond moneys, the Borough shall receive an as-built drawing, signed and scaled by a registered surveyor, and these plans shall include the following:

- A. The location of any roads or driveways constructed for the land development or single-family home.
- B. The location, tops and flow lines of all storm sewers constructed within the land development or single-family home.
- C. The location, depth and contours of the detention or retention facilities constructed for the land development or single-family home.
- D. A detail of the outlet structure for the detention or retention facility as constructed.
- E. The location and details of all post-construction stormwater management BMPs including water quality devices.
- F. A revised stormwater management report reflecting the final contours for a detention pond as constructed.

96. Editor's Note: Chapter 92 of Title 25 of the Pennsylvania Code was reserved 10-8-2010, effective 10-9-2010. It was replaced by Chapter 92a, National Pollutant Discharge Elimination System (NPDES) Permitting, Monitoring and Compliance.

ARTICLE XVI

Completion of Facilities and Maintenance**§ 142-71. Maintenance responsibilities.**

- A. The stormwater management plan for the development site shall establish responsibilities for the continuing operation and maintenance of all proposed stormwater control facilities. The proposed maintenance plan should be consistent with the general maintenance policies stated in this Part 2, the Borough Stormwater Management Ordinance, and also consistent with the following principles:
- (1) If a development consists of structures or lots which are to be separately owned and in which streets, sewers and other public improvements are to be dedicated to the Borough, stormwater control facilities should also be dedicated to and maintained by the Borough.
 - (2) If a development site is to be maintained in single ownership or if sewers and other public improvements are to be privately owned and maintained, then the ownership and maintenance of stormwater control facilities should be the responsibility of the owner or private management entity.
- B. The Borough Council shall make the final determination on the continuing maintenance responsibilities as part of the final application review based on the recommendation of the Planning Commission. The Council reserves the right to accept or reject the ownership and operating responsibility of any or all of the stormwater management controls.
- C. A security deposit in the sum of \$5,000 cash or certified check shall be delivered to the Borough and held by it pending the completion of the stormwater management facilities to ensure the final completion of the site plan development. In the event that the Borough Engineer shall determine that the aforementioned sum of \$5,000 may be insufficient because of the nature and size of the development, the Borough Engineer shall submit a proposal to the developer of the amount which the Engineer believes to be necessary for completion. In the event that the developer disagrees with the amount so proposed by the Borough Engineer, a third engineer may be retained to mediate the proposal and establish the amount required to be deposited which will ensure completion of the facilities. The cost incurred by retaining a mediator shall be billed to the developer.

§ 142-72. Maintenance agreement for privately owned stormwater facilities.

- A. Prior to final approval of the site's stormwater management plan, the property owner shall prepare and submit to the Borough Secretary a stormwater management agreement which will be referred to the Borough Engineer and to the Borough Solicitor for approval. In the event that the agreement shall be approved, it shall be submitted to the Recorder of Deeds for recording and shall be binding upon all successor owners or developers of the premises. The fees for recording the agreement shall be at the cost of the developer. The agreement shall stipulate that:
- (1) The owner shall maintain all facilities in accordance with the approved maintenance schedule and shall keep all facilities maintained in a safe and attractive manner.
 - (2) The owner shall convey to the Borough easements and/or rights-of-way to assure access for periodic inspections by the Borough and maintenance if required.
 - (3) The owner shall keep on file with the Borough the name, address and telephone number of the person or company responsible for maintenance activities; in the event of a change, new information will be submitted to the Borough within 10 days of the change.

- (4) The owner shall establish any special maintenance funds or other financing sources, in accordance with the approved maintenance plan.
 - (5) If the owner fails to maintain the stormwater control facilities, following due notice by the Borough to correct the problems, the Borough shall perform the necessary maintenance or corrective work. The owner shall reimburse the Borough for all costs or a lien shall be placed on the property.
- B. The Borough may require other items to be included in the agreement where determined necessary to guarantee the satisfactory maintenance of all facilities. The maintenance agreement shall be subject to the review and approval of the Borough Solicitor.

§ 142-73. Municipal Stormwater Maintenance Fund.

- A. Persons installing stormwater storage facilities shall be required to pay a specified amount to the Municipal Stormwater Maintenance Fund to help defray the costs of periodic inspections and maintenance expenses. The amount of the deposit shall be determined as follows:
- (1) If the storage facility is to be privately owned and maintained, the deposit shall cover the cost of periodic inspections performed by the Borough for a period of 10 years as estimated by the Borough Engineer. After that period of time, inspections will be performed at the expense of the municipality.
 - (2) If the storage facility is to be owned and maintained by the Borough, the deposit shall cover 100% of the estimated costs for maintenance and inspections for 10 years. The Borough Engineer will establish the estimated costs utilizing information submitted by the applicant.
 - (3) The amount of deposit to the fund shall be converted to present worth of the annual series values. The Borough Engineer shall determine the present worth equivalents which shall be subject to the approval of the Borough Council.
- B. If the storage facility is proposed that also serves as a recreation facility (e.g., ballfield, lake), the Borough may reduce or waive the amount of the maintenance fund deposit based upon the value of the land for public recreation purposes.
- C. If in the future, a storage facility (whether publicly or privately owned) is eliminated due to the installation of storm sewers or other storage facility, the unused portion of the maintenance fund deposit will be applied to the cost of abandoning the facility and connecting to the storm sewer system or other facility. Any amount of the deposit remaining after the costs of abandonment are paid will be returned to the depositor.

§ 142-74. Financial guaranties and dedication of public improvements.

- A. Guaranty of completion. A completion guarantee in the form of a bond, cash deposit, certified check or other negotiable securities acceptable to the Borough shall be filed. The guarantee shall cover all streets, sanitary sewers, stormwater management facilities, water systems, fire hydrants, sidewalks and other required improvements, it shall be in the amount and form prescribed by the Municipal Planning Code (Section 509).⁹⁷
- B. Release of completion guarantee. The procedures for requesting and obtaining a release of the

97. Editor's Note: See 53 P.S. § 10509.

completion guarantee shall be in a manner prescribed by the Municipalities Planning Code (Section 510).⁹⁸

- C. Default of completion guaranty. If improvements are not installed in accordance with the approved final plan, the governing body may enforce any corporate bond or other security by appropriate legal and equitable remedies. If proceeds of such bond or other security are insufficient to pay the cost of installing or making repairs or corrections to all the improvements covered by said security, the governing body may, at its option, install part of such improvements in all or part of the development and may institute appropriate legal or equitable action to recover the moneys necessary to complete the remainder of the improvements. All proceeds, whether resulting from the security or from any legal or equitable action brought against the developer, or both, shall be used solely for the installation of the improvements covered by such security and not for any other municipal purpose.
- D. Dedication of public improvements.
- (1) When streets, sanitary sewers, stormwater management facilities, waterlines or other required improvements in the development have been completed in accordance with the final approved plan, such improvements shall be deemed private until such time as they have been offered for dedication to the municipality and accepted by separate ordinance or resolution or until they have been condemned for use as a public facility.
 - (2) Prior to acceptance of any improvements or facilities, the Borough Engineer shall inspect it to ensure that it is constructed in accordance with the approved plan and is functioning properly. In the case of any stormwater control facility, it must be free of sediment and debris.
 - (3) The owner shall submit as-built plans for all facilities proposed for dedication.

98. Editor's Note: See 53 P.S. § 10510.

ARTICLE XVII

Inspection of Stormwater Management Controls**§ 142-75. Inspection procedures.**

- A. The Borough Engineer or a designated representative shall inspect the construction of the temporary and permanent stormwater management controls for the development site. The permittee shall notify the Borough Engineer 48 hours in advance of the completion of the following key development phases:
 - (1) At the completion of preliminary site preparation, including stripping of vegetation, stock piling of topsoil and construction of temporary stormwater management and erosion control facilities.
 - (2) At the completion of rough grading, but prior to placing topsoil, permanent drainage or other site development improvements and ground covers.
 - (3) During construction of the permanent stormwater facilities at such times as specified by the Borough Engineer.
 - (4) Completion of permanent stormwater management facilities, including established ground covers and plantings.
 - (5) Completion of any final grading, vegetative control measures or other site restoration work done in accordance with the approved plan and permit.
- B. No work shall commence on any subsequent phase until the preceding one has been inspected and approved. If there are deficiencies in any phase, the Borough Engineer shall issue a written description of the required corrections and stipulate the time by which they must be made.
- C. If during construction, the contractor or permittee identifies any site conditions such as subsurface drainage, which could affect the feasibility of the approved stormwater facilities, he must notify the Borough Engineer within 24 hours of the discovery of such condition and request a field inspection. The Borough Engineer shall determine if the condition requires a stormwater modification.
- D. In cases where stormwater facilities are to be installed in areas of landslide-prone soils or if other special site conditions exist, the Borough may require special precautions such as soil tests and core borings, full-time resident inspectors and/or similar measures. All costs of any such measures shall be borne by the permittee, developer and/or landowner.
- E. Inspection of all stormwater management BMP's shall be undertaken by a minimum of two persons at least two times per year, on or before March 1 and October 1, or after runoff events in excess of one inch of rainfall. Additional inspections will be required if it becomes apparent that facilities are not functioning properly. Corrective actions will then be taken as required to help ensure continuing operation of post-construction stormwater facilities. Any deficiencies noted in items inspected by the owner shall be documented and corrective actions taken by the owner. Written records of each maintenance action are to be retained for a minimum of five years.

ARTICLE XVIII
Disclaimer of Liability

§ 142-76. General disclaimer.

- A. Neither the granting of any approval under the stormwater management provisions of this Part 2 nor the compliance with the provisions of this Part 2 or with any condition imposed by a Borough official hereunder shall relieve any person from any responsibility for damage to persons or property resulting there from, or as otherwise imposed by law, nor impose any liability upon the Borough for damages to persons or property.
- B. The granting of a permit which includes any stormwater management facilities shall not constitute a representation, guaranty or warranty of any kind by the Borough, or by an official or employee thereof, of the practicability or safety of any structure, use or other plan proposed and shall create no liability upon or cause of action against such public body, official or employee for any damage that may result pursuant thereto.

ARTICLE XIX
Enforcement and Administration

§ 142-77. Enforcement.

This Part 2 shall be enforced by the Code of Enforcement Officer of the Borough of Baldwin who may and shall have authority to issue citations, complaints and to institute other litigation required for the purposes of enforcing this Part 2. Such officer may institute any appropriate action or proceeding to prevent, restrain, correct or abate any violation of this Part 2, provided that notice of such action shall be served upon the violator at least 10 days prior to the time the action is begun by serving a copy of the nature of the violation as such other information as may be required or appropriate; provided further, however, that if the nature of the violation is such that serious and substantial injury may occur to the Borough or any property situate therein, then such notice may be waived and an action instituted immediately.

- A. Right of entry. Upon presentation of proper credentials, duly authorized representatives of the Borough may enter at reasonable times upon any property to investigate or ascertain the condition of the subject property in regard to an aspect regulated by this Part 2.
- B. Notification. In the event that the applicant, developer, owner or his/her agent fails to comply with the requirements of this Part 2 or fails to conform to the requirements of any permit, a written notice of violation shall be issued. Such notification shall set forth the nature of the violation(s) and establish a time limit for correction of the violation(s). Upon failure to comply within the time specified, unless otherwise extended by the Borough, the applicant, developer, owner or his/her agent shall be subject to the enforcement remedies of this Part 2.
- C. Preventive remedies.
 - (1) In addition to other remedies, the municipality may institute and maintain appropriate actions by law or in equity to restrain, correct or abate a violation, to prevent unlawful construction, to recover damages and to prevent illegal occupancy of a building or premises.
 - (2) In accordance with the Planning Code (Section 515.1),⁹⁹ the municipality may refuse to issue any permit or grant approval to further improve or develop any property which has been developed in violation of this chapter.
- D. Enforcement remedies.
 - (1) Any person who has violated or permitted the violation of the provisions of this Part 2 shall, upon being found liable therefore in a civil enforcement proceeding commenced by the Borough pay a fine of not less than \$50 and not more than \$500 plus court costs, including reasonable attorney fees incurred by the municipality. No judgment shall commence or be imposed, levied or be payable until the date of the determination of a violation by the District Justice.
 - (2) If the defendant neither pays nor timely appeals the judgment, the municipality may enforce the judgment pursuant to applicable rules of civil procedure.
 - (3) Each day that a violation continues shall constitute a separate violation unless the District Justice further determines that there was a good faith basis for the person violating the ordinance to have believed that there was no such violation. In such case there shall be deemed to have been only one such violation until the fifth day following the date of the District Justice's

99. Editor's Note: See 53 P.S. § 10515.1.

determination of a violation; thereafter, each day that a violation continues shall constitute a separate violation.

- (4) All judgments, costs and reasonable attorney fees collected for the violation of this Part 2 shall be paid over to the Borough.
- (5) The Court of Common Pleas, upon petition, may grant an order of stay, upon cause shown, tolling the per diem fine pending a final adjudication of the violation and the judgment.
- (6) Nothing contained in this section shall be construed or interpreted to grant to any person or entity other than the municipality the right to commence any action for enforcement pursuant to this section.

E. Additional remedies. In addition to the above remedies, the Borough may also seek remedies and penalties under applicable Pennsylvania statutes, or regulations adopted pursuant thereto, including, but not limited to, the Storm Water Management Act (32 P.S. §§ 680.1 through 680.17) and the Erosion and Sedimentation Regulations (25 Pennsylvania Code, Chapter 102). Any activity conducted in violation of this Part 2 or any Pennsylvania approved watershed stormwater management plan may be declared a public nuisance by the Borough and abatable as such.

§ 142-78. Violations and penalties.

Any person, copartnership or corporation, or principal officer of any corporation who or which shall violate any provision of this Part 2 or proceed with the erection of any structures, or sell any lot without having first complied with the provisions of this Part 2, shall be guilty of a summary offense, and upon conviction thereof before a District Magistrate, such person or the members of such partnership or the officers of such corporation responsible for such violation shall be sentenced to pay a fine of no less than \$50 or more than \$1,000. Each day that a violation continues shall be considered a separate violation and a separate fine shall be applicable. In the event that any person shall repeatedly violate the provision of this Part 2, or fails to adhere to notices and other provisions of this Part 2, then such person shall be guilty of a misdemeanor, and upon conviction thereof, such persons shall be sentenced to suffer imprisonment, not to exceed two years, or to pay a fine not exceeding \$1,000, or both, in the discretion of the court.

- A. Notification of Noncompliance: A copy of any notice or stop work order shall be served upon the landowner by either personal delivery or certified mail.
- B. Cancellation notice: Upon completion of remedial steps required by a notice, the Code Enforcement Officer shall forthwith issue of compliance and cancellation of said notice of noncompliance or stop work order.

§ 142-79. Review of stop-work order.

Any person who feels aggrieved at any stop work order issued by the Code Enforcement Officer under this Part 2, or by failure to cancel same after performance of remedial steps, shall have the right to request a hearing within seven days after making said request. At said hearing, the Code Enforcement Officer and the aggrieved person shall present any evidence bearing on the propriety of said stop work order or continuation of same. At the conclusion of the hearing, and based upon the evidence presented to it, the Municipal Board of Supervisors shall:

- A. Affirm the stop work order and the remedial steps required therein and direct continuing effect and enforcement of said stop work order with the offending portion of the project has been brought into compliance; or

- B. Affirm the stop work order, but upon such modified remedial steps as the Board of Supervisors may find necessary and appropriate, the direct continuing effect and enforcement of said stop work order until the offending portion of the project has been brought into compliance; or
- C. Reverse, cancel or suspend the stop work order upon a finding that remedial steps are not necessary or that required remedial steps have been taken, or upon a finding that a stop work order is not appropriate or necessary during the performance of required remedial steps.

§ 142-80. Revocation of permit.

The Baldwin Borough Board of Supervisors, upon the request by the Code Enforcement Officer at the next regular meeting of the Board of Supervisors, after at least three days' notice in writing to the landowner, may revoke the permit issued pursuant to this Part 2 for any project which the Board of Supervisors finds, upon evidence presented to it that the landowner has proceeded with work on the offending portion of any project, except specified remedial work to bring the project into compliance with the approved plan, while under a valid stop work order which has neither been reversed canceled nor suspended by the Board of Supervisors.

BALDWIN CODE

Chapter 146

TAXATION

ARTICLE I
Earned Income Tax

- § 146-1. Definitions.
- § 146-2. Imposition of tax; amount.
- § 146-3. Declaration and payment of tax.
- § 146-4. Collection at source.
- § 146-5. Powers and duties of Earned Income Tax Collector.
- § 146-6. Compensation of Earned Income Tax Collector.
- § 146-7. Suit for collection of tax.
- § 146-8. Interest and penalties.
- § 146-9. Violations and penalties.
- § 146-10. Statutory authority.

ARTICLE II
Realty Transfer Tax

- § 146-11. Imposition of tax.
- § 146-12. Administration.
- § 146-13. Interest.
- § 146-14. Effective date.
- § 146-15. through § 146-19. (Reserved)

ARTICLE III
Local Services Tax

- § 146-20. Definitions.
- § 146-21. Levy of tax.
- § 146-22. Exemptions and refunds.
- § 146-23. Duty of employers to collect.
- § 146-24. Returns.
- § 146-25. Dates for determining tax liability and payment.
- § 146-26. Self-employed individuals.
- § 146-27. Individuals engaged in more than one occupation or employed in more than one political subdivision.

- § 146-28. Nonresidents subject to tax.
- § 146-29. Administration of tax.
- § 146-30. Suits for collection.
- § 146-31. Violations and penalties.
- § 146-32. Interpretation; repeal of prior provisions.
- § 146-33. Effective date.
- § 146-34. (Reserved)

ARTICLE IV
Tax Assessment Limitation Program

- § 146-35. Definitions.
- § 146-36. Participation in limitation of tax assessment program.
- § 146-37. Rules and regulations.

ARTICLE V
Volunteer Service Credit Program

- § 146-38. Definitions.
- § 146-39. Volunteer Service Credit Program.
- § 146-40. Earned income tax credit.
- § 146-41. Appeals.
- § 146-42. Severability.

ARTICLE VI
Waiver of Additional Charges for Real Estate Taxes

- § 146-43. Definitions.
- § 146-44. Waiver of additional charges for real estate taxes.
- § 146-45. Granted waiver.
- § 146-46. Effective date.
- § 146-47. Severability.
- § 146-48. Repealer.

TAXATION

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin as indicated in article histories. Amendments noted where applicable.]

ARTICLE I

Earned Income Tax**[Adopted 11-21-1966 by Ord. No. 337]****§ 146-1. Definitions.**

The following words and phrases, when used in this article, shall have the meanings ascribed to them in this section except where the context clearly indicates or requires a different meaning:

ASSOCIATION — A partnership, limited partnership or other unincorporated group of two or more persons.

BUSINESS — An enterprise, activity, profession or any other undertaking of an unincorporated nature conducted for profit or ordinarily conducted for profit whether by a person, partnership, association or any other entity.

CORPORATION — A corporation or joint-stock association organized under the laws of the United States, the Commonwealth of Pennsylvania or any other state, territory, foreign country or dependency.

CURRENT YEAR — The calendar year for which the tax is levied.

DOMICILE — The place where one lives and has his permanent home and to which he has the intention of returning whenever he is absent. Actual residence is not necessarily "domicile," for "domicile" is the fixed place of abode which, in the intention of the taxpayer, is permanent rather than transitory. "Domicile" is the voluntarily fixed place of habitation of a person, not for a mere special or limited purpose, but with the present intention of making a permanent home, until some event occurs to induce him to adopt some other permanent home. In the case of businesses or associations, the domicile is that place considered as the center of business affairs and the place where its functions are discharged.¹⁰⁰

EARNED INCOME — Salaries, wages, commissions, bonuses, incentive payments, fees, tips and other compensation received by a person or his personal representative for services rendered, whether directly or through an agent, and whether in cash or in property, not including, however, wages or compensation paid to persons on active military service, periodic payments for sickness and disability other than regular wages received during a period of sickness, disability or retirement or payments arising under workmen's compensation acts, occupational disease acts and similar legislation, or payments commonly recognized as old age benefits, retirement pay or pensions paid to persons retired from service after reaching a specific age or after a stated period of employment or payments commonly known as "public assistance," or unemployment compensation payments made by any governmental agency or payments to reimburse expenses or payments made by employers or labor unions for wage and salary supplemental programs, including but not limited to programs covering hospitalization, sickness, disability or death, supplemental unemployment benefits, strike benefits, social security and retirement.

EARNED INCOME TAX COLLECTOR — The person, public employee or private agency designated by the Borough of Baldwin to collect and administer the tax on earned income and net profits.

EMPLOYEE — Any natural person domiciled in the Borough of Baldwin or employed therein upon whose earned income, as above defined, a tax is imposed by this article.

EMPLOYER — A person, partnership, association, corporation, institution, governmental body or unit or agency, or any other entity employing one or more persons for a salary, wage, commission or other compensation.

¹⁰⁰ Editor's Note: This definition has been revised to conform to Section 13 of the Local Tax Enabling Act, as amended 10-4-1978, P.L. 930, No. 177. See 53 P.S. § 6913.

NET PROFITS — The net income from the operation of a business, profession or other activity, except corporations, after provision for all costs and expenses incurred in the conduct thereof, determined either on a cash or accrual basis in accordance with the accounting system used in such business, profession or other activity, but without deduction of taxes based on income.

PERSON or INDIVIDUAL — A natural person.

PRECEDING YEAR — The calendar year before the current year.

RESIDENT — A person, partnership, association or other entity domiciled in the Borough of Baldwin.

SUCCEEDING YEAR — The calendar year following the current year.

TAXPAYER — A person, partnership, association or any other entity required hereunder to file a return of earned income or net profits, or to pay a tax thereon.

§ 146-2. Imposition of tax; amount.

A. A tax for general revenue purposes of 1% is hereby imposed on:

- (1) Earned income received beginning January 1, 1967, and ending December 31, 1967, by residents of the Borough of Baldwin.
- (2) Earned income received beginning January 1, 1967, and ending December 31, 1967, by nonresidents of the Borough of Baldwin for work done or services performed or rendered in the Borough of Baldwin.
- (3) The net profits earned beginning January 1, 1967, and ending December 31, 1967, of businesses, professions or other activities conducted by residents of the Borough of Baldwin, regardless of where the same were earned.
- (4) The net profits earned beginning January 1, 1967, and ending December 31, 1967, of businesses, professions or other activities conducted in the Borough of Baldwin by nonresidents.

B. The tax herein levied and imposed shall continue in force on a calendar-year basis or a taxpayer-fiscal-year basis following December 31, 1967, without annual reenactment until such time as the Borough Council of the Borough of Baldwin shall change the rate of tax or by appropriate ordinance repeals such tax.

§ 146-3. Declaration and payment of tax.

A. Net profits.

- (1) Every taxpayer making net profits shall, on or before April 15 of the current year, make and file with the Earned Income Tax Collector on a form prescribed or approved by the Earned Income Tax Collector a declaration of his estimated net profits during the period beginning January 1 and ending December 31 of the current year, and pay to the Earned Income Tax Collector in four equal quarterly installments the tax due thereon as follows: the first installment at the time of filing the declaration, and the other installments on or before June 15 of the current year, September 15 of the current year and January 15 of the succeeding year, respectively.
- (2) Any taxpayer who first anticipates any net profits after April 15 of the current year, shall make and file the declaration hereinabove required on or before June 15 of the current year, September 15 of the current year or December 31 of the current year, whichever of these dates next follows the date on which the taxpayer first anticipates such net profit, and pay to the Earned Income

Tax Collector in equal installments the tax due thereon on or before the quarterly payment dates which remain after the filing of the declaration.

- (3) Every taxpayer shall, on or before April 15 of the succeeding year, make and file with the Earned Income Tax Collector on a form prescribed or approved by the Earned Income Tax Collector a final return showing the amount of net profits earned during the period beginning January 1 of the current year and ending December 31 of the current year, the total amount of tax due thereon and the total amount of tax paid thereon. At the time of filing the final return, the taxpayer shall pay to the Earned Income Tax Collector the balance of tax due or shall make demand for refund or credit in the case of overpayment. Any taxpayer may, in lieu of paying the fourth quarterly installment of his estimated tax, elect to make and file with the Earned Income Tax Collector on or before January 31 of the succeeding year the final return as hereinabove required.
- (4) The Earned Income Tax Collector may provide by regulation for the making and filing of adjusted declarations of estimated net profits, and for the payments of the estimated tax in cases where a taxpayer who has filed the declaration hereinabove required anticipates additional net profits not previously declared or finds that he has overestimated his anticipated net profits.
- (5) Every taxpayer who discontinues business prior to December 31 of the current year shall, within 30 days after the discontinuance of business, file his return as hereinabove required and pay the tax due.

B. Earned income.

- (1) Annual earned income tax return. Every taxpayer shall, on or before April 15 of the succeeding year, make and file with the Earned Income Tax Collector on a form prescribed or approved by the Earned Income Tax Collector a final return showing the amount of earned income received during the period beginning January 1 of the current year and ending December 31 of the current year the total amount of tax due thereon, the amount of tax paid thereon, the amount of tax thereon that has been withheld pursuant to the provisions relating to the collection at source and the balance of tax due. At the time of filing the final return, the taxpayer shall pay the balance of the tax due or shall make demand for refund or credit in the case of overpayment.
- (2) Earned income not subject to withholding. Every taxpayer who is employed for a salary, wage, commission or other compensation and who received any earned income not subject to the provisions relating to collection at source, shall make and file with the Earned Income Tax Collector on a form prescribed or approved by the Earned Income Tax Collector a quarterly return on or before April 30 of the current year, July 31 of the current year, October 31 of the current year and January 31 of the succeeding year, setting forth the aggregate amount of earned income not subject to withholding by him during the three-month periods ending March 31 of the current year, June 30 of the current year, September 30 of the current year and December 31 of the current year, respectively, and subject to the tax, together with such other information as the Earned Income Tax Collector may require. Every taxpayer making such returns shall, at the time of filing thereof, pay to the Earned Income Tax Collector the amount of tax shown as due thereon.

§ 146-4. Collection at source.

- A. Every employer having an office, factory, workshop, branch, warehouse or other place of business within the Borough of Baldwin who employs one or more persons other than domestic servants for a

salary, wage, commission or other compensation who has not previously registered shall, within 15 days after becoming an employer, register with the Earned Income Tax Collector his name and address and such other information as the Earned Income Tax Collector may require.

B. Quarterly returns.

- (1) Every employer having an office, factory, workshop, branch, warehouse or other place of business within the Borough of Baldwin who employs one or more persons other than domestic servants for a salary, wage, commission or other compensation shall deduct at the time of payment thereof the tax imposed by this article on the earned income due to his employee or employees and shall, on or before April 30 of the current year, July 31 of the current year, October 31 of the current year and January 31 of the succeeding year, file a return and pay to the Earned Income Tax Collector the amount of taxes deducted during the preceding three-month periods ending March 31 of the current year, June 30 of the current year, September 30 of the current year and December 31 of the current year, respectively. Such return, unless otherwise agreed upon between the Earned Income Tax Collector and employer, shall show the name and social security number of each such employee, the earned income of such employee during such preceding three-month period, the tax deducted therefrom, the political subdivisions imposing the tax upon such employee, the total earned income of all such employees during the preceding three-month period and the total tax deducted therefrom and paid with the return.
- (2) Any employer who for two of the preceding four quarterly periods has failed to deduct the proper tax, or any part thereof, or has failed to pay over the proper amount of tax to the taxing authority may be required by the Earned Income Tax Collector to file his return and pay the tax monthly. In such cases, payments of tax shall be made to the Earned Income Tax Collector on or before the last day of the month succeeding the month for which the tax was withheld.

C. On or before February 28 of the succeeding year, every employer shall file with the Earned Income Tax Collector:

- (1) An annual return showing the total amount of earned income paid, the total amount of tax deducted and the total amount of tax paid to the Earned Income Tax Collector for the period beginning January 1 of the current year and ending December 31 of the current year.
- (2) A return withholding statement for each employee employed during all or any part of the period beginning January 1 of the current year and ending December 31 of the current year, setting forth the employee's name, address and social security number, the amount of earned income paid to the employee during said period, the amount of tax deducted, the political subdivisions imposing the tax upon such employee, the amount of tax paid to the Earned Income Tax Collector. Every employer shall furnish two copies of the individual return to the employee for whom it is filed.

D. Every employer who discontinues business prior to December 31 of the current year shall, within 30 days after the discontinuance of business, file the returns and withholding statements hereinabove required and pay the tax due.

E. Except as otherwise provided in § 146-9 hereof, every employer who willfully or negligently fails or omits to make the deductions required by this section shall be liable for payment of the taxes which he was required to withhold to the extent that such taxes have not been recovered from the employee.

F. The failure or omission of any employer to make the deductions required by this section shall not

relieve any employee from the payment of the tax or from complying with the requirements of this article relating to the filing of declarations and returns.

§ 146-5. Powers and duties of Earned Income Tax Collector.

- A. It shall be the duty of the Earned Income Tax Collector to collect and receive the taxes, fines and penalties imposed by this article. It shall also be his duty to keep a record showing the amount received by him from each person or business paying the tax, and the date of such receipt.
- B. The Earned Income Tax Collector, before entering upon his official duties, shall give and acknowledge a bond to the Borough of Baldwin. If the Borough Council shall, by resolution, designate any bond previously given by the Earned Income Tax Collector as adequate, such bond shall be sufficient to satisfy the requirements of this subsection.
 - (1) Such bond shall be joint and several, with one or more corporate sureties which shall be surety companies authorized to do business in this commonwealth and duly licensed by the Insurance Commissioner of this commonwealth.
 - (2) Such bond shall be conditioned upon the faithful discharge by the Earned Income Tax Collector, his clerks, assistants and appointees of all trusts confided in him by virtue of his office, upon the faithful execution of all duties required of him by virtue of his office, upon the just and faithful accounting or payment over, according to law, of all moneys and all balances thereof paid to, received or held by him by virtue of his office and upon the delivery to his successor or successors in office of all books, papers, documents or other official things held in right of his office.
 - (3) Such bond shall be taken in the name of the Borough of Baldwin and shall be for the use of such political subdivision, and for the use of such other person or persons for whom money shall be collected or received, or as his or her interest shall otherwise appear, in case of a breach of any of the conditions thereof by the acts or neglect of the principal on the bond. The Borough of Baldwin may sue upon the said bond in its or his own name for its or his own use. Such bond shall contain the name or names of the surety company or companies bound thereon. The Borough of Baldwin shall fix the amount of the bond at an amount equal to the maximum amount of taxes which may be in the possession of the Earned Income Tax Collector at any given time. The Borough of Baldwin may, at any time, upon cause shown and due notice to the Earned Income Tax Collector and his surety or sureties, require or allow the substitution or the addition of a surety company acceptable to the Borough of Baldwin for the purpose of making the bond sufficient in amount, without releasing the surety or sureties first approved from any accrued liability or previous action on such bond. The Borough of Baldwin shall designate the custodian of the bond required to be given by the Earned Income Tax Collector.
- C. The Earned Income Tax Collector charged with the administration and enforcement of the provisions of this article is hereby empowered to prescribe, adopt, promulgate and enforce rules and regulations relating to any matter pertaining to the administration and enforcement of this article, including provisions for the reexamination and correction of declarations and returns, and all payments alleged or found to be incorrect, or to which an overpayment is claimed or found to have occurred, and to make refunds in cases of overpayment for any period of time not to exceed six years subsequent to the date of payment of the sum involved, and to prescribe forms necessary for the administration of this article.
- D. With the prior approval of the Borough Council of the Borough of Baldwin, the Earned Income Tax

Collector shall refund, on petition of and proof by the taxpayer, earned income tax as erroneously paid.

- E. The Earned Income Tax Collector and agents designated by him are hereby authorized to examine the books, papers and records of any employer or of any taxpayer or of any person whom the Earned Income Tax Collector reasonably believes to be an employer or taxpayer, in order to verify the accuracy of any declaration or return, or if no declaration or return was filed, to ascertain the tax due. Every employer and every taxpayer and every person whom the Earned Income Tax Collector reasonably believes to be an employer or taxpayer, is hereby directed and required to give to the Earned Income Tax Collector, or to any agent designated by him, the means, facilities and opportunity for such examination and investigations as are hereby authorized.
- F. Any information gained by the Earned Income Tax Collector, his agents or by any other official or agent of the taxing district, as the result of any declarations, returns, investigations, hearings or verifications required or authorized by this article shall be confidential, except for official purposes and except in accordance with a proper judicial order, or as otherwise provided by law.
- G. The Earned Income Tax Collector is authorized to establish different filing, reporting and payment dates for taxpayers whose fiscal years do not coincide with the calendar year.

§ 146-6. Compensation of Earned Income Tax Collector.

The Earned-Income Tax Collector shall receive such compensation for his services and expenses as shall be determined by the Borough Council of the Borough of Baldwin from time to time.

§ 146-7. Suit for collection of tax.

- A. The Earned Income Tax Collector may sue in the name of the Borough of Baldwin for the recovery of taxes due and unpaid under this article.
- B. Time limit.
 - (1) Any suit brought to recover the tax imposed by this article shall be begun within three years after such tax is due, or within three years after the declaration or return has been filed, whichever date is later; provided, however, that this limitation shall not prevent the institution of a suit for the collection of any tax due or determined to be due in the following cases:
 - (a) Where no declaration or return was filed by any person although a declaration or return was required to be filed by him under the provisions of this article, there shall be no limitation.
 - (b) Where an examination of the declaration or return filed by any person, or of other evidence relating to such declaration or return in the possession of the Earned Income Tax Collector, reveals a fraudulent evasion of taxes, there shall be no limitation.
 - (c) In the case of substantial understatement of tax liability of 25% or more, and no fraud, suit shall be begun within six years.
 - (d) Where any person has deducted taxes under the provisions of this article and has failed to pay the amounts so deducted to the Earned Income Tax Collector, or where any person has willfully failed or omitted to make the deductions required in this section, there shall be no limitation.

- (2) This section shall not be construed to limit the governing body from recovering delinquent taxes by any other means provided by the Act.¹⁰¹
- C. The Earned Income Tax Collector may sue for the recovery of an erroneous refund, provided that such suit is begun two years after making such refund, except that the suit may be brought within five years if it appears that any part of the refund was induced by fraud or misrepresentation of material fact.

§ 146-8. Interest and penalties.

If for any reason the tax is not paid when due, interest at the rate of 6% per annum on the amount of said tax and an additional penalty of 1/2 of 1% of the amount of the unpaid tax for each month or fraction thereof during which the tax remains unpaid shall be added and collected. Where suit is brought for the recovery of any such tax, the person liable therefor shall, in addition, be liable for the costs of collection and the interest and penalties herein imposed.

§ 146-9. Violations and penalties.

- A. Any person who fails, neglects or refuses to make any declaration or return required by this article, any employer who fails, neglects or refuses to register or to pay the tax deducted from his employees or fails, neglects or refuses to deduct or withhold the tax from his employees, any person who refuses to permit the Earned Income Tax Collector or any agent designated by him to examine his books, records and papers, and any person who knowingly makes any incomplete, false or fraudulent return, or attempts to do anything whatsoever to avoid the full disclosure of the amounts of his net profits or earned income in order to avoid the payment of the whole or any part of the tax, imposed by this article shall, upon conviction thereof before any District Justice, be sentenced to pay a fine of not more than \$300 for each offense and costs or be imprisoned for a period not exceeding 30 days in the Allegheny County Jail. **[Amended 12-19-1985 by Ord. No. 566]**
- B. Any person who divulges any information which is confidential under the provisions of this article shall, upon conviction thereof, be sentenced to pay a fine of not more than \$300 for each offense and costs or be imprisoned for a period not exceeding 30 days in the Allegheny County Jail. **[Amended 12-19-1985 by Ord. No. 566]**
- C. The penalties imposed under this section shall be in addition to any other penalty imposed by any other section of this article.
- D. The failure of any person to receive or procure forms required for making the declaration or returns required by this article shall not excuse him from making such declaration or return.

§ 146-10. Statutory authority.

This article and the tax imposed hereunder is adopted under and by virtue of the authority contained in the Act of the General Assembly of the Commonwealth of Pennsylvania numbered 511, approved the 31st day of December, 1965, entitled the "Local Tax Enabling Act of 1965," its supplements and amendments,¹⁰² the provisions of which are hereby accepted and adopted by the Borough Council of the Borough of Baldwin, and where the interpretation or terms or provisions of this article are not in accord with or in compliance with the provisions of said Act of Assembly, the provisions of said Act of Assembly are intended to be

101.Editor's Note: The term "Act" herein refers to the Local Tax Enabling Act (53 P.S. § 6901 et seq. and 53 P.S. §§6924.101 et seq.).

102.Editor's Note: See 53 P.S. § 6901 et seq. and 53 P.S. §§ 6924.101 et seq.

ordained and enacted by this article as fully as though incorporated, set forth and made part of this article.

ARTICLE II

Realty Transfer Tax**[Adopted 11-28-2006 by Ord. No. 806¹⁰³]****§ 146-11. Imposition of tax.**

The Borough of Baldwin adopts the provisions of Article XI-D of the Tax Reform Code of 1971¹⁰⁴ and imposes a realty transfer tax as authorized under that article, subject to the rate limitations therein. The tax imposed under this article shall be at the rate of 1/2 of 1%.

§ 146-12. Administration.

The tax imposed under § 146-11 and all applicable interest and penalties shall be administered, collected and enforced under the Act of December 31, 1965 (P.L. 1257, No. 511, as amended, known as "The Local Tax Enabling Act"), provided that, if the correct amount of the tax is not paid by the last date prescribed for timely payment, the Borough of Baldwin, pursuant to Section 1102-D of the Tax Reform Code of 1971 (72 P.S. § 8102-D), authorizes and directs the Department of Revenue of the Commonwealth of Pennsylvania to determine, collect and enforce the tax, interest and penalties.

§ 146-13. Interest.

Any tax imposed under § 146-11 that is not paid by the date the tax is due shall bear interest as prescribed for interest on delinquent municipal claims under the Act of May 16, 1923 (P.L. 207, No. 153; 53 P.S. § 7101 et seq.), as amended, known as "The Municipal Claims and Tax Liens Act." The interest rate shall be the lesser of the interest rate imposed upon delinquent commonwealth taxes as provided in Section 806 of the Act of April 9, 1929 (P.L. 343, No. 176; 72 P.S. § 806), as amended, known as "The Fiscal Code," or the maximum interest rate permitted under the Municipal Claims and Tax Liens Act for tax claims.

§ 146-14. Effective date.

The provisions of this article shall become effective on and be applicable to any document made, executed, delivered, accepted or presented for recording on or after November 28, 2006.

§ 146-15. through § 146-19. (Reserved)

103.Editor's Note: This ordinance also repealed former Art. II, Realty Transfer Tax, adopted 11-17-1986 by Ord. No. 578.

104.Editor's Note: See 72 P.S. § 8101-D et seq.

ARTICLE III

Local Services Tax**[Adopted 12-18-2007 by Ord. No. 809¹⁰⁵]****§ 146-20. Definitions.**

The following words and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context or language clearly indicates or requires a different meaning:

COLLECTOR — The person, public employee or private agency designated by the Borough of Baldwin to collect and administer the tax herein imposed.

DCED — The Department of Community and Economic Development of the Commonwealth of Pennsylvania.

EARNED INCOME — Compensation as this term is defined in Section 13 (relating to earned income taxes) of the Local Tax Enabling Act, the Act of December 31, 1965, P.L. 1257, § 13, as amended, 53 P.S. § 6913, as amended.

EMPLOYER — An individual, partnership, association, limited-liability corporation, limited-liability partnership, corporation, governmental body, agency or other entity employing one or more persons on a salary, wage, commission or other compensation basis, including a self-employed person.

HE, HIS or HIM — Indicates the singular and plural number, as well as the male, female and neuter genders.

INDIVIDUAL — Any person, male or female, engaged in any occupation, trade or profession within the corporate limits of the Borough of Baldwin.

NET PROFITS — The net income from the operation of a business, profession, or other activity, as this term is defined in Section 13 (relating to earned income taxes) of the Local Tax Enabling Act, the Act of December 31, 1965, P.L. 1257, § 13, as amended, 53 P.S. § 6913, as amended.

OCCUPATION — Any trade, profession, business or undertaking of any type, kind or character, including services, domestic or other, earned on or performed within the corporate limits of the Borough of Baldwin for which compensation is charged or received; whether by means of salary, wages, commission or fees for services rendered.

POLITICAL SUBDIVISION — The area within the corporate limits of the Borough of Baldwin.

TAX — The local services tax at the rate fixed in § 146-21 of this article.

TAX YEAR — The period from January 1 until December 31 in any year; a calendar year.

§ 146-21. Levy of tax.

For specific revenue purposes, an annual tax is hereby levied and assessed, commencing January 1, 2008, upon the privilege of engaging in an occupation with a primary place of employment within the Borough of Baldwin during the tax year. Each natural person who exercises such privilege for any length of time during any tax year shall pay the tax for that year in the amount of \$52, assessed on a pro rata basis, in accordance with the provisions of this article. This tax may be used solely for the following purposes as the same may be allocated by the Borough Council from time to time: 1) emergency services, which shall include emergency medical services, police services and/or fire services; 2) road construction and/or maintenance;

105. Editor's Note: This ordinance also repealed former Art. III, Emergency and Municipal Services Tax, adopted 1-17-2005 by Ord. No. 791.

3) reduction of property taxes; or 4) property tax relief through implementation of a homestead and farmstead exclusion in accordance with 53 Pa.C.S.A. Ch. 85, Subch. F (relating to homestead property exclusion). The political subdivision shall use no less than 25% of the funds derived from the tax for emergency services. This tax is in addition to all other taxes of any kind or nature heretofore levied by the political subdivision. The tax shall be no more than \$52 on each person for each calendar year, irrespective of the number of political subdivisions within which a person may be employed.

§ 146-22. Exemptions and refunds.

A. Exemption. Any person whose total earned income and net profits from all sources within the political subdivision is less than \$12,000 for any calendar year in which the tax is levied is exempt from the payment of the tax for that calendar year. In addition, the following persons are exempt from payment of the tax:

- (1) Any person who has served in any war or armed conflict in which the United States was engaged and is honorably discharged or released under honorable circumstances from active service if, as a result of military service, the person is blind, paraplegic or a double or quadruple amputee or has a service-connected disability declared by the United States Veterans' Administration or its successor to be a total one-hundred-percent disability.
- (2) Any person who serves as a member of a reserve component of the armed forces and is called to active duty at any time during the taxable year. For the purposes of this subsection, "reserve component of the armed forces" shall mean the United States Army Reserve, United States Navy Reserve, United States Marine Corps Reserve, United States Coast Guard Reserve, United States Air Force Reserve, the Pennsylvania Army National Guard or the Pennsylvania Air National Guard.

B. Procedure to claim exemption.

- (1) A person seeking to claim an exemption from the local services tax may annually file an exemption certificate with the political subdivision and with the person's employer affirming that the person reasonably expects to receive earned income and net profits from all sources within the political subdivision of less than \$12,000 in the calendar year for which the exemption certificate is filed. In the event the political subdivision utilizes a tax collection officer, it shall provide a copy of the exemption certificate to that officer. The exemption certificate shall have attached to it a copy of all the employee's last pay stubs or W-2 forms from employment within the political subdivision for the year prior to the fiscal year for which the employee is requesting to be exempted from the tax. Upon receipt of the exemption certificate and until otherwise instructed by the political subdivision or except as required by Subsection B(2), the employer shall not withhold the tax from the person during the calendar year or the remainder of the calendar year for which the exemption certificate applies. Employers shall ensure that the exemption certificate forms are readily available to employees at all times and shall furnish each new employee with a form at the time of hiring. The exemption certificate form shall be the uniform form provided by the political subdivision.
- (2) With respect to a person who claimed an exemption for a given calendar year from the tax, upon notification to an employer by the person or by the political subdivision that the person has received earned income and net profits from all sources within the political subdivision equal to or in excess of \$12,000 in that calendar year or that the person is otherwise ineligible for the tax exemption for that calendar year, or upon an employer's payment to the person of earned income within the municipality in an amount equal to or in excess of \$12,000 in that calendar year, an

employer shall withhold the local services tax from the person under Subsection B(3).

- (3) If a person who claimed an exemption for a given calendar year from the tax becomes subject to the tax for the calendar year under Subsection B(2), the employer shall withhold the tax for the remainder of that calendar year. The employer shall withhold from the person, for the first payroll period after receipt of the notification under Subsection B(2), a lump sum equal to the amount of tax that was not withheld from the person due the exemption claimed by the person under this subsection, plus the per-payroll amount due for that first payroll period. The amount of tax withheld per payroll period for the remaining payroll periods in that calendar year shall be the same amount withheld for other employees. In the event the employment of a person subject to withholding of the tax under this clause is subsequently severed in that calendar year, the person shall be liable for any outstanding balance of tax due, and the political subdivision may pursue collection under this article.
 - (4) Except as provided in Subsection B(2), it is the intent of this subsection that employers shall not be responsible for investigating exemption certificates, monitoring tax exemption eligibility or exempting any employee from the local services tax.
- C. Refunds. The Borough Council, in consultation with the Collector and the DCED, shall establish procedures for the processing of refund claims for any tax paid by any person who is eligible for exemption, which procedures shall be in accord with provisions of the general municipal law relating to refunds of overpayments and interest on overpayments. Refunds made within 75 days of a refund request or 75 days after the last day the employer is required to remit the tax for the last quarter of the calendar year, whichever is later, shall not be subject to interest. No refunds shall be made for amounts overpaid in a calendar year that do not exceed \$1. The Borough Council or the Collector shall determine eligibility for exemption and provide refunds to exempt persons.

§ 146-23. Duty of employers to collect.

- A. Each employer within the political subdivision, as well as those employers situated outside the political subdivision but who engage in business within the political subdivision, is hereby charged with the duty of collecting the tax from each of his employees engaged by him or performing for him within the political subdivision and making a return and payment thereof to the Collector. Further, each employer is hereby authorized to deduct this tax for each employee in his or her employ, whether said employee is paid by salary, wage or commission and whether or not all such services are performed within the political subdivision.
- B. A person subject to the tax shall be assessed by the employer a pro rata share of the tax for each payroll period in which the person is engaging in an occupation. The pro rata share of the tax assessed on the person for a payroll period, shall be determined by dividing the rate of the tax levied for the calendar year by the number of payroll periods established by the employer for the calendar year. For purposes of determining the pro rata share, an employer shall round down the amount of the tax collected each payroll period to the nearest 1/100 of a dollar. Collection of the tax shall be made on a payroll-period basis for each payroll period in which the person is engaging in an occupation, except as provided in Subsection D of this section. For purposes of this subsection, "combined rate" shall mean the aggregate annual rate of the tax levied by the school district and the municipality.
- C. No person shall be subject to the payment of the local services tax by more than one political subdivision during each payroll period.
- D. In the case of concurrent employment, an employer shall refrain from withholding the tax if the

employee provides a recent pay statement from a principal employer that includes the name of the employer, the length of the payroll period and the amount of the tax withheld and a statement from the employee that the pay statement is from the employee's principal employer and the employee will notify other employers of a change in principal place of employment within two weeks of its occurrence. The employee's statement shall be provided on the form approved by DCED.

- E. The tax shall be no more than \$52 on each person for each calendar year, irrespective of the number of political subdivisions within which the person may be employed. The political subdivision shall provide a taxpayer a receipt of payment upon request by the taxpayer.
- F. No employer shall be held liable for failure to withhold the tax or for the payment of the withheld tax money to the political subdivision if the failure to withhold taxes arises from incorrect information submitted by the employee as to the employee's place or places of employment, the employee's principal office or where the employee is principally employed. Further, an employer shall not be liable for payment of the local services tax in an amount exceeding the amount withheld by the employer if the employer complies with the provisions of § 146-22B of this article and this section and remits the amount so withheld in accordance with this article.
- G. Employers shall be required to remit the local services taxes 30 days after the end of each quarter of a calendar year.

§ 146-24. Returns.

Each employer shall prepare and file a return showing a computation of the tax on forms to be supplied to the employer by the Collector. If an employer fails to file a return and pay the tax, whether or not the employer makes collection thereof from the salary, wages or commissions paid by him or her to an employee, except as provided hereafter in this article, the employer shall be responsible for the payment of the tax in full as though the tax had been originally levied against the employer.

§ 146-25. Dates for determining tax liability and payment.

In each tax year, each employer shall use his or her employment records to determine the number of employees from whom such tax shall be deducted and paid over to the Collector on or before the 30th day following the end of each calendar quarter of each such tax year.

§ 146-26. Self-employed individuals.

Each self-employed individual who performs services of any type or kind or engages in any occupation or profession within a primary place of employment within the political subdivision shall be required to comply with this article and pay the pro rata portion of the tax due to the Collector on or before the 30th day following the end of each quarter.

§ 146-27. Individuals engaged in more than one occupation or employed in more than one political subdivision.

The following shall apply to individuals engaged in more than one occupation or employed in more than one political subdivision:

- A. The situs of the tax shall be the place of employment on the first day the person becomes subject to the tax during each payroll period. In the event a person is engaged in more than one occupation, that is, concurrent employment, or an occupation which requires the person working in more than one political subdivision during a payroll period, the priority of claim to collect the local services tax shall

be in the following order:

- (1) First, the political subdivision in which a person maintains his or her principal office or is principally employed;
 - (2) Second, the political subdivision in which the person resides and works if the tax is levied by that political subdivision;
 - (3) Third, the political subdivision in which a person is employed and which imposes the tax nearest in miles to the person's home.
- B. In case of a dispute, a tax receipt of the taxing authority for that calendar year declaring that the taxpayer has made prior payment constitutes prima facie certification of payment to all other political subdivisions.

§ 146-28. Nonresidents subject to tax.

All employers and self-employed individuals residing or having their places of business outside of the political subdivision but who perform services of any type or kind or engage in any occupation or profession within the political subdivision do, by virtue thereof, agree to be bound by and subject themselves to the provisions, penalties and regulations promulgated under this article with the same force and effect as though they were residents of the political subdivision. Further, any individual engaged in an occupation within the political subdivision and an employee of a nonresidential employer may, for the purpose of this article, be considered a self-employed person, and in the event his or her tax is not paid, the political subdivision shall have the option of proceeding against either the employer or employee for the collection of this tax as hereinafter provided.

§ 146-29. Administration of tax.

- A. The Collector shall be appointed by resolution of the political subdivision. It shall be the duty of the Collector to accept and receive payments of this tax and to keep a record thereof showing the amount received by him from each employer or self-employed person, together with the date the tax was received.
- B. The Collector is hereby charged with the administration and enforcement of this article and is hereby charged and empowered, subject to municipal approval, to prescribe, adopt and promulgate rules and regulations relating to any matter pertaining to the administration and enforcement of this article, including provisions for the examination of payroll records of any employer subject to this article, the examination and correction of any return made in compliance with this article and any payment alleged or found to be incorrect or as to which overpayment is claimed or found to have occurred. Any person aggrieved by any decision of the Collector shall have the right to appeal consistent with the Local Taxpayers Bill of Rights under Act 50 of 1998¹⁰⁶ or under specific appeal processes set forth by the political subdivision.
- C. The Collector is hereby authorized to examine the books and payroll records of any employer in order to verify the accuracy of any return made by an employer or, if no return was made, to ascertain the tax due. Each employer is hereby directed and required to give the Collector the means, facilities and opportunity for such examination.

§ 146-30. Suits for collection.

¹⁰⁶Editor's Note: See 53 Pa.C.S.A. § 8421 et seq.

- A. In the event that any tax under this article remains due or unpaid 30 days after the due dates above set forth, the Collector may sue for recovery of any such tax due or unpaid under this article, together with interest and penalty.
- B. If for any reason the tax is not paid when due, interest at the rate of 6% on the amount of such tax shall be calculated beginning with the due date of the tax and a penalty of 5% shall be added to the flat rate of such tax for nonpayment thereof. Where suit is brought for the recovery of this tax or other appropriate remedy undertaken, the individual liable therefor shall, in addition, be responsible and liable for the costs of collection.

§ 146-31. Violations and penalties.

Whoever makes any false or untrue statement on any return required by this article, or whoever refuses inspection of the books, records or accounts in his or her custody and control setting forth the number of employees subject to this tax who are in his or her employment, or whoever fails or refuses to file any return required by this article shall be guilty of a violation and, upon conviction thereof, shall be sentenced to pay a fine of not more than \$600 and costs of prosecution, and, in default of payment of such fine and costs, to imprisonment for not more than 30 days. The action to enforce the penalty herein prescribed may be instituted before the District Judge and against any person in charge of the business of any employer who shall have failed or who refuses to file a return required by this article.

§ 146-32. Interpretation; repeal of prior provisions.

- A. Interpretation.
 - (1) Nothing contained in this article shall be construed to empower the political subdivision to levy and collect the tax hereby imposed on any occupation not within the taxing power of the political subdivision under the Constitution of the United States and the laws of the Commonwealth of Pennsylvania.
 - (2) If the tax hereby imposed under the provisions of this article shall be held by any court of competent jurisdiction to be in violation of the Constitution of the United States or of the laws of the Commonwealth of Pennsylvania as to any individual, the decision of the court shall not affect or impair the right to impose or collect said tax or the validity of the tax so imposed on other persons or individuals as herein provided.
- B. Except as set forth hereafter, all ordinances or parts of ordinances inconsistent herewith are hereby repealed. Nothing herein shall be construed to repeal the imposition and collection of an occupation privilege tax, plus applicable penalties and interest, for calendar year 2005 and all prior calendar years, or of an emergency and municipal services tax, plus all applicable penalties and interest, for the calendar years 2006 and 2007, as the same exist prior to this amendment.

§ 146-33. Effective date.

The tax imposed by this article shall be effective on January 1, 2008, and all calendar years thereafter unless repealed or modified by ordinance of the Borough of Baldwin.

§ 146-34. (Reserved)

ARTICLE IV

Tax Assessment Limitation Program
[Adopted 5-21-2001 by Ord. No. 756¹⁰⁷]**§ 146-35. Definitions.**

ACT 77 — The Act of December 22, 1993, Public Law 529, No. 77, codified as the Allegheny Regional Asset District Law, 16 P.S. § 6101-B et seq.

ALLEGHENY REGIONAL ASSET DISTRICT LAW — See the definition of "Act 77" above.

ASSESSMENT — The fair market value of property as determined by the Board of Property Assessment, Appeals and Review of Allegheny County.

BOROUGH — The Borough of Baldwin.

COUNCIL — The Council of the Borough of Baldwin.

DEPARTMENT OF PROPERTY ASSESSMENT — The Department of Property Assessment, Appeals, Review and Registry of Allegheny County.

ELIGIBLE TAXPAYER — A longtime owner/occupant of a principal residence in the Borough of Baldwin who is a single person aged 60 or older during a calendar year in which county real property taxes are due and assessed; or married persons if either spouse is 60 or older during a calendar year in which the Borough's real property taxes are due and assessed.

HOUSEHOLD INCOME — All income received by an eligible taxpayer while residing in his or her principal residence during a calendar year.

INCOME — All income from whatever source derived, including but not limited to salaries, wages, bonuses, commissions, income from self-employment, alimony, support money, cash public assistance and relief, the gross amount of any pensions or annuities including railroad retirement benefits, all benefits received under the Federal Social Security Act (except Medicare benefits), all benefits received under state unemployment insurance laws and veteran's disability payments, all interest received from the federal or any state government or any instrumentality or political subdivision hereof, realized capital gains, rentals, workers' compensation and the gross amount of loss-of-time insurance benefits, life insurance benefits and proceeds (except the first \$5,000 of the total of death benefit payments), and gifts of cash or property (other than transfers by gift between members of a household) in excess of a total value of \$300, but shall not include surplus food or other relief in kind supplied by a governmental agency or property tax or rent rebate or inflation dividend and shall not exceed \$30,000 (of which only 1/2 of social security benefit shall be included).

LONGTIME OWNER/OCCUPANT — Any person who for at least 10 continuous years has owned or has occupied the same dwelling place as a principal residence and domicile, or any person who for at least five years has owned and occupied the same dwelling as a principal residence and domicile, if that person received assistance in the acquisition of the property as part of government or nonprofit housing program.

MUNICIPALITY — Borough of Baldwin.

PERSON — A natural person.

PRINCIPAL RESIDENCE — The dwelling place of a person, including the principal house and lot, and such lots as are used in connection therewith which contribute to its enjoyment, comfort and convenience;

107. Editor's Note: This ordinance also superseded former Art. IV, Tax Assessment Limitation Program, adopted 12-29-1994 by Ord. No. 678 and consisting of §§ 146-35 through 146-38.

or a building with a maximum of one commercial establishment and a maximum of three residential units, of which one residential unit must be a principal residence of the longtime owner/occupant.

SENIOR CITIZENS REBATE AND ASSISTANCE ACT — The Act of March 11, 1971, Public Law 104, No. 3, as amended, codified at 72 P.S. § 4751-1 et seq.¹⁰⁸

§ 146-36. Participation in limitation of tax assessment program.

Any person paying property taxes in the Borough of Baldwin may apply to participate in the assessment limitation program authorized under this article. In order to be eligible to participate in the program, the person must meet the following conditions:

- A. The person must be a single person aged 60 or older; or be married persons with either spouse being 60 years of age or older.
- B. The person must be a longtime owner/occupant.
- C. The property owned by the person must be the principal residence and domicile of the resident.
- D. The person's household income must qualify him or her to receive any amount of property tax rebate under the Senior Citizens Rebate and Assistance Act.

§ 146-37. Rules and regulations.

The Department of Property Assessment and the Borough Secretary shall have the authority to issue rules and regulations with respect to the administration of the limitation of tax assessment program established under this article. Such rules and regulations shall include, but not be limited to, reasonable proof of household income, proof of residence, proof of qualification for or receipt of a property tax rebate under the Senior Citizens Rebate and Assistance Act and any other reasonable requirements and conditions as may be necessary to operate the tax assessment limitation program.¹⁰⁹

108. Editor's Note: 72 P.S. § 4751-1 et seq. was repealed by 2006, June 27, P.L. 1873, No. 1 (Spec. Sess. No. 1), § 5005(3), imd. effective; see now 53 P.S. § 6926.1301 et seq.

109. Editor's Note: Former Art. V, Gentrification Tax Exemption, adopted 12-19-1994 by Ord. No. 679 and consisting of §§ 146-39 through 146-44, which immediately followed this section, was repealed 3-18-1996 by Ord. No. 697.

ARTICLE V

Volunteer Service Credit Program
[Adopted 1-16-2018 by Ord. No. 888]**§ 146-38. Definitions.**

The following words and phrases when used in this article shall have the meanings given to them in this section unless the context clearly indicates otherwise:

ACTIVE VOLUNTEER — A volunteer for a volunteer fire company listed under § 146-39C who has complied with, and is certified under, the Volunteer Service Credit Program.

EARNED INCOME TAX — A tax on earned income and net profits levied under Chapter 3 of the Act of December 31, 1965 (P.L.1257, No. 511), known as "The Local Tax Enabling Act."

ELIGIBILITY PERIOD — The time frame when volunteers may earn credit under the Volunteer Service Credit Program.

EMERGENCY RESPONDER — A volunteer who responds to an emergency call with one of the entities listed under § 146-39C.

EMERGENCY RESPONSE CALL — Any emergency call to which a volunteer responds, including travel directly from and to a volunteer's home, place of business or other place where he/she shall have been when the call was received.

VOLUNTEER — A member of a volunteer fire company.

§ 146-39. Volunteer Service Credit Program.

- A. Establishment. The Borough of Baldwin hereby establishes a Volunteer Service Credit Program. The goal of the program is to encourage membership and service in the community's volunteer fire companies.
- B. Program criteria. The Borough Council shall establish, by resolution, the annual criteria that must be met to qualify for credits under the program based on the following:
 - (1) The number of emergency response calls to which a volunteer responds.
 - (2) The level of training and participation in formal training and drills for a volunteer.
 - (3) The total amount of time expended by a volunteer on administrative and other support services, including but not limited to:
 - (a) Fundraising;
 - (b) Providing facility or equipment maintenance;
 - (c) Financial bookkeeping.
 - (4) The involvement in other events or projects that aid the financial viability, emergency response or operational readiness of a volunteer fire company or a nonprofit emergency medical service agency.
 - (5) The total number of years the volunteer has served.
- C. Eligible entities. The Volunteer Service Credit Program is available to residents of the Borough who

are volunteers of the Baldwin Volunteer Fire Companies; Baldwin Independent Fire Company #1, Option Volunteer Fire Department, and South Baldwin Volunteer Fire Company, that provide service to the Borough of Baldwin.

- D. Eligibility period. A volunteer must meet the minimum criteria, set by resolution under this section, during the eligibility period to qualify for the tax credits established under § 146-40.
- (1) For 2018, the eligibility period under the Volunteer Service Credit Program shall run from January 1, 2018, under December 31, 2018.
 - (2) Applications for a tax credit in any given year must be submitted to the Borough Manager no later than September 30 for the year the credit is sought. **[Added 11-19-2019 by Ord. No. 899]**
- E. Recordkeeping. The chiefs of the volunteer fire companies listed under § 146-39C shall keep specific records of each volunteer's activities in a service log to establish credits under the Volunteer Service Credit Program. Service logs shall be subject to review by the Borough of Baldwin, the State Fire Commissioner and the State Auditor General. The chief shall annually transmit to the Borough a notarized eligibility list of all volunteers that have met the minimum criteria for the Volunteer Service Credit Program. The notarized eligibility list shall be transmitted to the Borough no later than January 31 of each year. The chief shall post the notarized eligibility list in an accessible area of the volunteer agency's facilities.
- F. Municipal review. The Borough Manager shall review the notarized eligibility list and present to the Borough Council for approval. The Borough of Baldwin Council shall approve all applicants that are on the notarized eligibility list. All applicants approved by the Borough of Baldwin Council shall be issued a tax credit certificate by the Borough Manager.
- G. Official Tax Credit Register. The Borough shall keep an official Tax Credit Register of all active volunteers that were issued tax credit certificates. The Borough Manager shall issue updates, as needed, of the official tax credit register to the following:
- (1) Borough Council;
 - (2) Chiefs of each of the three Baldwin volunteer fire companies;
 - (3) The Allegheny Southwest Tax Collection District and Jordan Tax Services.

§ 146-40. Earned income tax credit.

- A. Tax credit. Each active volunteer who has been certified under the Borough of Baldwin Volunteer Service Credit Program shall be eligible to receive a tax credit of up to \$300 of the earned income tax levied by the Borough. When an active volunteer's earned income tax liability is less than the amount of the tax credit, the tax credit shall equal the individual's tax liability.
- B. Claim. An active volunteer with a tax credit certificate may file a claim for the tax credit on his or her Borough earned income tax liability when filing a final return for the preceding calendar year with the tax officer for the Allegheny Southwest Tax Collection Committee.
- C. Rejection of tax credit claim.
- (1) The tax officer shall reject a claim for a tax credit if the taxpayer is not on the official tax credit register issued by the Borough Manager.
 - (2) If the tax officer rejects the claim, the taxpayer shall be notified in writing of the decision. The

notice shall include the reasons for the rejection and provide the method of appealing the decision pursuant to § 146-41.

- (3) Taxpayers shall have 30 days to appeal the decision of the tax officer.

§ 146-41. Appeals.

A. Earned income tax credit appeals.

- (1) Any taxpayer aggrieved by a decision under § 146-40 shall have a right to appeal said decision.
- (2) A taxpayer shall have 30 days to appeal a decision or rejection of claim.
- (3) All appeals of decisions under § 146-40 shall follow the provisions of the Act of May 5, 1998, P.L. 301, No. 50, known as the "Local Taxpayers Bill of Rights."

§ 146-42. Severability.

In the event that any provision, section, sentence, clause, or part of this article is held to be invalid, such invalidity shall not affect or impair any remaining provision, section, sentence, clause or part of the article, it being the intent of the Borough of Baldwin that such remainder shall be and shall remain in full force and effect, and for this purpose the provisions of this article are hereby declared to be severable.

ARTICLE VI

Waiver of Additional Charges for Real Estate Taxes
[Adopted 9-21-2022 by Ord. No. 923]**§ 146-43. Definitions.**

As used in this article, the following terms shall have the meanings indicated:

ADDITIONAL CHARGE — Any interest, fee, penalty, or charge accruing to and in excess of the face amount of the real estate tax as provided in the municipality's real estate tax notice.

QUALIFYING EVENT —

- A. For the purposes of real property, the date of transfer of ownership of the property.
- B. For purposes of manufactured or mobile homes, the date of transfer of ownership or the date a lease agreement commences for the original location or relocation of a mobile or manufactured home on a parcel of land not owned by the owner of the mobile or manufactured home. The term does not include the renewal of a lease for the same location.

TAX COLLECTOR — The Borough's Tax Collector.

WAIVER REQUEST — A form created by the Department of Community and Economic Development, by which a taxpayer must request a waiver of additional charges. The form shall include a space for attestation by the taxpayer.

§ 146-44. Waiver of additional charges for real estate taxes.

The Borough's Tax Collector shall waive additional charges for real estate taxes, if a taxpayer does all of the following:

- A. Provides a waiver request of additional charges to the Tax Collector in possession of the claim within 12 months of a qualifying event;
- B. Attests that they never received a real estate tax notice;
- C. Provides the Tax Collector in possession of the claim with one of the following:
 - (1) A copy of the deed showing the date of real property transfer; or
 - (2) A copy of the title following the acquisition of a mobile or manufactured home subject to taxation as real estate showing the date of issuance or a copy of an executed lease agreement between the owner of a mobile or manufactured home and the owner of a parcel of land on which the mobile or manufactured home will be situated showing the date the lease commences; and
- D. Pays the face value of the tax notice for the real estate tax with the waiver request.

§ 146-45. Granted waiver.

A taxpayer who is granted a waiver and has paid real estate tax as described herein shall not be subject to an action at law or in equity for an additional charge, and any existing claim(s) or lien filed for an additional charge shall be deemed satisfied.

§ 146-46. Effective date.

This article shall take effect on January 1, 2023.

§ 146-47. Severability.

If any one or more of the provisions or terms of this article shall be held invalid for any reason whatsoever, then such provision or terms shall be deemed severable from the remaining provisions or terms of this article.

§ 146-48. Repealer.

All prior ordinances or parts of ordinances in conflict herewith shall be and the same are hereby repealed to the extent of such conflict.

Chapter 148**TIMBERING AND LOGGING**

§ 148-1.	Definitions.	§ 148-7.	Application for major
§ 148-2.	Minimum standards.		timbering and logging permit;
§ 148-3.	Permit required for minor		special conditions.
	logging operation; exceptions.	§ 148-8.	Notification of neighboring
§ 148-4.	Application for minor		property owners.
	timbering and logging permit;	§ 148-9.	Public hearing.
	special conditions.	§ 148-10.	Council action.
§ 148-5.	Issuance of minor timbering	§ 148-11.	Violations and penalties.
	and logging permit; expiration;	§ 148-12.	Other remedies.
	appeal.		
§ 148-6.	Permit required for major		
	logging operation.		

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 3-18-2002 by Ord. No. 767. Amendments noted where applicable.]

GENERAL REFERENCES

Erosion and sediment control — See Ch. 87.

Trees, shrubs and bushes — See Ch. 150.

Flood damage prevention — See Ch. 92.

Zoning — See Ch. 168.

Subdivision and land development — See Ch. 142.

§ 148-1. Definitions.

Wherever used in this chapter, the following words shall have the meanings indicated:

BOROUGH — The Borough of Baldwin.

BUFFER ZONE — Land surrounding the immediate perimeter of a timbering and logging operation in which no cutting of trees and other vegetation shall occur except for the isolated cutting of individual trees which are dead, sick, infected or constitute an immediate danger to neighboring properties or the public generally.

CLEAR-CUTTING — A timbering and logging method that removes all trees from a tract of land or portions thereof.

CROWN — The aboveground portion of a tree consisting of branches, stems, buds, fruits and leaves. This may also be referred to as the canopy.

DBH (diameter at breast height) — The tree trunk measured in inches at a height of 4.5 feet above the ground. If a tree splits into multiple trunks below 4.5 feet, the trunk is measured at its most narrow point beneath the split.

ENGINEER — The appointed Engineer of the Borough of Baldwin.

EXCAVATION — Any act by which earth, sand, gravel, rock or any other similar material is cut into, dug, quarried, uncovered, removed, displaced, relocated or bulldozed and shall include the conditions resulting therefrom.

FELLING — The act of cutting a standing tree so that it falls to the ground.

FILL — Any act by which earth, sand, gravel, rock or any other material is deposited, placed, pushed, dumped, pulled, transported or moved to a new location and shall include the conditions resulting therefrom.

FORESTER — A person with a degree in forestry from a college or university accredited by the Society of American Foresters.

FOREST MANAGEMENT PLAN — A plan establishing the best conservation and management practices for a landowner.

GRADE — The elevation of the existing ground surface at the location of any proposed excavation or fill.

GRADING — Excavation or fill or any combination thereof and shall include the conditions resulting from any excavation or fill.

HAZARD — A danger to life, limb, health or property.

LANDING — A place where logs, pulpwood or firewood are assembled for transportation to a processing facility.

MAJOR TIMBERING AND LOGGING OPERATION — Any cutting and removing of trees for commercial purposes from a tract of land that is greater than 10 acres in size.

MINOR TIMBERING AND LOGGING OPERATION — Any cutting and removing of trees for commercial purposes from a tract of land that is less than 10 acres in size.

PERSON — A natural person but shall also include a partnership or corporation.

SITE — A lot, tract or parcel of land or a series of lots, tracts or parcels of land which are adjoining where timbering and logging is continuous and performed at the same time.

SELECTION METHOD — A method of selectively removing trees from a wooded area either singly or in small groups according to age, size or type, with provisions being made for natural or artificial vegetation.

SKIDDER — A large machine used in moving logs from a stump site to a landing.

SKIDDING — The act of moving logs from a stump site to a landing.

SLASH — The woody material or debris left on the ground after the area is timbered and logged.

TOPS — The upper portion of a felled tree that is unmerchantable because of small size, taper or defect.

TREE — Any self-supporting woody plant growing upon the earth which provides one main trunk and produces a more or less distinct and elevated head with many branches; also, any self-supporting woody plant usually having a single woody trunk and a potential DBH of two inches or more.

§ 148-2. Minimum standards.

The following shall be minimum standards for issuance of both minor and major timbering and logging permits:

- A. All timbering and logging operations shall be by the selection method. Clear-cutting is prohibited.
- B. Timbering and logging operations shall not be undertaken on any ground with a slope exceeding 25%

nor in landslide- or flood-prone areas.

- C. Removal of trees which have a DBH of more than 20 inches shall be reviewed by the Municipal Engineer before inclusion in any timbering and logging operation.
- D. The diversity of the trees species shall be maintained within the permit area at generally the same ratio both before and after the timbering.
- E. Buffer zones of 25 feet along all abutting properties shall be maintained on the property on which the timber and logging operation is being conducted.
- F. Buffer zones of 25 feet along any streets, streams and around any springs shall be maintained on the property on which the timber and logging operation is being conducted.
- G. All cutting, removing, skidding and transporting of trees as part of the timbering and logging operation shall be planned and performed in such a manner as to minimize the disturbance of or damage to other trees, vegetation and the land itself.
- H. Roads and trails shall be constructed, maintained and abandoned in such manner as to prevent soil erosion and permanent damage to soils and waterways.
- I. Roads and trails shall only be wide enough to accommodate the type of equipment used, and grades of such roads and trails shall be kept as low as possible.
- J. Where possible, stream crossing shall be avoided, but where deemed necessary, crossings shall be made at a right angle across suitable culverts or bridges.
- K. Skidding across live or intermittent streams is prohibited except over culverts or bridges.
- L. All limbs and stubs shall be removed from felled trees prior to skidding.
- M. All trees bent or held down by felled trees shall be promptly released.
- N. No trees shall be left lodged in the process of felling.
- O. Felling or skidding on or across property of others is prohibited without the express written consent of those property owners. Felling or skidding on or across any public street is prohibited without the written permission of the appropriate municipal, county or state government agency.
- P. No tops or slash shall be left within 50 feet of an adjoining property or public street; within 25 feet of any stream and/or historic or scenic trail; or within 10 feet of any drainage ditch.
- Q. The stumps of all felled trees shall be permitted to remain in the soil for stabilization purposes.
- R. Upon completion of the timbering and logging operation, all roads shall be graded to eliminate any wheel ruts, and access to such roads from public streets by motor vehicles of any kind shall be effectively blocked.
- S. Both minor and major timbering and logging permit applicants shall allow Borough officials to inspect the sites at times to be determined by the Borough.

§ 148-3. Permit required for minor logging operation; exceptions.

No person shall commence or perform any minor logging operation without first having obtained a minor timbering and logging permit from the Building Inspector. A separate minor timbering and logging permit

shall be required for each site. One permit may cover the timbering and logging undertaken on the same site. A minor timbering and logging permit will not be required, however, in any one of the following situations, but in all other respects the provisions of this chapter shall apply:

- A. No minor timbering and logging permit is required when the removal of trees is limited to reasonable, regular, normal maintenance and landscaping improvements by individual homeowners where standards in § 148-2 of this chapter are not violated.
- B. Removal of trees is limited to site preparation for an approved building permit.
- C. Removal of trees is limited to site preparation for an approved site or subdivision plan.

§ 148-4. Application for minor timbering and logging permit; special conditions.

- A. Every applicant for a minor timbering and logging permit shall file a written application therefor with the Building Inspector in a form and number to be determined by the Building Inspector. Such application shall:
 - (1) Describe the land on which the proposed work is to be done by lot, block, tract or street address or similar description which will readily identify and definitely locate the proposed work;
 - (2) State the estimated dates for the starting and completion of the timbering and logging work;
 - (3) State the purpose for which the timbering and logging application is filed;
 - (4) Include specifications setting forth the details of work, such as materials, methods, procedures and a certificate of insurance;
 - (5) Include a description of the type of tree removal project, identifying thinning, selective cutting, clear-cutting, and/or aesthetic improvement cut;
 - (6) Include a description of the area to be timbered, specifying the area to be timbered, the species mixture, a sampling of tree sizes and the existence of any unusual, scarce or endangered species;
 - (7) Include a one-hundred-percent inventory of all trees to be timbered, stating species, size and quantity. This inventory shall include those trees which are diseased, damaged or in otherwise unhealthy condition;
 - (8) Include a statement demonstrating how trees that are not proposed for removal are to be protected during the timbering operation;
 - (9) Include information as to how all trees will be marked for removal and those trees which are to remain on the site;
 - (10) Include a specific plan for replanting and reforestation; and
 - (11) Include a time schedule for the start and completion of all work within the timbering area.
- B. The edge of the designated area will not be disturbed and shall be maintained at a width of 25 feet. Ingress and egress points shall be located as determined and approved.
- C. All trees shall be cut at a minimum of 18 inches to the ground.
- D. The crowns of the felled trees shall be reduced to firewood length and stacked unless they are removed from the site as they are cut. Branches less than four inches in diameter shall be processed

to wood chips and remain on the site.

- E. All other federal, state and local laws, ordinances and resolutions shall be in full force and effect as they relate to any minor timbering and logging operation.

§ 148-5. Issuance of minor timbering and logging permit; expiration; appeal.

- A. A minor timbering and logging permit may be issued by the Building Inspector upon:
- (1) Payment of a fee based on a schedule set by resolution of Council;
 - (2) Evidence of a certificate of insurance in a form and amount approved by the Borough Solicitor.
- B. The Building Inspector may impose reasonable conditions and safeguards, in addition to those expressed in this chapter, as he may deem necessary to protect the health, safety and welfare of the Borough and its residents.
- C. Every grading permit shall expire by limitation and become null and void if the work authorized by such permit has not been commenced within three months or is not completed within one year from the date of issue.
- D. Where, in the opinion of the Building Inspector or the Borough Engineer, the work as proposed by the applicant is likely to endanger any property or person or any street or alley or create hazardous conditions, he may deny the minor timbering and logging permit.
- E. An applicant may appeal the decision of the Building Inspector within 30 days of the denial of the requested permit. The Council of the Borough shall consider promptly appeals from the provisions of this chapter and the Council shall make determinations of alternate methods, standards or materials when, in its opinion, strict compliance with the provisions of this chapter is unnecessary. Any applicant or permit holder shall have the right to appeal to any court of competent jurisdiction from any decision or determination of the Council of the Borough.

§ 148-6. Permit required for major logging operation.

No person shall commence or perform any major logging operation without first having obtained a major timbering and logging operation permit from the Borough Council. A separate minor timbering and logging permit shall be required for each site. One permit may cover the timbering and logging undertaken on the same site.

§ 148-7. Application for major timbering and logging permit; special conditions.

- A. Every applicant for a major timbering and logging permit shall file a written application therefor with the Building Inspector in a form and number to be determined by the Building Inspector. An applicant for a major timbering and logging permit must pay a fee based on a schedule set by resolution of Council. Each application for a major timbering and logging permit shall:
- (1) Describe the land on which the proposed work is to be done by lot, block, tract or street address or similar description which will readily identify and definitely locate the proposed work;
 - (2) State the estimated dates for the starting and completion of the timbering and logging work;
 - (3) State the purpose for which the timbering and logging application is filed;

- (4) Include specifications setting forth the details of work, such as materials, methods, procedures and a certificate of insurance;
 - (5) Include a description of the type of tree removal project, identifying thinning, selective cutting, clear-cutting, and/or aesthetic improvement cut;
 - (6) Include a description of the area to be timbered, specifying the area to be timbered, the species mixture, a sampling of tree sizes and the existence of any unusual, scarce or endangered species;
 - (7) Include a one-hundred-percent inventory of all trees to be timbered, stating species, size and quantity. This inventory shall include those trees which are diseased, damaged or in otherwise unhealthy condition;
 - (8) Include a statement demonstrating how trees that are not proposed for removal are to be protected during the timbering operation;
 - (9) Include information as to how all trees will be marked for removal and those trees which are to remain on the site;
 - (10) Include a specific plan for replanting and reforestation;
 - (11) Include a statement of all general soil conditions throughout the proposed timber area;
 - (12) Include a list of all equipment to be used in the operation; and
 - (13) Include a time schedule for the start and completion of all work within the timbering area.
- B. The edge of the designated area will not be disturbed and shall be maintained at a width of 25 feet. Ingress and egress points shall be located as determined and approved.
- C. All trees shall be cut at a minimum of 18 inches to the ground.
- D. The crowns of the felled trees shall be reduced to firewood length and stacked unless they are removed from the site as they are cut. Branches less than four inches in diameter shall be processed to wood chips and remain on the site.
- E. All other federal, state and local laws, ordinances and resolutions shall be in full force and effect as they relate to any minor timbering and logging operation.

§ 148-8. Notification of neighboring property owners.

The applicant shall provide a list of names and addresses of all property owners within 1,000 feet of the property where an applicant intends to engage in a major timbering and logging operation. The Building Inspector shall notify all affected property owners in writing of the proposed major timbering and logging operation, including the date of any public hearing.

§ 148-9. Public hearing.

A public hearing pursuant to public notice shall be held by the Borough Council.

§ 148-10. Council action.

A completed application for a major timbering or logging permit shall be approved or disapproved by Council within 90 days of completion with all requirements of chapter. Failure to approve or disapprove a

completed application for a major timbering or logging permit shall not be considered a deemed approval of the completed application. Council may impose reasonable conditions and safeguards, in addition to those expressed in this chapter, as it may deem necessary to protect the health, safety and welfare of the Borough and its residents. This includes, but is not limited to, the imposition of bond and insurance requirements.

§ 148-11. Violations and penalties.

- A. No person shall undertake any action which would be in violation of any provision of this chapter.
- B. When written notice of a violation of any of the provisions of this chapter has been served by the Building Inspector on any person, such violation shall be discontinued immediately.
- C. Any person violating any of the provisions of this chapter shall be liable, on conviction thereof, to a penalty not exceeding \$300 plus costs of prosecution or to imprisonment for up to 30 days for each and every offense. Whenever such person shall have been notified by the Borough that he is committing such violation, after such notification each day that he shall continue such violation shall constitute a separate offense punishable by a like fine or penalty. Such fines or penalties shall be collected as like fines or penalties are now by law collected.

§ 148-12. Other remedies.

In case any work is performed by any person in violation of any of the provisions of this chapter, the proper officer of the Borough, in addition to other remedies, may institute in the name of the Borough any appropriate action or proceeding, whether by legal process or otherwise, to prevent such unlawful work and to restrain or abate such violation.

BALDWIN CODE

Chapter 150

TREES, SHRUBS AND BUSHES

§ 150-1.	Interference with public sewer prohibited.	§ 150-2.	Notice to remove; failure to comply.
		§ 150-3.	Violations and penalties.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 11-20-1967 by Ord. No. 357. Amendments noted where applicable.]

GENERAL REFERENCES

Property maintenance — See Ch. 131.

Sewers — See Ch. 134.

§ 150-1. Interference with public sewer prohibited.

It shall be unlawful for any person to plant, raise, grow or maintain any tree, shrub or bush in the vicinity of any of the public sewers of the Borough of Baldwin if the roots of said tree, shrub or bush may enter, clog, damage or destroy said public sewer.

§ 150-2. Notice to remove; failure to comply.

If it is determined by the Borough of Baldwin that the roots of any tree, shrub or bush are entering, damaging or destroying any public sewers in the Borough of Baldwin, the landowner upon which said tree, shrub or bush is growing shall be notified, in writing, to remove the same within a period of 30 days. If the said landowner, after having been notified to remove the offending tree, shrub or bush, shall fail or refuse to do the same within said thirty-day period, the Borough of Baldwin is authorized to remove the same and to file a municipal claim against the said landowner for the costs involved in said removal.

§ 150-3. Violations and penalties. [Amended 12-19-1985 by Ord. No. 566]

Any person who shall violate the provisions of this chapter shall, upon conviction before the District Justice, be subject to paying a fine not exceeding \$300 plus costs of prosecution or to imprisonment for up to 30 days for each violation of this chapter.

VEHICLES AND TRAFFIC

Chapter 154

VEHICLES AND TRAFFIC

ARTICLE I		§ 154-13.	Parking within spaces required.
General Traffic Regulations		§ 154-14.	Posted areas.
§ 154-1.	Title.	§ 154-15.	Visitor parking.
§ 154-2.	Definitions.	§ 154-16.	Violations and penalties.
§ 154-3.	Manner of adoption of regulations.	ARTICLE III	
§ 154-4.	Recording and posting of regulations.	Parking Regulations; Residential Private Property	
§ 154-5.	Erection of signs.	§ 154-17.	Preamble; purpose; intent.
§ 154-6.	Emergency powers of Chief of Police.	§ 154-18.	Definitions.
§ 154-7.	Types of regulations.	§ 154-19.	Parking prohibited.
§ 154-8.	Restrictions against parking certain vehicles on residential streets.	§ 154-20.	Responsibility of owners/drivers.
§ 154-9.	Violations and penalties.	§ 154-21.	Notice of field violations.
§ 154-10.	Removal and impounding of vehicles.	§ 154-22.	Penalties.
ARTICLE II		ARTICLE IV	
Residential Parking Permits		Snow Removal	
		§ 154-23.	Shoveling or pushing snow into streets prohibited.
§ 154-11.	Issuance of permits.	§ 154-24.	Violations and penalties.
§ 154-12.	Permit requirements and fees.		

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 9-16-1968 by Ord. No. 368. Amendments noted where applicable.]

GENERAL REFERENCES

Operation of vehicles in parks — See Ch. 123, Art. I.

Vehicles with studded tires — See Ch. 160.

Impounding of vehicles — See Ch. 157.

ARTICLE I
General Traffic Regulations

§ 154-1. Title.

This article shall be known and designated as the "Traffic Control Ordinance of the Borough of Baldwin."

§ 154-2. Definitions.

As used in this article, the following terms shall have the meanings indicated:

BOROUGH — The Borough of Baldwin.

COUNCIL — The Council of the Borough of Baldwin.

STREET — Any road or thoroughfare situated in the Borough which has been accepted and opened as a public road or which the Borough has assumed maintenance and control over.

VEHICLE — The same meaning as ascribed to it in the Vehicle Code of the Commonwealth of Pennsylvania.¹¹⁰

§ 154-3. Manner of adoption of regulations.

All traffic control and parking regulations shall hereafter be adopted by resolution of the Council. The Councilmen, the Mayor and Chief of Police shall, from time to time, recommend regulations and restrictions to the Council and request that certain streets are designated by Council to be posted with appropriate traffic or parking signs. The regulations and restrictions adopted from time to time by Council regulating traffic and parking on streets within the Borough shall have the same force and effect as though incorporated specifically herein.

§ 154-4. Recording and posting of regulations.

Resolutions shall recite that they are being adopted pursuant to this article and shall be recorded in a book to be provided for such purpose, which book shall be available in the office of the Department of Police for public inspection. In addition, signs setting forth the restrictions and regulations thus established by resolution shall be erected at appropriate places upon the streets of the Borough.

§ 154-5. Erection of signs.

No resolution shall become effective until after an appropriate sign has been placed upon the street affected by the restriction or regulation. Where regulated by the Pennsylvania Motor Vehicle Code, the signs shall be erected in conformity therewith, otherwise signs shall be conclusively presumed to be regular in form and properly placed.

§ 154-6. Emergency powers of Chief of Police.

The Chief of Police shall have the following powers to regulate traffic and parking temporarily and in time of emergency, in case of accident, fire, flood, storm, civil disturbances, time of war or other such emergency:

- A. To establish temporary parking and traffic regulations.

¹¹⁰.Editor's Note: See 75 Pa.C.S.A. § 101 et seq.

- B. To prohibit parking temporarily in limited areas.
- C. To prohibit pedestrians temporarily from entering certain limited areas.
- D. To establish temporary detours, one-way traffic or other appropriate regulations or restrictions.

§ 154-7. Types of regulations. [Amended 12-21-1981 by Ord. No. 519]

The Council may, from time to time by resolution, designate certain streets and developments in the Borough to be subject to any one or more of the following types of regulations and restrictions:

- A. One-way streets.
- B. Speed limits.
- C. Stop signs.
- D. Traffic control lights.
- E. No left turns, no right turns or no turns.
- F. Parking regulations, including prohibiting parking on either one side or both sides of a street.
- G. Fire lanes.
- H. Safety zones, pedestrian and crosswalks.
- I. Parking regulations, including prohibiting parking on either side of a fire lane or of an area designated as through traffic, and establish speed limits within the same or any other portion of a parking area of a shopping center, industrial development or residential apartment development or complex, and the Council may establish fire lanes in any such areas and prohibit parking or the obstruction of the same in any manner by vehicles.
- J. Any other regulation or restriction not unlawful or beyond the power of the Council to adopt.

§ 154-8. Restrictions against parking certain vehicles on residential streets. [Added 10-18-2016 by Ord. No. 874¹¹¹]

- A. It shall be unlawful to park on residential streets in the Borough of Baldwin any commercial motor vehicle, trailer, nonmotorized vehicles or trailers designed to be or actually attached or connected to a motor vehicle, recreational vehicle, including but not limited to boats, boat trailers, utility trailers, campers, travel trailers or any similar vehicle, the overall length of which is in excess of 20 feet, and/or exceeds 10,000 pounds gross vehicle weight. The measurement of detached trailers, campers and/or other nonmotorized vehicles, as it relates to the length/weight limit, includes the measurement of a towing vehicle, whether presently attached or not.
- B. Commercial and recreational vehicles, as defined in Subsection A, are hereby prohibited from being parked on residential streets in the Borough of Baldwin, except for local deliveries or services to or for residents, for improvements or repairs needed by residents or intended for use of a resident, which vehicles are customarily and ordinarily used in providing such services or repairs, or if engaged in a business activity, which parking shall be reasonably limited as to time and to the nature of the

111. Editor's Note: This ordinance also repealed former § 154-8, Vehicle weight limits on residential streets, added 1-19-1976 by Ord. No. 464.

business activity, services or repairs. Additionally, the prohibitions contained herein shall not apply to the stopping, standing or parking of firefighting equipment or other emergency vehicles, nor shall this section apply to the parking of vehicles of public utilities or contractors while engaged in the repair, maintenance or construction of streets or utilities within the Borough.

- C. Parking of vehicles with commercial signage painted on, or otherwise affixed to said vehicle, on residential streets, is limited to one vehicle per residential structure.
- D. Parking of commercial and recreational vehicles is permitted in a garage or private driveway as long as such parking conforms to the provisions of Article III of this chapter.
 - (1) Persons living on residential streets who do not have a legal driveway or parking pad shall be allowed to park on a residential street and are exempted from the prohibitions set forth above; provided, however, such residents must apply for a permit issued by the Borough for permission to park said vehicle(s) on the street. The Borough shall from time to time, by resolution, maintain procedures and rules regarding the issuance of such permits.
- E. The Baldwin Borough Police Department is hereby authorized to make determinations of violations of this section and to enforce provisions of this section.
- F. Any person violating any provision of this section shall be fined \$100. A separate offense shall be deemed committed each day during or on which a violation occurs or continues.

§ 154-9. Violations and penalties. [Amended 10-15-1973 by Ord. No. 441]

Any person violating any provisions of this article or any regulation or restriction hereinafter adopted by resolution pursuant hereto shall, upon conviction thereof in any summary proceeding before any District Magistrate, be sentenced to pay a fine according to the schedule of fines set forth in the Motor Vehicle Code of the Commonwealth of Pennsylvania,¹¹² or as it may be amended, and costs of prosecution, and in default of payment of such fines and costs, shall undergo imprisonment for a period not exceeding 10 days. Each day an offense continues shall be considered a separate offense. In the event that the amount of the fine is not set forth in the schedule of fines referred to hereinbefore, then the District Magistrate may impose a fine of not more than \$50 to be collected by summary conviction as fines and penalties are by law collected.

§ 154-10. Removal and impounding of vehicles.¹¹³

- A. Police officers of the Borough are hereby authorized to remove and impound or order the removal and impounding of any vehicle found violating the provisions of this article or any restriction or regulation adopted by resolution of the Council pursuant hereto or any abandoned motor vehicle as defined in Section 102 of the Pennsylvania Motor Vehicle Code.¹¹⁴
- B. Vehicles thus impounded shall be impounded and towed only in and by garages which shall be approved by separate resolution of the Borough Council of the Borough of Baldwin. No garage shall be approved by resolution until it shall have provided a bond to the Borough of Baldwin indemnifying the owner of such impounded vehicle against the loss thereof, or injury or damage thereto, while in the custody of such poundkeeper. The Borough shall from time to time by resolution designate an amount which it considers adequate for such protection. **[Amended 11-19-1973 by Ord. No. 442]**

¹¹².Editor's Note: See 75 Pa.C.S.A. § 101 et seq.

¹¹³.Editor's Note: See also Ch. 157, Vehicles, Impounding of.

¹¹⁴.Editor's Note: See 75 Pa.C.S.A. § 102.

- C. The Borough shall from time to time by resolution designate specific towing and storage charges.
- D. Within 12 hours from the time of the removal of any such vehicle, the Chief of Police of the Borough of Baldwin shall give notice of the fact that such vehicle has been impounded to the owner of record of such vehicle, designating the place from which said vehicle was removed, the reason for its removal and impounding, and the pound in which it has been impounded.
- E. The payment of such charges shall be determined from time to time pursuant to the provisions of Subsection C (fixing of charges) hereof shall be final and conclusive and shall constitute a waiver of any right to recover the money so paid, unless such payment shall be made under protest. In the event that the charges are paid under protest, the owner or offending person shall be entitled to a hearing before a District Justice or court of record having jurisdiction pursuant to the provisions of the Motor Vehicle Code of 1959, Act of June 11, 1963, P.L. 118, Section 1.¹¹⁵

115.Editor's Note: See 75 Pa.C.S.A. § 101 et seq.

ARTICLE II
Residential Parking Permits
[Adopted 9-17-2001 by Ord. No. 759]

§ 154-11. Issuance of permits.

The Chief of Police or designee shall provide for the issuance of residential parking permits as applied for, on such streets designated by this article, restricting all parking except parking by permit holders only who reside within that parking zone, the boundaries of which shall be established by the Chief of Police or designee.

§ 154-12. Permit requirements and fees.

- A. To persons who are residents of any particular street or portion thereof on which parking is restricted, every vehicle owned by those persons and registered in the Commonwealth of Pennsylvania will require a parking permit.
- B. No permit issued hereunder shall be valid for more than one calendar year but may be renewed upon expiration or January 1 of each concurrent year.
- C. The permit fee shall be \$10 per application, per vehicle, and the fee shall not be prorated. The permit is not transferable, however, it may be transferred to another automobile the resident of the apartment owns or leases. The permit shall be valid for one calendar year, expiring on December 31 of each year, provided the conditions for issuance exist.

§ 154-13. Parking within spaces required.

Vehicles are to be parked within marked spaces. Wherever a space is marked off on any street for the parking of an individual vehicle, every vehicle parked there shall be parked wholly within the lines bounding that space, and it shall be a violation of this article for any persons to park a vehicle or allow it to remain parked otherwise.

§ 154-14. Posted areas.

No persons shall park a vehicle at any time within the posted areas of the streets described in the following schedule of listed streets without a permit:

Schedule of Streets

Keepport Drive
Knoedler Road
Macassar Drive
Wolfe Drive
Youngridge Drive

§ 154-15. Visitor parking.

- A. On behalf of persons who are visitors of any resident of any particular street listed or any portion thereof on which parking is limited to permit holders only, they may purchase a visitor's placard in the amount of \$15 per visitor placard.

- B. Visitors' permits shall not be transferable. Residents who allow the visitor's permit issued to their dwelling unit to be used by a person not a visitor to their dwelling unit shall, in addition to the penalties set forth in this article, have said permit revoked for a period of one year beginning on the date of revocation. In addition, it shall be unlawful for a person to use a visitor's permit who is not a visitor at the dwelling unit to which that permit is registered. It shall not be a defense that the permit was being used with the permission of the registered owner. Such person shall, upon conviction, be subject to a fine of not less than \$50 nor more than \$300.
- C. Should a visitor's permit be lost or stolen, such fact shall be reported to the Police Department, which shall invalidate same forthwith. Any person who possesses or uses a visitor's permit which has been reported lost or stolen shall, upon conviction, be subject to a fine of not less than \$50 nor more than \$300.
- D. Lost or stolen visitors' permits may be replaced upon payment of a fee of \$5.

§ 154-16. Violations and penalties.

Any person violating any provisions of this article shall be liable, on conviction thereof, to a penalty not exceeding \$15 per violation for a maximum of three violations. After the maximum three violations, the Baldwin Borough Police Department shall tow the vehicle to the Borough impound location and notify the resident in writing of the location of the vehicle.

ARTICLE III

Parking Regulations; Residential Private Property
[Added 4-19-2016 by Ord. No. 870]**§ 154-17. Preamble; purpose; intent.**

The indiscriminate parking of motor vehicles on residential lawn areas and outside of off-street parking areas which were specifically built and designed for the parking of motor vehicles has many deleterious effects on the community. These include the destroying of lawn areas, resulting in creating dirt, mud and other debris on private and public property. Not only do these deleterious conditions lower the value of individual properties, thereby causing an overall lowering of all property value in the neighborhoods, but also mud, dirt and other debris are scattered and spread onto public streets by motor vehicles so parked when those vehicles leave the premises. Therefore, in order to stop the scattering of these materials, which have a deleterious effect on the public streets and the community as a whole, the Borough hereby declares that the parking of motor vehicles on residential private property outside of off-street parking areas is a public nuisance and prohibits the same.

§ 154-18. Definitions.

As used in this article, the following terms shall have the meanings indicated:

DRIVER — A person who drives or is in actual physical control of vehicle.

LAWN AREAS — The areas on a residential property not specifically designed for the parking of motor vehicles. Areas specifically designed for the parking of motor vehicles are hard surfaced driveways or pads constructed of concrete, asphalt, brick, gravel with barriers or permanent curbing, and the like.

MOTOR VEHICLE — A vehicle which is self-propelled including, but not limited to, automobiles, trucks, motorcycles, scooters, motor bikes and recreational vehicles, except one which is propelled solely by human power or any vehicle which is designed for the conveyance of one handicapped person.

OFF-STREET PARKING — The halting of a motor vehicle in any area beyond the street right-of-way, whether occupied or not, except momentarily for the purpose of and while actually engaged in loading or unloading property or passengers.

OFF-STREET PARKING AREA — An area or structure located beyond the street right-of-way, which is designed to be used for parking motor vehicles.

OWNER — Any person, operator, firm or corporation having a legal or equitable interest in the property; or recorded in the official records of the municipality as holding title to the property; or otherwise having control of the property, including the guardian of the estate of any such person, and the executor or administrator of the estate of such person if ordered to take possession of real property by a court.

VEHICLE — Every device in, upon or by which any person or property is or may be transported or drawn upon a highway.

§ 154-19. Parking prohibited.

Off-street parking of motor vehicles is expressly prohibited on lawn or landscaped areas located in residential districts.

§ 154-20. Responsibility of owners/drivers.

The owner and/or driver shall be responsible for complying with the provisions of § 154-19 of this chapter.

§ 154-21. Notice of field violations.

- A. Upon the discovery of any violation under the terms of this Ordinance, the Borough, through its authorized agents, is authorized to give notice to the owner and/or driver of a violation either by personal delivery to such owner and/or driver, by United States mail directed to the last known address of such owner and/or driver or by leaving the same on the vehicle which is parked in violation of this article.
- B. If such owner and/or driver, within seven days after delivery, mailing or leaving of such notice, pays to the Borough the sum of \$25 for the violation, the same will constitute full satisfaction for the violation noted in said notice.
- C. Each day that a violation exists shall constitute a separate violation. The failure of such owner and/or driver to make payment, as aforesaid, with seven days shall render such owner and/or driver subject to the penalties as provided herein.
- D. If such owner shall, in fact, make payment after such seven-day period but before the filing of a complaint with the District Magistrate on account of such violation, the sum of \$35 shall be in full satisfaction of such violation.

§ 154-22. Penalties.

On neglect or refusal of the owner and/or driver to comply with the provisions of this article, he, she or they shall, upon conviction of such default, neglect, failure or refusal, pay a fine of not less than \$50 and not more than \$500, plus costs of prosecution, and in default of payment of such fine and costs, to undergo imprisonment for not more than five days. The continuation or reoccurrence of the violation of this article after a period of 24 hours shall constitute a new and separate offense for each successive additional twenty-four-hour period.

ARTICLE IV

Snow Removal

[Added 12-17-2019 by Ord. No. 904]

§ 154-23. Shoveling or pushing snow into streets prohibited.

At all times during and after any snowstorm, it shall be unlawful for any person, firm or corporation to shovel, push, throw, or plow snow from a sidewalk, driveway, lot, or any other area onto the streets of the Borough.

§ 154-24. Violations and penalties.

Any person, firm or corporation who violates this article shall, upon conviction, be subject to a fine not to exceed \$300 per occurrence, and in default of payment thereof, to undergo imprisonment not exceeding 30 days. Each day that a violation of this chapter continues shall constitute a separate offense.

Chapter 157**VEHICLES, IMPOUNDING OF**

§ 157-1.	Definitions.	§ 157-9.	Record of impounded vehicles.
§ 157-2.	Abandoned vehicles prohibited.	§ 157-10.	Redemption of impounded vehicles.
§ 157-3.	Designation of storage garages.	§ 157-11.	Payment of charges.
§ 157-4.	Bond required.	§ 157-12.	Hearings.
§ 157-5.	Notice to owners.	§ 157-13.	Towing notice.
§ 157-6.	Presumption of ownership.	§ 157-14.	Towing receipt form.
§ 157-7.	Removal of vehicles.	§ 157-15.	Violations and penalties; enforcement.
§ 157-8.	Report and notice of impoundment.		

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 5-23-1966 by Ord. No. 322. Amendments noted where applicable.]

GENERAL REFERENCES

Vehicle and traffic regulations — See Ch. 157.

§ 157-1. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

ABANDONED VEHICLE — Any vehicle in such a state of disrepair as to be incapable of being moved under its own power or with any tire missing or without a wheel or wheels or with any window broken or missing or in a dismantled condition or without current license plates or without a current inspection sticker, which vehicle has not been moved or used for more than seven consecutive days. In the case of any such vehicle bearing current license plates, the seven-day period shall commence only when the Department of Police has sent, by registered mail, notice to the registered owner stating that the vehicle, if not immediately moved, shall be deemed to be abandoned.

VEHICLES — All automobiles, tractors, trucks, truck-tractors, truck trailers and other motor vehicles of any kind.

WHEEL LOCK — A device consisting of metal clamps or jaws and a padlocking device which, when attached to the wheel of a motor vehicle, prevents the vehicle from being driven.**[Added 7-21-1997 by Ord. No. 712]**

§ 157-2. Abandoned vehicles prohibited.

No person, association, partnership or corporation shall abandon vehicles or place an abandoned vehicle on any public street or way or upon any other public or private property within the Borough of Baldwin.

§ 157-3. Designation of storage garages.

The Mayor is hereby authorized and directed to designate a storage garage or garages, subject to the approval of the Borough Council, to be operated by the Police Department as an official vehicle pound or pounds to which vehicles impounded as hereinafter provided shall be removed.

§ 157-4. Bond required.

Any garage designated, pursuant to the provisions of this chapter, as a pound shall furnish a bond in favor of the Borough of Baldwin in the amount of \$10,000 indemnifying the owner of such impounded vehicle against the loss thereof, or injury or damage thereto, while in the custody of such poundkeeper.

§ 157-5. Notice to owners.

Any vehicle bearing current license plates and a current inspection sticker, regardless of its condition, shall be deemed an abandoned vehicle, where it is not used or moved for a period of 30 consecutive days after the Department of Police has sent registered mail notice to the registered owner stating that the vehicle, if not immediately moved, shall be deemed to be abandoned.

§ 157-6. Presumption of ownership.

Where the party abandoning the vehicle cannot be ascertained, then the Department of Police shall presume that the last owner, whether an individual person, association, partnership or corporation, registered with the Department of Revenue of the Commonwealth of Pennsylvania or similar department of any other state or territory or with any department of the United States or other nation, is the party guilty of the violation and is subject to the penalties prescribed in this chapter unless proof to the contrary is presented; however, this provision shall not apply to those persons, partnerships, associations or corporations who hold title to a vehicle solely as security under finance purchase agreements or as security for loans, and in such cases, the Department of Police shall presume that the party having control and custody of the vehicle under the finance or loan agreement is the party guilty of the violation and is subject to the penalties prescribed in this chapter, unless proof to the contrary is presented.

§ 157-7. Removal of vehicles.

When any vehicle shall be found wrecked, abandoned or parked in violation of laws and ordinances now or hereinafter in force or shall be seized, such vehicle shall be removed either by Borough-operated towing equipment or by a contract tower upon the authorization of the Chief of Police to a designated storage garage operated as a pound pursuant to the provisions of this chapter.

§ 157-8. Report and notice of impoundment.

A person removing or directing the removal of any vehicle shall immediately make a report thereof to the Chief of Police giving the registration number and location of the pound to which the vehicle has been removed and the reason for its removal and, within 12 hours from the time of removal, provided that the vehicle has not already been released from the pound, the Chief of Police shall notify the owner of record of such vehicle by registered mail that the same has been impounded, designating the place from which such vehicle was removed, the reason for its removal and impounding and the pound in which it has been impounded.

§ 157-9. Record of impounded vehicles.

The Chief of Police shall keep a record of all vehicles impounded and be able at all times to furnish the owners or agents thereof with information as to the place of impounding.

§ 157-10. Redemption of impounded vehicles.

Before the owner or his agent shall be permitted to remove an impounded vehicle from a designated pound he shall:

- A. Pay the duly authorized agent of the Borough Treasurer at the location of the pound a fee of \$12 to cover the administrative cost of the operation of the pound.
- B. Pay the towing charges incurred.
- C. If the vehicle has been impounded in the garage for a period longer than five hours, pay \$1 per day or fraction thereof. This storage charge is in addition to the administrative charge referred to in Subsection A.
- D. Secure from such duly authorized agent of the Borough Treasurer a certified release in duplicate, such release indicating whether or not the payments were made under protest. The agent of the Borough Treasurer shall retain the original release and, upon proper identification and ownership by the owner or his agent, said vehicle shall be released to him.
- E. Sign a receipt for such vehicle.

§ 157-11. Payment of charges.

The payment of towing and storage charges shall not operate to relieve the owner from liability for any fine or penalty for violation of any law or ordinance on account of which the vehicle was impounded, and provided, further, that payments of such charges, unless made under protest, shall be final and conclusive and shall constitute a waiver of any right to recover the money so paid.

§ 157-12. Hearings.

In the event that towing and impounding charges are paid under protest, the offender shall be entitled to a hearing before a District Justice having jurisdiction, in which case the defendant shall be proceeded against and receive such notice as is provided by the Vehicle Code in other cases of summary offenses and shall have the same rights as to appeal and waiver of hearing. If the District Justice shall, in accordance with law, acquit the defendant, the Justice shall forthwith certify to the Borough Treasurer the facts, and the Borough Treasurer shall, within five days, refund to the defendant the amount of said towing and storage charges paid by him or in his behalf.

§ 157-13. Towing notice.

The person removing or directing the removal of any vehicle under the provisions of this chapter shall affix securely a towing notice form in a prominent place on such vehicle, such form to bear the license number of the vehicle, the date, time, place and nature of the violation, and the name or identifying badge number of the person removing or directing the removal of the vehicle.

§ 157-14. Towing receipt form.

For the purpose of ascertaining any damage to the vehicle which may have occurred while in the custody of the poundkeeper, the person removing or directing the removal of any vehicle to the pound under the provisions of this chapter shall affix securely thereto and in a prominent place thereon a towing receipt form; such form to bear a schedule of obvious or apparent damage to said vehicle and any other additional information that may be deemed necessary.

§ 157-15. Violations and penalties; enforcement. [Amended 12-19-1985 by Ord. No. 566]

Any person, partnership, association or corporation violating any of the provisions of this chapter shall, upon judgment of the District Justice having jurisdiction to determine such violation, be subject to a fine not exceeding \$300 and costs for each offense or imprisonment in the Allegheny County Jail or Allegheny County Work House for a period not exceeding 30 days. A separate offense shall be deemed to have been committed on each calendar day during or on which the violation occurs or continues. In the case of associations and partnerships, the penalty may be imposed upon the members or partners thereof and, in the case of corporations, upon the officers thereof.

A. Any vehicle having five or more unpaid summonses issued against it within an eighteen-month period, charging that such vehicle was parked, stopped or standing in violation of the Motor Vehicle Code of the Commonwealth of Pennsylvania or any other traffic ordinance or regulation of the Borough of Baldwin, is deemed to be a public nuisance, and the Police Department of the Borough of Baldwin or any police officer of the Borough of Baldwin, or any other agent assigned by the Borough of Baldwin to traffic duty, is hereby authorized to: **[Added 7-21-1997 by Ord. No. 712]**

(1) Remove such vehicle or cause it to be removed at the sole cost and expense of the owner.

(2) Immobilize such vehicle(s) by means of applying a wheel lock. If the vehicle has remained immobilized for a period of 24 hours and release has not been obtained, the police or other Borough authority shall have the authority to remove such vehicle or cause it to be removed at the sole cost and expense of the owner. In any case involving the immobilization of a vehicle pursuant to this section, a notice shall be placed on such vehicle, in a conspicuous manner, sufficient to warn any individual that such vehicle has been immobilized and that any attempt to move such vehicle may result in damage thereto.

(a) Any tampering with or removal of the device shall be separate offenses and may be prosecuted as violations of the criminal mischief and theft sections of the Pennsylvania Crimes Code.¹¹⁶

(b) The Borough assumes no liability for loss or damage to such vehicle while immobilized.

B. The police or other Borough authority shall have the power and is hereby authorized to remove the vehicle by either private or governmental equipment in accordance with the provisions of Ordinance No. 322 of the Borough of Baldwin, adopted the 23rd day of May, 1966, as amended (this Chapter 157, §§ 57-1 through 57-15 of the Code of the Borough of Baldwin). **[Added 7-21-1997 by Ord. No. 712]**

116.Editor's Note: See 18 Pa.C.S.A. Chs. 33 and 39.

Chapter 159**VEHICLES, RECREATIONAL MOTORIZED**

§ 159-1.	Purpose.	§ 159-7.	Jurisdiction.
§ 159-2.	Definitions.	§ 159-8.	Violations and penalties.
§ 159-3.	Operation.	§ 159-9.	Impoundment of vehicle.
§ 159-4.	Exceptions and conditions.	§ 159-10.	Rules of interpretation.
§ 159-5.	Compliance with Pennsylvania law.	§ 159-11.	Severability.
§ 159-6.	Enforcement.	§ 159-12.	Effective date.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 11-15-2016 by Ord. No. 872.¹¹⁷ Amendments noted where applicable.]

GENERAL REFERENCES

Vehicles and traffic — See Ch. 154.

Vehicles with studded tires — See Ch. 160.

Vehicles, impounding of — See Ch. 157.

§ 159-1. Purpose.

This chapter seeks to improve the safety and quiet enjoyment of individuals living and/or doing business in the Borough of Baldwin, and to eliminate noise and dust and other air and ground pollution incident to the operation of ATVs, dirt bikes or other recreational motor vehicles on property within the limits of the Borough. This chapter also seeks to advance the purposes set forth in the Baldwin Borough Zoning Ordinance and is intended to prevent a public nuisance.

§ 159-2. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

OCCUPANT — A person who is legally entitled to reside on the property on which an ATV, dirt bike or other recreational motorized vehicle is being operated.

OPERATOR — A person who is operating an ATV, dirt bike or other recreational motorized vehicle.

OWNER — Any person who has legal or equitable title to the property on which an ATV, dirt bike or other recreational motorized vehicle is being operated.

RECREATIONAL MOTORIZED VEHICLES — A recreational motorized vehicle is defined for purposes of this chapter as follows: any self-propelled motorized vehicle used for recreational purposes, including a trail bike or other all-terrain vehicle, dirt bike, motor scooter, moped or snowmobile being used for off-road recreational purposes.

¹¹⁷Editor's Note: This ordinance also superseded former Ch. 159, Vehicles, Unlicensed and All-Terrain, adopted 2-20-2000 by Ord. No. 739.

- A. "All-terrain vehicle," or ATV, for the purposes of this chapter, means any motorized vehicle with three wheels or four wheels designed for use off of paved trails or roads which operates on three or more inflatable tires which are 1) a maximum of 50 inches and a maximum dry weight of 800 pounds (Class 1 ATV), or 2) a width which exceeds 50 inches or a dry weight which exceeds 1,000 pounds (Class 2 ATV). The term "ATV" shall include all-terrain vehicles as described above, "quads," "quad bikes," and tandem ATVs.
- B. "Motor scooter," for purposes of this chapter, means a vehicle that has motive power, a seat, but not a saddle, for the driver, two wheels, and a floor pad for the driver's feet and is not a vehicle intended for use due to health issues or disability of the operator.

SHALL — For the purposes of this chapter, the term "shall" is always mandatory and not discretionary.

§ 159-3. Operation.

It shall be unlawful for any individual to operate an ATV, dirt bike or other recreational motorized vehicle, as defined above, on any public or private street or public or private property in the Borough of Baldwin, except under the conditions set forth in § 159-4 herein.

§ 159-4. Exceptions and conditions.

- A. Specifically excluded from this chapter are all ATVs, dirt bikes and other recreational motorized vehicles used by the Baldwin Borough Police Department for law enforcement purposes and other municipal and government employees, including military personnel, using said vehicles for the purpose of carrying out the functions of their official positions.
- B. Excluded from this chapter are motorized wheelchairs or scooters or other necessary equipment used to transport an individual due to that individual's physical disability or medical condition as certified by a medical doctor.
- C. Also excluded from this chapter are off-road motorized vehicles used as utility vehicles for agricultural purposes, snow plowing/removal, lawn care, brush clearing of landowner's property, or any other "reasonable" property maintenance and/or landscaping.
- D. Operation of recreational motorized vehicles is allowed between the hours of 11:00 a.m. and 8:00 p.m. or sunset, whichever comes first. Operation in residential districts on Sundays is prohibited, except operation for maintenance only, which is to be limited to no more than one hour between 11:00 a.m. and 8:00 p.m. or sunset, whichever comes first.
- E. Operation of recreational motorized vehicles must not be within 500 feet of any residential property line.
- F. Recreational motorized vehicle riders must show written proof that property owners have allowed them to ride on their property.
- G. Operation of recreational motor vehicles must not be done in a way so as to create loud and unnecessary or unusual noises so as to disturb or interfere with the peace and quiet of the residents of the Borough of Baldwin.
- H. Man-made tracks and/or courses designed for racing recreational motor vehicles or other recreational purposes are prohibited in all residential districts within the Borough of Baldwin.
- I. All recreational motorized vehicles must be operated in a manner that does not violate any local, state

or federal laws.

§ 159-5. Compliance with Pennsylvania law.

To the extent applicable, this chapter incorporates by reference Pennsylvania's All-Terrain Vehicle Law as contained in Part 6, Chapter 77 of the Pennsylvania Vehicle Code and state regulations set forth in Title 17 Pa. Code, Chapter 51. All provisions shall be strictly enforced.

§ 159-6. Enforcement.

- A. A violation of this chapter shall be deemed a public nuisance and a summary offense and shall subject the owner/occupant of the property and/or any person operating an ATV, dirt bike or other recreational motorized vehicle in violation of this chapter to summary offense enforcement proceedings.
- B. The Baldwin Borough Police Department and the Code Enforcement Officer(s) of the Borough of Baldwin are hereby authorized to make an initial determination of violation of this chapter and to enforce provisions of this chapter.
- C. All enforcement officers in the state, including local and state police, shall have the authority, as set forth in Pennsylvania's Snowmobile and All-Terrain Vehicle Law and state regulations, to enforce Pennsylvania's Snowmobile/ATV Law, with municipal and state police having enforcement authority on private land.

§ 159-7. Jurisdiction.

Any violation of this chapter shall be within the jurisdiction of the District Justice whose jurisdiction covers the Borough of Baldwin as well as courts from which the District Judge's decision may, under the statutes of the Commonwealth of Pennsylvania, be appealed.

§ 159-8. Violations and penalties.

- A. Any person violating any provision of this chapter shall be fined \$100 plus the costs of prosecution, for his or her first offense; \$250 plus the cost of prosecution for his or her second offense; and \$1,000 plus the cost of prosecution for his or her third or subsequent offense, as well as impoundment of the vehicle. A separate offense shall be deemed committed each day during or on which a violation occurs or continues.
- B. Violation of this chapter shall be a summary offense, subject to summary enforcement proceedings and the appropriate officers or agents of the Borough of Baldwin are hereby authorized to seek equitable relief, including injunction, to enforce compliance with this chapter. Upon default in payment of a fine and upon a guilty finding of violation of this chapter, the violator may be subject to a term of imprisonment up to the maximum allowed for a summary offense.

§ 159-9. Impoundment of vehicle.

Upon the third or subsequent offense for violation of this chapter, the Police Department of the Borough of Baldwin or the Code Enforcement Officer of the Borough may confiscate and impound any vehicle operated in violation of this chapter. The vehicle shall be returned to the owner thereof upon payment of any fine imposed as a result of the violation of this chapter and upon payment of any storage charge incurred as a result of the impoundment.

§ 159-10

VEHICLES, RECREATIONAL MOTORIZED

§ 159-10. Rules of interpretation.

In this chapter, the use of the singular shall include the plural, and the use of headings is for convenience only.

§ 159-11. Severability.

If a section, provision or part of this chapter shall be judged to be invalid or unconstitutional, such adjudication shall not affect the validity of the Ordinance as a whole or any sections, provisions or parts thereof not adjudged invalid or unconstitutional.

§ 159-12. Effective date.

This chapter shall be in full force and effect from the date of its adoption by the Baldwin Borough Council and upon publication provided by law.

Chapter 160**VEHICLES WITH STUDDED TIRES**

§ 160-1.	Permit required.	§ 160-5.	Inspection.
§ 160-2.	Application for permit.	§ 160-6.	Restrictions on operation.
§ 160-3.	Permit fee; cash deposit.	§ 160-7.	Denial of permit; appeals.
§ 160-4.	Bond.	§ 160-8.	Violations and penalties.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 11-21-1957 by Ord. No. 140. Amendments noted where applicable.]

GENERAL REFERENCES

Operation of vehicles in parks — See Ch. 123, Art. I.

Impounding of vehicles — See Ch. 157.

Vehicles and traffic — See Ch. 154.

§ 160-1. Permit required.

No person, firm, partnership, association or corporation shall move any vehicle while the wheels of which or the traction thereof is equipped with cleats, blocks, studs, flanges or any other protuberance over, along or across any highways, streets or alleys in the Borough without first obtaining a permit from the Borough Secretary.

§ 160-2. Application for permit.

A person, firm, partnership, association or corporation seeking issuance of a permit hereunder shall file an application for such permit with the Borough Secretary. The application shall be made in writing upon forms provided by the Borough Secretary, and said application shall be filed in the office of the Borough Secretary. The application shall set forth:

- A. A description of the vehicle proposed to be operated, giving the make of the vehicle, the size of the vehicle and the condition of the wheels or traction thereof, as well as the type of wheels and traction.
- B. The highways, streets and alleys over, along or across which the vehicle is proposed to be moved.
- C. The time when said vehicle is proposed to be operated, showing the date and hours.
- D. The name, address and telephone number of the person, firm, partnership, association or corporation making the application.
- E. A statement as to whether the vehicle will merely traverse the highways, streets and alleys of the Borough or whether the applicant proposes to actually operate the vehicle on the said highways, streets and alleys in the performance of the vehicle's usual function.
- F. The number of vehicles proposed to be operated.
- G. Any additional information which the Borough Secretary shall find necessary to a fair determination

of whether a permit should be issued.

§ 160-3. Permit fee; cash deposit.

The application shall be accompanied by a permit fee in the amount of \$5 for each vehicle. Said fee shall be deposited by the Borough Secretary to the general account of the Borough of Baldwin. The application hereunder shall be accompanied by a cash deposit in a sum to be determined by the Borough Engineer as an indemnity for any damage which the Borough may sustain by reason of damage or injury to any highway, street or alley, sidewalk, fire hydrant or other property of the Borough, which may be caused by or be incidental to the operation of a vehicle when the wheels of which or the traction thereof is equipped with cleats, blocks, studs, flanges or any other protuberance.

§ 160-4. Bond.

Any person, firm, partnership, association or corporation filing an application hereunder may, in lieu of the cash deposit required above, file with the Secretary of the Borough a bond approved as to form by the Borough Solicitor, executed by a bonding or surety company authorized to do business in the Commonwealth of Pennsylvania in an amount determined by the Borough Engineer, conditioned upon the issuance that this chapter and other applicable ordinances and laws shall be complied with. Such bonds shall run to the Borough for the use and benefit of the Borough and shall be conditioned on the payment of any damage to public property from any act in connection with any of the activities or conditions upon which the permit applied for is granted.

§ 160-5. Inspection.

The Borough Engineer shall inspect the highways, streets and alleys proposed to be used by the applicant and shall fix the cash deposit or the bond in an amount sufficient to restore the paved surface of the Borough to its normal condition if the said paved surface should be damaged, injured or destroyed by reason of the operation of a vehicle, the wheels of which or the traction thereof is equipped with cleats, blocks, studs, flanges or other protuberances.

§ 160-6. Restrictions on operation.

The permittee hereunder shall comply with all permit directions and conditions and with all applicable laws and ordinances. The permittee may use the permit granted for the specific term provided for in the application. The permit shall be nonassignable, and in the event of an assignment of the same, the permit shall become immediately void. The permittee may operate the vehicles only upon the highways, streets and alleys designated for such use in the written permit. The permittee shall notify the Borough Secretary in writing of any change in the route proposed or the time proposed in the application. The permittee shall notify the Borough Secretary in writing of any and all damage done to property of the Borough of Baldwin within 24 hours after the injury or damage has occurred.

§ 160-7. Denial of permit; appeals.

Any person, firm, partnership, association or corporation aggrieved by the provisions of this chapter shall have the right to appeal the denial of a permit to the Council of the Borough of Baldwin. The appeal shall be taken within five days after notice of the denial, and Council shall act upon the said appeal at or before the next regular meeting of Council following the filing of the appeal. Any person, firm, partnership, association or corporation aggrieved by the decision of Council shall have the right to appeal to the courts of the commonwealth as provided by law.

§ 160-8. Violations and penalties. [Amended 5-19-1958 by Ord. No. 154; 12-19-1985 by Ord. No. 566]

Any person, firm, partnership, association or corporation violating any of the provisions of this chapter, upon conviction thereof before the District Justice, shall be sentenced to pay a fine in an amount not exceeding \$300 together with the costs of prosecution or to imprisonment for a period of up to 30 days. Each day such violation is committed or permitted to continue shall constitute a separate offense and shall be punishable as such hereunder.

ZONING

Chapter 168

ZONING

ARTICLE I		§ 168-360.	C-2: Large Retail and Professional Office District.
General Provisions			
		§ 168-370.	I-1: Light Industrial District.
§ 168-100.	Statutory authority.	§ 168-380.	I-2: Heavy Industrial District.
§ 168-110.	Overview and organization.	§ 168-390.	Airport District Overlay Zone.
§ 168-120.	Long title.	§ 168-395.	Route 51 Streetscape Enhancement Overlay (SEO) District.
§ 168-130.	Short title.		
§ 168-140.	Intent.		
§ 168-150.	Relationship to comprehensive plan.	§ 168-3100.	Municipally owned property.
§ 168-160.	Community development objectives.	ARTICLE IV	
§ 168-170.	Establishment of controls.	Conditional Uses, Special Exceptions, and Supplemental Regulations, Including Signs	
§ 168-180.	Interpretation of regulations.		
ARTICLE II		§ 168-400.	Conditional uses.
Terminology		§ 168-410.	Special exceptions.
		§ 168-420.	Supplemental regulations.
		§ 168-430.	Nonconforming uses or structures.
§ 168-200.	Word usage.		
§ 168-210.	Definitions.		
ARTICLE III		ARTICLE V	
Zoning Districts and Zoning Map		Administration	
		§ 168-500.	Borough Council.
§ 168-300.	Zoning Map; district boundary lines.	§ 168-510.	Zoning Officer and Building Inspector.
§ 168-310.	Establishment of districts.	§ 168-520.	Planning Commission and Zoning Hearing Board.
§ 168-320.	Land use chart.		
§ 168-330.	R-1: Single-Family Residential District.		
§ 168-340.	R-2: Medium and High Density Residential District.	ARTICLE VI	
§ 168-350.	C-1: Neighborhood Commercial District.	Enforcement and Penalties	
		§ 168-600.	Processes, violations and penalties, and fees.
		§ 168-610.	Enforcement and violations.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 6-21-2016 by Ord. No. 873.¹¹⁸ Amendments noted where applicable.]

118.Editor's Note: This ordinance also superseded former Ch. 168, adopted 9-24-1973 by Ord. No. 440, as amended.

BALDWIN CODE

GENERAL REFERENCES

Planning Commissions — See Ch. 38.

Building construction — See Ch. 74.

Uniform construction codes — See Ch. 83.

Erosion and sediment control — See Ch. 87.

Flood damage prevention — See Ch. 92.

Grading, excavations and fill — See Ch. 99.

Junkyards — See Ch. 105.

Massage parlors — See Ch. 116.

Mining — See Ch. 119.

Pornography — See Ch. 130.

Property maintenance — See Ch. 131.

Rental property — See Ch. 133.

Sewers — See Ch. 134.

Subdivision and land development — See Ch. 142.

ARTICLE I
General Provisions

§ 168-100. Statutory authority.

This chapter is adopted by virtue of the authority granted to the Borough by the Commonwealth of Pennsylvania by the Pennsylvania Municipalities Planning Code (MPC), Act 247 of 1968,¹¹⁹ as amended.

§ 168-110. Overview and organization.

This chapter is an important part of Baldwin Borough's overall land use management program that is implemented to protect the health, safety and welfare of the Borough's residential and business community. The chapter is divided into subchapters for ease of use and navigation:

- A. ARTICLE I, General Provisions: This article describes the overall zoning chapter, its purpose and objectives.
- B. ARTICLE II, Terminology: This article describes land uses and other terms relevant to this chapter.
- C. ARTICLE III, Zoning Districts and Zoning Map: This subchapter describes and establishes zoning districts, within which certain land uses are permitted.
- D. ARTICLE IV, Conditional Uses, Special Exceptions, and Supplemental Regulations, Including Signs: This article describes land uses related to structures and land in the Borough. It includes regulations such as setbacks and height restrictions. Additionally, there are requirements that are specific to certain uses or certain districts.
- E. ARTICLE V, Administration: This article describes the roles for individuals and groups as they apply to this chapter. These include the Borough Council, Zoning Officer, Building Inspector, Planning Commission and Zoning Hearing Board.
- F. ARTICLE VI, Enforcement and Penalties: This article describes application processes that allow for meaningful review and consideration of zoning permits, including approvals for conditional uses and special exceptions.

§ 168-120. Long title.

This chapter consists of an ordinance authorizing and empowering the Borough of Baldwin to plan its development and to govern the same by providing for zoning regulations, providing for appropriations and penalties for violations of the same; establishing zoning regulations for the use of land and structures, area of lots, bulk of buildings and other structures, the density of population, the provision of off-street parking and loading spaces and similar accessory regulations for the Borough of Baldwin, and for such purposes to divide the Borough into zoning districts; and repealing all ordinances in conflict herewith.

§ 168-130. Short title.

This chapter shall be known and may be cited as the "Zoning Ordinance of the Borough of Baldwin, Allegheny County, Pennsylvania."

119.Editor's Note: See 53 P.S. § 10101 et seq.

§ 168-140. Intent.

The Borough Council adopted "Baldwin Borough Plans: One Vision, One Baldwin," an update to the Borough Comprehensive Plan (hereinafter "Comprehensive Plan") on April 21, 2015. The zoning regulations and zoning districts set forth in this chapter are made in accordance with the Comprehensive Plan of the Borough of Baldwin for the general welfare of the Borough residents and are intended to achieve, among others, the following purposes: to secure safety from fire and other dangers, to provide adequate light and air, to prevent the overcrowding of the land and avoid undue concentrations of population, to facilitate adequate provisions for transportation, water, sewerage, schools, parks and other public requirements, as well as the conservation of the value of land and buildings. These land use regulations were made with reasonable consideration, among other things, of the existing character of the various areas and neighborhoods within the Borough, their respective suitability for particular land uses and with a view to conserving the value of buildings and encouraging the most appropriate use of land throughout Baldwin Borough. Furthermore, the districts established in this regulation are intended to achieve the following:

- A. To provide sufficient space, appropriately located for residential development to meet the housing needs of the present and expected future population of the Borough within the range of house types and densities anticipated.
- B. To assure light, air and privacy, as far as possible, by controlling the spacing and height of buildings and other structures.
- C. To protect residential areas against hazards of fire, offensive noise, vibration, smoke, odors, glare or other objectionable influences.
- D. To prevent congestion, as far as possible, by regulating the density of population and the bulk of buildings, and by providing for sufficient off-street parking.
- E. To protect residential neighborhoods, as far as possible, from heavy or through traffic.
- F. To make possible provisions of those public and private educational, recreational, health and similar facilities serving the needs of nearby residents, which perform most effectively in a residential environment and do not create objectionable influences.
- G. To promote the most desirable use of land and direction of building development in accord with a well-considered plan, to promote stable residential development, to protect the character of any district and its peculiar suitability for particular uses, to conserve the value of land and buildings and to protect the Borough tax revenues.

§ 168-150. Relationship to comprehensive plan.

This chapter is adopted to promote an orderly plan of development according to an established Comprehensive Plan, including data on existing conditions, statements concerning the proposed plan and evaluations of implementation techniques. Such material shall be considered as legislative history and shall be utilized when necessary to establish policy in the interpretation of this chapter.

§ 168-160. Community development objectives.

- A. The community development objectives of the Borough of Baldwin existing at the time of the adoption of this chapter are contained specifically in the Comprehensive Plan adopted by Borough Council on April 21, 2015. The Comprehensive Plan is on file in the office of the Secretary of the

Borough of Baldwin and was adopted for the purposes of ascertaining future land use, densities of population, location and function of streets, community facilities and utilities. The community development objectives include the following:

- (1) Preserve the character of Baldwin Borough's residential neighborhoods to ensure an adequate choice of attractive living accommodations promoting compatibility of both a strong single-family housing stock and healthy rental stock.
 - (a) Promote high-quality design geared toward sustaining attractive, functional, and enduring systems and places.
 - (b) Maintain and uphold long-term economic stability.
 - (c) Support and encourage a pedestrian-oriented environment and efficient traffic circulation.

§ 168-170. Establishment of controls.

- A. Minimum and uniform regulations. The regulations set by this chapter within each district shall be minimum regulations and shall apply uniformly to each class or kind of structure or land.
- B. For new uses and structures. In all districts, after the effective date of this chapter, any new building or other structure on any tract of land shall be constructed, developed and used only in accordance with the regulations specified for each district.
- C. For existing uses and structures. In all districts, after the effective date of this chapter, any existing building or other structure or any tract of land which is not in conformity with the regulations for the district in which it is located shall be deemed as nonconforming and subject to the regulations of this chapter.

§ 168-180. Interpretation of regulations.

- A. In interpreting the language of this chapter to determine the extent of a restriction upon the use of property, the language shall be interpreted, where doubt exists as to the intended meaning of the language written and enacted by the governing body, in favor of the property owner and against any implied extension of the restriction.
- B. The interpretation of the regulations of this chapter is intended to be such that, whenever these requirements are at variance with any other lawfully adopted rules, regulations, ordinances, deed restrictions or covenants, as particularly refer to area and bulk regulations and impose higher standards, the most restrictive requirement shall govern.

ARTICLE II Terminology

This article describes land uses and other terms relevant to this chapter.

§ 168-200. Word usage.

For the purpose of this chapter, certain words shall have the meanings assigned to them, as follows:

- A. Words used in the present tense include the future. The singular number includes the plural and the plural the singular.
- B. The word "building" includes "structure" and any part thereof.
- C. The phrase "used for" includes "arranged for," "designed for," "intended for," "maintained for" or "occupied for."
- D. The word "person" includes an individual, corporation, partnership, incorporated association or any other similar entity.
- E. The word "includes" or "including" shall not limit the term to the specified example but is intended to extend its meaning to all other instances of like kind and character.

§ 168-210. Definitions. [Amended 7-18-2023 by Ord. No. 927]

The following words and phrases shall have the meanings given in this section, as follows:

ACCESSORY BUILDING or ACCESSORY USE — A building or use customarily incidental and subordinate to the principal building or use and located on the same lot with such principal building or use.

- A. An accessory use includes, but is not limited to, the following:
 - (1) Children's playhouse, garden house or private greenhouse.
 - (2) Civil defense shelter serving not more than two families.
 - (3) Carport, utility shed, shed or building for domestic storage.
 - (4) Storage of merchandise normally carried in stock on the same lot with any commercial use unless such storage is excluded by the district regulations.
 - (5) Storage of goods used in or produced by manufacturing activities, on the same lot or parcel of ground with such activities, unless such storage is excluded by district regulations.
 - (6) Nonpaying guesthouse or rooms for nonpaying guests within an accessory building, provided that such facilities are used for the occasional housing of guests or occupants of the principal building and not for permanent occupancy by others as housekeeping units.
 - (7) Servants' quarters or servants' house.
 - (8) Off-street motor vehicle parking area; loading and unloading facility.
 - (9) Home occupation.

(10) Fence.

(11) All accessory uses shall be governed by this chapter.

ADDICTION TREATMENT FACILITY — A facility that specializes in evaluation and treatment of drug addiction, substance abuse, alcoholism, eating disorders, and associated or similar physical and/or mental disorders, including methadone clinics. The facility may offer overnight accommodations to monitor patient health.

ADDRESS MARKER — A marker, not more than two square feet in size, indicating address and/or name of a residential property or indicating the address of a commercial property.

AIRPORT ELEVATION — The highest point of an airport's usable landing area measured in feet above sea level. The airport elevation of the Allegheny County Airport is 1,250 feet above mean sea level.

AIRPORT HAZARD — Any structure or object, natural or man-made, or use of land which obstructs the airspace required for flight or aircraft in landing or taking off at an airport or is otherwise hazardous as defined in 14 CFR Part 77 and 74 P.S. § 5102.

AIRPORT HAZARD AREA — Any area of land or water upon which an airport hazard might be established if not prevented as provided for in this article and the Act 164 of 1984 (Pennsylvania Laws Relating to Aviation).¹²⁰

ALLEY — A service way providing a secondary public means of access to abutting properties, or a way as shown on a recorded plan.

ALTERATIONS — As applied to a building or structure, a change or rearrangement in the structural parts or in the existing facilities, or an enlargement, whether by extending on a side or by increasing in height, or the moving from one location to another, or any change in use from that of one zoning district classification to another.

APPROACH SURFACE (ZONE) — An imaginary surface longitudinally centered on the extended runway center line and extending outward and upward from each end of the primary surface. An approach surface is applied to each end of the runway based on the planned approach. The inner edge of the approach surface is the same width as the primary surface and expands uniformly depending on the planned approach. The approach surface zone, as shown on Figure 1,¹²¹ is derived from the approach surface. Figure 1 is on file in the Borough offices.

AREA — The size of a building or land parcel in square feet or acres.

AREA, BUILDING — The total of areas taken on a horizontal plane from ground to the sky of the principal building and all accessory buildings, exclusive of uncovered porches, terraces and steps.

AREA, FLOOR — The sum of the gross horizontal areas of the several floors of a building or buildings, measured from the exterior faces of exterior walls, or from the center line of common walls separating buildings. For purposes of determining parking and loading space requirements for the several zoning districts herein, the floor area of a building or buildings shall include basement space, penthouses, attic space providing structural headroom of 7 1/2 feet or more, interior balconies and mezzanine enclosed porches, accessory uses other than accessory off-street parking, lobbies and hallways. For determination of parking and loading space requirements, the following areas shall not be included: basement space, elevator shafts and stairwells, floor space for mechanical equipment as necessary to service the needs of the building, uncovered steps, terraces, breezeways, open spaces unroofed unless specifically required in the parking regulations herein, and fitting and dressing rooms.

¹²⁰.Editor's Note: See 74 P.S. § 5101 et seq.

¹²¹.Editor's Note: See 74 P.S. § 5101 et seq.

ARTIST AND PHOTOGRAPHY STUDIO — An establishment, in conjunction with or without a dwelling, designed for the preparation, instruction, display and/or sale of individually crafted work related to artwork, jewelry, furniture, sculpture, pottery, leathercraft, hand-woven articles, literature or performance of fine arts such as but not limited to drawing, vocal or instrumental music.

AUTOMOBILE — A self-propelled, free-moving vehicle, primarily used for personal conveyance on a public street or way.

AUTOMOBILE AND/OR TRAILER SALES AREA — An open area, other than a street or way, used for the display of new and/or used automobiles or trailers, and where minor and incidental repair work (other than body and fender repair) may be done.

AUTOMOBILE FUEL STATION — A building(s), premises or portions thereof which are used, arranged, designed or intended to be used for the retail sale of gasoline or other fuel for motor vehicles, boats or aircraft, as well as for minor automobile repair, including state inspections.

AUTOMOBILE LAUNDRY or CAR WASHING FACILITY — A structure used for the purposes of cleaning or reconditioning the exterior and interior surfaces of automotive vehicles, but not including an incidental one-bay washing facility in a gasoline service station where washing facilities are purely incidental to the operation of said service station. A self-operated vehicular laundering facility not requiring attendants or employees, regardless of capacity, is also considered to be an "automobile laundry" under this definition.

AUTOMOBILE SERVICE AND REPAIR — Engine rebuilding or major reconditioning of worn or damaged motor vehicles or trailers; collision service, including body, frame or fender straightening or repairs; and overall painting of vehicles.

AWNING SIGN — A sign painted or incorporated into a roof-like cover often made of fabric, metal or glass designed and intended for protection from the weather or as a decorative embellishment which projects from a wall or roof over a window, walk or door.

BAR OR NIGHTCLUB — A business establishment which provides on-site alcoholic beverage sales for drinking on the premises, where food is served only as accessory use, where live entertainment (not including adult entertainment) may also be provided, and where minors are not admitted unless accompanied by a parent or guardian.

BASEMENT — A story partially underground, but having more than 1/2 of its height above the average level of the adjoining ground. A "basement" shall be counted as a story for the purpose of height measurement if the vertical distance between the ceiling and the average level of the adjoining ground is five feet or more or if the basement is used for business or dwelling purposes.

BILLBOARD — A sign that conveys information regarding an establishment, an activity, a person, a product, or a service that is unrelated to or unavailable on the premises on which the sign is located.

BOROUGH — The Borough of Baldwin.

BUFFER AREA — A strip of land which is planted and maintained in shrubs, bushes, trees, grass or other landscaping material and within which no structure is permitted except a wall or fence.

BUILDING — A structure or appendage to a structure which is permanently affixed to the land, has one or more floors or stories and is bounded by either lot lines or yards. A building may accommodate more than one family and have more than one dwelling unit and may be used for residential, commercial, manufacturing, public or semipublic purposes.

BUILDING AND LANDSCAPE MATERIALS SALES OR STORAGE YARD — A business establishment specializing in the sale and/or short- or long-term storage of wholesale and/or retail

construction supplies and materials for home improvement.

BUILDING HEIGHT — The vertical distance measured from the lowest elevation of the finished grade around the building to the highest point of the roof for flat roofs, to the deckline of mansard roofs, and to the mean height between eave and ridge for gable, hip and gambrel roofs.

BUILDING SETBACK LINE — The line of that face of the building nearest the front line of the lot. This face includes sun parlors and covered porches, whether enclosed or unenclosed, but does not include walks, steps or terraces.

BULK — The term used to describe the size of buildings or other structures and their relationship to each other, to open area such as yards and to lot lines and includes the size, height and floor area of a building or other structure; the relation of the number of dwelling units in a residential building to the area of the lot (usually called "density"); and all open areas in yard space relating to buildings and other structures.

CARPORT — A structure with a roof, no walls and four corner supports, but containing no side sections and which is intended to provide covered parking for motor vehicles.

CEMETERY — Land used or intended to be used for the burial of dead humans and dedicated for cemetery purposes, including columbariums, crematories, mausoleums and mortuaries, when operated in conjunction with and within the boundary of such property.

COMMISSION — All references to the "Commission" are to be the Borough of Baldwin Planning Commission.

COMMUNICATIONS FACILITIES — Towers, antennas and associated structures operated by any person, agency or corporation who or which furnishes wireless, mobile cellular radio telecommunications services, radio, television and/or other communications services for public or private use, excluding, however, police, fire and emergency transmissions by governmental units. This includes communication antennas, towers, and equipment transmitting and receiving facilities.

CONDITIONAL USES — Those uses of property allowed in certain districts of the Borough, not as a matter of right, but after approval of the governing body upon recommendation of the Planning Commission and upon the meeting of certain conditions that may be imposed thereon.

CONICAL SURFACE (ZONE) — An imaginary surface extending outward and upward from the periphery of the horizontal surface at a slope of 20 feet horizontally to one foot vertically for a horizontal distance of 4,000 feet. The conical surface zone, as shown in Figure 1,¹²² is based on the conical surface. Figure 1 is on file in the Borough offices.

CONVERTED HOUSE TRAILER — A trailer rendered immobile and placed on either a temporary or permanent foundation for use as sleeping or living quarters. A converted house trailer is considered a mobile home.

CORNER LOT — A lot bounded on adjacent sides by intersecting streets. On through lots, the front lot line shall be located on the side having principal access. The required setback on all sides bounded by a street shall equal the building setback line of the district in which the corner lot is situated. With regards to decorative fences, the established front yard will be the yard facing the street or road bearing the mailing address of the property. The other yard will be considered the side yard and shall be required to comply with the front yard requirements regarding fences.

COUNCIL — All references to the "Council" are to the Council of the Borough of Baldwin.

COVERAGE — That percentage of the lot area covered by the building area.

¹²².Editor's Note: See 74 P.S. § 5101 et seq.

CREMATORIUM — A location containing properly installed, certified apparatus intended for use in the act of cremation.

DAY-CARE or DAY NURSERY — A facility designed to provide daytime care or instruction for two or more children or adults, whose numbers shall be determined by the sponsoring agency or persons establishing the same and who meet all applicable state and federal requirements, if any, for operation of the same.

DENSITY, BUILDING OR DWELLING UNIT — Maximum number of dwelling units permitted per acre or per lot.

DEPARTMENT — Pennsylvania Department of Transportation.

DISTRICT, ZONING — A section of the Borough for which uniform regulations governing the use, height, area and intensity of use of buildings and land and open spaces about buildings are established.

DRIVE-THROUGH — An accessory use or structure that provides an access drive connecting to and from the public right-of-way for motor vehicles so as to serve patrons while in their motor vehicle(s).

DRY CLEANING (RETAIL) — A business establishment for receiving, pickup and pressing of garments where no cleaning or drying operations are conducted.

DRY CLEANING FACILITY — An establishment for the cleaning of clothing and fabric with chemical solvents rather than water.

DWELLING — A building designed or used exclusively as the living quarters for one or more families.

DWELLING UNIT — A building or portion thereof providing complete housekeeping facilities for one family.

DWELLING, MULTIPLE-FAMILY — A dwelling or group of dwellings on one plot or lot containing separate living units or dwelling units for three or more families, but which may have joint services or facilities, or both, and not exceeding three stories in height.

DWELLING, MULTISTORY MULTIPLE-FAMILY — A multiple-family dwelling of more than three stories, but not exceeding seven stories and 75 feet in height, unless further restricted in district regulations herein.

DWELLING, SINGLE-FAMILY ATTACHED — A building that contains at least three dwelling units, each of which are separated from the adjoining unit or units by a continuous, common wall extending from the basement to the roof, each unit having independent access directly to the outside and having no other units above or below.

DWELLING, SINGLE-FAMILY DETACHED — A detached building designed for or occupied exclusively by one family.

DWELLING, TWO-FAMILY — A building designed for or occupied exclusively by two families living independently of each other, with separate dwelling unit entrances.

EASEMENT — A nonpossessory right to use and/or enter into the real property of another without possessing it. Authorization by a lot owner of the use by another and for a specified purpose of any designated part of his lot.

ENLARGEMENT — An addition to the floor area of an existing building, an increase in size of another structure or an increase in that portion of a tract of land occupied by an existing use.

ENTERTAINMENT FACILITY — An enterprise operated for profit by other than a public entity completely within an enclosed structure for the pursuit of sports, recreation and entertainment activities, including, but not limited to, such establishment as theaters, multiplex theaters, dance halls, bowling alleys,

fitness centers, indoor racquet clubs and the like. This does not include a sexually oriented business.

ESSENTIAL SERVICES — The erection, construction, alteration or maintenance, by public utilities or municipal or other governmental agencies, of underground or overhead gas, electrical, steam or water transmission or distribution systems or collection, communication, supply or disposal systems.

FAA — Federal Aviation Administration of the United States Department of Transportation.

FARM — Land devoted to agriculture, stock-raising, dairy, produce or allied industry that may include a private stable not less than 200 feet distant from any adjacent property line.

FENCE — An enclosure or barrier not exceeding six feet in height where the open portion thereof exceeds in area the closed portion.

FINANCIAL INSTITUTION — A business establishment where the principal business is the receipt, disbursement, or exchange of funds and currencies such as banks, savings, loans, credit unions or check cashing establishments. Establishment may or may not offer a drive-through window.

FOOTCANDLE — Unit of light density incident on a plane (assumed to be horizontal unless otherwise specified), and measurable with an illuminance meter, aka "light meter."

FULL-CUTOFF — Attribute of a luminaire from which no light is emitted at or above a horizontal plane drawn through the lowest light-emitting portion of the luminaire, and no more than 10% of the lamp's intensity is emitted at or above an angle 10° below that horizontal plane at all lateral angles around the luminaire. A full-cutoff luminaire, by definition, also is "fully shielded."

FULLY SHIELDED — Attribute of a luminaire from which no light is emitted at or above a horizontal plane drawn through the lowest light-emitting portion of the luminaire.

FUNERAL HOME — A building licensed by the Commonwealth of Pennsylvania that contains a suitable storage room for the deceased and may include embalming facilities and rooms for the display of burial ceremonies of the deceased, but excludes crematories.

GARAGE, PRIVATE — An accessory building, housing only automobiles, the property of and for the use of the occupants of the lot on which the private garage is located.

GARAGE, PRIVATE DETACHED — An accessory building housing only motor vehicles, the property of and for the use of occupants of the premises on which the garage is located. Any such detached garage, notwithstanding any other provision of this chapter, shall house no more than three vehicles, contain no more than 700 square feet of area and will be no higher than 12 feet measured from the grade to the eaves and be no closer than 10 feet from any side yard and no closer than five feet from any rear yard.

GARAGE, PUBLIC — Any garage other than a private detached garage or a private garage, available to the public, and which is used for storage, parking, repair, rental, greasing, washing, servicing, adjusting or equipping of motor-driven vehicles.

GARDEN CENTER — A business enterprise which conducts the retail of plants grown off-site, as well as accessory items (but not power equipment such as gas or electric lawnmowers and farm implements) directly related to their care and maintenance. The accessory items normally sold are clay pots, potting soil, fertilizers, insecticides, hanging baskets, rakes and shovels.

GLARE — Excessive brightness in the field of view that is sufficiently greater than that to which the eyes are adapted to cause annoyance or loss in visual performance and visibility so as to jeopardize health, safety or welfare.

HEIGHT — For the purpose of determining the height limits in all zones set forth in this article and shown on the Zoning Map, the datum shall be mean sea level elevation unless otherwise specified.

HIGH-RISE — A high-rise dwelling unit is generally considered to be a multiple-family dwelling exceeding seven habitable stories or 70 feet in height. The height shall be measured from the lowest point of the ground surface around the building.

HOME BASED BUSINESS, NO-IMPACT — A business administered or conducted clearly secondary to the use as a residential dwelling and which involves no customer, client or patient traffic, whether vehicular or pedestrian, pickup, delivery or removal functions to or from the premises, in excess of those normally associated with residential use. The business must satisfy the following requirements:

- A. The business activity shall be compatible with the residential use of the property and surrounding residential uses.
- B. The business shall employ no employees other than members residing in the dwelling.
- C. There shall be no display or sale of retail goods and no stockpiling or inventory of a substantial nature.
- D. There shall be no outside appearance of a business use, including but not limited to parking, signs or lights.
- E. No on-site parking of commercially identified vehicles shall be permitted.
- F. The business activity may not use any equipment or process which creates noise, vibration, glare, fumes, odors, or electrical or electronic interference, including interference with radio or television reception, which is detectable in the neighborhood.
- G. The business activity may not generate any solid waste or sewage discharge, in volumes or type, which is not normally associated with residential use in the neighborhood.
- H. The business activity shall be conducted only within the dwelling and may not occupy more than 25% of the habitable floor area.
- I. The business may not involve any illegal activity.

HOME OCCUPATION — A business conducted within a dwelling whereas said business is not classified as a home-based business, no-impact.

HORIZONTAL SURFACE (ZONE) — An imaginary plane 150 feet above the established airport elevation that is constructed by swinging arcs of various radii from the center of the end of the primary surface and then connecting the adjacent arc by tangent lines. The radius of each arc is based on the planned approach. The horizontal surface zone, as shown on Figure 1,¹²³ is derived from the horizontal surface. Figure 1 is on file in the Borough Offices.

HOSPITAL — An institution or building for reception, care and medical treatment of the sick or injured, containing facilities for surgery and twenty-four-hour-per-day emergency treatment, including ancillary commercial activities customarily incident thereto.

ILLUMINANCE — Quantity of incident light, measured in footcandles.

IMPROVEMENT — Any type of structure, excavation or paved section or change thereof.

INSTITUTIONAL HOME — Any dwelling, home, house, multiple-family dwelling, hotel, motel, building, structure or facility or any part or portion of any of those previously identified items established, used and/or operated as the temporary or permanent residence or shelter, for more than one full day, for more than two persons who are not relatives of the operator. The term "institutional home" shall include the

¹²³ Editor's Note: See 74 P.S. § 5101 et seq.

facilities as defined herein regardless of whether such facilities are established, owned, used or operated as private or public facilities, as profit-making facilities or entities or as charitable facilities or entities, and regardless of what name, title, description or designation might be applied to such facilities by the owners and/or operators thereof. The term "institutional home" shall include but shall not be limited to such facilities as hospices, detention facilities, halfway houses, regardless of the nature of the residents thereof, asylums, orphanages, rehabilitation facilities, sanitariums, vocational training facilities, nursing homes and the like. The term shall include any facilities established, owned, used or operated as public or private facilities, as profit-making facilities or entities or as charitable facilities or entities, regardless of what name, title or designation might be applied to such facilities by the owners thereof. However, the term shall not include an addiction treatment facility or the like.

LARGER THAN UTILITY RUNWAY — A runway that is constructed for and intended to be used by propeller-driven aircraft of greater than 12,500 pounds' maximum gross weight and jet-powered aircraft.

LIBRARY or MUSEUM — A building or room containing collections of books, periodicals, and sometimes films and recorded music for people to read, borrow, or refer to; a building in which objects of historical, scientific, artistic, or cultural interest are stored and exhibited.

LIGHT TRESPASS — Light emitted by a luminaire or installation which is cast beyond the boundaries of the property on which the lighting installation is sited.

LOADING SPACE — An off-street space or berth, abutting upon a street or way or other appropriate means of access, intended for the temporary parking of a commercial vehicle while loading or unloading merchandise or materials, which space or berth is not less than 10 feet in width and of sufficient length to ensure that no vehicle using the space shall extend beyond the property line, and in no case shall the space or berth be less than 25 feet in length.

LOT — A parcel, tract or area of land accessible by means of a public street. It may be a single parcel separately described in a deed or plat which is recorded in the office of the County Recorder, or it may include parts of or a combination of such parcels when adjacent to one another and used as one parcel.

LOT LINE, FRONT — In the case of an interior lot, the line separating the lot from the street.

LOT LINE, REAR — The line generally parallel to the front lot line which defines the rear of the lot.

LOT LINE, SIDE — Any lot line which is not a front lot line or a rear lot line.

LOT WIDTH — The horizontal distance between side lot lines measured along the front lot line or the building setback line.

LOT, DEPTH OF — The mean horizontal distance between the front lot line and the rear lot line, measured midway between the side lot lines.

LOT, THROUGH — A lot having frontage on two parallel or approximately parallel streets and which is not a corner lot.

LUMEN — As used in the context of this section, the light-output rating of a lamp (light bulb).

MANUFACTURING — The process of making wares by hand, by machinery or by other agency, often with the provision of labor and the use of machinery.

MEDICAL OR DENTAL CLINIC — A facility for the outpatient diagnosis and treatment of human ailments not involving twenty-four-hour-per-day operation and not involving sale of drugs or foodstuffs on the premises.

MIXED-USE OR LIVE-WORK BUILDING — A lot or building on or in which various land uses are combined as an integrated development. A "single site" may include contiguous but unconsolidated lots.

MOBILE HOME — Any licensed or unlicensed piece of mobile equipment designed or constructed to be towed, pulled by a motor vehicle or self-propelled, regardless of whether the wheels are attached or unattached or a permanent or semipermanent foundation is constructed underneath or any structure of a permanent or semipermanent nature is attached thereto and intended for human occupancy.

MOBILE HOME PARK — A tract of land containing not less than 10 contiguous acres used or intended to be used for the parking of mobile homes, together with the necessary improvements and facilities upon the land.

MOTEL-HOTEL — A building or a group of buildings having units containing sleeping accommodations which are available for a temporary rental occupancy by transients and providing sufficient off-street parking facilities adjacent or convenient thereto. A tourist home containing provisions or facilities for accommodation of more than two transient occupants not normally quartered on the premises shall be considered as a "motel-hotel" facility under the provisions of this chapter.

MUNICIPAL FACILITIES — A building or lot operated or owned by the Borough of Baldwin.

NON-PRECISION-INSTRUMENT RUNWAY — A runway having an existing instrument approach procedure utilizing air navigation facilities with only horizontal guidance or area-type navigation equipment, for which a straight-in non-precision-instrument approach procedure has been approved or planned.

NONCONFORMING BUILDING OR STRUCTURE — Any lawful building or other structure which does not conform to one or more of the applicable area and bulk regulations of the district in which it is located either on the effective date of this chapter or as a result of a subsequent amendment thereto.

NONCONFORMING LOT — Any lawful lot which does not conform to one or more of the applicable area regulations of the district in which it is located either on the effective date of this chapter or as a result of a subsequent amendment thereto.

NONCONFORMING USE — Any lawful use, whether of a building or other structure or of a tract of land, which does not conform to the applicable use regulations of the district in which it is located, either on the effective date of this chapter or as a result of subsequent amendments thereto. However, no existing use shall be deemed "nonconforming" solely because of the existence of less than the required off-street parking or loading conditions or the existence of less than the required supplementary regulations, excluding signs.

OBSTRUCTION — Any structure, growth, or other object, including a mobile object, which exceeds a limiting height set forth by this chapter.

OFFICE BUILDING — A building designed or primarily used for office purposes, no part of which is used for manufacturing or a dwelling other than living quarters for a watchman or custodian.

OPEN SPACES — Common greens, parks, other recreation space or generally open areas available to the public; or yards or other open areas provided in connection with residential buildings occupied by more than two families per lot which are intended for the sole use of the occupants of such buildings and their guests.

OTHER THAN UTILITY RUNWAY — A runway that is constructed for and intended to be used by propeller-driven aircraft of greater than 12,500 pounds maximum gross weight and jet-powered aircraft.

PARKING LOT — Any lot, parcel or yard used in whole or in part for the storage or parking of two or more vehicles where such usage is not incidental to or in conjunction with a one-family or two-family dwelling.

PARKING SPACE — An open or covered area with a paved all-weather surface, or space in a private

garage or other structure, which space shall be at least nine feet by 20 feet in size for the storage of one automobile, accessible from a public way.

PAVED AREA — A percentage which, when multiplied by the lot area, will determine the permitted ground area which may be covered with an impervious surface.

PERMITTEE AND/OR LICENSEE — A person in whose name a permit and/or license to operate a sexually oriented business has been issued, as well as the individual listed as an applicant on the application for a permit and/or license.

PERSON — An individual proprietorship, partnership, corporation, association or other legal entity.

PERSONAL SERVICES — A business enterprise conducted for gain which primarily offers services to the general public such as shoe repair, valet service, watch repairing, barbershop, beauty parlors and related activities.

PERSONAL-CARE RESIDENCE — A building where food, shelter and personal assistance or supervision are provided for at least one full day for three or more ambulatory adults who are not relatives of the operator and who may require assistance or supervision in such matters as dressing, bathing, diet or medication prescribed for self-administration but do not require hospitalization or care in a skilled nursing or intermediate-care facility.

PERSONAL-CARE RESIDENCE, LARGE — A personal-care residence having more than 10 occupants, including clients (any person who is a resident), operator (any person responsible for the day-to-day operation and supervision of the home) and family of the operator. An operator may also be the householder.

PERSONAL-CARE RESIDENCE, SMALL — A personal-care residence that is limited to no more than 10 persons and no fewer than three persons, including clients (any person who is a resident), operator (any person responsible for the day-to-day operation and supervision of the home or residence) and family of the operator. An operator may also be the householder. Clients shall be limited to no more than eight persons.

PLANNING COMMISSION — The Planning Commission of the Borough of Baldwin.

PORCH — A roofed open structure projecting from the front, side or rear wall(s) of a building.

PRECISION INSTRUMENT RUNWAY — A runway having an existing instrument approach procedure utilizing an instrument landing system (ILS) or a precision approach radar (PAR). It also means a runway for which a precision approach system is planned and is so indicated on an approved airport layout plan or any other planning document.

PRIMARY SURFACE (ZONE) — An imaginary surface longitudinally centered on the runway, extending 200 feet beyond the end of paved runways or ending at each end of turf runways. The elevation of any point on the primary surface is the same as the elevation of the nearest point on the runway center line. The primary surface zone, as shown on Figure 1,¹²⁴ is derived from the primary surface. Figure 1 is on file in the Borough offices.

PRIVATE — Any organization or establishment limited to members of an organization recognized by the commonwealth or other persons specifically invited or permitted where no inducement or advertisement has been made to the general public.

PRIVATE OUTDOOR RECREATION — An area maintained in its natural state as a private property for recreation. This use may include playgrounds, lawns, trails, pavilions, ballfields, courts, tracks and other areas designed and intended for outdoor recreation.

¹²⁴ Editor's Note: See 74 P.S. § 5101 et seq.

PROFESSIONAL OFFICE — A room or rooms used for carrying on a professional occupation which is recognized by the commonwealth and requires a license for practice. A professional office includes a medical or dental clinic.

PROVIDER OF PERSONAL WIRELESS SERVICE FACILITIES — A person or entity offering telecommunications services using duly authorized devices which do not require individual licenses, but does not mean the provision of direct-to-home satellite services; the term also relates to providers of facilities for the provision of personal wireless services and providers of commercial mobile services, unlicensed wireless services and common carrier wireless exchange access services.

PUBLIC RECREATION — Leisure-time activities, including but not limited to sports and entertainment that are open to anyone without restriction, except for rules and standards of conduct and use.

PUBLIC UTILITY — A service by a company or agency or individual licensed or regulated by the Public Utility Commission of the Commonwealth of Pennsylvania, distributing water, gas or electricity by means of a network of overhead or underground lines, all of which shall be to provide such services to residents or occupants of properties within the zoning district of the same; the term shall not include communications facilities, such as telephone, cellular telecommunications, radio transmissions, television transmissions or any other communications services for public or private use, for transmission to persons, residents or occupants of premises not in the zoning district in which the services are provided; excluding therefrom, however, police, fire and emergency transmissions by government units or facilities.

PUBLIC UTILITY SERVICE BUILDINGS, STRUCTURES OR FACILITIES — Public utility service buildings, structures or facilities owned by a public utility as defined herein and which provide the services for which the building, structure or facility was designed to residents of the zoning district in which the building, structure or facility is located. The term shall not include telephones, central offices, electric substations, communications facilities, tower sites or other electronic, or radioactive, electromagnetic transmission towers, antennas or other equipment or facilities for transmission for use by the general public situate outside the boundaries of the Borough of Baldwin.

RELIGIOUS ESTABLISHMENT — Includes any or all of the following: church, manse, rectory, convent, parish school or similar building incidental to the particular use; school for religious education; convents and other buildings for the housing of students and teachers, communicants and domestic or maintenance employees, but not including business offices, except those administrative offices housed within the structure or rescue missions or the occasional use for religious purposes of properties not regularly so used.

RESTAURANT — A place where the principal and substantial activity is the sale of food and the incidental sale of beverages.

RETAIL — Any business establishment not otherwise specifically defined in this chapter that sells or rents commodities and/or services on the premises directly to the general public, available for immediate purchase and removal, but not including the manufacturing or processing of any products.

- A. **RETAIL, LARGE** — Retail store with a gross floor area equal to or more than 5,000 square feet. This use may include grocery stores and wholesaling but shall not include manufacturing or processing.
- B. **RETAIL, SMALL** — Retail store with a gross floor area less than 5,000 square feet. This use may not include wholesaling, manufacturing or processing of goods.

RIGHT-OF-WAY — A type of easement granted or reserved over the land for transportation purposes as well as electrical transmission lines, pipelines, maintenance or other uses.

RUNWAY — A defined area of an airport prepared for landing and takeoff of aircraft along its length.

SCHOOL — Any building, group of buildings or grounds, or portion thereof, used for the purposes of

educating individuals.

SELF-SERVICE LAUNDRY — A business that provides home-type washing, drying or ironing machines or dry-cleaning machines for hire to be used by customers on the premises.

SEXUALLY ORIENTED BUSINESS — An adult arcade, adult bookstore or adult video store, adult cabaret, adult motel, adult motion-picture theater, adult theater, escort agency, nude model studio or sexual encounter center. A sexually oriented business may include, but is not limited to, any of the following uses, terms or activities:

- A. **ADULT ARCADE** — Any place to which the public is permitted or invited wherein coin-operated or slug-operated or electronically, electrically or mechanically controlled still- or motion-picture machines, projectors or other image-producing devices are maintained to show images to five or fewer persons per machine at any one time and where the images so displayed are distinguished or characterized by the depicting or describing of specified sexual activities or specified anatomical areas.
- B. **ADULT BOOKSTORE or ADULT VIDEO STORE** —
 - (1) A commercial establishment which, as one of its principal business purposes, offers for sale or rental for any form of consideration any one or more of the following:
 - (a) Books, magazines, periodicals or other printed matter or photographs, films, motion pictures, videocassettes or video reproductions, slides or other visual representations which depict or describe specified sexual activities or specified anatomical areas; or
 - (b) Instruments, devices or paraphernalia which are designed for use in connection with specified sexual activities.
 - (2) A commercial establishment may have other principal business purposes that do not involve the offering for sale or rental of material depicting or describing specified sexual activities or specified anatomical areas and still be categorized as "adult bookstore" or "adult video store." Such other business purposes will not serve to exempt such commercial establishment from being categorized as an "adult bookstore" or "adult video store" so long as one of its principal business purposes is the offering for sale or rental for consideration the specified materials which depict or describe specified sexual activities or specified anatomical areas.
- C. **ADULT CABARET** — A nightclub or bar or similar commercial establishment which regularly features:
 - (1) Persons who appear in the state of nudity;
 - (2) Live performances which are characterized by the exposure of specified anatomical areas or by specified sexual activities; or
 - (3) Films, motion pictures, videocassettes, slides or other photographic reproductions which are characterized by the depiction or description of specified sexual activities or specified anatomical areas.
- D. **ADULT MOTEL** — A hotel, motel or similar commercial establishment which:
 - (1) Offers accommodations to the public for any form of consideration; provides patrons with closed-circuit television transmissions, films, motion pictures, videocassettes, slides or other photographic reproductions which are characterized by the depiction or description of specified

- sexual activities or specified anatomical areas; and has a sign visible from the public right-of-way which advertises the availability of this adult-type of photographic reproductions; or
- (2) Offers sleeping rooms for rent four or more times in one calendar day during five or more calendar days in any continuous thirty-day period.
- E. ADULT MOTION-PICTURE THEATER — A commercial establishment where, for any form of consideration, films, motion pictures, videocassettes, slides or other photographic reproductions are regularly shown which are characterized by the depiction or description of specified sexual activities or specified anatomical areas.
- F. ADULT THEATER — A theater, concert hall, auditorium or similar commercial establishment which regularly features persons who appear in a state of nudity or live performances which are characterized by the exposure of specified anatomical areas or specified sexual activities.
- G. ESCORT — A person who, for consideration, agrees or offers to act as a companion, guide or date for another person or who agrees or offers to privately model lingerie or to privately perform a striptease for another person.
- H. ESCORT AGENCY — A person or business association who furnishes, offers to furnish or advertises to furnish escorts as one of its primary business purposes for a fee, tip or other consideration.
- I. NUDE MODEL STUDIO — Any place where a person who appears in a state of nudity or displays specified anatomical areas is provided to be observed, sketched, drawn, painted, sculptured, photographed or similarly depicted by other persons who pay money or any form of consideration.
- J. NUDITY or STATE OF NUDITY — The appearance of a human bare buttock, anus, male genitals, female genitals or female breast. For the purposes of this chapter, nudity does not include modeling for a class operated in a viewing room:
- (1) By a proprietary school, licensed by the Commonwealth of Pennsylvania, or a college, junior college or university supported entirely or partly by taxation;
- (2) By a private college or university which maintains and operates educational programs in which credits are transferable to a college, junior college or university supported entirely or partly by taxation; or
- (3) In a structure:
- (a) Which has no sign visible from the exterior of the structure and no other advertising that indicates a nude person is available for viewing;
- (b) Where, in order to participate in a class, a student must enroll at least three days in advance of the class; and
- (c) Where no more than one nude model is on the premises at any one time.
- K. SEMINUDE — A state of dress in which clothing covers no more than the genitals, pubic region and areola of the female breast, as well as portions of the body covered by supporting straps or devices.
- L. SEXUAL ENCOUNTER CENTER — A business or commercial enterprise that, as one of its primary business purposes, offers for any form of consideration:

- (1) Physical contact in the form of wrestling or tumbling between persons of the opposite sex; and
 - (2) Activities between male and female persons and/or persons of the same sex when one or more of the persons is in a state of nudity or seminude.
- M. SPECIFIED ANATOMICAL AREAS — The male genitals in a state of sexual arousal and/or the vulva or more intimate parts of the female genitals.
- N. SPECIFIED SEXUAL ACTIVITIES — Includes any of the following:
- (1) The fondling or other erotic touching of human genitals, pubic region, buttocks, anus or female breasts.
 - (2) Sex acts, normal or perverted, actual or simulated, including intercourse, oral copulation or sodomy.
 - (3) Masturbation, actual or simulated.
 - (4) Excretory functions as part of or in connection with any of the activities set forth in Subsections (1) through (3) above.
- O. SUBSTANTIAL ENLARGEMENT (OF A SEXUALLY ORIENTED BUSINESS) — The increase in floor areas occupied by the business by more than 25%, as the floor areas exist on date of enactment of this chapter.
- P. TRANSFER OF OWNERSHIP OR CONTROL (OF A SEXUALLY ORIENTED BUSINESS) — Includes any of the following:
- (1) The sale, lease or sublease of the business.
 - (2) The transfer of securities which constitute a controlling interest in the business, whether by sale, exchange or similar means.
 - (3) The establishment of a trust, gift or other similar legal device which transfers the ownership or control of the business, except for transfer by bequest or other operation of law upon the death of the person possessing the ownership or control.

SHIELDED — A luminaire from which no direct glare is visible at normal viewing angles by virtue of its being properly aimed, oriented, and located and properly fitted with such devices as shields, barn doors, baffles, louvers, skirts or visors.

SIGN — A sign is a name, identification, description, display (including electronic) or illustration which is affixed to, or painted, or represented directly or indirectly upon a building, structure, or piece of land and which directs attention to an object, product, place, activity, person, institution, organization, or business. The definition of "sign" does not include the display of any official court or public office notices nor any official or municipal traffic control or parking sign or device, nor shall it include the flag, emblem or insignia of a nation, state, county, municipality, school, or a religious group. A sign shall not include name, identification, description, display or illustration that is located completely within an enclosed building.

- A. SIGN, ANIMATED — Any sign or part of a sign or sign face that changes physical position or light intensity by any movement or rotation or that gives the visual impression of such movement or rotation of the sign or sign face.
- B. SIGN AREA — The entire sign face (one side only), or, where the sign consists of raised letters or symbols, or a sign face of irregular shape, the sign area shall include the area of the smallest rectangle,

circle or oval that can encompass the letters, symbols, or irregularly-shaped sign face.

- C. SIGN, BANNER — Any sign intended to be hung, either with or without frames, of lightweight material such as paper, plastic, or fabric of any kind. National flags, state or municipal flags or the official flag of any institution or business shall not be considered banners.
- D. SIGN, BUILDING — A sign attached to any part of a building, including a sign projecting from a part of a building.
- E. SIGN, CANOPY — A sign attached to a roof extension of a building with or without support, but not walls.
- F. SIGN, CHANGEABLE COPY OR LETTERING — A sign or portion thereof with characters, letters, or illustrations that can be changed or rearranged, mechanically or electronically, without altering the face or the surface of the sign.
- G. SIGN, DIRECTIONAL — A sign, no greater than five square feet in size, that provides on-site directional assistance or instruction to vehicular or pedestrian traffic relative to parking area, entrances and exits. Such sign shall contain no advertising other than the business name or logo and shall provide directional information, such as "No Parking," "Entrance," "Exit," "One Way," "Loading Only," "Telephone," and other similar directives. Directional, incidental signs shall be located only in conjunction with site drive entrances and/or internal traffic drive aisles.
- H. SIGN, FREESTANDING — A sign that is supported from the ground and not attached to a building. The sign may be attached to a pole, mast, frame or other structure that is not itself and integral part of, or attached to, a building.
- I. SIGN, LED — Any sign or portion thereof that displays electronic images, graphics, or pictures, with or without textual information, using LEDs (light emitting diodes), fiber optics, light bulbs, or other illumination devices or combination thereof within the display area and where a static message change sequence is accomplished immediately or by means of fade, repixelation, dissolve or other such modes, devices, processes, products, applications or technologies from a proximate or remote location. Such signs include computer-programmable and microprocessor-controlled electronic displays.
- J. SIGN, MONUMENT — A freestanding sign in which a solid structure, the width of which is equal to or greater than the width of the sign face, is used to mount the sign area on, in or as an integral part of such structure.
- K. SIGN, MARQUEE — A sign attached to a permanent structure, other than a roof, attached to, supported by, and projecting from, a building, and providing protection from natural elements.
- L. SIGN, POLITICAL — A temporary sign directly associated with any national, state, or local government election.
- M. SIGN, TEMPORARY — Any sign not permanently attached to the ground or other permanent structure, or which is designed to be transported.
- N. SIGN, WALL — Any sign painted on or adhered directly to a wall of a building.

SINGLE-FAMILY DETACHED DWELLING — A building designed for and occupied exclusively as a residence for only one family, having no party wall in common with an adjacent building and having yard areas on all four sides.

SPECIAL EXCEPTION — A special exception deals with special permission, granted only by the Zoning Hearing Board, to occupy land for specific purposes when such use is not permitted by right in the Principal Land Use Chart.¹²⁵

STORY — That portion of a building, other than the basement (as defined), included between the surface of any floor and the surface of the floor next above it, or if there is no floor above it, then the space between the floor and the ceiling next above it.

STREET — A right-of-way, or portion thereof, intended for general public use to provide means of approach for vehicles and pedestrians. The word "street" includes the words "road," "highway," "thoroughfare" and "way."

STREET ACCESS POINT — The distance between any vehicular entrance and exit along a street.

STREET CENTER LINE — A line which is usually at an equal distance from both lot lines or right-of-way lines.

STRUCTURAL ALTERATIONS — Any change in the supporting members of a building, such as bearing walls or partitions, columns, beams or girders, or any substantial change in the roof or in the exterior walls.

STRUCTURE — An object, including a mobile object, constructed or installed by man, including, but not without limitation, buildings, towers, cranes, smokestacks, earth formation and overhead transmission lines.

SWIMMING POOL — A structure used for the purpose of swimming and having a mean depth of two feet or more.

TELECOMMUNICATIONS ANTENNA — A device used to collect or transmit telecommunications or radio signals, such as panels, microwave dishes, single poles known as whips and such other devices used for these purposes, but which shall not exceed 10 feet in height or six feet in width, or which shall not have a diameter of more than six feet in width.

TOWER — A structure that is intended to support equipment used to transmit and/or receive telecommunications signals, including monopoles and lattice construction steel structures.

TOWER SITE — Any lot or parcel on which communications facilities, as defined herein, are located or proposed to be located.

TRANSITIONAL SURFACE (ZONE) — An imaginary surface that extends outward and upward from the edge of the primary surface to the horizontal surface at a slope of seven feet horizontally to one foot vertically. The transitional surface zone, as shown on Figure 1, is derived from the transitional surface. Figure 1 is on file in the Borough offices.

TREE — Any object of natural growth.

TRUCK — A motor-driven vehicle used for hauling purposes.

USE — The specific purpose for which land or a building is designed, arranged, intended or for which it may be occupied or maintained. The term "permitted use" or its equivalent shall not be deemed to include any nonconforming use.

UTILITY RUNWAY — A runway that is constructed for and intended to be used by propeller-driven aircraft of 12,500 pounds' maximum gross weight or less.

VETERINARIAN FACILITY — A business establishment operated by a veterinary medical doctor(s), certified in the Commonwealth of Pennsylvania, for the medical or surgical treatment of domestic,

125.Editor's Note: Said chart is included as an attachment to this chapter.

agricultural or zoological animals.

VISUAL RUNWAY — A runway intended solely for the operation of aircraft using visual approach procedures.

WADING POOL — A structure containing water, but not used for the purposes of swimming or landscaping. A "wading pool" is not a reflecting pool or cooling pool for mechanical equipment or a decorative fountain. A "wading pool" is no more than two feet in depth and is designed for use by people.

YARD — A space on the same lot with a principal building, open, unoccupied and unobstructed by structures, except as otherwise provided in this chapter.

YARD OR GARAGE SALE — The sale of items by an individual or family conducted on premises of said individual or family's dwelling.

YARD, FRONT — A yard extending across the full width of the lot, unoccupied other than by steps, walks, terraces, driveways, lampposts and similar structures, the depth of which is the least distance between the front lot line and the building line.

YARD, REAR — A yard extending across the full width of the lot between the rear of the principal building and the rear lot line, unoccupied by other than accessory buildings which do not occupy more than 30% of the space, and steps, walks, terraces, driveways, lampposts and similar structures, the depth of which is the least distance between the rear lot line and the rear of such building.

YARD, SIDE — A yard between the principal building and the side lot line extending from the front yard or from the front lot line, where no front yard is required, to the rear yard. The width of the required side yard is measured horizontally and at 90° with the side lot line, from the nearest part of the principal building.

ZONING MAP — A map entitled the "Borough of Baldwin, Pennsylvania, Zoning Map."

ARTICLE III
Zoning Districts and Zoning Map

This article describes where land uses are permitted. It establishes zoning districts, within which certain land uses are permitted, and the Borough Zoning Map, which defines the locations of those zoning districts.

§ 168-300. Zoning Map; district boundary lines.

- A. Adoption of Zoning Map. The areas within the Borough limits as assigned to each district and the location of boundaries of the districts established by this chapter are shown on the Zoning Map, which is declared to be part of this chapter and shall be kept on file with the Borough Secretary.
- B. District boundary lines.
 - (1) The district boundary lines shall be as shown on the Zoning Map. District boundary lines are intended to coincide with lot lines, center lines of streets, the limits of the Borough or as dimensioned on the map.
 - (2) Where a district boundary is not fixed by dimensions and where it approximately follows lot lines, such boundary shall be construed to follow such lot lines unless specifically shown otherwise.
 - (3) The location of a district boundary that divides a lot shall be determined by the use of the scale appearing on the Zoning Map unless indicated otherwise by dimensions. In case any further uncertainty exists, the Zoning Officer shall interpret the intent of the map as to the location of the district boundary lines.
 - (4) Where a municipal boundary divides a lot, the minimum lot area shall be regulated by the municipality in which the principal use(s) are located, unless otherwise provided by applicable case law. The land area within each municipality shall be regulated by the use regulations and other applicable regulations of each municipality.

§ 168-310. Establishment of districts.

- A. Types of districts. For the purpose of this chapter, the entire Borough of Baldwin is hereby divided into the following districts:
 - (1) Residential districts.
 - (a) R-1: Low density single-family residential district.
 - (b) R-2: Medium and high density residential district.
 - (2) Commercial districts.
 - (a) C-1: Neighborhood commercial district.
 - (b) C-2: Large retail and professional office district.
 - (3) Industrial districts.
 - (a) I-1: Light industrial district.

- (b) I-2: Heavy industrial district.

§ 168-320. Land use chart.

The Land Use Chart to included as an attachment to this chapter.

§ 168-330. R-1: Single-Family Residential District.

A. The purpose of this zoning district is to:

- (1) Further the statement of intent and community development objectives as included in this chapter and to further the goals and objectives of the Borough Comprehensive Plan.
- (2) Promote home ownership in the Borough to build property values and create a sense of community.
- (3) Create and maintain healthy residential neighborhoods that include single-family detached residences.

B. Use regulations.

- (1) Permitted principal uses: refer to the Principal Land Use Chart.¹²⁶
- (2) Permitted accessory uses. Only the following accessory uses shall be permitted:
 - (a) Customary residential accessory uses.
 - (b) Swimming pools.
 - (c) A private detached garage limited to three motor-driven vehicles.
 - (d) No-impact home-based businesses.
 - (e) Yard or garage sales.

C. Area and bulk regulations. The following regulations shall be observed:

- (1) Lot size: 10,000 square feet minimum.
- (2) Lot width at building setback line: 70 feet minimum.
- (3) Lot coverage: 35% maximum.
- (4) Minimum front building setback: 35 feet.
- (5) Maximum front building setback: 1/2 the depth of the lot.
- (6) Side yards.
 - (a) Dwellings: five feet minimum one side, 20 feet total both sides.
 - (b) Nonresidential structures: 25 feet minimum each side.
- (7) Rear yards: 35 feet minimum.

126.Editor's Note: Said chart is included as an attachment to this chapter.

- (8) Maximum height.
 - (a) Dwellings: 43 feet or three stories.
 - (b) Private detached garage: 12 feet at eaves.

D. Off-street parking regulations and standards as required by this chapter.

§ 168-340. R-2: Medium and High Density Residential District.

A. The purpose of this zoning district is to:

- (1) Further the community development objectives as included in this chapter and to further the goals and objectives of the Borough Comprehensive Plan.
- (2) Provide a mix and variety of housing types to build strong residential neighborhoods in the Borough.

B. Use regulations.

- (1) Permitted principal uses: refer to Principal Land Use Chart.¹²⁷
- (2) Permitted accessory uses. Only the following accessory uses shall be permitted:
 - (a) Customary residential accessory uses.
 - (b) Swimming pools.
 - (c) A private detached garage limited to three motor-driven vehicles.
 - (d) No-impact home-based businesses.
 - (e) Yard or garage sales.

C. Area and bulk regulations. The following regulations shall be observed:

- (1) Single-family detached dwelling.
 - (a) Lot size: 7,000 square feet minimum.
 - (b) Lot width at building setback line: 55 feet minimum.
 - (c) Lot coverage: 35% maximum.
 - (d) Minimum building setback: 35 feet.
 - (e) Side yards.
 - [1] Dwelling: five feet one side minimum, 15 feet total both sides.
 - [2] Nonresidential: 25 feet each side.
 - (f) Rear yard: 30 feet minimum.
 - (g) Maximum height.

127.Editor's Note: Said chart is included as an attachment to this chapter.

[1] Dwellings: 43 feet or three stories.

[2] Private detached garage: 12 feet at eaves.

(2) Two-family dwelling.

- (a) Lot size: 5,000 square feet per dwelling, minimum.
- (b) Lot width at building setback line: 80 feet minimum.
- (c) Lot coverage: 25% maximum.
- (d) Minimum setback: 35 feet.
- (e) Side yards: 25 feet total, 10 feet one side.
- (f) Rear yard: 1,500 square feet per dwelling unit and not less than 30 feet in depth.
- (g) Maximum building height: 30 feet or 2 1/2 stories.
- (h) Paved area: 35% maximum.

(3) All other uses:

- (a) Lot size: one acre minimum.
- (b) Lot width at building setback line: 150 feet.
- (c) Open area: 25% minimum.
- (d) Lot coverage: 35% maximum.
- (e) Maximum height: 43 feet or three stories.
- (f) Paved area: 40% maximum.
- (g) Minimum building setback: 35 feet plus the height of the building over 35 feet.
- (h) Side yards: 30 feet or the height of the building, whichever is greater.
- (i) Rear yard: 30 feet or the height of the building, whichever is greater.
- (j) Any yard abutting another residence district: 30 feet plus the height of the building.
- (k) High-rise. Any yard abutting another residence district: 150 feet plus the height of the building.
- (l) Dwelling unit density.

[1] The following minimum lot areas shall be provided:

- [a] When the dwelling units have only one bedroom each, provide 1,200 square feet for each dwelling unit, plus paved parking space equal to 1 1/2 spaces per dwelling unit, plus usable open space of 500 square feet per dwelling unit. Thus, for each dwelling unit having one bedroom, the total lot area required shall be 1,970 square feet.

- [b] When the dwelling units have more than one bedroom each, there shall be provided for each additional bedroom a lot area of 500 square feet, plus a total paved area equal to two spaces, plus additional usable open space of 500 square feet per bedroom.
- [c] When computing lot area, no streets serving a multiple-family dwelling, whether public or private, shall be included in the lot area. If the streets are to remain private, their widths shall be considered as 50 feet.

(4) Off-street parking regulations and standards: as required by this chapter.

§ 168-350. C-1: Neighborhood Commercial District.

A. The purpose of this zoning district is to:

- (1) Further the community development objectives as included in this chapter and to further the goals and objectives of the Borough Comprehensive Plan.
- (2) Provide opportunities for non-residential uses to locate in proximity to residential neighborhoods such that the sales and services provided by these non-residential areas are reasonably accessible to the residential areas.
- (3) Allow for the creation of small pockets of commercial uses that are easily accessible to residential neighborhoods and serve as a transitional buffer between more intense non-residential uses and residential areas.
- (4) In addition to the general goals listed in the preamble and statement of intent, it is the purpose of this section to provide commercial and other permitted facilities to serve primarily the needs of the local residents, including neighborhood-type facilities and general convenience needs.

B. Use regulations.

- (1) Permitted principal uses: Refer to the Principal Land Use Chart.¹²⁸
- (2) Permitted accessory uses:
 - (a) Accessory buildings and uses customarily incidental to the above uses.

C. Area and bulk regulations.

- (1) Maximum building height: two stories or 25 feet.
- (2) Maximum building size: 25,000 square feet.
- (3) Lot width: 100 feet at building setback line.
- (4) Lot coverage: 50% maximum.
- (5) Building setback line: 40 feet minimum.
- (6) Side yards:
 - (a) Ten feet minimum per side.

128.Editor's Note: Said chart is included as an attachment to this chapter.

- (b) Corner lots shall provide 30 feet to the side abutting the street.
- (c) Abutting R districts: 15 feet.
 - [1] Rear yard: 25 feet minimum.
 - [2] Height of building: 43 feet maximum, but not to exceed three stories.
 - [3] Paved area: 50% maximum.
- D. Off-street parking regulations and standards: as required by this chapter.
- E. Off-street loading regulations: as required by of this chapter.
- F. Design standards: as required by § 168-420R, Non-residential design standards, of this chapter.
- G. Signs: as required by this chapter.

§ 168-360. C-2: Large Retail and Professional Office District.

- A. The purpose of this zoning district is to:
 - (1) Further the community development objectives as included in this chapter and to further the goals and objectives of the Borough Comprehensive Plan.
 - (2) Accommodate local and regional commercial uses.
 - (3) In addition to the general goals listed in the preamble and statement of intent, it is the purpose of this section to provide for a cohesive unit of commercial stores arranged and constructed according to a plan which will serve both the neighborhood and the community. It is also necessary to provide for the regulations requiring landscaping as well as provisions covering submission of plans so that such areas may be made to blend with adjoining uses.
- B. Use regulations.
 - (1) Permitted principal uses: Refer to the Principal Land Use Chart.¹²⁹
 - (2) Permitted accessory uses:
 - (a) Accessory buildings and uses customarily incidental to the above uses.
- C. Area and bulk regulations:
 - (1) Lot coverage: 35% maximum.
 - (2) Building setback line: 60 feet minimum.
 - (3) Side yards: 12 feet.
 - (4) Rear yard: 50 feet minimum.
 - (5) Paved areas: 60% maximum.
 - (6) Building size: maximum 100,000 square feet.

129.Editor's Note: Said chart is included as an attachment to this chapter.

- (7) Building length: 400 feet maximum.
- (8) Building height: eight stories.
- (9) Street access points: 300 feet minimum apart.
- (10) Design standards: as required § 168-420R, Nonresidential design standards, of this chapter.

§ 168-370. I-1: Light Industrial District.

A. The purpose of this zoning district is to:

- (1) Further the community development objectives as included in this chapter and to further the goals and objectives of the Borough Comprehensive Plan.
- (2) Provide suitable regulations for freestanding light industrial uses which can be accommodated in open areas near urbanized development.
- (3) Accommodate limited residential and commercial development.

B. Use regulations.

- (1) Permitted principal uses: Refer to the Principal Land Use Chart.¹³⁰
 - (a) No noxious, odorous or undue noises, smoke, fumes, etc., shall be permitted in any of the foregoing uses. Such uses shall be completed within buildings and shall not involve processes generating smoke, fumes, odors, dust, noise or vibrations in an amount noticeable outside the building or which would adversely affect surrounding properties or the basic residential character of the total community.
- (2) Permitted accessory uses:
 - (a) Administrative activities and offices.
 - (b) Restaurant or cafeteria facilities for employees.

C. The following regulations shall be observed for the development of lots less than 174,240 square feet (four acres).

- (1) Area and bulk regulations:
 - (a) Lot coverage: 40% maximum.
 - (b) Building setback line: 35 feet minimum.
 - (c) Side yards: 20 feet minimum. Corner lots shall provide 35 feet to the side abutting the street.
 - (d) Rear yard: 30 feet minimum.
 - (e) Height of building: 40 feet maximum.
- (2) Off-street parking regulations and standards: as required by this chapter.

130.Editor's Note: Said chart is included as an attachment to this chapter.

- (3) Off-street loading regulations: as required by this chapter.
 - (4) Design and performance standards: as required by § 168-420R, Non-residential design standards, of this chapter.
 - (5) Signs: as required by this chapter.
- D. The following regulations shall be observed for the development of lots 174,240 square feet (four acres) or larger.
- (1) Area and bulk regulations. The following regulations shall be observed:
 - (a) Lot coverage: 50% maximum.
 - (b) Building setback line: 50 feet minimum.
 - (c) Side yards (site): 15 feet minimum.
 - (d) Rear yard (site): 50 feet minimum.
 - (e) Individual building length: 300 feet maximum.
 - (f) Building height: 40 feet maximum.
 - (g) Paved areas: 35% maximum.
 - (2) Off-street parking regulations and standards: as required by this chapter.
 - (3) Off-street loading regulations: as required by this chapter.
 - (4) Design and performance standards: as required by § 168-420R, Non-residential design standards, of this chapter.
 - (5) Signs: as required by this chapter.

§ 168-380. I-2: Heavy Industrial District.

- A. The purpose of this zoning district is to:
- (1) Further the community development objectives as included in this chapter and to further the goals and objectives of the Borough Comprehensive Plan.
 - (2) Provide suitable regulations for freestanding heavy industrial uses which can be accommodated in open areas near urbanized development.
 - (3) Provide suitable regulations for industrial parks in which a number of businesses may locate within a landscaped tract. Because of the proximity of such uses to residential and commercial uses, restrictions are imposed to assure both attractive and useful surroundings. Site locations are an essential aspect of such parks which need to be interrelated into their surroundings.
 - (4) Accommodate limited residential and commercial development.
- B. Use regulations.
- (1) Permitted principal uses: Refer to the Principal Land Use Chart.¹³¹

- (a) No noxious, odorous or undue noises, smoke, fumes, etc., shall be permitted in any of the foregoing uses. Such uses shall be completed within buildings and shall not involve processes generating smoke, fumes, odors, dust, noise or vibrations in an amount noticeable outside the building or which would adversely affect surrounding properties or the basic residential character of the total community.
- (2) Permitted accessory uses:
 - (a) Administrative activities and offices.
 - (b) Restaurant or cafeteria facilities for employees.
- C. The following regulations shall be observed for the development of lots less than 174,240 square feet (four acres).
 - (1) Area and bulk regulations:
 - (a) Lot coverage: 40% maximum.
 - (b) Building setback line: 35 feet minimum.
 - (c) Side yards: 20 feet minimum. Corner lots shall provide 35 feet to the side abutting the street.
 - (d) Rear yard: 30 feet minimum.
 - (e) Height of building: 40 feet maximum.
 - (2) Off-street parking regulations and standards: as required by this chapter.
 - (3) Off-street loading regulations: as required by this chapter.
 - (4) Design and performance standards: as required by the non-residential design standards of this chapter.
 - (5) Signs: as required by this chapter.
- D. The following regulations shall be observed for the development of lots 174,240 square feet (four acres) or larger.
 - (1) Area and bulk regulations. The following regulations shall be observed:
 - (a) Lot coverage: 50% maximum.
 - (b) Building setback line: 50 feet minimum.
 - (c) Side yards (site): 15 feet minimum.
 - (d) Rear yard (site): 50 feet minimum.
 - (e) Individual building length: 300 feet maximum.
 - (f) Building height: 40 feet maximum.

- (g) Paved areas: 35% maximum.
- (2) Off-street parking regulations and standards: as required by this chapter.
- (3) Off-street loading regulations: as required by this chapter.
- (4) Design and performance standards: as required by the non-residential design standards of this chapter.
- (5) Signs: as required by this chapter.

§ 168-390. Airport District Overlay Zone.

- A. Purpose. The purpose of this article is to create an airport district overlay that considers safety issues around the Allegheny County Airport, regulates and restricts the heights of constructed structures and objects of natural growth, creates appropriate zones, establishing the boundaries thereof and providing for changes in the restrictions and boundaries of such zones, creates the permitting process for uses within said zones and provides for enforcement, assessment of violation penalties, an appeals process, and judicial review.
- B. Relation to other zone districts. The Airport District Overlay shall not modify the boundaries of any underlying zoning district. Where identified, the Airport District Overlay shall impose certain requirements on land use and construction in addition to those contained in the underlying zoning district.
- C. Establishment of airport zones. There are hereby created and established certain zones within the Airport District Overlay Ordinance, defined in this chapter depicted on Figure 1 and illustrated on the Allegheny County Airport (AGC) Hazard Area Map (Drawing 6 of 14 of the AGC Airport Master Plan, as amended) (Figure 1 and Drawing 6 of 14 of the AGC Airport Master Plan are on file in the Borough offices), all hereby adopted as part of this article, which include:
 - (1) Approach surface zone.
 - (2) Conical surface zone.
 - (3) Horizontal surface zone.
 - (4) Primary surface zone.
 - (5) Transitional surface zone.
- D. Permit applications.
 - (1) As regulated by Act 164 and defined by 14 CFR § 77.13(a) (as amended or replaced), any person who plans to erect a new structure, to add to an existing structure, or to erect and maintain any object (natural or man-made) in the vicinity of the airport, shall first notify the Department's Bureau of Aviation (BOA) by submitting PennDOT Form AV-57 to obtain an obstruction review of the proposal at least 30 days prior to commencement thereof. The Department's BOA response must be included with this permit application for it to be considered complete. If the Department's BOA returns a determination of no penetration of airspace, the permit request should be considered in compliance with the intent of this overlay ordinance. If the Department's BOA returns a determination of a penetration of airspace, the permit shall be denied, and the project sponsor may seek a variance from such regulations as outlined in this chapter.

- (2) No permit is required to make maintenance repairs or to replace parts of existing structures which do not enlarge or increase the height of an existing structure.

E. Variance.

- (1) Any request for a variance shall include documentation in compliance with 14 CFR Part 77 Subpart B (FAA Form 7460-1, as amended or replaced). Determinations of whether to grant a variance will depend on the determinations made by the FAA and the Department's BOA as to the effect of the proposal on the operation of air navigation facilities and the safe, efficient use of navigable airspace. In particular, the request for a variance shall consider which of the following categories the FAA has placed the proposed construction in:
 - (a) No objection. The subject construction is determined not to exceed obstruction standards and marking/lighting is not required to mitigate potential hazard. Under this determination a variance shall be granted.
 - (b) Conditional determination. The proposed construction/alteration is determined to create some level of encroachment into an airport hazard area which can be effectively mitigated. Under this determination, a variance shall be granted contingent upon implementation of mitigating measures as described in § 168-390H, Obstruction marking and lighting.
 - (c) Objectionable. The proposed construction/alteration is determined to be a hazard and is thus objectionable. A variance shall be denied, and the reasons for this determination shall be outlined to the applicant. Such requests for variances shall be granted where it is duly found that a literal application or enforcement of the regulations will result in unnecessary hardship and that relief granted will not be contrary to the public interest, will not create a hazard to air navigation, will do substantial justice, and will be in accordance with the intent of this article.
- (2) Such requests for variances shall be granted where it is duly found that a literal application or the enforcement of the regulations will result in unnecessary hardship and that relief granted will not be contrary to the public interest, will not create a hazard to air navigation, will do substantial justice, and will be in accordance with the intent of this chapter.

F. Use restrictions. Notwithstanding any other provisions of this article, no use shall be made of land or water within the Airport District Overlay in such a manner as to create electrical interference with navigational signals or radio communications between the airport and aircraft, make it difficult for pilots to distinguish between airport lights and others, impair visibility in the vicinity of the airport, create bird strike hazards or otherwise endanger or interfere with the landing, takeoff or maneuvering of aircraft utilizing the Allegheny County Airport.

G. Preexisting nonconforming uses. The regulations prescribed by this article shall not be construed to require the removal, lowering, or other change or alteration of any structure or tree not conforming to the regulations as of the effective date of this article or otherwise interfere with the continuance of a nonconforming use. No nonconforming use shall be structurally altered or permitted to grow higher so as to increase the nonconformity, and a nonconforming use, once substantially abated (subject to the underlying zoning ordinance), may only be reestablished consistent with the provisions herein.

H. Obstruction marking and lighting. Any permit or variance granted pursuant to the provisions of this article may be conditioned according to the process to require the owner of the structure or object of natural growth in question to permit the municipality, at its own expense, or require the person requesting the permit or variance to install, operate and maintain such marking or lighting as deemed

necessary to assure both ground and air safety.

- I. Violations and penalties. The enforcement and penalties regarding violations of this article shall be the same as those set forth in this chapter.
- J. Appeals. All appeals from actions taken pursuant to this article shall be the same as those set forth in this chapter.
- K. Conflicting regulations. Where there exists a conflict between any of the regulations or limitations prescribed in this article and any other regulation applicable to the same area, the more stringent limitation or requirement shall govern and prevail.

§ 168-395. Route 51 Streetscape Enhancement Overlay (SEO) District. [Added 4-19-2022 by Ord. No. 921]

- A. Purpose. The purpose of the SEO District regulations is to promote the development of a safe, inviting, and accessible commercial corridor along Pennsylvania State Route 51 that is easily navigable by vehicular traffic, bicyclists, and pedestrians. The regulations provide for a variety of streetscape amenities and design treatments including, but not limited to, sidewalks, crosswalks, street trees, and screened and pedestrian-friendly parking areas. The SEO District regulations shall serve as an additional series of site plan requirements applicable to the development, redevelopment, or alteration of commercial uses and properties, and are to be implemented with the site plan in addition to all standard requirements of the base commercial zoning district within which the property or commercial use is located. Other objectives include:
 - (1) Regulation of public and private improvements relative to commercial uses located in the corridor and to increase flexibility for site design.
 - (2) Implementation of long-term planning efforts and strategies for the corridor, including but not limited to the AIA Center for Communities by Design, Sustainable Design Assessment Team project for Allegheny County (2010).
 - (3) Management of the future development of strip-type, auto-dependent, commercial uses to minimize traffic conflicts and pedestrian safety problems and creation of an overall cohesive character for the streetscapes along the corridor.
 - (4) Enhancement of pedestrian circulation and pedestrian-oriented streetscapes through the use of sidewalks and pedestrian areas.
 - (5) Creation of consistent and cohesive streetscapes through the use of effective landscaping and screening.
 - (6) Definition of the character and identity of the corridor through the effective use of unified elements of the streetscape such as street trees, landscaping, hardscapes, street furniture, and accessory structures.
 - (7) Encouragement for the installation of landscape elements and visual screening of off-street parking areas.
 - (8) Promotion of green construction and maintenance practices so as to mitigate the environmental impact of development.
- B. District boundary lines. The SEO District shall extend to all lots abutting Pennsylvania State Route

51, as shown on the Zoning Map.

- C. Relation to other zoning districts. The SEO District shall not modify the boundaries of any underlying zoning district. Where identified, the SEO District shall impose certain requirements on land use and construction in addition to those contained in the underlying zoning district.
- D. Preexisting nonconforming uses. The regulations prescribed by this section shall not be construed to require change to any existing development or structure not conforming to the regulations as of the effective date of this section until one of the applicability criteria detailed in Subsection E is met.
- E. Applicability.
 - (1) The requirements of the SEO District are mandatory for the development, redevelopment, or alteration of properties abutting Pennsylvania State Route 51 that fall within the boundaries of the Borough of Baldwin, when any of the following criteria are met:
 - (a) Any land development or commercial change of use requiring site plan review;
 - (b) Expansion of any building by more than 25% of the gross floor area; or
 - (c) Alteration of any building at an estimated cost of at least 25% of the property's total assessed value, as recorded on the Allegheny County Real Estate Portal, current year total assessed value, when compared to the cost of improvement submitted with the building permit application.
 - (2) Should the requirements of the SEO District conflict with the provisions of any other section of the Zoning Ordinance, or any other chapter of the Baldwin Borough Code, the more restrictive provisions shall apply. The more restrictive provision is defined as the provision that imposes more stringent controls on land use and development. All provisions controlling land development in the Borough of Baldwin subdivision and land development ordinances shall apply.
 - (3) Applicants may provide alternate design standards solutions which support the SEO objectives for consideration and approval by the Borough Council.
 - (4) Any applicable SEO District requirements are subject to variances, which may be sought and granted in accordance with the provisions of § 168-600H of the Baldwin Borough Code.
- F. Application requirements. A Streetscape Enhancement Overlay Plan that conforms to the regulations of the SEO District must be submitted when a land development application or building permit application is submitted for any property in the SEO District meeting one or more of the applicability criteria. The Streetscape Enhancement Overlay Plan shall include the following:
 - (1) Preapplication Planning Commission review (optional).
 - (2) A site plan that conforms to the requirements of the Subdivision and Land Development Ordinance.¹³²
 - (3) A project narrative that includes both written and graphical descriptions of how that proposed application promotes development pursuant to the SEO District design standards and general design guidelines and integrates with the community.

132. Editor's Note: See Ch. 142, Subdivision and Land Development.

- (4) Drawings and photographs of existing conditions, and conceptual sketches or illustrative sketches of proposed enhancements under the SEO District regulations.
 - (5) Prioritization Worksheet, Appendix A.¹³³ The worksheet provides guidance with regards to required elements and adaptable elements.
- G. Design standards. In the SEO District, the following regulations shall be applied to the development of any commercial properties pursuant to Subsection E of this section. All applicable standards and requirements of the respective base zoning district as further identified on the official Zoning Map shall apply to the SEO District. However, in case of conflict, the SEO standards shall take precedence. Conceptual layouts and standard detail requirements are provided in Appendix B.¹³⁴
- (1) Requirements. The following design standards are required design elements in the SEO District:
 - (a) Driveway.
 - [1] The driveway shall be designed, operated, and maintained in accordance with PennDOT standards and the approved highway occupancy permit ("HOP").
 - [2] The driveway shall feature clearly defined ingress and egress for vehicular traffic.
 - (b) Pedestrian linkages.
 - [1] All main and secondary entrances to buildings shall be directly linked with a public sidewalk.
 - [2] A clearly defined and marked sidewalk shall be required within parking lots and shall be provided for the length of the parking lot to the entrances of establishments.
 - (c) Sidewalks.
 - [1] Sidewalks shall be constructed in the right-of-way, shall be parallel to the public street for the entire length of the frontage, and shall be installed to connect to the lot line of adjacent parcels.
 - [2] Public sidewalks shall comply with the following standards: A minimum sidewalk width of six feet, which shall include a minimum of three feet of sidewalk space that is unobstructed.
 - [3] Pavement materials that may result in a slippery or uneven walking surface shall not be used.
 - [4] Accessible curb ramps shall be located, installed and maintained in accordance with PennDOT highway occupancy permit ("HOP") approvals and accessibility requirements.
 - [5] Sidewalks shall be installed, owned, operated and maintained and kept free of litter, trash, and debris, including snow removal, on a daily basis.
 - [6] If it is determined that the sidewalk installation in conformance with this section is technically infeasible due to topographic issues, a reasonable alternative public

133.Editor's Note: Appendix A is included as an attachment to this chapter.

134.Editor's Note: Appendix B is included as an attachment to this chapter.

pedestrian access system shall be designed and considered for approval with the site plan. An alternative sidewalk location on the property may be considered to provide continuity for pedestrian access throughout the corridor.

(d) Buffer strip.

- [1] A buffer strip, minimum of three feet wide, shall be provided between the sidewalk and the roadway.
- [2] Buffer strips shall be landscaped with exceptions for locations where landscape is not sustainable.
- [3] Hardscaped will be a surface material with structural soil beneath to accommodate street trees.
- [4] Buffer strips shall be installed, maintained and kept free of litter, trash, and debris on a daily basis.
- [5] Buffers strips shall be designed to accommodate the installation of street trees and pedestrian lights.

(2) Adaptable requirements. The Prioritization Worksheet shall be utilized to provide and incorporate additional adaptable requirements in addition to the required elements detailed in Subsection G(1) above. A rating of "complies with overlay" must be obtained by a combination of elements detailed below as determined by the applicant. The Borough may approve alternate design solutions which support the SEO District if additional elements are provided to exceed the minimum compliance rating on the Prioritization Worksheet.

(a) Building orientation. Provide a prominent and highly visible street-level doorway or entrance along the front side of the building that faces a public street. The applicant may alternatively propose to face the doorway or entrance toward an access driveway or primary parking area.

(b) Accessory buildings and uses.

- [1] Provide architectural features similar to the overall neighborhood character.
- [2] Design screening devices surrounding dumpsters, mechanical equipment, and utility boxes to be architecturally compatible to the buildings located on the site.
- [3] Design enclosed dumpster areas to provide convenient accessibility to both vehicles and pedestrians.

(c) Benches.

- [1] Install and anchor one bench for every 300 linear feet of street frontage. However, this requirement shall not apply where an existing bench, installed and maintained in conformance with this article, sits on an adjacent parcel within 300 linear feet of the subject property's nearest lot line.
- [2] Benches shall be located along the public sidewalk. If such location would constitute a pedestrian safety hazard, the applicant may alternatively propose to locate benches within other pedestrian spaces located on the site.

- [3] Benches shall be dark blue or black in color, shall be constructed of durable materials, and shall have a decorative design conforming to the attached general design guidelines in Appendix B.¹³⁵ Graffiti-resistant surfaces should be used wherever possible.

(d) Bicycle racks.

- [1] Install and anchor one rack for every 40 automobile parking spaces or portion thereof. Each rack shall be capable of providing parking for at least two bicycles.
- [2] Racks shall be located within pedestrian areas and shall be placed near the building entrance.
- [3] Racks shall be situated so as not to hinder pedestrian access.
- [4] Racks shall be sturdily anchored to the ground.
- [5] Racks shall be dark blue or black in color, shall be constructed of durable materials, and shall conform to the attached general design guidelines. Graffiti-resistant surfaces should be used wherever possible.

(e) Bollards.

- [1] Where necessary, bollards shall be used to prevent vehicles from entering pedestrian areas.
- [2] Bollard placement shall not interfere with emergency vehicle access.
- [3] Bollards that are intended to block vehicular access must be placed no further apart than five feet on center.
- [4] Bollards shall be painted in colors other than gray to be easily seen by the visually impaired, in colors that complement other streetscape elements.
- [5] If bollards are located in an area that can be accessed by a motor vehicle, the method of grounding should be considered to minimize damage to surrounding surfaces and allow for easy replacement.

(f) Building transparency.

- [1] Design street-level facade of any building facing a public street, access drive, or main parking area to be transparent from a height of three feet to a minimum height of eight feet above the walkway grade for at least 50% of the horizontal length of the structure.
- [2] All glazing shall be clear, lightly tinted, or spandrel glass.
- [3] Spandrel glass may only be used to achieve the transparency requirement if spandrel and visual glass are not located along the same wall plane.

(g) Crosswalks.

- [1] Provide crosswalks across the width of the driveway approach apron.

135. Editor's Note: Appendix B is included as an attachment to this chapter.

- [2] Crosswalks shall be as wide as the sidewalks to which they connect.
 - [3] Crosswalks shall be constructed of stamped concrete.
 - [4] Crosswalks within a PennDOT roadway or right-of-way shall be visually distinctive and designed, located, constructed and maintained in accordance with PennDOT standards and specifications.
- (h) Driveway. When two adjacent property owners enter into a PennDOT-approved and recorded shared driveway agreement to combine access points, the Borough may grant an incentive bonus as part of the site plan review and approval process, which may reduce the required number of parking stalls by up to 10% for the development, or increase by up to 10% the building lot coverage.
- (i) Lighting.
- [1] Provide pedestrian-scaled, ornamental streetlights in the right-of-way and locate adjacent to the sidewalk.
 - [2] Standard placement of pedestrian-scaled, ornamental streetlights shall be one fixture per 100 linear feet of street frontage. The applicant may propose alternate spacing, provided that pedestrian spaces are sufficiently illuminated so as to provide safe movements on the site. Light levels should be uniform across the space with a minimum of two footcandles and a max of five footcandles. Cutoff-type fixtures shall be used to reduce light trespass and glare.
 - [3] Pedestrian-scaled, ornamental streetlights shall be at least 12 feet in height but no taller than 25 feet in height from the mounting surface to the top of the fixture.
 - [4] Pedestrian-scaled, ornamental streetlights shall be dark blue or black in color, shall be constructed of durable materials, and shall conform to the attached general design guidelines.
- (j) Parking.
- [1] Design parking areas to be located adjacent to the sides and rear areas of the lot.
 - [2] Screen from view of the street using a buffer strip that includes trees, shrubs, groundcovers, or decorative fencing in accordance with other provisions of the Zoning Ordinance. Wire fabric fencing or similar materials are prohibited for use as a decorative fence. No part of the required buffer strip shall obstruct the clear-sight triangle or intersection visibility requirements of this chapter.
 - [3] Link parking to the structure by a pedestrian sidewalk or walkway.
 - [4] Provide lighting for parking areas in accordance with the Zoning Ordinance. Illumination levels shall provide sufficient area lighting for adequate safety, yet not detract from or overemphasize the site or building.
- (k) Street trees.
- [1] Provide one street tree at an average interval of every 30 linear feet of frontage and locate adjacent to the sidewalk.

- [2] Street trees shall be high-branching with a canopy that starts at least six feet above finished grade; only street trees suitable for urban environments and with growth habits that minimize interference with utilities should be selected. Trees planted between a sidewalk and street curb must have a minimum nonpaved planting area of 18 square feet, with a minimum depth of three feet, depending on species or cultivar, and have roots that will not break up sidewalks or streets or interfere with utility lines. Tree selection shall be subject to approval by the Borough.
 - [3] Street trees shall be placed so as not to interfere with sight distance or visibility at any intersection, driveway, or parking area that would create a safety concern.
 - [4] Street trees shall be installed and maintained along public sidewalks within the corridor but located at least 15 feet from utility poles, light posts, and fire hydrants; at least 20 feet from the edge of the curb at street intersections; and at least 10 feet from driveways. The Borough may accept an alternative street tree location plan which maintains an equivalent density or coverage at the site to accommodate sight distance requirements for driveways or intersections or to avoid public utilities and infrastructure.
 - [5] Specific types and species of acceptable trees can be found at the updated Recommended Species List provided by the City of Pittsburgh Forestry Division. The Brentwood-Baldwin-Whitehall Shade Tree Commission may be contacted for consultation as a Borough-sponsored advisory committee.
- (l) Transit shelters.
- [1] Public transportation system needs, including bus stops, must be accommodated to support quick and reliable transit service along the corridor.
 - [2] Bus shelters shall be provided at the discretion of the Borough in conjunction with the approval of the Allegheny County Port Authority (ACPA) transit system at appropriate locations to facilitate transit use by providing places of refuge, especially during periods of inclement weather. Transit shelters shall conform to the ACPA guidelines.
 - [3] Shelters shall be located where the sidewalk width is extended and the paved area is sufficient to accommodate at least the minimum required clear travel around the shelter and the ability to accommodate expected pedestrian volumes.
 - [4] Transit shelters shall be designed to provide protection from the sun, wind, and rain. Additional amenities such as real-time arrival information, nighttime lighting, and trash receptacles shall be provided if possible. Graffiti-resistant surfaces should be used wherever possible.
 - [5] Transit shelters should be designed to promote transit and energy efficiency by incorporating features such as solar panels and LED lights.
 - [6] Transit shelters shall conform to the attached general design guidelines.
- (m) Utilities.
- [1] When possible, utilities should be located underground. If this condition cannot be satisfied, utilities should be located to the side or back of the building where they will

be out of view of the public street.

- [2] Utilities must be screened from view through the use of landscaping or architectural screening.

(n) Vehicular linkages.

- [1] Connect parking areas to adjacent parcels through a rear or side access driveway to the extent possible.
- [2] When a parking area is constructed adjacent to an undeveloped lot, the access drive shall be extended to the lot line for future connection to the adjacent parcel.

(o) Waste receptacles.

- [1] Locate waste receptacles near high pedestrian activity uses and locations, including storefronts and transit stops.
- [2] There shall be at least one waste receptacle located adjacent to the sidewalk at a maximum spacing of every 300 linear feet of frontage. However, this requirement shall not apply where an existing waste receptacle, installed and maintained in conformance with this article, sits on an adjacent parcel within 300 linear feet of the subject property's nearest lot line.
- [3] One waste receptacle shall be located at each corner of each intersection. However, no waste receptacle shall obstruct the clear-sight triangle or intersection visibility requirements of this chapter.
- [4] Waste receptacles shall be dark blue or black in color, shall be constructed of durable materials, and shall have a decorative design conforming to the attached general design guidelines. Graffiti-resistant surfaces should be used wherever possible.
- [5] Waste receptacles shall be installed, owned, operated and maintained by the property owner, the surrounding area shall be kept free of litter, trash, and debris, including snow removal to facilitate access, on a daily basis.

H. Implementation. The SEO regulations shall be implemented and maintained as follows:

- (1) All improvements shall be maintained by the property owner abutting the Pennsylvania State Route 51 right-of-way.
- (2) Property owners may enter into an agreement with other property owners adjacent to their property for shared maintenance responsibility. In such instances, the applicant shall submit a copy of the maintenance agreement as part of the Streetscape Enhancement Overlay Plan.
- (3) Maintenance responsibilities shall include ongoing sweeping, debris removal, waste receptacle waste removal, snow removal, landscape maintenance, and repair and replacement of all street enhancement features.
- (4) Any structure or improvement that is damaged, destroyed, or otherwise nonfunctional shall be replaced or repaired within 90 days of receipt of notice from the Borough to replace or repair same.
- (5) All other applicable Borough requirements, codes, ordinances, and PennDOT regulations shall

be met.

§ 168-3100. Municipally owned property.

This chapter shall not apply to property owned by Baldwin Borough in the exercise of its municipal functions. The Borough will develop and control property in accordance with existing charters and codes, and will have no obligation to enforce the provisions of this chapter on itself.

ARTICLE IV

Conditional Uses, Special Exceptions, and Supplemental Regulations, Including Signs

This article describes land uses related to structures and land in the Borough. It includes regulations such as setbacks and height restrictions. Additionally, there are requirements that are specific to certain uses or certain districts.

§ 168-400. Conditional uses.**A. Provisions for conditional uses.**

- (1) Conditional uses are to be allowed or denied by Borough Council pursuant to the procedural requirements of the PA Municipalities Planning Code and recommendations by the Planning Commission and pursuant to expressed standards and criteria set forth for a particular use listed under this article.
- (2) In allowing a conditional use, Borough Council may attach such reasonable conditions and safeguards, in addition to those expressed herein, as it may deem necessary to implement the purpose of this chapter.

B. General requirements and standards for all conditional uses.

- (1) Borough Council shall grant a conditional use only if it finds adequate evidence that any proposed development will meet all of the following general requirements as well as any specific requirements and standards set forth for a particular use listed under this article.
- (2) Borough Council shall, among other things, require that any proposed use and location be:
 - (a) Consistent with the spirit, purposes and the intent of this chapter.
 - (b) In the best interest of Baldwin, the convenience of the community, the public welfare and be a substantial improvement to the property in the immediate vicinity.
 - (c) Suitable for the property in question and designed, constructed, operated and maintained so as to be in harmony with and appropriate in appearance to the existing or intended character of the general vicinity.
 - (d) In conformance with all applicable requirements of this chapter and all other Baldwin Borough ordinances.
- (3) The conditional use shall not involve any element or cause any condition that may be dangerous, injurious or noxious to any other property or persons, including traffic, light and noise impacts to adjacent residential properties.
- (4) The conditional use shall organize vehicular access and parking to minimize traffic congestion and maximize safety, including the provision of drop-off areas and vehicular pull-offs to minimize vehicle backups onto public roadways.
- (5) The landowner and/or developer shall have the burden of providing evidence to Baldwin of compliance with the general requirements of this section and the specific requirements of this article.
- (6) The Borough Council may attach additional conditions pursuant to this section, in order to

protect the public's health, safety, and welfare.

C. Accessory uses to conditional uses.

- (1) Except for fences and signs, any accessory use or structure which is not approved as part of the application for conditional approval of the principal structure or use shall require submission of a conditional use application in accordance with the requirements of this chapter related to conditional uses.
- (2) All parking and loading areas or expansion or redesign of parking and loading areas shall be subject to the parking and loading requirements of this chapter.
- (3) In approving the accessory use or structure, the Borough Council shall consider whether any conditions are warranted to be attached to the approval to protect the public health, safety and welfare.

D. Automobile fuel station.

- (1) All automobile parts, dismantled vehicles and similar materials shall be stored within a completely enclosed building.
- (2) There shall be no more than one motor vehicle per employee and employer plus three customer's vehicles per repair bay parked outside an enclosed building at any time.
- (3) Gasoline pumps shall be located at least 40 feet from the centerline of the right-of-way of any street.
- (4) All fuel, oil or similar substances shall be stored at least 25 feet from any property line.
- (5) All property lines adjoining residential use or zoning district classification shall be screened by a buffer area as defined by this chapter which is at least six feet in depth measured from the property line.
- (6) All lighting shall be shielded away from adjacent properties and streets.

E. Automobile service and repair.

- (1) The minimum site area shall be two acres.
- (2) The site shall have frontage on and direct vehicular access to an arterial or collector road, as defined by this chapter.
- (3) The area used for the display of merchandise offered for sale and the area used for the parking of customer and employee automobiles shall be continuously paved and maintained in either concrete or asphalt over a base of crushed stone compacted to not less than six inches in depth, or other surfacing of an equivalent character, if approved by the Zoning Officer.
- (4) All lots used for the outdoor display of automobiles shall have a completely enclosed building on the same lot which has not less than 2,000 square feet of gross floor area where all repair, servicing, sales and customer car washing shall be performed.
- (5) No vehicle or other article or merchandise shall be displayed outdoors less than five feet from the lot lines of adjacent properties and no cars shall be parked on adjacent properties or in any street right-of-way.

- (6) No vehicle shall be displayed or offered for sale which does not have all of the mechanical and body components necessary for the safe and lawful operation thereof on the streets and highways of the commonwealth.
- (7) All lights and light poles shall be located at least 10 feet from any street right-of-way or property line and all lighting shall be shielded and reflected away from adjacent streets and properties.
- (8) No oscillating or flashing permitted on the lot, on any or poles on the lot or on any display outdoors.
- (9) Except for temporary special event displays, no strings of lights or flags, flashers or other display paraphernalia shall be permitted on the lot, on any structures or poles attached thereto, or on or in the merchandise displayed outdoors, except for such signs otherwise allowed under this chapter.
- (10) All required off-street parking spaces shall be reserved exclusively for the parking of customer and employee automobiles and shall not be used for the display of merchandise.
- (11) Customer vehicles with external damage awaiting repairs shall be located either inside a building or in an outdoor area which is screened in such a fashion so that the vehicles will not be visible from public streets or adjacent residential property.
- (12) All property lines adjoining residential use or zoning classification shall be screened by a buffer area, as defined by this chapter, which is at least four feet in depth as measured from the property line.

F. Bar or nightclub.

- (1) A bar or nightclub shall be located in accordance with the provisions of the Pennsylvania Liquor Control Board.
- (2) Hours of operation and activities must be appropriately scheduled to protect surrounding residential neighborhoods from detrimental noise, disturbance or interruption.
- (3) The owner(s) and operator(s) of a bar or nightclub shall be responsible for the conduct and safety of the patrons.
- (4) No more than one identification sign shall be permitted; said sign shall be a ground or a wall sign. The graphic area of the sign shall not exceed 40 square feet.

G. Billboards.

- (1) Billboards are a principal use, permitted only on property that is within the industrial districts and such property must be a minimum of 0.25 acres in size with frontage along an arterial or collector roadway.
- (2) Only one billboard is permitted per property and no additional signs are permitted on a property occupied by a billboard.
- (3) Billboards shall be set back a minimum of 250 feet from an existing residential structure, such that no part of the billboard or support structure is within 250 feet of an existing residential structure.
- (4) Billboards shall be set back a minimum of 1,000 feet from any existing billboard or the location

of a billboard for which a sign permit is approved or pending.

- (5) All billboards shall be maintained in good repair, even when there is no occupied sign area within or on the billboard structure.
- (6) The sign area of all billboards shall be a maximum of 100 square feet per sign face.
- (7) Billboards shall have no more than two sign faces and the sign faces shall be mounted to the sign structure such that the faces are completely parallel with each other.
- (8) The maximum height of the structure and sign face of any billboard shall be 20 feet.
- (9) The illumination of any billboard shall be from exterior light fixtures; internal illumination of the sign area or any portion of the billboard is not permitted, except where the billboard is an LED sign. The billboard lighting shall be directed only to the sign face of the billboard and shall be provided by sharp cut-off, shielded light fixtures to minimize illumination spillover beyond the sign face.
- (10) All billboards shall be considered abandoned after a period of 12 months during which there is no occupied sign area within or on the billboard structure, excluding announcement that the billboard is available for rental. Abandoned billboards are prohibited.
- (11) All billboards that are LED signs shall meet the applicable requirements of this section pertaining to LED signs.

H. Building and landscape materials sales or storage yard.

- (1) Outdoor storage areas shall be screened from the public right-of-way and not conflict with off-street parking associated with the use. No outdoor storage areas shall be located between the front lot line of the lot and the front facade of the principal structure in which it is located.
- (2) A delivery plan for the use shall be submitted for Council approval.

I. Cemetery.

- (1) The landowner and/or developer shall provide a statement of guaranteed perpetual maintenance before approval is given.
- (2) No burial sites shall be within 50 feet of any lot line or 100 feet of a street right-of-way.
- (3) Access drives shall be located to take maximum advantage of sight distances for motorists.

J. Communications facilities. The granting of a conditional use for communications facilities and tower sites shall be subject to the following express standards and criteria:

- (1) The minimum tower site area shall be two acres.
- (2) No tower shall be located within 250 feet of an existing dwelling or of the property line within a residential zoning district or 500 feet of an existing school, hospital or similar use, measured from the nearest property line to the nearest property line.
- (3) No such tower shall be erected within 2,000 feet of another existing tower, measured from the property line of the tower site to the nearest property line of an existing tower.
- (4) Shared use of towers and structures shall be encouraged. If shared use of an existing tower is

proposed, the applicant shall demonstrate that:

- (a) The proposed equipment would not exceed the structural capacity of the existing or approved towers.
 - (b) The proposed equipment will not cause RF (radio frequency) interference with other existing or proposed equipment for that tower or surrounding towers of residents in the vicinity.
 - (c) Addition of the proposed equipment would not result in NIER (nonionizing electromagnetic radiation) levels which exceed any adopted local, federal or state emission standards.
- (5) Communications facilities and their associated structures may exceed the height limitations of the district, subject, however, to § 168-420A, Exception to height limitations, hereof, provided that they shall be set back from any property line or public street right-of-way a minimum distance of 100% of the tower height or greater, if necessary, to guarantee that in the event of collapse the structure shall not fall on any adjacent property and all icefall or debris from tower failure shall be contained on the tower site.
 - (6) Unless the communications facility is located on a building, the tower structure shall be completely enclosed by a chain-link or similar fence with self-latching gate to limit accessibility to the general public, unless the entire property is secured by such a fence. The fence shall be a minimum of eight feet high.
 - (7) All guy wires and all guyed towers shall be clearly marked so as to be visible at all times. All guy wires shall be located a minimum of 100 feet from any property line.
 - (8) The applicant shall submit evidence that the structure upon which an antenna is to be constructed, or a tower upon which an antenna is to be constructed, has been designed by a registered engineer and is certified by a registered engineer, and is certified by that registered engineer to be structurally sound and able to withstand wind and other loads in accordance with accepted engineering practice; every five years, an additional certification shall be submitted to the Borough.
 - (9) The tower shall be subject to any applicable Federal Aviation Administration (FAA) and airport zoning regulations.
 - (10) No sign or other structure shall be mounted on the tower, except as may be required and approved by the FCC, FAA or other governmental agency.
 - (11) All lighting, except required beacons, shall be shielded and reflected away from adjoining properties.
 - (12) A minimum of two off-street parking spaces shall be provided on the tower site, plus one off-street parking space for each on-site personnel.
 - (13) Existing vegetation on the site shall be preserved to the maximum extent possible, as determined by the Borough Environmental Advisory Council.
 - (14) A minimum twenty-foot (in width) easement or right-of-way for access shall be provided to the tower which is adequate to accommodate maintenance and emergency vehicles and which is improved with a dust-free, all-weather (chip and shot) surface sufficient to accommodate the

weight of vehicles proposed to use the easement or right-of-way.

- (15) In the event that any tower ceases to be used as a communication facility for a period of six months, then the owner and/or operator of the tower or the owner of the land on which the tower is located shall be required to remove the same, and failing to do so, the Borough may cause the same to be removed and charge the cost of the removal to the foregoing parties. In addition, the Borough may file a municipal lien against the land to recover the cost of the removal and attorneys' fees as well as inspection fees incurred by the Borough.
- (16) The construction, erection, operation and maintenance shall comply with all applicable laws and regulations of the commonwealth and, in particular, the Department of Environmental Protection, Bureau of Air Quality, and its various bureaus and departments and of the Allegheny County Health Department.
- (17) Shared uses of towers or existing structures.
 - (a) The shared use of towers and/or existing structures, such as water tanks, steeples and buildings, shall be encouraged; if shared use of an existing tower or structure is proposed, the applicant shall demonstrate that it is in compliance with all of the conditions of Subsection J(1) through (14) and (16) hereof, and shall be subject further to the following express standards and criteria:
 - [1] No antenna or groups of antennas upon a tower or placed upon an existing structure shall have or create an additional height to the structure of more than 20 feet.
 - [2] No antenna shall be located within 250 feet of an existing dwelling in a residential district or 500 feet of an existing school, hospital or similar use, measured from the nearest property line to the nearest property line.
 - [3] No antenna shall be located or situate within 750 feet of another antenna, except that antennas may be located or situated upon the same tower or upon the same structure.
 - [4] No antenna may be erected upon any structure having historical designation or which is recognized as a historic structure.
 - [5] Each provider of personal wireless service facilities proposing to erect an antenna upon a structure, tower or other facilities shall be required to obtain approval of the enlargement or expansion of the conditional use and shall be required to execute applications for enlargement or expansion of said conditional use, which will be submitted to the Council for a conditional use hearing.

K. Crematorium.

- (1) Any and all odors and smoke generated as part of a crematorium operation shall be in conformance with the performance standards of this chapter.
- (2) Loading areas/docks shall be screened with either landscaping or fencing from neighboring uses.
- (3) No outdoor storage shall be permitted on a lot associated with a crematorium.
- (4) No crematorium shall be within 200 feet of any lot line.

L. Dry-cleaning facility.

- (1) The owner/operator must obtain and maintain pollution insurance or other surety in a form satisfactory to the borough to cover investigation and remediation costs associated with a potential spill of water or nonwater-based dry-cleaning solvent, in an amount not less than \$500,000, naming the Borough of Baldwin for purposes of cancellation notification, for the entire duration of the on-site dry-cleaning operation.
- (2) For facilities utilizing nonwater-based solvent dry-cleaning machines, the applicant must maintain records of nonwater-based solvent consumption and shall store said solvents in closed, nonleaking containers.
- (3) On-site dry-cleaning may not be located in the same building with any residential use.

M. Entertainment facility.

- (1) The applicant shall furnish expert evidence that the proposed use will not be detrimental to the use of adjoining properties due to the hours of operation, noise, light, litter, dust and pollution.

N. Farm.

- (1) If the farm is made up of multiple properties, all property must be under single ownership.
- (2) A farm must be a minimum of five acres in size.
- (3) The entire area must be wholly located within a single zoning district.
- (4) Any area where animals are kept must be set back a minimum of 100 feet from residentially zoned or used property.

O. Financial institution, with drive-through.

- (1) The Borough shall require the landowner and/or developer to prepare and submit a traffic impact analysis of the proposed development.
- (2) Paved off-street stacking spaces shall be arranged in an orderly fashion so as not to cause blockage of any means of ingress or egress and to insure that the traffic flow on public rights-of-way is not endangered in any way. A separate means of ingress shall be established and clearly marked as shall be a separate means of egress from the bank. Should any traffic congestion occur in the public right-of-way, it shall be the responsibility of the owner to direct traffic away from the facility by posting a "Temporarily Closed" sign or other means. The Borough may require any traffic studies and associated improvements as a condition of approval.
- (3) No drive-through window, customer automated teller machine (ATM), or the like shall be located in a front yard.
- (4) The drive-through shall have direct access to a public right-of-way.
- (5) A minimum of three stacking spaces shall be provided for each drive-through lane.
- (6) Stacking shall not interfere with the normal traffic flow within the lot nor shall it cause the stopping of vehicles on any public right-of-way.

P. Hospital.

- (1) The facility shall be accredited by the commonwealth and shall have direct access to an arterial

road/street.

- (2) Emergency facilities shall be located to minimize conflicts of circulation, parking, loading and delivery between surrounding land uses.
- (3) Access drives shall be located to take maximum advantage of sight distances for motorists and shall be as remote as possible from street intersections.
- (4) Buildings shall be no higher than 55 feet.

Q. Institutional home and personal care home (large or small).

- (1) The appropriate area, bulk and height regulations for the appropriate district shall apply.
- (2) The proposed use and operation thereof must comply with all applicable environmental protection laws, statutes, regulations and rules of all federal, state, county and local governments and agencies, including all laws for the protection of the atmosphere, surface waters, underground waters and other natural resources.
- (3) The number of residents, including the operator's immediate family, in any institutional home shall be limited to not more than the number permitted by federal, state and/or county laws and regulations.
- (4) The lot area shall be provided at a minimum lot area of 8,000 square feet, plus an additional 500 square feet for each sleeping room in excess of three. Every unit of two beds or fraction thereof in a sleeping room shall be counted as a separate sleeping room.
- (5) There shall not be more than one personal-care home located in any one building or dwelling.
- (6) No personal-care home shall be located in a building that is occupied by any other residential type of use.
- (7) No personal-care home shall be spaced closer than 800 feet to any other personal-care home. Said distance of 800 feet shall be measured by imposing a circular area on an accurate plan by locating a point on the center of the subject building and by extending a radius of 800 feet from said center point. Any other building occupied or used as a personal-care home and located totally or partially within said circular space shall be cause for rejection of the application for conditional use.
- (8) Prior to approval of any application for establishment or operation of a personal-care home, the applicant shall provide proof satisfactory to the Borough Council that the applicant either has acquired or will be able to acquire all appropriate licenses and permits from the Pennsylvania Department of Public Welfare and the Allegheny County Department of Health prior to the issuance of a certificate of occupancy by the Borough. No building or other structure shall be occupied as or used as a personal-care home until the Borough certificate of occupancy is issued.
- (9) Supervision of the use and operation of the personal-care home shall be provided in accordance with all federal, state, county and local regulations, under the supervision of all relevant certifying agencies and by at least one responsible, nonclient adult available on the premises on a twenty-four-hour-per-day basis while any of the clients are on the premises.
- (10) Sleeping rooms, accommodations or facilities shall not be located in any basement and shall comply with all applicable life safety and health codes.

- (11) The construction, modification, establishment, use and operation of the personal-care home shall comply with all of the requirements of the applicable BOCA Codes then currently in effect and applying to new construction, reconstruction or modification, maintenance, repair and fire safety.
- (12) The applicant and/or operator shall provide adequate external lighting facilities, as required in the discretion of the Borough Council, for the protection of all clients, employees, operators and visitors to the personal-care home.
- (13) On-site parking facilities shall be provided at the ratio of one stall for every two full-time staff members and/or operators and one shall for every three nonstaff residents who are eligible and are permitted by the operator of the home to operate a motor vehicle.
- (14) The owner and/or operator of the personal-care home shall permit inspections of the facility from time to time by Borough officials and representatives of the Borough, including but not limited to the Borough Fire Chief or Assistant Fire Chief, any Borough police officer, the Borough Building Inspector or Zoning Enforcement Officer and the Borough Engineer. Such inspections shall be conducted at reasonable times but shall not be limited to daytime hours nor to normal business hours. Such inspections shall be conducted to ascertain the continued compliance by the operator and/or owner with all applicable federal, state, county and local statutes, ordinances, regulations and rules.

R. Mobile home park. For mobile home parks, the following regulations shall be observed:

- (1) Park size: 10 acres minimum.
- (2) Lot width: 100 feet for portions used for general vehicular entrances and exits.
- (3) Minimum setback: 75 feet from any road right-of-way located outside the mobile home park site.
- (4) Side and rear yards: 50 feet minimum from any mobile home to any property line.
- (5) The only permitted use in a mobile home park shall be the operation of detached single-family residential.

S. Private outdoor recreation.

- (1) All s, tennis courts, or other comparable facilities shall be considered structures for the purpose of this chapter.
- (2) Coverage, including structures, parking lots, and buildings, shall not exceed 50% of the lot.
- (3) The facility area and lot boundaries shall be landscaped as required by the Borough to minimize noise projection and make the grounds aesthetically compatible to the surrounding properties.
- (4) All structures shall not be less than 100 feet from any lot line, and no less than 200 feet from the nearest house.
- (5) All facilities shall have a paved parking area in accordance with this chapter; and it shall not be closer than 25 feet to any residential lot line.
- (6) All facilities shall abut a public road and have a permanent access thereto.
- (7) Alcoholic beverages without a Pennsylvania Liquor Control Board license, amplified music,

and juke boxes shall be prohibited on the premises.

- (8) No direct or sky-reflected glare, whether from floodlights or any other kind of light, shall be visible from adjoining public streets or adjacent lots when viewed by a person standing on ground level.
- (9) All s shall be surrounded by a fence at least six feet in height, the entrance to which shall be kept locked when attendant is not present; and shall be constructed in accordance with all applicable state requirements.
- (10) Tennis courts shall be protected by a permanent fence 10 feet in height behind each base line extending 10 feet beyond the playing area in each direction.
- (11) The landowner and/or developer shall demonstrate the proposal will be compatible with the neighborhood and not adversely affect adjoining lots.
- (12) The amount of new traffic generated shall not have a detrimental impact on the neighborhood.
- (13) Plans shall clearly show ingress-egress facilities and provide proper sight visibility for motorists.
- (14) Hours of operation shall be scheduled to minimize negative impacts on surrounding residential neighborhoods. The Borough may limit hours within this time frame based on the use and location of the facility. Operating hours for the purpose of this section shall mean the period of time that the recreational or athletic activity is occurring.

T. Restaurant, with drive-through.

- (1) Required off-street parking for the restaurant shall be clearly designated and shall be located within 300 feet of the entrance to the restaurant.
- (2) Dumpsters and service areas shall be screened from the public right-of-way and not conflict with off-street parking associated with the use. No dumpsters and/or service areas shall be located between the front lot line of the lot and the front facade of the principal structure in which it is located.
- (3) Outdoor storage of materials shall not be permitted.
- (4) A delivery plan for the use shall be submitted for Council approval.
- (5) No drive-through window or the like shall be located in a front yard.
- (6) The drive-through shall have direct access to a public right-of-way.
- (7) A minimum of three stacking spaces shall be provided for each drive-through lane.
- (8) Stacking shall not interfere with the normal traffic flow within the lot nor shall it cause the stopping of vehicles on any public right-of-way.

U. Single-family attached.

- (1) All off-street parking spaces shall be incorporated into the building. Guest parking shall be located no more than 300 feet from each townhouse.
- (2) All dumpsters and/or waste collection areas shall be located at a minimum of 50 feet from the

nearest residential unit and shall be enclosed by a fence, wall or hedge screen that is minimum of eight feet in height.

- (3) The maximum number of contiguous units is 10.

§ 168-410. Special exceptions.

A. Provisions for special exceptions.

- (1) Special exceptions are to be allowed or denied by the Zoning Hearing Board pursuant to the procedures and requirements of the Pennsylvania Municipalities Planning Code¹³⁶ and pursuant to expressed standards and criteria set forth for a particular use listed under this article.

B. General requirements and standards for all special exceptions. Special exceptions are to be granted or denied by the Zoning Hearing Board pursuant to standards and criteria for a particular special exception stated in this chapter. The Zoning Hearing Board shall hear and decide upon written requests for such special exceptions in accordance with such standards and criteria. In granting a special exception, the Board may attach such reasonable condition and safeguards, in addition to those expressed herein, as it may deem necessary to implement the purpose of this chapter and Act 247 of the Municipalities Planning Code. Violation of such conditions and safeguards, when made a part of the terms under which the special exception is granted, shall be deemed a violation of this chapter. The Zoning Hearing Board may request a report and recommendation from the Planning Commission on the planning aspects of each application.

- (1) The special exception shall be in accordance with the standards specified for such classes of special exceptions.
- (2) The special exception shall not involve any element or cause any condition that may be dangerous, injurious or noxious to any other property or persons.
- (3) The special exception must be found to be beneficial to the public at the proposed location.
- (4) The application for a special exception listed herein shall be accompanied by a site plan and all other pertinent information as prescribed by the Zoning Hearing Board.
- (5) The special exception shall be sited, oriented and landscaped to produce a safe relationship of buildings and grounds to adjacent buildings and properties and be consistent with the environment of the neighborhood.
- (6) The special exception shall organize vehicular access and parking to minimize traffic congestion in the vicinity of the proposed special exception. The Zoning Hearing Board shall not approve a use in areas where a professional traffic engineering study indicates that a proposed use or structure will burden existing traffic so as to enhance the danger and congestion in travel and transportation and increase the number of accidents unless the property owner or applicant agrees to provide such traffic improvements as determined by the study.
- (7) The special exception shall preserve the spirit, intent and purpose of this chapter.
- (8) A public hearing shall be held prior to the Zoning Hearing Board deciding each request for a special exception.

136.Editor's Note: See 53 P.S. § 10101 et seq.

- (9) The Zoning Hearing Board shall not approve a special exception until:
 - (a) A written application for a special exception is submitted to the Zoning Officer, indicating the section of this chapter under which it is required.
 - (b) Notice is given.
 - (c) A public hearing is held.
- (10) If the Zoning Hearing Board determines that the application for a special exception meets all the applicable requirements of this chapter, the Board shall direct the issuance of a building permit for such special exception.

C. Sexually oriented businesses.

- (1) It is the purpose and intent of this section of this chapter to regulate sexually oriented businesses to promote the health, safety and general welfare of the citizens of the Borough and to establish reasonable and uniform regulations to prevent the continued deleterious location and concentration of sexually oriented businesses within the Borough. The provisions of this chapter have neither the purpose nor effect of imposing a limitation or restriction on the content of any communicative materials, including sexually oriented materials. Similarly, it is not the intent nor effect of this chapter to restrict or deny access by adults to sexually oriented materials protected by the First Amendment or to deny access by the distributors and exhibitors of sexually oriented entertainment to their intended market. Neither is it the intent nor effect of this chapter to condone or legitimize the distribution of obscene material. The owner(s) and operator(s) of said use shall be responsible for the conduct and safety of the employees and patrons and shall be available to respond to inquiries and promptly quell any disturbances caused by the employees and/or patrons.
- (2) An adult book store or adult video store shall not be located within 1,000 feet of any other sexually oriented business. Said distance shall be measured from lot line of one facility to the nearest lot line of the other facility.
- (3) Said sexually oriented business shall not be permitted to be located within 1,000 feet of any school, day care, day nursery, indoor or outdoor public recreation facility, or any religious establishment; nor be closer than 500 feet from a residential use, nor from where any children are permitted and normally congregate.
 - (a) For the purpose of this subsection, measurement shall be made in a straight line, without regard to intervening structures or objects, from the nearest portion of the building or structure used as a part of the premises where a sexually oriented business is conducted to the nearest property line of the premises of a church, public or private pre-elementary, elementary or secondary school, public library, day care, day nursery; or to the nearest boundary of an affected public park.
- (4) No more than one sexually oriented business may be located in the same building, structure or portion thereof, or the increase of floor areas of any sexually oriented business in any building, structure or portion thereof containing another sexually oriented business.
- (5) No materials, merchandise, film, or service offered for sale, rent, lease, loan, or for view shall be exhibited, displayed or graphically represented outside of a building or structure.
- (6) Any building or structure used and occupied as said facility shall be windowless or have an

opaque covering over all windows or doors of any area in which materials, merchandise, film, service or entertainment are exhibited or displayed and no sale materials, merchandise, film or offered items of service or entertainment shall be visible from outside the structure.

- (7) No sign shall be erected upon the premises depicting or giving a visual representation of the type of materials, merchandise, film, service or entertainment offered therein.
- (8) Sufficient screening and buffering of parking areas must be provided to protect the neighborhood from detrimental noise, dust and other disturbances.
- (9) Each and every entrance to the structure shall be posted with a notice of at least four square feet that the use is an adult-oriented establishment, that persons under the age of 18 are not permitted to enter, and warning all others that they may be offended upon entry.

D. Uses not listed.

- (1) Uses not listed. If a use clearly is not permitted by right, conditional use or as a special exception use by this chapter within any zoning district, the use is prohibited, except that the Zoning Hearing Board may permit such use as a special exception use if the applicant specifically proves to the clear satisfaction of the Zoning Hearing Board that all of the following conditions would be met:
 - (a) Proposed use would be less intensive in external impacts and nuisances than uses that are permitted in the zoning district.
 - (b) Proposed use would be closely similar in impacts and character to uses permitted in that zoning district.
 - (c) Use is not specifically prohibited in that zoning district.
- (2) The Zoning Hearing Board will determine which permitted use (by right, conditional use or special exception) is most similar to the proposed use not listed. The use not listed will be subject to the same approval criteria, review process, dimensional standards, and development standards as the use to which it is found to be most similar.

§ 168-420. Supplemental regulations.

- A. Exception to height limitations. In no event shall chimneys, exhaust stacks and roof-mounted equipment exceed a height above the building by a distance equal to 1/2 of the height of the building (from ground level) upon which such structure is to be placed. Church steeples shall in no event exceed a height in excess of 75 feet from the ground level of the church structure; communications facilities in no event shall exceed a height of 200 feet from ground level, except for communications facilities designed and intended strictly for use by governmental or quasigovernmental entities, such as police, emergency medical communications, public works communications, etc.
- B. Construction within easements. No Borough permit shall be issued for use of on construction on land or property within a public or private easement or right-of-way without the express written consent of all affected easement or right-of-way holders. Additionally, no construction of private or nonpublic facilities or buildings shall take place within five feet of an easement or right-of-way.
- C. Fences, walls and hedges.
 - (1) Fences, walls and hedges shall be permitted by right in all zoning districts. Any fence or wall

shall be durably constructed and well-maintained. Fences or walls that have deteriorated shall be replaced or removed.

- (2) No fence, wall or hedge shall obstruct the clear-sight triangle requirements of this chapter.
- (3) No fence, wall, hedge, or structure shall be permitted or erected in a public or private drainage, utility or access easement, unless otherwise required by this chapter or other ordinance. Any such fence erected in violation of this section shall be removed or relocated at the owner's expense.
- (4) It shall be unlawful to construct or alter any fence or wall over three feet high without first having secured a building permit. Fences and walls less than three feet high shall be considered ornamental and shall not require a permit. It shall be unlawful to vary materially from the approved submitted plans and specifications unless such variations are submitted in an amended application to the Zoning Officer or other designated municipal official and approved by this official.
- (5) Fences shall comply with the following:
 - (a) Any fence located in the required front yard in a residential district shall:
 - [1] Be an open-type of fence (such as picket, metal post, wrought iron or split rail) with a minimum ratio of 1:1 of open structural areas.
 - [2] Not exceed 38 inches in height.
 - [3] Not be constructed of chain link metal. Fences are encouraged to be constructed using weather-resistant wood, vinyl materials that resemble wood, or vinyl materials that resemble historic style metal post fences.
 - (b) In a residential district on a corner lot at the intersection of two streets, the maximum height of a fence shall be 38 inches along the street from which the residence takes its address; the maximum in other yards shall be six feet, all subject to Subsection C(5)(a)[2] above.
 - (c) Brick may be used for posts or as a base for a fence, provided the maximum fence height is not exceeded.
 - (d) A fence shall not be required to comply with minimum setbacks for accessory structures.
 - (e) Fences that are not within a residential district shall have a maximum height of eight feet, subject to Subsection C(2) above.
 - (f) A maximum height of 12 feet shall be permitted where the applicant proves to the Zoning Officer that such taller height is necessary to protect public safety around a specific hazard, such as around an electric substation.
 - (g) Structural posts of a fence may extend above the height of the fence.
 - (h) All fence heights shall be measured from the average surrounding ground level.
 - (i) No fence shall be built within an existing street right-of-way.
 - (j) A fence may be built without a setback from a lot line; however, a small setback is recommended to provide future maintenance of the fence.

- (k) Barbed wire shall not be used as part of fences around dwellings.
 - (l) No fence shall be constructed out of fabric, junk, junk vehicles, appliances, tanks or barrels.
 - (m) If one side of a fence includes posts or supports, those posts or supports shall be placed on the interior of the fence, as opposed to facing onto a street or another lot.
 - (n) If a fence is finished only on one side, the finished side shall face outward away from the lot or parcel upon which it is located.
- (6) Walls shall comply with the following:
- (a) Engineered retaining walls needed to hold back slopes are exempted from the regulations of this section and are permitted by right as needed in all zoning districts.
 - (b) Walls, except a retaining wall, in the minimum front yard in a residential district shall have a maximum height of 38 inches. In a residential district on a corner lot at the intersection of two streets, the maximum height of a wall shall be 38 inches along the street from which the residence takes its address; the maximum in other yards shall be six feet.
 - (c) Walls that are structurally part of a building shall be regulated as part of that building.
 - (d) All wall, fence and hedge heights shall be measured from the average surrounding ground level.

D. Off-street parking standards.

- (1) Off-street parking spaces are required as follows:

Off-Street Parking	
Land Use	Required Parking
Residential Uses	
Multiple-family	2 for each family dwelling unit
Multistory multiple-family	1 indoor and 1 outdoor per dwelling unit
Single-family attached	2 for each family dwelling unit
Single-family detached	2 for each family dwelling unit
Two-family dwelling	2 for each family dwelling unit
Nonresidential Uses	
Artist and photography studio	Parking or storage space for all vehicles used directly in the conduct of the business, plus 2 for each person regularly employed on the premises

Off-Street Parking

Land Use	Required Parking
Automobile fuel station	Parking or storage space for all vehicles used directly in the conduct of the business, plus 1 space for each gas pump, 3 spaces for each grease rack or similar facility and 1 space for every 2 persons employed on the premises at maximum employment on a single shift
Automobile laundry	Parking or storage space for all vehicles used directly in the conduct of the business, plus 1 space for every 2 persons employed on the premises at maximum employment on a single shift
Automobile service and repair	Parking or storage space for all vehicles used directly in the conduct of the business, plus 1 space for each gas pump, 3 spaces for each grease rack or similar facility and 1 space for every 2 persons employed on the premises at maximum employment on a single shift
Bar or nightclub	1 for each table or booth, plus 1 for every 2 stools at the bar or counter, plus 1 for every 2 employees on peak shift
Billboard	None
Building and landscape materials sales or storage yard	Parking or storage space for all vehicles used directly in the conduct of the business, plus 2 for each person regularly employed on the premises; plus 1 space for each 250 square feet of total floor area devoted to sales
Cemetery	Parking or storage space for all vehicles used directly in the conduct of the business, plus 2 for each person regularly employed on the premises. For every 25 employees, there shall be at least 2 parking spaces provided for visitors
Communications facility	None

Off-Street Parking**Land Use****Required Parking**

Crematorium

Parking or storage space for vehicles used directly in the conduct of such business, both owned or operated by the business itself or by the customers or users of the facility, plus 2 spaces for each employee regularly employed on the premises during peak shift; 1 for every 2,000 square feet of total floor area in the structure, whichever results in the greater number of spaces; or 1 parking space shall be provided for each employee or each 1,500 square feet of floor area in manufacturing establishments or 2,500 square feet of floor space in other types of establishments. The formula providing the greater number of parking spaces shall be enforced; however, in computing the number of employees, those of maximum day shifts shall be counted. For each 25 employees, there shall be at least 1 parking space provided for visitors

Day care or day nursery

1 for each employee on peak shift, plus 1 for every 5 students/children that can be accommodated in the facility

Dry cleaning (retail)

Parking or storage space for all vehicles used directly in the operation of such establishment, plus 1 space for each 250 square feet of total floor area

Dry cleaning facility

Parking or storage space for vehicles used directly in the conduct of such business, both owned or operated by the business itself or by the customers or users of the facility, plus 2 spaces for each employee regularly employed on the premises during peak shift; 1 for every 2,000 square feet of total floor area in the structure, whichever results in the greater number of spaces; or 1 parking space shall be provided for each employee or each 1,500 square feet of floor area in manufacturing establishments or 2,500 square feet of floor space in other types of establishments. The formula providing the greater number of parking spaces shall be enforced; however, in computing the number of employees, those of maximum day shifts shall be counted. For each 25 employees, there shall be at least 1 parking space provided for visitors

Entertainment facility

1 for every 6 seats available at maximum capacity

Essential services

None

Farm

Parking or storage space for all vehicles used directly in the conduct of the business, plus 2 for each person regularly employed on the premises

Off-Street Parking

Land Use	Required Parking
Financial institution, with drive-through	1 for every 4 customers computed on the basis of maximum servicing capacity at any 1 time, plus 1 additional space for every 2 persons regularly employed during peak shift on the premises
Financial institution, without drive-through	1 for every 4 customers computed on the basis of maximum servicing capacity at any 1 time, plus 1 additional space for every 2 persons regularly employed during peak shift on the premises
Funeral home	Parking or storage space for all vehicles used directly in the conduct of the business, plus 1 space for every 2 persons regularly employed on the premises at any 1 time, plus 1 space for every 25 square feet of floor area in the parlors of the establishment
Garden center	Parking or storage space for all vehicles used directly in the conduct of such business, plus 1 parking space for each 250 square feet of total area, or 150 square feet of floor space used for retail trade or 250 square feet of gross floor area, whichever is greater
Hospital	1 for each 4 beds intended for patients, excluding bassinets, plus 1 per doctor, plus 1 per 2 employees on peak shift, plus 1 per hospital vehicle
Institutional home	1 for each 3 beds intended for patient occupancy, plus 1 space for each doctor, plus 1 space for every 2 employees regularly employed during peak shift, plus 1 space for each vehicle used in the conduct of the business
Library or museum	1 for every 4 customers computed on the basis of maximum servicing capacity at any 1 time, plus 1 additional space for every 2 persons regularly employed during peak shift on the premises

Off-Street Parking**Land Use****Required Parking**

Manufacturing

Parking or storage space for all vehicles used directly in the conduct of such industrial use, plus 1 parking space for every 3 employees on the premises at maximum employment on the peak shift, or 1 parking space per 2,000 square feet of floor space, whichever results in the greater number of spaces; or 1 parking space shall be provided for each employee or each 1,500 square feet of floor area in manufacturing establishments or 2,500 square feet of floor space in other types of establishments. The formula providing the greater number of parking spaces shall be enforced; however, in computing the number of employees, those of maximum day shifts shall be counted. For each 25 employees, there shall be at least 1 parking space provided for visitors

Mixed-use or live/work building

2 for each family dwelling unit; for offices, 1 for each 300 square feet of gross floor area exclusive of the area used for storage, utilities and building service areas; for other non-residential uses, parking or storage space for all vehicles used directly in the conduct of such business, plus 1 parking space for each 250 square feet of total area

Mobile home park

2 for each family dwelling unit

Motel-hotel

1 for each sleeping room offered for tourist accommodation, plus 1 space for each dwelling unit on the premises and plus 1 additional space for every 2 persons regularly employed on the premises during peak shift; or 1 off-street parking space for each separate sleeping unit in addition to 5 off-street visitor parking spaces per 100 units or fraction thereof and 1 off-street parking space for each employee. If the motel-hotel facility also has related uses such as restaurants or public meeting facilities, additional parking shall be provided in accordance with the requirements for restaurants, meeting places, etc.

Municipal facilities

As determined by the Borough

Personal care residence, large

1 for each 3 beds intended for patient occupancy, plus 1 space for each doctor, plus 1 space for every 2 employees regularly employed during peak shift, plus 1 space for each vehicle used in the conduct of the business

Off-Street Parking

Land Use	Required Parking
Personal care residence, small	1 for each 3 beds intended for patient occupancy, plus 1 space for each doctor, plus 1 space for every 2 employees regularly employed during peak shift, plus 1 space for each vehicle used in the conduct of the business
Personal services	Parking or storage space for all vehicles used directly in the operation of such establishment, plus 1 space for each 250 square feet of total floor area
Private outdoor recreation	1 for every 4 customers computed on the basis of maximum servicing capacity at any 1 time, plus 1 additional space for every 2 persons regularly employed during peak shift on the premises
Professional office	2 for each doctor or dentist, plus 1 space for every 2 regular employees, plus 1 space for each 250 square feet of total floor area For other offices, 1 for each 300 square feet of gross floor area exclusive of the area used for storage, utilities and building service areas
Public administration or education facility	1 for every 6 seats available at maximum capacity in the assembly hall, auditorium, stadium or gymnasium of greatest capacity on the school grounds or campus. If the school has no assembly hall, auditorium, stadium or gymnasium, 1 space shall be provided for each person regularly employed at such school plus 2 additional spaces for each classroom; or 20 students in elementary schools; 10 classroom seats in other schools or each 125 square feet of auditorium space provided or for every 3 fixed auditorium seats, whichever is greater
Public recreation	As determined by the Borough
Public utility service buildings, structures or facilities	As determined by the Borough
Religious establishment	1 for every 6 seats available at maximum capacity
Restaurant, with drive-through	1 for each table or booth, plus 1 for every 2 stools at the bar or counter, plus 1 for every 2 employees on peak shift
Restaurant, without drive-through	1 for each table or booth, plus 1 for every 2 stools at the bar or counter, plus 1 for every 2 employees on peak shift

Off-Street Parking

Land Use	Required Parking
Retail, large	Parking or storage space for all vehicles used directly in the conduct of such business, plus 1 parking space for each 250 square feet of total area, or 150 square feet of floor space used for retail trade or 250 square feet of gross floor area, whichever is greater
Retail, small	Parking or storage space for all vehicles used directly in the conduct of such business, plus 1 parking space for each 250 square feet of total area, or 150 square feet of floor space used for retail trade or 250 square feet of gross floor area, whichever is greater
Self-service laundry	Parking or storage space for all vehicles used directly in the conduct of such business, plus 1 parking space for each 250 square feet of total area, or 150 square feet of floor space used for retail trade or 250 square feet of gross floor area, whichever is greater
Sexually oriented businesses	1 for every 2 customers computed on the basis of maximum servicing capacity at any 1 time, plus 1 additional space for every person regularly employed during peak shift on the premises
Uses not listed	Subject to the parking standards for the similar use as determined by the Zoning Hearing Board
Veterinarian facility	2 for each veterinarian, plus 1 space for every 2 regular employees, plus 1 space for each 250 square feet of total floor area

- E. Aisle widths. Notwithstanding anything contained herein to the contrary, all parking spaces shall be required to show an aisle width of 20 feet for 90° parking and a minimum aisle width of 15 feet where angle parking is to be used.
- F. Off-street loading regulations.
- (1) Loading space description. An off-street loading space shall be a hard-surfaced area of land, open or enclosed, other than a street or public way, used principally for the standing, loading or unloading of motor trucks, tractors and trailers so as to avoid undue interference with the public use of streets and alleys. A required loading space shall be not less than 10 feet in width, not less than 14 feet in height and of adequate length to suit the specific use, exclusive of access aisles and maneuvering space, except as otherwise specifically dimensioned herein.
- G. Location. No permitted or required loading space shall be closer than 50 feet to any property in a residential district unless completely enclosed by building walls or an ornamental fence or wall or any combination thereof not less than six feet in height. No permitted or required loading space shall be located within 25 feet of the nearest point of intersection of any two streets. Loading space open to the sky may be located in any required yards.
- H. Measurement of spaces. When determination of the number of required off-street loading spaces results in a requirement of a fractional space, any fraction up to and including 1/2 may be disregarded

and fractions over 1/2 shall be interpreted as one loading space.

- I. Surfacing. All open off-street loading berths shall be improved with a compacted base, surfaced with all-weather dustless material of adequate thickness to support the weight of a fully loaded vehicle.
- J. Spaces required. Every building or structure used for business, trade or industry shall provide space as herein indicated for the loading and unloading of vehicles off the street or public alley. Such spaces shall have access to a public alley or, if there is no alley, to a street. Off-street loading and unloading space shall be in addition to and not considered as meeting a part of the requirements for off-street parking space. Off-street loading and unloading space shall not be used or designed, intended or constructed to be used in a manner to obstruct or interfere with the free use of any street, alley or adjoining property. The following off-street loading and unloading space requirements for specific requirements for specific uses shall be provided:
 - (1) Multiple-family multistory dwellings: one off-street loading and unloading space for every 12 dwelling units, such spaces to be not less than 10 feet wide and 30 feet long, provided that at least one of such required spaces shall be not less than 55 feet long to accommodate a moving van.
 - (2) All uses in non-residential districts: one off-street loading and unloading space at least 10 feet wide and 30 feet long for every 3,000 square feet of total floor area.
 - (3) Multistory multiple-family dwellings and all uses in non-residential districts: one off-street loading and unloading space at least 10 feet wide by 30 feet long for every 30,000 square feet of total floor area.
 - (4) Industrial uses, manufacturing, dry-cleaning facility, crematorium: one off-street loading and unloading space at least 12 feet by 50 feet for every 10,000 square feet of total floor area.
- K. Outdoor storage.
 - (1) Outdoor storage of any type shall not be permitted unless such storage is a part of the normal operations conducted on the premises, subject to design and performance standards for the prevailing zoning district.
 - (2) Any permitted outdoor storage shall be screened from view of adjacent residential dwellings and public streets by a landscaped area, fence or wall.
- L. Microwave antennas or parabolic disks. Microwave antennas or parabolic disks for use of television satellite communications, transmissions or receptions (hereinafter called "microwave antennas") shall be subject to the following regulations.
 - (1) All residential zones. Microwave antennas shall be considered as a permissible accessory use, subject to the following:
 - (a) The diameter of the microwave antenna shall not exceed 10 feet.
 - (b) When separately supported, the total height of the microwave antenna shall not exceed 12 feet.
 - (c) The microwave antenna shall be located only in the rear yard and not closer than 15 feet to any property line.
 - (d) When roof-mounted, the microwave antenna shall be located on the portion of the roof

sloping away from the front of the lot, and no part thereof shall project above the height line; except, however, that those satellite dishes that are less than one meter (39 inches) in diameter may be mounted on that portion of the roof sloping toward the front of the lot. The Zoning Officer may waive the provisions of this section of the chapter if the property owner can definitively demonstrate that the property owner's reception will be of an unacceptable quality or that the installation, maintenance or use will be prevented by this section of this chapter.

- (e) No more than one microwave antenna shall be permitted on any lot.
 - (f) When not roof-mounted, the microwave antenna shall be screened from adjoining lots by the installation and maintenance of a completely planted visual barrier to consist of evergreen plantings or any other inexpensive shrubbery.
 - (g) Before the erection of any microwave antenna which requires a height in excess of 12 feet, or which has a diameter of more than one meter (39 inches), a permit application shall be made to the Borough and a permit shall be issued, provided that the construction meets all acceptable safety standards and other provisions of this chapter.
- (2) All commercial and industrial districts. Microwave antennas shall be considered a permissible accessory use, subject to the following regulations.
 - (3) Microwave antennas up to 16 feet in diameter may be installed.
 - (4) General regulations. Microwave antennas shall, in all districts, be subject to the following additional general regulations:
 - (a) No microwave antenna may be erected in any district or any location within a district which is prohibited by regulation of the Federal Communications Commission or other regulatory agency having jurisdiction.
 - (b) Microwave antennas shall be properly anchored and installed to resist a minimum wind load of 30 pounds per square foot of projected horizontal area. Supports, anchors and foundations shall take into account overturning movements and forces created by wind loading. The safety factor against overturning or sliding for wind forces on microwave antennas shall be 2.0.
 - (c) Nothing contained in this section shall be construed to permit as a permissible accessory use a microwave antenna for satellite communication used or intended to be used for the propagation or transmission of radio or electromagnetic waves.

M. Accessory uses.

- (1) This section applies to any subordinate use of a building, structure or use of land that is:
 - (a) Conducted on the same lot as the principal use to which it is related; and
 - (b) Clearly incidental to, and customarily found in connection with, the principal use or structure.
- (2) Where a principal use or structure is permitted, such use may include accessory uses and structures subject to this section.
- (3) No use shall be permitted as accessory to a dwelling unit in any residential district that involves

or requires any construction features or alterations not residential in character, except a private detached garage, and except that one accessory use building may be erected on each lot in a residential district subject to the following regulations:

- (a) The construction and location of any accessory use building shall be approved by the Zoning Officer.
 - (b) No person shall erect or install an accessory use building without having first obtained a building permit.
 - (c) All accessory use buildings shall be fully enclosed and shall have a maximum floor area of 150 square feet and a maximum external height of 12 feet measured from grade level at the door entrance.
 - (d) All accessory use buildings shall be located in the rear yard. The minimum distance between a side lot line and the accessory use building shall be the same as the distance between the dwelling and the side lot line but not less than five feet. The minimum distance between the accessory use building and the rear lot line shall be five feet. Accessory use buildings shall not be located or enlarged by additions without obtaining a new building permit.
 - (e) All accessory use buildings shall be painted in harmony with the dwelling located on the lot; the building shall be maintained in suitable repair and shall not be permitted to become unsafe or unsightly; the building shall not be used for any habitable purpose or for the storage, either temporary or permanent, of any vehicle licensed to travel on any road or highway; the building shall be kept free from objectionable odors; and the area immediately adjacent to the building shall not be used for the storage of any material; nor shall any accessory building be located within or upon any easement running over and upon the subject property.
- (4) If any accessory use building is not used for its intended or permitted purpose, or is found unsafe by the Zoning Officer in accordance with the provisions of this chapter, and the Zoning Officer shall give notice in writing to the owner of said accessory use building to immediately repair said building or to remove the same within 10 days from the receipt of said written notice, or the owner shall be considered in violation of this chapter and subject to all of the penalties contained herein.
- N. Parking of commercial vehicles on residential streets. Commercial vehicles and/or trucks exceeding one-ton load capacity are hereby prohibited from parking on residential streets in the Borough of Baldwin at all times; except, however, that the loading or unloading of the same for deliveries and moving shall not be prohibited nor shall the parking of such vehicles be prohibited on residential streets when the same are so parked so as to provide services or accommodate the residents of the Borough of Baldwin in providing services, improvements or repairs needed by such residents or intended for use of a resident, which vehicles are customarily and ordinarily used in providing such services or repairs. The prohibitions contained herein shall not apply to pickup trucks and panel trucks, which trucks are ordinarily and primarily used as family vehicles and do not exceed the weight limitations prescribed herein.
- O. Carports.
- (1) Carports shall be no less than 10 feet from the side yard of any adjacent property and 35 feet from the rear yard line of any adjacent property.

- (2) Carports shall stand in measurement no more than 10 feet by 20 feet at the widest portion. Carports shall have a maximum height of 14 feet.
- P. Air conditioners. An air conditioner shall be located either in front or back of the home and as close as possible to the center of the home. A whole house air conditioner may be permitted on the side of the home where there is a minimum of 15 feet between structures and landscaping provided. Such air conditioners shall be subject to noise levels as measured in decibels not to exceed 60 at a distance of 20 feet from the unit (Source: Pennsylvania Department of Community Affairs — Model Municipal Ordinance for the Regulation of Noise: Figure II). A plan showing the location and landscaping must be submitted prior to the issuance of a permit.
- Q. Yard or garage sales.
- (1) All goods offered for sale shall be sold or removed immediately after the sale.
 - (2) Such sales shall be limited to two per calendar year per property.
 - (3) Each sale shall not exceed two days in duration.
- R. Non-residential design standards.
- (1) Off-street parking design standards.
 - (a) Parking spaces shall be clearly delineated by painted lines or markers.
 - (b) Stalls shall be provided with bumper guards or wheel stops when necessary for safety or protection to adjacent structures or landscaped areas.
 - (c) Surface drainage shall be connected to the existing or proposed drainage system.
 - (d) All vehicular entrances and exits to parking areas shall be clearly designated for all conditions.
 - (e) Short-term visitor parking spaces shall be differentiated from long-term employee spaces by suitable markings.
 - (f) If spaces are used during evening hours, appropriate lighting shall be provided.
 - (2) Screening.
 - (a) A planted visual barrier or landscape screen shall be provided and maintained by the owner or lessee of a property between any district and contiguous residentially zoned districts, except where natural or physical man-made barriers exist. This screen shall be composed of plants and trees arranged to form a low level and a high level screen. The buffer area for screening when abutting a residential district shall be a minimum of 25 feet. The high level screen shall consist of trees planted with specimens no younger than three years in age and planted at intervals of not more than 10 feet. The low level screen shall consist of shrubs or hedges planted at an initial height of not less than two feet and spaced at intervals of not more than five feet. The low level screen shall be placed in alternating rows to produce a more effective barrier. The low screen shall consist of a spread of 2 1/2 feet. The high screen shall consist of the calibration of 2 1/2 inches and a minimum of 15 feet in height. Screening must be maintained and replaced when necessary by the property owner.
 - (b) Any existing business affected by these regulations at the time of passage of this chapter

shall not be required to comply with the above screening requirements except in case of enlargement or major alteration of such business. Similarly, for any zoning district boundary change after the passage of this chapter initiated by a residential developer abutting a commercially or industrially zoned property for which these regulations apply, these screening requirements shall not be imposed upon such commercial or industrial property.

(3) Storage.

- (a) Any article or material stored temporarily outside an enclosed building or as an incidental part of the primary operation shall be so screened by opaque ornamental fencing, walls or evergreen planting that it cannot be seen from adjoining public streets or adjacent lots when viewed by a person standing on the ground level. All organic rubbish or storage shall be contained in airtight verminproof containers which shall also be screened from public view.

(4) Landscaping.

- (a) Any part or portion of the site which is not used for buildings, other structures, loading or parking spaces and aisles, sidewalks and designated storage areas shall be planted with an all-season ground cover and shall be landscaped with trees and shrubs in accordance with an overall landscape plan and shall be in keeping with natural surroundings. A replacement program for nonsurviving plants should be included.
- (b) The plot plan must show a satisfactory method of irrigating all planted areas. This may be either by a permanent water system or by hose. Any single parking area with 50 or more spaces shall utilize at least 5% of its area in landscaping, which shall be in addition to open area requirements of the district.

(5) Shopping cart storage. Any establishment which furnishes carts or mobile baskets as an adjunct to shopping shall provide definite areas within the required parking space areas for storage of said carts. Each designed storage area shall be clearly marked for storage of shopping carts.

(6) Lighting. All parking areas, driveways and loading areas shall be provided with a lighting system which shall furnish a minimum of 35 footcandles at any point during hours of operation, with lighting standards in parking areas being located not farther than 100 feet apart. All lighting shall be completely shielded from traffic on any public right-of-way and from any residential district.

(7) Interior circulation, access and traffic control.

- (a) The interior circulation of traffic shall be designed so that no driveway or street providing parking spaces shall be used as a through street. If parking spaces are indicated by lines with angles other than 90°, then traffic lanes shall be restricted to one-way, permitting head-in parking. No driveway or street used for interior circulation shall have traffic lanes less than 10 feet in width.
- (b) Areas provided for loading and unloading of delivery trucks and other vehicles and for the servicing of shops by refuse collection, fuel and other service vehicles shall be adequate in size and shall be so arranged that they may be used without blockage or interference with the use of accessways or automobile parking facilities.
- (c) All accessways to any public street or highway shall be designed in a manner conducive

to safe ingress and egress, as determined by the Planning Commission and the Borough Council. Where practicable, exits shall be located on minor, rather than major, streets or highways.

- (d) No design shall be approved which is likely to create substantial traffic hazards endangering the public safety. Safety requirements which may be imposed in such a review shall include traffic control devices, acceleration or deceleration lanes, turning lanes, traffic and lane markings and signs. The developer shall be responsible for the construction of any such traffic control devices.
- (8) Building design. Buildings shall be designed to take advantage of the natural terrain and shall not be physically located to unnecessarily concentrate activity in one portion of the lot. At least one entranceway shall be maintained at ground level. All pedestrian entrances shall be paved with an all-weather surface. A curbing shall be provided to separate parking areas, streets and driveways.
- (9) Vehicles. Any movable structure, trailer, automobile, truck or parts of these items or any other items of similar nature allowed to remain on the premises a longer time than that required to load, unload or otherwise discharge its normal functions shall be considered subject to all regulations set forth in this chapter for buildings and structures, as defined herein.

S. Signs.

- (1) Purpose. The purpose of this section is to permit such signs that will not, by their size, location, construction or manner of display, obstruct the vision necessary for traffic safety, or otherwise endanger public health, safety and morals; and to permit and regulate signs in such a way to support and compliment Baldwin Borough's community character and advance the community objectives set forth in the Borough Comprehensive Plan. Additionally, the purpose of the Borough's sign regulations are to:
 - (a) Encourage the effective use of signs as a means of identification and communication.
 - (b) To maintain and enhance the Borough's unique community aesthetic and character.
 - (c) To promote pedestrian and vehicular safety and prohibit the erection of signs in such numbers, sizes and designs, and locations that may create a hazard to pedestrian and vehicular traffic.
 - (d) To minimize adverse effect of signs on nearby public and private property.
 - (e) To promote and protect the public health, safety, morals, and general welfare of the Borough.
 - (f) To promote the installation of signs that are complementary to the buildings they serve and consistent with the general character of the surrounding development.
 - (g) To provide adequate identification for locations within the Borough while minimizing sign clutter and confusion.
 - (h) To avoid the uncontrolled proliferation of signs.
 - (i) To promote legibility, reduce the time needed to read signs, and reduce vehicular driver distraction.

- (j) To restrict signs that overload the public's capacity to receive information or that increase the probability of traffic congestion and accidents by distracting attention or obstructing vision.
 - (k) To avoid potential hazards to motorists and pedestrians using the public streets, sidewalks, and rights-of-way.
 - (l) To control public nuisances created by signs.
- (2) Permits, inspection, maintenance.
- (a) No sign or sign structure shall be erected, displayed, altered, or relocated, except as provided for herein, until a sign permit has been issued by the Zoning Officer. A separate permit shall be required for each sign requiring a permit.
 - [1] Regular, routine, and customary maintenance, including the repainting of an existing sign, where no change in lettering size, no new graphic elements or new content of any kind is contemplated, shall not require a sign permit.
 - [2] Repairs to damaged sign faces or sign structures shall not require a sign permit.
 - [3] Replacement of a sign face with an identical sign face utilizing identical materials, shall not require a sign permit.
 - (b) Applications for a permit shall be submitted on a form provided by the Borough and fee paid as set forth by the Borough fee schedule, as amended from time to time.
 - [1] Provided the application is in order, applicable fees are paid, and the requirements of this article are met, the Zoning Officer shall issue a building permit for the erection of the sign. Such permit shall expire 12 months from the date of issuance. If construction or erection of the sign is not completed within this time frame, the permit shall be deemed null and void.
 - [2] Inspections by the Zoning Officer shall be made to determine compliance with those regulations and specifications. Any discrepancies shall be identified, in writing, citing the irregularities and the action(s) required to address the requirements. If no action has been taken by the sign owner within 30 days, the sign shall be deemed in violation and the permit shall be revoked, the sign may be requested to be removed, and legal actions may be undertaken.
 - [3] The Zoning Officer may remove, or order the removal of, any sign erected, or placed, in violation of this chapter, at the expense of the sign owner.
 - [4] Signs that are found to present an immediate hazard to the public may be ordered removed, immediately by the Zoning Officer, without notice, and the cost assessed to the sign owner.
- (3) Exempt signs. The following types of signs shall not require the issuance of a sign permit:
- (a) Address markers.
 - (b) Signs erected by a public agency or utility providing warning or information to the public, and any signs erected by the Borough or under direction of the Borough.

- (c) Signs denoting the availability of property for lease or sale, a maximum of 12 square feet in area and a maximum of one sign per property. Such signs shall be permitted only if the property on which the sign is located, or a building thereon, is for lease or sale. No such sign shall be located within the public right of way.
 - (d) Political signs. Such signs shall be removed within seven days after the political event for which they were intended.
- (4) Temporary signs.
- (a) Temporary event signs and banners announcing a nonprofit event of a civic organization for noncommercial purposes, provided that there is only one sign per property and the sign shall not exceed 32 square feet in area, and the sign shall be erected for a period not to exceed 30 days prior to the start of the event and removed within three days after the conclusion of the event.
 - (b) Signs announcing special events, including but not limited to: auctions, grand openings, new management, going-out-of-business and similar special, limited-time events of a defined duration, provided that such signs shall be displayed for a maximum of 14 consecutive days per special event and there shall be only one sign per occupied tenant space. The sign permit application for such signs shall define the special event duration and dates.
 - (c) The following temporary signs may be erected without a sign permit:
 - [1] Portable sign (excluding changeable letter signs) including A-frame, sandwich-board or tent signs provided that:
 - [a] The sign has a maximum of two sign faces.
 - [b] The sign shall be located within the sidewalk frontage of a non-residential or mixed-use building provided that only one temporary sign is permitted per building and the sign shall be placed on the sidewalk immediately in front of the building with which the sign content is associated.
 - [c] The sign face size shall be a maximum of five square feet per sign face of the sign.
 - [d] Such signs shall be removed at the end of the business day and during non-business operating hours.
 - [e] Such signs shall not obstruct pedestrian traffic.
 - [2] Signs announcing new building or construction projects and identification of the contractors associated with the projects, provided the sign is erected after the beginning of the construction activity and removed upon completion of the construction project or issuance of an occupancy permit, if required.
 - (d) Other temporary signs. All other temporary signs, including but not limited to those which advertise or announce community, civic, educational, charitable, or religious projects, special events, political campaigns, and the like, and including, but not limited to, signs placed in anticipation of an upcoming election or during other similar political campaigns or events, shall meet the following requirements:

- [1] Shall not exceed 12 square feet in area per side, except that one such sign per property may be no more than 20 square feet in sign area per side.
 - [2] Shall not be more than four feet tall, measured from ground level to the top of the sign, except where one such sign may be attached to a building, existing sign structure, or other permanent structure.
 - [3] Where more than one such sign is placed on a single property, parcel, or lot, the signs shall be separated by a distance of no less than 10 feet.
 - [4] Shall not be erected sooner than 30 days prior to the scheduled date of the advertised event, election, or the like.
 - [5] Shall be removed within seven days after completion of the project, or after the date on which the advertised special event, election, or the like, has taken place or otherwise concluded.
 - [6] Shall be removed no later than 60 days after the sign is erected.
- (5) General regulations.
- (a) Prohibited signs.
 - [1] Animated signs are not permitted.
 - [2] Signs illuminated by a flashing, pulsating or intermittent internal or external light source are not permitted. Internal illumination that changes intensity with a frequency of less than 15 seconds shall be considered flashing.
 - [3] Signs that create glare on adjacent properties or any adjacent street are not permitted.
 - [4] Signs constructed from temporary materials, such as nonrigid plastic, nylon, fabric, or untreated or unpainted wood, except as permitted as a temporary sign by this section.
 - (b) Setbacks and location.
 - [1] Signs shall be placed no closer than 10 feet to any property line or any right-of-way line, measured horizontally from the sign edge, and shall not project within an existing street right-of-way.
 - [2] Monument signs shall be placed no closer than five feet to the closest property line and 18 inches from an abutting street right-of-way line.
 - [3] No sign shall be erected in such a manner or location that would obstruct vision, ingress and/or egress, or interfere with safe traffic flow.
 - [4] No sign shall be located so as to block doors, operable windows or fire escapes, or access to them; nor shall a sign be attached to a fire escape.
 - [5] Such sign shall extend vertically past the roofline of the building upon which the sign is located.
 - [6] No sign shall project over a street, alley, or driveway, nor be closer than two feet from the closest perpendicular edge of the curb or paved edge of any such vehicular

way.

(c) Lighting.

- [1] Signs in residential zoning districts shall be illuminated externally from concealed light fixtures and the illumination shall be directed to the sign face only to minimize light spillover beyond the edges of the sign face.
- [2] Signs in commercial and zoning districts may be illuminated internally, provided that only the name and official logo of the business or entity are illuminated.
- [3] Where a sign is illuminated with an external light source, such lighting shall be provided through sharp cut-off, directed-light fixtures that are decorative in nature or concealed from view and the illumination shall be directed to the sign face to minimize light spillover beyond the edges of the sign face.
- [4] No sign lighting shall be installed in a manner or of such a brightness as to create excessive glare on adjacent property or uses such that such lighting inhibits the use and enjoyment of the adjacent property or uses.
- [5] Flashing signs and signs with flashing lights are not permitted.

(6) Residential district signs.

(a) The following signs are permitted in residential zoning districts:

- [1] Building signs for identification of home occupations or no-impact home-based businesses shall be permitted provided that such sign is a maximum of five square feet and shall not be illuminated.
- [2] Monument signs identifying a residential development or neighborhood, provided that the maximum sign area shall be 18 square feet per sign face and the sign shall not exceed four feet in height.
- [3] Signs displaying name, activities and/or functions for public institutions (churches, public schools, accredited private schools, and publicly owned or operated buildings), provided that:
 - [a] One monument sign is permitted on a property.
 - [b] The maximum sign area shall not exceed 30 square feet per sign face and there shall be a maximum of two sign faces.
 - [c] Changeable copy/lettering and LED signs are permitted provided that they do not comprise more than 50% of the total sign area. Except as to permitted location, all other requirements of this chapter for LED signs shall be met.
 - [d] The maximum height shall be four feet.
 - [e] No monument sign shall be located in such a manner as to obstruct traffic sight visibility.
 - [f] One building sign is permitted per building.

(7) Nonresidential zoning districts signs.

- (a) In nonresidential zoning districts, all of the following signs are permitted:
 - [1] One freestanding sign for each building.
 - [2] One building, awning, canopy, wall or marquee sign for each building.
 - [3] One building, awning, canopy, wall or marquee sign for each building tenant, for which a Borough occupancy permit is issued or otherwise required.
 - [4] Directional signs, a maximum of five square feet in size per sign face, up to a maximum of four signs on a property.
- (b) All signs shall meet the following requirements, unless otherwise specified.
 - [1] A sign shall have a maximum of two sign faces.
 - [2] Freestanding signs.
 - [a] No freestanding sign shall have more than two sign faces.
 - [b] The maximum height of any freestanding sign, measured from ground level to the top of the sign, shall be 10 feet.
 - [c] Each sign face of a freestanding sign shall have a maximum of 40 square feet of sign area per sign face.
 - [d] Where a building includes multiple occupied tenant spaces, the maximum freestanding sign area shall be 50 square feet of sign area per sign face.
 - [e] Where two or more buildings are located on the same lot or under common ownership, the maximum freestanding sign area shall be 60 square feet of sign area per sign face, provided that a total of only one freestanding sign is permitted for all buildings on the same lot or under common ownership.
 - [f] No freestanding sign shall be located in such a manner as to obstruct traffic sight visibility.
 - [3] The maximum sign area of any building, wall, canopy, awning, or marquee sign shall be 30 square feet and shall meet the following criteria:
 - [a] The sign shall not project above the wall, roofline, or surface to which it is mounted nor obstruct building windows.
 - [b] The sign shall not encroach upon any road right-of-way nor shall it in any way interfere with normal pedestrian or vehicular traffic.
 - [c] No sign shall extend below a point measured from grade to a height of nine feet. In all instances, signs must comply with the requirements of the Americans with Disabilities Accessibility Guidelines on protruding objects and head room.
 - [d] The sign shall not project more than five feet from the building facade to which it is attached.
 - [4] LED signs are permitted in non-residential zoning districts.
 - [a] All LED sign images, messages, and graphics displayed on the sign face must

be static. Animation and video displays are prohibited.

- [b] The transition from one static display on the LED sign face to another must be instantaneous without any special effects, including but not limited to flashing, spinning, revolving transition methods, scrolling from left to right or top to bottom, slot machine, splice, mesh, radar, kaleidoscope, spin, or any other animated transition.
- [c] The images and messages displayed must be complete in themselves, without continuation in content to the next image or message or to any other sign.
- [d] Each message displayed must remain displayed continuously for a minimum of 10 seconds.
- [e] No sign shall be brighter than 5,000 nits between sunrise and sunset and 250 nits between sunset and sunrise, measured according to recognized industry standards for brightness measurement.

(8) Billboards.

- (a) See § 168-400G, Billboards.

- (9) Nonconforming signs: Any physical change or alteration to the structure of an existing, nonconforming sign, excluding regular maintenance and in-kind replacement of the sign face, requires compliance with the requirements of this chapter.

T. Visibility at intersections. On the corner lot or at any point of entry on a public road, nothing shall be erected, placed, planted or allowed to grow in such a manner which obscures the vision above the height of 2 1/2 feet and below 10 feet, measured from the center-line grade of the intersecting streets or driveways and within the area bounded by the street lines of such corner lots and a line joining points on these street lines 75 feet from their intersection along the lot lines. **[Added 11-21-2017 by Ord. No. 883¹³⁷]**

U. Swimming pools. **[Added 11-21-2017 by Ord. No. 883]**

- (1) As used in this section, a "private swimming pool" shall mean a pool of 24 inches or more in depth, above the ground or in the ground, used or intended to be used as a swimming pool in connection with a single-family residence and available only to the householder and his guests.
- (2) An application for a permit to construct, install, alter or repair a private swimming pool shall be submitted to the Building Inspector on a form supplied by him and shall be accompanied by detailed plans and specifications in duplicate setting forth the extent and character of the installation in all its structural parts and a plot drawn to scale, showing the location of the proposed swimming pool, and inspected by the Building Inspector.
- (3) The construction drawings accompanying the application for a permit shall bear the seal of an architect or engineer registered in the Commonwealth of Pennsylvania, certifying the adequacy of the construction of the proposed installation and the location as shown on the accompanying plot plan. This subsection is applicable for in-the-ground swimming pools only.
- (4) All private swimming pool installations shall comply with the health and sanitary regulations of

137.Editor's Note: Pursuant to this ordinance, former Subsections T and U were redesignated as Subsections V and W, respectively.

the Commonwealth of Pennsylvania and the County of Allegheny regulating private swimming pools.

- (5) All in-the-ground private swimming pool installations shall comply with all plumbing regulations of the Borough of Baldwin.
 - (6) The depth of the rear yard after the installation of a swimming pool shall be no less than 15 feet.
 - (7) All private swimming pool installations shall be constructed with an outlet drain connected to the sanitary sewer system of the Borough of Baldwin, which drain shall contain a gate-type valve of a maximum two inches in diameter; provided, however, that in the event that such in-the-ground private swimming pool is equipped with an approved filtering system with provisions for the backwash of the water used therein, such private swimming pool may be emptied into the sanitary sewer system of the Borough through such backwash so long as the pump on such approved filtering system shall be used to empty the swimming pool through the backwash into the sewer system of the Borough, in which event said private swimming pool installations may be constructed without an outlet drain connected to such sewer system as aforesaid. This subsection is applicable to in-the-ground pools.
 - (8) All private swimming pool installations shall be enclosed by a security-type fence no less than four feet in height nor more than six feet in height. All fences shall have a self-closing, self-latching gate of such a character as is necessary to prevent access to the pool. Any fence constructed for purposes of this subsection shall not be permitted in the front yard areas of any residential district. On aboveground pools, a fold-up ladder that closes the opening on a deck with a fence will be permitted.
 - (9) Open private swimming pools are considered structures for the purpose of permits and regulations of other ordinances. For the purpose of this chapter, they are not counted as floor area in computing the lot coverage but shall not be located in any required setback area. All swimming pools shall be at least 15 feet from any property line.
 - (10) No swimming pool shall be constructed in the Borough except in accordance with a permit therefor previously secured from the Zoning Officer of the Borough, upon the written application accompanied by a plan showing the size, shape, location of the swimming pool and its enclosure and such other information as may be necessary to enable the Zoning Officer to determine whether the pool complies with this chapter.
 - (11) The permit fee for installation or alteration of a private swimming pool shall be set from time to time by the Borough Council of the Borough of Baldwin by resolution. The permit fees and inspection fees shall be required for both above-the-ground pools and in-the-ground pools, and the amounts of such fees shall be determined as aforesaid by Council.
 - (12) All inspection and enforcement provisions of this Code shall apply to private swimming pools.
- V. Topsoil removal; excavation of clay, sand, gravel or rock. The following shall apply in all districts:
- (1) Topsoil or sod may be removed only under the following conditions:
 - (a) As a part of the construction or alteration of a building or the grading incidental to such building;
 - (b) In connection with normal lawn preparation and maintenance;

- (c) In connection with the construction or alteration of a street or utility improvement.
- (2) Reseeding all disturbed areas. In any improvement or construction work, including individual home construction, all ground areas disturbed must be reseeded, in accordance with PennDOT Form 408, Section 804, using Formula E for unimproved areas. No disturbed area shall remain unseeded for more than six months.

W. Illumination and lighting standards.

- (1) Purpose. To require and set minimum standards for outdoor lighting to:
 - (a) Provide for and control lighting in outdoor public places where public health, safety and welfare are potential concerns.
 - (b) Protect drivers and pedestrians from the glare of nonvehicular light sources.
 - (c) Protect neighbors, the environment and the night sky from nuisance glare and light trespass from improperly selected, placed, aimed, applied, maintained or shielded light sources.
 - (d) Promote energy-efficient lighting design and operation.
 - (e) Protect and retain the intended visual character of the various municipality venues.
- (2) Applicability.
 - (a) All uses within the municipality where there is interior or exterior lighting that creates a nuisance or hazard as viewed from the outside, including, but not limited to, residential, commercial, industrial, public and park/sports and institutional uses, and sign, billboard, architectural and landscape lighting.
 - (b) The municipality may require lighting be incorporated for other uses, applications and locations or may restrict lighting in any of the above uses or applications when health, safety and/or welfare are issues.
 - (c) The glare-control requirements herein contained apply to lighting in all uses, applications and locations.
 - (d) Temporary seasonal decorative lighting is exempt from all but the glare-control requirements of this section. Temporary seasonal decorative lighting is defined as temporary electrical power and lighting installations to be used for holiday decorative lighting and similar purposes. Temporary decorative lighting shall not be permitted, or exist, for a period exceeding 60 days.
 - (e) Emergency lighting, as may be required by any public agency while engaged in the performance of its duties, or for illumination of the path of egress during an emergency as described in NFPA 75 and NFPA 101, are exempt from the requirements of this section.
- (3) Criteria.
 - (a) Illumination levels. Lighting, where required by this section, or otherwise required or allowed by the municipality or other applicable jurisdiction, shall have illuminances, uniformities and glare control in accordance with the recommended practices of the Illuminating Engineering Society of North America (IESNA), unless otherwise directed

by the municipality.

(b) Luminaire design.

- [1] Luminaires shall be of a type and design appropriate to the lighting application and shall be aesthetically acceptable to the municipality.
- [2] For the lighting of predominantly horizontal surfaces, such as, but not limited to, parking areas, roadways, vehicular and pedestrian passage areas, merchandising and storage areas, automotive-fuel-dispensing facilities, automotive sales areas, loading docks, culs-de-sac, active and passive recreational areas, building entrances, sidewalks, bicycle and pedestrian paths, and site entrances, luminaires shall be aimed straight down and shall meet IESNA full-cutoff criteria. Luminaires with an aggregate-rated lamp output not exceeding 500 lumens, e.g., the rated output of a standard no directional forty-watt incandescent or 10-watt compact fluorescent lamp, are exempt from the requirements of this subsection. In the case of decorative street lighting, the municipality may approve the use of luminaires that are fully shielded or comply with IESNA cutoff criteria rather than full cutoff.
- [3] For the lighting of predominantly nonhorizontal surfaces, such as, but not limited to, facades, landscaping, signs, billboards, fountains, displays and statuary, when their use is specifically permitted by the municipality, luminaires shall be shielded and shall be installed and aimed so as not to project their output into the windows of neighboring residences, adjacent uses, past the object being illuminated, skyward or onto a public roadway. Luminaires with an aggregate-rated lamp output not exceeding 500 lumens, e.g., the rated output of a standard no directional 40-watt incandescent or 10-watt compact fluorescent lamp, are exempt from the requirements of this subsection.

(c) Control of glare.

- [1] All lighting shall be aimed, located, designed, fitted and maintained so as not to present a hazard to drivers or pedestrians by impairing their ability to safely traverse and so as not to create a nuisance by projecting or reflecting objectionable light onto a neighboring use or property.
- [2] Directional luminaires, such as floodlights and spotlights, when their use is specifically approved by the municipality, shall be so shielded, installed and aimed that they do not project their output into the windows of neighboring residences, adjacent uses, past the object being illuminated, skyward or onto a public roadway or pedestrian way. Floodlights installed above grade on residential properties, except when motion-sensor actuated, shall not be aimed out more than 45° from straight down. When a floodlight creates glare as viewed from an adjacent residential property, the floodlight shall be required to be re-aimed and/or fitted with a shielding device to block the view of the glare source from that property.
- [3] Illumination for signs, billboards, building facades and/or surrounding landscapes for decorative, advertising or aesthetic purposes is prohibited between 11:00 p.m. and dawn, except that such lighting situated on the premises for a commercial establishment may remain illuminated while the establishment is actually open for business and until no more than 1/2 hour after closing. Such lighting shall be automatically extinguished using a programmable controller.

- [4] "Barn lights," aka "dusk to dawn lights," when a source of glare as viewed from an adjacent property, shall not be permitted unless effectively shielded as viewed from that property.
- [5] The use of floodlights and wall-mounted luminaires (wall packs) shall not be permitted to illuminate parking areas unless it can be proven to the satisfaction of the municipality that the employment of no other means is possible.
- [6] Parking facility and vehicular and pedestrian way lighting (except for safety and security applications and all-night business operations) for commercial, industrial and institutional uses shall be automatically extinguished no later than 1/2 hour after the close of business or facility operation. When safety or security lighting is proposed for after-hours illumination, it shall not be in excess of 25% of the number of luminaires or illumination level required or permitted for illumination during regular business hours. When it can be demonstrated to the satisfaction of the municipality that an elevated security risk exists, e.g., a history of relevant crime, an appropriate increase above the 25% limit may be permitted.
- [7] Luminaires shall be automatically controlled through the use of a programmable controller with battery power-outage reset, which accommodates daily and weekly variations in operating hours, annual time changes and seasonable variations in hours of darkness. The use of photocells is permitted when in combination with the programmable controller to turn luminaires on at dusk and also for all-night safety/security dusk-to-dawn luminaire operation when such lighting is specifically approved by the municipality. The use of motion detectors is permitted.
- [8] Vegetation screens shall not be employed to serve as the primary means for controlling glare. Rather, glare control shall be achieved primarily through the use of such means as cutoff luminaires, shields and baffles, and appropriate application of luminaire mounting height, wattage, aiming angle and luminaire placement.
- [9] The illumination projected from any use onto a residential use shall at no time exceed 0.1 footcandle, measured line-of-sight at any time and from any point on the receiving residential property.
- [10] The illumination projected from any property onto a nonresidential use shall at no time exceed 1.0 initial footcandle, measured line-of-sight from any point on the receiving property.
- [11] Except as permitted for certain recreational lighting and permitted elsewhere in this subsection, luminaires shall not be mounted in excess of 20 feet above finished grade of the surface being illuminated. Luminaires not meeting full-cutoff criteria, when their use is specifically allowed by the municipality, shall not be mounted in excess of 16 feet above finished grade (AFG). Mounting height shall be defined as the distance from the finished grade to the surface being illuminated to the optical center of the luminaire. Where proposed parking lots consist of 100 or more contiguous spaces, the municipality may, at its sole discretion, based partially on mitigation of potential off-site impacts, allow a luminaire mounting height not to exceed 25 feet AFG. For recreational lighting maximum mounting height requirements, refer to "recreational uses" elsewhere in this section.
- [12] Only the flags of the United States and the Commonwealth of Pennsylvania shall be

permitted to be illuminated past 11:00 p.m. Flag lighting sources shall not exceed 7,000 aggregate lamp lumens per flagpole. The light source shall have a beam spread no greater than necessary to illuminate the flag and shall be shielded so that light source (lamp and reflector) is not visible at normal viewing angles.

- [13] Under-canopy lighting for such applications as gas/service stations, hotel/theater marquees, fast food/bank/drugstore drive-ups and the like shall be accomplished using flat-lens full-cutoff luminaires aimed straight down and shielded in such a manner that the lowest opaque edge of the luminaire shall be below the light source and its light-directing surfaces at all lateral angles around the luminaire. The average maintained illumination in the area directly below the canopy shall not exceed 20 initial footcandles, and the maximum shall not exceed 30 initial footcandles.

(d) Installation.

- [1] Electrical feeds for lighting standards shall be run underground, not overhead, and shall be in accordance with the National Electrical Code (NEC) and National Fire Protection Association 70 (NFPA 70).
- [2] Poles supporting luminaries for the illumination of parking areas and located within the parking area or directly behind parking spaces, or where they could be hit by snowplows or wide-swinging vehicles, shall be suitably protected by being placed a minimum of five feet outside the paved area or tire stops, or placed on concrete pedestals at least 30 inches high above the pavement, shielded by steel bollards or protected by other municipality-approved means.
- [3] Pole-mounted luminaires for lighting horizontal tasks shall be aimed straight down, and poles shall be plumb.
- [4] Poles and brackets for supporting luminaires shall be those specifically manufactured for that purpose and shall be designed and rated for the luminaire and mounting accessory weights and wind loads involved.
- [5] Pole foundations shall be designed consistent with manufacturer's wind load requirements and local soil conditions involved.

(e) Maintenance. Luminaires and ancillary equipment shall be maintained so as to always meet the requirements of this section.

(f) Billboards and signs. The lighting of new, or the relighting of existing, billboards and signs shall require a building permit, which shall be granted when the municipality is satisfied that excessive illumination, light pollution, glare and light trespass have been adequately mitigated, and shall be subject to the following requirements:

- [1] Externally illuminated billboards and signs shall have luminaires mounted at the top of the billboard or sign and aimed downward. The luminaries shall be designed, fitted and aimed to shield the lamp and its reflective surfaces from off-site view and to place the light output onto, and not beyond, the sign or billboard. Lighting shall be by linear fluorescent unless it can be demonstrated to the satisfaction of the municipality that such a mounting arrangement is not possible. At no point on the face of the sign or billboard, and at no time, shall the illumination exceed 30 vertical footcandles during hours of darkness.

- [2] Internally illuminated signs shall have a dark field and light message. The aggregate output of the light sources shall not exceed 500 initial lumens per square foot of sign face per side.
 - [3] Channel letter signs shall have dimming capability to allow adjustment of sign brightness to meet local ambient conditions.
 - [4] The illumination of billboards shall be limited to commercial and industrial districts, and the illumination of billboards within 400 feet of a residential use shall not be permitted.
 - [5] Off-premises billboards and signs shall be extinguished automatically by a programmable controller, with astronomical and daylight saving time control, and spring or battery power-outage reset, by no later than 11:00 each evening until dawn, except that signs for establishments (not companies) that operate or remain open past 11:00 p.m. may remain on no later than 1/2 hour past the close of the establishment.
 - [6] Rotating, traveling, pulsing, flashing or oscillating light sources, lasers, beacons, searchlights or strobe lighting shall not be permitted.
 - [7] LED billboard and sign lighting shall only be permitted in commercial and industrial districts, shall be static, shall not be allowed to operate between 11:00 p.m. and dawn when located where visible from a residential district or use, and shall not be located within 1,000 feet of an approaching interchange or traffic-merging lanes. Except for time-and-weather signs, the message shall not be permitted to change more than once each hour. The LED output shall be automatically reduced to a brightness level that does not create glare during hours of darkness.
 - [8] The use of highly reflective signage that creates nuisance glare or a safety hazard shall not be permitted.
- (4) Residential development luminaire placement.
- (a) For residential developments where lot sizes are, or average, less than 20,000 square feet, if the municipality so directs, street lighting shall be provided at:
 - [1] The intersection of public roads with entrance roads to the proposed development.
 - [2] Intersections involving proposed public or nonpublic major-thoroughfare roads within the proposed development.
 - [3] The apex of the curve of any major-thoroughfare road, public or nonpublic, within the proposed development, having a radius of 300 feet or less.
 - [4] Cul-de-sac bulbs.
 - [5] Terminal ends of center median islands having concrete structure curbing, trees and/or other fixed objects not having breakaway design for speeds of 25 miles per hour or greater.
 - [6] Defined pedestrian crossings located within the development.
 - [7] Where lot sizes permit the parking of less than three vehicles on the residential lot, thereby necessitating on-street parking.

- [8] At other locations along the street as deemed necessary by the municipality.
- (b) In residential developments with lots of less than 20,000 square feet, where five or more common contiguous parking spaces are proposed, such spaces shall be illuminated.
 - (c) In multifamily developments, common parking areas of four spaces or greater shall be illuminated.
- (5) Recreational uses. The nighttime illumination of outdoor recreational facilities for such aerial sports as baseball, basketball, soccer, tennis, track and field, and football typically necessitate higher than normally allowed luminaire mounting heights and aiming angles, utilize very-high-wattage lamps and potentially produce unacceptable levels of light trespass and glare when located near residential properties. Permission to illuminate such facilities shall be granted only when the municipality is satisfied that the health, safety and welfare rights of nearby property owners and the municipality as a whole have been properly protected. When recreational uses are specifically permitted by the municipality for operation during hours of darkness, the following requirements shall apply:
- (a) Racetracks and such recreational venues as golf driving ranges and trapshooting facilities that necessitate the horizontal or near horizontal aiming of luminaires and projection of illumination shall not be permitted to be artificially illuminated.
 - (b) Sporting events shall be timed to end at such time that all lighting in the sports facility, other than lighting for safe exit of patrons and participants, shall be extinguished by 11:00 p.m., regardless of such occurrences as extra innings or overtimes.
 - (c) The municipality reserves the right to limit the number of illuminated sporting events per week or season.
 - (d) Maximum mounting heights for recreational lighting shall be in accordance with the following.
 - [1] Basketball: 20 feet.
 - [2] Football: 70 feet.
 - [3] Soccer: 70 feet.
 - [4] Lacrosse: 70 feet.
 - [5] Baseball:
 - [a] Two-hundred-foot radius: 60 feet.
 - [b] Three-hundred-foot radius: 70 feet.
 - [6] Miniature golf: 20 feet.
 - [7] Swimming pool aprons: 20 feet.
 - [8] Tennis: 20 feet.
 - [9] Track: 20 feet.
 - (e) To assist the municipality in determining whether the potential impacts of proposed

lighting have been suitably managed, applications for illuminating recreational facilities shall be accompanied not only with the information required under Subsection U(6) below, but also by a visual impact plan that contains the following:

- [1] Plan views containing a layout of the recreational facility and showing pole locations and the location of residences on adjoining properties.
 - [2] Elevations containing pole and luminaire mounting heights, horizontal and vertical aiming angles and luminaire arrays for each pole location.
 - [3] Elevations containing initial vertical illuminance plots at the boundary of the site, taken at a height of five feet line-of-sight.
 - [4] Elevations containing initial vertical illuminance plots on the windowed facades of all residences facing and adjacent to the recreational facility. Such plots shall demonstrate compliance with the light trespass and glare control requirements of this section.
 - [5] Proposed frequency of use of the facility during hours of darkness on a month-by-month basis and proposed time when the sports lighting will be extinguished.
 - [6] A narrative describing the measures proposed to achieve minimum off-site disturbance.
- (6) Plan submission. Where site lighting is required by this section, is otherwise required by the municipality, or is proposed by the applicant, lighting plans shall be submitted for municipality review and approval for subdivision and land development, conditional use, variance, building permit and special exception applications. The submitted information shall include the following:
- (a) A plan or plans of the site, complete with all structures, parking spaces, building entrances, traffic areas (both vehicular and pedestrian), existing and proposed trees, and adjacent uses that might be adversely impacted by the lighting. The lighting plan shall contain a layout of all proposed and existing luminaires, including, but not limited to, area, architectural, building entrance, canopy, soffit, landscape, flag, sign, etc., by location, orientation, aiming direction, mounting height, lamp, photometry and type.
 - (b) A ten-foot-by-ten-foot illuminance grid (point-by-point) plot of maintained horizontal footcandles overlaid on the site plan, plotted out to 0.0 footcandles, which demonstrates compliance with the light trespass, illuminance and uniformity requirements as set forth in this section or as otherwise required by the municipality. When the scale of the plan, as judged by the municipality, makes a ten-foot-by-ten-foot grid plot illegible, a more legible grid spacing may be permitted.
 - (c) Light-loss factors, IES candela test-filename, initial lamp-lumen ratings and specific lamp manufacturer's lamp ordering nomenclature used in calculating the plotted luminance levels.
 - (d) Description of the proposed equipment, including luminaire catalog cuts, photometries, glare-reduction devices, lamps, on/off control devices, mounting heights, pole foundation details, pole protection means and mounting methods.
 - (e) Landscaping plans shall contain luminaire locations, demonstrating that the site lighting

and landscaping have been coordinated to minimize conflict between vegetation and intended light distribution, both initially and at vegetation maturity.

- (f) When requested by the municipality, applicant shall also submit a visual-impact plan that demonstrates appropriate steps have been taken to mitigate potential consequences of on-site and off-site glare and to retain the intended character of the municipality. This plan may require the inclusion of initial vertical footcandle values at specific off-site venues, e.g., bedroom windows of adjacent residential uses.
- (g) Plan notes. The following notes shall appear on the lighting plan:
 - [1] Post-approval alterations to lighting plans or intended substitutions for specified lighting equipment on the approved plan shall be submitted to the municipality for review and approval prior to installation. Requests for substitutions shall be accompanied by catalog cuts of the proposed equipment that demonstrate the proposed substitution is equal to or exceeds the optical quality and maintainability of the specified luminaires and accompanied by a lighting plan, including a point-by-point plot, which demonstrates that proposed substitutions will result in a lighting design that equals or exceeds the quality of the approved plan.
 - [2] The municipality reserves the right to conduct post-installation inspections to verify compliance with the section requirements and approved lighting plan commitments and, if deemed appropriate by the municipality, to require remedial action at no expense to the municipality.
 - [3] All exterior lighting, including building-mounted lighting, shall meet IESNA full-cutoff criteria unless otherwise specifically approved by the municipality.
 - [4] Installer shall notify municipality to arrange for inspection and approval of all exterior lighting, including building-mounted lighting, prior to its installation.
- (7) Compliance monitoring.
 - (a) Safety hazards.
 - [1] If the municipality judges a lighting installation creates a safety hazard, the person(s) responsible for the lighting shall be notified and required to take remedial action.
 - [2] If appropriate corrective action has not been effected within 15 days of notification, the municipality may take appropriate legal action.
 - (b) Nuisance glare and inadequate illumination levels.
 - [1] When the municipality judges an installation produces unacceptable levels of nuisance glare, skyward light, excessive or insufficient illumination levels or otherwise varies from this section, the municipality may cause notification of the person(s) responsible for the lighting and require appropriate remedial action.
 - [2] If the infraction so warrants, the municipality may act to have the problem corrected as in Subsection U(6)(g)[2] above.
- (8) Nonconforming lighting.
 - (a) Any luminaire or lighting installation existing on the effective date of this section that does

not conform with the requirements of this section shall be considered lawful nonconformance.

- (b) A nonconforming luminaire or lighting installation shall be made to conform with the requirements of this section when:

[1] Minor corrective action, such as re-aiming or shielding, can achieve conformity with the applicable requirements of this section.

[2] It is deemed by the municipality to create a safety hazard or a nuisance.

[3] It is replaced by another luminaire or luminaires or abandoned or relocated.

[4] The number of existing luminaires is increased by 50% or more.

[5] There is a change in use.

- (c) Regardless of the requirements above, when requested by the municipality, nonconforming luminaires and lighting installations shall be made to conform with the requirements of this section or removed within three years from the effective date of this section.

- (9) Reporting of violations and penalties.

- (a) A violation, or suspected violation, of this section may be reported to the Borough through any of its officers, agents or employees, who shall report same to the Code Enforcement Official, designated as such by the Borough from time to time.

- (b) Any person or entity violating any of the requirements of this section be issued a citation by the proper municipality official and, upon conviction of same before the District Justice, shall be subject to a fine of not less than \$50 nor more than \$500 and/or imprisonment for not more than 30 days. Each day that a violation continues shall be deemed a separate offense, and a separate fine may be imposed.

§ 168-430. Nonconforming uses or structures.

A. Statement of intent.

- (1) The zoning districts established by this chapter are designed to guide future use of land in the Borough by encouraging the development of desirable residential, commercial and industrial areas, with appropriate groupings of compatible and related uses, to the end of promoting and protecting the public health, safety, comfort, prosperity and other aspects of the general welfare.
- (2) To achieve this end, lawful existing uses which would be prohibited or restricted under the terms of this chapter or future amendments, and which do not conform to the character and regulations of the zoning district in which they are located, shall be subject to certain limitations. The regulations set forth below are intended to provide a gradual remedy for the undesirable conditions resulting from indiscriminate mixing of uses, and to afford a means whereby nonconforming uses can be gradually eliminated and reestablished in more suitable locations within the Borough.
- (3) Similarly, buildings or other structures which do not comply with one or more of the applicable district requirements as to lot width, minimum lot area and yard spaces, lot coverages or building height are deemed to be nonconforming.

- (4) Nonconforming uses and structures will be generally permitted to remain; the purpose of regulating them is to restrict further investment in uses or structures which are inappropriate to their location.
- (5) To avoid undue hardship, nothing in this chapter shall be deemed to require a change in plans, construction or intended use of any building on which actual construction was lawfully begun prior to the effective date or amendment of this chapter and on which actual building construction has been diligently carried on.

B. Nonconforming use regulations.

(1) Continuation.

- (a) Lawful uses located either within a building or other structure, or part thereof, or on the land or in combination of both which, at the effective date of this chapter or subsequent amendment thereto, become nonconforming, may be continued so long as they remain otherwise lawful, including subsequent sales of the property.
- (2) Alteration or enlargement of nonconforming buildings, structures or land.
 - (a) Nonconforming buildings, structures or land shall not be added to or enlarged upon any manner, unless said building, structure or land, including additions and enlargements, is made to conform to all the regulations of the district in which they are located. No structure alterations may be made other than those ordered by an authorized public officer to assure the safety of a nonconforming building or structure.
 - (b) If a building or structure is conforming as to use, but nonconforming as to area and bulk regulations or off-street parking requirements, said building or structure may be enlarged or added to, provided that the enlargement or addition complies with the area and bulk regulations and the existing building and the addition comply with the off-street parking regulations of the district in which said building or structure is located.
 - (c) No nonconforming building or structure shall be moved, in whole or in part, to another location on the lot unless every portion of said building or structure is made to conform to all the regulations of the district in which it is located.

(3) Discontinuance.

- (a) If a nonconforming use of land or building ceases operations for a continuous period of more than 12 months, then this shall be deemed to be an intent to abandon such use, and any subsequent use of land shall conform to the regulations of this chapter.
- (4) Change in use.
 - (a) A nonconforming use of a conforming building or structure (i.e., residential use of a commercial building) shall not be expanded into any other portion of such conforming building or structure nor changed except to a conforming use. If such a nonconforming use or a portion thereof is discontinued or changed to a conforming use, any future use of such building, structure or portion shall be in conformity with the regulations of this chapter.
 - (b) Whenever a use district shall be hereinafter changed, any existing nonconforming use in such changed district may be continued or changed to another nonconforming use of the same or higher classification, provided that no structural alterations are made other than

those ordered by an authorized public officer to assure the safety of the building or structure.

(5) Damage or destruction.

- (a) In the event that a nonconforming use in any district is destroyed or partially destroyed by fire, explosion or other cause, or otherwise damaged to the extent of 50% or more of its bulk of all buildings, structures and other improvements on the lot, such nonconforming use shall terminate and the lot shall thereafter be used only for conforming uses. Nothing in this article shall be construed to prevent the restoration and the resumption of a former lawful use of any building that is damaged or partially destroyed by fire or other calamity or by act of God to the extent of 50% or less, provided that such restoration is started within one year and diligently prosecuted to completion. No nonconforming building that is completely destroyed or damaged or partially destroyed in any of the above manners to a greater extent than 50% or voluntarily razed or required by any law to be razed by the owner thereof may thereafter be restored except in full conformity with all the provisions of this chapter as to building and use. The proportionate extent of damage or partial destruction shall be based upon the ratio of the estimated cost of restoring the building to its condition prior to such damage or partial destruction, to the estimated cost of duplicating the entire building as it existed prior thereto. Estimates for this purpose shall be furnished by the Borough Engineer.
 - (b) In any case, whether conforming or nonconforming, the remains of any building, if destroyed, must be removed from the premises within three calendar months so that the same is not or shall not remain as a nuisance thereon, and in any event, a residence in a commercial area which has been completely or partially destroyed may be rebuilt without any variance.
- C. Nonconforming lot regulations. Nothing in this chapter is intended to unreasonably restrict the development of lots of record existing in any residential district on the effective date of adoption or amendment of this chapter. Where existing lots of record are rendered nonconforming lots by this chapter, a single-family dwelling and customary accessory structures may be erected subject to the regulations of the ordinance prevailing at the time the lots were recorded, provided that the lot in question satisfied not less than 60% of the required minimum area, yard and bulk regulations of the district in which the subject lot is located.
- D. Nonconforming signs. Signs in existence at the effective date of this chapter or amendments thereto may be continued, subject to the following regulations:
- (1) Moving. No nonconforming advertising sign, billboard, commercial advertising structure or statuary shall be moved to another position of the building or lot on which it is located after the effective date of this chapter or amendment thereto.
 - (2) Structure alterations. A nonconforming sign on a nonconforming use may be continued, but the area of such sign or signs shall not be structurally altered.
 - (3) Damage or destruction. In the event that any nonconforming advertising sign, billboard, commercial advertising structure or statuary is damaged to the extent of 25% of its cost or replacement at the time of destruction, such sign shall not be restored or replaced.
 - (4) Discontinuance of signs. Whenever any use of a building or structure of land or of a combination of buildings, structures and land ceases, all signs accessory to such use shall be

deemed to become nonconforming and shall be removed within six calendar months.

ARTICLE V
Administration

This article describes the roles for individuals and groups as they apply to this chapter. These include the Borough Council, Zoning Officer, Building Inspector, Planning Commission and Zoning Hearing Board. It is the purpose of this article to prescribe the procedures by which the administration of this chapter shall take place. Nothing contained within the article shall be interpreted as limiting the adoption of administrative regulations which do not supersede required stated procedures.

§ 168-500. Borough Council.

A. Duties of Council.

- (1) The Council. Under this chapter, Council shall have the duties of considering and adopting or rejecting proposed amendments or the repeal of this chapter, as provided by law; and of establishing a schedule of fees and charges. Under no circumstances shall the duties of the Council include hearing and deciding questions of enforcement that may arise.
- (2) Appoint the members of the Planning Commission, the Zoning Hearing Board and the Zoning Officer.
- (3) Receive and consider the recommendations of the Planning Commission on matters the Commission reviews pursuant to this chapter.
- (4) Ask for recommendations of the Planning Commission on the adoption or amendment of this chapter if such recommendations are not prepared by the Planning Commission. In accordance with § 303(a) of the Pennsylvania Municipalities Planning Code,¹³⁸ Council must ask for recommendations from the Planning Commission for proposed actions related to:
 - (a) The location, opening, vacation, extension, widening, narrowing or enlargement of any street, public ground, pierhead or watercourse;
 - (b) The location, erection, demolition, removal or sale of any public structure located within the municipality;
 - (c) The adoption, amendment or repeal of an official zoning map, SALDO, zoning ordinance, or capital improvements program: or **[Amended 1-21-2020 by Ord. No. 900]**
 - (d) The construction, extension or abandonment of any water line, sewer line or sewage treatment facility.
- (5) Advertise and host a public hearing before adopting a zoning ordinance or any amendment thereto.
- (6) May remove members of the Planning Commission, the Zoning Hearing Board or the Zoning Officer from their positions upon just cause and after a formal hearing.
- (7) Establish fees for the issuance of land development, building, occupancy and sign permits. In accordance with § 617.3(e) of the Pennsylvania Municipalities Planning Code,¹³⁹ Council may

¹³⁸.Editor's Note: See 53 P.S. § 10303(a).

¹³⁹.Editor's Note: See 53 P.S. § 10617.3(e).

also prescribe fees for conditional use applications, landowner curative amendments, municipal curative amendments and for hearings before the Zoning Hearing Board.

- (8) Council shall have exclusive jurisdiction to hear and render final adjudications in the following matters:
- (9) All applications pursuant to § 508 of the Pennsylvania Municipalities Planning Code, 53 P. S. § 10508, for approval of subdivisions or land developments under Part V of the Pennsylvania Municipalities Planning Code, 53 P.S. § 10501 et seq.
- (10) Applications for conditional use under the express provisions of this chapter.
- (11) Applications for curative amendment to this chapter or pursuant to § 609.1 and 916.1(a) of the Pennsylvania Municipalities Planning Code, 53 P.S. §§ 10609.1 and 10916.1(a).
- (12) All petitions for amendments to land use ordinances, pursuant to the procedures set forth in § 609 of the Pennsylvania Municipalities Planning Code, 53 P. S. § 10609.
- (13) Appeals from the determination of the Zoning Officer or the Borough Engineer in the administration of any land use ordinance or provisions thereof with reference to sedimentation and erosion control and stormwater management as enabled by the Pennsylvania Municipalities Planning Code.
- (14) Applications for approvals of planned residential development.

§ 168-510. Zoning Officer and Building Inspector.

A. Duties of Zoning Officer.

- (1) The day-to-day administrative procedures provided for in this chapter are the responsibility of the Zoning Officer. The Zoning Officer's duties generally involve receiving, reviewing, and issuing building and zoning permits and certificates of occupancy, maintaining records of applications and permits, performing inspections to determine compliance with this chapter, notifying persons violating this chapter, keeping this chapter and map up-to-date and accepting applications for and presenting facts at hearings before the Zoning Hearing Board. Council may amend the duties of the Zoning Officer as deemed necessary for the health, safety and welfare of the residents. The Zoning Officer must administer this chapter by its literal terms; the Zoning Officer does not have any discretionary power and can neither waive nor tighten any requirement of the chapter. The Zoning Officer is required to meet qualifications established by the Borough and the Pennsylvania Municipalities Planning Code¹⁴⁰ and must be able to demonstrate a working knowledge of the municipal zoning. The Zoning Officer may also serve as the Building Inspector.

B. Zoning permits, building permits and certificate of occupancy. Before issuing the zoning permit, building permit or certificate of occupancy, the Zoning Officer shall assure that the proposed construction or use is in conformity with the provisions of this chapter, as well as other applicable ordinances of the Borough.

C. Application for special exception. Any applicant for a building permit or certificate of occupancy for a structure or use which may be permitted in the district concerned only as a special exception shall be informed by the Zoning Officer of the rules and procedures of the Zoning Hearing Board relating

140. Editor's Note: See 53 P.S. § 10101 et seq.

to such applications.

D. Other duties. Other duties of the Zoning Officer are to:

- (1) Act on behalf of the municipality in any appropriate action or proceedings to prevent the unlawful erection, construction, reconstruction, alteration, repair, conversion, demolition, maintenance or use of any building or structure, to restrain, correct or abate such violation, so as to prevent the occupancy or use of any building, structure or land, or to prevent any illegal act, conduct, business or use in or about such premises.
- (2) Revoke by order any building permit, zoning permit or certificate of occupancy issued under a mistake of fact or contrary to the law or the provisions of this chapter.
- (3) Record and file all applications and plans for permits and the action taken thereon. All applications, plans and documents shall be a public record.
- (4) Maintain the Official Zoning Map showing the current zoning districts for all the land within the municipality. Upon request, the Zoning Officer shall make determination of any Zoning Map district boundary question. Such determination may be appealed to the Zoning Hearing Board.
- (5) Upon the request of the Council, Planning Commission or Zoning Hearing Board, present facts, records or information to assist them in making decisions.
- (6) Provide testimony at hearings of the Zoning Hearing Board, if requested.
- (7) Conduct inspections and surveys as prescribed by Council or ordinance to determine compliance or noncompliance with the terms of this chapter.

§ 168-520. Planning Commission and Zoning Hearing Board.

- A. Planning Commission specific intent. It is the purpose of this article to cite the responsibilities of the Planning Commission in the administration of designated duties and functions according to the Pennsylvania Municipalities Planning Code, Act 247,¹⁴¹ as amended.
- B. Planning Commission administration and procedure.
- (1) Continuance of commission. There shall be in and for the Borough of Baldwin a Planning Commission, as previously created by Borough Ordinance pursuant to the Pennsylvania Municipalities Planning Code, Act 247.
 - (2) Appointment, term and vacancy. The Planning Commission of the Borough of Baldwin shall consist of five members, all of whom shall be full-time residents of the Borough, appointed by Council in the manner prescribed by Act 247 of the Municipalities Planning Code, as amended. The term of each member shall be for four years; not more than two shall expire during any calendar year. The Chairman of the Planning Commission shall promptly notify Council concerning vacancies in the Planning Commission for any reason, and Council shall fill the vacancy only for the unexpired term. Such appointments shall be made within a period of 60 days after such vacancy occurs.
 - (3) Meetings. The Planning Commission shall meet as required and as deemed necessary.

¹⁴¹Editor's Note: See 53 P.S. § 10101 et seq.

- (4) Conduct of business. The Planning Commission shall elect its own Chairman and Vice Chairman and create and fill such other offices as it may determine. Officers shall serve annual terms and may succeed themselves. The Planning Commission may make and alter bylaws and rules and regulations to govern its procedures consistent with the ordinances of Borough of Baldwin and the laws of the commonwealth.

C. Planning Commission powers, duties and other functions.

- (1) Conduct. The Planning Commission shall at the request of the Council have the power and shall be required to:
 - (a) Prepare the comprehensive plan for the development of the Borough as set forth in this chapter, and present it for the consideration of the Council.
 - (b) Maintain and keep on file records of its action. All records and files of the Planning Commission shall be in the possession of Council.
- (2) Conduct. The Planning Commission at the request of Council may:
 - (a) Make recommendations to Council concerning the adoption or amendment of an Official Zoning Map.
 - (b) Prepare and present to Council a zoning ordinance, and make recommendations to the Council on proposed amendments to it as set forth in this chapter.
 - (c) Prepare, recommend and present subdivision and land development for the consideration of Council. **[Amended 1-21-2020 by Ord. No. 900]**
 - (d) Prepare and present to Council a building code and a housing code and make recommendations concerning proposed amendments thereto following review and approval by the Pennsylvania Department of Labor and Industry.
 - (e) Review and present recommendation to Council on conditional use applications.
 - (f) Complete other actions, including but not limited to the review and recommendation on conditional use application to Council, or make such studies as may be necessary to fulfill the duties and obligations imposed by this chapter.
 - (g) Prepare and present to Council an environmental study. Submit to Council a recommended capital improvements program.
 - (h) Prepare and present to Council a water survey which shall be consistent with the state water plan and any applicable water resources plan adopted by a river basin commission. The water survey shall be conducted in consultation with any public water supplier in the area to be surveyed.
 - (i) Promote public interest in, and understanding of, the Comprehensive Plan and planning.
 - (j) Make recommendations to individuals, governmental, civic and private agencies as to the effectiveness of such agencies' proposals.
 - (k) Hold public hearings and meetings.
 - (l) Present testimony before any board.

- (m) Require from other departments or agencies of the Borough such available information as relates to the work of the Planning Commission.
 - (n) In the performance of its functions, enter upon any land to make examinations and surveys with the consent of the owner.
 - (o) Prepare and present to Council a study regarding the feasibility and practicability of using renewable energy sources in specific areas within the Borough.
 - (p) Review the zoning, subdivision and land development ordinance, Official Zoning Map of the Borough of Baldwin, and regulations governing the development of land no less frequently than it reviews the comprehensive plan. **[Amended 1-21-2020 by Ord. No. 900]**
- (3) Conduct. Provide recommendations for proposed actions related to:
- (a) The location, opening, vacation, extension, widening, narrowing or enlargement of any street, public ground, pierhead or watercourse;
 - (b) The location, erection, demolition, removal or sale of any public structure located within the municipality;
 - (c) The adoption, amendment or repeal of an official map, SALDO, zoning ordinance or capital improvements program; or **[Amended 1-21-2020 by Ord. No. 900]**
 - (d) The construction, extension or abandonment of any water line, sewer line or sewage treatment facility.
- D. Planning Commission administrative and technical assistance. Council may employ administrative and technical services to aid in carrying out the provisions of Act 247, the Municipalities Planning Code, either as consultants on particular matters or as regular employees of the Borough of Baldwin.
- E. Planning Commission assistance. The Planning Commission may, with consent of Council, accept and utilize any funds, personnel or other assistance made available by Allegheny County, the commonwealth or the federal government or any of their agencies or from private sources.
- F. Planning Commission removal. Any member of the Planning Commission once qualified and appointed may be removed from office for malfeasance, misfeasance or nonfeasance in office or for other just cause by a majority vote of Council, taken after the member has received 15 days' advance notice of the intent to take such a vote. A hearing shall be held in connection with the vote if the member shall request it in writing. Any appointment to fill a vacancy created by removal shall be only for the unexpired term.
- G. Membership of Zoning Hearing Board. The membership of the Zoning Hearing Board shall consist of five residents of Borough of Baldwin appointed by Council. Their terms of office shall be five years and shall be so fixed that the term of one member shall expire each year. The Board shall promptly notify Council of any vacancies which occur. Appointments to fill vacancies shall be only for the unexpired portion of the term. Members of the Board shall hold no other elected or appointed office in Borough of Baldwin nor shall any member be an employee of the Borough.
- H. Organization of the Zoning Hearing Board. The Board shall elect from its own membership its officers, who shall serve annual terms as such and may succeed themselves. For the conduct of any hearing and taking of any action, a quorum shall be not less than a majority of all the members of the

Board, but the Board may appoint a Hearing Officer from its own membership to conduct any hearings on its behalf and the parties may waive further action by the Board as provided by law. The Board shall adopt rules consistent with this chapter and the laws of the commonwealth. Such rules shall include, but not be limited to, the manner of filing appeals and the manner of filing applications for special exceptions and variances. The Borough Manager or his or her representative shall serve as Secretary to the Zoning Hearing Board.

- I. Removal of Zoning Hearing Board members. Any Board member may be removed for malfeasance, misfeasance or nonfeasance in office or for other just cause by a majority vote of Council which appointed the member, taken after the member has received 15 days' advance notice of the intent to take such a vote. A hearing shall be held in connection with the vote if the member shall request it in writing.
- J. Zoning Hearing Board jurisdiction, meetings, hearings and other matters.
 - (1) Zoning Hearing Board. Council shall appoint a Zoning Hearing Board in accordance with the provisions of the Borough's Code of Ordinances and § 901 of the Pennsylvania Municipalities Planning Code.¹⁴² The Zoning Hearing Board shall have the following powers:
 - (a) To hear and decide appeals where it is alleged there is error in any order, requirement, decision or determination made by the Zoning Officer in the enforcement of this chapter.
 - (b) To hear and decide all variances to the terms of this chapter; the Zoning Hearing Board is required to act under provisions of this chapter including approval of the expansion, extension or enlargement of nonconforming uses only as provided for in this chapter and/or as otherwise prescribed within the Pennsylvania Municipalities Planning Code § 909.1.¹⁴³
 - (c) To authorize upon appeal in specific cases such variance from the terms of this chapter as will not be contrary to the public interest, where owing to special conditions a literal enforcement of the provisions of this chapter would result in an unnecessary hardship, and so that the spirit of this chapter shall be observed and substantial justice done.
 - (d) To hear and decide substantive challenges to the validity of any land use ordinance, except those brought before the governing body pursuant to §§ 609.1 and § 916.1(a)(2) of the Pennsylvania Municipalities Planning Code.¹⁴⁴
 - (e) To hear and decide appeals from a determination by a municipal engineer or the Zoning Officer with reference to the administration of any floodplain or flood hazard ordinance or such provisions within a land use ordinance.
 - (f) To hear and decide appeals from the Zoning Officer's determination under § 916.2 of the Pennsylvania Municipalities Planning Code.¹⁴⁵
 - (g) To hear and decide appeals from the determination of the Zoning Officer or municipal engineer in the administration of any land use ordinance or provision thereof with reference to sedimentation and erosion control and stormwater management insofar as the

142.Editor's Note: See 53 P.S. § 10901.

143.Editor's Note: See 53 P.S. § 10909.1.

144.Editor's Note: See 53 P.S. §§ 10609.1 and 10916.1(a)(2), respectively.

145.Editor's Note: See 53 P.S. § 10916.2.

same relate to development not involving Article V or VII applications prescribed within the Pennsylvania Municipalities Planning Code.

- (h) To hear and decide applications for special exceptions under the zoning ordinance pursuant to the Pennsylvania Municipalities Planning Code § 912.1.¹⁴⁶
- (2) In exercising the above mentioned powers, such Zoning Hearing Board may, in conformity with the provisions of this section, reverse or affirm, wholly or partly, or may modify the order, requirement, decision or determination appealed from and may make such order, requirement, decision or determination as in its opinion ought to be made. Notice of such decision shall forthwith be given to all parties in interest and shall be filed immediately with the Zoning Officer.
- K. Zoning Hearing Board meetings. Meetings of the Zoning Hearing Board shall be held at the call of the Chairman and at such other times as the Board may determine as per its rules and procedures. All meetings of the Board shall be open to the public. The Board shall keep minutes of its proceedings showing the vote of each member upon each question or, if absent or failing to vote, indicating such fact, and shall keep records of its examinations and other official actions, all of which shall be immediately filed with the permanent records of the Board and shall be a public record.
- L. Zoning Hearing Board hearings. The Board shall conduct hearings and make decisions in accordance with the requirements and provisions under § 908, Hearings, Pennsylvania Municipalities Planning Code.¹⁴⁷ Public notice shall be given and written notice shall be given to the applicant, the Zoning Officer and such other persons who have registered a name and address for this purpose with the Zoning Hearing Board.
- M. Zoning Hearing Board mediation option. Parties to proceedings may utilize mediation as an aid in completing such proceedings as per the provisions of § 908.1, Mediation option, Pennsylvania Municipalities Planning Code.¹⁴⁸
- N. Zoning Hearing Board expenditure for services. Within the limits of funds appropriated by the Council, the Board may employ or contract for secretaries, clerks, legal counsel, consultants and other technical and clerical services. Members of the Board may receive compensation for the performance of their duties, as may be fixed by Council and as per the provisions of § 907 of the Pennsylvania Municipalities Planning Code.¹⁴⁹

¹⁴⁶.Editor's Note: See 53 P.S. § 10912.1.

¹⁴⁷.Editor's Note: See 53 P.S. § 10908.

¹⁴⁸.Editor's Note: See 53 P.S. § 10908.1.

¹⁴⁹.Editor's Note: See 53 P.S. § 10907.

ARTICLE VI
Enforcement and Penalties

This article describes application processes that allow for meaningful review and consideration of zoning permits, including approvals for conditional uses and special exceptions.

§ 168-600. Processes, violations and penalties, and fees.

A. Building permits.

- (1) **Requirements.** A building permit shall be required prior to the razing, erection, enlargement and structural alteration of any building, structure or portion thereof (including added porches, carports and decks) and prior to the moving of a building into the Borough or from one place in the Borough to another. A building permit is not necessary for exterior painting or the removal and replacement of lights or roofing shingles, siding, windows, doors, chimneys or entrances.
- (2) **Application for building permit.** Applications for building permits shall be made in writing to the Zoning Officer on such forms as may be furnished by the Borough. Such application shall include, when deemed necessary, building and plot plans of a satisfactory nature and shall contain all information necessary for said officer to ascertain whether the proposed erection, alteration, use or change in use complies with the provisions of this chapter. Application for a permit shall be made by the owner or lessee of the building or structure or agent of either or by the licensed engineer or architect employed in connection with the proposed work. If the application is made by a person other than the owner in fee, it shall be accompanied by an affidavit of the owner or the qualified applicant or a signed statement of the qualified applicant witnessed by the Zoning Officer or his designee to the effect that the proposed work is authorized by the owner in fee and that the applicant is authorized to make such application. The full names and addresses of the owner, lessee, applicant and of the responsible officers, if the owner or lessee is a corporate body, shall be stated in the application.
- (3) **Requisites.** All applicants for building permits shall be required to furnish with their applications and plans, as otherwise required in this section, the following specific data:
 - (a) **For new structures:**
 - [1] The elevation of the proposed foundation and of the first floor with reference to the nearest abutting street level; in case of a corner lot, the elevation should be given as to both the front and side street, alley or highway abutting thereon.
 - [2] Dimensions of all existing and proposed structures.
 - [3] All required setbacks, yards and existing easements.
 - [4] The nearest available sanitary and drainage sewers and the elevation of the basement and first floor above both the sanitary and drainage sewers with which connection is to be made for service of the property.
 - [5] The information required shall be furnished by profile plans or other data of a satisfactory nature sufficient to satisfy the above requirements. Failure to furnish such information and satisfactory proof that suitable sewerage and drainage facilities will be available shall constitute grounds for denial of a building permit.

- (b) For additions, alterations and decks, porches and landscape structures.
 - [1] The nature, location, dimension and kinds of materials shall be furnished as part of the building permit application for all additions and alterations including decks, porches and landscape structures. All such structures shall conform to lot and yard requirements.
 - [2] Dimensions of all existing and proposed structures.
 - [3] All required setbacks, yards and existing easements.
 - [4] Adequate information, plans and other data shall be required to provide for privacy and quiet of adjacent landowners by the use of solid screen fences, buffers of landscaping or changes in elevation.
- (4) Industry approval. Any application for a permit for a building the construction or alteration of which requires the approval of the Pennsylvania Department of Labor and Industry shall be accompanied by satisfactory evidence that said Department has approved the plans for said building.
- B. Expiration of building permits. No permit for the erection, razing, change, alteration or removal of a building or for the construction of decks, porches or landscape structures shall be valid or effective after six months from the date of issuance thereof and shall thereafter be void, unless the work authorized by the permit shall have been substantially commenced within six months from the date of issuance and carried on with due diligence. If, however, the applicant has been delayed in proceeding with the work for which the permit was granted by reason of any reasonable cause not due to his own negligence, the permit may be renewed without additional cost to the applicant.
- C. Zoning permits.
 - (1) No structure or building shall be erected, added to or otherwise have any structure alterations made to it and no use listed in this chapter may be established or changed until a zoning permit has been issued by the Borough. No zoning permit shall be issued for any structure or building where said construction, addition, structural alteration or use thereof would be in violation of any of the provisions of this chapter. Any zoning permit issued in conflict with the provisions of this chapter shall be null and void. A zoning permit need not precede subdivision or land development applications.
 - (a) Application requirements. All applications for zoning permits shall be made in writing by the owner, tenant, vendee under contract of sale or authorized agent on a form supplied by the Borough and shall be filed with the Zoning Officer. The application shall include four copies of the following information:
 - [1] A statement as to the proposed use of the building or land.
 - [2] A site layout drawn to scale showing the location, dimensions and height of proposed buildings, structures or uses and any existing buildings in relation to property and lot lines. If the application relates to property scheduled to be developed in successive stages, such plans shall show the relationship of the portion scheduled for initial developments to the proposed layout of the entire property.
 - [3] The location, dimensions and arrangements of all open spaces and yards, including methods to be employed for screening.

- [4] The location, size, arrangement and capacity of all areas to be used for motor vehicle access, off-street parking, off-street loading and unloading and provisions to be made for lighting such areas.
 - [5] The dimensions, location and methods of illumination for signs, if applicable.
 - [6] The location and dimensions of sidewalks and all other areas to be devoted to pedestrian use.
 - [7] Provisions to be made for treatment and disposal of sewage and industrial wastes, water supply and storm drainage.
 - [8] The capacity and arrangement of all buildings used or intended to be used for dwelling purposes, including the proposed density in terms of number of dwelling units per acre of land.
 - [9] A description of any proposed industrial or commercial operations in sufficient detail to indicate effects of those operations in producing noise, glare, air pollution, water pollution, fire hazards, traffic congestion or other safety hazards.
 - [10] Description of methods to be employed in controlling any excess noise, air pollution, smoke, fumes, water pollution, fire hazards or other safety hazards as determined from review of operations.
 - [11] Any other data deemed necessary by the Zoning Officer to enable him to determine the compliance of the proposed development with the terms of this chapter.
- (2) A decision either approving or disapproving an application for a zoning permit shall be rendered within 90 days after the application is filed. Any disapproval of the application shall contain a brief explanation setting forth the reasons for the disapproval and the manner in which the application can be corrected and/or modified to obtain the required approval. If no decision is rendered on the application within 90 days, the application shall be deemed to have been granted immediately, unless the application has agreed, in writing, to an extension of time.

D. Certificate of occupancy.

(1) Requirements.

- (a) No building or part thereof hereafter erected, altered, enlarged or changed in use shall be occupied or used without a certificate of occupancy issued by the Zoning Officer, certifying that the work has been inspected and approved as being in conformity with the building permit, the provisions of this chapter and other applicable ordinances.
- (b) A new certificate of occupancy shall be required for all change of occupancy through sale of property or for continued occupancy of any structure determined uninhabitable by the Building Inspector until the same is brought up to acceptable standards.

(2) Application.

- (a) Upon completion of any erection, movement, alteration or razing of a building and prior to the use or occupancy of the property, the holder of the building permit shall notify the Zoning Officer of said completion and shall request issuance of a certificate of occupancy.
- (b) The owner or occupant of a parcel of land or an existing structure who desires to change

the use of said land or structure without alterations requiring a building permit shall apply for a certificate of occupancy on such forms as the Borough may provide, setting forth the existing and proposed uses of said land or structure. In accordance with the requirements in Subsection D(1) above, the owner or occupant of any nonconforming use shall apply for a certificate of occupancy within six months after the effective date of this chapter. Such application shall constitute registration of the nonconforming use. It shall be the duty of the Zoning Officer to notify owners or occupants of nonconforming uses of the provisions of this section.

- E. Fees. Fees for permits shall be paid in accordance with a fee schedule to be adopted by resolution of Council, and all such fees shall be paid to the Borough for deposit into the Borough Treasury. Each applicant for an appeal, special exception, variance or other procedures requiring a fee shall, at the time of making application, pay a fee, in accordance with the aforementioned fee schedule, for the cost of advertising and mailing notices as required by this chapter.
- F. Schedule of fees.
- (1) The Council shall by resolution establish a schedule of fees and shall post said schedule conspicuously in the Borough Building.
 - (2) No permit, certificate, application or variance shall be issued unless or until such costs, charges, fees or expenses as established by such resolution have been paid in full; nor shall any action be taken by the Council and/or Zoning Hearing Board take action unless or until preliminary charges and fees have been paid in full.
- G. Amendments.
- (1) Power to amend. The regulations, restrictions, boundaries and requirements set forth in this chapter may, from time to time, be amended, supplemented, changed or repealed through amendment by the Borough Council in accordance with the procedures and applicable requirements of the Pennsylvania Municipalities Planning Code.¹⁵⁰
- H. Variances.
- (1) The Zoning Hearing Board shall hear requests for variances where it is alleged that the provisions of this chapter inflict unnecessary hardship upon the applicant. The Zoning Hearing Board may by rule prescribe the form of application and may require preliminary application to the Zoning Officer. The Zoning Hearing Board may grant a variance, provided that all of the following findings are made where relevant in a given case:
 - (a) That there are unique physical circumstances or conditions, including irregularity, narrowness, or shallowness of lot size or shape, or exceptional topographical or other physical conditions peculiar to the particular property and that the unnecessary hardship is due to such conditions and not the circumstances or conditions generally created by the provisions of the zoning ordinance in the neighborhood or district in which the property is located.
 - (b) That because of such physical circumstances or conditions, there is no possibility that the property can be developed in strict conformity with the provisions of the zoning ordinance and that the authorization of a variance is therefore necessary to enable the reasonable use

150. Editor's Note: See 53 P.S. § 10101 et seq.

of the property.

- (c) That such unnecessary hardship has not been created by the appellant.
 - (d) That the variance, if authorized, will not alter the essential character of the neighborhood or district in which the property is located, nor substantially or permanently impair the appropriate use or development of adjacent property, nor be detrimental to the public welfare.
 - (e) That the variance, if authorized, will represent the minimum variance that will afford relief and will represent the least modification possible of the regulation in issue.
- (2) A variance from the terms of this chapter shall not be granted by the Zoning Hearing Board unless and until:
- (a) A written application for the variance is submitted that includes:
 - [1] Dimensions of all existing and proposed structures.
 - [2] All required setbacks, yards and existing easements.
 - (b) The required fees are paid.
 - (c) Public notice by advertising shall be given at least two weeks in advance of the hearing. The owner of the property for which the variance is sought or his agent shall be notified by mail.
 - (d) The hearing shall be held. Any party may appear in person, or by agent or by attorney.
 - (e) The Zoning Hearing Board shall make findings that the requirements of this section have been met by the applicant for the variance.
 - (f) The Zoning Hearing Board shall further make a finding that the reasons set forth in the application justify the granting of the variance, and that the variance is the minimum variance that will make possible the reasonable use of the land, building or structure.
 - (g) The Zoning Hearing Board shall further make a finding that the granting of the variance will be in harmony with the general purpose and intent of this chapter and will not be injurious to the neighborhood, or otherwise detrimental to the public welfare.
 - (h) In granting any variance, the Zoning Hearing Board may prescribe appropriate conditions and safeguards in conformity with this chapter. Violation of such conditions and such safeguards, when made a part of the terms under which the variance is granted, shall be deemed a violation of this chapter.
 - (i) Under no circumstances shall the Zoning Hearing Board grant a variance to allow a use not permissible under the terms of this chapter in the district involved, or any use expressly or by implication prohibited by the terms of this chapter in said district.

I. Purpose of rezoning.

- (1) The purpose of rezoning is to protect the safety, capacity and efficiency of the Borough's existing infrastructure systems; to maintain fiscal responsibility; and to uphold the objectives of the Baldwin Comprehensive Plan.

- (2) Rezoning considerations shall be based on the projected benefits and/or detrimental effects to the Borough of Baldwin as a whole.

J. Rezoning application forms.

- (1) All applicants submitting rezoning applications shall demonstrate the compatibility of a rezoning proposal.

K. Review of rezoning applications.

- (1) The Zoning Officer shall review the application in compliance with the following procedural guidelines:
 - (a) Upon receipt of a rezoning application, the Zoning Officer will perform a desk check review of the package to determine the completeness of the application.
 - (b) The Zoning Officer will provide the applicant a letter within seven business days stating that the application has been submitted with all required information attached.
 - (c) If the Zoning Officer finds the application to be incomplete or insufficient, the rezoning application will be returned to the applicant.
 - (d) When the rezoning application is found to be complete, the Zoning Officer shall compile a report and forward the application package and report to the Planning Commission for review.
- (2) As part of the rezoning approval process, the Planning Commission and Council shall consider the motivation and implications of each plan, analysis and report.
- (3) The Planning Commission shall review the application in compliance with the following procedural guidelines:
 - (a) If the rezoning proposal is found to be generally consistent with the Comprehensive Plan, the Planning Commission shall consider any projected beneficial and/or detrimental effects on the Borough. The Planning Commission may host a public hearing on the application if they deem it applicable.
 - (b) Based on these analyses, the Planning Commission shall submit a written recommendation either in favor or not in favor of the rezoning proposal including a specific statement as to whether or not the proposed rezoning is in accordance with the objectives of the Borough Comprehensive Plan.
- (4) The final recommendation of the Planning Commission shall be forwarded to the Council.
- (5) Upon receipt of the Planning Commission's final recommendations, the Council may review and consider for adoption the proposed zoning map amendment, in accordance with the requirements of the Municipalities Planning Code.

L. Application criteria.

- (1) Application requirements. The following outlines the plans, analyses and reports that a landowner and/or developer shall submit as part of rezoning applications. The plans, analyses and reports to be submitted include:
 - (a) Site plan.

- (b) Estimated infrastructure (sanitary sewer and potable water) demands (gallons per day).
 - (c) Off-street parking projections (number of parking spaces) available on site.
 - (d) A summary of anticipated impacts on adjoining lots including but not limited to noise, vibration, night-time lighting, service area locations and visibility, hours of operation.
 - (e) Depending upon the location of lot access, infrastructure service/demands and impacts on adjoining lots, the Council may require a landowner and/or developer to prepare other potential related studies.
- M. Additional information. The Planning Commission and the Council reserve the right to request additional information as part of the rezoning review and approval process in order to evaluate the applicability of the rezoning.
- N. Enactment of zoning ordinance amendments.
- (1) The Council may amend, supplement, or repeal any of the regulations and provisions of this chapter as set forth in Pennsylvania Municipalities Planning Code.
 - (2) The Council will conduct hearings and make decisions in accordance with the Pennsylvania Municipalities Planning Code. Before voting on the enactment of an amendment, the Council shall hold a public hearing thereon, pursuant to public notice and pursuant to mailed notice and electronic notice to an owner of a tract or parcel of land located within the borough, or an owner of the mineral rights in a tract or parcel of land within the municipality who has made a timely request in accordance with Pennsylvania Municipalities Planning Code Section 109.¹⁵¹
 - (3) In the case of an amendment other than that prepared by the Planning Commission, the Council shall submit each such amendment to the Planning Commission to provide the Planning Commission an opportunity to submit recommendations.
 - (4) If, after any public hearing held upon an amendment, the proposed amendment is changed substantially, or is revised to include land previously not affected by it, the Council shall hold another public hearing, pursuant to mailed and electronic public notice as specified by the Pennsylvania Municipalities Planning Code, before proceeding to vote on the amendment.
 - (5) Prior to the public hearing on the amendment by the Council, the amendment shall be forwarded to Allegheny County and surrounding municipalities for recommendations.
 - (6) A copy of the adopted amendment to this chapter shall be forwarded to Allegheny County for record.
- O. Procedure for landowner curative amendments.
- (1) A landowner and/or developer who desires to challenge on substantive grounds the validity of this chapter or the Official Zoning Map or any provision thereof, which prohibits or restricts the use or development of land in which he has an interest may submit a curative amendment to the Council with a written request that his challenge and proposed amendment be heard and decided as provided in § 916.1 of the Pennsylvania Municipalities Planning Code, 53 P.S. § 10916.1. The curative amendment and challenge shall be referred to the Planning Commission and the county planning agency as provided in § 609 of the Pennsylvania Municipalities Planning Code

151.Editor's Note: See 53 P.S. § 10109.

and notice of the hearing thereon shall be given as provided in § 610 and § 916.1 of the Municipalities Planning Code, 53 P. S. §§ 10609, 10610, and 10916.1.

- (2) The Council will conduct hearings and make decisions in accordance with the Pennsylvania Municipalities Planning Code. If the Borough does not accept a landowner and/or developer's curative amendment brought in accordance with this subsection and a court subsequently rules that the challenge has merit, the court's decision shall not result in a declaration of invalidity for this entire chapter and Official Zoning Map, but only for those provisions which specifically relate to the landowner's curative amendment and challenge.
- (3) The Council, if it determines that a validity challenge has merit, may adopt landowner's curative amendment, with or without revision, or may adopt an alternative amendment which will cure the challenged defects. The Council shall consider the curative amendments, plans and explanatory material submitted by the landowner and shall also consider:
 - (a) The impact of the proposal upon roads, sewer facilities, water supplies, school and other public service facilities;
 - (b) If the proposal is for a residential use, the impact of the proposal upon regional housing needs and the effectiveness of the proposal in providing housing units of a type actually available to and affordable by classes of persons otherwise unlawfully excluded by the challenged provisions of this chapter or Official Zoning Map;
 - (c) The suitability of the lot for the intensity of use proposed by the lot's soils, slopes, woodlands, wetlands, floodplains, aquifers, natural resources and other natural features;
 - (d) The impact of the proposed use on the lot's soils, slopes, woodlands, wetlands, floodplains, natural resources and natural features, the degree to which these are protected or destroyed, the tolerance of the resources to development and any adverse environmental impacts.

P. Procedure for Borough curative amendments.

- (1) If the Borough determines that this chapter, or any portion hereof, is substantially invalid, it shall take the following actions:
 - (a) The Borough shall declare, by formal action, this chapter or portions hereof substantially invalid and propose to prepare a curative amendment to overcome such invalidity. Within 30 days following such declaration and proposal, Council shall:
 - [1] By resolution make specific findings setting forth the declared invalidity of this chapter, which may include:
 - [a] References to specific uses that are either not permitted or not permitted in sufficient quantity;
 - [b] Reference to a class of use or uses which requires revision; or
 - [c] Reference to this entire chapter which requires revisions.
 - [2] Begin to prepare and consider a curative amendment to this chapter to correct the declared invalidity.
 - (b) Council will conduct hearings and make decisions in accordance with the Pennsylvania Municipalities Planning Code.

§ 168-610. Enforcement and violations.**A. Enforcement notice.**

- (1) If it appears to the Borough that a violation of this chapter has occurred, the Borough shall initiate enforcement proceedings by sending an enforcement notice as provided in this chapter.
- (2) The enforcement notice shall be sent to the owner of the lot on which the violation has occurred, to any person who has filed a written request to receive enforcement notices regarding that lot, and to any other person requested in writing by the owner of record.
- (3) An enforcement notice shall state at least the following:
 - (a) The name of the owner of record and any other person against whom the Borough intends to take action.
 - (b) The location of the lot in violation.
 - (c) The specific violation with a description of the requirements which have not been met, citing in each instance the applicable provisions of this chapter.
 - (d) The date before which the steps for compliance must be commenced and the date before which the steps must be completed.
 - (e) That the recipient of the notice has the right to appeal to the Zoning Hearing Board within the timeframe as defined by the enforcement notice.
 - (f) That failure to comply with the notice within the time specified, unless extended by appeal to the Zoning Hearing Board, constitutes a violation, with possible sanctions clearly described.

B. Remedies.

- (1) Any person, partnership or corporation who or which has violated or permitted the violation of the provisions of this chapter shall, upon being found liable therefor in a civil enforcement proceeding commenced by the Borough, pay a judgment of not more than \$500 plus all court costs, including reasonable attorney fees incurred by the Borough as a result thereof. No judgment shall commence or be imposed, levied or be payable until the date of the determination of a violation by the district justice. If the defendant neither pays nor timely appeals the judgment, the Borough may enforce the judgment pursuant to the applicable rules of civil procedure. Each day that a violation continues shall constitute a separate violation, unless the district justice determining that there has been a violation further determines that there was a good faith basis for the person, partnership or corporation violating this chapter to have believed that there was no such violation, in which event there shall be deemed to have been only one such violation until the fifth day following the date of the determination of a violation by the district justice and thereafter each day that a violation continues shall constitute a separate violation. All judgments, costs and reasonable attorney fees collected for the violation of this chapter shall be paid over to the Borough.
- (2) The court of common pleas, upon petition, may grant an order of stay, upon cause shown, tolling the per diem fine pending a final adjudication of the violation and judgment.
- (3) Nothing contained in this section shall be construed or interpreted to grant to any person or entity other than the Borough the right to commence any action for enforcement pursuant to this

section.